SUPPLEMENT NO. 8
January 2026

ZONING ORDINANCE

City of

CAMBRIDGE, MASSACHUSETTS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2025-12 enacted August 4, 2025.

See the Table of Amendments for further information.

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SUPPLEMENT NO. 7
March 2025

ZONING ORDINANCE

City of

CAMBRIDGE, MASSACHUSETTS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2025-2 enacted February 10, 2025.

See the Table of Amendments for further information.

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SUPPLEMENT NO. 6
November 2024

ZONING ORDINANCE

City of

CAMBRIDGE, MASSACHUSETTS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2024-2 enacted June 24, 2024.

See the Table of Amendments for further information.

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SUPPLEMENT NO. 5
November 2023

ZONING ORDINANCE

City of

CAMBRIDGE, MASSACHUSETTS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2023-7 enacted October 16, 2023.

See the Table of Amendments for further information.

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SUPPLEMENT NO. 4
October 2021

ZONING ORDINANCE

City of

CAMBRIDGE, MASSACHUSETTS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2021-8 enacted June 28, 2021.

See the Table of Amendments for further information.

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SUPPLEMENT NO. 3
October 2020

ZONING ORDINANCE

City of

CAMBRIDGE, MASSACHUSETTS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1421 enacted March 16, 2020.

See the Table of Amendments for further information.

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SUPPLEMENT NO. 2
April 2020

ZONING ORDINANCE

City of

CAMBRIDGE, MASSACHUSETTS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1415 enacted December 16, 2019.

See the Table of Amendments for further information.

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SUPPLEMENT NO. 1
October 2019

ZONING ORDINANCE

City of

CAMBRIDGE, MASSACHUSETTS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1408, enacted May 6, 2019.

See the Table of Amendments for further information.

Remove Old Pages	*Insert New Pages*
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ZONING ORDINANCE

CITY OF

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ARTICLE 1.000 PREAMBLE

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1.20 AUTHORITY
1.30 PURPOSE
1.40 EFFECTIVE DATE
1.50 AMENDMENTS TO THE ORDINANCE AND ZONING MAP
1.60 APPLICABILITY
1.70 SEVERABILITY
1.80 ANNUAL AND FIVE-YEAR HOUSING REVIEW

1.10 TITLE

This Ordinance shall be known as and may be cited as the "Zoning Ordinance of the City of Cambridge", hereinafter referred to as "this Ordinance".

1.20 AUTHORITY

This Ordinance is adopted pursuant to the provisions of Chapter 40A of the General Laws of the Commonwealth of Massachusetts, and amendments thereto, hereinafter referred to as the "Zoning Act". Certain provisions of this Ordinance are also adopted pursuant to Chapter 565 of the acts of 1979, as amended by Chapter 387 of the Acts of 1980.

1.30 PURPOSE

It shall be the purpose of this Ordinance to lessen congestion in the streets; conserve health; to secure safety from fire, flood, panic and other danger; to provide adequate light and air; to prevent overcrowding of land; to avoid undue concentration of population; to encourage housing for persons of all income levels; to facilitate the adequate provision of transportation, water supply, drainage, sewerage, schools, parks, open space and other public requirements; to conserve the value of land and buildings, including the conservation of natural resources and the prevention of blight and pollution of the environment; to encourage the most rational use of land throughout the city, including the encouragement of appropriate economic development, the protection of residential neighborhoods from incompatible activities and including the consideration of plans and policies, if any, adopted by the Cambridge Planning Board, and to preserve and increase the amenities of the City.

1.40 EFFECTIVE DATE

This Ordinance and subsequent amendments to it shall be, and are hereby declared to be in full force and effect from their date of adoption by the City Council which shall be the effective date. The status of nonconforming uses, structures and lots with respect to regulations existing prior to the effective date of this Ordinance or subsequent amendments to it shall not be invalidated by such adoption, but shall be governed by the applicable provisions of Section 6, Chapter 40A, G.L., as amended, and by Article 8.000 of this Ordinance, as amended.

1.50 AMENDMENTS TO THE ORDINANCE AND ZONING MAP

1.51 The City Council of the City of Cambridge may from time to time amend this Ordinance or a district boundary indicated upon the Zoning Map in the manner prescribed in Section 5, Chapter 40A, of the General Laws and all amendments thereto.

1.52 No proposed amendment to this Ordinance which has been unfavorably acted upon by the City Council shall be considered on its merits within two years after the date of such unfavorable action unless such an amendment is recommended in the report which the Planning Board is required to make to the City Council. The granting of "leave to withdraw" after a proposed amendment has been advertised for a hearing before the City Council shall be considered as constituting unfavorable action. Failure of the City Council to take action on a petition for a zoning amendment within ninety (90) days after the City Council's hearing on said petition shall render the petition inactive. Such failure to act shall not be considered unfavorable action but shall require another Planning Board public hearing, in accordance with the requirements of Section 5, Chapter 40A, G.L., prior to any subsequent City Council action on the petition.

1.53 A person making application to the City Council for a change in this Ordinance shall pay to the City Clerk at the time of filing of such application the filing fee set forth in Section 2.24.050 entitled "Fee Schedule" in Chapter 2.24 of the Cambridge Municipal Code, entitled "City Clerk Department."

1.60 APPLICABILITY

Where the application of this Ordinance imposes greater restrictions than those imposed by any other regulations, permits, easements, covenants or agreements, the provisions of this Ordinance shall control.

1.70 SEVERABILITY

Should any Section or paragraph of this Ordinance be declared by a court of competent jurisdiction to be invalid, that decision shall not effect the validity of the Ordinance as a whole or any part thereof, other than the portion so declared to be invalid.

1.80 ANNUAL AND FIVE-YEAR HOUSING REVIEW

1.81 To further the purpose of encouraging housing for persons of all income levels, and the specific objective of encouraging the construction of multifamily housing, including income-restricted affordable housing, in every neighborhood of Cambridge, the City Manager shall provide updates to the City Council on the state of housing production in the city generally as follows.

1.82 Annual Housing Report. Beginning in 2026, an annual housing report will summarize changes to the housing stock that have occurred within the previous year, including both market-rate housing and housing with affordability restrictions.

1.83 Five-Year Housing Evaluation. Beginning in 2030, a five-year housing evaluation will analyze longer-term trends in the city's housing stock, including overall growth and changes in affordability, as well as other public planning objectives that may be impacted by housing growth such as open space, tree canopy, public infrastructure, and resident services, and will recommend potential changes to zoning policy that would further the purpose of this Zoning Ordinance.

(Ord. No. 2025-2, 2-10-2025)

ARTICLE 2.000 DEFINITIONS

For the purpose of this Ordinance certain words and terms are hereby defined. The definitions set forth in the State Building Code are also applicable, where appropriate, with respect to words and terms not defined herein. Words used in the present tense include the future; the singular number includes the plural, and the plural the singular; the word "lot" includes "plot", the word "building" includes "structure"; the word "occupied" includes "designed, arranged," or "intended to be occupied". Where the verb "use" is employed it shall be construed as if followed by the words "or is intended, arranged, designed, built, altered, converted, rented, or leased to be used", the word "shall" is mandatory and "may" is permissive or discretionary.

Accessory Apartment. An accessory use with one or more rooms with separate kitchen and bathroom facilities, constituting a dwelling unit, located within and under the same ownership as a single or two-family detached dwelling and used as the residence of one residential household.

Accessory Building. A building subordinate to, and located on the same lot (or on an abutting lot in the same ownership) as the main or principal building or principal use, the use of which is customarily incidental to that of the principal building or use of the land.

Accessory Use. A use subordinate to the principal use and customarily incidental to the principal use.

Affordable Housing Overlay (AHO). A set of modified development standards set forth in Section 11.207.3 of this Zoning Ordinance intended to allow incremental increases in density, limited increases in height, and relaxation of certain other zoning limitations for residential developments in which all units are made permanently affordable to households earning up to 100% of area median income.

Affordable Housing Overlay (AHO) Dwelling Unit. A dwelling unit within an AHO Project for which occupancy is restricted to an AHO Eligible Household and whose rent or initial sale price is established by the provisions of Section 11.207.3 of this Zoning Ordinance.

Affordable Housing Overlay (AHO) Eligible Household. A household whose gross household income does not exceed the amounts set forth in Section 11.207.3 of this Zoning Ordinance.

Affordable Housing Overlay (AHO) Project. The construction of a new building or buildings and/or the modification of an existing building or buildings resulting in single-family, two-family, townhouse, or multifamily dwellings within which each dwelling unit is an AHO Dwelling Unit subject to the standards and restrictions set forth in Section 11.207 of this Zoning Ordinance.

AHO Corridor Lot. An AHO Lot that has a Front Lot Line on one or more of the following streets: Albany Street, Alewife Brook Parkway, Bishop Allen Drive, Broadway, Cambridge Street, Concord Avenue, First Street, Fresh Pond Parkway, Massachusetts Avenue, Memorial Drive, Mount Auburn Street, Prospect Street, and Sidney Street.

AHO Lot. A Lot, as defined in this Article 2.000, on which an AHO Project is proposed, whether or not there are other existing or proposed uses on the Lot that do not meet the definition of an AHO Project.

AHO Square District. One of the following Zoning Districts or areas: the Central Square Overlay District, Harvard Square Overlay District, Lesley Porter Overlay District, or the area bounded by the centerline of Elm Street to the west, the Somerville/Cambridge municipal boundary to the north, the centerline of Windsor Street to the east, and Cambridge Street to the south; but not including the premises shown on Cambridge Assessor's Map #81 Lots 81-50, 81-101, or 81-100.

Animal Services Facility. A type of Retail or Consumer Service Establishment whose principal use is to provide services related to household pets where such animals are kept on the premises, including but not limited to veterinary care, grooming, shelter, kenneling, obedience training, pet day care, or interaction with pets housed on the premises.

Apiary. A location or structure on a lot containing one or more beehives and associated beekeeping equipment.

Area Median Income (AMI) The Housing Area Median Family Income set forth in or calculated from regulations promulgated by the United States Department of Housing and Urban Development pursuant to Section 8 of the Housing Act of 1937, as amended by the Housing and Community Development Act of 1974, determined for the Boston-Cambridge-Quincy, MA-NH Metropolitan Statistical Area and adjusted for family size, or if such income standard no longer exists, such other equivalent income standard determined by the Community Development Department with the advice of the Affordable Housing Trust.

Art/Craft Studio. A room or group of rooms used by artists and craftspeople in the creation of their work, including: painting, photography, sculpture, ceramics and other related arts and crafts.

Auto Service Station. A type of Outdoor Retail or Consumer Service Establishment whose principal use is to provide petroleum fuel for automobiles and other vehicles within an open or partially enclosed area and/or where inspections and services such as oil changes, tire changes, and minor repairs are conducted within a building, but where no major repairs are made.

Auto Wash. A type of Outdoor Retail or Consumer Service Establishment whose principal use is to clean automobiles and other vehicles using mechanical equipment.

Automatic Amusement Device. Any mechanism whereby, through the insertion of a coin or token, any apparatus is released or set in motion or is put in a position where it may be in motion for the purpose of playing any game, involving in whole or in part, the skill of the player, including, but not exclusively, such devices as are commonly known as pinball machines, including free play pinball machines.

Automobile Oriented Fast Order Food Service Establishments. A fast order food service establishment which provides a greater number of parking spaces than is required by the Zoning Ordinance.

Bakery, Retail. A type of Retail or Consumer Service Establishment whose principal use is the sale of breads, pastries, cakes, pies and similar baked goods for consumption by the final customer at home whether or not final baking occurs on premises.

Bar. A type of Retail or Consumer Service Establishment whose principal use is to serve alcoholic beverages, but which is not licensed to prepare or serve food.

Bee. Any life stage of the common domestic honey bee, Apis mellifera.

Bee Colony. An aggregate of worker bees, drones, a single queen, and brood living together as one social unit.

Beekeeping. The housing of one or more bee colonies on a lot for the purpose of collecting products including honey, beeswax, propolis, pollen, and royal jelly, and/or to support the ecological benefits of pollination.

Beehive. A structure intended for the housing of one Bee Colony.

Bicycle Parking. The accessory storage of non-motorized bicycles (which may include trailers or other customary accessories) in a secure manner that allows for quick and convenient access, storage and removal of the bicycles by users who are making trips to or from the associated principal use. A facility that provides Bicycle Parking shall conform to the standards set forth in Section 6.100 of this Zoning Ordinance.

Building. Any structure built for support, shelter, or enclosure of persons, animals, chattels, or property of any kind.

Cannabis Courier Establishment. An establishment licensed as a Marijuana Courier by the Massachusetts Cannabis Control Commission that is authorized to operate pursuant to that license, including to deliver cannabis or marijuana products, accessories and branded goods from a Cannabis Retail Store to consumers, in accordance with applicable state laws and regulations, but not authorized to sell cannabis or marijuana products directly to consumers.

Cannabis Cultivator. An entity licensed by the Massachusetts Cannabis Control Commission as a Marijuana Cultivator to cultivate, process and package cannabis or marijuana, and to transfer cannabis or marijuana to other Cannabis or Marijuana Establishments, but not to consumers. A Craft Marijuana Cooperative is a type of Marijuana Cultivator, pursuant to 935 CMR 500.000.

Cannabis Delivery Operator Establishment. An establishment licensed as a Marijuana Delivery Operator by the Massachusetts Cannabis Control Commission and authorized to purchase at wholesale and warehouse on the site cannabis or marijuana products acquired from a Cannabis Cultivator, Cannabis Product Manufacturer, Cannabis Microbusiness or Craft Marijuana Cooperative, and to sell and deliver cannabis or marijuana products, accessories and branded goods directly to consumers in accordance with applicable state laws and regulations, but not authorized to repackage cannabis or marijuana products or to sell cannabis or marijuana products to consumers on-site.

Cannabis Dispensary, Registered, also known as ***Registered Marijuana Dispensary, RMD*** or ***Medical Marijuana Treatment Center.*** An entity licensed under 935 CMR 501.101 that acquires, cultivates, possesses, processes (including development of related products such as edible cannabis products, tinctures, aerosols, oils or ointments), repackages, transfers, transports, sells, distributes, dispenses, or administers cannabis or marijuana products, related supplies, or educational materials to registered qualifying patients or their personal caregivers for medical use in accordance with applicable state laws and regulations. Unless otherwise specified, RMD refers to the site(s) of dispensing, cultivation, and preparation of cannabis or marijuana for medical use.

Cannabis Establishment. A Marijuana Cultivator, Craft Marijuana Cooperative, Marijuana Product Manufacturer, Marijuana Microbusiness, Marijuana Retailer, Independent Testing Laboratory, Marijuana Research Facility, Marijuana Transporter, Marijuana Courier, Marijuana Delivery Operator, or any other type of marijuana-related business licensed by the Massachusetts Cannabis Control Commission, except a medical marijuana treatment center.

Cannabis Independent Testing Laboratory. A laboratory that is licensed by the Massachusetts Cannabis Control Commission as an Independent Testing Laboratory and is operating in accordance with applicable state laws and regulations.

Cannabis Microbusiness. A co-located Cannabis or Marijuana Establishment that can be either a Tier 1 Marijuana Cultivator or Product Manufacturer or both, pursuant to 935 CMR 500.00, in compliance with the operating procedures for each license and, if in receipt of a Delivery Endorsement issued by the Cannabis Control Commission, may deliver Cannabis or Cannabis Products produced at the licensed location directly to Consumers in compliance with established regulatory requirements for retail sale as it relates to delivery. A Microbusiness that is a Cannabis Marijuana Product Manufacturer may purchase no more than 2,000 pounds of marijuana per year from other Cannabis Marijuana Establishments, pursuant to 935 CMR 500.000.

Cannabis Product Manufacturer. An entity licensed by the Massachusetts Cannabis Control Commission as a Marijuana Product Manufacturer to obtain, manufacture, process and package cannabis or marijuana products and to transfer these products to other Cannabis or Marijuana Establishments, but not to consumers.

Cannabis Production Facility. An establishment authorized to cultivate, manufacture, process, or package cannabis or marijuana products, in accordance with applicable state laws and regulations. A Cannabis Production Facility may be licensed to operate as a Cannabis Microbusiness, Cannabis or Marijuana Cultivator, or Cannabis or Marijuana Product Manufacturer, or registered as a Medical Marijuana Treatment Center (also known as a Registered Marijuana Dispensary or RMD), or both, in accordance with applicable state laws and regulations.

Cannabis Products. Cannabis or marijuana and its products unless otherwise indicated. These include products that have been manufactured and contain cannabis or marijuana or an extract from cannabis or marijuana, including concentrated forms of cannabis or marijuana and products composed of cannabis or marijuana and other ingredients that are intended for use or consumption, including edible products, beverages, topical products, ointments, oils and tinctures.

Cannabis Research Facility. An entity licensed to engage in research projects by the Massachusetts Cannabis Control Commission.

Cannabis Retail Store. An establishment authorized to sell or otherwise transfer cannabis or marijuana products to consumers for use off the premises, but not to cultivate, manufacture, process, or package cannabis or marijuana products, in accordance with applicable state laws and regulations. A Cannabis Retail Store may be licensed to operate as a Cannabis or Marijuana Retailer or registered as a Medical Marijuana Treatment Center (also known as a Registered Marijuana Dispensary or RMD), or both, in accordance with applicable state laws and regulations.

Cannabis Retailer. An entity licensed by the Massachusetts Cannabis Control Commission as a Marijuana Retailer to purchase, repackage, white label and transport cannabis or marijuana products from Cannabis or Marijuana Establishments and to sell or otherwise transfer these products to Cannabis Marijuana Establishments and to consumers. Unless licensed, retailers are prohibited from delivering cannabis or marijuana products to consumers; and from offering cannabis or marijuana products for the purposes of on-site social consumption on the premises of a Cannabis or Marijuana Establishment.

Cannabis Use. A Cannabis Courier Establishment, Cannabis Delivery Operator Establishment, Cannabis Production Facility or Cannabis Retail Store, as defined in this Zoning Ordinance.

Chicken. Any breed of the domestic species Gallus gallus domesticus.

Clinic. An institution licensed under Sec. 51, Chapter 111, G.L., for the purpose of providing medical, surgical, dental, or restorative or mental hygienic services to persons not residing therein.

Commercial Recreation Establishment. A type of Retail or Consumer Service Establishment whose principal use is to provide entertainment or recreation services to the general public, wholly in an enclosed building, and for which user fees are charged and which is operated for profit, such as but not limited to a bowling alley, skating or skateboard rink, pool hall, billiard parlor, establishment containing more than three pinball machines or similar automatic amusement devices, or game room.

Community Center. A multipurpose family center, community facility or other social service establishment not elsewhere classified in this Ordinance where a variety of recreational, educational, social, health care or counseling services are provided under the aegis of a non-profit agency.

Convenience Store. A type of Retail or Consumer Service Establishment whose principal use is the retail sale of convenience goods directly to consumers, such as drug stores, food stores, tobacco, newspaper and magazine stores, variety stores, and liquor stores, not exceeding 5,000 square feet in total sales area (excluding storage).

Cool Area. The weighted area of features on a site that contribute to its Cool Score according to the Green Factor standards set forth in Section 22.90 of this Zoning Ordinance.

Cool Score. The metric used to determine if a project meets the Green Factor standard set forth in Section 22.90 of this Zoning Ordinance.

Cool Target. The metric used in determining the amount of Cool Area necessary to meet the Green Factor standard set forth in Section 22.90 of this Zoning Ordinance.

Cornice Line. The line which marks the horizontal edge at the top of the principal front wall plane of a structure.

Craft Beverage Establishment. A type of Retail or Consumer Service Establishment whose principal use is to serve non-alcoholic or alcoholic (if properly licensed) beverages that are produced and consumed on the premises (although such beverages may additionally be packaged and distributed at wholesale), provided that all production and packaging activities are conducted

principally within a building and such activities do not occupy more than 10,000 square feet of Gross Floor Area (activities exceeding such size or excluding on-premises service shall be classified as Light Industry).

Craft Retail and Production Shop. A type of Retail or Consumer Service Establishment whose principal use is the sale of consumer goods that are manufactured, produced or assembled for sale on the premises for use by consumers off the premises (although such goods may additionally be distributed at wholesale), provided that all manufacturing, production, assembly, packaging, display, and sales activities are conducted within a building and do not occupy more than 10,000 square feet of Gross Floor Area (manufacturing or assembly uses exceeding such size or excluding retail sales shall be classified as Light Industry).

Dance Hall or ***Nightclub.*** A type of Retail or Consumer Service Establishment whose principal use is to provide live or recorded music and dancing for which patrons are charged a use or membership fee or are required to make other purchases to participate.

Development Parcel. The total land included within a Planned Unit Development, irrespective of the number or configuration of lots. A development parcel may include land in more than one ownership. In computing the area of a development parcel, both land and water areas within such parcel may be counted. A development parcel shall contain contiguous lots only, unless the regulations for a specific planned unit development district explicitly provides for development parcels containing non-contiguous lots. However in no instance shall non-contiguous lots be separated by more than twelve-hundred (1200) feet measured in a straight line from lot to lot.

District. A section of the City for which the zoning regulations governing the use of land, the use of buildings and premises, and the permitted height of buildings, and the area of open space about the buildings are uniform.

Dormer. A roofed projection built out from a sloping roof, containing a window or windows.

Dormitory. Any dwelling (other than a sorority or fraternity house) owned or controlled by an educational institution and occupied primarily as a place of temporary residence for persons whose permanent residence is elsewhere and who are employed or enrolled at the educational institution.

Double-Skin Façade. A multilayer exterior wall system comprising a solid outer wall, a solid inner wall, and a ventilated intermediate air space, intended to improve insulation and manage solar heat gain as an element of a building-wide mechanical system for heating and cooling a building.

Drive-In Consumer Service Establishment. A type of Outdoor Retail or Consumer Service Establishment, other than a Drive-In Food Service Establishment, whose principal use is to provide retail goods or other consumer services (including, for the purpose of this definition, banking services) to customers who do not have to leave their cars during the transaction.

Drive-In Food Service Establishment. A type of Outdoor Retail or Consumer Service Establishment whose principal use is to provide prepared meals and beverages to customers who do not have to leave their cars during the transaction.

Drive-In Theater. A type of Outdoor Retail or Consumer Service Establishment whose principal use is to show films or provide other forms of live or recorded entertainment to patrons who do not have to leave their cars.

Dwelling. A building or structure used in whole or in part as a residence, but not a trailer.

Dwelling, detached. A dwelling with no party wall or walls arranged, intended or designed as the home or residence of one family.

Dwelling, multifamily. A building used as a residence containing three or more dwelling units that do not meet the definition of semi-detached dwellings or a townhouse development.

Dwelling, semi-detached (or Townhouse or Row House). One of a series of buildings with a party wall or walls, common to adjoining buildings, which is constructed so that two opposite building faces, or in the case of corner units two adjoining faces, (applicable to the building as a whole and for each unit contained therein) have full outside exposure and so that each has separate entrances from the outside, and each building of which is used as a residence containing one or two dwelling units.

Dwelling, single-family. A building with no party wall or walls used as the residence of one residential household and consisting of one dwelling unit.

Dwelling, two-family. A building used as a residence containing two dwelling units.

Dwelling unit. A room or group of rooms within a building that are used as a residence for a single residential household with self-contained facilities for living, sleeping, sanitation, cooking and eating, and other areas of which the residential household has exclusive use.

Dwelling Unit, Affordable. A dwelling unit for which occupancy is restricted to an Eligible Household and whose rent or initial sale price is established by (a) in the case of an Affordable Dwelling Unit in an Inclusionary Housing project provided pursuant to Section 11.203.2, the provisions set forth in Sections 11.203.3 and 11.203.4, or (b) standards set forth in another city, state, or federal housing program for Eligible Households.

Dwelling Unit, Family-Sized. A dwelling unit that contains three or more bedrooms and not less than one thousand one hundred (1,100) square feet of Dwelling Unit Net Floor Area.

Dwelling Unit, Studio. A dwelling unit in which there is no bedroom separated by a door or a change in story from the other living area, such as a living room and kitchen, within the dwelling unit.

Educational purposes, exempt by statute. Educational purposes exempted from prohibition, regulation, or restriction as provided in Section 3, Chapter 40A, G.L.

Elderly Oriented Congregate Housing. A form of elderly oriented housing in which each residential household is provided with separate quarters which contain living and sleeping space and which may contain kitchen and bath facilities. Each such living space shall be considered the equivalent of one dwelling unit. Such housing shall also contain common dining, kitchen and social facilities. Limited supportive services may also be provided.

Elderly Oriented Housing. A residence where a minimum of eighty (80) percent of the dwelling units are restricted to residential households of not more than two persons with (i) at least one member sixty-two (62) years of age or older, or (ii) at least one member who has a chronic physical impairment which substantially reduces his or her ability to live independently and is of such a nature that the quality of his or her life would be improved by more suitable housing, and where the certificate of occupancy issued by the Superintendent of Buildings is so restricted. The certificate shall be renewed every two years and shall be issued initially and renewed only upon submission of evidence that priority in occupancy be given to residents of Cambridge.

Eligible Household. A household whose gross household income does not exceed (a) in the case of an Affordable Dwelling Unit in an Inclusionary Housing Project provided pursuant to Section 11.203.2, the amounts set forth in Section 11.203.4, or (b) amounts set forth in another applicable city, state, or federal housing program.

Energy Simulation Tool. A State Building Code compliant software program or calculation-based methodology that projects the annual energy use of a building, approved for use in the Green Building Project by a Green Building Professional in connection with Green Building Rating Program in accordance with the provisions of Section 22.20 of this Zoning Ordinance.

Fitness Center. A type of Retail or Consumer Service Establishment whose principal use is to provide space and/or equipment for physical exercise by individuals or groups, which may or may not include instructor-led fitness classes, in exchange for a use or membership fee.

Flexible Parking Corridor. A street or street segment with a set of modified off street parking regulations set forth in Section 6.25 of this Zoning Ordinance, intended to allow for the more efficient and flexible use of Off Street Parking Facilities through the relaxation of certain zoning limitations.

Floor Area, Dwelling Unit Net. Floor area contained within dwelling units or rooming units in a lodging house excluding common areas, such as lobbies, hallways, elevator cores, amenity spaces, common storage areas or parking facilities, exterior walls, walls dividing dwelling units from each other, or walls dividing dwelling units from common areas, or unenclosed spaces such as open-air porches, balconies, or decks.

Floor Area, Gross. The sum, in square feet, of the gross horizontal areas of all floors of a building, as measured from the exterior walls of a building or the centerline of party walls between buildings, calculated in accordance with the detailed standards in Section 5.25 of this Zoning Ordinance.

Food Hall. A type of Retail or Consumer Service Establishment containing two or more Food Stands or Kiosks, in which seating, if provided, is located in a common area, and which may contain shared facilities devoted to food preparation and service which occupy a combined area no larger than 1,250 square feet times the number of individual Food Stands or Kiosks utilizing such facilities.

Food Stand or ***Kiosk.*** A type of Retail or Consumer Service Establishment located within a Food Hall or another indoor or outdoor gathering space open to the public serving prepared foods and/or beverages to be consumed immediately on or off the premises, for which the area devoted to food preparation and service is no greater than 1,250 square feet and for which any seating (if provided) is open to the general public or shared among multiple establishments.

Floor Area Ratio. The ratio of gross floor area of a structure to the total area of the lot.

Formula Business. An individual Retail or Consumer Service establishment that is required by virtue of a contract, franchise agreement, ownership or other similar legal obligation to conform or substantially conform to a set of common design and operating features that serve to identify the establishment as one of a group of establishments for business, marketing and public relations purposes. Specifically, an establishment shall be considered a Formula Business if it shares at least two (2) of the following three (3) characteristics with ten (10) or more other establishments in Massachusetts or within twenty (20) or more other establishments.

1. Trademark, service mark or logo, defined as a word, phrase, symbol, or design or combination thereof that identifies and distinguishes the source of the goods or services from others;

2. Standardized building architecture including but not limited to façade design and signage;

3. Standardized color scheme used throughout the exterior of the establishment, including color associated with signs and logos.

Funeral Home. A type of Retail or Consumer Service Establishment whose principal use is to prepare the deceased for burial display and for rituals before burial or cremation, including but not limited to chapels, crematoriums, and showrooms for the display and sale of caskets, vaults, urns, and other items related to burial services.

Government Facility, Other. Land or structure of the federal government, the Commonwealth of Massachusetts, Middlesex County or any other supra-local governmental body or agency.

Grade. The mean finished ground elevation of a lot measured either around the entire perimeter of the building or along any existing wall facing a public street, which ground elevation is maintained naturally without any structural support.

Green Building Professional. A licensed architect or engineer who holds a credential from a Green Building Rating Program indicating advanced knowledge and experience in environmentally sustainable development in general as well as specific Green Building Rating Systems or otherwise possesses comparable experience in environmentally sustainable development in accordance with the provisions of Section 22.20 of this Zoning Ordinance. In instances where a Green Building Rating Program that does not offer such a credential is being applied to meet the provisions of Section 22.20, the designated Green Building Professional shall have demonstrated experience as a project architect or engineer, or as a consultant providing third-party review, on at least three (3) projects that have been certified using the applicable Green Building Rating Program.

Green Building Project. Any new construction, or any substantial rehabilitation of an existing building for an existing or new use, that totals 25,000 square feet of Gross Floor Area or more and that (1) requires the issuance of a special permit by the Planning Board under any provision of this Zoning Ordinance (including but not limited to special permits required in Article 13.000 - Planned Unit Development Districts, Section 19.20 - Project Review Special Permit, and Section 5.28.2 -

Conversion of Non-Residential Structures to Residential Use) or (2) is subject to the provisions of Section 19.50 - Building and Site Plan Requirements, shall be considered a Green Building Project subject to the requirements of Sections 22.20 through 22.25.

Green Building Rating Program. A collection of activities and services directed by a nationally-recognized organization to promote environmentally sustainable urban development and to recognize projects that achieve defined environmentally sustainable development objectives, including the establishment and oversight of one or more Green Building Rating Systems in accordance with the provisions of Section 22.20 of this Zoning Ordinance.

Green Building Rating System. A specific set of design standards for environmentally sustainable performance established under the auspices of a Green Building Rating Program against which a project or building design may be evaluated in accordance with the provisions of Section 22.20 of this Zoning Ordinance.

Green Commissioning. The process of verifying and documenting by a Green Commissioning Authority that a building and all of its systems and assemblies are planned, designed, installed, tested, operated, and maintained to meet specified levels of environmentally sustainable performance in accordance with the provisions of Section 22.20 of this Zoning Ordinance.

Green Commissioning Authority. An entity which has been approved by a Green Building Rating Program to certify that a building meets or can meet the requirements of the Green Building Rating System and which has been identified by the Owner to lead, plan, schedule, and coordinate the implementation of the Green Commissioning process in accordance with the provisions of Section 22.20 of this Zoning Ordinance. The Green Commissioning Authority must have documented Green Commissioning process experience on at least two building projects with a scope of work similar to the proposed project extending from early design phase through at least ten (10) months of occupancy. The Green Commissioning Authority may be a qualified employee of the Owner, an independent consultant, or a disinterested subcontractor of the design team for the Owner of the property on which the Green Building Project is located.

Green Façade. A vertical system, attached to existing walls or built as freestanding structures, designed to support the growth of plants on a lattice, cable, mesh, or similar wall surface. The growing medium for Green Façades may be at grade or elevated in planters at the base of the structure or at intermediate levels.

Green Factor. A specific performance-based design standard to assess the overall cooling performance of buildings and sites, set forth in Section 22.90 of this Zoning Ordinance.

Green Roof Area. Area atop a roof surface on a building that is covered by a layer of living vegetation planted in a minimum of four (4) inches of growth medium over a waterproofing system in accordance with the provisions of Section 22.30 of this Zoning Ordinance. (Also known as a vegetated roof.)

Green Roof Area, Biosolar. Green Roof Area integrated with a Solar Energy System.

Grocery Store. A type of Retail or Consumer Service Establishment whose principal use is the sale of fresh or packaged food products to consumers for use off the premises, which may additionally provide general household supplies.

Ground Story or ***Ground Floor.*** The lowest Story Above Grade within a building.

Guest Unit. A room or group of rooms made available as a transient accommodation to a group of one or more persons who reside elsewhere.

Height of Building. The vertical distance of the highest point of the roof above the mean grade of the ground adjoining the building.

Helipad. Any area of land or water, or building, other than an airport which is made available for the landing and takeoff of helicopters or other aircraft.

Hen. A domestic female chicken.

Hen Run or ***Pen.*** An outdoor structure for the containment of hens that is enclosed on all sides and top by any material preventing contact with pests, predators, and other bird species but remaining open to the outside air.

Henkeeping. The housing of female chickens (i.e., hens) on a lot.

Henhouse or ***Coop.*** An enclosed, weather-protected structure for the shelter of hens and their nests.

High Planting Area. A type of Planting Area that supports tall herbaceous or woody plants, such as shrubs, and has a minimum soil depth of eighteen (18) inches.

Home Occupation. For an occupation customarily carried on at home, the use of a room in a dwelling as an office, studio, or work room by a person residing on the premises and in connection with which there is kept no stock in trade nor commodity sold on the premises.

Hospital An institution under Section 51, Chapter 111, G.L., for the purpose of caring for persons admitted thereto for diagnosis, medical, surgical or restorative treatment which is rendered in said institution.

Hotel or ***Motel.*** A transient accommodation containing guest units that are not owned or operated by a residential household residing on the premises, and which may or may not include amenities such as dining, recreation, and entertainment.

Incentive Project. Any new development that consists of at least thirty thousand (30,000) square feet of Gross Floor Area devoted to one or more of the following uses listed in Section 4.30 of the Zoning Ordinance: Sections 4.31.1 b (Hotel or motel), 4.32 f (Radio and television studio), 4.33 b-5 (College or University not exempt by statute, specifically including those uses and facilities listed in Subsection 4.56 c-4, c-5, and c-6), 4.33 c (Noncommercial Research Facility), 4.33 d (Health Care Facilities), 4.33 e (Social Service Facilities), 4.34 (Office and Laboratory Use), 4.35 (Retail or Consumer Service Establishments), 4.36 (Outdoor Retail or Consumer Service Establishments), 4.37 (Light Industry, Wholesale Business and Storage), and 4.38 (Heavy Industry). For the purpose of this definition, new development shall mean (1) construction of new buildings or additions to

existing buildings to accommodate uses in the above list, (2) substantial rehabilitation of buildings to accommodate uses in the above list for which the buildings were not originally used, or (3) Gross Floor Area whose use is changed from a use not included in the above list to a use included in the above list. In no case shall Gross Floor Area devoted to a Municipal Service Facility or Other Government Facility be considered an Incentive Project. Notwithstanding the foregoing, this definition shall not apply to existing floor area that is demolished and has obtained a building permit for reconstruction within three years as part of a building project so long as there is no change of use.

Inclusionary Housing Project. Any development of detached single-family, two-family, multifamily, and townhouse housing, elderly oriented congregate housing, and lodging houses as set forth in Sections 4.31 a-i, or development which includes any such residential use and at least one non-residential use, that creates at least ten (10) dwelling units or at least ten thousand (10,000) square feet of residential Gross Floor Area on one (1) lot or Development Parcel or two (2) or more adjoining lots in common ownership or under common control at any time within five (5) years following the first date of application for any special or building permit for development on the lot or lots or at any time within the twelve (12) months immediately preceding the first date of application for any special or building permit. For the purpose of this definition, development shall include (1) construction of new buildings or additions; (2) increasing the number of dwelling units or amount of residential Gross Floor Area within an existing residential building; (3) occupancy of existing buildings which have not been used for any residential use for a period of at least two (2) years; or (4) conversion of Gross Floor Area in existing buildings from non-residential to residential use. Development of fewer than ten (10) dwelling units and fewer than ten thousand (10,000) square feet of residential Gross Floor Area may be an Inclusionary Housing Project where the owner chooses voluntarily to comply with the provisions of Section 11.203.

Indoor Auto Sales Facility. A type of Retail or Consumer Service Establishment whose principal use is to display new and used cars, trailers, motorcycles, or similar automotive vehicles for sale or rental, provided that all activities are conducted entirely within a building and no major repairs are made on the premises.

Institutional Use. The use of land or structures for the non-profit charitable, benevolent, spiritual, instructional or custodial activities of government, education, religious, health care, social service, fraternal/sorority or similar organizations.

Lawn Area. A type of Planting Area that supports sod or seeded tall grasses and has a minimum soil depth of eight (8) inches.

Living Wall. A vertical system comprised of pre-vegetated panels affixed to an exterior structural wall or free-standing frame. The surface of Living Walls is designed to be continuously covered with vegetation and the growing medium is distributed throughout the surface of the system.

Lodging House (also known as ***"Rooming House"*** or ***"Boarding House").*** A residence in which rooming units are separately rented to residential households and in which occupants of different rooming units may share bathroom, kitchen, eating, or living facilities but do not live together as a single housekeeping unit. The term Lodging House shall include fraternity housing but shall not include 1) dormitories of charitable, educational, or philanthropic institutions, 2) convalescent or

nursing homes licensed under section seventy-one of chapter one hundred and eleven of the Massachusetts General Laws or rest homes so licensed, or 3) group residences licensed or regulated by agencies of the commonwealth.

Long-Term Flood Elevations ("LTFEs"). Projected elevations of future flood risk due to certain types and probabilities of flood events, promulgated by the City Engineer in accordance with the provisions of Section 22.80 of this Zoning Ordinance.

Lot. A parcel of land in identical ownership throughout, bounded by other lots or by streets, which is designated by its owner to be used, developed or built upon as a unit.

Lot Depth. The horizontal distance between the front and rear lot lines measured in the mean direction of the side lot lines.

Lot Line, Front. A line separating the lot from the street or from a building line if such has been established.

Lot Line, Rear. A line most distant and opposite from the front lot line; where the lot is irregular, a line perpendicular to the mean direction of the side lot lines, and at least ten (10) feet in length within the lot.

Lot Width. The horizontal distance between the side lot lines measured perpendicular to the mean direction of the side lot lines.

Low Planting Area. A type of Planting Area that supports short herbaceous or woody plants, such as shrubs, and has a minimum soil depth of twelve (12) inches.

Merchandise Store. A type of Retail or Consumer Service Establishment, not otherwise defined as a Convenience Store, Grocery Store, Cannabis Retail Store, or other use defined in this Zoning Ordinance, whose principal use is the retail sale of consumer goods on the premises and where no manufacturing, production or assembly of products occurs on the premises.

Municipal Service Facility. Use of land or structures by the City of Cambridge or other municipality for maintenance operations, public utilities, public works and similar governmental functions.

Neighborhood. That geographical area within Cambridge whose boundaries are defined on the Cambridge Planning Board's map entitled "Cambridge Neighborhoods", as attached hereto and incorporated herein by reference.

Nonconforming structure. Any structure which does not conform to the dimensional requirements in Article 5.000 or to the parking and loading requirements in Article 6.000 of this Ordinance for the district in which it is located; provided that such structure was in existence and lawful at the time the applicable provisions of this or prior zoning ordinances became effective.

Nonconforming use. A use of a building, structure or lot that does not conform to the use regulations of Article 4.000 of this Ordinance for the district in which it is located; provided that such use was in existence and lawful at the time the applicable provisions of this or prior zoning ordinances became effective.

Open-Lot Retail Sales Establishment. A type of Outdoor Retail or Consumer Service Establishment whose principal use is the sale of goods directly to consumers for use off the premises where such goods are customarily displayed in an outdoor environment, including but not limited to flowers, garden supplies, agricultural produce, landscape materials, and gravestones.

Open Space, Green Area. A landscaped area of land associated with and located on the same tract of land as a major building or group of buildings in relation to which it serves to provide light and air, or scenic, recreational, or similar purposes.

Open Space, Permeable. A kind of Green Area Open Space in which the surface material must be permeable but which surface material is not limited or restricted as to type.

Open Space, Public. An area owned or controlled by the City of Cambridge or other public entity that is intended for public use and is designed for either environmental, scenic, or recreation purposes.

Open Space, Publicly Beneficial. A portion of a structure, a lot or other area of land associated with and adjacent to a building or group of buildings in relation to which it serves to provide light and air, or scenic, recreation, pedestrian amenity or similar purposes.

Open Space, Private. The part or parts of a lot or structure which are reserved for the use of occupants of a building which is used wholly, or in part, for residential purposes. This space shall have minimum dimensions as prescribed in the Ordinance, shall exclude parking areas, driveways, and walkways, and shall be open and unobstructed to the sky.

Outdoor Auto Sales Facility. A type of Outdoor Retail or Consumer Service Establishment in which new and used cars, trailers, motorcycles, or similar automotive vehicles are displayed for sale or rental partly or wholly on an open-air lot, provided that no major repairs are made on the premises.

Outdoor Entertainment and Recreation Facility. A type of Outdoor Retail or Consumer Service Establishment, not including a public park or public recreation facility, whose principal use is to provide entertainment and/or recreational activities taking place partly or wholly outdoors to patrons who are charged a use, entrance, or membership fee or required to make other purchases to participate and which does not require the use of an automobile, including but not limited to neighborhood skating rinks, climbing areas, lawn or court games, playgrounds, sports fields, or similar facilities.

Outdoor Retail or Consumer Service Establishment. An establishment otherwise meeting the definition of a Retail or Consumer Service Establishment but for which sales and/or services are customarily conducted partly or wholly outdoors.

Owner. Every person who alone or jointly or severally with others (a) has legal title to any land, building or structure; or (b) has care, charge, or control of any land, building, or structure in any capacity including but not limited to agent, executor, executrix, administrator, administratrix, trustee or guardian of the estate of the holder or legal title; or (c) lessee under a written letting agreement; or (d) mortgagee in possession; or (e) agent, trustee or other person appointed by the courts.

Parking facility. A portion of a building or a lot which is located off-street and contains one or more motor vehicle parking spaces and access thereto including driveways. A parking facility may be a

garage, an area of a lot or a parking lot. A parking facility may be an accessory use or a principal use or any combination thereof. For the purposes of this definition a parking facility shall include parking required by Section 6.30 and any other off-street parking provided.

Parking facility, accessory. A parking facility developed to serve the residents, occupants, employees, patrons or other users of a particular land use of building. An accessory parking facility shall be subordinate and customarily incidental to the principal use.

Parking Space. An area in a parking facility available to the storage of one motor vehicle with free and unimpeded access to a street over unobstructed passageways, aisles or driveways. However, the unimpeded access requirement may be waived only as provided in Subsection 6.43.2.

Peer-to-Peer Carsharing. An off-street parking space which is used for the storage of a privately-owned vehicle that is made available from time-to-time for use by other individuals in need of an automobile for personal use. Peer-to-Peer Carsharing is distinct from Carsharing and shall not be subject to the provisions of Section 6.24 of the Zoning Ordinance.

Performing Arts Studio. A room or group of rooms used by performing artists for the study, practice, or rehearsal of performing arts, including but not limited to music, dance, and theater, which may host occasional small performances by users of the space but which is not primarily intended to host performances for the general public.

Personal Services Establishment. A type of Retail or Consumer Service Establishment whose principal use is to provide non-professional services directly to the consumer, including but not limited to hair, skin and nail care, tailoring, repair of shoes and other household items, electronics repair, bicycle repair, self-service or drop-off laundry (including off-site dry cleaning), printing, copying, and photographic services, mailing and shipping services, or similar services, but not including the servicing of automobiles or other activities involving the use of hazardous materials on the premises.

Planned Unit Development. A land development project comprehensively planned by the developer with a single site plan for a parcel of a size eligible for PUD designation. A PUD is designed to permit flexibility in building siting, mixtures of housing types and land uses, private open spaces, and the preservation of significant natural features.

Planting Area. A landscaped area of land capable of supporting the growth of trees, grass, ground cover, shrubs, and similar vegetation.

Principal front wall plane. That face, side or elevation of a building most closely oriented towards the street, excluding porches, window bays and similar appendages. If there is more than one such front wall plane, the principal front wall plane shall be the one with the greatest front surface area. Buildings on corner lots may be considered to have more than one principal front wall plane.

Public Bicycle-Sharing Service. A system operated under the auspices of a program administered and/or approved by the City of Cambridge whose function is to provide the general public with opportunities to rent bicycles on a short-term basis for use within the city or region.

Public Bicycle-Sharing Station. A bicycle sharing facility placed of constructed by a Public Bicycle-Sharing Service o public or private property where bicycles are stored and from which members of the public may rent bicycles as part of a Public Bicycle-Sharing Service including objects or equipment necessary for or appurtenant to its operation.

Publicly-accessible, Privately-owned Electric Vehicle Charging. An electric vehicle charging system and its attendant off-street parking space that is made available from time-to-time for use by other individuals in need of an electric vehicle charging system for personal use.

Quick-Service Food Establishment. A type of Retail or Consumer Service Establishment whose principal use is the service of food or beverages available upon a short waiting time and packaged and presented in such a manner that it can be readily eaten on or off the premises, but does not meet the definition of a Food Stand or Kiosk.

Religious purposes. Places of worship and other religious institutions or purposes exempted from prohibition, regulation or restriction as provided in Section 3, Chapter 40A, G.L.

Residence. A building, or portion thereof, used as a place of habitation and home address for one or more residential households who intend to remain there for some indefinite time period, generally more than 30 consecutive days.

Residential Household or ***Family.*** One person or a group of two or more persons occupying a single dwelling unit or rooming unit within a residence and living together as a single housekeeping unit, including but not limited to occupants who are handicapped persons as defined in Title VIII of the Civil Rights Act of 1968, as amended by the "Fair Housing Amendments Act of 1988," but not including persons who occupy separate rooming units within a lodging house.

Restaurant. A type of Retail or Consumer Service Establishment whose principal use is to serve prepared food and beverages (including alcoholic beverages served with meals, if properly licensed) to be consumed on the premises using non-disposable dishware, glassware, and utensils, and providing table seating for patrons.

Retail or Consumer Service Establishment. An establishment whose principal use is the commercial provision of goods, personal services, prepared food and beverage, entertainment, recreational activities, or similar services (but excluding professional or financial services) directly to consumers. Such provision of goods and consumer services shall be conducted on-site, but may be supplemented by telephone and online transactions and delivery services.

Rooming Unit. A room or group of rooms used for sleeping and living in a lodging house that are rented to be used as a residence for a single residential household.

Rooster. A domestic male chicken.

Shade Canopy. An unenclosed structure that is freestanding or attached to a building, such as a pergola, arbor, porch cover, or awning, which is intended to protect outdoor areas from solar heat gain, and whose upper surface (which may be porous or nonporous) has a minimum Solar Reflectance Index (SRI) of 0.82 except in the case of a Solar Canopy.

Shaded Area. An outdoor area of a building or lot that is directly beneath a Shade Canopy as defined in this Zoning Ordinance, and that is horizontally open to the air on at least fifty percent (50%) of its perimeter.

Signs. Signs shall mean and include any permanent or temporary structure, device, letter, words, model, banner, pennant, insignia, trade flag, or representation used as, or which is in nature of, advertisement, announcement, or direction and which is designed to be seen from the outside of a building.

Sign frontage. The length of a building, or the length of a separate and distinct ground floor establishment, abutting a street. The length of the building or ground floor establishment shall be that as defined in Section 5.24.4 of this Ordinance.

Signs, illumination of.

1. Natural - natural or ambient light.
2. External - artificial illumination from a light source which provides light directly onto the sign face, or portions of the sign face, or its background, which light is then reflected back to the viewer.
3. Internal - artificial illumination from a light source located behind the sign face and which transmits light through the sign face or portions of the sign face to the viewer. Exposed neon tubing and similar lighting shall be considered internal illumination.
4. Indirect - placement of the artificial light device such that the source of light cannot be seen from a public way.

Signs, types of.

1. *Free-standing Sign* - A sign that is attached to or part of a completely self supporting structure and which is not attached to any building or other structure.
2. *Projecting Sign* - Any sign, other than a wall sign or free standing sign, that is attached to and projects from a building face. A projecting sign shall include marquee, canopy, and awning-mounted signs.
3. *Reserved.*
4. *Wall Sign* - Any sign affixed in such a way that its exposed face and all sign area is parallel or approximately parallel to the plane of the building to which it attached. A wall sign shall be considered a projecting sign if the sign face projects more than twelve (12) inches from the face of the building. Wall signs shall include signs located on or behind the surface of windows; such a sign may not in total area exceed thirty (30) percent of glass area of any window to which it is appurtenant.

Signs, related definitions.

1. Ground floor establishment - A separate and distinct use, business, enterprise, or institution having a separate public entrance to the outside of a building, which entrance is at grade or within six feet of grade as measured at the street line.

2. Premises - That part of a lot, building, or structure occupied by a business, enterprise, institution, or other person and which is distinct and separate from the place occupied by any other business, enterprise, institution or other person.

Social Service Center. A facility where counseling, limited short-term custodial care or similar special services are provided to persons on a walk-in or appointment basis under the aegis of a nonprofit agency.

Solar Canopy. A Shade Canopy that is covered in whole or in part by a Solar Energy System; the portion covered by a Solar Energy System shall not have a minimum Solar Reflectance Index (SRI).

SRI or ***Solar Reflectance Index.*** The measure of a constructed surface's ability to stay cool in the sun by reflecting solar radiation and emitting thermal radiation, as defined by ASTM International. It is expressed as a unitless value ranging from 0 to 100, with 0 representing the lowest possible solar reflectance and 100 representing the highest possible solar reflectance.

Story. That portion of a building included between the upper surface of a floor and the upper surface of the floor or roof next above.

Story Above Grade. A Story whose highest point is more than 4 feet above the Grade.

Story Below Grade. Any Story that is lower than the Ground Story of a building.

Street. The right of way, including sidewalks, of a public way, or a private way open to public use, used or intended for use by automobile traffic, including highways, parkways, alleys, courts and squares used or intended for this purpose, to which owners of abutting land have a right of access.

Street line. The line separating a street from a lot.

Structure. A combination of materials assembled at a fixed location to give support or shelter, such as a building, bridge, trestle, tower, framework, retaining wall, tank, tunnel, tent, stadium, reviewing stand, platform, bin, fence, sign, flagpole or the like.

Subdivided lot. A lot that has been created through the subdivision of a parcel of land on which a townhouse development is constructed. Said lot is created for the purpose of selling an individual semi-detached dwelling together with the land upon which it is constructed.

Temporary Outdoor Retail or Consumer Service Use. The use of an open-air lot containing another principal or accessory use (including, but not limited to, a parking lot), for the purpose of any retail and/or consumer service activities such as sales, food service, entertainment, and/or recreation, provided that:

(a) such activities are in full compliance with federal, state and local laws, codes, and regulations, including applicable licensing and/or permitting requirements;

(b) such activities take place during limited hours on a total of no more than 120 consecutive or non-consecutive days within a calendar year;

(c) any temporary structures, such as tents, booths, tables, stages, or other equipment, are secured or removed during periods when not in use.

Theater. A type of Retail or Consumer Service Establishment whose principal use is to host live or recorded performances, lectures, or exhibitions for seated audiences, including but not limited to cinemas, performance halls, and other halls for public gatherings.

Tourist House (including ***"Bed and Breakfast"***). A transient accommodation containing guest units that are owned or operated by a residential household residing on the premises, and which may or may not offer breakfast to guests.

Transient Accommodation. A building, or portion thereof, used as sleeping and/or living space for stays of a limited duration, generally not more than 30 consecutive days, by one or more persons who are not owners or tenants and whose home address is elsewhere.

Townhouse Development. The development (through conversion, addition to existing buildings, or new construction) of two or more semi-detached dwellings in one or more structures, with at least two semi-detached dwellings in each structure, on a single parcel of land.

Tree. A woody perennial plant, typically having a single thick stem or trunk, that grows to a considerable height and has lateral branches at some distance from the ground, planted and maintained in accordance with guidelines promulgated by the Department of Public Works.

Tree, Canopy. A large, tall tree that has a well-defined trunk and a distinct and definite formed crown. Canopy trees are intended to provide shade and typically reach a canopy spread of twenty-five (25) feet or larger at maturity.

Tree, Understory. A type of tree that is small enough and sufficiently shade tolerant to thrive under the canopies of taller trees. Understory trees form a vegetative layer between low-lying ground cover and tall canopy trees. Understory trees typically reach a canopy spread of eight (8) to fifteen (15) feet at maturity.

Use, principal. The principal purpose for which a lot or the main building thereon is designed, arranged, or intended, and for which it is or may be used, occupied or maintained.

Yard. An open unoccupied space on the same lot with a building, open and unobstructed from the ground to the sky.

Yard, front. The yard extending across the full width of the lot and lying between the front street line, or the building line where such may have been established on the lot, and the nearest part of a building.

Yard, rear. The yard extending across the full width of the lot and lying between the rear line of the lot and the nearest part of a building.

Yard, side. The yard between the side line of the lot and the nearest part of a building and extending from the front yard to the rear yard, or in the absence of either of such yards, to the front or rear lot line, as may be.

(Ord. No. 1404, 12-17-2018; Ord. No. 1412, 12-9-2019; Ord. No. 2020-8, 10-5-2020; Ord. No. 2020-25, 5-3-2021; Ord. No. 2021-3, pt. 1A—1D, § v, 6-7-2021; Ord. No. 2021-8, 6-28-2021; Ord.

No. 2022-14, 10-17-2022; Ord. No. 2022-9, 2-27-2023; Ord. No. 2023-2, 6-12-2023; Ord. No. 2023-7, 10-16-2023; Ord. No. 2023-9, 11-20-2023; Ord. No. 2024-2, 6-24-2024; Ord. No. 2024-5, 12-23-2024; Ord. No. 2024-9, 12-16-2024; Ord. No. 2025-1, 2-10-2025)

ARTICLE 3.000 ZONING DISTRICTS

3.10 DIVISION OF THE CITY INTO ZONING DISTRICTS
3.20 ZONING MAP
3.30 RULES FOR INTERPRETATION OF DISTRICT BOUNDARIES

3.10 DIVISION OF THE CITY INTO ZONING DISTRICTS

3.11 For the purpose of this Ordinance, the City of Cambridge is hereby divided into fifty classes of districts listed below in order of decreasing restrictiveness as follows:

1.	Open Space District	Public parks and recreation facilities and other public facilities
2.	Residence C-1 District	Multifamily dwellings
3.	Residence C-1A District	Multifamily dwellings
4.	Residence C-2 District	Multifamily dwellings
5.	Residence C-2B District	Multifamily dwellings
6.	Residence C-2A District	Multifamily dwellings
7.	Residence C-3A District	Multifamily dwellings and limited office
8.	Residence C-3 District	Multifamily dwellings
9.	Residence C-3B District	Multifamily dwellings
10.	Office 1 District	Business and professional office and multifamily dwellings (Apartment house, hotel, dormitory)
11.	Office 2A District	Business, research and professional offices, limited research oriented manufacturing
12.	Office 2 District	Business, research and professional offices, limited research oriented manufacturing
13.	Office 3A District	Business and professional offices and multifamily dwellings
14.	Office 3 District	Business and professional offices and multifamily dwellings
15.	Business A-3 District	Neighborhood business
16.	Business A-1 District	Local business
17.	Business A-2 District	Local business
18.	Business A District	Local and drive in retail business offices and multifamily dwellings
19.	Business A-4 District	Local business
20.	Business A-5 District	Local business and multifamily dwellings
21.	Business C District	General business, professional offices, multifamily dwellings.

22.	Business B-1 District	General business, business and professional offices, and multifamily dwellings
23.	Business B-2 District	General business, business and professional offices and multifamily dwellings
24.	Business B District	General business
25.	Industry B-2 District	Office, warehouse and light manufacturing
26.	Industry A-1 District	Limited impact business and industry
27.	Industry B-1 District	Heavy manufacturing, warehouses, and offices
28.	Industry A-2 District	Limited impact business and industry
29.	Industry A District	Warehouse, storage and light manufacturing
30.	Special Business, Office and Industrial District 1	Various Uses governed by the requirements of Article 17.000
31.	Special Business, Office and Industrial District 2	Various Uses governed by the requirements of Article 17.000
32.	Special Business, Office and Industrial District 3	Various Uses governed by the requirements of Article 17.000
33.	Special Business, Office and Industrial District 4 and 4A	Various Uses governed by the requirements of Article 17.000
34.	Special Business, Office and Industrial District 5	Various Uses governed by the requirements of Article 17.000
35.	Special Business, Office and Industrial District 6	Various Uses governed by the requirements of Article 17.000
36.	Special Business, Office and Industrial District 7	Various Uses governed by the requirements of Article 17.000
37.	Special Business, Office and Industrial District 8	Various Uses governed by the requirements of Article 17.000
38.	Special Business, Office and Industrial District 8A	Various Uses governed by the requirements of Article 17.000
39.	Special Business, Office and Industrial District 9	Various Uses governed by the requirements of Article 17.000
40.	Special Business, Office and Industrial District 10(F)	Various Uses governed by the requirements of Article 17.000
41.	Special Business, Office and Industrial District 10(H)	Various Uses governed by the requirements of Article 17.000
42.	Special Business, Office and Industrial District 11	Various Uses governed by the requirements of Article 17.000

43.	Special Business, Office and Industrial District 12	Various Uses governed by the requirements of Article 17.000
44.	Special Business, Office and Industrial District 13	Various Uses governed by the requirements of Article 17.000
45.	Special Business, Office and Industrial District 14	Various Uses governed by the requirements of Article 17.000
46.	Special Business, Office and Industrial District 15	Various Uses governed by the requirements of Article 17.000
47.	Mixed Use Development (MXD) District: Kendall Center	Various uses governed by the requirements of Article 14.000
48.	Cambridgeport Revitalization Development District	Various uses governed by the requirements of Article 15.000
49.	North Point Residence, Office and Business District	Various uses governed by the requirements of Article 16.000
50.	Industry B District	Heavy Industry

3.12 In addition to the districts established under Subsection 3.11, overlay districts may be established from time to time. As specified elsewhere in this Ordinance, each overlay district shall have special regulations which shall be applicable in lieu of or in addition to the regularly applicable regulations for the base zoning district.

(Ord. No. 2021-3, § i, 6-7-2021; Ord. No. 2022-21, § 1, 4-3-2023; Ord. No. 2025-1, 2-10-2025)

3.20 ZONING MAP

3.21 The boundaries of each of the said districts are hereby established as shown on the map entitled, Zoning Map of the City of Cambridge, or as hereafter amended, which map is attached to and made a part of this Ordinance. The said Zoning Map and all boundaries, notations, and other data shown thereon are made by this reference as much a part of this Ordinance as if fully described and detailed herein. The said map shall be filed in the custody of the City Clerk of Cambridge and may be examined by the public subject to any reasonable regulations established by the City Clerk.

3.30 RULES FOR INTERPRETATION OF DISTRICT BOUNDARIES

3.31 The boundaries between districts are shown on the Zoning Map. Where uncertainty exists with respect to the boundaries of the various districts as shown on the map accompanying and made a part of this Ordinance, the following rules shall apply:

a. Where the district boundary is a street, the boundary line shall be the centerline of the street.

b. Where the boundary line is indicated approximately parallel to the street, it shall be taken as parallel thereto and, unless otherwise indicated, one hundred feet distant from the nearest street line. If there is any variance between the scaled distance from the boundaries to the street line and the distance as marked in feet upon the map, the latter shall govern.

c. Where the districts designated on the map are bounded by lot lines, the lot lines shall be construed to be the boundary lines, unless the boundary lines are otherwise indicated on the map.

3.32 Where a zoning district boundary line divides a lot under single ownership at the time of the effective date of this Ordinance, (6/29/81) the regulations for each zoning district shall apply to portions of the lot within the respective districts except as provided in this Subsection 3.32.

3.32.1 Where more than one-half the area of said lot is in a less restricted district (either in terms of the district's overall regulations or a single regulation), any of the less restrictive dimensional regulation(s) may be extended up to twenty-five (25) feet into the more restricted district as-of-right for buildings or portions of buildings containing residential uses listed in Section 4.31 a-j or upon issuance of a special permit by the Board of Zoning Appeal for buildings or portions of buildings containing other uses. Uses not allowed in the more restricted districts shall not extend into the more restricted districts.

3.32.2 Gross floor area allowed in the more restricted district, according to the formulas specified in Subsection 5.25.5, may be located in the less restricted district, but gross floor area allowed in the less restricted district may be located in that portion of the lot located in the more restricted district only to the extent permitted in Section 3.32.1.

(Ord. No. 2025-1, 2-10-2025)

ARTICLE 4.000 USE REGULATIONS

4.10 GENERAL CLASSIFICATION RULES
4.20 SPECIAL CLASSIFICATION RULES
4.30 TABLE OF USE REGULATIONS
4.40 FOOTNOTES TO THE TABLE OF USE REGULATIONS
4.50 INSTITUTIONAL USE REGULATIONS
4.60 SHORT-TERM RENTALS

4.10 GENERAL CLASSIFICATION RULES

4.11 In each district, except the Cambridge Center Mixed Use Development (MXD) District, the use of land, buildings, and structures shall be regulated as set forth in Section 4.30 of this Article, Table of Use Regulations, and as provided elsewhere in this Ordinance. Uses in the Cambridge Center MXD District shall be governed by Section 14.20.

4.12 A use listed in Section 4.30 is permitted as of right in any district under which it is denoted by the word **"YES"**. Uses designated in the Table by the letters **"SP"** may be allowed only if a special permit is issued by the Board of Zoning Appeal. Uses designated in the Table by the letters **"PB"** may be allowed only if issued a special permit by the Planning Board. Special permits shall be issued in accordance with the provisions of Section 10.40 and may be subject to such restrictions as the special permit granting authority may establish. Uses designated in the Table by the **"PUD"** may be allowed only if the use is part of a Planned Unit Development approved by the Planning Board in accordance with the applicable requirements of Articles 12.000 and 13.000. Uses denoted by the word **"NO"** in Section 4.30 shall be prohibited. Uses in certain districts designated in the Table by the letters "IUR" shall be governed by the applicable provisions of Section 4.50, Institutional Use Regulations.

4.13 No building, structure, or land in any district may be used, erected or designed to be used, in whole or in part, for any use not listed in Section 4.30, except nonconforming uses which may be continued under the provisions of 8.20.

4.20 SPECIAL CLASSIFICATION RULES

4.21 *Accessory Uses*.

a. An accessory use shall be permitted only on the same lot as the building or use to which it is accessory, with the following exceptions:

(1) Off street parking facilities complying with the requirements of Section 6.50 may be located on a separate lot;

(2) The Board of Zoning Appeal may grant a Special Permit for a use accessory to a scientific research, scientific development, or related production activity, whether or not on the same lot as such activity. A Special Permit shall be granted where said Board finds that the proposed accessory use does not substantially derogate from the public good.

(3) A use accessory to other permitted uses within the Cambridge Center MXD District may be located on other lots in the MXD District.

b. Providing nontransient lodging within a residential structure shall be considered an accessory use only if there is compliance with each of the following conditions:

(1) The residential structure is a single-family, semi-detached or two family dwelling;

(2) The owner of the building resides on the premises;

(3) Lodging is provided to not more than two roomers or boarders;

(4) Separate cooking facilities are not maintained for the roomers or boarders;

(5) No sign or nameplate for said roomers or boarders is displayed; and

(6) Signs advertising the availability of such lodging is not regularly displayed on the premises.

c. Provisions of garage or parking space for occupants, employees, customers, or visitors shall be considered as an accessory use.

d. The following Home Occupations and other Home Occupations, provided that they are accessory and incidental to the principal residential use, shall be considered accessory uses, provided also that only residential occupants of the dwelling unit are practicing or employed on the premises at any one time unless otherwise specified below, that all activities take place entirely within a building, and that no offensive noise, vibration, smoke, dust or other particulate matter, heat, humidity, glare, or other objectionable effects are produced:

(1) The office of a resident physician, dentist, attorney-at-law, architect, landscape architect, engineer, or member of another profession, in which case up to three persons may practice or be employed on the premises at any one time including persons who are not residential occupants but are employed to assist a primary practitioner residing on the premises;

(2) The salon of a properly licensed massage therapist;

(3) The studio of an artist, performing artist, craftsperson, graphic designer, photographer, or similar creative professional;

(4) A Retail Residential Kitchen permitted to produce Cottage Food Products, as regulated by 105 CMR 590.001(C), as it may be amended; and

(5) At a residence in a residential district, the care of a household pet that does not permanently reside at that residence, provided that only one such animal per day is kept on the premises.

e. In multifamily dwellings containing twenty-five or more dwelling units, hospitals or hotels with more than fifty sleeping rooms, a newsstand or other retail shop, a barber shop or similar service establishment, a dining room or other eating establishment shall be considered as an accessory use provided that (1) the establishment is primarily intended for occupants of the building, hotel or hospital; (2) the establishment is conducted entirely within and only entered from the interior of the dwelling, hospital or hotel; and (3) no signs or other advertising is visible from outside the building.

f. In an office building containing at least one hundred thousand (100,000) square feet of gross floor area, a newsstand, candy/tobacco stand, barbershop or other similar service establishment primarily intended for occupants of the building shall be a permitted accessory use provided that such activities are conducted and entered only from within the building and no signs or advertising devices thereof are visible from outside the building.

g. The area occupied by accessory uses shall be subject to the following limitations:

(1) The total area of uses accessory to the principal use may not occupy more than twenty-five (25) percent of the gross floor area of the building in which the principal use is located or twenty-five (25) percent of the area of the dwelling unit when the accessory use is located in a residence.

(2) The total area of uses or buildings accessory to the principal use except for parking facilities and driveways may not occupy more than fifteen (15) percent of the area of the lot.

(3) The area limitations of this paragraph 4.21 g shall be applicable in all zoning districts except the Cambridge Center MXD District; however, if explicitly stated elsewhere in this Ordinance certain accessory uses in specified districts may exceed the foregoing area limitation.

h. In Residence C-1 Districts an accessory building shall not be located nearer to any lot line than the minimum setback in the zoning district.

i. In a Residence District an accessory use shall not involve the maintenance of a stock in trade or the use of signs, illumination, show windows or displays either exterior or interior, except such signs as are permitted by Article 7.000.

j. A dwelling or mobile home shall not be considered an accessory building except in an Industrial District for the accommodation of a night watchman or janitor or if it otherwise meets the definition of an Accessory Apartment.

k. An accessory building in Residence C-1, and Office-1 districts shall not exceed fifteen (15) feet in height above the ground level.

l. No accessory building may be converted to a residential use unless it conforms with the district dimensional regulations specified in Section 5.30.

m. Limited manufacturing activity shall be considered an allowed accessory use to a technical research and development office, laboratory or research facility in a nonindustrial district provided that the following requirements are satisfied:

(1) Such manufacturing activity is related to research and development activities of the principal use.

(2) No manufacturing activity customarily occurs within fifty (50) feet of a residence or residential district.

(3) All manufacturing activity customarily occurs inside of buildings; however, outside research work and incidental outside fabrication of equipment to conduct outside experimentation shall be permitted.

(4) Outside research in nonindustrial districts should not customarily involve noxious activity which creates disturbances off of the premises.

(5) Manufacturing activity, excluding incidental fabrication of outside experiments, shall not occupy an area in excess of sixty (60) percent of the gross floor area of a building or group of associated buildings owned by the same establishment.

n. A helipad or airport shall not be considered as an accessory use.

o. Beekeeping, conducted in conformance with the Standards for Urban Agriculture set forth in Article 23.000 of this Zoning Ordinance and all other applicable laws, rules and regulations, shall be considered an allowed accessory use when conducted on the lot or and in conjunction with one of the following principal uses: residential (all uses listed in Section 4.31), transient accommodations (all uses listed in Section 4.31.1), institutional (all uses listed in Section 4.33), office and laboratory (all uses listed in Section 4.34), Convenience Store (Section 4.35.a-1), Merchandise Store (Section 4.35 a-2), Grocery Store (4.35 a-3), Craft Retail and Production Shop (Section 4.35 b), and light industry (all uses listed in Section 4.37).

p. Henkeeping, conducted in conformance with the Standards for Urban Agriculture set forth in Article 23.000 of this Zoning Ordinance and all other applicable laws, rules, and regulations, shall be considered an allowed accessory use when conducted on the lot of and in conjunction with one of the following principal uses: residential (Section 4.31 a.-h., excluding transient accommodations), any religious use (Section 4.33 a.), and any educational use (Section 4.33 b.).

4.22 Accessory Apartments shall be permitted in all zoning districts where Residences are permitted.

4.23 *Offices in Residences*. In a Residence C-2A, C-3, or C-3B district, offices for physicians and dentists may be located on the first or second floor of a residential building where such office space does not exceed ten (10) percent of the gross floor area of the building. In a Residence C-3A district, up to forty (40) percent of the gross floor area of a residential building may be devoted to business and professional offices, but not technical offices.

4.24 *Temporary Buildings and Uses*. The Superintendent of Buildings may grant a permit for a temporary building or use incidental to a building development, which does not comply with the provisions of this Ordinance, where reasonably required for such development. Such permit may be issued for an initial period of not more than one year, and in the case of a building, only upon application accompanied by a bond and bill of sale to the City, effective in case the building is not removed prior to the expiration of the permit. Permits may be renewed by the Superintendent of Buildings for successive periods of not more than one year each, not to exceed a total of three years.

4.25 *Non Open Space Uses in Open Space Districts*. The purpose of this section is to provide for public notification and review of governmental and institutional nonopen space development statutorily exempt from prohibition in designated Open Space Districts. All uses in an Open Space District other than a park or recreation use permitted by Subsection 4.33.f shall comply with the procedural requirements of this Subsection prior to the issuance of any building or special permit, variance or other approval or before conveyance of any lot within the district.

4.25.1 A report shall be submitted to the Planning Board and filed with the City Clerk by the agency or other party proposing such non open space development or proposing to convey a lot. This report shall include the following information, as appropriate:

(1) A map indicating the location and area of the land proposed for nonopen space development or for conveyance.

(2) A description of the proposed development and future use of the area including information concerning the proposed site plan, physical design, and user population.

(3) An analysis of alternative sites for the development outside of the district.

(4) Evaluation of the anticipated impacts of the development or property transfer on the remainder of the open space district, upon the ability of alternative park and recreation areas in the neighborhood and city to meet the needs served by the affected open space district which would be displaced by the proposed action, and upon other land uses in the neighborhood.

(5) Any other information reasonably determined pertinent by the Planning Board.

4.25.2 Within thirty (30) days of the receipt of a report required by Section 4.25.1, the Planning Board shall hold a public hearing concerning the proposed development or conveyance. Notice for the hearing shall comply with the requirements of Section 11, Chapter 40A, G.L.

4.25.3 The Planning Board shall prepare a report with recommendations concerning the proposed development or conveyance, including conditions that should be attached to such action. This report shall be filed with the City Clerk within thirty (30) days of the public hearing required in Section 4.25.2. Filing of such a report shall satisfy the requirements of this Section 4.25. Failure of the Board to file a report within thirty (30) days of the public hearing shall obviate any further actions under this Section 4.25.

4.26 [Deleted]

4.27 *Special Use Limitations in the Business B-1 and B-2 Districts*.

4.27.1 In the Business B-1 and B-2 districts, the uses specified in Subsection 4.35 shall be permitted provided that they occupy no more than twenty-five (25) percent of the maximum gross floor area allowed on the lot. However, the gross floor area of any single retail establishment shall not exceed twelve thousand (12,000) square feet.

4.27.2 In the Business B-1 district, the portion of any parcel within forty-five (45) feet of a front lot line facing Green Street shall be limited to the following uses: (1) residential uses permitted

by Subsections 4.31 a, b, d, and g; (2) parking which is both covered and enclosed and which is accessory to dwelling units located within said aforementioned portion of the parcel; and (3) landscaped green space subject to the requirements of Subsection 4.27.3; however, where more than fifty (50) percent of the area of said portion of a lot is devoted to landscaped green space a special permit shall be secured from the Planning Board. Development plans for parcels which face Green Street shall show how such portion will be used in compliance with this Subsection 4.27.2. Completion of plans for said forty-five (45) foot portion shall be required prior to the issuance of a Certificate of Occupancy for development on other portions of the parcel. It is the intention of this Subsection 4.27.2 that the pattern of property ownership rights existing at the time of adoption of these regulations not be altered in a way to circumvent the creation of a residential or green space buffer next to Green Street. Therefore, for the purposes of this Subsection 4.27.2, a parcel shall consist of one or more lots as defined in Article 2.000 or parts of such lots which, at the time of the effective date of this Subsection 4.27.2 were either in the same ownership or which had some legal relationship to one another through purchase and sales agreements, purchase options, lease agreement, or options, or through some similar agreement or instrument.

4.27.3 Landscaped green space within the forty-five (45) foot portion of a lot described in Subsection 4.27.2 shall be open to the sky and shall be located at an elevation within five (5) feet of the grade level at the Green Street lot line. Such space shall include a minimum of one three inch caliper tree for each nine hundred (900) square feet of area within such landscaped portion. A suggested list of trees is contained in Section 11.16.4, under 4b. In addition to the criteria listed in Subsection 10.40, the Planning Board shall evaluate special permit applications with respect to the following: continuity with other open spaces, relationship to other lots, and/or creative design features.

4.27.4 The Business B-1 and Business B-2 districts shall be considered areas of special planning concern. Development proposals listed in Subsection 11.42 shall be subject to the development consultation procedures specified in Article 19.000.

4.28 *Art*/*Craft Studio*. The purpose of this Section 4.28 is to ensure that art/craft studios located in Residence C and Office Districts will be compatible with other permitted uses, particularly in residential neighborhoods.

4.28.1 The Board of Zoning Appeal may grant a special permit for the location of an art/craft studio or group of studios in Residence C-1, C-2, C-2A, C-2B, C-3, C-3A, C-3B and Office Districts provided that the following requirements are satisfied;

a. Residence C-1, C-2, C-2A, C-2B, C-3, C-3A, C-3B Districts:

1. The studio shall be located in a principal use nonresidential building in existence as of May 1, 1984. Structures or buildings accessory to residential uses shall not be so used.

2. The required amount of parking in Article 6.000 may be reduced only if the Board determines that a lesser amount of parking will not cause excessive congestion, endanger public safety, substantially reduce parking availability for other uses or otherwise adversely impact the neighborhood.

b. Residence C-1, C-2A, C-2B, C-3, C-3A, C-3B and Office Districts:

1. The studio will be principally used as a studio for independent artists and crafts people in the creation of their own work. Mass production and assembly line techniques are prohibited.

2. The type of studio use shall be appropriate to the particular building and its location:

a. the building shall be structurally sound.

b. the proposed studio use will not generate traffic in volume or type in excess of that normally occurring in the adjacent neighborhood.

c. no bulk storage of toxic or highly flammable materials shall occur.

d. the proposed studio use shall satisfy all applicable building, fire safety, and health codes.

e. noise shall be restricted to levels customarily permitted in the districts as regulated in General Ordinance #887 "Regulations for the Control of Noise," or as customarily produced by other permitted uses in the district, whichever is less.

f. noxious odors, dust, and/or fumes shall be effectively disposed of and confined to the premises to avoid air pollution and nuisance to the adjacent neighborhood.

3. All activity must be carried out within the building, including the storage of materials.

4. No more than three (3) persons shall practice or be employed at one time per studio.

5. There shall be no retail sales except as may occur as an activity incidental to exhibition permitted in b(6) below:

6. Public exhibitions shall not be permitted except as specifically authorized in the special permit. The number and duration of any such exhibitions shall be specifically stated, shall be for arts/crafts created on the premises, and shall only be permitted upon finding that the residential or other prevailing neighborhood character will not be significantly, negatively affected.

4.28.2 In issuing a special permit under this Section 4.28 the Board of Zoning Appeal shall state the specific arts and crafts uses or range of uses being authorized for each studio granted a permit.

4.28.3 Nothing in this Section 4.28 shall prohibit the establishment of residential uses, permitted in the district, subsequent to the issuance of a special permit under this Section 4.28. The establishment of residential uses shall not alter the principal use nonresidential status of the building for the purpose of continuing or future authorizations for art/craft studios under provisions of this Section 4.28

4.29 *Conversion of Non Residential Structures to Residential Use*. Where it is proposed to convert an existing principal-use structure designed and built for non residential use to residential uses or to certain non-residential uses not otherwise allowed in the applicable zoning district as set forth in the following Section 4.30 - Table of Use Regulations, such uses may be allowed after issuance of a special permit by the Planning Board consistent with the provisions of Section 5.28.2.

4.210 Combined Retail or Consumer Service Uses.

(a) A permitted Retail or Consumer Service Establishment may combine the functions of two or more principal uses that are permitted in the district.

(b) The following principal uses, if not otherwise permitted in the district, shall be permitted as additional allowed principal uses if combined with another permitted principal non-residential use, subject to the limitations below:

(1) Sales. The display and sale of goods that are directly related to the operation of the other principal use at the property and are intended for sale to occupants, patrons, or visitors of the other principal use, including but not limited to supplies that are utilized in the operation of the other principal use or promotional materials for the other principal use.

(2) Programs and Services. On-site activities including but not limited to minor repairs, instructional classes, presentations, workshops, consultations, or similar programs and services provided to occupants, patrons, or visitors of the other principal use.

(3) Food and Beverage Service. The provision of meals, snacks, beverages, and other food products prepared on-site or off-site and intended for consumption on-site by occupants, patrons, or visitors of the other principal use.

(4) Entertainment and Recreation. The provision of activities including but not limited to live or recorded music, video entertainment, other live performances, group games or contests, or other entertainment or recreational activities for the enjoyment of occupants, patrons, or visitors of the other principal use.

Limitations:

(i) The additional use may occupy no more than 25% of the total Gross Floor Area of the other principal use, or must be limited in duration to no more than 25% of the total hours of operation of the other principal use on a weekly basis.

(ii) No additional parking or loading facilities shall be required or provided for the additional use (additional bicycle parking may be provided but shall not be required).

(iii) Signage requirements set forth in Article 7.000 of this Zoning Ordinance shall be calculated for the establishment as a whole rather than individually for each component use.

(iv) All uses shall conform to all applicable licensing requirements and all other laws, codes, and regulations.

(Ord. No. 1408, 5-6-2019; Ord. No. 2021-3, Pt. 2, § vi, 6-7-21; Ord. No. 2021-4, 6-7-2021; Ord. No. 2021-16, 9-27-2021; Ord. No. 2023-9, 11-20-2023; Ord. No. 2024-2, 6-24-2024; Ord. No. 2024-5, 12-23-2024)

4.30 TABLE OF USE REGULATIONS

		Open Space	*Res C-1, C-1A, 2, 2A, 2B, 3, 3A, 3B*	*Off 1, 2A, 2, 3, 3A*	*Bus A-1, A-2, A-3[1] A-5*	*Bus A, A-4*	*Bus B, B-1, B-2*	*Bus C*	*Ind A-1, A-2*	*Ind A*	*Ind B-1, B-2*	*Ind B*
4.31	**Residences**											
	a. Dwelling, single-family	No	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
	b. Dwelling, two-family	No	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
	c. [Deleted]											
	d. Townhouse development or semi-detached dwelling	No	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
	e. Elderly oriented congregate housing	No	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
	f. [Deleted]											
	g. Dwelling, multifamily	No	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
	h. [Deleted]											
	i. Lodging House	No	Yes[7]	Yes[6]	Yes	Yes	Yes	Yes	SP	PB	No	SP
	j. Trailer Park or mobile home park	No	No	No	SP	SP	No	No	No	No	No	No
4.31.1	**Transient accommodations**											
	a. Tourist house	No	Yes	Yes	No	SP	Yes	Yes	SP	PB	PB	PB
	b. Hotel or motel	No	SP[7]	Yes[6]	No	SP	Yes	Yes[53]	No	SP	No	SP
4.32	**Transportation, Communication & Utility Uses**											
	a. Bus or railroad passenger station	No	No	No	Yes	Yes	Yes	Yes	SP	Yes	Yes	Yes
	b. Automobile parking lot or parking garage for private passenger cars[18]	No[64, 65]	No[64, 65]	Yes	SP[64, 65]	SP[64, 65]	Yes	Yes	Yes	Yes	Yes	Yes
	c. Railroad freight terminal, railroad yard and shops	No	No	No	No	No	No	No	No	No	Yes	Yes
	d. Truck or bus terminal, yard or building for storage or servicing of trucks, trailers or buses, parking lot for trucks	No	No	No	No	No	No	No	No	SP	No	Yes
	e. Radio and Television transmission station, including towers	No	No	No	No	No	No	No	SP8	SP	No	SP
	f. Radio and television studio	No	No[9]	Yes	Yes	Yes	Yes[10]	Yes	Yes	Yes	Yes	Yes
	g. Utilities											
	1. Telephone exchange (including switching, relay and transmission facilities serving mobile communications systems) and any towers or antennas accessory thereto[49]	No	SP	SP	SP	SP	SP	SP	SP	SP	SP	SP
	2. Transformer station, substation, gas regulator station, or pumping station	No	SP	SP	SP	SP	SP	SP	SP	SP	SP	SP

		Open Space	*Res C-1, C-1A, 2, 2A, 2B, 3, 3A, 3B*	*Off 1, 2A, 2, 3, 3A*	*Bus A-1, A-2, A-3[1] A-5*	*Bus A, A-4*	*Bus B, B-1, B-2*	*Bus C*	*Ind A-1, A-2*	*Ind A*	*Ind B-1, B-2*	*Ind B*
	3. Power Plant for the non-nuclear production, generation, and distribution of electricity or steam	No	No	No	No	No	No	No	No	No	No	No
	h. Helipad or Airport	No	No	No	No	No	No	No	No	No	No	No
	j. Wind Turbine Installation PB[57]	PB[57]	PB[57]	PB[57]	PB[57]	PB[57]	PB[57]	PB[57]	PB[57]	PB[57]	PB[57]	
	k. Public Bicycle-Sharing Station	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
	l. Cannabis Courier Establishment	No	No	Yes[58]	Yes[58]	Yes[58]	Yes[58]	Yes[58]	Yes[58]	Yes[58]	Yes[58]	Yes[58]
	m. Peer-to-Peer Carsharing	No	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
	n. Publicly-accessible, Privately-owned Electric Vehicle Charging	No	Yes[63]	Yes[63]	Yes[63]	Yes[63]	Yes[63]	Yes[63]	Yes[63]	Yes[63]	Yes[63]	Yes[63]
4.33	**Institutional Uses**											
	a. Religious Purposes [19]											
	1. Place of worship	Yes[11]	Yes[43]	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
	2. Rectory, parsonage	Yes[11]	Yes[43]	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
	3. Convent, monastery	Yes[11]	Yes[43]	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
	4. Social or recreation center	Yes[11]	Yes[43]	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
	5. Other use with religious purposes	Yes[11]	Yes[43]	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
	b. Educational Purposes											
	1. Use of land or structures for educational purposes on land owned or leased by the Commonwealth or any of its agencies, subdivisions or bodies politic - by a religious sect or denomination or by a nonprofit educational corporation[44]	Yes[11]	Yes[43]	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
	2. Preschool, day care center, kindergarten, not exempt by statute	No	Yes[43]	Yes	Yes	Yes	Yes	Yes	SP	Yes	SP	Yes
	3. Primary school, not exempt by statute	No	No[43]	Yes	Yes	Yes	Yes	Yes	SP	Yes	SP	Yes
	4. Secondary school, not exempt by statute	No	No[43]	Yes	Yes	Yes	Yes	Yes	SP	Yes	SP	Yes
	5. College or university not exempt by statute[45]	No	No[43]	Yes	Yes	Yes	Yes	Yes	SP	Yes	SP	Yes
	6. Vocational or other schools not exempted by statute	No	No[43]	Yes	Yes	Yes	Yes	Yes	SP	Yes	SP	Yes
	7. Dormitory, resident fraternity or sorority	No	Yes[43]	Yes[46]	Yes	Yes	Yes	Yes	No	SP	No	SP
	c. Noncommercial Research Facility[20]	No	SP[43]	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
	d. Health Care Facilities											
	1. Hospital[21]	No	Yes[43]	Yes	Yes	Yes	Yes	Yes	Yes	Yes	No	Yes

		Open Space	*Res C-1, C-1A, 2, 2A, 2B, 3, 3A, 3B*	*Off 1, 2A, 2, 3, 3A*	*Bus A-1, A-2, A-3[1] A-5*	*Bus A, A-4*	*Bus B, B-1, B-2*	*Bus C*	*Ind A-1, A-2*	*Ind A*	*Ind B-1, B-2*	*Ind B*
	2. Infirmary	No	Yes[43]	Yes	Yes	Yes	Yes	Yes	Yes	Yes	SP	Yes
	3. Nursing or convalescent home	No	Yes[43]	Yes	Yes	Yes	Yes	Yes	Yes	Yes	No	Yes
	4. Clinic not affiliated with any other institution	No	No[43]	Yes	Yes	Yes	Yes	Yes	SP	Yes	No	Yes
	5. Clinic affiliated with a hospital or an accredited university medical school	No	Yes[43]	Yes	Yes	Yes	Yes	Yes	SP	Yes	No	Yes
	6. Clinic connected to a community center	No	Yes[43]	Yes	Yes	Yes	Yes	Yes	SP	Yes	No	Yes
	7. Other health care facility	No	No[43]	Yes	Yes	Yes	Yes	Yes	SP	Yes	No	Yes
	e. Social Service Facilities											
	1. Social service center	No	Yes[43]	Yes	Yes	Yes	Yes	Yes	Yes	Yes	No	Yes
	2. Community Center	No	Yes[43]	Yes	Yes	Yes	Yes	Yes	Yes	Yes	No	Yes
	f. Local Government[47]											
	1. Administrative Office	No	No[43]	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
	2. Fire or police station[55]	Yes[11]	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
	3. Museum	SP[11]	Yes[43]	Yes	Yes	Yes	Yes	Yes	Yes	Yes	No	Yes
	4. Municipal service facility	SP[11]	No[43]	SP	No	SP	SP	SP	SP	Yes	Yes	Yes
	5. Public park, playground or public recreation building	Yes	Yes[43]	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
	6. Municipal Library	Yes[54]	Yes[54]	Yes[54]	Yes[54]	Yes[54]	Yes[54]	Yes[54]	Yes[54]	Yes[54]	Yes[54]	Yes[54]
	g. Other Governmental Facility	Yes	Yes[43]	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
	h. Other Institutional Uses											
	1. Club, lodge or other fraternal or sororal meeting facility	No[11]	Yes[43]	Yes	Yes	Yes	Yes	Yes	Yes	Yes	No	Yes
	2. Private library, museum or noncommercial gallery[48]	SP11	Yes[43]	Yes	Yes	Yes	Yes	Yes	Yes	Yes	No	Yes
	3. Cemetery	Yes[11]	Yes[43]	Yes	Yes	Yes	Yes	Yes	Yes	Yes	No	Yes
	4. Institutional use not listed in any other category	No	No[43]	SP	SP	SP	SP	SP	SP	SP	SP	SP
4.34	**Office and Laboratory Use**											
	a. Office of a physician, dentist or other medical practitioner not located in a clinic listed under Subsection 4.33(d)	No	No[9]	Yes	Yes	Yes	Yes[10]	Yes	Yes	Yes	Yes	Yes
	b. Office of an accountant, attorney, or other non-medical professional person (includes properly licensed massage therapists)	No	No[9]	Yes	Yes	Yes	Yes[10]	Yes	Yes	Yes	Yes	Yes
	c. Real Estate, insurance or other agency office	No	No[9]	Yes	Yes	Yes	Yes[10]	Yes	Yes	Yes	Yes	Yes
	d. General office use	No	No[9]	Yes	Yes	Yes	Yes[10]	Yes	Yes	Yes	Yes	Yes

		Open Space	*Res C-1, C-1A, 2, 2A, 2B, 3, 3A, 3B*	*Off 1, 2A, 2, 3, 3A*	*Bus A-1, A-2, A-3[1] A-5*	*Bus A, A-4*	*Bus B, B-1, B-2*	*Bus C*	*Ind A-1, A-2*	*Ind A*	*Ind B-1, B-2*	*Ind B*
	e. Bank, trust company or similar financial institution	No	No[9]	Yes	Yes	Yes	Yes[10]	Yes	Yes	Yes	SP	Yes
	f. Technical office for research and development, laboratory & research facility subject to the restrictions in Section 4.21m	No	No[9]	Yes	Yes	Yes	Yes[10]	Yes	Yes	Yes	Yes	Yes
4.35	**Retail or Consumer Service Establishments**											
	Retail or Consumer Service Establishment, not otherwise defined	No	No	No	SP	SP	SP	SP	SP	SP	SP	SP
	a-1. Convenience Store	No	SP[59]	Yes[12]	Yes	Yes	Yes [10]	Yes	Yes	Yes	Yes[51]	Yes
	a-2. Merchandise Store	No	No	Yes[12]	Yes	Yes	Yes [10]	Yes	Yes	Yes	Yes[51]	Yes
	a-3. Grocery Store	No	SP[59]	Yes[12]	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
	b. Craft Retail and Production Shop	No	No	Yes[12]	SP[60]	SP[60]	Yes [10]	Yes	Yes	Yes	Yes[51]	Yes
	c. Personal Services Establishment	No	SP[59]	Yes[12]	Yes	Yes	Yes [10]	Yes	Yes	Yes	Yes[51]	Yes
	d. [Deleted]											
	e. [Deleted]											
	f-1. Restaurant	No	No	Yes[12]	Yes	Yes	Yes [10]	Yes	Yes	Yes	Yes[51]	Yes
	f-2. Bar	No	No	Yes[12]	Yes	Yes	Yes [13]	Yes	SP	Yes	Yes[51]	Yes
	f-3. Craft Beverage Establishment	No	No	SP[12]	SP	SP	SP	SP	Yes	Yes	Yes	Yes
	f-4. Food Stand or Kiosk	No	No	Yes[12]	SP	SP	Yes	Yes	Yes	Yes	Yes	Yes
	f-5. Food Hall	No	No	SP[12]	SP	SP	Yes	Yes	Yes	Yes	Yes	Yes
	g. Dance Hall or Nightclub	No	No	Yes[12]	SP	SP	Yes [13]	Yes	SP	Yes	Yes[51]	Yes
	h. Theater	No [11]	No	Yes[12]	SP	SP	Yes [10]	Yes	SP	Yes	Yes[51]	Yes
	i-1. Commercial Recreation Establishment	No [11]	No	Yes[12]	SP	SP	Yes [10]	Yes	SP	Yes	Yes [51]	Yes
	i-2. Fitness Center	No	SP[59]	Yes[12]	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
	j. Funeral Home	No	No	SP	Yes	Yes	Yes [10]	Yes	Yes	Yes	Yes[51]	Yes
	k. [Deleted]											
	l. Animal Services Facility	No	No	SP[12,29]	SP[29]	SP[29]	SP [10,29]	SP	SP	SP	Yes[51]	SP
	m. Indoor Auto Sales Facility	No	No	Yes[12]	Yes	Yes	Yes [10]	Yes	SP	Yes	Yes[51]	Yes
	n. [Deleted]											
	o. Fast Order or Quick-Service Food Establishment	No	SP[59]	Yes[12]	SP	SP	Yes[10]	Yes	SP	SP	Yes[51]	Yes
	p. Deleted											

		Open Space	*Res C-1, C-1A, 2, 2A, 2B, 3, 3A, 3B*	*Off 1, 2A, 2, 3, 3A*	*Bus A-1, A-2, A-3[1] A-5*	*Bus A, A-4*	*Bus B, B-1, B-2*	*Bus C*	*Ind A-1, A-2*	*Ind A*	*Ind B-1, B-2*	*Ind B*
	q-1. Art/Craft Studio	No	SP [50]	SP [50]	Yes	Yes	Yes	Yes	Yes	Yes	Yes [51]	Yes
	q-2. Performing Arts Studio	No	SP [50]	SP [50]	Yes	Yes	Yes	Yes	Yes	Yes	Yes [51]	Yes
	r. Bakery, Retail	No	No	Yes[12]	Yes	Yes	Yes [10]	Yes	Yes	Yes	Yes[51]	Yes
	s. Cannabis Retail Store	No	No	No	Yes[58]	Yes[58]	Yes[58]	Yes[58]	Yes[58]	No	Yes[58]	Yes[58]
4.36	**Outdoor Retail or Consumer Service Establishments**											
	Outdoor Retail or Consumer Service Establishment, not otherwise defined	No [11]	No	No	SP	SP	SP[62]	SP	SP	SP	SP	SP
	a. Open-Lot Retail Sales Establishment	No	No	Yes [12]	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
	b. Drive-In Food Service Establishment	No	No	No	SP	SP	No	SP	No	SP	No	SP
	c. Drive-In Consumer Service Establishment	No	No	No	No	SP	SP [13]	SP	SP	SP	No	SP
	d. Outdoor Entertainment and Recreation Facility	No [11]	No	Yes [12]	No	No	SP[62]	SP	SP	SP	SP	SP
	e. Drive-In Theater	No	No	No	No	No	No	No	No	Yes	No	Yes
	f. Outdoor Auto Sales Facility	No	No	No	No	SP	No	No	No	SP	No	SP
	g. Auto Service Station	No	No	No	SP	SP	SP [13]	SP	No	Yes	SP	Yes
	h. Auto Wash	No	No	No	No	SP	No	No	No	SP	SP	SP
	i. [Deleted]											
	j. Temporary Outdoor Retail or Consumer Service Use	Yes	SP [61]	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
4.37	**Light Industry, Wholesale Business and Storage**											
	a. Assembly or packaging of articles[33]	No	No	No	No	No	No	No	Yes	Yes	Yes[14]	Yes
	b. Manufacturing, processing, assembly and packaging the following:[34]											
	1. Clothing, but not the manufacture of the cloth or other material of which the clothing is made	No	No	No	No	No	No	No	Yes	Yes	Yes	Yes
	2. Food products, including bakery, confectionery and dairy products	No	No	No	No	No	No	No	Yes	Yes	Yes	Yes
	3. Drugs	No	No	No	No	No	No	No	Yes	Yes	Yes	Yes
	4. Electrical, electronic and communication instruments	No	No	No	No	No	No	No	Yes	Yes	Yes	Yes
	5. Engineering, laboratory and scientific instruments, temperature controls	No	No	No	No	No	No	No	Yes	Yes	Yes	Yes
	6. Jewelry, insignia, emblems and badge, lapidary, scale models, dolls, costume jewelry and costume novelties	No	No	No	No	No	No	No	Yes	Yes	Yes	Yes
	7. Lamp shades except of glass or metal	No	No	No	No	No	No	No	Yes	Yes	Yes	Yes

		Open Space	*Res C-1, C-1A, 2, 2A, 2B, 3, 3A, 3B*	*Off 1, 2A, 2, 3, 3A*	*Bus A-1, A-2, A-3[1] A-5*	*Bus A, A-4*	*Bus B, B-1, B-2*	*Bus C*	*Ind A-1, A-2*	*Ind A*	*Ind B-1, B-2*	*Ind B*
	8. Leather goods, excluding footwear and saddlery	No	No	No	No	No	No	No	Yes	Yes	Yes	Yes
	9. Medical and dental instruments and supplies, optical instruments and lenses	No	No	No	No	No	No	No	Yes	Yes	Yes	Yes
	10. Paper and paperboard products[35]	No	No	No	No	No	No	No	Yes	Yes	Yes	Yes
	11. Pens and mechanical pencils	No	No	No	No	No	No	No	Yes	Yes	Yes	Yes
	12. Plaster of Paris or papier mache products	No	No	No	No	No	No	No	Yes	Yes	Yes	Yes
	13. Office machines, including cash registers, computing machines and typewriters, scales and balances	No	No	No	No	No	No	No	Yes	Yes	Yes	Yes
	14. Umbrellas, parasols and canes	No	No	No	No	No	No	No	Yes	Yes	Yes	Yes
	15. Watches, clocks, watchcases, clockwork mechanisms	No	No	No	No	No	No	No	Yes	Yes	Yes	Yes
	c. Bottling of beverages	No	No	No	No	No	No	No	No	Yes	Yes	Yes
	d. Distribution center, parcel delivery center, delivery warehouse	No	No	No	No	No	No	No	No	Yes	Yes	Yes
	e. Laundry, dry cleaning plant	No	No	No	No	No	No	No	SP	Yes	SP	Yes
	f. Printing, binding, publishing and related arts and trades	No	No	No	No	No	No	No	Yes	Yes	Yes	Yes
	g. Auto body or paint shop[36]	No	No	No	No	No	No	No	SP	Yes	SP	Yes
	h. Automotive repair garage not including auto body or paint shop[37]	No	No	No	SP	SP	SP[13]	SP	SP	Yes	SP	Yes
	i. Food Commissary	No	No	No	No	No	No	No	SP	Yes	Yes	Yes
	j. Wholesale business and storage in roofed structure, but not including wholesale storage of flammable liquids, gas or explosives	No	No	No	No	No	No	No	SP	Yes	Yes[14]	Yes
	k. Storage warehouse, cold storage plant, storage building, but not including storage or bailing of junk, scrap metal, rags, waste paper or used rubber	No	No	No	No	No	No	No	Yes	Yes	Yes[14]	Yes
	l. Open lot storage of new building materials, machinery, and new metals, but not including junk, scrap metal, rags, waste paper and similar materials[38]	No	No	No	No	No	No	No	SP	SP	SP	Yes
	m. Open lot storage of coal, coke, sand, or other similar material, or such storage in silos or hoppers[39]	No	No	No	No	No	No	No	No	SP	No	Yes
	n. Cannabis Production Facility	No	No	No	No	No	No	No	No	No	PB[58]	No
	o. Cannabis Delivery Operator Establishment	No	No	Yes[58]	Yes[58]	Yes[58]	Yes[58]	Yes[58]	Yes[58]	Yes[58]	Yes[58]	Yes[58]
4.38	**Heavy Industry**											

		Open Space	*Res C-1, C-1A, 2, 2A, 2B, 3, 3A, 3B*	*Off 1, 2A, 2, 3, 3A*	*Bus A-1, A-2, A-3[1] A-5*	*Bus A, A-4*	*Bus B, B-1, B-2*	*Bus C*	*Ind A-1, A-2*	*Ind A*	*Ind B-1, B-2*	*Ind B*
	a. Dismantling or wrecking of used motor vehicles and storage or sale of dismantled, inoperative or wrecked vehicles or their parts[38]	No	No	No	No	No	No	No	No	No	No	SP
	b. Rendering or preparation of grease, tallow, fats and oils, manufacture of shortening, table oil, margarine and other food oils, but not including garbage, dead animals, offal or refuse reduction	No	No	No	No	No	No	No	No	No	No	Yes
	c. Stone cutting, shaping, and finishing, in completely enclosed buildings	No	No	No	No	No	No	No	No	No	SP	Yes
	d. Textile mill, except mill for processing of jute, burlap or sisal	No	No	No	No	No	No	No	No	No	SP	Yes
	e. Manufacturing, processing, assembly, packaging or other industrial operation without limit as to category or product, but the following are expressly prohibited[40]	No	No	No	No	No	No	No	SP	SP[52]	Yes[14]	Yes
	1. Acid Manufacture	No	No	No	No	No	No	No	No	No	No	No
	2. Cement, lime or gypsum manufacture	No	No	No	No	No	No	No	No	No	No	No
	3. Explosives or fireworks manufacture	No	No	No	No	No	No	No	No	No	No	No
	4. Glue manufacture	No	No	No	No	No	No	No	No	No	No	No
	5. Incineration or reduction of garbage, offal or dead animals[41]	No	No	No	No	No	No	No	No	No	No	No
	6. Petroleum refining	No	No	No	No	No	No	No	No	No	No	No
	7. Smelting of zinc, copper, tin or iron ores	No	No	No	No	No	No	No	No	No	No	No
	8. Stockyard or abattoir	No	No	No	No	No	No	No	No	No	No	No
	f. Open lot storage of second hand lumber or other used building material[38, 42]	No	No	No	No	No	No	No	No	No	No	Yes
	g. Open lot storage of junk, scrap, paper, rags, unrepaired or unclean containers, or other salvage articles[38]	No	No	No	No	No	No	No	No	No	No	Yes

(Ord. No. 1404, 12-17-2018; Ord. No. 2021-3, § ii, 6-7-2021; Ord. No. 2021-8, 6-28-2021; Ord. No. 2022-21, § 3, 4-3-2023; Ord. No. 2023-1, 5-1-2023; Ord. No. 2023-2, 6-12-2023; Ord. No. 2023-4, 9-18-2023; Ord. No. 2024-2, 6-24-2024; Ord. No. 2024-5, 12-23-2024; Ord. No. 2025-1, 2-10-2025)

4.40 FOOTNOTES TO THE TABLE OF USE REGULATIONS

1. All uses except residential uses in Section 4.31(a)—(i) shall be subject to the following limitations:

   a. Permitted nonresidential uses must be located in a building containing the above enumerated residential uses;

   b. Permitted nonresidential uses may not occupy more than 40% (forty percent) of the Gross Floor Area in the building; all remaining GFA must be devoted to permitted residential uses.

   c. The permitted nonresidential uses may only be located on the first floor or basement of the building.

   d. No accessory parking shall be provided for any nonresidential use.

2. [Deleted]

3. [Deleted]

4. Deleted

5. [Deleted]

6. No in the Office 1 District.

7. Subject to the following provisions:

   (a) Hotels and motels shall be prohibited in Residence C-1 districts;

   (b) Hotels and motels shall be permitted as of right in Residence C-3A districts and in Residence C-2, 2A, 2B, and 3 districts where at least fifty (50) percent of the area of the lot upon which the hotel or motel is located, and the point of entry from a street for all vehicular access to the hotel or motel, is located within the Harvard Square Overlay District the Central Square Overlay District or the Massachusetts Avenue Overlay District.

   (c) Hotels or motels shall be permitted by special permit from the Board of Zoning Appeal (BZA) in Residence 2, 2A, 2B, and 3 districts, where paragraph (b) above does not apply. In granting such special permit the BZA shall find that the proposed location and its surrounding neighborhood is predominately institutional or commercial in use, and specifically not a low-density residential area. The Board shall further find that the physical development of the site for hotel use will be similar to, and compatible with, the existing (or potential) site development pattern on surrounding sites for other uses permitted in the applicable zoning district or districts; and that the operation of the hotel or motel, with regard to delivery of goods, the kind and volume of vehicular trips to and from the site, and the numbers of people visiting the site on foot, among other factors,

is compatible with the use of adjacent properties for uses permitted in the applicable zoning district or districts. In making these findings the Board shall consider the following, among other considerations:

1. The scale of the building in the immediate neighborhood;
2. The extent of non-residential development in the neighborhood, including the size of buildings, the specific uses, the kind and number of vehicular trips generated by those uses;
3. The density of residential use on adjacent lots and within the immediate neighborhood;
4. The details of operation of the proposed hotel or motel use including the kinds and number of vehicle trips to the site, including service trips;
5. The extent of access to arterial streets that customarily accommodate or provide direct service to non-residential uses;
6. The nature of side development on adjacent sites including setbacks from property lines, location and quantity of vehicular parking, the presence of accessory activities such as loading facilities, waste storage facilities, mechanical service equipment, landscaped green spaces, etc.

8. No towers in Industry A-1 Districts.

9. Yes in a Residence C-3A District subject to the limitations specified in Section 5.31.

10. In a Business B-1 or Business B-2 District, this use shall be subject to the limitations specified in Section 4.27.

11. The Following provisions, which modify the Table of Use Regulations, shall apply to certain uses and development in the Open Space District.

    1. The establishment or development in an Open Space district of these uses, and those enumerated in Paragraph (b) below, shall be reviewed in accordance with the requirements of Section 4.25

    2. The following modifications to the Table of Use Regulations shall apply:

        a. Except that in the Open Space district a yacht, rowing or similar club or association, related to recreational boating use on a lake or river, shall be permitted by special permit. [Section 4.33h(1)]

        b. Provided, however, that the theater or hall for public gathering is operated under the aegis of a nonprofit agency or organization and is open to the general public. [Section 4.35h]

            In an Open Space district the following Commercial Recreation uses only shall be permitted, by Special Permit: a golf course; yacht club or marina; boat docks, ticket offices and other support facilities for ferry services, boat rentals and boat cruises services. [Section 4.35i]

12. In all Office Districts, permitted Retail or Consumer Service Establishments shall meet the following standards, which may be modified by special permit from the Board of Zoning Appeal; however, such limitations shall not apply to a cafeteria or other eating/drinking facility which is accessory to permitted uses in a building or associated group of buildings in the same ownership and which is intended primarily for employees of those uses and their guests:

    (a) Retail or Consumer Service Establishments shall be located within buildings or on lots or Development Parcels containing other permitted office and/or residential uses;

    (b) Retail or Consumer Service Establishments shall occupy no more than 25% of the total Floor Area Ratio or Gross Floor Area permitted on the lot or Development Parcel;

    (c) Retail or Consumer Service Establishments shall be located at and/or below the Ground Story with entrances accessible to pedestrians directly from public sidewalks; and

    (d) all permitted Retail or Consumer Service Establishments in Office 1 Districts shall require a special permit.

13. No in the Business B-1 and Business B-2 Districts.

14. [Deleted]

15. [Deleted]

16. [Deleted]

17. [Deleted]

18. Where not an accessory use, and no repairs, servicing, or sale of gasoline is carried out.

19. Unless explicitly stated to the contrary elsewhere in this Ordinance, all bulk, height, yard, lot area, setback, open space, parking, sign and building coverage requirements shall be considered reasonable regulations under Section 3, Chapter 40A, G.L., and shall apply to the uses in this Subsection 4.33a.

20. Noncommercial research facilities shall include laboratories and other research facilities or educational institutions which supply services for a fee to persons other than enrolled students. No manufacturing shall be permitted on the premises unless the noncommercial research facility is located within a district that would customarily permit such manufacturing under the provisions of Subsection 4.37 or 4.38 of the Table of Use Regulations.

21. May include related teaching facilities and offices for its medical staff not to exceed twenty-five (25) percent of the gross floor area of the hospital.

22. Where facilities are primarily used by faculty and students and where the public is admitted on payment of a fee.

23. [Deleted]

24. [Deleted]

25. [Deleted]

26. [Deleted]

27. [Deleted]

28. [Deleted]

29. Provided that, in Business and Office Districts, all animals are kept indoors and that no noise or odors are perceptible from adjoining lots.

30. [Deleted]

31. [Deleted]

32. [Deleted]

33. Provided that no such article exceeds two hundred (200) pounds in weight and provided that no manufacturing or processing is carried out.

34. Provided that the following restrictions shall apply.

    (a) in Industry A, A-1, A-2, and B-2 districts any fully assembled product regularly produced shall not exceed two hundred (200) pounds in weight.

    (b) in Industry A, A-1, A-2, B-2 and C districts no process shall involve coating with rubber,

    (c) all dust, fumes, odors, smoke or vapors are effectively confined to the premises or disposed of so as to avoid air pollution and,

    (d) any noise, vibration or flashing is not normally perceptible without instruments at a distance of fifty (50) feet from the premises in Industry A-1 districts, at a distance of one hundred (100) feet from the premises in Industry A, A-2, B-2, and Industry C districts or at a distance of five hundred (500) feet from the premises in Industry B and B-1 districts.

35. Provided that such products are made from purchased paper or purchased paperboard and that there is no manufacture or process of pulp, waste paper or waste paper products.

36. Provided that all work is carried out inside the building.

37. Provided that in Business, Industry A-1 and Industry C districts all servicing and repairs are carried out inside the building.

38. Provided that the area so used is surrounded by a six foot high wall or tight fence.

39. Provided that all dust incident to storage or handling is effectively confined to the premises or so disposed of so as to avoid air pollution and that the area so used is surrounded by a six foot high wall or tight fence.

40. Subject to the Building Department and Health Department regulations and further provided that

    (a) all dust, fumes, odors, smoke or vapor are effectively confined to the premises or so disposed of as to avoid air pollution, and

(b) any noise, vibration or flashing are not normally perceptible without instruments at a distance of five hundred (500) feet from the premises, fifty (50) feet from the premises in an Industry A-1 district or one hundred (100) feet from the premises in an Industry A-2, Industry B-2 or an Industry C district.

41. Except such processing as may be conducted by the City of Cambridge.

42. Storage of flammable liquids or gas permitted by the Building Code.

43. Except that in Residence C-1 districts this use shall be subject to the regulations of Section 4.50, Institutional Use Regulations.

44. Unless explicitly stated to the contrary elsewhere in this Ordinance, all bulk, height, yard, lot area, setback, open space, parking, sign and building coverage requirements shall be considered reasonable regulations under Section 3, Chapter 40A, G.L., and shall apply to all uses and facilities which have educational purposes and which are protected by said statute.

45. This use designation shall include all uses and facilities listed in Subsection 4.56(c)4, 5, and 6.

46. Any dormitory, fraternity, or sorority which is not exempt by statue shall not be allowed in the Office 1 district and shall require a special permit from the Board of Zoning Appeal in the Office 2 and Industry B districts. Such uses shall only be permitted as part of a planned unit development (PUD) in the Industry C district.

47. Local government shall include all nonresidential facilities and activities of the City of Cambridge, the Cambridge Housing Authority, Cambridge Redevelopment Authority and their component agencies, but shall not include public schools.

48. This use designation shall include facilities for cultural and ethnic heritage appreciation.

49. But not including a tower facility as a principal use, serving multiple operators, or as a freestanding structure on a lot.

In reviewing a special permit application for mobile communications facilities in particular, the Board of Zoning Appeal shall consider the following in reaching its determination:

1. The scope of or limitations imposed by any license secured from any state or federal agency having jurisdiction over such matters.

2. The extent to which the visual impact of the various elements of the proposed facility is minimized:

(1) Through the use of existing mechanical elements on a building's roof or other features of the building as support and background,

(2) Through the use of materials that in texture and color blend with the materials to which the facilities are attached, or

(3) Other effective means to reduce the visual impact of the facility from off the site.

3. Where it is proposed to erect such a facility in any residential zoning district, the extent to which there is a demonstrated public need for the facility at the proposed locations, the existence of alternative, functionally suitable sites in nonresidential locations, the character of the prevailing uses in the area, and the prevalence of other, existing mechanical systems and equipment carried on or above the roof of nearby structures. The Board of Zoning Appeal shall grant a special permit to erect such a facility in a residential zoning district only upon a finding that nonresidential uses predominate in the vicinity of the proposed facility's location and that the telecommunication facility is not inconsistent with the character that does prevail in the surrounding neighborhood.

   In granting a special permit the Board of Zoning Appeal shall set forth in its decision under which circumstances or procedures, if any, the permittee shall be allowed to replace and upgrade its equipment without the necessity of seeking a new special permit.

50. Subject to the requirements of Section 4.28.

51. Permitted in the Industry B-1 district as the use would be permitted as of right or by special permit in the Business B district subject to the following limitations:

   (a) The retail use is located on the ground floor or in the basement of a building containing other uses,

   (b) The retail use constitutes no more than 25% of the GFA of the building in which it is located, exclusive of GFA devoted to parking uses,

   (c) The retail use fronts on a public street and has a direct public access to that street, and

   (d) No separately leased establishment may exceed 10,000 square feet in GFA.

52. Uses so permitted in existence as of July 1, 1988 may continue and expand, within the dimensional limits of Section 5.34, without the granting of a special permit.

53. No in Business C-1 districts.

54. Any dimensional or other relief from the provisions of this Ordinance required to construct or locate a municipal library use shall be permitted by grant of a special permit from the Planning Board. In granting such a special permit, where the library is proposed to be located within an Open Space zoning district, the Planning board shall, in addition to the criteria set forth in Section 10.43, find that there will be no substantial reduction in the recreational and/or open space use, excluding parking areas and roadways. Where the Board does find there will be a substantial reduction in the recreational and/or open space use the special permit shall be granted upon assurance by the City Manager that he will offset such reduction by increased recreational and/or open space uses at another location, subject to necessary appropriations.

55. The provisions of Article 5 and Article 6 of this Ordinance shall not apply to the construction or location of a municipal police or fire station.

57. Subject to the provisions of Section 22.70.

58. Subject to the provisions of Section 11.800, Cannabis Uses.

59. In Residence C-1, C-1A, 2, 2A, 2B, 3, 3A, and 3B Districts, certain Retail and Consumer Service Establishments identified in the Table of Use Regulations may be allowed by special permit from the Board of Zoning Appeal, subject to the criteria set forth in Sections 10.43 and 10.43.1 of this Zoning Ordinance, if all of the following conditions are met:

(a) The proposed use is located within the Ground Story of a building;

(b) the use is proposed to occupy a space that was originally built for non-residential use and has been previously occupied by one or more non-residential uses in the past;

(c) the use is proposed to occupy a space that has not contained a residential use at any point within the two (2) years prior to application for a special permit;

(d) the special permit shall be valid only for the entity to which the special permit was issued, and shall not be transferrable to a new entity unless a new special permit is granted; and

(e) the special permit shall be valid for a time period of ten (10) years after its date of issuance, subject to reissuance upon application to the Board of Zoning Appeal at the end of that period, or the Board of Zoning Appeal in its discretion may set forth a longer or shorter time period in the conditions of the special permit decision based on the lease duration or other considerations.

60. A Craft Retail and Production Shop shall be permitted as-of-right in a BA, BA-1, BA-2, BA-3, or BA-4 District if it occupies no more than 2,500 square feet of Gross Floor Area, including storage areas, and does not involve the use of equipment that produces dust, fumes, odors, smoke, vapors, noise, vibration, flashing, light trespass, or glare outside of the premises.

61. No special permit is required for Temporary Outdoor Retail or Consumer Service Uses on municipal-owned land.

62. For development within the Central Square Overlay District, see Section 20.304.5.

63. Provided, however, that no more than two (2) Publicly-accessible, Privately-owned Electric Vehicle Charging systems shall be permitted on a lot.

64. Except as provided in Section 6.25 Flexible Parking Corridor Regulations.

65. Permitted as-of-right on a lot owned by the City of Cambridge.

(Ord. No. 1404, 12-17-2018; Ord. No. 2021-3, Pt. 3B, 6-7-2021; Ord. No. 2023-2, 6-12-2023; Ord. No. 2024-2, 6-24-2024; Ord. No. 2024-5, 12-23-2024; Ord. No. 2025-1, 2-10-2025)

4.50 INSTITUTIONAL USE REGULATIONS

4.51 *Legal Authority*. In accordance with Chapter 565 of the 1979 General Court, and as amended by Chapter 387 of the Acts of 1980, the use of land for institutional purposes in residentially zoned districts which require a lot of one thousand two hundred (1,200) square feet or more per dwelling unit shall be governed by the provisions of this Section 4.50.

4.52 *Purpose*. It is the purpose of this Section 4.50 to protect lower density residential neighborhoods from unlimited expansion of institutional activities, to reduce pressures for conversion of the existing housing stock to nonresidential uses, to minimize the development of activities which are different from and incompatible with activity patterns customarily found in lower density residential neighborhoods and to provide a framework for allowing those institutions which are compatible with residential neighborhoods to locate and expand there. This Section 4.50 is intended to accomplish these purposes in a manner consistent with the findings and objectives of the Community Development Department's Cambridge Institutional Growth Management Plan (1981).

4.53 *Approach*. This Section 4.50 establishes special use regulations for institutional activities in the Residence C-1 zoning districts. These regulations encompass the full range of institutional uses. Each use is regulated based on its expected physical impacts on nearby residences, on the existing or recent use of the lot or structure proposed for such use, and on the location of the lot either within or outside of an area in which there has already been extensive institutional development.

4.54 *Institutional Overlay District*. The designation Institutional Overlay District is hereby established on the Zoning Map as provided for in Subsection 3.12. An Institutional Overlay District delimits an area where there has been extensive contiguous development of institutional use types subject to regulation under this Section 4.50. Institutional Overlay Districts are defined in order to identify areas where prior development patterns create a precedent for more flexible institutional use regulation than in areas where non institutional uses predominate. The conditions regarding development of new or expanded institutional uses under Subsections 4.55 and 4.56 are determined in part by whether a lot is located inside or outside an Institutional Overlay District. The boundaries of these districts are drawn based on several physical factors; consequently, for purposes of definitional clarity, they encompass areas both inside and outside zoning districts subject to use regulation under this Section 4.50. Regardless of the location of an Institutional Overlay District boundary, the special institutional use regulations of this Section 4.50 shall only apply within the Residence C-1 districts. The following Institutional Overlay Districts are hereby established on the Zoning Map.

4.54.1 The Harvard, Radcliffe, Lesley District.

4.54.2 The Episcopal Divinity School District.

4.54.3 The Observatory Hill District.

4.54.4 The Mount Auburn Hospital District.

4.54.5 The Shady Hill School, and Buckingham, Browne, and Nichols School District.

4.54.6 The Matignon School District.

4.54.7 The Cambridge Street Health Center District.

4.54.8 The Massachusetts Institute of Technology District.

4.55 *Existing Lot Status*. The institutional use of land or structures for each category of institutional activity in a Residence C-1 district shall be governed by the Table of Institutional Use Regulations in Subsection 4.56. The institutional use regulation in the table shall be the same in the aforementioned zoning district, but shall differ according to: (1) the applicable use category, (2) the location of the lot in relation to the Institutional Overlay Districts, and (3) the status of the lot in relation to its existing or recent use. If two or more of the lot status types listed below would pertain to the proposed development of an institutional use, then the more restrictive designation among the types of lot status for the use would apply. The column heading in Subsection 4.56 refers to the types of lot status listed in Subsection 4.55.1 and applies to institutional development whether by conversion of an existing structure or lot or by new construction or new use of a lot.

4.55.1 The Existing Lot Status pertaining to the proposed institutional development shall be defined according to one of the following three types:

(1) A lot which contains a residential use listed in Subsection 4.31, or which is vacant and which within the twenty-four (24) month period prior to the date of permit application, but subsequent to March 23, 1980, contained such residential use;

(2) A lot which contains any use other than those residential and institutional uses listed in Subsection 4.31 or 4.33, or which is vacant and did not within the twenty-four (24) month period prior to the date of permit application, but subsequent to March 23, 1980, contain a use listed in Subsection 4.31 or 4.33; or

(3) A lot which contains an institutional use listed in Subsection 4.33, or which is vacant and which within the twenty-four (24) month period prior to the date of permit application, but subsequently to March 23, 1980, contained such institutional use.

4.56 TABLE OF INSTITUTIONAL USE REGULATIONS

	Inside Institutional Overlay Districts Existing Lot Status			Outside Institutional Overlay Districts Existing Lot Status		
Use Categories	**(1)**	**(2)**	**(3)**	**(1)**	**(2)**	**(3)**
a. Religious Purposes						
1. Place or Worship	SP[4]	Yes	Yes	No	SP	Yes
2. Rectory, parsonage	SP[4]	Yes	Yes	No	SP	Yes
3. Convent, monastery	SP[4]	Yes	Yes	No	SP	Yes
4. Social or recreational center	SP[4]	Yes	Yes	No	SP	SP[5]
5. Other use with religious purposes	SP	Yes	Yes	No	SP	Yes
b. Use of Land or Structure for Educational Purposes on Land Owned or Leased by the Commonwealth or any of its Agencies, Subdivisions or Bodies Politic	Yes	Yes	Yes	Yes	Yes	Yes
c. Use of Land or Structure for Educational Purposes on Land Owned or Leased by Entities not included in Subsection 4.56b						
1. Pre-school, day care center or kindergarten	SP[4]	Yes	Yes	No	SP	Yes

Use Categories	Inside Institutional Overlay Districts Existing Lot Status (1)	(2)	(3)	Outside Institutional Overlay Districts Existing Lot Status (1)	(2)	(3)
2. Primary School	SP[4]	SP	Yes	No	SP	SP[5]
3. Secondary School	SP[4]	SP	SP	No	No	No
4. College or university athletic facility, auditorium, theater or similar facility, any of which is customarily accessible to the general public on a paid admission fee or other basis	SP[4]	SP	SP	No	No	No[6]
5. College or university laboratory or research facility customarily involving radioactive materials and other controlled substances, high Intensity electromagnetic radiation or chemical or biological processes potentially entailing a high level of danger to the public health and safety	SP[4]	SP	SP	No	No	No
6. Other College or university facility[1]	SP[4]	SP	Yes	No	No	No[6]
7. Vocational or other schools	SP[4]	SP	Yes	No	SP	SP[5]
8. Dormitory, resident fraternity or sorority	SP[4]	SP	SP	No	No	No[6]
d. Non-Commercial Research Facilities						
1. Laboratory or other research facility customarily involving research with radioactive materials, controlled substances, high intensity electromagnetic radiation or chemical or biological processes potentially entailing a high level of danger to the public health and safety	SP[4]	SP	SP	No	No	No
2. Private library, study center or other research facility	SP[4]	SP	Yes	No	SP	SP[5]
e. Health Care Facilities						
1. Hospital	SP[4]	SP	SP	No	No	No
2. Infirmary	SP[4]	SP	Yes	No	SP	SP[5]
3. Nursing or Convalescent home	SP[4]	SP	Yes	No	SP	SP[5]
4. Clinic not affiliated with any other institution	SP[4]	SP	Yes	No	SP	SP[5]
5. Clinic affiliated with a hospital or an accredited university medical school	SP[4]	SP	SP	No	No	No[6]
6. Clinic connected to a community center	SP[4]	SP	Yes	No	SP	SP[5]
7. Other health care facility	SP[4]	SP	Yes	No	SP	SP[5]
f. Social Service Facilities						
1. Social service center	SP[4]	Yes	Yes	No	SP	SP[5]
2. Community Center	SP[4]	SP	SP	No	No	No[6]
g. Local Government[2]						
1. Administrative office	SP[4]	SP	SP	No	No	No[6]
2. Fire or police station	SP[4]	SP	Yes	No	SP	SP[5]
3. Museum	SP[4]	SP	Yes	No	SP	SP[5]
4. Municipal service facility	SP[4]	SP	SP	No	No	No
5. Public park, playground, or public recreation building	SP[4]	Yes	Yes	SP[4]	Yes	Yes
6. Municipal Library	Yes[8]	Yes[8]	Yes[8]	Yes[8]	Yes[8]	Yes[8]
h. Other Governmental Facility	Yes	Yes	Yes	Yes	Yes	Yes
i. Other Institutional Uses						

Use Categories	Inside Institutional Overlay Districts Existing Lot Status (1)	(2)	(3)	Outside Institutional Overlay Districts Existing Lot Status (1)	(2)	(3)
1. Club, lodge, or other fraternal or sororal meeting facility	SP[4]	SP	Yes	No	SP	SP[5]
2. Museum or noncommercial gallery[3]	SP[4]	Yes	Yes	No	SP	SP[5]
3. Cemetery	SP[4]	Yes	Yes	No	Yes	Yes
4. Institutional use not listed in any other category	SP[4]	SP	SP	No	SP	SP[5]

FOOTNOTES TO TABLE OF INSTITUTIONAL REGULATIONS

1. Other college or university facility shall include administrative offices, faculty and staff offices, teaching and research facilities not included in Subsection 4.56c(4) or c(5), libraries, museums, dining halls and service facilities including facilities listed in Subsection 4.56c(4) which are not accessible to the general public.

2. Local government shall include all nonresidential facilities and activities of the City of Cambridge, the Cambridge Housing Authority, Cambridge Redevelopment Authority and their component agencies, but shall not include public schools.

3. This use designation shall include facilities for cultural and ethnic heritage appreciation.

4. The Board of Zoning Appeal shall grant a special permit for this use only if the applicant demonstrates that he will act to replace indefinitely the dwelling units removed from the lot or converted to institutional use with an equivalent number of units, not previously on the housing market, at another location or locations within the City of Cambridge, before the units are removed or converted, and only if the applicant adequately provides at his own expense for the relocation of the occupants of the existing units to comparable units within the City of Cambridge. In every case, this replacement housing shall include units suitable for and available to low and moderate income households in an amount equal to ten (10) percent of the total number of units to be replaced. The remaining replacement units shall be comparable to the units removed. Comparability shall be determined by dwelling unit mix in terms of number of bedrooms, special facilities (such as handicapped access or common areas), amenities, including those existing in the surrounding neighborhood and range of price/rent levels. The Board of Zoning Appeal may require that the applicant submit whatever evidence it deems necessary to determine that the replacement units will be comparable and the applicant is bound to provide such units. Otherwise the special permit will not be issued. Replacement units shall be available for occupancy before the existing dwelling units are removed or converted and shall remain available as low and moderate income and comparable units unless otherwise authorized by the Board of Zoning Appeal. No building or demolition permit for the proposed institutional development shall be issued until the replacement units are available for occupancy and the occupants of the existing units have been relocated.

5. This use is allowed as of right if the pre-existing institutional use of the lot is in the same use table category in Subsection 4.56, otherwise a special permit from the Board of Zoning Appeal shall be required. Such special permit shall be granted only if the Board determines that the use will have fewer adverse impacts on the neighborhood than the pre-existing institutional use. In making this determination, the Board shall consider and comment on the physical attributes of the use, including those evaluated in the Cambridge Institutional Growth Management Plan. The Board may require the applicant to submit whatever documentation it deems necessary, to assist it in making said determination.

6. This use may be allowed upon issuance of a special permit by the Board of Zoning Appeal if the pre-existing institutional use of the lot is in the same use table category in Subsection 4.56 or if the Board determines that the use will have fewer adverse impacts on the neighborhood than the pre-existing institutional use. In making this determination, the Board shall consider and comment on the physical attributes of the use, including those evaluated in the Cambridge Institutional Growth Management Plan. The Board may require the applicant to submit whatever documentation it deems necessary to assist it in making said determination.

7. Subject to the provision of Section 11.20.

8. Any dimensional or other relief from the provisions of this Ordinance required to construct or locate a municipal library use shall be permitted by grant of a special permit from the Planning Board. In granting such a special permit, where the library is proposed to be located within an Open Space zoning district, the Planning Board shall, in addition to the criteria set forth in Section 10.43, find that there will be no substantial reduction in the recreational and/or open space use, excluding parking areas and roadways. Where the Board does find there will be a substantial reduction in the recreational and/or open space use the special permit shall be granted upon assurance by the City Manager that he will offset such reduction by increased recreational and/or open space uses at another location, subject to necessary appropriations.

4.57 *Special Permit Criteria*. The Board of Zoning Appeal shall grant a special permit for a use in Subsection 4.56 only if it determines that the benefits of the proposed use at that location will outweigh it detriments. In addition to any particular determinations which must be made under footnotes 4, 5, or 6 of said Subsection and Subsection 10.43, "Special Permit Criteria", the Board shall consider and address the following factors as appropriate:

Benefits:

1. The building design or site plan would be compatible with the neighborhood.

2. The institution would be accessible to or primarily oriented toward neighborhood residents.

3. The institution would fulfill an identified neighborhood need.

4. The institution would fulfill an identified citywide need.

5. Institutional use would be particularly appropriate on the lot given previous use of the lot.

6. Institutional use would be particularly appropriate on the lot given institutional use of adjacent or nearby lots.

7. Residential development would not be feasible or reasonably practical on the site.

8. The proposed institutional use would create a stronger buffer or a more gentle transition between residential and nonresidential areas.

9. The proposed institutional use would result in a net improvement to the neighborhood by being more compatible than the previous use of the lot.

Detriments:

1. Development of the institutional use would substantially contravene the objectives of the Cambridge Institutional Growth Management Plan.

2. The intensity of the institutional use would be substantially greater than the use intensity of residences in the neighborhood, including traffic, building bulk, parking demands, etc.

3. The activity patterns, including pedestrian and vehicle travel to and from the institution would differ from existing neighborhood activity patterns so as to adversely impact the neighborhood.

4. Development of an institutional use would eliminate existing dwelling units.

5. Development of an institutional use would eliminate nonresidential services or activities which are beneficial to the neighborhood.

4.58 *Special Permit Procedures*. Applications for a special permit from the Board of Zoning Appeal under Subsection 4.56 shall be subject to the general procedural requirements specified in Article 19.000.

4.58.1 Applications shall include all of the following and shall be submitted in triplicate.

1. A completed Special Permit Application form.

2. A completed Property Ownership Certificate.

3. An accurately scaled map showing existing conditions on the lot(s) on which the institutional development is proposed. Said map shall indicate property lines, existing structures and major landscaped features including trees in excess of three inch caliper, parking areas and driveways.

4. A description of the current use of said lot(s) or of the use within the previous twenty-four (24) months if the lot or structures are vacant.

5. A written description of the proposed use of the lot including the intensity of use, expected activity patterns, and probable users.

6. A statement of how the anticipated physical attributes of the use will be similar to or different from those predicted for that category of use generally in the Cambridge Institutional Growth Management Plan.

7. If germane to the proposal, a plan for replacing dwelling units to be displaced by the institutional use as required by footnote 4 of Subsection 4.56.

8. A list of any zoning violations which would customarily necessitate variances from the requirements of this Ordinance.

4.58.2 No application shall be accepted by the Board of Zoning Appeal until all of the information required in this Subsection 4.57 is submitted. Any changes in the application following submittal, other than those requested by the Board of Zoning Appeal, or its agent, shall require resubmittal of an application for a special permit. During the course of the special permit application, the Board of Zoning Appeal may require the applicant to provide any additional information which it deems is necessary and reasonable to determine that criteria of Subsection 4.57 will be satisfied.

(Ord. No. 2025-1, 2-10-2025)

4.60 SHORT-TERM RENTALS

4.61 *Purpose*. This Section 4.60 "Short-Term Rentals" is intended to make the operation of short-term rentals legal for Cambridge residents, protect the safety of renters and residents, ensure that the primary use remains residential, and ensure that short-term rentals will not be a detriment to the character and livability of the surrounding residential neighborhood.

4.62 *Definitions*.

a. Short-term rental. Any rental of a residential dwelling unit, or of a bedroom within a dwelling unit, in exchange for payment, as residential accommodations for a duration of less than thirty (30) consecutive days.

b. Short-term renter. Any person or persons occupying a dwelling unit, or a bedroom within a dwelling unit, as a short-term rental for a duration of less than thirty (30) consecutive days.

c. Short-term rental operator. The person or persons offering a dwelling unit or bedroom for short-term rental, who may be either the owner or the primary leaseholder of the dwelling unit with the written permission of the property owner and the condominium association if applicable

d. Operator-occupied short-term rental. The short-term rental of a dwelling unit, or of no more three (3) individual bedrooms within such dwelling unit, that is the primary residence of its operator.

e. Owner-adjacent short-term rental. The short-term rental of a dwelling unit that is not the primary residence of the operator, but is located within a residential building with a

total of four or fewer dwelling units where all dwelling units in the building are owned by the operator, and one of the dwelling units in the building is the primary residence of the operator.

4.63 *Applicability*. The requirements of this Section 4.60 shall apply to all districts where residential uses are allowed, but shall not apply to principal transient accommodations.

4.64 *Requirements*. Short-term rentals are permitted as an accessory residential use in existing dwellings in all districts where residential use is permitted, subject to the following requirements:

1. Only operator-occupied short-term rentals and owner-adjacent short-term rentals are permitted.
2. All short-term rental operators shall register with the Inspectional Services Department prior to short-term rental use and occupancy in conformance with Section 4.67 below.
3. A dwelling unit or bedroom offered for short-term rentals shall comply with building code requirements for occupancy.
4. A dwelling unit or bedroom offered for short-term rentals shall comply with all standards and regulations promulgated by the Commissioner of Inspectional Services.
5. A short-term rental operator may make available no more than one (1) dwelling unit for operator-occupied short-term rentals, which may include the separate short-term rental of no more than three (3) individual bedrooms, and one (1) dwelling unit for owner-adjacent short-term rentals.
6. Operators of short-term rentals shall remit to the appropriate body all fees and taxes as required by the City and/or State authorities.
7. Short-term rental operators shall maintain liability insurance appropriate to cover the short-term rental use.
8. An owner-adjacent short-term rental may be rented only as a whole unit to one party of short-term renters at any one time and not rented as separate bedrooms to separate parties.
9. An operator-occupied short-term rental during which the operator is away from the dwelling unit for more than seven (7) consecutive days may be rented only as a whole unit to one party of short-term renters at any one time and not rented as separate bedrooms to separate parties.
10. The number of individual bedrooms made available for operator-occupied short-term rentals within a dwelling unit shall not be greater than the number of lawful bedrooms in the dwelling unit.
11. Renting for an hourly rate, or for rental durations of less than ten (10) consecutive hours, shall not be permitted.
12. Commercial meetings and uses are prohibited in short-term rentals.

4.65 *Procedural Requirements*.

1. The following information shall be provided to all short-term renters and posted in all owner-adjacent short-term rentals in a manner to be determined by the Inspectional Services Department:

    a. Instructions for disposal of waste per the City's recycling and composting programs.

    b. An emergency-exit diagram in all bedrooms used for owner-adjacent short-term rentals and on all egresses from the dwelling unit.

    c. Contact information for the short-term rental operator, or when the operator is not present, the contact information for a locally available contact designated to respond to all emergencies and problems that may arise during the rental period, whether from renters, neighbors or municipal authorities.

    d. The certificate of registration for the short-term rental.

2. The operator of an owner-adjacent short-term rental shall keep accurate books and records, make them available upon request of the Inspectional Services Department, and maintain such books and records for a period of three years.

4.66 *Regulations*. The Commissioner of Inspectional Services shall have the authority to promulgate regulations to carry out and enforce the provisions of this Section 4.60 "Short-Term Rentals."

4.67 *Registration*.

1. All dwelling units offered for short-term rentals shall register with the City and secure a certificate of registration according to standards set forth by the Commissioner of Inspectional Services, and pay all associated fees. The certificate of registration shall require the operator to agree to abide by the requirements of this Section 4.60. If the operator is not the owner of the property, the operator shall provide written evidence that the owner and the condominium association if applicable has consented to the short-term rental use of the property. All operators shall provide the City with proof that one of the units in the structure is used as the operator's primary residence, either by: 1) providing proof of enrollment in the Cambridge residential tax exemption program, or 2) providing an affidavit, signed under the pains and penalties of perjury, stating that the dwelling being used for short-term rental is the operator's primary residence, a property title or tenancy agreement along with a photo ID, and a government or utility correspondence with operator's name and address issued within the last three (3) months.

2. Prior to issuing or renewing a certificate of registration, the Inspectional Services Department shall conduct an inspection to verify that each dwelling unit and bedroom to be rented to short-term renters:

    a. Meets all building code requirements for occupancy.

b. Meets all other requirements of this Section 4.60 "Short-Term Rentals" and regulations promulgated by the Commissioner of Inspectional Services.

c. It is the responsibility of the short-term rental operator to renew its certificate of registration every five years or upon change of operator or owner.

4.68 *Effective Date*. The provisions of this Section 4.60 "Short-Term Rentals" shall take effect on April 1, 2018. Beginning on October 1, 2017, or on an earlier date as may be determined by the Commissioner of Inspectional Services, the City may receive applications for registration, conduct inspections, and issue certificates of registration for short-term rentals to operators who apply before the effective date.

ARTICLE 5.000 DEVELOPMENT STANDARDS

5.10 GENERAL REGULATIONS
5.20 STANDARDS FOR DIMENSIONAL REGULATIONS
5.30 DISTRICT DIMENSIONAL REGULATIONS
5.40 FOOTNOTES TO THE TABLE OF DIMENSIONAL REQUIREMENTS
5.50 SPECIAL DIMENSIONAL REGULATIONS

5.10 GENERAL REGULATIONS

5.11 No building or structure shall be built nor shall any existing building or structure be enlarged which does not conform to the regulations as to maximum ratio of floor area and lot areas, minimum dimensions of front, side, and rear yards and maximum height of structures, in the several districts as set forth in Article 5.000, Section 5.30 except as hereinafter provided and except in the Cambridge Center MXD District, which shall be governed by the requirements of Section 14.30.

5.12 The lot or yard areas required for any new building or use may not include any part of a lot that is required by any other building or used to comply with any requirements of this Ordinance, nor may these areas include any property of which the ownership has been transferred subsequent to the effective date of this Ordinance if such property was a part of the area required for compliance with the dimensional requirements applicable to the lot from which such transfer was made.

5.13 In the case of multiple buildings on a lot that do not contain Residences as listed in Section 4.31 a-j., the minimum distance between such buildings shall not be less than the sum of the heights of the buildings divided by six or ten feet, whichever is greater. In determining compliance with this section, portions of buildings exempted by Section 5.23 shall not be counted in computing building height.

5.14 [Deleted]

5.15 No lot or development parcel shall be changed in size, shape, or ownership so that the dimensional requirements or off-street parking and loading requirements prescribed in this Ordinance are no longer satisfied. This paragraph shall not apply where a portion of the lot or development parcel is acquired for a public purpose.

5.16 Any new building or new addition to a building that receives a building permit or, where applicable, a special permit after the enactment of this Section shall require certification from DPW that it conforms to the Flood Resilience standards set forth in Section 22.80 of this Zoning Ordinance before issuance of a building or special permit if it meets the following criteria:

(a) The new building or addition involves the construction of a new foundation, and

(b) In the case of an addition to an existing building, the footprint area of the building, measured in plan view, is increased by at least 50%.

(Ord. No. 2022-9, 2-27-2023; Ord. No. 2025-1, 2-10-2025)

5.20 STANDARDS FOR DIMENSIONAL REGULATIONS

5.21 *Lot area and width*.

5.21.1 There shall be no required minimum lot area or width except as set forth below.

5.21.2 No building shall be erected on a lot which does not have at least twenty (20) feet of frontage on a street. This paragraph does not apply to subdivided lots within a townhouse development that have a combined lot frontage of at least twenty (20) feet. This requirement shall not be applicable in the Cambridge Center MXD District.

5.22 *Open Space*. Where a new building is constructed on a lot or where the footprint of an existing building is enlarged, the lot shall conform to the Open Space Ratio required in the zoning district. The total Open Space on the lot shall be the sum of all areas that meet the definition and standards for at least one of the following types of Open Space: Private, Public, Publicly Beneficial, Green Area, or Permeable Open Space. All five terms are defined in Article 2.000 and additional standards are set forth below. Areas that meet the definition of more than one type of Open Space shall only be counted once when calculating the total Open Space on the lot. The Open Space Ratio on a lot shall be the total Open Space area divided by the lot area, expressed as a percentage.

5.22.1 Private Open Space. Private Open Space shall be open and unobstructed to the sky, except that up to fifty (50) percent of the total Private Open Space may be Shaded Area. Trees, plantings, arbors, fences, flagpoles, sculpture, fountains and recreational and drying apparatus and similar objects shall not be considered obstructions when located within a private open space. Objects or structures intended exclusively for bicycle parking, designed and located in accordance with Section 6.100, which may be uncovered, partially covered or fully enclosed, shall not be considered obstructions provided that such objects or structures are not used for motor vehicle parking, general storage or any other use, and further provided that any such structure exceeding six feet (6') in height conforms to the requirements for an accessory building in Section 4.21. Beehives and apiaries conforming to the Standards for Urban Agriculture in Article 23.000 of this Zoning Ordinance shall not be considered obstructions provided that they are no more than six (6) feet in height. Structures or features that are necessary for a building to comply with the Flood Resilience Standards in Section 22.80, such as stairs, ramps, or window wells, shall not be considered obstructions. To the extent permitted in this Ordinance, balconies and roof areas may also be considered as Private Open Space. Private Open Space shall include areas that are shared by all building occupants or available to occupants of separately tenanted areas of a building, such as dwelling units. Private Open Space may include either hardscaped or permeable areas but may not have a slope greater than ten percent (10%). Private Open Space must meet the following other dimensional characteristics:

a. If located at grade, Private Open Space must have both a width and a length of at least fifteen (15) feet and may be shared by all occupants of a building or divided into areas that are accessed separately.

b. If located above grade, such as balconies, decks, and roofs of garages and buildings, and shared by all occupants of a building, Private Open Space must have both a width and a length of at least six (6) feet and have a minimum area of seventy-two (72) square feet.

c. If located above grade or partially below grade and accessible to separately tenanted spaces, such as balconies and decks or lower-level patios, Private Open Space must have a width and length of at least three (3) feet and have a minimum area of twenty (20) square feet.

5.22.2 Public Open Space. Public Open Space shall be open and unobstructed to the sky, except that up to fifty (50) percent of the total Public Open Space may be Shaded Area. Public Open Space may include but is not limited to lawns, decorative plantings, interior walkways, abutting sidewalks, active and passive recreation areas, playgrounds, fountains, and public performance areas. Public Open Space shall not include rooftop areas, patios, balconies, parking lots, or driveways. Limited paved surfaces may be designed to accommodate occasional use by motor vehicles servicing the park facility. If the facility is not held in fee simple by the City of Cambridge or other public entity, the Public Open Space may be land remaining in private ownership but protected for public use by means of a permanent easement, conservation restriction, or other similar legal device acceptable to the City.

5.22.3 Publicly Beneficial Open Space. Such space shall be customarily available or shall be readily visible to such occupants and visitors, though physically inaccessible, by being located and treated to enhance the amenity of the development through a general appearance of openness. Publicly beneficial open space shall include parks, plazas, lawns, landscaped areas, decorative plantings, and active and passive recreational areas. Publicly beneficial open space shall also include loggias, atriums, arcades and pedestrian ways listed and defined in Section 14.45. Streets, parking lots, driveways, service roads, loading areas, and areas normally inaccessible to pedestrian circulation beneath pedestrian bridges, decks, or shopping bridges shall not be counted in calculating publicly beneficial open space.

5.22.4 Green Area Open Space. Green Area Open Space shall be open and unobstructed to the sky except that up to fifty (50) percent of the total required Green Area Open Space may be Shaded Area. Green Area Open Space shall be land at grade and shall consist of friable, permeable materials (including but not limited to loam, gravel, sand, crushed stone, and including naturally occurring soil, bedrock, and incidental pipes and other underground utilities) having a minimum depth of three (3) feet. Said land shall be capable of supporting the growth of trees, grass, ground cover, shrubs, and similar vegetation. Such area may not include any portion of the lot used for parking areas and access drives or other hard surface areas, except walks and terraces designed and intended for non-motor vehicle use.

Green Area Open Space shall consist entirely of living trees, grass, ground cover, bushes, shrubs, and/or similar vegetation, as well as water and other natural features of the site.

However, in no case shall hard surfaced walks and terraces, or pervious ground covers like gravel, stone, and wood chips not being used as mulch beneath vegetation, exceed twenty-five (25) percent of the total area counted as Green Area Open Space.

5.22.4(a) Permeable Open Space. Permeable Open Space shall consist of a surface material that may include vegetation; rocks, pebbles, wood chips and similar landscaping materials; or unit pavers. All other materials (for example, continuously poured asphalt or concrete) are not allowed except that any material may be used for pedestrian walkways not exceeding 5 feet in width or half the width of the area in which they are located, whichever amount is less.

5.22.5 Green Factor. Where any new building, new addition to a building that seeks to increase the footprint of a building by at least 50% in area, or new surface parking area is created on or after the enactment of this Section, the lot or Development Parcel shall be designed to conform to the Green Factor Standard set forth in Section 22.90 of this Zoning Ordinance before issuance of a building permit or special permit if applicable.

5.23 *Building Height and Stories Above Grade.*

5.23.1 *Height Exceptions.* The provisions of this Ordinance governing the height of buildings and structures in all districts shall generally not apply to the following:

(a) chimneys, water towers, air conditioning equipment, elevator bulkheads, skylights, ventilators and other necessary features appurtenant to buildings which are usually carried above roofs and are not used for human occupancy;

(b) domes, towers, or spires above buildings if such features are not used for human occupancy and occupy less than ten percent (10%) of the lot area;

(c) wireless or broadcasting towers and other like unenclosed structures which occupy less than ten percent (10%) of the lot area;

(d) Wind Turbines, subject to the requirements and limitations set forth in Section 22.70;

(e) elements of a Solar Energy System, as defined in Section 22.60 of this Zoning Ordinance, that would ordinarily be located on a rooftop where they would have direct exposure to sunlight;

(f) beehives and apiaries extending no more than six (6) feet above a rooftop, in accordance with the Standards for Urban Agriculture in Article 23.000 of this Zoning Ordinance; and

(g) structures appurtenant to Green Roof Area or usable outdoor space adjacent to a Green Roof Area, including but not limited to elevator and stair access headhouses and Shade Canopies located above the roof, provided that the area of such features is less than the total adjacent Green Roof Area.

5.23.1.1 Building elements enumerated in (a) and (g) above shall be limited in height where they are placed on a building located in a non-residential district, which district abuts a Residence C-1, C-1A, C-2, C-2A, C-2B district. In these instances, the following height limitations shall apply to those building elements:

(a) The elements must be below one or more forty-five (45) degree bulk control planes. Each bulk control plane shall begin, in the vertical dimension, at the maximum height limit permitted in the non-residential zoning district. In the horizontal dimension, the plane shall begin at the residential/non-residential zoning district line: however, where that line lies within a street, the plane shall begin at the front lot line, located nearest the zoning district line, of the lots on which the building is sited. Thereafter the bulk control plane shall rise from its beginning over the non-residential zoning district. (See illustrative figure 5.23)

(b) The limitations in Paragraph 1 above may be waived by special permit from the Planning Board upon a finding by the Board that the additional height is necessary. In making that determination the Planning Board shall consider the special and unique requirements of the use that the elements are serving, any special constraints imposed by the site upon which the building is located, the nature and character of development in the adjacent residential district, and the extent to which successful efforts are made to minimize the visual and acoustical impact of the elements on neighbors.

5.23.2 If the Ground Story of a building is elevated to meet the Flood Resilience Standards in Section 22.80 of this Zoning Ordinance, then the allowed height of buildings and structures as set forth in this Zoning Ordinance may be increased as-of-right to compensate for the difference between the Ground Story finished floor elevation and the Grade elevation. However, the allowed increase in height shall be no greater than the difference in elevation between the 1%-Probability Long-Term Flood Elevation as described in Section 22.80 and the Grade, or four (4) feet, whichever is less. The City Engineer shall certify that the Flood Resilience Standards in Section 22.80 are met prior to issuance of a building permit for a building or structure utilizing the provisions of this Section 5.23.2.

5.23.3 *Application of Height Limits to Residential and Non-residential Uses.* This Section explains how the height limits in the Table of District Dimensional Regulations in Section 5.30 apply.

(a) Buildings or portions of buildings used as Residences, listed in Section 4.31 a-j of this Zoning Ordinance, or Religious Purposes uses, listed in Section 4.33 a, are generally limited by the maximum number of Stories Above Grade and by the maximum building height above grade in feet, which is intended to enable the allowed number of Stories Above Grade while limiting excessive story height. Where there is no explicit limit on Stories Above Grade, including but not limited to special districts, overlay districts, or PUD districts, any number of Stories Above Grade shall be permitted within the applicable height limit.

(b) Buildings or portions of buildings used for any uses other than those listed in Section 4.31 a-j or Section 4.33 a of this Zoning Ordinance shall be considered non-residential and subject to the non-residential height limitations of the zoning district.

(c) In a mixed-use building containing both residential (as described in Paragraph (a) above) and non-residential (as described in Paragraph (b) above) uses, the limit on Stories Above Grade shall apply to the entire building. Portion(s) of the building devoted to uses described in Paragraph (b) above shall not be located above the non-residential height limit. Portion(s) of the building devoted to uses described in Paragraph (a) above may exceed the non-residential height limit but shall not exceed the residential height limit.

5.24 *Yards*.

5.24.1 Every part of a required yard shall be open to the sky and unobstructed, except that the following features may be located within a required yard:

(a) Awnings, arbors, fences, flagpoles, recreational, and laundry drying equipment and similar objects;

(b) Objects or structures intended exclusively for bicycle parking meeting the requirements of Article 6.000, which may be uncovered, partially covered or fully enclosed, provided that such objects or structures are not used for motor vehicle parking, general storage or any other use, and further provided that any such structure exceeding six feet (6') in height conforms to the requirements for an accessory building in Section 4.21;

(c) Beehives, apiaries, henhouses, and hen runs conforming to the Standards for Urban Agriculture in Article 23.000 of this Zoning Ordinance;

(d) Objects or equipment located in a required yard that are necessary for or appurtenant to a Public Bicycle-Sharing Station;

(e) Open or lattice-enclosed fire escapes for emergency use only;

(f) Projecting eaves, chimneys, bay windows, balconies, open fire escapes and like projections which do not project more than three and one-half (3½') feet and which are part of a building not more than thirty-five (35') feet in height or more than thirty-five (35') feet in height if portions of the building above that height contain residential uses listed in Section 4.31 a-i.;

(g) Shade Canopies as defined in this Zoning Ordinance, provided that any Shade Canopy exceeding seven feet (7') in height shall be set back at least five feet (5') from a side or rear lot line in a residential district; and

(h) Exterior steps, ramps, elevated walkways, porches, window wells, flood barriers, and other elevated features that provide protection or resilience from flooding on the lot, provided such features do not project more than twelve (12') feet beyond the line of the foundation wall of a building, are open to the air and are either unroofed or covered

only by a Shade Canopy, and are not elevated higher than four (4') feet above Grade or the 1%-Probability Long Term Flood Elevation as determined by the Flood Resilience Standards in Section 22.80 of this Zoning Ordinance, whichever is higher.

(i) Any required flood water retention systems or related facilities for lots subject to Floodplain Overlay District regulations in Section 20.70 of this Zoning Ordinance.

5.24.2 Existing conforming or pre-existing non-conforming buildings in existence prior to August 2, 2010, may encroach or further encroach into a required yard solely in order to install exterior insulation to an existing exterior wall, provided that such existing exterior wall is not moved or demolished except to remove and replace its exterior wall covering and that the requirements of either Paragraph (a) or Paragraph (b) below are met:

(a) The yard is not decreased by more than eight (8") inches from the pre-existing condition, the wall itself does not intrude more than eight (8") inches further into the existing yard, and the outer plane of the exterior wall after the installation of exterior insulation and exterior wall covering is not closer than three (3') feet to the nearest property line; or

(b) The Board of Zoning Appeal (BZA) has granted a special permit to exceed the limitations of Paragraph (a) above upon finding that, given the unique physical constraints of the building or the site, such relief is necessary to install exterior insulation that will substantively improve the thermal performance of the exterior wall envelope, that potential impacts to the safety or privacy of abutting uses will be mitigated, and that the general criteria set forth in Section 10.43 of this Zoning Ordinance are met.

5.24.3 On lots abutting streets on more than one side, the front yard requirements of each of the abutting streets shall apply regardless of designated front lot lines. Any remaining sides shall be subject to side yard requirements.

5.24.4 Measurements for minimum yards which are determined by formula shall be made in the following manner:

(1) "H" is the height of the building. "L" is the length of the wall measured parallel to the corresponding lot or street line. The front yard is measured from the street line, or building line where such has been established, except where otherwise indicated herein. For buildings of forty (40') feet or less in height the denominator in the yard formulas in the Tables in Section 5.30 may be increased by two subject to the minimum yard requirements set forth in footnotes a, b and c of Tables 5-1 and 5-2.

(2) Where a building consists of various roof levels an average height, or "H", may be used in the required yard formula. Average height is determined by adding the products of the height of each roof level facing the given lot line, (H1, H2, etc.) times the length of each roof level (L1, L2, etc.) and dividing the sum by the sum of the length of the levels (L1, L2, etc.) (see formula below)

$$\text{AVERAGE HEIGHT} = \frac{(H_1 \times L_1) + (H_2 \times L_2)}{L_1 + L_2}$$

(3) Where a building presents a variety of vertical planes to any given lot or street line, no plane shall be closer to the street or building line or lot line than permitted by the application to such plane of the appropriate formula in the tables of dimensional requirements in Section 5.30. For all planes set forward of the setback line required by said tables for the building if it were constructed in a single vertical plane, other planes must be set behind the setback line so calculated. The result shall be that the sum of the products of the setback required for each plane times the facing area of each plane respectively shall be at least as great as the product of the setback required by the appropriate table for the building if it were constructed in a single vertical plane times the facing area of the building if viewed as a single plane. (See illustration below):

The product of (setback 1 x facing area 1) + (setback 2 x facing area 2) MUST EQUAL OR EXCEED the product of (single plane setback) x (single plane facing area).

5.25 *Gross Floor Area (GFA) and Floor Area Ratio (FAR).*

5.25.1 Gross Floor Area shall include:

(a) Roofed porches and balconies that are enclosed on more than fifty percent (50%) of their perimeter and do not meet the definition of Shaded Area;

(b) Unroofed porches and balconies above the third floor except as provided in Section 5.25.2(j);

(c) Elevator shafts and stairwells on each floor, not excluded in Section 5.25.2(c) or (f);

(d) Attic space, whether finished or unfinished, within the area of a horizontal plane that is five (5) feet above the attic floor and which touches the side walls and/or the underside of the roof rafters and which is not excluded in Section 5.25.2(f);

(e) Interior balconies, mezzanines, and penthouses, and the area of each floor level of any interior courtyard in a building with more than two floors, whether or not covered by a roof, which has a minimum dimension of less than forty (40) feet in any direction unless twenty (20) percent or more of the perimeter of such courtyard at each floor level measured consecutively is not enclosed;

(f) Area of parking facilities in structures except as excluded in 5.25.2(b); and

(g) Any accessory parking spaces not in above ground structures if in excess of the maximum number permitted on the premises as set forth in Section 5.25.3 and 6.30.

5.25.2 Gross Floor Area shall not include:

(a) Areas used for off street loading purposes;

(b) Area of parking facilities in structures located underground and the area of on grade open parking spaces outside the building footprint at or below the maximum number permitted on the premises as set forth in Sections 5.25.3 and 6.30;

(c) Area in Stories Below Grade that meets at least one of the following criteria:

(i) The area has less than seven feet (7') of ceiling height measured from the floor to the line of the bottom of the floor joists above, or to any subfloor or finished surface above any floor joists that are spaced not less than four (4) feet on center; or

(ii) The area is designed in accordance with the Flood Resilience Standards set forth in Section 22.80 of this Zoning Ordinance.

(d) Open and lattice-work fire escapes;

(e) Unroofed porches and balconies no higher than the third floor;

(f) Areas located in any part of a building or site devoted to elevator machinery or mechanical equipment necessary for the operation and maintenance of the building, including heating and cooling equipment, electrical and telephone facilities, fuel storage, and sustainable mechanical systems and related equipment and chases for systems including, but not limited to, solar energy systems, geothermal systems and heat pumps, solar hot water systems and related tubes and tanks, equipment related to radiant heating, hydronic cooling, heat recovery ventilators, and energy recovery ventilators;

(g) Elevator shafts and stairwells on floors where there is no other area which qualifies to be included in Gross Floor Area, including headhouses that provide access to Green Roof Area;

(h) Attic space not included in Section 5.25.1(d);

(i) Bicycle parking meeting or exceeding the requirements of Article 6.000, which shall include all areas occupied by Bicycle Parking Spaces and access routes intended exclusively for use by bicycles, which shall be clearly indicated in the bicycle parking plan requirements set forth in Section 6.52.1 whether located in a principal use structure, any parking facility for motor vehicles, or in an accessory structure;

(j) Green Roof Area as defined in this Zoning Ordinance and constructed in accordance with the standards in Section 22.30 of this Zoning Ordinance, whether or not it meets the minimum Green Roofs Requirement in Section 22.35, as well as the area of adjacent impervious walkways, decks, and access headhouses intended for maintenance or enjoyment of the Green Roof Area, provided that such area is not greater than the Green Roof Area;

(k) Interior air spaces within a Double-Skin Façade as defined in Article 2.000 of this Zoning Ordinance, up to a maximum depth of one (1) foot, provided the space is not to be accessed except for maintenance purposes;

(l) Insulating material attached to the exterior of the structural elements of an external building wall;

(m) Shaded Area as defined in this Zoning Ordinance;

(n) Public Bicycle-Sharing Stations.

5.25.3 *FAR Exceptions for Parking and Loading Facilities*.

5.25.3.1 Loading Facilities. Areas used for off-street loading purposes shall be exempt from the requirements as to Floor Area Ratio but shall conform to all other requirements of the district in which it is located.

5.25.3.2 Parking Facilities in Structures. The floor area of an underground parking garage and the floor area of the underground portion of a structure devoted in whole or in part to parking automobiles, shall not be counted as Gross Floor Area and shall be exempt from the requirements as to floor area but shall conform to all other requirements of the district in which it is located. All other parking in structures shall be subject to the requirements as to Floor Area Ratio.

5.25.3.21 Area of Parking Facility. For the purposes of this Section 5.25.3 the area of parking in a structure shall include all parking spaces, access drives, aisles and other elements of the parking facility and shall include any portion of a parking facility located at grade beneath a building but not otherwise enclosed.

5.25.3.22 Definition of Underground. For the purposes of this Section 5.25.3 only, "underground " shall mean either of the following:

(1) The location of the entire parking facility below the finished grade of the ground abutting the structure, or the underground portion thereof, which grade is maintained naturally without any structural support. No more than two access drives, which in combination total no more than 30 feet in width, shall be permitted to be above the finished grade and still be considered to be located underground.

(2) The location of a portion of the facility above finished grade to the following extent: (1) the mean height of that portion of the parking facility above finished grade around the entire perimeter of the facility does not exceed four (4) feet, which grade is maintained naturally without any structural support (in no case, however, shall the height above mean grade for that portion of the facility facing a public street exceed four feet), and (2) the roof or top of the facility shall be either set beneath other, non-parking facility portions of the structure, landscaped or otherwise finished to serve as a pedestrian plaza, open space amenity, recreation area or pedestrian circulation. The height above mean grade shall be measured to the roof of the facility, or to the ceiling should the facility be set entirely below other non-parking elements of a building.

5.25.3.3 Exemption for Existing Parking Facilities. Structured parking facilities in existence on or before September 15, 2000, or constructed and occupied at a later date pursuant to a

building or special permit in conformance with all provisions of Chapter 40A issued prior to the effective date of the provisions of this Section 5.25, shall not be subject to the requirements as to Floor Area Ratio.

5.25.3.4 Exceptions to the Provisions of this Section 5.25.3

5.25.3.41 Exemption for Residential Parking Spaces. Notwithstanding the provisions of Section 5.25.3.2 above, the following structured parking located above ground, accessory to a residential use, shall not be calculated as part of the Gross Floor Area on the lot:

(1) One parking space located within a townhouse unit or a one, two or three family dwelling.

(2) A freestanding parking structure containing no more than one parking space per dwelling unit up to a maximum of three parking spaces on a lot containing a one, two or three family dwelling.

(3) One parking space per dwelling unit, up to a maximum of fifteen (15) spaces, for multifamily dwellings.

5.25.3.42 Where an above ground parking facility in a structure is proposed to be constructed (a) in the 100-year floodplain, identified as the Zone A flood hazard area (See Section 20.70), or as determined by credible evidence and calculations from a registered professional engineer or (b) on a contaminated site that is listed by the Massachusetts Department of Environmental Protection under the Massachusetts Contingency Plan (310 CMR 40.00) with a Release Tracking Number and has been tier classified, the Planning Board may grant a special permit to waive the limitations of this Section 5.25.3 so that the parking facility is not subject to the requirements in this Ordinance as to Floor Area Ratio provided only the minimum number of parking spaces required for the uses on the site are provided. In granting such a special permit, the Planning Board shall find the following:

(1) Where in a flood hazard area, the construction of a parking facility underground is (a) not technically feasible due to the requirements of the Massachusetts Wetlands Protection Act (M.G.L. ch. 131, s.40), (b) would require construction that would violate requirements or limitations of the Massachusetts Wetlands Protection Act, (c) would, in the view of the Cambridge Conservation Commission, seriously compromise the wetlands protection objectives of the Massachusetts Wetlands Protection Act, and (d) would result in costs of construction that are significantly greater than would otherwise be typical for the location were it not in a flood hazard area; or

(2) Where the site is contaminated, the construction of a parking facility underground (a) would, in the opinion of a Licensed Site Professional, pose significant risks to public health or the environment through disturbance of hazardous materials and could not be reasonably mitigated in accordance with state and federal regulations, (b) require construction that is prohibited by state or federal regulations related to hazardous wastes, and (c) would result in costs of construction that would render the project financially unfeasible; and

(3) The above ground facility is designed so as to reduce its actual or perceived bulk through, among other possible techniques, limiting the number of parking spaces it contains, placement of portions of the facility below grade where feasible, or its location relative to actively occupied portions of the construction. Construction above grade is discouraged that would increase the amount of impervious area on the lot.

5.25.4 *Application of FAR Limits to Residential and Non-residential Uses*. This Section explains how FAR limits in the Table of District Dimensional Regulations in Section 5.30 apply.

(a) GFA in buildings or portions of buildings used as Residences, listed in Section 4.31 a-j of this Zoning Ordinance, or Religious Purposes uses, listed in Section 4.33 a, shall not be subject to FAR limitations except where explicitly set forth in the standards for a particular district or overlay district, including but not limited to special districts or PUD districts. GFA in buildings or portions of buildings used as Residences shall be subject to other requirements as set forth in this Zoning Ordinance, including but not limited to Inclusionary Housing Requirements in Section 11.203.

(b) Buildings or portions of buildings used for any uses other than those listed in Section 4.31 a-j or Section 4.33 a of this Zoning Ordinance shall be considered non-residential and subject to the non-residential FAR limitations of the zoning district.

(c) On a mixed-use lot containing both uses not subject to FAR limitations (as described in Paragraph (a) above) and uses subject to FAR limitations (as described in Paragraph (b) above), the district FAR limitation shall only apply to the GFA occupied by uses subject to FAR limitations unless otherwise stated in the development controls for that district. In such cases, the GFA occupied by uses subject to FAR limitations shall be divided by the total area of the lot to determine compliance with non-residential FAR limitations.

5.25.5 *Calculation for lot in two or more zoning districts*.

To the extent that FAR or GFA limitations are applicable to a particular use**,** the maximum gross floor area permitted for that use on a lot located in two or more zoning districts shall be the sum of the total gross floor area permitted for that use in each portion of the lot, typically determined by multiplying the lot area in each district by the maximum allowed FAR for that use in that district and adding the results for each portion of the lot.

Maximum Gross Floor Area = (Lot area in district 1 x district 1 FAR applicable to that use) + (Lot area in district 2 x district 2 FAR applicable to that use)

5.26 [Deleted]

5.27 [Renumbered 5.25.5]

5.28 *Special Dimensional Standards Applicable to Dwellings*.

5.28.1 [Deleted]

5.28.2 *Conversion of Non Residential Structures to Residential Use*.

Where it is proposed to convert an existing principal use structure, designed and built for non residential use, to residential use (excluding Transient Accommodations listed in Section 4.31.1 and Trailer Park or Mobile Home Park listed in Section 4.31 (j)), the dimensional standards generally applicable in the district as set forth in the Tables of Dimensional Requirements in Section 5.30 and other applicable regulations in this Ordinance, including permitted uses, Section 4.30 - Table of Use Regulations, shall apply except where modifications are permitted, either as-of-right or after issuance of a special permit by the Planning Board, as set forth below. The provisions in this Section 5.28.2 shall apply in all zoning districts with the exception of districts with an Open Space designation.

Intent of this Section:

(a) To allow the economic reuse of buildings that may be substantially out of compliance with the dimensional requirements of the zoning district within which they are located, especially as they are converted to residential use.

(b) To encourage the preservation of buildings of historic or cultural significance by providing opportunities for reuse of the structures.

(c) To establish a framework of development standards and criteria within which existing non-residential buildings that are out of scale and character with surrounding residential uses can be converted to housing of an appropriate style and density while limiting potential negative impacts on neighbors.

5.28.20 *Allowed Uses*.

The Planning Board may by special permit authorize uses not otherwise allowed in the base zoning district, subject to the following conditions and limitations:

(a) The permitted uses shall be limited to the following:

(1) All residential uses listed in Section 4.31 (a-h), but specifically excluding Transient Accommodations listed in Section 4.31.1 and Trailer Park or Mobile Home Park listed in Section 4.31 (j).

(2) The following institutional uses: Religious uses (4.33.a); Public or non-profit educational uses (4.33.b.1); Private preschool, day care, kindergarten (4.33.b2); Local government or other government facility (4.33.f, 4.33.g); Private museum, library, non-commercial gallery (4.33.h.2).

(3) The following office uses: Office of an accountant, attorney, or other non-medical professional (4.34.b); Real estate, insurance or other agency office (4.34.c); General office use (4.34.d).

(4) Any uses allowed as accessory uses to the permitted principal uses.

(b) All permitted non-residential uses shall be limited to the ground floor or basement of the building. The Planning Board may permit non-residential uses to occupy other floors of the building only after determining that the location and design of such

spaces, including access and egress, will not impact the privacy or security of residential occupants. However, the total floor area occupied by non-residential uses shall not exceed the floor area of the ground floor and basement.

(c) The Planning Board shall determine that any proposed non-residential uses are generally compatible with residential uses in the area, including the dwelling units located within the same building, and will not cause harm or nuisance to surrounding uses.

(d) The Planning Board shall determine that by permitting non-residential uses, there will be a compensating reduction in the number of dwelling units that would otherwise be permitted, and that the proposed non-residential uses will balance the potential adverse impacts of additional residential units, such as demand for nighttime parking.

5.28.21 *GFA and FAR.*

Permitted residential and religious uses shall not be limited by GFA or FAR. Other permitted uses shall be subject to the FAR or GFA limitations applicable to non-residential uses in the zoning district.

5.28.22 *Dwelling Units*.

There shall be no limit on the number of dwelling units permitted.

5.28.23 *Yard Requirements*.

The required yards shall be those of the structure existing at the time of the conversion to residential use. However, any construction occurring outside the limits of the existing structure shall be subject to the yard requirements of the district in which the structure is located.

5.28.24 *Maximum Stories Above Grade and Building Height*.

(a) The maximum Stories Above Grade and maximum building height, respectively, shall be those permitted for residential uses in the district in which the structure is located, or the pre-existing conditions of the non-residential building, whichever are greater.

(b) Any construction that occurs outside the existing limits of the structure, other than construction exempt from the height limit as set forth in Section 5.23, shall be subject to the applicable maximum Stories Above Grade and building height limit of the district in which the structure is located.

(c) In granting a special permit, the Planning Board may approve the construction of additional Stories Above Grade beyond those permitted in Paragraph (a) if they are contained entirely within the existing structure and the Planning Board finds that the additional Stories provide space suitable for dwellings, in addition to meeting other applicable special permit criteria.

5.28.25 *Open Space Requirements*.

The open space requirement shall be that required in the district in which the structure is located, except as modified herein.

The dimensional and locational limitations for Private open space set forth in Section 5.22 shall not apply; any combination of at-grade private open space and decks and balconies at other levels shall be permitted as shall walks intended for non vehicular use. However, in every case where those requirements of Section 5.22 waived by this Paragraph (a) are not met, all portions of the surface of the lot shall be Green Area as defined in Article 2.000 that are (1) not covered by the building or (2) devoted to the minimum area necessary to provide at grade, conforming parking spaces and the minimum necessary circulation and driveways for no more than one parking space per dwelling unit. The amount of Private open space required may be reduced upon issuance of a special permit by the Planning Board should the Board find that full compliance cannot reasonably be expected given the existing development of the lot and the provision of parking necessary to serve the dwelling units. However, where open space requirements are not met, the Applicant shall explore the use of portions of the interior of the building to provide recreational opportunities not possible on the exterior.

5.28.26 *Conforming Additions*.

Conforming additions to such non-residential structures shall be permitted without reference to the limitations set forth in Section 8.22 for such additions to non-conforming structures.

5.28.27 *Required Parking*.

Off-street parking shall be provided as required in the Schedule of Parking and Loading Requirements, Section 6.36.

5.28.28 *Criteria for Approval of a Special Permit*.

In granting any special permit, the Planning Board shall consider the standards and criteria set forth in Sections 10.43 and the Urban Design Objectives set forth in Section 19.30 of this Ordinance in addition to the following review standards.

5.28.28.1 *Criteria Applicable to All Projects*.

(a) Privacy Considerations. Where significant variations from the normally required dimensional standards for the district are proposed, the Board shall evaluate the impact on residential neighbors of the new housing use and any other proposed use as it may affect privacy. The location and size of windows, screening elements, decks, entries, security and other lighting, and other aspects of the design, including the distribution of functions within the building, shall be reviewed in order to assure the maintenance of reasonable levels of privacy for abutters. In reviewing a proposed development plan, the Board shall consider, among other factors, the potential negative impacts of the new activity on abutters as a result of the location, orientation, and use of the structure(s) and its yards as proposed.

(b) Reduction in Open Space. Where it is proposed to reduce the amount of on-site Open Space below that required in the applicable district, the Board shall evaluate the proposal in light of the following:

(1) The extent to which screening and buffering from neighbors will be accomplished

(2) The quality and viability of the proposed open spaces as they are designed

(3) The tradeoff in benefits and negative impacts of the loss of green space in order to provide the required amount of parking, including consideration of the feasibility of alternate parking arrangements that might produce additional green area, such as placing some or all parking within the structure

(4) The availability of common recreational spaces within the building to compensate for the loss of usable outdoor open space

(c) Community Outreach. The Planning Board shall consider what reasonable efforts have been made to address concerns raised by abutters and neighbors to the project site. An applicant seeking a special permit under this Section 5.28.2 shall solicit input from affected neighbors before submitting a special permit application. The application shall include a report on all outreach conducted and meetings held, shall describe the issues raised by community members, and shall describe how the proposal responds to those issues.

5.28.28.2 *Additional Criteria Applicable to Larger Projects*.

Where the proposed project includes more than 10,000 Gross Square Feet or more than ten (10) dwelling units, and the proposed Stories Above Grade are increased above the maximum allowed under base zoning regulations, the Board shall evaluate the proposal in light of the following:

(a) The implications of the size or number of additional dwelling units on the anticipated demand for parking. In order to assist the Planning Board in evaluating parking impacts, an applicant for a special permit shall be required to submit a Parking Analysis, as set forth in Section 6.35.3 of the Zoning Ordinance, as part of the special permit application.

(b) The appropriateness of the proposed layout of floor space within the building for a multifamily residential use, with attention to the typical range of unit sizes and types that would be expected for housing in the neighborhood. Considerations may include the suitability of proposed unit configurations for a variety of households, the extent to which unusual unit sizes or shapes may impact parking or overall quality of life for residents or neighbors, and the availability of customary amenities for residents such as storage, utilities, common rooms and recreational facilities.

(c) The potential mitigating effects of the proposed occupancy of dwelling units. For instance, units designed for elderly residents or live/work spaces for professionals or artists may provide desirable housing options for Cambridge residents with fewer adverse impacts on parking or neighborhood character.

(Ord. No. 1413, 12-9-2019; Ord. No. 2022-9, 2-27-2023; Ord. No. 2024-2, 6-24-2024; Ord. No. 2025-1, 2-10-2025; Ord. No. 2025-2, 2-10-2025; Ord. No. 2025-9, 6-2-2025; Ord. No. 2025-12, 8-4-2025)

5.30 DISTRICT DIMENSIONAL REGULATIONS

5.30.1 Dimensional regulations shall apply as set forth in the table below for the indicated zoning districts. Refer to the applicable subsections of Section 5.20 for additional detail about how the below standards are applied.

Table 5-1: Table of District Dimensional Requirements

District	All Uses	Residential Uses (Section 4.31 a-j.) & Religious Purposes Uses (Section 4.33.a)				Non-Residential Uses (Section 4.30 except 4.31 a-j. & 4.33.a)				
	1. Min. Open Space Ratio (5.22)	*2. Max. Stories Above Grade (5.23)*	*3. Max. Building Height in feet (5.23)*	*4. Min. Front Yard Setback in feet (5.24)*	*5. Min. Side or Rear Yard Setback in feet (5.24)*	*6. Max. Building Height in feet (5.23)*	*7. Min. Front Yard Setback in feet (5.24)*	*8. Min. Side Yard Setback in feet (5.24)*	*9. Min. Rear Yard Setback in feet (5.24)*	*10. Max. FAR (5.25)*
5.31 Residence Districts										
Res. C-1	30%(1)	4(2)(37)	45(2)(37)	10(3)	5(4)	35	H+L(5) 4	H+L(14)(15) 5	H+L(7) 4	0.75
Res. C-1A	15%	6	75	10(3)	5(4)	45	10	H+L(12) 7	H+L(12) 5	1.25
Res. C-2	15%	7	85	10(3)	5(4)	85	H+L(5) 4	H+L(15) 5	H+L(7) 4	1.75
Res. C-2A	10%(10)	6	75	5(3)	5(4)	60	H+L(6)(9) 5	H+L(9)(15) 6	H+L(7) 5	2.5
Res. C-2B	15%	6	75	10(3)	5(4)	45	H+L(5)(11) 4	H+L(11)(15) 5	H+L(7)(11) 4	1.75
Res. C-3	10%	10	120	5(3)	5(4)	120	H+L(6) 5	H+L(15) 6	H+L(7) 5	3.0
Res. C-3A	10%	10	120	5(3)	5(4)	120	H+L(6)(8) 5	H+L(8)(15) 6	H+L(8) 5	3.0(8)
Res. C-3B	10%	10	120	10(3)	5(4)	120 (36)	10	none	none	3.0(13)(36)
5.32 Office Districts										
Office 1	15%	6	75	10(3)	none	35	H+L(5)(33) 4	H+L(34) 5	H+L(16)(34) 4	0.75
Office 2A	15%	6	75	10(3)	none	60 (36)	H+L(5)(33) 4	H+L(34) 5	H+L(16)(34) 4	1.25(36)
Office 2	15%	7	85	10(3)	none	70(36)	H+L(5)(33) 4	H+L(34) 5	H+L(16)(34) 4	1.50 (36)
Office 3	10%	10	120	5(3)	none	90 (36)	H+L(6)(33) 5	H+L(34) 6	H+L(16)(34) 5	2.0(36)
Office 3A	10%	10	120	5(3)	none	90 (36)	H+L(6)(33) 5	H+L(34) 6	H+L(16)(34) 5	2.0(36)
5.33 Business Districts										
Bus. A	none	6	75	none	none	35(36)	none(33)	none(34)	H+L(16)(34) 5	1.0(36)
Bus. A-1	none	6	75	none	none	35	none(33)	none(34)	H+L(16)(34) 5	1.0(36)
Bus. A-2	none	6	75	5(3)(28)	none	45(24) (36)	5(25)(33)	10(15)(22)(34)	20(23)(34)	1.0(36)

District	All Uses	Residential Uses (Section 4.31 a-j.) & Religious Purposes Uses (Section 4.33.a)				Non-Residential Uses (Section 4.30 except 4.31 a-j. & 4.33.a)				
	1. Min. Open Space Ratio (5.22)	*2. Max. Stories Above Grade (5.23)*	*3. Max. Building Height in feet (5.23)*	*4. Min. Front Yard Setback in feet (5.24)*	*5. Min. Side or Rear Yard Setback in feet (5.24)*	*6. Max. Building Height in feet (5.23)*	*7. Min. Front Yard Setback in feet (5.24)*	*8. Min. Side Yard Setback in feet (5.24)*	*9. Min. Rear Yard Setback in feet (5.24)*	*10. Max. FAR (5.25)*
Bus. A-3	30%	6	75	10[3]	none	35	H+L/4[3][33]	H+L/5[34]	H+L/4[16][34]	0.75[20]
Bus. A-4	none	6	75	10[3][28]	none	35[26] [36]	H+L/4[26][33]	H+L/5[26][34]	H+L/5[26][34]	1.0[26][36]
Bus. A-5	none	7 [27]	85 [27]	none	none	80[27] [36]	none[33]	none[34]	none[34]	1.0[27] [36]
Bus. B	none	7	85	none	none	80 [36]	none[33]	none[34]	none[34]	2.75 [36]
Bus. B-1	See note[18]	8	95[17]	none	none	55[17] [36]	none[33]	none[19][34]	none[19][34]	1.50[36]
Bus. B-2	See note[18]	6	75	none	none	45 [36]	none[33]	none[19][34]	none[19][34]	1.50[36]
Bus. C	none	6	75	none	none	55[21][35] [36]	none[33]	none[34]	20[23][34]	1.25[36]
5.34 Industrial Districts										
Ind. A-1	none	6	75	none	none	45 [36]	0[33]	0[29][34]	0[29][34]	1.25 [36]
Ind. A-2	none	6	75	none	none	70 [36]	0[33]	0[29][34]	0[29][34]	2.75 [36]
Ind. A	none	6	75	none	none	45[30] [36]	none[33]	none[34]	none[34]	1.25 [36]
Ind. B-1	none	6	75	none	none	60[36]	0[33]	0[34]	0[34]	1.5 [36]
Ind. B-2	none	6	75	10[3]	none	35	15[33]	0[29][34]	0[29][34]	0.75
Ind. B	none	10	120	none	none	120 [36]	none[33]	none[34]	none[34]	2.75[31][32] [36]
5.35 Open Space Districts										
OS	60%	N/A	N/A	N/A	N/A	35	25	15	25	0.25

(Ord. No. 1407, 4-29-2019; Ord. No. 2022-21, § 2, 4-3-2023; Ord. No. 2024-2, 6-24-2024; Ord. No. 2025-1, 2-10-2025; Ord. No. 2025-12, 8-4-2025)

5.40 FOOTNOTES TO THE TABLE OF DIMENSIONAL REQUIREMENTS

(1) At least fifty percent (50%) of the required Open Space in a Residence C-1 district shall meet all of the requirements of Section 5.22.1. In the case of a permitted non-residential use, the standards set forth in Section 5.22.1 shall be met for at least fifty percent (50%) of the required Open Space regardless of whether it meets the definition of Private Open Space. At least fifty percent (50%) of the required Open Space shall meet the definition of Permeable Open Space and shall not be subject to the dimensional limitations of Section 5.22.1 as applied to Private Open Space.

(2) The height of buildings or portions of buildings used as Residences or Religious Purposes Uses may exceed the base height limit, up to a maximum of 6 stories above grade and 74 feet above grade, if all of the following criteria are met:

(a) The building or portions of the building used as Residences complies with the Inclusionary Housing Requirements in Section 11.203 of this Zoning Ordinance, regardless of whether it exceeds the size threshold requiring compliance; and

(b) The area of the lot on which the building is located is not less than 5,000 square feet.

(3) A dwelling need not be set back from the street line, or building line where such may have been established on the lot, more than the average of the setbacks of the buildings, other than accessory buildings, on the lots adjacent thereto on either side.

(4) The required side or rear yard setback may be reduced in either of the ways described below:

(a) No side or rear yard setback shall be required for a building or portion thereof that directly abuts a building or portion thereof on an adjacent lot, as in the case of semi-detached dwellings or other adjoining buildings that share a party wall. However, portions of the building that do not directly abut portions of the building on an adjacent lot shall conform to the required side or rear yard setback.

(b) The required setback for one side yard of a lot may be reduced if the setbacks for two opposite side yards of the lot sum to at least 10 feet, and if no portion of a building is closer than 10 feet to the exterior wall of an existing building on an abutting lot.

(c) In the case of an alteration or addition to a building in existence since on or before January 1, 2025, the required side and rear yard setback distances shall be those of the existing building or structure. Additions or alterations that extend horizontally beyond the vertical walls of the existing building shall conform to the requirements in Table 5-1, as modified by paragraphs (a) and (b) above.

(5) Measured from the centerline of the street, but in no case may a non-residential building be nearer the street than ten (10) feet.

(6) Measured from the centerline of the street, but in no case may a non-residential building be nearer the street line than five (5) feet

(7) In no case may a non-residential building be nearer the rear lot line than twenty (20) feet in Residence C-2, C-2B, C-2A, C-3, C-3A, C-3B districts. In Residence C-1 districts, no non-residential building may be nearer the rear lot line than twenty (20) feet plus one additional foot of rear yard for each four feet that the depth of the lot exceeds 100 feet, up to a maximum of thirty (30) feet. For purposes of this Footnote, the lot depth shall be that distance measured along a line perpendicular to the front lot line and extending to that point on the rear lot line most distant from the front lot line.

(8) For buildings containing principal uses specified in Section 4.34:

(a) The FAR shall not exceed 1.25.

(b) The minimum front yards may be reduced to no less than five (5) feet measured from the street line.

(c) The minimum side yards may be reduced to no less than five (5) feet measured from the street line.

(9) In no case may a non-residential building on any lot which abuts or is separated only by a public or private way from a Residence C-1, C-2, or C-2B district be nearer the street line or side line of the lot than the minimum front and side yard requirements for a non-residential building in the residential district which said lot abuts or from which it is separated by a way. However, such increased setback requirements shall only apply to any part of a building which is located within one hundred and twenty five (125) feet of a Residence C-1, C-2, or C-2B district.

(10) The minimum ratio of open space to lot area required for a lot which abuts/or is separated only by a public or private way from a Residence C-1, C-2 or C-2B district shall be equal to the amount of open space required in the residential district which said lot abuts or from which it is separated by a way.

(11) Yard Requirements for non-residential buildings in the Residence C-2B District

(a) Setbacks—In the Residence C-2B District, non-residential buildings shall comply with these yard requirements by being set back above and below ground.

(b) Green Area—general. Two of the yards on a lot shall consist exclusively of green area as defined in section 2.000. Contrary to the provisions of said definition, hard surfaced walks and terraces shall not exceed twenty-five (25) percent of the area of each yard. At a minimum, green area setback shall consist of permanently maintained densely planted trees and shrubs that may be expected to form within three (3) years after the time of planting a continuous unbroken, year round visual screen. Every effort shall be made to retain the best existing trees in said setbacks to meet the requirements this section in whole or in part. Plans for landscaping and maintenance shall be approved

by the Committee on Public Planting as appointed by the City Manager. No Certificate of Occupancy may be granted until landscaping under the terms of this section is completed.

(c) Lots with more than four yards. If the shape of a lot creates a situation where there are more than four yards, this green area requirement shall apply to half of the yards, rounded up in the instance of an odd number of yards.

(d) Lots in two or more zoning districts. Where a zoning district boundary line or lines split a lot, a lot partially in the Residence C-2B district shall comply with provisions elsewhere in this zoning ordinance with regard to lots in two or more zoning districts, except that the setback and green area requirements of this footnote shall apply to all parts of the lot regardless of zoning district.

(e) Lots abutting more restrictively zoned districts. When any lot abuts a more restrictively zoned district or districts, all yards abutting the more restrictively zoned district)s) shall be designated as yards required to comply with the green area requirements of this footnote. This provision shall apply to that quantity of abutting yards numbering up to and including the maximum number of green area yards required by this footnote. The total number of green area yards required on a lot shall not be changed by the provisions of this subsection (5).

(f) Pedestrian and vehicular access.

(i) When a yard used to satisfy the Green Area Open Space requirement of this footnote is a front yard, the Green Area Open Space may be interrupted by not more than one path for pedestrian access to the building. Said pedestrian path shall be constructed perpendicular to the lot line and shall not be more than eight (8) feet wide. The green area yard may also be interrupted by not more than one driveway constructed perpendicular to the lot line and which is not more than twelve (12) feet wide.

(ii) The sum of the width of the said pedestrian path and driveway may not exceed the setback provided by the smallest of the yards provided on the lot.

(iii) The areas allowed to be used for access under this subsection (6) shall be counted as part of the twenty-five (25) percent of the total required green area which is allowed to be use for hard surfaced walks and terraces for the front yard in which the access areas are constructed.

(g) Townhouse Development When a lot is used for townhouse development, the provisions of this footnote shall apply to the lot before subdivision into townhouse lots. Subdivision into townhouse lots shall be done in such a manner as to not affect the application of this footnote to the entire unsubdivided lot. In particular, the pedestrian path and driveways allowed.

(12) These requirements may be reduced to a minimum required setback of ten (10) feet with the grant of a special permit from the Planning Board provided that the yard is suitably landscaped to effectively buffer the building walls from abutting lots.

(13) For purposes of calculating FAR and for no other purpose, notwithstanding the definition of Lot in Article 2.000, a Lot in the Residence C-3B district may contain non-contiguous parcels provided that all parcels are held in identical ownership, are all located within the Residence C-3B district or any abutting Business B district, and further provided that development on any contiguous portion of the lot does not exceed an FAR of 4.0.

(14) In a Residence C-1 District, no non-residential building plane (excluding projections as permitted by Section 5.24.2) may be nearer than seven feet, six inches (7'6") to a side lot line.

(15) In a Residence C-1, C-2, C-2A, C-2B, C-3, or C-3A district or Business A-2 district if a non-residential building is hereafter erected on a lot adjacent to a building having a blank wall directly on the side lot line, the new building may be so designed and erected that it will be flush with that portion of the blank wall of the former building which extends along the lot line; otherwise, however, not less than the required side yard shall be provided; in any case the required side yard shall be provided for the remainder of the full lot depth. In case a side wall contains windows or in case any part of a side blank wall of an existing building shall be set back from the side lot line, then a building hereafter erected on the lot adjacent to such an existing building shall be set back from the side lot line in accordance with the provisions thereof.

(16) In no case may a non-residential building be nearer the rear lot line than twenty (20) feet.

(17) The cornice line of the principal front wall plane of a non-residential building facing Massachusetts Avenue shall not exceed fifty-five (55) feet in height at the front lot line. Portions of non-residential buildings in excess of this height shall be set back behind a thirty-five (35) degree bulk control plane beginning at an elevation fifty-five (55) feet above the Massachusetts Avenue front lot line. The cornice line of the principal front wall plane of a non-residential building facing Green street shall not exceed thirty (30) feet in height at the front lot line. Portions of non-residential buildings in excess of thirty (30) feet shall be set back behind a forty-five (45) degree bulk control plane beginning at an elevation thirty (30) feet above the Green Street front lot line. No non-residential building or portion of a building within forty-five (45) feet of the Green Street front lot line shall exceed forty (40) feet in height.

(18) Open space requirements for a lot shall be determined by the mix of uses on the lot. Where one hundred (100) percent of the principal uses on a lot are residential uses listed in Subsections 4.31 a, b, d, e, and g, an area equivalent to fifteen (15) percent of the lot area shall be reserved as private open space. Where one hundred (100) percent of the principal uses on the lot are other uses, an area equivalent to fifteen (15) percent of the lot area shall be reserved as publicly beneficial open space. Where development on a lot contains both the aforesaid residential uses and other uses, an area equivalent to fifteen (15) percent of the lot area shall be devoted to both types of open space in relative proportion to the gross floor areas occupied by residential uses and other uses. The amount of each type of open space shall be determined by the formulae below. The results of said formulae notwithstanding, a minimum of fifteen (15) percent of the area of that portion of a lot within forty-five (45)

feet of a front lot line facing Green Street shall be devoted to landscaped green space as specified in Subsection 4.27.3. Where more than fifty (50) percent of the area of that portion of a lot is devoted to landscaped green space, as specified in Subsections 4.27.2 and 4.27.3, none of such green space shall be counted in determining compliance with this Subsection 5.332d. Where fifty (50) percent or less of the area of that portion of a lot is devoted to landscaped green space, such area may be counted in determining compliance with this Subsection 5.33 2d.

(a) Minimum required total area reserved for both types of open space = lot area multiplied by .15.

(b) Share of development devoted to residential uses = gross residential floor area divided by gross floor area of entire development.

(c) Minimum required private open space associated with residential use = total open space required multiplied by residential share.

(d) Share of development devoted to other uses = other gross floor area divided by gross floor area of entire development.

(e) Minimum required publicly beneficial open space = total open space requirement multiplied by other use share.

(19) Where any lot abuts a residential district, non-residential buildings above and below ground shall be set back a minimum of twenty (20) feet from the zoning district boundary line, notwithstanding anything to the contrary provided in Article 6.000 of this Ordinance. Said setback shall consist exclusively of landscaped green area as defined in Article 2.000. Where the zoning district boundary line splits a lot the minimum twenty (20) foot setback shall be measured from the lot line(s) located in the residential district. At a minimum green area setback shall consist of permanently maintained, densely planted trees and shrubs that may be expected to form within three (3) years after time of planting a continuous, unbroken, year round visual screen. Every effort shall be made to retain the best existing trees in said setbacks to meet the requirements of this section in whole or in part. Plans for landscaping and maintenance shall be approved by the Committee on Public Planting as appointed by the City Manager. No Certificate of Occupancy may be granted until landscaping under the terms of this section is completed.

(20) Subject to the provisions of Footnote 1 in Section 4.40 - Footnotes to the Table of Use Regulations.

(21) Thirty-five (35) feet [or maximum non-residential height permitted in the abutting residential district, but in no case higher than fifty-five (55) feet] within fifty (50) feet of a residential district line. Where the zoning district boundary splits a lot the fifty (50) feet shall be measured from the lot lines located in the residential district. The height, however, may exceed thirty-five (35) feet provided the non-residential building is set back a minimum distance equal to two-thirds (2/3) the height.

(22) However, for the side yard of any lot abutting another lot (where that lot does not abut Massachusetts Avenue and where all or a majority of it is located in a residence district) no non-residential building shall be set nearer than twenty feet to (1) either the residence/ Business A-2 zoning district line where the lot line is located in the BA-2 District or (2) the side lot line itself where that lot line is located in the residence district. Nevertheless, the provisions of footnote (15) shall continue to apply.

(23) Or two-thirds (2/3) of the height of the rear wall whichever is greater; however in the Business C district no rear yard shall be required where the rear lot line abuts a lot all of which lies in a business or industrial district.

(24) Provided however that any portion of a non-residential building having a height greater than thirty-five (35) feet shall be set back of a bulk control plane rising at an angle of forty-five (45) degree from the plane of the principal front wall and rear wall planes beginning at a height of thirty-five (35) feet.

Where the parcel has frontage on two or more streets, this setback plane provision shall apply only to the front wall plane facing the principal abutting arterial street and to the opposite wall plane facing either a side or front property line.

In addition to the above provisions, that portion of a non-residential building located within fifty (50) feet of a residential zoning district line shall be limited to thirty-five (35) feet where the maximum non-residential height permitted in the residential district is thirty-five (35) feet or less.

(25) Or the setback of the principal front wall plane of any adjacent building facing the same street, whichever is less.

(26) For development in which all parking is provided entirely below grade, the following dimensional modifications shall be allowed:

(a) FAR may be increased to 2.0

(b) Front, Side and Rear yard requirements for non-residential buildings shall be modified to a minimum of ten (10) feet. Sites with two front yards that have a radiused front yard where two streets intersect may be considered as if the adjoining property lines are projected to intersect. Projecting bays and roof decks which are located on portions of a non-residential building below thirty-five (35) feet in height shall be eligible for the setback exception allow in Section 5.24.2 even if the structure itself if greater than 35 feet in height.

(27) The following dimensional modifications shall apply in the Business A-5 district:

(a) For any portion of a building within fifty feet (50') of a residential district, the height of that portion of the building shall not exceed thirty-five feet (35').

(b) The Planning Board may grant a special permit to exclude Retail or Consumer Service Establishments, as listed in Section 4.35 of the Zoning Ordinance, from the calculation of Gross Floor Area (GFA) and Floor Area Ratio (FAR) on the lot if they are located on

the Ground Story. The conditions of the special permit shall clearly describe what areas are excluded and what range of uses shall be permitted, along with other conditions to ensure that the objectives of the area are met.

(c) Notwithstanding any other section of this Zoning Ordinance, roof decks on any Story of a building shall be exempt from gross floor area calculations provided the roof deck is not within 20' of a residential district.

(28) The required front yard for a dwelling constructed entirely above a commercial establishment shall be reduced to the existing or permitted front yard of the commercial establishment in any Business district except the Business A-3 district.

(29) A side yard setback of H+L/7 and a rear yard setback of H+L/5 shall be required only for nonresidential uses abutting residences, residential or open space districts or public parks and recreation areas. These requirements may be reduced to a minimum required setback of ten (10) feet on special permit, provided that the yard is suitably landscaped to effectively buffer building walls from abutting lots.

(30) One hundred and thirty (130) feet by special permit for buildings related to storage and processing of materials permitted in Section 4.37m.

(31) Except that within the area bounded by Binney Street on the north, a line one hundred and fifty (150) feet easterly of Cardinal Medeioros Avenue on the west, Broadway on the south, and the railroad right of way on the east, the FAR may be increased to 3.2 for non-residential uses for an addition to a building in existence as of June 1, 2001 provided that for each four hundred and fifty (450) square feet of GFA added above an FAR of 2.75 one existing parking space is permanently eliminated.

(32) In the Industry B District, a hotel use (Section 4.31.1.b) shall have a Maximum FAR of 4.0.

(33) In an Office, Business or Industrial district no non-residential building shall be erected nearer to the street line than is permitted in the adjacent Residence district within a distance of fifty (50) feet from the Residence district boundary line, except where such building is separated by a street from the Residence district.

(34) In Office, Business or Industrial districts no non-residential building shall be erected within ten (10) feet of the side lot line of any abutting lot, all or the major portion of which is in a Residence district.

(35) In a Business C district, within fifty (50) feet of a residential zone, no non-residential building shall be erected that is greater than thirty-five (35) feet in height.

(36) The maximum building height and FAR for Dormitory (but excluding resident fraternity or sorority) Uses, Section 4.33 b(7), shall be modified for certain districts as set forth in the table below. Where a lot contains a combination of dormitory and other non-residential uses, then the total FAR on the lot shall not exceed the maximum set forth in the table below, and the FAR for all non-residential uses other than Dormitory (determined by dividing the GFA occupied by all non-residential uses other than Dormitory by the total lot area) shall not exceed the maximum non-residential FAR otherwise applicable in the district.

District	*Maximum Building Height in Feet for Dormitories*	*Maximum FAR for Dormitories*
Res. C-3B	120	4.0
Office 2A	70	1.5
Office 2	85	2.0
Office 3	120	3.0
Office 3A	120	3.0
Bus. A	45	1.75
Bus. A-2	45	1.75
Bus. A-4	35 (subject to footnote 26 above)	1.75
Bus. A-5	80	3.0
Bus. B	80	3.0
Bus. B-1	90	3.25
Bus. B-2	45	3.0
Bus. C	55	2.0
Ind. A-1	45	1.50
Ind. A-2	70	4.0
Ind. A	45	1.50
Ind. B-1	70	3.0
Ind. B	120	4.0

(37) In a Residence C-1 district, an applicant for a building permit for a building that exceeds three stories above grade and 35 feet above grade, if it does not require a Planning Board Advisory Consultation per Section 19.40 of this Zoning Ordinance and does not require any special permit from the Planning Board, shall:

(i) schedule a meeting to show plans or renderings of the proposed building, answer questions and gather feedback from abutters;

(ii) prepare a notification flyer including, at a minimum, a general description of the project, the date, time, location, and other information necessary for people to attend the meeting, and contact information (telephone and e-mail, at minimum) for the developer;

(iii) provide that notification by mail to abutters, owners of land directly opposite on any public or private street or way, and abutters to the abutters within three hundred feet of the property line of the lot as they appear on the most recent applicable tax list, to the Community Development Department electronically for posting on the City of Cambridge website, and to others whom the applicant may choose to contact;

(iv) erect and maintain for a minimum of 20 days, beginning at least 10 days before the date of the meeting, a notification sign on the site of the proposed building containing the information in subparagraph (ii) above and meeting the Location and Number and Graphic and Construction Standards in Section 10.42.1, Paragraphs (a) and (d) of this Zoning Ordinance; and

(v) include with the building permit application a copy of the notification and mailing list, a photograph and site plan showing the location of the notification sign(s), a summary of the meeting, who attended, and what questions and feedback were received.

(Ord. No. 2025-1, 2-10-2025; Ord. No. 2025-12, 8-4-2025)

Editor's note—Ord. No. 2025-1, adopted Feb. 10, 2025, repealed the former 5.40, and enacted a new 5.40 as set out herein. The former 5.40 pertained to transitional requirements and derived from the original Zoning Ordinance.

5.50 SPECIAL DIMENSIONAL REGULATIONS

5.51 [Deleted]

5.52 [Deleted]

5.53 [Deleted]

5.54 *Special Regulations for Municipal Elementary and Middle ("K-8") Schools*. The following regulations shall apply to the reconstruction, alteration or expansion of existing municipal K-8 school uses. The regulations of this Section shall apply where development is proposed on lots where the existing and proposed principal use is a municipal K-8 school; however, such lots may include other uses customarily associated with a municipal K-8 school such as public recreation, public open space, community center, pre-school and after school programs or municipal library. Where a regulation in this Section 5.54 contradicts any regulation set forth elsewhere in the Zoning Ordinance, including the requirements of Article 8.000, the regulations of this Section 5.54 shall apply.

5.54.1 The following modifications to the dimensional, parking and other requirements applicable in the zoning district as set forth in Paragraphs (a-f) below shall be permitted upon issuance of a Building Permit by the Commissioner of Inspectional Services, subject to the limitation set forth in Paragraph (g) below:

(a) The maximum permitted Floor Area Ratio shall be the existing Floor Area Ratio for all buildings on the lot at the time of application for a Building Permit, or the maximum Floor Area Ratio allowed under the applicable zoning district regulations, whichever is greater.

(b) Areas located atop the roof of a building that are used as a playground or outdoor educational space for school-related activities shall not be included in the calculation of Gross Floor Area or Floor Area Ratio on the lot, provided that the space is substantially open to the sky (structures covered with web or netting shall not be considered enclosures).

(c) For any new structures, additions to an existing structure, or portions of a structure that are demolished and reconstructed in a residential zoning district, the minimum yard requirements otherwise applicable in the district shall not apply, provided that no new structure may be nearer than ten (10) feet to any public street or nearer than fifteen (15) feet to any other abutting lot line; however, for portions of a lot located within an Open Space zoning district, the minimum yard requirements in the base zoning district

shall apply. For existing portions of a structure which are neither demolished nor expanded, the required yards shall be those of the structure existing at the time of application for a Building Permit.

(d) For any new structures, additions to a structure, or portions of a structure that are demolished and reconstructed in a residential zoning district, the maximum building height shall be forty-five (45) feet, or the maximum height allowed under zoning district regulations, whichever is greater; however, for portions of a lot located within an Open Space zoning district, the maximum height in the base zoning district shall apply. For existing portions of a structure which are neither demolished nor expanded, the height of the existing structure shall be permitted.

(e) The minimum required number of off-street motor vehicle parking spaces shall be the number of legally existing off-street parking spaces on the lot or the minimum number of off-street parking spaces required by Article 6.000, whichever is fewer. Where existing parking spaces are proposed to be reconstructed or relocated, those spaces shall conform to the location, design and layout requirements of Article 6.000.

(f) The minimum required number of off-street loading bays shall be the number of legally existing off-street loading bays on the lot or the minimum number of off-street loading bays required by Article 6.000, whichever is fewer. Where loading bays are proposed to be reconstructed or relocated, those loading bays shall conform to the location, design and layout requirements of Article 6.000.

(g) The provisions set forth in Paragraphs (a-f) above shall apply only if there is no net reduction in the area of Public Recreational Open Space on the lot. For the purposes of this Section 5.54, Public Recreational Open Space shall be defined as any contiguous outdoor space having both a width and length of at least twenty-five (25) feet that is available for customary recreational use by the general public and that meets the definition of Public Open Space as set forth in Article 2.000 of this Zoning Ordinance. Notwithstanding anything to the contrary in the definition of Public Open Space, areas beneath unenclosed structures that are accessory to outdoor public recreational uses, such as play structures, shading devices or player dugouts, may be counted as Public Recreational Open Space. Public Recreational Open Space may be altered or relocated on the lot, provided that the total area of space meeting the definition herein is not decreased.

5.54.2 Where it is proposed to reconstruct, alter or expand an existing municipal K-8 school use, any dimensional, parking or other zoning requirements, including those set forth in Section 5.54.1 above, may be waived upon the granting of a special permit by the Planning Board, subject to the conditions and limitations set forth below.

(a) The Floor Area Ratio on the lot shall not exceed the existing Floor Area Ratio on the lot, except that the Planning Board may approve an increase in Floor Area Ratio to 1.25 for any portion of the lot located within a residential zoning district (but excluding portions of the lot located within an Open Space zoning district).

(b) For portions of a lot located within an Open Space zoning district, the minimum yard requirements in the base zoning district shall continue to apply to any new buildings or additions to buildings.

(c) In a residential zoning district, the maximum height of any new building or addition to a building shall not exceed fifty-five (55) feet, except that the Planning Board may approve heights of up to sixty-five (65) feet for portions of a building located at least fifty (50) feet from any lot line. In an Open Space zoning district, the height of any new building or addition to a building shall not exceed the maximum height allowed in the base zoning district.

(d) The minimum off-street parking requirement shall not be waived except upon issuance of a special permit for Reduction in Required Parking under Section 6.35.1. The Planning Board may approve a reduction in the number of required loading bays upon finding that the proposed loading bays are sufficient to serve the school use. New parking spaces and loading bays shall conform to the location, design and layout requirements of Article 6.000.

(e) The net area of Public Recreational Open Space on the lot, as defined in Subsection 5.54.1, Paragraph (g) above, shall not be reduced by more than ten percent (10%) of the existing area. In approving any net reduction in Public Recreational Open Space, the Planning Board shall make a determination that the proposed Public Recreational Open Space shall provide benefits to the general public that are at least commensurate with the existing Public Open Space on the lot.

(f) In addition to the General Special Permit Criteria set forth in Section 10.43 and the Citywide Urban Design Guidelines set forth in Section 19.30, the Planning Board shall make a determination that the proposed changes to the lot have been designed to minimize or mitigate adverse impacts on neighboring residential properties. In making this finding, the Planning Board shall consider the following:

(i) Arrangement of building height and bulk within the lot.

(ii) Access and egress for pedestrians, bicycles and motor vehicles, including pick-up and drop-off areas for buses and cars.

(iii) Location and screening of functions such as parking, loading, trash handling and mechanical equipment.

(iv) Current impact of existing buildings and existing patterns of use on the site.

(Ord. No. 2025-1, 2-10-2025)

ARTICLE 6.000 OFF STREET PARKING AND LOADING REQUIREMENTS AND NIGHTTIME CURFEW ON LARGE COMMERCIAL THROUGH TRUCKS

6.10 INTENT AND APPLICABILITY OF PARKING, BICYCLE PARKING AND LOADING REQUIREMENTS
6.20 OFF STREET PARKING REGULATIONS
6.30 PARKING QUANTITY REQUIREMENTS
6.40 DESIGN AND MAINTENANCE OF OFF STREET PARKING FACILITIES
6.50 PARKING PLAN INFORMATION REQUIREMENTS
6.60 PURPOSE AND INTENT OF LOADING REQUIREMENTS
6.70 APPLICATION OF LOADING REQUIREMENTS
6.80 REQUIRED AMOUNT OF LOADING FACILITIES
6.90 LOCATION AND LAYOUT OF LOADING FACILITIES
6.100 BICYCLE PARKING

6.10 INTENT AND APPLICABILITY OF PARKING, BICYCLE PARKING AND LOADING REQUIREMENTS

6.11 *Intent.* It is the intent of this Article 6.000 to reduce traffic congestion, noise, vibrations, fumes and safety hazards caused by large commercial trucks, thereby promoting the safety, health and welfare of the public, by establishing requirements for off street parking, bicycle parking and loading and restrictions on the use of City street during the night-time by large commercial trucks with points of origin and destinations outside the City of Cambridge in order to implement the purposed of the Zoning Act, Section 2A of Chapter 808, and Article 1.000. Section 1.30 of the Cambridge Zoning Ordinance, including:

- to lessen congestion in the streets;
- to conserve health;
- to conserve the value of land and buildings;
- to prevent pollution of the environment;
- to protect residential neighborhoods from incompatible activities; and
- to preserve and increase the amenities of the city.

The regulations for parking, bicycle parking and loading spaces herein vary according to type, location and intensity of development in the different zoning districts, and to proximity of public transit facilities. This Article 6.000 allows development to provide adequate parking facilities to meet the reasonable needs of all building and land users without establishing regulations which unnecessarily encourage automobile usage. The parking and bicycle parking standards contained herein are intended to encourage public transit, bicycle usage and walking in lieu of automobiles where a choice of travel mode exists. It is also the purpose of this Article to allow flexibility in providing parking through shared or off site arrangements in order to accommodate the automobile in the urban environment in a less disruptive way. Development regulations and design standards have been established to reduce hazard to

pedestrians on public sidewalks, to ensure the usefulness of parking, bicycle parking and loading facilities, and where appropriate, to avoid potential adverse impacts on adjacent land uses, and to enhance the visual quality of the city.

6.12 *Applicability*. The off street parking and loading provisions of this Article 6.000 shall apply as follows:

(a) For new structures erected and new uses of land established or authorized after the effective date of this Article 6.000 or any amendment thereto, as well as for external additions of Gross Floor Area to existing structures for any use, accessory off street parking and loading facilities shall comply with the regulations for the districts in which such structures or uses are located.

In the case of an addition of Gross Floor Area to an existing structure (lawfully erected prior to the effective date of this Article 6.000 or any amendment thereto), which addition contains nonresidential uses, loading facilities shall only be required when the total of such additions occurring from the effective date of this Article 6.000 or any amendment thereto increases the Gross Floor Area of the existing structure by fifteen (15) percent or more and shall be provided for the total increase in intensity subsequent to the effective date of this Article 6.000 or any amendment thereto.

(b) When the intensity of an existing use within any existing structure (or lot in the case of 6.36.7 l and m and 6.36.8 f and g) is increased through addition of dwelling units, floor area, seating capacity or other units of measurement specified in Section 6.30 or Section 6.60 (but not including any uses in a new external addition to that structure, which shall be subject to the provisions of Paragraph (a) above), loading facilities shall be provided as required for such increase in intensity of use and accessory off-street parking may be provided if it conforms to the regulations for the use and district.

However, a nonresidential use lawfully established prior to the effective date of this Article 6.000 or any amendment thereto shall not be required to provide loading facilities for such increase unless and until the aggregate increase in units of measure shall equal fifteen (15) percent or more of the units of measurement existing upon said effective date. If such an increase occurs, additional loading facilities as required herein shall be provided for the total increase in intensity subsequent to the effective date of this Article 6.000 or any amendment thereto.

(c) When the use of an existing structure (but not including the use of a new external addition to that structure, which shall be subject to the provisions of Paragraph (a) above) is changed to a new nonresidential use, compliance with the schedule of parking requirements in Subsection 6.36 and the schedule of loading requirements in Subsection 6.60 shall be required. Any maximum requirements specified in Subsection 6.36, as well as minimum requirements, shall be applicable to such changes in use. However, if said structure was lawfully erected prior to the effective date of this Article 6.000 or any amendment thereto, additional loading facilities shall be required

only to the extent that the required amount for the new nonresidential use would exceed the amount required for the previous use if said previous use were subject to the schedule of parking and loading requirements.

(d) When the nonresidential use of an existing structure is changed to a residential use, off street parking facilities shall conform to the schedule of parking requirements in Subsection 6.36. Any maximum requirements specified in Subsection 6.36, as well as minimum requirements, shall be applicable to such changes in use.

(e) Bicycle Parking. Bicycle parking shall be provided according to the requirements set forth in Section 6.100. Wherever the term "parking" is used in this Zoning Ordinance without specific reference to bicycles, such term shall refer to parking for motor vehicles and not bicycles. However, if said structure was lawfully erected prior to the effective date of this Article 6.000 or any amendment thereto and the nonresidential use of the structure is proposed to be changed to an Affordable Housing Project as herein defined, additional off street parking facilities shall be required as provided above, except that for that portion of the Project consisting of Affordable Units additional off street parking shall be provided at the rate of 60% of the parking otherwise required in Section 6.36. For purposes of this Section 6.12 (d) an Affordable Housing Project shall be a residential development in which at least fifty percent (50%) of the dwelling units are considered Affordable Units for occupancy by Eligible Households as defined in Section 11.200 of the Zoning Ordinance.

6.13 *Scope of Off Street Parking Regulations*. All accessory parking facilities shall conform to all regulations set forth in this Article governing the use, design and operation of such facilities. However, the provisions of this Article 6.000, notwithstanding, any special parking requirements for planned unit developments specified in Article 13.000, for projects in the Mixed Use Development District specified in Article 14.000 or for special permits specified elsewhere in this Ordinance shall be applicable for those projects, except that the minimum accessory off-street parking required for all uses in those instances shall be zero (0) parking spaces.

6.14 *Restoration*. When an existing structure or use is restored and resumes operation after being destroyed or damaged by fire, explosion, or other catastrophe, bicycle parking and loading facilities shall be provided at least equivalent to that in existence at the time of such destruction or damage. If the extent of such damage is such that the cost of restoration is fifty (50) percent or more of the replacement value of the structure or use, bicycle parking and loading facilities meeting the requirements of this Article 6.000 shall be provided. However, in no case shall it be necessary to replace or continue any bicycle parking or loading facilities which were in excess of those required by the requirements for equivalent amounts of new uses or construction.

6.15 *Existing Parking Facilities*. Accessory off street parking facilities established after March 15, 1961, shall not hereafter be reduced below - of if already less than, shall not be further reduced below - the minimum requirements under the provisions of this Article 6.000.

Accessory off street parking facilities in existence as of March 15, 1961 shall only be required if such facilities have been used to satisfy parking requirements after March 15, 1961.

6.16 *Dedicated Off Street Parking Facilities*. Off street parking facilities, provided in accordance with these regulations, which after development are later dedicated to and accepted by the City and maintained by the City for off street parking purposes, shall be deemed to continue to serve the structures or uses for which they were originally provided.

6.17 *Compatibility with the E.P.A. Clean Air Regulations*. In addition to the regulations contained in this Article, all off street parking facilities must comply with restrictions contained in the Transportation Control Plan for the Metropolitan Boston Interstate Air Quality Control Region as promulgated by the United State Environmental Protection Agency to the extent the same are in force and effect.

6.18 *Compatibility with Handicapped Access Rules*. In addition to the regulations contained in this Article 6.000, all off street parking facilities must comply with the currently applicable "Rules and Regulations of the Architectural Barriers Board of the Commonwealth of Massachusetts" to the extent the same are in force and effect.

(Ord. No. 2022-5, 10-24-2022; Ord. No. 2025-1, 2-10-2025)

6.20 OFF STREET PARKING REGULATIONS

6.21 *Use*. All accessory parking facilities provided in accordance with this Article shall be maintained exclusively for the parking of motor vehicles so long as the use exists which the facilities were designed to serve. Such facilities shall not be used for automobile sales, dead storage, or repair work, dismantling or servicing of any kind, with the exception of emergency service when needed. Notwithstanding anything to the contrary in this Ordinance, parking facilities maintained in accordance with this Article 6.000 may be used by Carsharing Vehicles subject to the provisions and limitations set forth in Section 6.24 of this Zoning Ordinance.

6.22 *Location*. All accessory off street parking facilities shall be located in accordance with the provisions of subsections 6.22.1, 6.22.2 and 6.22.3. For purposes of this Section 6.22 lot shall also mean the Development Parcel of any Planned Unit Development regulated by the provisions of Article 12.000 and Article 13.000 without regard to a lot or lots that may initially constitute the Development Parcel or any lot or lots created within the Development Parcel subsequent to the approval of the PUD by the Planning Board.

6.22.1 Accessory off street parking facilities may be located on the same lot as the use being served or on another lot that has the same or less restrictive zoning classification as the lot on which the use being served is located in accordance with the following conditions:

(a) (1) Said other lot is contiguous to the lot on which the use being served is located; or

(2) Said other lot is within three hundred (300) feet of the lot on which the use being served is located and the use being served is nonresidential; or

(3) Said lot is within three thousand (3000) feet of the lot on which the use being served is located, such use is an institutional use listed in Subsection 6.36.3b and said use is located within a five acre area containing one or more lots, contiguous except for streets, owned by a single institution; and

(b) Said lot is not now and was not within the past five (5) years the location of a preferably preserved significant building (as defined in the General Ordinances of Cambridge) as determined by the Cambridge Historical Commission.

(c) However, no off site accessory parking facilities shall be allowed to meet the requirements for Subsection 6.36.5h "Theatre or hall for public gatherings".

6.22.2 The Board of Zoning Appeal may grant a special permit for off site accessory parking not allowed in Subsection 6.22.1 (a) provided that convenient and safe access from the parking facility to the use being served is provided in accordance with the following conditions:

(a) No off site accessory parking facility may be located on a lot which has a more restrictive zoning classification than the lot on which the use being served is located.

(b) Off site accessory parking facilities shall be located within four hundred (400) feet of the lot being served for residential uses and within one thousand (1000) feet of the lot for other uses.

6.22.3 [PARAGRAPH DELETED]

6.22.4 Accessory off street parking spaces provided under the provisions of this Article 6.000 need not be in the City of Cambridge.

6.22.5 *Distance Measurements For Parking Facilities.* In all cases where distance measurements between a lot and off site parking facilities or other specified area are specified in this Article 6.000, such distance shall be measured as a straight line from the nearest point for the lot on which the off site accessory parking is located, to the nearest transit station entrance, or to the nearest street line or other boundary of another specified area.

6.23 *Control of Off Site Parking Facilities*. Where accessory parking facilities are allowed on land other than the lot on which the use being served is located said other land shall be in identical ownership or binding commitments shall exist to guarantee, to the reasonable satisfaction of the Superintendent of Buildings or to the special permit granting authority, that the off site parking will continue to be available for the period during which the use or uses that the parking serves may be expected to be in existence. Such commitments shall be evidenced by negotiated lease agreement, recorded covenant or comparable legal instrument. Such instrument shall be duly recorded at the Middlesex County Registry of Deeds and certification of such recording provided to the Superintendent of Buildings or the special permit granting authority.

6.24 *Carsharing Provisions*. The provisions of this Section 6.24 shall govern the allowed use parking spaces for Carsharing. Where the provisions of this Section 6.24 may conflict with any requirements set forth elsewhere in this Ordinance, the provisions of this Section shall control.

6.24.1 *Intent*. This Section 6.24 is intended to allow the limited use of parking spaces for Carsharing as a means to provide mobility options for Cambridge residents, employees and visitors who may not possess a private automobile, thereby promoting City goals by increasing mobility, reducing reliance on automobile ownership and use, and lessening the total demand for parking spaces.

6.24.2 *Definitions.* For the purpose of this Ordinance, Carsharing shall mean the use of parking spaces by Carsharing Vehicles and Carsharing Organizations, as defined below:

(a) Carsharing Vehicle shall be defined as a private motor vehicle that is made available to members of a Carsharing Organization primarily for hourly or other short-term use through a self-service fully automated reservation system, but not by means of a separate written agreement that is entered into each time a vehicle is transferred to a customer. A Carsharing Vehicle must be owned, maintained or administered by a Carsharing Organization.

(b) Carsharing Organization shall be defined as a membership-based entity with a distributed fleet of Carsharing Vehicles that charges a use-based fee related to a specific vehicle.

6.24.3 *General Limitations:*

(a) Carsharing Vehicles shall only be allowed in parking facilities that are lawfully established and conforming to the dimensional and other requirements of Article 6.000, or, if not, are lawfully non-conforming.

(b) A Carsharing Vehicle authorized to this Section 6.24 shall be properly registered with the Registry of Motor Vehicle.

(c) A Carsharing Vehicle located within an authorized parking facility shall be maintained for active use by authorized operators and not stored for other purposes. No sales, servicing, dead storage, repair, administrative or similar functions shall occur and no personnel shall be employed on the site except for occasional short-term maintenance of vehicles (such as interior vacuuming) unless otherwise permitted by the use regulations in the zoning district.

(d) Carsharing Vehicles administered by a Carsharing Organization shall be routinely accessed directly by users without any assistance or supervision by company personnel.

(e) All owners of that portion of a lot accommodating the operation or parking of a Carsharing Vehicle, or their legally authorized representative, including a condominium association where applicable, shall be required to grant permission for the operation or parking of a Carsharing Vehicle on their property.

(f) Parking spaces devoted to Carsharing Vehicles shall be registered with the Traffic, Parking and Transportation Department (TPTD), which shall keep a recorded of the address, location, number of spaces, property ownership, and Carsharing Organization if applicable, and certify that such spaces may accommodate the operation of

Carsharing Vehicles in accordance with all applicable laws, rules, or regulations. If any such spaces are relocated within a facility, or if the property ownership or Carsharing Organization is changed, then the registration with TPTD shall be updated accordingly within one month. TPTD may promulgate more detailed regulations pertaining to the safe operation as to which parking spaces on a lot are best suited to Carsharing Vehicles operations.

(g) Prior to assigning parking spaces for use by Carsharing Vehicles, the Carsharing Organization shall send a written notification to all residential dwellings within one hundred (100) feet of the facility in which the spaces are located, including any access and egress drives. Notifications shall be sent to individual dwelling units or to a residential building manager if applicable, to distributed to residents. The notification shall, at a minimum, provide contact information for the Carsharing Organization so that residents may ask questions or report concerns related to the operation of the Carsharing Vehicles. A copy of notification and a list of the addresses to which it was sent shall be provided to TPTD upon register the parking spaces.

6.24.4 *Principal Use Parking Provisions:*

(a) Within principal use parking facilities established under the provisions of Section 4.32(b) (Automobile Parking Lot for Private Passenger Car) or Commercial Parking Facilities registered with the Department of Traffic, Parking and Transportation per the provisions of Chapter 10.16 of the Cambridge Municipal Code, there shall be no limitations on the number of Carsharing Vehicles that may be maintained for active use at the facility.

(b) Notwithstanding anything to the contrary in this Ordinance, the maintenance of Carsharing Vehicles for active use within a principal use or commercial parking facility in accordance with this Section 6.24 shall not cause any change in the use designation of that facility or affect any other regulation that may be applicable to that facility.

6.24.5 *Accessory Parking Provisions.*

(a) Within parking facilities that are accessory to non-residential uses, there shall be no limitation on the number of Carsharing Vehicles that may be maintained for active use at the facility.

(b) Within parking facilities that are accessory to residential uses, the number of parking spaces maintained for active use by Carsharing Vehicles shall not exceed twenty-five percent (25%) of either the minimum number of parking spaces required by zoning or special permit or the number of parking spaces provided to serve the principal residential use on the lot, whichever is greater.

(c) Driveways of single-family residential homes may not be used by Carsharing Vehicles, except when the Carsharing Vehicle is being used by a resident of or visitor to the single family home.

(d) Notwithstanding anything to the contrary in this Ordinance, the maintenance of Carsharing Vehicles within an accessory parking facility in accordance with this

Section 6.24 shall not cause any change in the use of that facility nor any violation of the accessory parking requirements applicable to the principal uses served by that facility, provided that such Carsharing Vehicles are available for use by any occupant of the principal use that is otherwise qualified to operate a motor vehicle. Where a Carsharing Vehicle is owned or operated by a Carsharing Organization, ordinary fees and other terms of service may apply.

6.24.6 *Allowed Modifications.*

(a) Grandfathering. Parking spaces that were lawfully used by Carsharing Vehicles as of the date of the first publication of notice of the public hearing by the Planning Board of this Section 6.24 shall be allowed to continue to be maintained for active use by Carsharing Vehicles regardless of whether or not the limitations of this Section 6.24 are met. All such parking spaces must be registered with the Cambridge Traffic, Parking and Transportation Department in accordance with Section 6.24.3, paragraph (g) within six months of the date of adoption of this Section.

(b) Special Permit. The Planning Board may approve any modifications to the limitations set forth in Section 6.24.5 upon issuance of a special permit, which shall be granted if the Planning Board finds that the requested modification is consistent with the intent set forth in Section 6.24.1 and conforms to the general special permit criteria set forth in Section 10.43 of this Zoning Ordinance.

6.25 *Flexible Parking Corridor Regulations.* The parking regulations of this Zoning Ordinance may be modified as set forth in this Section 6.25.

6.25.1 *Intent*. It is the intent of this Section 6.25 to allow greater flexibility for the use of existing underutilized Off Street Parking Facilities and vacant lots to serve parking needs in areas where on-street parking is limited.

6.25.2 *Applicability*. The provisions of this Section shall apply to any Lot, as defined in Article 2.000, that directly abuts one or more of the following streets or street segments. Such lot must also have existing curb cut access and must either contain principal or accessory parking facilities in existence on the date of adoption of this Section 6.25 or be a vacant lot on which all buildings or land have been abandoned or not used since no later than 2 years before such date of adoption.

Flexible Parking Corridors:

- Aberdeen Avenue between Huron Avenue and Mount Auburn Street
- Acorn Park Drive
- Ames Street
- Belmont Street between the City Line and Mount Auburn Street
- Bennett Street
- Binney Street between the Grand Junction Corridor and Land Boulevard
- Bow Street between Massachusetts Avenue and Dewolfe Street

- Brattle Street
- Broadway
- Brookline Street between Granite Street and Massachusetts Avenue
- Cambridge Street
- Cambridgepark Drive west of Steel Place
- Concord Avenue between Blanchard Road and Birch Street
- Dewolfe Street between Bow Street and Memorial Drive
- Eliot Street
- First Street between Cambridge Street and Binney Street AND between Athenaeum Street and Main Street
- Franklin Street between Western Avenue and Magazine Street
- Galilei Way
- Garden Street between Huron Avenue and Massachusetts Avenue
- Granite Street between Pearl Street and Brookline Street
- Hampshire Street
- Huron Avenue between Grove Street and Concord Avenue
- JFK Street between Eliot Street and the City Line
- Kirkland Street between Oxford Street and the City Line
- Magazine Street between Franklin Street and Massachusetts Avenue
- Main Street
- Massachusetts Avenue
- Mount Auburn Street
- Museum Way
- New Street between the Danehy Park Driveway and Fresh Pond Mall property line
- North First Street
- Peabody Street
- Pearl Street
- River Street
- Somerville Avenue
- Steel Place between Alewife Station Access Road and Cambridgepark Drive
- Sidney Street Extension
- Third Street between Binney Street and Broadway
- Quincy Street between Kirkland Street and Harvard Street

- University Road between Mount Auburn Street and Bennett Street
- Vassar Street
- Waverly Street between Brookline Street and Henry Street
- Webster Avenue
- Western Avenue

6.25.3 *Relaxation of Requirements.* Notwithstanding the requirements otherwise applicable in the zoning district or set forth elsewhere in this Article 6.000, a lot meeting the criteria in Subsection 6.25.2 above may be used in the following ways. Except as provided in this Section 6.25, all other applicable requirements of this Zoning Ordinance shall be in effect.

(a) Commercial Parking. Parking spaces may be used as-of-right as Commercial Parking Spaces as defined in Chapter 10.16 of the Cambridge Municipal Code, provided that they comply with the applicable provisions of Chapter 10.16.

(b) Shared Parking. Parking spaces may be used as-of-right to serve principal uses located on other lots that abut any one or more of the Flexible Parking Corridors listed in Subsection 6.25.2. The requirements for control of off-site parking facilities in Section 6.23 shall not apply.

6.25.4 *Limitations.*

(a) Where existing parking facilities are used, no more than the number of spaces in existence as of the date of adoption of this Section 6.25 may be used as set forth in Subsection 6.25.3. Modifications to the existing parking facility may be permitted if they do not further violate any standards of Section 6.40 Design and Maintenance of Off Street Parking Facilities.

(b) On a vacant lot, parking may be provided temporarily for a period of no more than two years, in which case it shall not be subject to the standards for Design and Maintenance of Off Street Parking Facilities in Section 6.40, but must conform to the minimum standards set forth below.

1. Signage containing the following information must be visibly displayed on the lot:
   i. Name and contact information of either the owner or the lessee (if the lot is leased to no more than one entity).
   ii. Contact Information for any contracted tow company.
   iii. An indication of who is allowed to park in the lot. For example, "Parking allowed only by permission of the owner" or "Parking for customers of [Business Name] only."
2. Only the existing curb cut access may be used, and may not be enlarged.
3. A barrier or barriers (such as a curb stop or fence) must be installed along the perimeter sufficient to prevent parked vehicles from encroaching into the street or sidewalk and to prevent vehicles from entering or exiting the lot anywhere other than via the existing curb cut.

(c) A vacant lot may be used as parking for more than two years only if it is designed and maintained to conform with the standards in Section 6.40.

(d) The requirements of the Parking and Transportation Demand Management Ordinance, where applicable, shall be met. All new parking spaces created shall be registered with the Cambridge Traffic, Parking and Transportation Department per Section 10.18.040.

(Ord. No. 2022-5, 10-24-2022; Ord. No. 2024-5, 12-23-2024)

6.30 PARKING QUANTITY REQUIREMENTS

6.31 *Required Amount of Parking*. Off street parking facilities shall be allowed for each use of a lot or structure in the amount specified in the schedule of parking requirements contained in Subsection 6.36. Said schedule specifies the maximum amount of accessory off street parking allowed for each type of land use listed in "Table of Use Regulations" in this Ordinance. The maximum amount of allowed parking is also based on the intensity of development permitted in the district in which the use is located. Notwithstanding any other provision in this Zoning Ordinance, the minimum accessory parking required for all uses shall be zero (0) parking spaces, including in all overlay districts.

(a) Developers building more than 4 units of housing and/or Projects subject to Article 19 (Project Review Special Permit) shall provide a written report as part of the public record and permitting process detailing the number of proposed parking and loading spaces, and how that number was determined, including any surveys, parking demand studies or other research that was conducted.

(b) The Community Development Department shall provide the City Council with an impact report no later than July 2025 detailing the number of parking spaces and residential housing units that were added subsequent to the adoption of this provision and any discernible impacts the ordinance has had on the availability of on-street parking.

6.31.1 The schedule of parking requirements in Subsection 6.36 specifies the unit of measure regulating the provision of parking spaces. Square footage requirements are geared to gross floor area. Each unit of measure, however, shall specifically not apply to any Gross Floor Area devoted to parking facilities, which shall not require the provision of any accessory parking.

6.31.2 In general the schedule in Subsection 6.36 specifies a maximum amount of parking [Example: for a general office use (6.36.4 d) in a Business C district, the maximum is one space per 400 square feet of gross floor area.] Where there are two such listings the first is the minimum requirement and the second is the maximum limitation. Relief from the parking requirements may be obtained only after the grant of a special permit as provided in Section 6.35 below. With the grant of a special permit the maximum parking limitation may be exceeded provided, however, that the provisions with regard to gross floor area as set forth in Section 6.31.3 are met.

6.31.3 Any parking spaces provided in excess of the maximum requirements specified in Section 6.36 shall be counted in determining Gross Floor Area. In such cases a proportional share of the entire parking facility (not only the area of the spaces) shall be credited toward Gross Floor Area. The area counted as Gross Floor Area shall be determined by multiplying the total area of the parking facility by the percentage that the proposed number of spaces exceeds the maximum allowed number of spaces.

6.31.4 For uses not listed in Subsection 6.36, the Board of Zoning Appeal shall determine the required amount of parking if it issues a use variance for such use.

6.31.5 All commercial uses shall also be required to provide a parking space for each commercial vehicle customarily used in conjunction with the operation of such use at such location.

6.32 *Parking Exemptions*.

6.32.1 *Small Business.* The minimum amount of parking required by Subsection 6.36 Schedule of Parking and Loading Requirements shall be waived for any nonresidential use in an office, business, or industrial district if such use would require four (4) or fewer spaces, and such nonresidential use is located in a building or row of attached buildings which contains a total of ten thousand (10,000) square feet or less of gross floor area devoted to nonresidential use. Furthermore, for a new nonresidential use within a building in existence on or before October 19, 2020, no new accessory parking shall be required.

6.32.2 *Institutions*. Where an institution provides dormitory, fraternity, faculty, employee or other residence accommodations, the number of parking spaces provided as a result thereof may be deducted from the requirements established to satisfy the needs of classrooms, libraries, lecture halls, laboratories, similar educational areas or dining facilities normally used by such residential occupants. In order to qualify for such deduction, the institutional applicant shall submit to the Building Department the institution's current residential parking plan clearly indicating the location of all existing and proposed residential parking facilities available at the institution.

6.33 *Computation*. Where a building or lot is used by two or more activities that fall into different classes of use in Subsection 6.36, the off street parking requirements shall be the sum of the requirements for each individual use. Parking spaces for accessory uses shall be determined in the same manner as for principal use. Where the computation results in a fractional number, only a fraction of one half or more shall be counted as one. Where the computation of parking requirements for a building with more than one class of use results in multiple fractional numbers, such fractions shall be carried to the final sum.

6.34 *Parking Space Size Allocation*. In all parking facilities containing five or more spaces, a combination of regular and compact spaces may be provided; however, no more than fifty (50) percent of the provided spaces shall be designed for compact cars (as specified in Subsection 6.42). All off street parking facilities shall contain spaces designed for handicapped access. The number of such spaces shall be determined by the requirements of the currently applicable "Rules and Regulations of the Architectural Barriers Board of the Commonwealth of Massachusetts."

6.35 *Relief from Parking Requirements*. Any required amount of parking may be reduced by issuance of a special permit from Board of Zoning Appeals, as provided below. However, handicapped parking required by Subsection 6.34, and commercial vehicle parking required by Subsection 6.31.5 shall not be reduced from the original requirement. Bicycle parking requirements may not be modified pursuant to this Section 6.35, and may be modified only as allowed in Section 6.100. The parking maximum limitation may be exceeded only with the grant of a special permit from the Planning Board, as provided below, subject to the provisions with regard to Gross Floor Area as provided in Section 6.31.3.

6.35.1 *Reduction of Required Parking*. Any minimum required amount of parking may be reduced only upon issuance of a special permit from the Board of Zoning Appeals. A special permit shall be granted only if the Board determines and cites evidence in its decision that the lesser amount of parking will not cause excessive congestion, endanger public safety, substantially reduce parking availability for other uses or otherwise adversely impact the neighborhood, or that such lesser amount of parking will provide positive environmental or other benefits to the users of the lot and the neighborhood, including specifically, among other benefits, assisting in the provision of affordable housing units. In making such a determination the Board shall also consider whether or not less off street parking is reasonable in light of the following:

(1) The availability of surplus off street parking in the vicinity of the use being served and/or the proximity of an MBTA transit station.

(2) The availability of public or commercial parking facilities in the vicinity of the use being served provided the requirements of Section 6.23 are satisfied.

(3) Shared use of off street parking spaces serving other uses having peak user demands at different times, provided that no more than seventy-five (75) percent of the lesser minimum parking requirements for each use shall be satisfied with such shared spaces and that the requirements of Subsection 6.23 are satisfied.

(4) Age or other occupancy restrictions which are likely to result in a lower level of auto usage; and

(5) Impact of the parking requirement on the physical environment of the affected lot or the adjacent lots including reduction in green space, destruction of significant existing trees and other vegetation, destruction of existing dwelling units, significant negative impact on the historic resources on the lot, impairment of the urban design objectives of the city as set forth in Section 19.30 of the Zoning Ordinance, or loss of pedestrian amenities along public ways.

(6) The provision of required parking for developments containing affordable housing units, and especially for developments employing the increased FAR and Dwelling unit density provisions of Section 11.200, will increase the cost of the development, will require variance relief from other zoning requirements applicable to the development because of limitations of space on the lot, or will significantly diminish the environmen-

tal quality for all residents of the development. For a project seeking a reduction in required off-street parking for residential uses, a Parking Analysis shall be required as part of the Special Permit Application as set forth in Section 6.35.3.

6.35.2 *Exceeding Maximum Allowed Parking*. Any maximum allowed amount of parking may be exceeded only upon issuance of a special permit from the Planning Board. Any parking area in excess of the maximum limitation will have an impact on calculation of gross floor area as provided at Section 6.31.3. The Planning Board shall grant a special permit to allow exceedance of a maximum limitation only upon making the following determinations:

(1) Reasonable parking and transportation demand management measures are being implemented to reduce the need for the additional off street parking;

(2) The additional spaces reflect parking demand that exceeds that which is common for this use as categorized in Section 6.36, owing to unique characteristics of the users or the activity that result in a high level of automobile parking demand;

(3) The additional parking demand cannot reasonably be accommodated through contract or other arrangement making use of available off-site parking;

(4) The additional parking will provide positive environmental or other benefits to the users of the lot, to the neighborhood and the City which outweigh adverse effects, after consideration of the following: congestion, traffic increases on residential streets, danger to public safety or deterioration of travel conditions for pedestrians, cyclists or users of public transit.

In its decision the Planning Board shall cite evidence supporting its determinations, and may impose such conditions as are necessary to mitigate all negative impacts on the neighborhood and the environment which would otherwise result from the greater allowed amount of parking.

6.35.3 *Parking Analysis*.

6.35.31 The purpose of a Parking Analysis is to provide quantitative data to assist a special permit granting authority in considering certain projects. A Parking Analysis shall be submitted where it is specifically required by any provision of this Zoning Ordinance. A special permit granting authority may also request that elements of a Parking Analysis be provided when considering a project that proposes a deviation from parking requirements specified in the Zoning Ordinance or an increase in development density above the maximum allowed as-of-right under base zoning regulations.

6.35.32 Where a Parking Analysis is specifically required by any provision of this Zoning Ordinance, the proponent shall first consult with the Traffic, Parking and Transportation Department to determine the scope and methodology of such an analysis. The results of the Parking Analysis shall be included in any Special Permit Application for the project.

6.35.33 For residential projects, a Parking Analysis shall include some or all of the following, with the specific type and level of analysis to be determined by the Traffic, Parking and Transportation Department based on the relevant characteristics of the proposal:

(a) Estimates of the project's parking demand, as evidenced by vehicle ownership rates and peak parking occupancy data for comparable nearby residential projects, resident parking permit and motor vehicle registration data for the area, and/or other indicators of parking demand. These estimates should account for daytime and nighttime parking. Estimates may account for differences in parking demand given the occupancy of units, such as owner-occupied vs. rental units, market-rate vs. below-market-rate units, or elderly-oriented vs. conventional units. Estimates may also account for anticipated vacancy rates.

(b) Maps showing the distance to alternate transportation options in the area, including MBTA rapid transit stations and bus routes, bike facilities, and car-sharing services.

(c) Studies of on-street parking capacity and utilization in the vicinity of the project. Such studies should be conducted at night, and should account for the normal activity hours of other land uses in the area.

(d) Where applicable, inventories and peak occupancy data for nearby off-site parking that will be available to the project's residents or visitors, either on a round-the-clock basis or by way of a shared use arrangement. Private, off-site parking shall only be applicable to the analysis if a long-term leasing arrangement is proposed to be made. Shared parking arrangements should be studied thoroughly to determine the minimum amount of parking required to satisfy the demand from all proposed land uses during any given time period.

(e) A description of measures that will be implemented to reduce demand for private automobile use, such as the availability of car-sharing programs and/or incentives for residents or employees to walk, bicycle, or use public transportation, and estimates of the anticipated impact of those measures on parking demand.

6.36 *Schedule of Parking and Loading Requirements*. Off street parking shall be provided as shown in the following table. Where one entry is given in the table, it is the maximum requirement. All square foot measurements refer to gross floor area unless specified otherwise. The abbreviation "d.u." means dwelling unit. The abbreviation n/a means not applicable. In cases where a requirement is expressed in number of seats, twenty (20) square feet of public floor area shall equal one seat if there are no fixed seats. One column of the table contains the loading requirement standard applicable under Section 6.80 for each use and two columns refer to the Long-Term Bicycle Parking and Short-Term Bicycle Parking requirements applicable under Section 6.107 for each use.

Land Use Category		Maximum Off Street Parking Requirements in Open Space	Maximum Off Street Parking Requirements in Res C-1, C-1A, Off 1, Bus A (Comm), Bus A-1, A-2, Bus A-3[14], A-4, Bus A-5, Ind A-1, Ind B-2, Ind C	Maximum Off Street Parking Requirements in Bus. C, C-1, Ind A, Off 2, 2A, Res C-2, C-2A, Res C-2B, Bus A (res)	Maximum Off Street Parking Requirements in Ind B-1, Res C-3, C-3A, C-3B, Off 3-A, 3, Bus B, Ind A-2, Ind B, Bus B-1, B-2	Loading Facility Cate-gory	Long-Term Bicycle Parking (6.107.2)	Short-Term Bicycle Parking (6.107.3)
6.36.1	**Residential Uses**							
a.	Detached dwelling occupied by not more than one family	No max	No max	No max	No max	n/a	R1	R1
b.	Two family dwelling	No max	No max	No max	No max	n/a	R2	R2
c.	[Deleted]							
d.	Townhouse development	No max	No max	No max	No max	n/a	R2	R2
e.	Elderly oriented housing, elderly oriented con-gregate housing	No max	No max	No max	No max	n/a	R3	R3
f.	[Deleted]							
g.	Multifamily dwelling	n/a	No max	No max	No max	n/a	R2	R2
h.	[Deleted]							
i.	Lodging House	n/a	No max	No max	No max	E	R4	
j.	Trailer park or mobile home park	n/a	No max	No max	n/a	n/a	R2	R2
6.36.1.1	**Transient accommodations**							
a.	Tourist house	n/a	No max	No max	No max	n/a	R5	R5
b.	Hotel or Motel	n/a	No max	No max	No max	E	R5	R5
6.36.2	**Transportation, Communication & Utility Uses**							
a.	Bus or railroad passenger station	n/a	No max	No max	No max	n/a	N5	N3
b.	Automobile parking lot or parking garage for private passenger cars	n/a	n/a	n/a	n/a	n/a	P	P
c.	Railroad freight terminal, railroad yards and shops	n/a	n/a	n/a	No max	A	N5	N5
d.	Truck or bus terminal, yard or building for stor-age or servicing of trucks, trailers or buses; parking lot for trucks	n/a	n/a	No max	No max	A	N5	N5
e.	Radio and television transmission station, in-cluding towers	n/a	No max	No max	No max	A	N5	N5
f.	Radio and television studio	n/a	No max	No max	No max	D	N1	N5

Land Use Category		Maximum Off Street Parking Requirements in Open Space	Maximum Off Street Parking Requirements in Res C-1, C-1A, Off 1, Bus A (Comm), Bus A-1, A-2, Bus A-3[14], A-4, Bus A-5, Ind A-1, Ind B-2, Ind C	Maximum Off Street Parking Requirements in Bus. C, C-1, Ind A, Off 2, 2A, Res C-2, C-2A, Res C-2B, Bus A (res)	Maximum Off Street Parking Requirements in Ind B-1, Res C-3, C-3A, C-3B, Off 3-A, 3, Bus B, Ind A-2, Ind B, Bus B-1, B-2	Loading Facility Cate-gory	Long-Term Bicycle Parking (6.107.2)	Short-Term Bicycle Parking (6.107.3)
g.	Telephone exchange, transformer station, substation, gas regulator, or pumping station	n/a[6]	No max	No max	No max	A	N5	N5
h.—k.	Reserved							
l.	Cannabis Courier Establishment	n/a	No max [16]	No max [16]	No max [16]	A	N5	N5
6.36.3	**Institutional Uses**							
a.	Religious Purposes							
	1. Place of worship	No max	No max	No max	No max	F	N5	N3
	2. Rectory, parsonage	No max	No max	No max	No max	n/a	R1	R1
	3. Convent, monastery	No max	No max	No max	No max	n/a	R4	R4
	4. Social or recreation center	No max	No max	No max	No max	F	N5	N3
	5. Other use with religious purposes	No max	No max	No max	No max	F	N5	N3
b.	Educational Purposes							
	1. Preschool, day care center kindergarten	No max	No max	No max	No max	F	E1	E1
	2. Primary School	No max	No max	No max	No max	F	E1	E1
	3. Secondary School	No max	No max	No max	No max	F	E1	E1
	4. College or university athletic facility, audito-rium, theater or similar facility, any of which is customarily accessible to the general public on a paid admission fee or other basis.	n/a	No max	No max	No max	F	E2[15]	E3[15]
	5. College or university laboratory or research facility customarily involving radioactive materials and other controlled substances, high intensity electromagnetic radiation or chemical or biological processes which could entail a high level of danger to the public health.	n/a	1 per 300 sq. ft.	1 per 500 sq. ft.	1 per 1200 sq. ft.	F	E2	E2
	6. Other college or university faculty							
	a. Dining halls, canteens and similar eating facilities	No max	No max	No max	No max	E	E2	E3

Land Use Category		Maximum Off Street Parking Requirements in Open Space	Maximum Off Street Parking Requirements in Res C-1, C-1A, Off 1, Bus A (Comm), Bus A-1, A-2, Bus A-3[14], A-4, Bus A-5, Ind A-1, Ind B-2, Ind C	Maximum Off Street Parking Requirements in Bus. C, C-1, Ind A, Off 2, 2A, Res C-2, C-2A, Res C-2B, Bus A (res)	Maximum Off Street Parking Requirements in Ind B-1, Res C-3, C-3A, C-3B, Off 3-A, 3, Bus B, Ind A-2, Ind B, Bus B-1, B-2	Loading Facility Category	Long-Term Bicycle Parking (6.107.2)	Short-Term Bicycle Parking (6.107.3)
	b. Administrative faculty and staff offices, teaching facilities, libraries, museums, service facilities and facilities not specified in 6.36.3-4, 5, or 8.	1 per 300 sq. ft.	1 per 300 sq. ft	1 per 500 sq. ft	1 per 1200 sq. ft.	F	E2	E2
	7. Vocational or other schools	n/a	No max	No max	No max	F	E1	E1
	8. Group residential and related facilities							
	a. Dormitories	n/a	No max	No max	No max	E	R4	R4
	b. Fraternities and sororities	n/a	No max	No max	No max	E	R4	R4
c.	Non-Commercial Research Facilities							
	1. Laboratory or other research facility customarily involving research with radioactive materials, controlled substances, radiation or chemical or biological processes potentially entailing a high level of danger to the public health and safety	n/a	1 per 300 sq. ft.	1 per 400 sq. ft.	1 per 670 sq. ft.	F	N2	N5
	2. Private library or study center	No max	No max	No max	No max	F	N5	N3
	3. Other noncommercial research facilities	n/a	1 per 300 sq. ft.	1 per 400 sq. ft.	1 per 670 sq. ft.	F	N2	N5
d.	Health Care Facilities							
	1. Hospital	n/a	No max	No max	No max	E	N3	N4
	2. Infirmary	n/a	No max	No max	No max	E	N3	N4
	3. Nursing home, convalescent home	n/a	No max	No max	No max	E	N3	N4
	4. Clinic not affiliated with any other institution	n/a	No max	No max	No max	E	N3	N3
	5. Clinic affiliated with a hospital or accredited university medical school	n/a	No max	No max	No max	E	N3	N3
	6. Clinic connected to a community center	No max	No max	No max	No max	E	N3	N3
	7. Other health care facilities	n/a	No max	No max	No max	E	N3	N3
e.	Social Service Facilities							
	1. Social service center	No max	No max	No max	No max	F	N5	N3
	2. Community center	No max	No max	No max	No max	F	N5	N3
	3. Community residence	n/a[6]	n/a[6]	n/a[6]	n/a[6]	E	R4	R4

Land Use Category		Maximum Off Street Parking Requirements in Open Space	Maximum Off Street Parking Requirements in Res C-1, C-1A, Off 1, Bus A (Comm), Bus A-1, A-2, Bus A-3[14], A-4, Bus A-5, Ind A-1, Ind B-2, Ind C	Maximum Off Street Parking Requirements in Bus. C, C-1, Ind A, Off 2, 2A, Res C-2, C-2A, Res C-2B, Bus A (res)	Maximum Off Street Parking Requirements in Ind B-1, Res C-3, C-3A, C-3B, Off 3-A, 3, Bus B, Ind A-2, Ind B, Bus B-1, B-2	Loading Facility Category	Long-Term Bicycle Parking (6.107.2)	Short-Term Bicycle Parking (6.107.3)
	4. Personal Care lodging house	n/a	n/a[6]	n/a[6]	n/a[6]	E	R4	R4
f.	Local government							
	1. Administrative office	n/a	1 per 300 sq. ft.	1 per 400 sq. ft.	1 per 670 sq. ft.	F	N1	N3
	2. Fire or police station	No max	No max	No max	No max	n/a	N3	N5
	3. Library or museum	No max	No max	No max	No max	F	N5	N3
	4. Municipal service facilities	No max	No max	No max	No max	A	N1	N3
	5. Public parks, playgrounds or public recreation building	No max	No max	No max	No max	n/a	N5[15]	N3[15]
g.	Other governmental facilities	n/a	n/a	n/a	n/a	n/a	N3	N5
h.	Other institutional uses							
	1. Club, lodge or other fraternal or sororal meeting facility	No max	No max	No max	No max	F	N5	N3
	2. Museum or noncommercial gallery (including facilities for cultural and ethnic heritage appreciation)	No max	No max	No max	No max	F	N5	N3
	3. Cemetery	No max	No max	No max	No max	n/a	N5	N5
	4. Other institutional use	n/a[6]	n/a[6]	n/a[6]	n/a[6]	F	n/a[6]	n/a[6]
6.36.4	**Office and Laboratory Use**							
a.	Office of a physician, dentist or other medical practitioner not located in a clinic listed under Subsection 4.33(d) n/a	n/a	1 per 150 sq. ft.	1 per 200 sq. ft.	1 per 330 sq. ft.	F	N1	N5
b.	Office of an accountant, attorney, or other nonmedical professional person n/a	n/a	1 per 250 sq. ft.	1 per 350 sq. ft.	1 per 600 sq. ft.	F	N1	N5
c.	Real estate, insurance or other agency office n/a	n/a	1 per 250 sq. ft.	1 per 350 sq. ft.	1 per 600 sq. ft.	F	N1	N5
d.	General office use n/a	n/a	1 per 400 sq. ft.	1 per 400 sq. ft.	1 per 500 sq. ft.	F	N1	N5
e.	Bank, trust company or similar financial institution	(ground floor) n/a	1 per 200 sq. ft.	1 per 300 sq. ft.	1 per 530 sq. ft.	F	N1	N3
		(upper floor)	1 per 300 sq. ft.	1 per 400 sq. ft.	1 per 670 sq. ft.	F	N1	N5

Land Use Category		Maximum Off Street Parking Requirements in Open Space	Maximum Off Street Parking Requirements in Res C-1, C-1A, Off 1, Bus A (Comm), Bus A-1, A-2, Bus A-3[14], A-4, Bus A-5, Ind A-1, Ind B-2, Ind C	Maximum Off Street Parking Requirements in Bus. C, C-1, Ind A, Off 2, 2A, Res C-2, C-2A, Res C-2B, Bus A (res)	Maximum Off Street Parking Requirements in Ind B-1, Res C-3, C-3A, C-3B, Off 3-A, 3, Bus B, Ind A-2, Ind B, Bus B-1, B-2	Loading Facility Category	Long-Term Bicycle Parking (6.107.2)	Short-Term Bicycle Parking (6.107.3)
f.	Technical office for research development laboratory or research facility subject to the restrictions in Section 4.21(m)	n/a	1 per 525 sq. ft.	1 per 525 sq. ft.	1 per 670 sq. ft.	F	N2	N5
6.36.5	**Retail Business and Consumer Service Establishments** Retail Business and Consumer Service Establishment, not otherwise defined	n/a	1 per 250 sq. ft.[6]	1 per 500 sq. ft.[6]	1 per 600 sq. ft.[6]	B[6]	N4[6]	N2[6]
a-1.	Convenience Store	n/a	1 per 500 sq. ft.	1 per 700 sq. ft.	1 per 1200 sq. ft.	B	N4	N1
a-2.	Merchandise Store	n/a	1 per 250 sq. ft.	1 per 500 sq. ft.	1 per 600 sq. ft.	B	N4	N2
a-3.	Grocery Store	n/a	1 per 500 sq. ft.	1 per 700 sq. ft.	1 per 1200 sq. ft.	B	N4	N1
b.	Craft Retail and Production Shop	n/a				A	N5	N5
c.	Personal Services Establishment	n/a	1 per 500 sq. ft.	1 per 700 sq. ft.	1 per 1200 sq. ft.	D	N4	N2
d.	Reserved							
e.	Reserved							
f-1.	Restaurant	n/a	1 per 200 sq. ft.	1 per 400 sq. ft.	1 per 600 sq. ft.	C	N3	N1
f-2.	Bar	n/a	1 per 200 sq. ft.	1 per 400 sq. ft.	1 per 600 sq. ft.	C	N3	N1
f-3.	Craft Beverage Establishment	n/a	1 per 200 sq. ft.	1 per 400 sq. ft.	1 per 600 sq. ft.	C	N3	N1
f-4.	Food Stand or Kiosk	n/a	1 per 200 sq. ft.	1 per 400 sq. ft.	1 per 600 sq. ft.	C	N3	N1
f-5.	Food Hall	n/a	1 per 200 sq. ft.	1 per 400 sq. ft.	1 per 600 sq. ft.	C	N3	N1
g.	Dance Hall or Nightclub	n/a	1 per 200 sq. ft.	1 per 400 sq. ft.	1 per 600 sq. ft.	C	N3	N1
h.	Theater	n/a	1 per 200 sq. ft.	1 per 400 sq. ft.	1 per 600 sq. ft.	F	N5	N1
i-1.	Commercial Recreation Establishment	n/a	1 per 200 sq. ft.	1 per 400 sq. ft.	1 per 600 sq. ft.	F	N4	N1
i-2.	Fitness Center	n/a	1 per 200 sq. ft.	1 per 400 sq. ft.	1 per 600 sq. ft.	F	N4	N1
j.	Funeral Home	n/a	No max	No max	No max	F	N4	N2
k.	Reserved							
l.	Animal Services Facility	n/a	1 per 150 sq. ft.	1 per 200 sq. ft.	1 per 330 sq. ft.	F	N3	N3
m.	Sales place for new and used cars, vehicle rental agencies	n/a	1 per 500 sq. ft.	1 per 700 sq. ft.	1 per 1200 sq. ft.	C	N5	N5
n.	Reserved							

Land Use Category		Maximum Off Street Parking Requirements in Open Space	Maximum Off Street Parking Requirements in Res C-1, C-1A, Off 1, Bus A (Comm), Bus A-1, A-2, Bus A-3[14], A-4, Bus A-5, Ind A-1, Ind B-2, Ind C	Maximum Off Street Parking Requirements in Bus. C, C-1, Ind A, Off 2, 2A, Res C-2, C-2A, Res C-2B, Bus A (res)	Maximum Off Street Parking Requirements in Ind B-1, Res C-3, C-3A, C-3B, Off 3-A, 3, Bus B, Ind A-2, Ind B, Bus B-1, B-2	Loading Facility Category	Long-Term Bicycle Parking (6.107.2)	Short-Term Bicycle Parking (6.107.3)
o.	Quick-Service Food Establishment	n/a	1 per 200 sq. ft.	1 per 400 sq. ft.	1 per 600 sq. ft.	C	N3	N1
q-1.	Art/Craft Studio[13]	n/a	No max	No max	No max	n/a	N1	N5
q-2.	Performing Arts Studio[13]	n/a	No max	No max	No max	n/a	N1	N5
r.	Bakery, Retail	n/a	1 per 500 sq. ft.	1 per 700 sq. ft.	1 per 1200 sq. ft.	B	N4	N1
s.	Cannabis Retail Store	n/a	1 per 500 sq. ft.	1 per 700 sq. ft.	1 per 1200 sq. ft.	B	N4	N2
6.36.6	**Outdoor Retail or Consumer Service Establishments**							
	Outdoor Retail or Consumer Service Establishment, not otherwise defined	n/a	1 per 170 sq. ft.[6]	1 per 230 sq. ft.[6]	1 per 400 sq. ft.[6]	D[6]	N4[6,15]	N2[6,15]
a.	Open-Lot Retail Sales Establishment	n/a	1 per 170 sq. ft.	1 per 230 sq. ft.	1 per 400 sq. ft.	D	N4[15]	N2[15]
b.	Drive-In Food Service Establishment	n/a	n/a[6]	n/a[6]	n/a[6]	C	N3[15]	N1[15]
c.	Drive-In Consumer Service Establishment	n/a	n/a[6,10]	n/a[6,10]	n/a[6,10]	D	N1[15]	N5[15]
d.	Outdoor Entertainment and Recreation Facility	n/a	n/a[6]	n/a[6]	n/a[6]	n/a	N4[15]	N1[15]
e.	Drive-In Theater	n/a	n/a	No max	No max	n/a	N4[15]	N1[15]
f.	Outdoor Auto Sales Facility	n/a	No max	No max	No max	C	N5[15]	N5[15]
g.	Auto Service Station	n/a	No max	No max	No max	D	N5[15]	N5[15]
h.	Auto Wash	n/a	n/a[6,10]	n/a[6,10]	n/a[6,10]	D	N5[15]	N5[15]
i.	Reserved							
j.	Temporary Outdoor Retail or Consumer Service Use	No max. or min.	No max. or min.	No max. or min.	No max. or min.	No max. or min.	No max. or min.	No max. or min.
6.36.7	**Light Industry, Wholesale, Business and Storage**							
a.	Assembly or packaging of articles	n/a	No max	No max	No max	A	N5	N5
b.	Manufacture, processing, assembly and packaging the following:							
	1. Clothing but not the manufacture of the cloth or other material of which the cloth is made	n/a	No max	No max	No max	A	N5	N5

Land Use Category		Maximum Off Street Parking Requirements in Open Space	Maximum Off Street Parking Requirements in Res C-1, C-1A, Off 1, Bus A (Comm), Bus A-1, A-2, Bus A-3[14], A-4, Bus A-5, Ind A-1, Ind B-2, Ind C	Maximum Off Street Parking Requirements in Bus. C, C-1, Ind A, Off 2, 2A, Res C-2, C-2A, Res C-2B, Bus A (res)	Maximum Off Street Parking Requirements in Ind B-1, Res C-3, C-3A, C-3B, Off 3-A, 3, Bus B, Ind A-2, Ind B, Bus B-1, B-2	Loading Facility Category	Long-Term Bicycle Parking (6.107.2)	Short-Term Bicycle Parking (6.107.3)
	2. Food products, including bakery confectionery and dairy products	n/a	No max	No max	No max	A	N5	N5
	3. Drugs	n/a	No max	No max	No max	A	N5	N5
	4. Electrical, electronic and communication instruments	n/a	No max	No max	No max	A	N5	N5
	5. Engineering, laboratory and scientific instruments, temperature controls	n/a	No max	No max	No max	A	N5	N5
	6. Jewelry, insignia, emblems and badges, lapidary, scale models, dolls, costume jewelry and costume novelties	n/a	No max	No max	No max	A	N5	N5
	7. Lamp shades except of glass or metal	n/a	No max	No max	No max	A	N5	N5
	8. Leather goods, excluding footwear and saddlery	n/a	No max	No max	No max	A	N5	N5
	9. Medical and dental instruments and supplies, optical instruments and lenses	n/a	No max	No max	No max	A	N5	N5
	10. Paper and paperboard products	n/a	No max	No max	No max	A	N5	N5
	11. Pens and pencils	n/a	No max	No max	No max	A	N5	N5
	12. Plaster of paris or paper mache products	n/a	No max	No max	No max	A	N5	N5
	13. Office machines, including cash registers, computing machines and typewriters, scales and balances	n/a	No max	No max	No max	A	N5	N5
	14. Umbrellas, parasols and canes	n/a	No max	No max	No max	A	N5	N5
	15. Watches, clocks, watchcases, clockwork mechanisms	n/a	No max	No max	No max	A	N5	N5
c.	Bottling of beverages	n/a	No max	No max	No max	A	N5	N5
d.	Distribution center, parcel delivery center, delivery warehouse	n/a	No max	No max	No max	A	N5	N5
e.	Laundry, dry cleaning plant	n/a	No max	No max	No max	A	N5	N5
f.	Printing, binding, published and related arts and trades	n/a	No max	No max	No max	A	N5	N5
g.	Auto body or paint shop	n/a	No max	No max	No max	A	N5	N5
h.	Automotive repair garage	n/a	No max	No max	No max	A	N5	N5

Land Use Category		Maximum Off Street Parking Requirements in Open Space	Maximum Off Street Parking Requirements in Res C-1, C-1A, Off 1, Bus A (Comm), Bus A-1, A-2, Bus A-3[14], A-4, Bus A-5, Ind A-1, Ind B-2, Ind C	Maximum Off Street Parking Requirements in Bus. C, C-1, Ind A, Off 2, 2A, Res C-2, C-2A, Res C-2B, Bus A (res)	Maximum Off Street Parking Requirements in Ind B-1, Res C-3, C-3A, C-3B, Off 3-A, 3, Bus B, Ind A-2, Ind B, Bus B-1, B-2	Loading Facility Category	Long-Term Bicycle Parking (6.107.2)	Short-Term Bicycle Parking (6.107.3)
i.	Food commissary	n/a	No max	No max	No max	A	N5	N5
j.	Wholesale business and storage in roofed structure, but not including wholesale storage of flammable liquid, gas or explosives	n/a	No max	No max	No max	A	N5	N5
k.	Storage warehouse, cold storage plant, storage building	n/a	No max	No max	No max	A	N5	N5
l.	Open lot storage of new building materials, machinery and new metals	n/a	No max	No max	No max	A	N5[15]	N5[15]
m.	Open lot storage of coal, coke, sand or other similar material, or such storage in silos or hoppers	n/a	No max	No max	No max	A	N5[15]	N5[15]
n.	Cannabis Production Facility	n/a	No max	No max	No max	A	N5	N5
o.	Cannabis Delivery Operator Establishment	n/a	No max[16]	No max[16]	No max[16]	A	N5	N5
6.36.8	**Heavy Industry**							
a.	Dismantling or wrecking of used motor vehicles and storage or sale of dismantled, inoperative or wrecked vehicles or their parts	n/a	n/a	n/a	n/a[6]	A	N5	N5
b.	Rendering or preparing of grease, tallow, fats, and oils, manufacturing or shortening, table oil, margarine and other food oils, but not including garbage, dead animals, offal or refuse reduction	n/a	n/a	n/a	No max	A	N5	N5
c.	Stone cutting, shaping, and finishing, in completely enclosed buildings	n/a	No max	No max	No max	A	N5	N5
d.	Textile mill, except mill for processing of jute, burlap, or sisal	n/a	n/a	n/a	No max	A	N5	N5
e.	Manufacturing, processing, assembly, packaging or other industrial operation, but the following are expressly prohibited:	n/a	No max	No max	No max	A	N5	N5
	1. Acid manufacture							
	2. Cement, lime, gypsum manufacture							
	3. Explosives or fireworks manufacture							
	4. Glue manufacture							

Land Use Category		Maximum Off Street Parking Requirements in Open Space	Maximum Off Street Parking Requirements in Res C-1, C-1A, Off 1, Bus A (Comm), Bus A-1, A-2, Bus A-3[14], A-4, Bus A-5, Ind A-1, Ind B-2, Ind C	Maximum Off Street Parking Requirements in Bus. C, C-1, Ind A, Off 2, 2A, Res C-2, C-2A, Res C-2B, Bus A (res)	Maximum Off Street Parking Requirements in Ind B-1, Res C-3, C-3A, C-3B, Off 3-A, 3, Bus B, Ind A-2, Ind B, Bus B-1, B-2	Loading Facility Cate-gory	Long-Term Bicycle Parking (6.107.2)	Short-Term Bicycle Parking (6.107.3)
	5. Incineration or reduction of garbage, offal or dead animals							
	6. Petroleum Refining							
	7. Smelting of zinc, copper, tin or iron ores							
	8. Stockyard or abattoir							
f.	Open lot storage of second hand lumber or other used building material	n/a	No max	No max	No max	n/a	N5[15]	N5[15]
g.	Open lot storage of junk, scrap, paper, rags, unrepaired or unclean containers or other salvage articles	n/a	No max	No max	No max	n/a	N5[15]	N5[15]

Parking Table Footnotes

1. Required parking may be reduced if a special permit is granted by the Board of Appeals upon determination that the criteria of Subsection 6.35 will be satisfied.
2. [Deleted]
3. Special permit granting authority may require visitor spaces in excess of the minimum requirement.
4. [Deleted]
5. [Deleted]
6. The minimum and maximum amount of parking, loading, and bicycle parking required for a use requiring a special permit may be established at the discretion of the special permit granting authority. In making its determination of required parking, the Board shall consider the size of the staff customarily occupying the premises, the nature of the client, resident, or customer population and the extent to which additional off street parking will be detrimental to the physical character of the neighborhood.
7. [Deleted]
8. [Deleted]
9. [Deleted]
10. A queue line for five (5) cars shall be provided for each window, bay, or other service providing unit. Such unit shall not block any parking spaces and shall be in addition to other applicable requirements.
11. A queue line for three (3) cars or comparable loading or live parking area shall also be provided for dropping off and picking up students.
12. [Deleted]
13. In Residence C-1, C-2, C-2A, C-2B, C-3, C-3A districts the amount of parking required for this use may be reduced at the discretion of the Board of Zoning Appeal in accordance with Section 4.28.

14. No accessory parking or loading shall be required for any permitted nonresidential use in Business A-3 district.

15. Also see Subsection 6.107.4 regarding bicycle parking for Open-Air Uses.

16. Off-street parking for delivery and/or fleet vehicles shall be provided in accordance with Section 11.800 and may not be reduced or waived by the provisions of this Article 6.000.

6.37 *Bicycle Parking.* Refer to Section 6.100.

(Ord. No. 2022-5, 10-24-2022; Ord. No. 2022-21, § 4, 4-3-2023; Ord. No. 2024-2, 6-24-2024; Ord. No. 2024-5, 12-23-2024; Ord. No. 2025-1, 2-10-2025)

6.40 DESIGN AND MAINTENANCE OF OFF STREET PARKING FACILITIES

6.41 *Purpose*. The regulations governing the design and maintenance of off street parking facilities are intended to protect the health, safety and welfare of the users of the parking facility and of abutting properties, including pedestrians and motorists. Therefore, the regulations herein provide for internal and perimeter landscaping, planting, walls, fences and other improvements to reduce noise, glare or reflection from autos, lights, fumes and the like, and minimum standards for parking space and aisle dimensions to ensure safe traffic circulation within the parking facility and from entrances and exits.

6.42 *Dimensions for Off Street Parking Spaces*. The minimum dimensions for off street parking spaces, exclusive of drives and maneuvering spaces, shall be as follows:

Space	*Equivalent 90° Width*	*Equivalent 90° Depth*	*Vertical Clearance*	*Minimum Angel of Parking*	*Width of Aisles*
Regular	8 1/2 feet	18 feet	7 1/2 feet	60°	22 feet
Compact Car	7 1/2 feet	16 feet	7 1/2 feet	60°	20 feet
Handicapped	12 feet	18 feet	7 1/2 feet	60°	22 feet

6.43 *Access for Off Street Parking Facilities*. Off street parking facilities shall have maneuvering areas and appropriate means of vehicle access to a street and shall be so designed as not to constitute a nuisance, hazard, or unreasonable impediment to traffic.

6.43.1 All parking spaces within the Business B-1 and Business B-2 districts shall be both covered and enclosed. All vehicle access for office and retail uses in those districts shall be from Massachusetts Avenue or from a side street perpendicular to it that will allow traffic flow toward Massachusetts Avenue. The open area of any lot in the Business B-1 and Business B-2 districts devoted to vehicular movements such as driveways shall be not more than the minimum necessary for vehicular access to covered and enclosed parking.

6.43.2 The layout of parking spaces shall permit entering and exiting without moving any other vehicles parked in other spaces except where more than one space is provided for any dwelling unit, such spaces may be located in tandem to the required parking spaces for that dwelling unit.

6.43.3 Curb cuts for off street parking facilities shall comply with the following standards:

(a) In Residential districts, the maximum width of a curb cut shall be twenty (20) feet at the street line.

(b) In Open Space, Business, Office and Industrial districts, the maximum width of a curb cut shall be thirty (30) feet.

(c) No more than one curb cut per lot for lots with less than one hundred (100) feet of frontage shall be allowed. A maximum of one curb cut for every one hundred (100) feet of street frontage or portion thereof shall be allowed for lots having frontage in excess of one hundred feet.

6.43.4 Driveways for off street parking facilities shall comply with the following standards:

(a) The minimum width for a one way driveway shall be ten (10) feet.

(b) No driveway curb cut shall be located closer than twenty five (25) feet to a street intersection or within fifteen (15) feet of a crosswalk.

(c) The grade and design of any driveway providing access to an off street parking facility shall permit a clear view, to the driver of any car exiting from the facility, of traffic on the street and of pedestrians.

6.43.5 The Board of Zoning Appeal may grant a special permit modifying the provisions of this subsections 6.43 in accordance with the following conditions:

(a) The provisions for layout of parking spaces in paragraph 6.43.2 may be modified where there is a valet parking arrangement for an off street parking facility.

(b) The maximum curb cut width specified in paragraphs 6.43.3 (a) and 6.43.3 (b) may be modified if the Board determines that an increased curb cut width would facilitate traffic and safety.

(c) The maximum of one curb cut for every one hundred (100) feet of street frontage as required in paragraph 6.43.3 (c) may be modified if the Board determines that traffic and safety would be facilitated by exceeding this maximum.

(d) The distance of driveways from street corners or crosswalks as required in paragraphs 6.43.4 (b) may be modified if the Board determines that an alternate arrangement would better facilitate traffic and safety.

6.43.6 The Board of Zoning Appeal may grant a special permit authorizing owners of adjacent properties to establish common driveways under mutual easements but such special permit shall not become effective until an appropriate easement has been duly recorded at the Middlesex County Registry of Deeds.

6.44 *Layout of Off Street Parking Facilities*. Any parking facility located within a structure, unless it is completely underground, must conform to the yard requirements for the zoning district in which it is located. On grade, open parking spaces may be located in required yards only as provided in this Subsection 6.44.

6.44.1 Setbacks for on grade open parking facilities shall be provided as follows:

(a) No on grade open parking space shall be located within ten (10) feet of that portion of a building wall containing windows of habitable or occupiable rooms at basement or first story. However, on grade open parking spaces serving one, two, or three family dwellings may be located within five (5) feet of that portion of such building wall.

(b) Except for one, two, or three family dwellings existing at the time of the effective date of this Ordinance or amendment thereto, no on grade open parking space or driveway shall be located within five (5) feet of any side or rear property line.

(c) No on grade open parking space shall be located within a required front yard setback

(d) The area between the required parking setback line and the building or lot line shall be landscaped and maintained in accordance with the requirements of Subsection 6.48.

(e) No on grade open parking shall be allowed in a Residence C-2A district within one hundred and twenty five (125) feet of a Residence C-1, C-2, or C-2B District.

(f) In an Industry C district, no parking lot shall be located within fifty (50) feet of a residential district or within twenty five (25) feet of an open space district, a park or public recreation area or the right of way of a designated parkway.

(g) The Board of Zoning Appeal may grant a special permit to allow for modification of the requirements in 6.44.1 (a) or (b) if site specific factors favor such modification.

6.44.2 All roads, streets, alleys, sidewalks and other public rights of way and all landscaped areas shall be protected from vehicular overhang by wheel bumpers, curbs or other suitable method except those off street parking facilities provided for one, two or three family dwellings.

6.44.3 Off street parking facilities shall be marked so as to indicate clearly the space to be occupied by each vehicle, in accordance with the dimensions specified in Subsection 6.42 and including directional arrows and traffic signs as necessary for traffic control. Such markings shall be maintained so as to be plainly visible.

6.45 *Drainage, Surfacing, and Maintenance*. All sections of off street parking facilities which are not landscaped according to the requirements of Subsection 6.48 shall be graded, surfaced (preferably with durable pervious paving materials such as modular paving blocks, bricks or similar materials), and maintained to the satisfaction of the Superintendent of Buildings to the extent necessary to prevent nuisance of dust, erosion, or excessive water flow onto any public way or onto another lot.

6.45.1 A parking space for a one, two, or three family dwelling may consist of two parallel paved strips, each at least eighteen (18) feet long separated by a landscaped area.

6.45.2 Off street parking areas shall be kept plowed, clean and free from rubbish and debris. All fences, barriers, walls, landscaping and lighting shall be maintained and kept repaired or replaced with facilities satisfying the requirements of this Section 6.40.

6.46 *Lighting*. Off street parking facilities which are used at night shall be provided with adequate lighting installed and maintained in such a manner so as not to reflect or cause glare on abutting or facing residential premises nor to cause reflection nor glare which adversely affects safe vision of operators of vehicles moving on nearby streets. A recommended standard for lighting is a minimum intensity of one (1) foot candle on the entire surface of the parking facility.

6.47 *Screening*. Off street parking facilities containing five or more spaces and not in a structure shall be effectively screened from abutting streets and lots. However, such screening shall not obstruct vehicle sight distances, entrances and exits.

6.47.1 Screening shall consist of one or a combination of the following:

(a) A strip at least five (5) feet in width of densely planted shrubs or trees which are at least two (2) feet high at the time of planting and are of a type that may be expected to form, within three (3) years after time of planting, a continuous, unbroken, year round visual screen.

(b) A wall, barrier, or fence of uniform appearance. Such wall, barrier, or fence may be opaque or perforated provided that not more than fifty (50) percent of the face is open. The wall, barrier or fence shall be at least four (4) feet and not more than six (6) feet in height.

6.47.2 The screening as required in this Subsection 6.47 shall be located so as not to obstruct vehicle sight distances, entrances and exits. Such screening shall not be higher than two (2) feet within thirty (30) feet of an intersection or ten (10) feet of a driveway. In no case shall the screening of parking facilities from abutting streets exceed four (4) feet in height.

6.47.3 Every effort shall be made to retain existing trees. Removal of any tree exceeding six (6) inch caliper to accommodate construction of a parking facility is discouraged.

6.47.4 Perimeter landscaping required for screening may include any landscaped yard area otherwise required.

6.47.5 Screening shall be continuously maintained so as to effectively serve the purpose for which it is intended. No advertising devices of any kind shall be allowed on screening.

6.47.6 Screening shall be continuous except for required access.

6.47.7 In residential districts, any on grade, open parking area located in a front yard shall provide a visual definition of the front lot line and separation of public from private space in keeping with the appearance and character of the existing streetscape. Such definition shall be achieved by using a change of ground materials at the front lot line and by installing at least one of the following: fences, plantings, walls, or stone monuments which mark the transitions from street or sidewalk to residential lot.

6.47.8 Screening requirements may be waived in the following cases:

(a) If said parking facility is already effectively screened by an existing building, wall, fence, or hedge on an adjoining lot and within five feet of the common property line, screening shall not be required so long as such adjoining screening is maintained.

(b) If said parking facility is already effectively screened by a natural terrain feature, railroad tracks, or change in grade.

(c) If said parking facility abuts another parking facility under different use or ownership, a landscaped planting strip at least five (5) feet in width may be used in lieu of screening along the common property line.

6.48 *Landscaping*. For the purpose of this Section 6.40, landscaping shall consist of any of the following or combination thereof: grass, ground covers, shrubs, vines, hedges, or trees; and nonliving durable material commonly used in landscaping, such as but not limited to rocks, pebbles or wood chips, but excluding asphalt or concrete. Required screening elements as specified in Subsection 6.47.1(a) and (b) may be allowed in perimeter landscaped areas.

6.48.1 On grade, open parking facilities which contain five (5) or more parking spaces shall be landscaped in accordance with the following requirements:

(a) At least five percent of the interior area of the parking facility shall be landscaped. This does not include the perimeter planting provided for beautification or to satisfy screening requirements.

(b) Each planting area shall be at least twenty five (25) square feet in area and have no dimension less than five feet.

(c) Each planting area shall contain at least one tree and the facility as a whole shall contain at least one tree for every ten parking spaces.

(d) Trees used to satisfy parking lot landscaping requirements shall be a minimum of three (3) inch caliper at planting and shall be suitable for location in parking lots. Recommended species are listed in Section 11.16.4(4)(b).

(e) Existing trees shall be preserved wherever possible.

(f) Existing and new trees shall be protected by bollards, high curbs or other barriers sufficient to minimize damage.

(g) Extensive unbroken paved areas in large on grade open parking facilities shall not be permitted. In parking lots containing twenty five (25) or more spaces, a row shall contain no more than fifteen contiguous parking spaces without a densely planted landscaped buffer of at least the dimensions of one space.

6.48.2 No regular certificate of occupancy shall be issued unless an inspection by a representative of the Inspectional Services Department establishes that the landscaping meets the requirements provided herein. Pending issuance of a regular certificate of occupancy, a temporary certificate may be issued for such period as the Superintendent of Buildings may designate but no longer than one year.

6.49 Design of Bicycle Parking spaces. Refer to Section 6.100.

(Ord. No. 2024-5, 12-23-2024; Ord. No. 2025-1, 2-10-2025)

6.50 PARKING PLAN INFORMATION REQUIREMENTS

6.51 Any application for a building permit for construction of a new building or for an alteration of an existing building increasing the gross floor area or intensity of use, (as specified in Subsection 6.12b), or for a certificate of occupancy where no building permit is required, shall be accompanied by one or more plans - drawn to scale and fully dimensioned - showing any parking, bicycle parking and/or loading facilities to be provided.

6.52 Every such plan for a proposed new, altered, or expanded use which provides five or more parking spaces shall indicate thereon the location of and provision for:

(1) Parking spaces and access routes (6.34 and 6.40).

(2) Curbing and wheel stops (6.44.2).

(3) Pavement markings (6.44.3).

(4) Surfacing (6.45).

(5) Screening and landscaping (6.47 and 6.48).

(6) Lighting (6.46).

(7) Drainage (6.45).

(8) Loading areas (6.60).

(9) Other pertinent data reasonably required by the Superintendent of Buildings or his designee.

6.52.1 Every such plan for a proposed new, altered, or expanded use which provides two or more Bicycle Parking Spaces as required in Section 6.100 shall provide a plan or plans drawn at a scale of 1 inch = 10 feet or closer which indicates the location and dimensions of Bicycle Parking Spaces, including the following information:

(1) Classification of Long-Term Bicycle Parking Spaces and Short-Term Bicycle Parking Spaces (6.102).

(1) Clear spacing around Bicycle Racks or interior dimensions of Bicycle Lockers (6.105).

(2) Access routes (6.106).

(3) Total area (indicated via shading or hatching) dedicated exclusively to bicycle parking that shall be exempt from Gross Floor Area calculations.

(4) Other pertinent data reasonably required by the Superintendent of Buildings or his designee.

6.53 The Superintendent of Buildings may forward a copy of the plan indicating off street parking and loading arrangements to the Community Development Department and the Department of Traffic and Parking for review and comment. The departments must return the plan to the Building Department with written approval or recommended modifications within a period not to exceed five (5) business days from the date of receipt.

6.54 Any land use involving a fleet of vehicles for operation of the use shall be required to provide information demonstrating provision of space for such fleet before issuance of an occupancy permit for said use.

6.55 In the event that the plan for off street parking and loading arrangements requires a special permit or variance, an applicant for such approvals shall submit the following information to the permit or special permit granting authority to assist in their determination:

(1) A written statement describing in detail the parking generating characteristic of the land use.

(2) A plan drawn to scale showing the various uses within respective floor areas of the building of structure.

(3) The number of employees during largest work shift.

(4) The number of customers, patrons or other visitors expected to be served.

(5) Any other statements to show the actual extent of off street parking space required or generated by particular use.

6.60 PURPOSE AND INTENT OF LOADING REQUIREMENTS

6.61 It is the intention of this Ordinance that all buildings and uses requiring the delivery of goods as part of their function be provided with necessary space for off street loading.

6.70 APPLICATION OF LOADING REQUIREMENTS

6.71 No application for a permit for the erection of a new building, for the activities described in Subsection 6.12(b) and (c), or for the development of a land use, shall be approved, unless it indicates a plan for off street loading facilities required to comply with the regulations set forth in this Article.

6.72 Where a building existing on the effective date of this Ordinance is altered or extended in such a way as to increase the gross floor area, only the additional gross floor area shall be counted in computing the off street loading requirements.

6.73 Where a building or lot is used by two activities that fall into different loading facility categories under Subsection 6.36, the facilities required shall be the sum of the requirements for the individual loading facility categories, including fractional requirements as specified in Subsection 6.74 of the different categories. Where a building or lot is used by three or more activities that fall into different loading facility categories under Subsection 6.36, the facilities required shall be one half the sum of the requirements for the individual loading facility categories, including fractional requirements as specified in Subsection 6.74 for the different categories.

6.74 The required amount of loading facilities required to serve an institutional use listed in Subsection 6.36.3b may be calculated in aggregate for a use or uses on a lot and any lot contiguous thereto. However, such institutional use shall be located within a five (5) acre area containing one or more lots, contiguous except for streets, owned by a single institution.

6.75 Where the computation of total required loading bays results in a fractional number, only the fraction of one half or more shall be counted as one.

6.80 REQUIRED AMOUNT OF LOADING FACILITIES

6.81 Off street loading facilities shall be provided based on the category of land use and the area of that use.

6.82 The loading facility category shall be as listed in Subsection 6.36. The required number of loading bays shall be determined by the schedule in Subsection 6.83.

6.83 *Minimum Number of Off Street Loading Bays*.

Gross Floor Area (in thousands of square feet)

Loading Facility Category	*Area at which First Bay is Required*	*Area at which Second Bay is Required*	*Incremental Area for which Each additional Bay is Required Beyond the Second*
A	5	40	50
B	10	20	50
C	10	25	40
D	10	40	50
E	10	100	100
F	10	100	200

6.90 LOCATION AND LAYOUT OF LOADING FACILITIES

6.91 Where a building or lot contains uses requiring compliance with loading facility categories C, D, E, and F, the first required bay shall be no less than ten (10) feet in width, thirty (30) feet in length and fourteen (14) feet in height. Each additional required loading bay for categories C, D, E, and F and any loading bay required by categories A and B shall be no less than ten (10) feet in width, fifty (50) feet in length, and fourteen (14) feet in height, such requirements to be exclusive of drives and maneuvering space.

6.92 All loading bays, drives, and a maneuvering space shall located entirely on the lot with immediate and direct ingress to the building intended to be served. A bay need not be enclosed in a structure provided any yard area used as a loading bay shall not infringe on front, side, and rear yard requirements as indicated in Article 5.000. All such facilities shall be designed with appropriate means of vehicular access to a street or alley as well as maneuvering area, and no driveways or curb cuts shall exceed thirty (30) feet.

6.93 Off street loading bays may be enclosed in a structure and must be so enclosed if located within fifty (50) feet of a Residence District where the use involves regular night operation, such as that of a bakery, restaurant, hotel, bottling plant, or similar uses. Any lighting provided shall be install in a manner that will prevent direct light from shining onto any street or adjacent property.

6.94 All accessory driveways and entranceways shall be graded, surfaced, drained and suitably maintained to the satisfaction of the Superintendent of Buildings to the extent necessary to avoid nuisances of dust, erosion, or excessive water flow across public ways.

6.95 Loading facilities shall not be reduced in total extent of usability after their installation, except when such reduction is in conformity with the requirements of the Article. Such facilities shall be designed and used in such a manner as at no time to constitute a nuisance or hazard or unreasonable impediment to traffic.

6.96 Adoption of the Recommendations of the Regional Truck Study dated September 2001.

All trucks 2.5 tons or more in gross weight traveling on streets under the control and jurisdiction of the City of Cambridge are prohibited from using any City streets between the hours of 11:00 p.m. and 6:00 a.m., except for the following signed and designated truck routes or except when a local delivery or pick-up requires traveling off of the following signed and designated truck routes:

Brattle Street between Massachusetts Avenue and Eliot Street;

Eliot Street between Brattle Street and Mount Auburn Street;

Mount Auburn Street between Eliot Street and Massachusetts Avenue;

the entirety of JFK Street

the entirety of Main Street

the entirety of Galileo Galilei Way;

Binney Street between Galileo Galilei Way and Land Boulevard;

the entirety of First Street;

Cambridge Street between First Street and the O'Brien Highway;

Broadway between Galileo Galilei Way and the Longfellow Bridge; and

Vassar Street between Main Street and Massachusetts Avenue.

In addition, the following signed and designated Hazardous Materials (HAZMAT) routes shall be open to Hazardous Material carriers at all times:

the entirety of River Street; and

the entirety of Western Avenue.

All trucks 2.5 tons or more in gross weight traveling on the following streets under the control and jurisdiction of the City of Cambridge are prohibited from using them at all times, except for a delivery or pick-up on these streets:

the entirety of Putnam Avenue;

the entirety of Cardinal Medeiros Avenue; and

the entirety of Warren Street.

Nothing herein shall affect in any way restrictions on trucks currently in effect. Nothing herein shall affect the use of roadways under the control and jurisdiction of the Metropolitan District Commission or any state numbered routes, including the following:

the entirety of Massachusetts Avenue (Route 2A);

the entirety of Peabody Street (Route 2A);

the entirety of the O'Brien Highway (Route 28);

the entirety of Concord Parkway (Route 2);

the entirety of the Alewife Brook Parkway and a portion of Concord Avenue designated as Routes 2, 3 & 16;

the entirety of the Fresh Pond Parkway (Routes 2, 3 & 16);

the entirety of Memorial Drive (Routes 2 & 3);

the entirety of Land Boulevard;

the entirety of Aberdeen Avenue (Route 16); and

portions of Huron Avenue and Mount Auburn Street designated as Route 16.

6.100 BICYCLE PARKING

6.101 *Purpose*. In order to support the ongoing viability of bicycle travel as a transportation option that mitigates the impacts of automobile use, the following regulations are provided to ensure that secure, conveniently accessible bicycle parking is provided in adequate quantity to serve new development and land uses throughout the city.

6.102 *General Terms and Standards for Bicycle Parking*.

6.102.1 *Definition and Use*. Bicycle parking, as the term is applied in this Zoning Ordinance, shall refer to the accessory storage of non-motorized bicycles (which may include trailers or other customary accessories) in a secure manner that allows for quick and convenient access, storage and removal of the bicycles by users who are making trips to or from the associated principal use.

6.102.2 Bicycle parking serving a principal use in accordance with this Article shall be maintained exclusively for the parking of bicycles, and not for the storage of other objects unrelated to bicycle use or for other purposes, so long as the use exists which the facilities were designed to serve. Bicycle parking facilities designed in accordance with this Article shall be available for use at all times when the associated principal use is in operation, except when access may be restricted for necessary maintenance from time to time.

6.102.3 Wherever else in this Zoning Ordinance the term "parking" is used without specific reference to bicycle parking, such term shall refer only to parking for motor vehicles and not to bicycle parking.

6.102.4 *Bicycle Parking Spaces*. A Bicycle Parking Space shall be defined as an area within which one intact bicycle may be conveniently and securely stored and removed in an upright position with both wheels resting upon a stable surface, without requiring the use of a kickstand, and without requiring the movement of other parked bicycles, vehicles or other objects to access the space.

6.102.5 *Types of Bicycle Parking*. Bicycle Parking Spaces may be classified as Long-Term or Short-Term depending on their characteristics as set forth below.

a. Long-Term Bicycle Parking shall be located within an enclosed, limited-access area designed so as to protect bicycles from precipitation and from theft. Long-Term Bicycle Parking shall be intended primarily to serve residents, employees or other persons who would require storage of a bicycle for a substantial portion of the day, for an overnight period, or for multiple days; however, it may serve other bicycle users as needed. Long-Term Bicycle Parking may be provided within the following types of facilities:

(i) Enclosed spaces within a building, such as bicycle rooms or garages.

(ii) Bicycle sheds, covered bicycle cages, or other enclosed structures designed to provide secure and fully covered parking for bicycles.

(iii) Bicycle lockers, or fixed-in-place containers into which single bicycles may be securely stored and protected.

(iv) Weather-protected bicycle parking spaces that are monitored at all times by an attendant or other security system to prevent unauthorized use or theft.

b. Short-Term Bicycle Parking shall be located in a publicly accessible space near pedestrian entrances to the uses they are intended to serve. Short-Term Bicycle Parking shall be intended primarily to serve visitors, such as retail patrons, making trips of up to a few hours to a particular use; however, it may serve other bicycle users as needed. Short-Term Bicycle Parking may be provided adjacent to public streets and sidewalks, or in some cases within the public right of way, as set forth further below in this Section.

6.103 *Applicability of Bicycle Parking Requirements*.

6.103.1 Bicycle parking requirements shall apply to the following projects, except where exempted by Subsection 6.103.2 below:

a. The construction of a new building or establishment of a new open-air use on a lot.

b. An increase of at least fifteen percent (15%) in the number of residential dwelling units on a lot or in the amount of non-residential Gross Floor Area on a lot from the time of adoption of this Section 6.100.

c. The conversion of existing Gross Floor Area to a new category of non-residential use, where such conversion results in at least a fifteen percent (15%) increase in the total number of bicycle parking spaces that would be required for the entire building by this Section 6.100.

6.103.2 Notwithstanding the requirements in 6.103.1 above, bicycle parking shall not be required for the following:

a. Detached one-family or two-family dwellings as set forth in Section 4.31, Paragraphs (a-c) of this Zoning Ordinance.

b. The enlargement, expansion or conversion of an existing building, where the difference between the bicycle parking required for the proposed building and the bicycle parking that would be required for the existing building (under this Section 6.100) equals fewer than two (2) bicycle parking spaces.

c. The enlargement, expansion or conversion of an existing building resulting in a dwelling containing three (3) or fewer dwelling units.

6.103.3 Where bicycle parking requirements are applicable pursuant to this Section, they shall be applied to the entirety of any use that is established, expanded or enlarged within a building or on a lot, and not only to the incremental increase in the intensity of such use.

6.104 *Location of Bicycle Parking*.

6.104.1 Long-Term Bicycle Parking shall be provided within the building containing the use or uses that it is intended to serve, or within a structure whose pedestrian entrance is no more than two hundred feet (200') from a pedestrian entrance to such building. Long-Term Bicycle Parking serving multiple uses or buildings may be pooled into a single area, enclosure or facility. Where Long-Term Bicycle Parking is located adjacent to motor vehicle parking or loading facilities, a physical barrier shall be provided to prevent damage to bicycles by other vehicles.

6.104.2 Short-Term Bicycle Parking shall be located in one of the two following ways:

a. *Private Lot*. Short-Term Bicycle Parking on a private lot shall be located within fifty feet (50') feet of a pedestrian entrance to the building or buildings containing the use or uses it serves. For buildings or uses requiring more than eight (8) Short-Term Bicycle Parking Spaces, some of the required spaces may be located at a greater distance from the entrances, so long as eight (8) Short-Term Bicycle Parking Spaces are available within fifty feet (50') of any entrance.

b. *Public Contribution*. If Short-Term Bicycle Parking cannot be reasonably provided on the lot, a property owner may satisfy the requirements for Short-Term Bicycle Parking by providing funds for the installation of bicycle parking on public land. The City shall determine the location and design of such bicycle parking, which may include permanent bicycle racks, seasonal bicycle corrals or other facilities, and may vary from the standards set forth in this Section 6.100. The City shall have the right to install bicycle parking on the sidewalk adjacent to the lot, or may choose to retain the funds provided in a Public Bicycle Parking Fund to support the installation or replacement of public bicycle parking at a future time. In either case, prior to issuance of a Certificate of Occupancy, the property owner shall enter into an agreement with the City which sets forth the cost of installing the required number of Bicycle Parking Spaces, which shall be the amount of funds provided by the owner, the timing by which payments are made, and each party's responsibilities for ongoing maintenance of the facilities, if applicable.

6.105 *Design and Layout of Bicycle Parking*. Required bicycle parking shall be provided in some combination of Bicycle Racks or Bicycle Lockers according to the standards set forth below. Other design options may be allowed pursuant to Section 6.108 further below.

6.105.1 *Bicycle Racks*. Long-Term Bicycle Parking or Short-Term Bicycle Parking requirements may be satisfied by the installation of Bicycle Racks which meet the design and layout standards set forth in this Subsection. Installers of Bicycle Racks may consult the City of Cambridge Bicycle Parking Guide, 2008 or later version, for illustrations of acceptable Bicycle Rack design and layout.

a. A Bicycle Rack shall mean a fixed-in-place stand, solidly anchored to the ground or other fixed object, which allows a bicycle to lean against it in an upright position with both wheels on a level surface. A bicycle shall make contact with the stand at two (2) points along the length of the bicycle and shall allow one or both wheels to be locked to the stand by way of a cable, chain, U-lock or shackle. Types of permissible Bicycle Racks include, but are not necessarily limited to, those commonly known as "Inverted U-shape," "Swerve" and "Post-and-Ring" racks. Stands commonly known as "Wave Racks" do not meet the standards for Bicycle Racks set forth herein.

b. Each Bicycle Rack, if designed to the spacing requirements set forth herein, may provide up to two Bicycle Parking Spaces, with one Bicycle Parking Space provided on each side of the Bicycle Rack. If a Bicycle Rack meets the spacing requirements on one side of the stand but not the other (as may be the case where a Bicycle Rack is attached to a wall), then it may provide one Bicycle Parking Space,

c. A single interconnected structure may provide parking for more than two bicycles, in which case the term Bicycle Rack as applied in this Ordinance shall refer to any vertical element of the structure upon which one or two bicycles may be secured and which otherwise meets the layout standards set forth herein.

d. To provide adequate space to store and remove a standard bicycle, there shall be at least three feet (3') clear horizontal distance from the center point of the Bicycle Rack in a direction perpendicular to the length of the bicycle, and at least four feet (4') clear horizontal distance from the center point of the Bicycle Rack in each direction parallel to the length of the bicycle.

e. Where twenty (20) or more Bicycle Parking Spaces are required, at least five percent (5%) of the required spaces must provide an additional two feet (2') of space parallel to the length of the bicycle to accommodate tandem bicycles or bicycles with trailers.

f. Bicycle Racks shall generally be arranged either in rows (where bicycles are parked side-to-side) or in alignment (where bicycles are parked end-to-end). Where Bicycle Racks are arranged in rows, they shall be spaced at least three feet (3') apart on-center. Where Bicycle Racks are arranged in alignment, they shall be spaced at least eight feet (8') on-center.

g. In addition to the requirements set forth herein, all Bicycle Racks shall conform to any applicable federal, state or local requirements for accessibility by disabled persons.

6.105.2 *Bicycle Lockers*. Long-Term Bicycle Parking or Short-Term Bicycle Parking requirements may be satisfied by the installation of Bicycle Lockers which meet the design and layout standards set forth in this subsection.

a. A Bicycle Locker shall mean an enclosed, lockable structure which a single user may open and close for the purpose of storing one or more bicycles. Although a Bicycle Locker is allowed to store more than one bicycle, for the purpose of meeting the requirements of this Section 6.100, a single-use Bicycle Locker may provide only one Bicycle Parking Space. A lockable structure may provide more than one Bicycle Parking Space only if it contains Bicycle Racks designed in accordance with the requirements of 6.105.1 above.

b. A Bicycle Locker shall be secured by means of a lockable door or an object inside the Bicycle Locker to which the bicycle frame and one or both wheels may be secured by way of a cable, chain, U-lock or shackle.

c. A Bicycle Locker must allow for a bicycle to stand upright within the locker without requiring the use of a kickstand.

d. To accommodate a standard bicycle, a Bicycle Locker must provide an interior space at least two feet (2') in width and six feet (6') in length. However, as provided in 6.105.1(d) above, where twenty (20) or more Bicycle Parking Spaces are required, at least five percent (5%) of the required spaces must accommodate an additional two feet (2') of bicycle length to accommodate tandem bicycles or bicycles with trailers.

e. In addition to the requirements set forth herein, all Bicycle Lockers shall conform to any applicable federal, state or local requirements for accessibility by disabled persons.

6.105.3 *Unacceptable Bicycle Parking Designs*. Bicycle Parking Spaces shall not be deemed to meet the requirements of this Section 6.100 if any of the following are true:

a. Bicycles must be stored lying down or require a kickstand to remain upright.

b. Bicycles must be "hung" with one or both wheels suspended in the air.

c. Bicycles must be lifted off of the ground or floor without any physical assistance provided.

Otherwise, flexibility in the design of bicycle parking shall be allowed pursuant to the provisions for modification by special permit as set forth in Section 6.108 below. Such modifications shall allow for consideration of new or innovative technologies that provide equal or greater convenience and accessibility to bicyclists when compared to facilities designed according to the Bicycle Parking Guide standards.

6.106 *Access Standards for Bicycle Parking*.

6.106.1 *Primary Access*. All Bicycle Parking Spaces must be accessible by way of at least one clear, stabilized-surface access route. Such access route shall connect to the Bicycle Parking

Spaces from any point or points along the public right of way from which bicyclists would be reasonably expected to approach the site, and shall meet the following additional requirements:

a. The primary access route must be at least five (5) feet in width.

b. If there is a change in grade from the public right-of-way to the Bicycle Parking Spaces, then the primary access route must have a slope no greater than five percent (5%), or may have a slope of no greater than eight percent (8%) if level landings are provided at every thirty (30) feet of linear distance; or access may be provided by means of an elevator with minimum interior dimensions of eighty (80) inches by fifty-four (54) inches.

c. The primary access route must not require lifting bicycles over any steps or stairs.

d. All access routes must be clear of obstructions, which shall include Bicycle Parking Spaces, motor vehicle parking spaces and loading spaces; however, doors or gates that must be opened to access the Bicycle Parking Spaces shall not be considered obstructions so long as they may be conveniently opened and closed by bicycle users.

e. All access routes, along with the Bicycle Parking Spaces themselves, must be appropriately lighted to allow for safe nighttime use.

6.106.2 *Additional Access*. So long as there is at least one primary access route meeting the requirements set forth in Section 6.106.1 above, Bicycle Parking Spaces may be accessed secondarily by routes that do not meet those exact requirements, such as parking garage entrance ramps or stairways with adjacent flat stairway channels along at least one edge of the stairway. However, all access routes must be clear of obstructions as set forth in 6.106.1(d) above.

6.107 *Required Quantities of Bicycle Parking*.

6.107.1 *Minimum Number of Bicycle Parking Spaces*. The required quantities of Long-Term Bicycle Parking Spaces and Short-Term Bicycle Parking Spaces shall be calculated by independently applying the minimum rates set forth in the Schedule of Long-Term Bicycle Parking Requirements and the Schedule of Short-Term Bicycle Parking Requirements below. Each rate shall be multiplied by the intensity of the applicable land use or uses, measured in Gross Floor Area, number of dwelling units, or other specified unit of measurement. Wherever the application of such rate results in a fractional value, such fraction shall be considered one required Bicycle Parking Space. The total number of Bicycle Parking Spaces required shall be the sum of the required Long-Term Bicycle Parking Spaces and Short-Term Bicycle Parking Spaces. Any Bicycle Parking Space that meets the requirements for both Long-Term Bicycle Parking and Short-Term Bicycle Parking may contribute to the minimum requirement for one type or the other, but not both.

6.107.2 *Schedule of Long-Term Bicycle Parking Requirements.* Minimum rates of Long-Term Bicycle Parking shall apply to specified categories of land use as set forth below. For specific land uses, the following categories are cross-referenced in the Schedule of Parking and

Loading Requirements set forth in Section 6.36 of this Zoning Ordinance. In the case of any inconsistency between the list of included uses as set forth below and the categorization set forth in Section 6.36, the categorization in Section 6.36 shall control.

Category	Included Residential Uses	Min. Long-Term Bicycle Parking Rate
R1	Single-family dwellings, two-family dwellings, rectory or parsonage	No minimum
R2	Townhouse dwellings, multifamily dwellings, trailer park or mobile home park	1.00 space per dwelling unit for the first twenty (20) units in a building; 1.05 spaces per dwelling unit for all units over twenty (20) in a building
R3	Elderly oriented housing, elderly oriented congregate housing	0.50 space per dwelling unit
R4	Group housing, including: lodging houses, convents or monasteries, dormitories, fraternities and sororities	0.50 space per bed
R5	Transient accommodations, including: tourist houses in an existing dwelling, hotels, motels	0.02 space per sleeping room

Category	Included Non-Residential Uses	Min. Long-Term Bicycle Parking Rate
N1	Offices, including: medical, professional, agencies, general, government; radio/television studios, arts/ crafts studios	0.30 space per 1,000 square feet
N2	Technical offices, research facilities	0.22 space per 1,000 square feet
N3	Hospitals and clinics; veterinary clinics; public safety facilities; restaurants and eating establishments	0.20 space per 1,000 square feet
N4	Retail stores, consumer service uses, commercial recreation and entertainment	0.10 space per 1,000 square feet
N5	Transportation and utility uses; religious and civic uses; manufacturing, storage and other industrial uses, auto-related uses	0.08 space per 1,000 square feet
E1	Primary or secondary schools, vocational schools	0.30 space per classroom or 0.015 space per auditorium seat, whichever is greater
E2	College or university facilities (excluding residences)	0.20 space per 1,000 square feet
P	Automobile parking lots or parking garages for private passenger cars	1.00 space per 10 motor vehicle parking spaces

6.107.3 *Schedule of Short-Term Bicycle Parking Requirements.* Minimum rates of Short-Term Bicycle Parking shall apply to specified categories of land use as set forth below. For specific land uses, the following categories are cross-referenced in the Schedule of Parking and Loading Requirements set forth in Section 6.36 of this Zoning Ordinance. In the case of any inconsistency between the list of included uses as set forth below and the categorization set forth in Section 6.36, the categorization in Section 6.36 shall control.

Category	Included Residential Uses	Min. Short-Term Bicycle Parking Rate
R1	Single-family dwellings, two-family dwellings, rectory or parsonage	No minimum
R2	Townhouse dwellings, multifamily dwellings, trailer park or mobile home park	0.10 space per dwelling unit on a lot
R3	Elderly oriented housing, elderly oriented congregate housing	0.05 space per dwelling unit
R4	Group housing, including: lodging houses, convents or monasteries, dormitories, fraternities and sororities	0.05 space per bed
R5	Transient accommodations, including: tourist houses in an existing dwelling, hotels, motels	0.05 space per sleeping room

Category	Included Non-Residential Uses	Min. Short-Term Bicycle Parking Rate
N1	Convenience and food stores, restaurants and eating establishments, theaters and commercial recreation	1.00 space per 1,000 square feet
N2	Retail stores and consumer service establishments	0.60 space per 1,000 square feet
N3	Passenger transportation; religious and civic uses; government offices, medical offices and clinics, agency offices, banks (ground floor only); veterinary clinics	0.50 space per 1,000 square feet
N4	Hospitals and infirmaries	0.10 space per 1,000 square feet
N5	Non-passenger transportation and utility uses; laboratories and research facilities; general, professional and technical offices; radio/television and arts/crafts studios; manufacturing, storage and other industrial uses; auto-related uses	0.06 space per 1,000 square feet
E1	Primary or secondary schools	1.70 space per classroom or 0.085 space per auditorium seat, whichever is greater
E2	College or university academic or administrative facilities	0.40 space per 1,000 square feet
E3	College or university student activity facilities	1.00 space per 1,000 square feet
P	Automobile parking lot or parking garage for private passenger cars (6.36.2 b)	No additional requirement for Short-Term Bicycle Parking; however, if motor vehicle parking is provided on an open lot, then required Long-Term Bicycle Parking Spaces may be converted to Short-Term Bicycle Parking Spaces.

6.107.4 *Open-Air Uses*. For any use that occupies land that is open to the air and not enclosed within a building, the minimum parking rate for the extent of such open-air use shall be applied per 3,000 square feet of land area instead of per 1,000 square feet of Gross Floor Area. For such uses, the combined sum of required Long-Term Bicycle Parking Spaces and Short-Term Bicycle Parking Spaces may be provided as Short-Term Bicycle Parking Spaces.

6.107.5 *Permitted Flexibility*. The quantities of Long-Term Bicycle Parking and Short-Term Bicycle Parking may be adjusted as-of-right in the following ways:

a. For non-residential uses, up to twenty percent (20%) of the required number of Long-Term Bicycle Parking Spaces or four (4) spaces, whichever is greater, may be converted to Short-Term Bicycle Parking Spaces.

b. For residential uses requiring four (4) Long-Term Bicycle Parking Spaces or fewer, the required Long-Term Bicycle Parking Spaces may be designed to meet the requirements for Short-Term Bicycle Parking Spaces, so long as they are covered to be protected from precipitation and are located on the same lot as the residential uses they serve.

6.108 *Modification of Requirements by Special Permit*.

6.108.1 Any requirement set forth in this Section 6.100 may be modified upon the granting of a special permit by the Planning Board. Given that community standards for bicycle use and bicycle parking have evolved and may continue to evolve in the future, the intent of this provision is to provide a mechanism for the review and approval of alternative technologies and methods for providing bicycle parking that may provide equal or greater benefits to bicycle users but may not conform to the exact requirements set forth in this Section.

6.108.2 *Bicycle Parking Plan Requirements*. When seeking a special permit pursuant to this Section 6.108, the Applicant shall provide a Bicycle Parking Plan as part of the Special Permit Application. Such plan shall include the proposed quantities and locations of bicycle parking facilities as well as exact details and specifications of the design and layout of proposed Bicycle Parking Spaces. The Bicycle Parking Plan shall include a narrative listing the requirements that are proposed to be modified and explaining how the Bicycle Parking Plan would benefit from such modifications. The Bicycle Parking Plan may also include quantitative analyses of expected bicycle usage for the proposed land uses.

6.108.3 *Findings and Approval*. Upon granting a special permit to modify any requirements of this Section 6.100, the Planning Board shall make a general determination that the proposal is consistent with the purpose of this Section 6.100 and that the Bicycle Parking Plan proposes a quantity, design and arrangement of bicycle parking that will serve bicycle users in a way that is sufficiently comparable, given the circumstances of the specific project, to the bicycle parking that would be required under the regulations of this Section 6.100. The Planning Board shall also make specific determinations applicable to the modifications being sought as set forth below:

a. Where an alternative design or layout of Bicycle Parking Spaces is proposed, the Planning Board shall determine that such design or layout shall be durable and convenient for the users whom it is intended to serve. Where new technologies are proposed, the Board may require that the Applicant demonstrate such technologies for review by City staff.

b. Where modifications to the location or quantity of bicycle parking is proposed, the Planning Board shall determine that the Bicycle Parking Plan will satisfactorily serve the needs of all expected users, based on quantitative and/or qualitative evidence provided by the Applicant. Such a modification may be appropriate for a campus master plan or other large development site within which bicycle parking is planned comprehensively across an area instead of on a specific site-by-site basis.

(Ord. No. 2024-2, 6-24-2024; Ord. No. 2025-1, 2-10-2025)

ARTICLE 7.000 SIGNS AND ILLUMINATION

7.10 SIGNS
7.20 ILLUMINATION
7.30 SEVERABILITY

7.10 SIGNS

7.11 *Findings and Purpose*.

7.11.1 Findings. This Article is based upon the following findings:

A. The City of Cambridge has been and is now taking appropriate action, through exercise of its zoning and other municipal authority, to improve the aesthetics and physical appearance of the City by means including the regulation of signs.

B. The regulation of signs is necessary in order to preserve and enhance the substantial governmental interests of the City of Cambridge in its natural, scenic, historic, cultural, and aesthetic qualities.

C. There is a substantial governmental interest in enhancing the physical appearance of all parts of the City of Cambridge, including residential, commercial, and industrial areas.

D. Regulating signs will improve the City's appearance; make the City's commercial, residential, and industrial areas more attractive for commercial and residential uses and commercial development; and enhance the economic climate of the City.

E. The regulations set forth in this Article will directly advance the public interest in aesthetics and other qualities of life by preserving and enhancing the appearance of residential, commercial and industrial buildings and areas; preserving and enhancing the appearance of public streets, parks and other public properties; and minimizing the intrusiveness of sign structures.

F. Nonconforming off-premise signs, which traditionally have been used primarily to advertise commercial goods and services not available on the same premises, have a significantly greater adverse aesthetic impact than on premises signs because of their larger sizes, greater heights, less attractive appearances, and/or more intrusive locations.

G. The public interest is served by use of signs by businesses and services to identify their premises, or the products or services there available, or to display noncommercial messages.

H. The City finds that it is in the City's interest to require removal of certain nonconforming signs after the grace period provided by Section 7.18 has expired.

I. The City in enacting this ordinance does hereby adopt the findings, conclusions, and recommendations of the Planning Board in its report dated March 7, 1991.

7.11.2 Purposes. The purposes of this Article are to preserve and enhance the substantial interests of the City of Cambridge in the appearance of the City; to preserve and enhance the public

interest in aesthetics; to preserve and increase amenities of the City; to control and reduce visual clutter and blight; and to carry out the authority conferred by General Laws Chapter 40A.

7.12 Applicability.

A. General Applicability. No signs or advertising devices of any kind or nature shall be erected or maintained on any premises or affixed to the inside or outside of any structure to be visible from the outside of any structure except as specifically permitted in this Article 7.000.

B. MXD District. The provisions of this Section 7.10 shall not be applicable in the MXD District, Article 14.000 of this Ordinance, during the life of the Kendall Square Urban Renewal Plan, as amended.

C. Signs in the Public Way. Signs and banners located entirely within a public way are not subject to the provisions of this Article 7.000 except as may be specifically provided for elsewhere in this Article 7.000.

7.13 *Definitions*.

7.13.1 Sign. Sign shall mean and include any permanent or temporary structure, device, letter, words, model, banner, pennant, insignia, trade flag, or representation used as, or which is in the nature of, an advertisement, announcement, or direction and which is designed to be seen from the outside of a building.

7.13.2 Types of Signs:

A. Free Standing Sign - A sign that is attached to or part of a completely self-supporting structure and which is not attached to any building or other structure.

B. Projecting Sign - Any sign, other than a wall sign or free standing sign, that is attached to and projects from a building face. A projecting sign shall include marquee, canopy, and awning mounted signs.

C. Wall Sign - Any sign affixed in such a way that its exposed face and all sign area is parallel or approximately parallel to the plane of the building to which it is attached. A wall sign shall be considered a projecting sign if the sign face projects more than twelve (12) inches from the face of the building. Wall signs shall include signs located on or behind the surface of windows.

7.13.3 Illumination:

A. Natural - natural or ambient light.

B. External - artificial illumination from a light source which provides light directly onto the sign face, or portions of the sign face, or its background, which light is then reflected back to the viewer.

C. Internal - artificial illumination from a light source located behind the sign face and which transmits light through the sign face or portions of the sign face to the viewer. Exposed neon tubing and similar lighting shall be considered internal illumination.

D. Indirect - placement of the artificial light device such that the source of light cannot be seen from a public way.

7.13.4 Premises: That part of a lot, building or structure occupied by a business, enterprise, institution, or other person and which is distinct and separate from the place occupied by any other business, enterprise, institution or other person.

7.13.5 Sign Frontage: The length of a building, or the length of a separate and distinct first floor establishment, abutting a street. The length of the building or ground floor establishment shall be that as defined in Section 5.24.4 of this Ordinance.

7.13.6 Establishment, Ground Floor: A separate and distinct use, business, enterprise, or institution having a separate public entrance to the outside of a building, which entrance is at grade or within six feet of grade as measured at the street line.

7.14 *Calculations of Area and Height of Signs*.

A. For a free-standing sign or sign attached to a building, the area of the sign shall be considered to include all lettering, wording, and accompanying designs and symbols, together with the background, whether open or enclosed, on which they are displayed, but not including any supporting framework and bracing which are incidental to the display itself.

B. For a sign painted upon or applied to a building, the area of the sign shall be considered to include all lettering, wording, and accompanying designs or symbols, together with any background of a color different from that of the building.

C. For all signs, where a color or graphic pattern constitutes a Corporate or Brand Identification (by custom, contract or practice) as illustrated in advertising or in sign or building designs employed at multiple locations, the full extent of that background color or graphic pattern shall be calculated as part of the sign area when it is associated with any logo, lettering, or other graphic element constituting a sign.

D. Where the sign consists of individual letters or symbols attached to or painted on a surface, wall or window, the area of the sign shall be considered to be that of the smallest rectangle or other geometric shape which encompasses all letters and symbols.

E. Only one face of a two-sided sign shall be counted in computing the area of a sign, provided the sign faces are parallel and of equal size.

F. The height of a sign shall be the vertical distance between the top of a sign and the mean grade of the ground adjoining that portion of the building to which the sign is attached; or that ground within ten feet of a free-standing sign.

7.15 *General Limitations for All Signs Permitted in the City of Cambridge*.

A. Signs shall be stationary and may not contain any visible moving or moveable parts.

B. All lighting shall be indirect, continuous, and installed in a manner that will prevent direct light from shining onto any street or adjacent property. Flashing or intermittent

light creating flashing, moving, changing or animated graphics is prohibited, except that a warning sign, a device intended to tell the time and temperature, or official traffic and directional signs may have intermittent illumination.

C. No illumination shall be permitted after 11 P.M. in any Residence C-1 district.

D. No sign, portion of a sign, or structural support for such sign may extend above the lowest point of the roof of a building, except that for one-story buildings having a continuous parapet above the lowest point of the roof, signs may be placed below the highest point of such parapet rather than below the lowest point of the roof.

E. Except as may be provided elsewhere in this ordinance for temporary signs, all signs shall be permanently mounted on a building or structure or permanently implanted in the ground. All graphic images on a sign shall be of durable material.

7.16 *Permitted Signs*. The signs and advertising devices which are permitted in the City of Cambridge are set out below.

7.16.1 Exempt, Temporary and Noncommercial Signs. The following signs shall be exempt from restrictions as to type, location, height, and size of signs or limitations as to the total area of signs permitted on a lot or business, as those limits are set forth in Section 7.16.2. Except as otherwise noted, such signs shall be naturally or externally illuminated only and shall be subject to all other provisions of this Article 7.000.

7.16.11 Exempt Signs.

A. In all districts:

1. Signs not visible from a public way. (All illumination permitted.)

2. Official traffic and directional signs, including bus and shuttle schedules. (All illumination permitted.)

3. Other signs in the public way.

4. Signs necessary for public safety and convenience not exceeding six (6) square feet per sign face, provided such signs contain no advertising.

5. Flags of a city, state or country.

6. Memorials such as grave stones and corner stones.

7. Historical site plaques installed or approved by a public Agency or duly established historical society.

8. Window display of merchandise or signs incidental to such display.

9. Signage necessary or appurtenant to the placement or operation of a Public Bicycle-Sharing Station (All illumination permitted.)

B. In business, office and industrial districts:

1. Permanent nonilluminated signs behind the glass of a window above the ground floor, provided:

(a) The total area of the sign(s) does not exceed 20% of the area of the glass of the window;

(b) The window is part of the premises to which the sign is accessory;

(c) The sign consists of individual letters or symbols affixed to the window or mounted on a clear, transparent background;

(d) The individual symbols or letters do not exceed 6" in height.

2. Permanent nonilluminated signs mounted on awnings on the ground floor of a building provided:

(a) The total area of the sign does not exceed 2 square feet and the height of individual symbols or letters does not exceed 6";

(b) The sign consists of individual letters or symbols affixed to the fabric of the awning;

(c) No other graphic material appears on the awning.

7.16.12 Temporary Signs.

A. One for sale or for rent sign not exceeding six (6) square feet in residential districts or twenty (20) square feet in nonresidential districts and advertising only the premises on which the sign is located.

B. Building contractor's, promotional, leasing and other similar signs maintained on a lot during construction on that lot not exceeding in total area that area permitted by the application of the formula: one (1) square foot for each linear foot of sign frontage on the lot (after construction), or one hundred (100) square feet in business, office and industrial districts or twenty (20) square feet in residential districts, whichever is smaller. However, where a specific sign dimension is mandated by any city, state, or federal subsidy or support program providing assistance to the construction on the lot, which sign is greater in area than would be permitted in this paragraph, then the larger sign shall be permitted.

C. Temporary signs of a noncommercial nature, including political signs of any kind, not exceeding twenty (20) square feet in area.

D. In business, office, and industrial districts, temporary signs pertaining to special sales or events lasting no more than fifteen days, affixed to the inside of windows, provided that their total area does not exceed 30% of the area of the window glass to which they are affixed.

7.16.13 Non Commercial Signs. In all districts, noncommercial signs which contain only noncommercial messages, including political messages of any kind, may be displayed, provided the sign does not exceed ten (10) square feet in area. This Section 7.16.13 shall not limit the effect of Section 7.17 on the display of noncommercial messages on permitted signs.

7.16.2 All Other Permitted Signs.

7.16.21 Signs in Residence Districts.

A. Identification Sign for Residential Uses:

Total Area of Signage Permitted per Lot: as permitted below.

Maximum Permitted

Area of sign:	1 sq. ft./dwelling unit to a maximum of 10 sq.ft./dwelling
Number of signs:	One (1)/dwelling
Height of sign:	4 ft. if free standing; 10 ft. if on a building
Location:	On building or a minimum of 3 feet from street line if free standing.
Illumination:	Natural or external lighting only
Limitations:	For the display of street number, name of occupant of the premises, and/or identification of an accessory professional office or other permitted accessory uses including customary home occupation.

B. Identification Sign, Bulletin Board or Announcement Board for Permitted Nonresidential Uses Other than Permitted Hotel and Office Uses.

Maximum Permitted

Area of sign:	One at 10 sq. ft., one at 20 sq. ft.
Number of signs:	Two/building
Height of sign:	4 ft. if free standing
Location:	On building or minimum of 1/2 the depth of required front yard if free standing
Illumination:	Natural or external lighting only

C. Signs for Lawfully Maintained Nonconforming Uses. Total Area of Signage Permitted per Lot: One (1) sq. ft. for each linear foot of sign frontage on the lot or 10 sq. ft. per ground floor establishment, whichever is less. However, individual signs shall be further limited as set forth below.

Maximum Permitted

Area of sign:	10 sq. ft.
Number of signs:	One per ground floor establishment plus one per building
Height of sign:	20 ft. if attached to building, 4 ft. if free-standing
Location:	On building or 1/2 depth of required front yard if free standing
Illumination:	Natural or external lighting only

D. Permitted Hotel and Office Use:

Total Area of Signage Permitted Per Lot: One (1) sq. ft. for each linear foot of sign frontage on the lot or 200 sq. ft. per building, whichever is less.

Maximum Permitted

Area of sign:	As permitted in Section 7.16.22
Number of signs:	As permitted in Section 7.16.22
Height of sign:	As permitted in Section 7.16.22
Illumination:	Natural or external lighting only

7.16.22 All Business, Office, and Industrial Districts. Total Area of Signage Permitted per Lot: One and a half (1 1/2) sq. ft. for each linear foot of sign frontage on the lot for sign frontage located one hundred (100) feet or less from the street line; provided that the total area of all signs on the exterior of the building, including free standing signs, shall not exceed one (1) square foot for each linear foot of sign frontage; or two (2) sq. ft. for each linear foot of sign frontage on the lot for sign frontage located more than one hundred feet from all street lines from which the sign frontage is visible. However, signs shall be further limited as set forth below.

A. Free Standing Signs:

Maximum Permitted

Area of sign:	30 sq. ft.
Number of signs:	Two, provided the total area of all such signs shall not exceed 30 sq ft. on any lot.
Height of sign:	15 ft.
Illumination:	Natural or external lighting only

B. Projecting Signs:

Maximum Permitted

Area of sign:	13 sq. ft.
Number of signs:	One (1)/ground floor establishment, plus one (1) for any public building entrance not serving a ground floor establishment
Height of sign:	20 ft., provided it is below the sill line of the second floor windows or the lowest point of the roof, whichever is less
Illumination:	Natural or external lighting only

C. Wall Signs:

Maximum Permitted

Area of sign:	No individual sign may exceed sixty (60) sq. ft. in area.

Maximum Permitted

However, for any building or ground floor establishment having a sign frontage less than sixty (60) ft., the maximum area of any individual sign shall be the product of the formula: sign frontage x one (1) sq. ft.

Number of signs: Not Limited

Height of sign: 20 ft., provided it is below the sill line of the second floor windows or the lowest point of the roof, whichever is less

Illumination:

1. Natural or external lighting;

2. Exposed neon or gas ultra-violet tube type lighting behind the glass of windows, not exceeding five (5) sq. ft. in area;

3. Other internal illumination including any other exposed neon type lighting not included in (2) above under the following conditions:

   a. Either the vertical or horizontal dimension of the sign does not exceed thirty (30) inches; and

   b. The sign:

      (1) Is located behind the glass of a window, or

      (2) Is mounted such that the sign face does not extend more than two (2) inches beyond the plane of that portion of the building façade to which the sign is attached, or if extending more than two (2) inches beyond the plane of the building, only that portion of the sign face consisting of letters and numerals is illuminated, or

      (3) Consists of independent, individual letters or graphic symbols mounted directly to the surface of the building facade to which the sign is attached or is mounted on an unilluminated raceway or channel which is then directly attached to the building facade.

D. Special Use Signs:

1. Wall and Free Standing Signs Accessory to Theaters and Cinemas. A wall or free standing sign accessory to a theater or cinema which announces the current program at the theater or cinema shall not be subject to the limitations of paragraphs A or C above or of Section 7.16.3, paragraphs A and B, provided the following conditions are met.

   (a) The maximum area does not exceed one hundred (100) square feet for all signs not meeting the requirements of paragraphs A and C of this Section 7.16.22.

(b) If internally illuminated, the maximum area shall be limited to forty (40) square feet for a single theater, plus an additional twenty (20) square feet for each additional theater served by the same sign, up to the maximum permitted in paragraph (a) above.

(c) The maximum height of the free standing sign shall not exceed twenty (20) feet.

(d) The total area of all signs on the lot shall not exceed the Total Area of Signage Permitted per Lot as limited in this Section 7.16.22.

2. Wall signs for Hotels and Motels. One or more wall signs accessory to a hotel or motel not exceeding two hundred (200) square feet in total area or one hundred (100) square feet for any individual sign shall not be subject to the limitations of paragraph C above or of Section 7.16.3, paragraphs A and B, provided the following conditions are met.

(a) If internally illuminated, the sign shall consist of independent letters or graphic symbols mounted directly to the surface of the building to which the sign(s) is attached.

7.16.23 Special Sign Provisions for Non-Profit Theaters, Other Performance Spaces, Museums, Galleries, Libraries and Cinemas.

Notwithstanding the limitations of Sections 7.16.21 and 7.16.22 above and Section 7.16.3 below, additional signs shall be permitted on lots containing a theater, performance space, museum, library or art gallery owned and operated by a non-profit institution (which institution is granted the educational and religious exemption provided in Section 3 of Chapter 40A) or municipality for the purpose of identifying current and future educational programs, lectures, performances, and exhibits open to the public occurring in those facilities, subject to the following limitations and conditions:

A. The signs may be any combination of wall, projecting or freestanding signs.

B. The signs shall not be subject to the Area of Sign, Height of Sign and Number of Signs limitations found in Sections 7.16.21, 7.16.22 and Section 7.16.3.

C. The signs shall be made of cloth, canvas or other similar flexible material and may only be naturally or externally illuminated.

D. A freestanding sign may not be higher than 25 feet. Signs on a building wall may not be higher than fifty feet.

E. Any individual sign shall be temporary in nature and removed at the conclusion of the event for which it provided notice; at a minimum, however, such signs shall be replaced at intervals not to exceed one year.

F. The maximum area of individual Freestanding or Projecting Signs shall be 50 square feet; the maximum area of individual Wall Signs shall be 200 square feet.

G. The total area of signs permitted on the lot shall be determined by the following:

(a) In non-residential districts the total area of signs on a lot shall be subject to the limitations for Total Area of Signs Permitted Per Lot as set forth in Section 7.16.22 for signs on the outside of the building (and shall be inclusive of any other signs on the lot not employing the provisions of this Section 7.16.23).

(b) In residential districts, the total area of signs on the lot shall be limited by the application of the formula of one square foot of sign for each linear foot of Sign Frontage on the lot for that portion of a building containing the eligible activity (and shall be inclusive of any other signs on the lot not employing the provisions of this Section 7.16.23).

H. All other provisions of this Article 7.000 shall continue to apply.

7.16.3 Application of Sign Frontage Formula.

Where the total permitted area of all signs on a lot or building is determined by the product of the formula: sign frontage x one (1), one and one half (1.5), or two (2) sq. ft., the following rules shall apply.

A. The total area of signs accessory to a ground floor establishment shall not exceed that determined by the application of the sign frontage formula to that ground floor establishment. Where two ground floor establishments occupy the same sign frontage the total permitted area of signs shall be shared equally by the two establishments.

B. The total area of all signs on any single building wall shall not exceed that determined by the application of the formula to the sign frontage for that wall; provided, a wall having no sign frontage may share the sign area permitted on any wall of the building having sign frontage.

7.16.4 Sign Area For Lots Having No Buildings.

In any district where the number or area of signs permitted on a lot is determined by the number of buildings located on said lot, one building shall be assumed to be present for the purposes of Section 7.10 for any use not contained within a building.

Where the total area of signs permitted on a lot is determined by the application of the sign frontage formula, a maximum of 30 sq. ft. of signs shall be permitted on any lot having no sign frontage.

7.16.5 Signs Permitted in Planned Unit Development Districts.

The sign requirements of the base zoning district shall apply, except that when business, office or industrial uses are authorized by the Planned Unit Development special permit the requirements of Section 7.16.22 shall apply to those portions of the Planned Unit Development containing those uses, in lieu of the base district requirements.

7.17 *Noncommercial Messages*.

Any sign permitted under this Article may contain, in lieu of or in addition to any other copy, any noncommercial message.

7.18 *Noncomforming Signs*.

7.18.1 Signs Required to be Removed.

The following nonconforming signs shall be removed within four (4) years from June 10, 1991, or the first date that the sign became nonconforming, whichever is later:

A. Signs located on rooftops.

B. Free standing signs in excess of thirty (30) square feet in area.

C. Wall signs in excess of sixty (60) square feet in area.

D. Projecting signs in excess of ten (10) square feet in area.

7.18.2 Other Signs.

A. Nonconforming signs not covered by Section 7.18.1 above may be altered, provided the basic supporting structure is not altered and further provided that any alterations made to a sign within the past three (3) years do not exceed fifty (50%) percent of the current replacement value of the sign.

B. Notwithstanding the limitations of Section 7.18.2 A above, where it is proposed to replace an existing sign where the ground floor establishment or the building as a whole contains a total area of legal nonconforming signs exceeding the maximum permitted under this Article 7.000, said new sign may be installed and may contain an area of six (6) square feet or that area permitted by the application of the formula: One (1) sq. ft. x sign frontage of the ground floor establishment, to the establishment to which the sign is accessory, whichever is greater; provided, the total area of signs accessory to the ground floor establishment or the building is not increased and all other size limitations for signs are met.

7.19 Community Development Department Certification.

All proposals for signs exceeding twenty-five (25) square feet in area shall be submitted to the Community Development Department for certification. The applicant for such a sign certification shall submit all information necessary for the Department to review the proposed sign for conformance to the requirements of this Article 7.000. The Department shall, within ten (10) business days, provide the applicant with a certification that the proposed sign conforms to the requirements of Article 7.000 or shall notify the applicant that the requirements have not been met. Said certification shall accompany the application for a building permit for the sign to the Inspectional Services Department.

(Ord. No. 2025-1, 2-10-2025)

7.20 ILLUMINATION

In Residence C-1 districts no outdoor floodlighting or decorative lighting, except lighting primarily designed to illuminate walks, driveways, outdoor living areas, or outdoor recreational facilities, and except temporary holiday lighting in use for not longer than a four week

period in any calendar year, shall be permitted. Any permanent lighting permitted by the preceding sentence shall be continuous, indirect, and installed in a manner that will prevent direct light from shining onto any street or adjacent property.

(Ord. No. 2025-1, 2-10-2025)

7.30 SEVERABILITY

The City by enacting this Article intends to regulate signs in order to carry out and achieve the findings and purposes of this Article. The City also wishes to require removal of certain non conforming signs to the maximum extent lawfully possible and in accordance with the effective date and removal schedule set forth in Section 7.18.1. Therefore, should any part of the City's Ordinance be declared invalid by a court of competent jurisdiction, then it is the specific intent of the City that the remainder of the Ordinance not specifically declared invalid shall continue in full force and effect as if and when originally enacted by the City.

ARTICLE 8.000 NONCONFORMITY

8.10 EXISTING BUILDINGS
8.20 NONCONFORMANCE

8.10 EXISTING BUILDINGS

8.11 This Ordinance shall not apply to existing buildings or structures, nor to the existing use of any building or structure or of land, to the extent to which it is used at the time of first publication of notice of public hearing by the Planning Board of applicable provisions of this or any prior Ordinance, but it shall apply to any change of use thereof and to any alteration of a building or structure when the same would amount to reconstruction, extension or structural change, and to any alteration of a building or structure to provide for its use for a purpose or in a manner substantially different from the use to which it was put before alteration, or for its use for the same purpose to a substantially greater extent.

8.12 Except as herein provided no building or structure or land shall be used and no building or other structure or part thereof shall be constructed, extended or structurally altered except in conformity with the State Building Code and with the provisions of this Ordinance applying to the district in which said building, structure or land is located.

8.20 NONCONFORMANCE

8.21 Any nonconforming structure or use which existed at the time of the first notice of public hearing by the Planning Board of the applicable provisions of this or any prior Ordinance or any amendment thereto may be continued or changed to be conforming, but when so changed to be conforming it shall not be made nonconforming again.

8.22 As provided in Section 6, Chapter 40A, G.L., permits for the change, extension, or alteration of a pre-existing nonconforming structure or use may be granted as permitted in Subsections 8.22.1 and 8.22.2 below. Such a permit, either a building permit in the case of the construction authorized in Section 8.22.1 or a special permit in the case of construction authorized in Section 8.22.2. may be granted only if the permit granting authority specified below finds that such change, extension, or alteration will not be substantially more detrimental to the neighborhood than the existing nonconforming structure or use.

8.22.1 The following alterations, reconstructions, extensions, and/or enlargements of nonconforming structures, which do not result in a use for a substantially different purpose or for the same purpose in a substantially different manner or to a substantially greater extent than the existing use, or which are undertaken to accommodate a new conforming use, shall be permitted after the issuance of a building permit by the Superintendent of Buildings. Any change, extension or alteration of a nonconforming use shall be subject to the provisions of Subsection 8.22.2.

a. Conforming construction to a structure located on a lot that is nonconforming due to its lot size or lot width and where only that lot width and/or lot size is nonconforming, but which structure meets the requirements of Section 5.21.1.

b. Conforming construction where only the requirements of Article 6.000 are nonconforming and where no change to those elements regulated by Article 6.000 are required or proposed.

c. Construction occurring entirely within a structure, including structural changes, provided there is no increase in an existing or creation of a new violation of the requirements of Article 5.000.

d. Relocation, enlargement, or addition of windows, doors, skylights, or similar openings to the exterior of a building provided that the facade of the building upon which such relocation, enlargement, or addition is occurring (1) conforms to the yard requirements of Article 5.000, or (2) faces a street.

e. Demolition of a structure or portions of a structure that (1) reduces the extent of an existing nonconformity, or that (2) does not increase or otherwise affect any existing nonconformity, and that (3) does not create a new zoning violation.

f. Conforming additions, under Article 5.000, to a structure not conforming to the requirements of Article 5.000 provided that no nonconforming element or aspect of the nonconforming structure is extended or increased and further provided that the nonconforming structure is not thereby increased in area or volume by more than ten (10) percent since the structure first became nonconforming, except there shall be no such limit in area or volume for an addition containing Residences as listed in Section 4.31 a-j. or Religious Purposes uses as listed in Section 4.33.a.

g. Repair, reconstruction, or replacement of any lawfully established nonconforming portions of a building including but not limited to porches, decks, balconies, bay windows and building additions, provided that the repair, reconstruction or replacement does not exceed the original in footprint, volume, or area, and further provided that the area and/or volume of said portions of the building do not exceed twenty-five (25) percent of the area or volume of the entire building.

h. Construction of an addition to the second story of a nonconforming single-family or two-family dwelling which will further violate the yard and height requirements of Article 5.000, but no other requirements of Article 5.000 including FAR, provided that the addition does not extend horizontally beyond the vertical walls of the existing first story of the structure.

i. Addition of a dormer or dormers, as defined in Article 2.000, to a nonconforming single-family or two-family dwelling which may further violate the height, yard, or FAR requirements of Article 5.000 if all of the following conditions are met:

    1. The primary face of each dormer shall not extend horizontally beyond the face of the wall below.

    2. The height of any dormer shall not extend above the existing roof ridge line.

    3. Each dormer shall be set back a minimum of three feet, six inches (3'-6") from the roof at the gable ends.

4. The primary face of each dormer shall have a minimum of 30% clear window coverage.

5. Windows shall not be located on side walls of any dormer.

6. The eave of the existing roof shall be continuous across the length of the wall below any dormer to provide visual separation between the dormer and the existing building.

j. Any construction, alteration, reconstruction, extension or enlargement otherwise permitted in paragraphs (a) through (i) above where the lot is also nonconforming due to the presence of more than one structure containing a principal residential use as prohibited in Section 5.53; or any conforming construction where only the requirements of 5.53 are nonconforming.

8.22.2 The following changes, extensions, or alterations of a pre-existing nonconforming structure or use may be granted in the following cases after the issuance of a special permit. Such a permit shall be granted only if the permit granting authority specified below finds that such change, extension, or alteration will not be substantially more detrimental to the neighborhood than the existing nonconforming use.

a. In an Office, Business, or Industrial District the Board of Zoning Appeal may issue a special permit for the alteration or enlargement of a nonconforming structure, not otherwise permitted in Section 8.22.1 above, or the enlargement (but not the alteration) of a nonconforming use, provided any alteration or enlargement of such nonconforming use or structure is not further in violation of the dimensional requirements in Article 5.000 or the off street parking and loading requirements in Article 6.000 for the district in which such structure or use is located and provided, such nonconforming structure or use not be increased in area or volume by more than twenty-five (25) percent since it first began to be nonconforming, except there shall be no such limit in area or volume for an addition containing Residences as listed in Section 4.31 a-j. or Religious Purposes uses as listed in Section 4.33.a. irrespective of any alteration or enlargement of such uses.

b. In an Office, Business or Industrial District the Board of Zoning Appeal may grant a special permit for the issuance of a certificate of occupancy for the occupancy of an existing building designed and built for nonresidential use by any use permitted as of right in a Business or Industrial District in Article 4.000 of this Ordinance, provided such new use will be carried out entirely within the existing building and provided the off street parking and loading requirements in Article 6.000 for the district in which such building is located will not be further violated.

c. In a Residence District the Board of Zoning Appeal may grant a special permit for the alteration or enlargement of a nonconforming structure, not otherwise permitted in Section 8.22.1 above, but not the alteration or enlargement of a nonconforming use, provided any enlargement or alteration of such nonconforming structure is not further in violation of the dimensional requirements of Article 5.000 or the off street parking

and loading requirements in Article 6.000 for the district in which such structure is located and provided such nonconforming structure will not be increased in area or volume by more than twenty-five (25) percent since it first began to be nonconforming, except there shall be no such limit in area or volume for an addition containing Residences as listed in Section 4.31 a-j. or Religious Purposes uses as listed in Section 4.33.a. irrespective of any alteration or enlargement of such uses.

d. In all districts the Board of Zoning Appeal may grant a special permit for the alteration or enlargement of a preexisting dimensionally nonconforming detached single-family dwelling or two-family dwelling, not otherwise permitted in Section 8.22.1 above, but not the alteration or enlargement of a preexisting nonconforming use, provided that there is no change in use and that any enlargement or alteration of such preexisting nonconforming detached single-family dwelling or two-family dwelling may only increase a preexisting dimensional nonconformity but does not create a new dimensional nonconformity. In order to grant the special permit the Board of Zoning Appeal is required to find that the alteration or enlargement shall not be substantially more detrimental than the existing nonconforming structure to the neighborhood, and that the alteration or enlargement satisfies the criteria in Section 10.43.

8.22.3 Any alteration or enlargement of a nonconforming structure or of a nonconforming use not otherwise permitted in Section 8.22.1 and 8.22.2 above shall be a variance.

8.23 If a nonconforming structure or use shall have been destroyed or damaged by fire, explosion or other catastrophe (except one that has been determined by the City to have been caused intentionally by or on behalf of the owner), such structure may be rebuilt or restored and used again as previously. If a nonconforming structure or use shall have been destroyed, damaged, or caused to be moved as the result of a public taking, said structure or use may be relocated or reconstructed on the lot or on an abutting lot in the same ownership, provided that said relocation or reconstruction does not result in the enlargement of the nonconforming use or structure. In either case, the rebuilding, restoring, relocation or reconstruction shall not require a special permit provided that it commences within twenty-four (24) months after such fire, explosion, catastrophe, public taking, or April 24, 2017 (the date of enactment of this amendment), whichever is later, and is completed within thirty-six (36) months after such fire, explosion, catastrophe, public taking, or April 24, 2017 (the date of enactment of this amendment), whichever is later, and provided that the structure as rebuilt, restored, relocated, or reconstructed shall not be greater in volume, footprint, or gross floor area, shall not further increase any nonconformities than those of the original nonconforming structure, and shall not further violate any dimensional requirements of the Ordinance.

8.24 A nonconforming use of a building or land which has been abandoned or not used for a period of two years shall not thereafter be returned to such nonconforming use. A nonconforming use shall be considered abandoned when the intent of the owner to discontinue use is apparent, or when the use has been discontinued for a period of thirty (30) days, or when

the characteristic equipment and furnishings of the nonconforming use have been removed from the premises and have not been replaced by similar equipment, whichever shall first occur.

8.25 Construction or operation under a building or special permit shall conform to any subsequent amendment of this Ordinance unless the use or construction is commenced within a period of six months after the issuance of the permit and in cases involving construction, unless such construction is continued through to completion as continuously and expeditiously as is reasonable.

(Ord. No. 2021-1, 4-5-2021; Ord. No. 2024-9, 12-16-2024; Ord. No. 2025-1, 2-10-2025; Ord. No. 2025-12, 8-4-2025)

ARTICLE 9.000 PROCEDURES AND ADMINISTRATION

9.10 ENFORCEMENT
9.20 CERTIFICATE OF OCCUPANCY

9.10 ENFORCEMENT

9.11 The Superintendent of Buildings of the City of Cambridge is hereby designated and authorized as the officer charged with the enforcement of this Ordinance.

9.12 From the time of the effective date of this Ordinance the Superintendent of Buildings shall not grant a permit for the construction or alteration of any building or structure if such construction or alteration would be in violation of any of the provisions of this Ordinance whether by the applicant for the permit or by any other party associated with the property involved; nor shall any municipal officer grant any permit or license for the use of any building or land if such use would be in violation of any of the provisions of this Ordinance. No building permit or certificate of occupancy or other permit or license shall be issued for land or for a building or structure to be erected on land which at the time of application is dedicated to the provision of off street parking as required by this Ordinance, unless such new construction or use shall continue to make available the required number of off street parking spaces in addition to the off street parking facilities required for such new construction or use, or unless substitute parking facilities which meet the requirements of Article 6.000 have been first provided. In the event of doubt whether a building permit or certificate of occupancy should be issued in any particular case the Superintendent of Buildings shall deny the application therefore.

9.13 Whenever such permit is refused, because of the violation of some provision of this Ordinance the reason for such refusal shall be clearly stated in writing.

9.14 Every applicant for a building permit for any construction, alteration, or use of any building or land for which a permit is required by law shall, upon request of the Superintendent of Buildings, file such written information, plans, specifications, or other data as shall be deemed necessary for the full and accurate exposition of the proposed construction, alteration or use with relation to the regulations of this Ordinance. Such material shall be kept on file in the records of the Office of Superintendent of Buildings.

9.15 The Superintendent of Buildings, upon accurate information in writing from any citizen, or upon his own initiative, shall institute any appropriate action or proceedings in the name of the City of Cambridge to prevent, correct, restrain, or abate violations of this Ordinance. Any person aggrieved by a violation of any portion of this Ordinance may request in writing that the Superintendent of Buildings enforce the Ordinance. The Superintendent shall notify, in writing, the party requesting such enforcement of any action or refusal to act, and the reasons therefore, within fourteen days of receipt of such request.

9.16 (1) Criminal Penalty. Any person, firm or corporation who violates or refuses to comply with any of the provisions of this Ordinance may, upon conviction, be fined a sum not to exceed three hundred dollars for each offense. Each day, or portion of a day, that any violation is allowed to continue shall constitute a separate offense.

(2) Noncriminal Disposition. Whoever violates any provision of this ordinance may be penalized by a non-criminal disposition as provided in G. L. c. 40, Section 21D. For purposes of this section, the Commissioner of Inspectional Services and his or her designee shall be the enforcing officer. The penalty for each violation shall not exceed three hundred dollars. Each day's violation shall constitute a separate violation.

9.17 In interpreting and applying the provisions of this Ordinance, the requirements contained herein are declared to be the minimum requirements for the purposes set forth. This Ordinance shall not nullify the more restrictive provisions of covenants, agreements, other ordinances or laws, but shall prevail notwithstanding such provisions which are less restrictive.

9.20 CERTIFICATE OF OCCUPANCY

9.21 No land shall be occupied or used, and no building or structure erected or structurally altered after January 25, 1944, shall be occupied or used, in whole or in part, for any purpose until a certificate of occupancy has been issued by the Superintendent of Buildings stating that the building and use comply with the provisions of the Zoning Ordinance of the City of Cambridge and of the State Building Code in effect at the time of issuance. No such certificate shall be issued unless the building and its use and its accessory uses and the uses of all premises are in conformance with the provisions of the Zoning Ordinance and of the State Building Code at the time of issuance. Where a certificate of occupancy was not issued at the time of occupancy or use permitted by the Zoning Ordinance and State Building Code in effect at such time began, the Superintendent of Buildings may issue a validating certificate of occupancy retroactive to the beginning of the occupancy of use. A certificate of occupancy shall be conditional on the adequacy of parking space and other facilities as required by this Ordinance and shall lapse if such space or spaces facilities are used for other purposes.

9.22 A certificate of occupancy shall be required for any of the following in conformity with the State Building Code and the Zoning Ordinance:

(a) Occupancy and use of a building hereafter erected or structurally altered.

(b) Change in use of an existing building to a use of a different classification.

(c) Change in character or the intensity of the use of land.

(d) Any change in use of a nonconforming structure or use.

9.23 In cases where a building permit is required, a certificate of occupancy shall be applied for at the time of the application for a building permit, and shall be issued within ten days after the lawful erection or alteration of the building is completed if the proposed use of the building is permitted by this Ordinance. In cases where a building permit is not required a

certificate of occupancy shall be applied for prior to the happening of any of the events specified in Section 9.22 and shall be issued prior to any such change of use. Such certificates of occupancy shall be posted forthwith by the owner of the property in a conspicuous place on the premises involved for a period of not less than ten days after issuance.

9.24 Pending the issuance of a regular certificate of occupancy, a temporary certificate may be issued for such period as the Superintendent may designate, but not beyond the completion of the project described in the application for the building permit, provided there is compliance with the provisions of the Zoning Ordinance corresponding to the extent of occupancy.

9.25 The Superintendent of Buildings may issue a certificate of occupancy for a nonconforming use which is substituted for an existing nonconforming use of the same type (e.g. retail store for retail store, restaurant for lunch room) and for a nonconforming use which is substituted for an existing nonconforming use where such substitute use is permitted in Article 4.000 as a matter of right in the most restricted Residence district in which a similar such existing nonconforming use is permitted; provided there is no enlargement of volume or area and provided such substitution does not occasion any further violation of applicable regulations of this ordinance.

ARTICLE 10.000 APPEALS, VARIANCES, AND SPECIAL PERMITS

10.10 THE BOARD OF ZONING APPEAL
10.20 APPEALS
10.30 VARIANCES
10.40 SPECIAL PERMITS
10.50 REPETITIVE PETITIONS

10.10 THE BOARD OF ZONING APPEAL

10.11 There shall be a Board of Zoning Appeal, established in accordance with Chapter 40A of the General Laws and all amendments thereto, which shall consist of five members and up to seven associate members appointed by the City Manager. The first appointments shall be made for one-, two-, three-, four-, and five-year terms respectively, and thereafter one appointment for a five-year term shall be made on or before the first day of May in each year. No member shall be appointed for more than two successive full five-year terms. Associate members shall be appointed for two-year terms, the first appointments being for a one-year term and a two-year term. One associate member shall be designated by the Chairman of the Board to sit in the place of any member incapacitated by personal interest or absence, but not otherwise. A member appointed to fill a vacancy shall serve for the remainder of the unexpired term. The Board shall annually in the month of January elect a chairman and a vice-chairman.

10.12 Members and associate members of the Board of Zoning Appeal shall be bona fide residents of Cambridge but not City employees during their terms of office. No member of the Board of Zoning Appeal shall be a member of the Cambridge Planning Board, and not more than one member shall be a member of the Board of Appeal as established under the provisions of the State Building Code.

10.13 The Board of Zoning Appeal shall have the following powers and duties:

(a) To hear and decide appeals as provided by Section 8 of Chapter 40A, G.L., and by Section 10.20 of this Article.

(b) To hear and decide applications for special permits upon which the Board is empowered to act under Section 10.30 of this Article.

(c) To hear and decide appeals or petitions for variances from the terms of this Ordinance, including variances for use, with respect to particular land or structures.

10.14 The Board of Zoning Appeal shall consider any appeal, application or petition at a public hearing held within sixty-five (65) days from the transmittal to the Board of such appeal, application or petition. The Board shall provide notice of such hearing in the manner specified in Section 11 of Chapter 40A, G.L.

10.15 The Board may adopt from time to time such rules of practice and procedure as it may deem necessary to carry into effect the provisions of this Ordinance, and shall keep minutes of its proceedings.

10.16 All appeals, petitions or applications to the Board shall be made in writing on forms prescribed by the Board, shall refer to the specific provision of the Zoning Ordinance involved, and shall exactly set forth the interpretation that is claimed, the use for which the special permit is sought, or the details of the variance that is applied for and the grounds on which it is claimed that the variance should be granted, as the case may be.

10.17 Every decision of the Board of Zoning Appeal shall be by resolution adopted by the affirmative vote of at least four members of the Board. Each resolution shall be filed with the documents pertaining thereto by case number in the office of the Superintendent of Buildings under one of the following headings: Interpretations, Special Permits, or Variances. Copies of each resolution shall be filed simultaneously in the offices of the City Clerk and the Planning Board. Each decision of the Board shall be made within one hundred (100) days after the date of the filing of an appeal, application or petition, except in regard to special permits, as provided in Section 10.42.

(Ord. No. 2022-23, 2-6-2023)

10.20 APPEALS

10.21 Any party specified in Section 8, Chapter 40A, G.L., aggrieved by reason of his inability to obtain a permit or enforcement action or by any order, requirement, decision or determination made by the Superintendent of Buildings or other permit granting authority in the enforcement of this Ordinance may appeal to the Board of Zoning Appeal. Within thirty (30) days after the decision which is being appealed, the aggrieved person may file with the City and the Board of Zoning appeal, a notice of appeal specifying the ground thereof and shall thereupon pay a fee of fifty dollars to the City of Cambridge. The Superintendent of Buildings shall forthwith transmit to the Board of Zoning Appeal all documents and papers constituting the record of the case in which the appeal is taken.

10.22 Any person aggrieved by a decision of the Board of Zoning Appeal, whether or not previously a party to the proceeding, or any municipal office or Board, may appeal to the Superior Court or the Land Court for Middlesex County; provided that such appeal is filed in said Court within twenty (20) days after such decision is filed with the City Clerk.

10.30 VARIANCES

10.31 A variance from the specific requirements of this Ordinance, including variances for use, may be authorized by the Board of Zoning Appeal with respect to particular land or structure. Such variance shall be granted only in cases where the Board finds all of the following:

(a) A literal enforcement of the provisions of this Ordinance would involve a substantial hardship, financial or otherwise to the petitioner or appellant.

(b) The hardship is owing to circumstances relating to the soil conditions, shape or topography of such land or structures and especially affecting such land or structure but not affecting generally the zoning district in which it is located.

(c) Desirable relief may be granted without either:

(1) Substantial detriment to the public good; or

(2) Nullifying or substantially derogating from the intent or purpose of this Ordinance.

10.32 In addition to considering the character and use of nearby buildings and land the Board, in determining its finding, shall take into account the number of persons residing or working in such buildings or upon such land, and the present and probable future traffic conditions. The Board shall also take into account the potential impact of the development to be authorized by the variance on Registered Solar Energy Systems as defined in Section 22.60 of this Zoning Ordinance.

10.33 A variance shall be granted only after a public hearing for which notice has been given by publication and posting as provided in Section 11, Chapter 40A, G.L., and by the installation of on-site notification panels as required in Section 10.42.1. In any of the following cases notice of each application to the Board of Zoning Appeal for a variance shall be transmitted forthwith to the Planning Board which shall within twenty (20) days of the receipt of such notice transmit to the Board of Zoning Appeal a report accompanied by any material, maps, or plans that will aid the latter Board in judging the applications and in determining special conditions and safeguards. The Board of Zoning Appeal shall not render any decision on an application for a variance until said report has been received and considered, or until the twenty (20) day period has expired without receipt of the report whichever is earlier.

(a) Erection or alteration of a building to a height greater than that otherwise authorized under the provisions of this Ordinance.

(b) A change involving a nonconforming use of land in excess of twenty thousand (20,000) square feet.

(c) A change involving a nonconforming use of an existing building or building with a gross floor area in excess of two thousand (2,000) square feet or a floor area ratio more than fifty (50) percent greater than that permitted in the district in which it is located.

(d) A change involving a commercial or industrial use on a lot not previously used for a commercial or industrial purpose.

(e) Any other application for a variance with respect to which the Planning Board certified the Board of Zoning Appeal not later than the date of the public hearing that the granting of such application would materially conflict with the planning principles and policies adopted by the Planning Board.

10.34 In granting a variance the Board may attach such conditions, safeguards, and limitations of time, use and other development features, such as those listed in Section 10.44, as are determined necessary to protect the surrounding neighborhood including the continued existence of any particular structure, but excluding any conditions, safeguards or limitations based upon the continued ownership of the land or structures to which the variance pertains by the applicant, petitioner or any owner.

10.35 If the rights authorized by a variance are not exercised within one year of the date of granting of such variance, they shall lapse and may be reestablished only after notice and new hearing pursuant to this Section 10.30.

10.40 SPECIAL PERMITS

10.41 *Granting Authority*. Special permits may be granted for the Board of Zoning Appeal or by the Planning Board as specified elsewhere in this Ordinance. Each of said boards shall be considered a "special permit granting authority".

10.42 *Procedure*. A special permit shall only be issued following a public hearing held within sixty-five (65) days after filing of an application with the special permit granting authority, a copy of which shall be given to the City Clerk by the applicant. Notice of each application to the Board of Zoning Appeal for a special permit shall be transmitted forthwith to the Planning Board which shall, within thirty-five (35) days of the receipt of such notice transmit to the Board of Zoning Appeal a report accompanied by any material, maps, or plans that will aid the latter Board in judging the application and in determining special conditions and safeguards. The Board of Zoning Appeal shall not render any decision on an application for a special permit until said report has been received and considered or until the thirty-five (35) day period has expired without receipt of the report, whichever is earlier. Failure by a special permit granting authority to take final action upon an application for a special permit within ninety (90) days following the date of public hearing on said application shall be deemed to be a grant of the permit applied for.

10.42.1 *Additional Notification Requirements*. Any applicant for a variance or special permit shall be required to erect and maintain in legible condition one or more public notification panels at the site for which the variance or special permit relief is requested. The required panels shall be secured by the applicant from the Department of Inspectional Services for those permits issued by the Board of Zoning Appeal and shall be secured from the Community Development Department for those permits issued by the Planning Board. The location of any required panel shall be located on a site plan included in the application documents, which location or locations shall be subject to the approval of those respective departments; the mechanics of its installation shall be described in those application documents. The following requirements shall apply:

(a) Location and Number. Panels shall be securely mounted on the subject lot at the street line or within the property, but in any case not more than twenty (20) feet from the street line. However, wherever located, the panel(s) shall be visible, easily identifiable, and legible to persons passing by on the public street, without the necessity of trespass onto private property. For lots having street frontage of two hundred (200) feet or less, one panel shall be installed, One additional panel shall be installed for each additional five hundred (500) feet of street frontage. The panels shall be exempt from any applicable limitation on accessory signs set forth in Article 7.000.

(b) Schedule and Duration. The required panels shall be installed as required in this Section 10.42.1 not less than fourteen (14) days before the date of the public hearing. They shall be maintained in legible condition until a Notice of Decision has been filed with the City Clerk by the permit or special permit granting authority. Panels that are stolen, destroyed, or rendered illegible shall be promptly replaced, and panels shall be promptly removed after the Notice of Decision has been filed.

(c) Contents of Panels. The text of the panel shall generally contain the name of the petitioner; a description of the area or premises; street address or other information adequate to identify the location or area subject of the permit petition; the date, time and place of the public hearing; the subject matter of the hearing; the nature of the action or relief requested; the place where the full application may be inspected; case number of the application; the place where written comments may be directed; the phone number of the municipal agency or contact person where further information may be obtained. Reasonable modifications of the text requirements of this paragraph c shall be permitted to enable the most important information to be provided in the most legible form.

(d) Graphic and Construction Standards. Panels shall not be less than eighteen (18) inches by twenty-four (24) inches in dimension; they may be larger. No text on the panel shall be smaller than 12 point type. Panels shall be made of materials adequately weather resistant and durable for the time they are required to be posted.

10.43 *Criteria*. Special permits will normally be granted where specific provisions of this Ordinance are met, except when particulars of the location or use, not generally true of the district or of the uses permitted in it, would cause granting of such permit to be to the detriment of the public interest because:

(a) It appears that requirements of this Ordinance cannot or will not be met, or

(b) Traffic generated or patterns of access or egress would cause congestion, hazard, or substantial change in established neighborhood character, or

(c) The continued operation of or the development of adjacent uses as permitted in the Zoning Ordinance would be adversely affected by the nature of the proposed use, or

(d) Nuisance or hazard would be created to the detriment of the health, safety and/or welfare of the occupant of the proposed use or the citizens of the City, or

(e) For other reasons, the proposed use would impair the integrity of the district or adjoining district, or otherwise derogate from the intent and purpose of this Ordinance, and

(f) The new use or building construction is inconsistent with the Urban Design Objectives set forth in Section 19.30.

10.43.1 *Conditional Retail or Consumer Service Establishments.* Where a special permit is required for a Retail or Consumer Service Establishment listed in Section 4.35 or 4.36 of this Zoning Ordinance, the special permit granting authority shall consider the following factors when evaluating the criteria in Section 10.43:

(a) Anticipated delivery and loading operations, their potential impacts on neighboring uses and the overall neighborhood, and the extent to which those impacts are mitigated;

(b) The extent to which neighboring uses would be impacted by environmental nuisance such as dust, fumes, odors, smoke, vapors, noise, vibration, flashing, light trespass, or glare, and the extent to which those impacts are mitigated;

(c) The extent to which storefronts and other elements of the façade visible to the public are compatible with the visual character of the surrounding area and conform to the City's urban design objectives for retail uses in the area; and

(d) Where citywide or neighborhood plans have been published by the City that identify types of retail uses that are preferred or desirable in the area, such plans may be considered in support of such identified uses where they are proposed.

10.44 *Conditions*. In acting upon special permits the special permit granting authority shall take into account the general purpose and intent of this Ordinance and, in order to preserve community values, may impose conditions and safeguards deemed necessary to protect the surrounding neighborhood, in addition to the applicable requirements of this Ordinance, such as, but not limited to, the following:

(a) Front, side or rear yards greater than the minimum required by this Ordinance.

(b) Screening of parking areas or other parts of the premises from adjoining premises or from the street by specified walls, fences, planting, or other devices.

(c) Modification of the exterior features or appearance of the structure.

(d) Limitations of size, number of occupants, method or time or operation, or extent of facilities.

(e) Requirement of number, design, and location of access drives or other traffic features.

(f) Requirement of off street parking or other special features beyond the minimum required by this or other applicable codes or regulations.

(g) Control of the number, location, size and lighting of signs.

10.45 Any development application requiring a special permit from the Planning Board that contains elements requiring a special permit from the Board of Zoning Appeal may be allowed by the Planning Board within the scope of the Planning Board special permit and shall not require a separate application to the Board of Zoning Appeal.

10.46 *Expiration*. A special permit granted under this section shall lapse within two years, not including such time required to pursue or await the determination of an appeal to the Superior Court or to the Land Court as provided in Section 10.22 from the grant thereof, if a substantial use thereof has not sooner commenced except for good cause or, in the case of a permit for construction, if construction was not begun by such date except for good cause.

10.47 [Deleted]

10.48 As expressly authorized in Section 9 of the Zoning Act M.G.L., Ch 40A, the following Special Permits, which authorize increases in the permissible density of population or intensity of a particular use in the proposed development, shall be subject to the provisions of Section 11.200 of this Ordinance.

Section 6.35	Reduction in required parking for nonresidential development
Section 20.108	Divergence from dimensional requirements, North Massachusetts Avenue Overlay District
Section 20.54.2(2)	Additional height, Harvard Square Overlay District
Section 20.54.4(2)	Waiver of parking and loading requirements, Harvard Square Overlay District
Section 20.54.5(b)	Exemption from yard requirements, Harvard Square Overlay District
Section 20.63.5	Parkway Overlay District
Section 20.63.7	Divergence from dimensional requirements, Parkway Overlay District
Section 20.95.1	Maximum Floor Area Ratio
Section 20.95.2	Maximum Permitted Height
Section 20.95.34	Waiver of Yard Requirements
Section 20.95.4	Dwelling Unit Density
Section 20.304.2(b),(c)	Additional height, Central Square Overlay District
Section 20.304.4	Waiver of setback requirements, Central Square Overlay District
Section 20.304.6	Waiver of parking requirements, Central Square Overlay District
Section 17.13.1(b)	Additional FAR, Special District I
Section 17.17	Transfer of Development Rights, Special District I
Article 13.000	PUD Districts, all permits.

10.49 Any special permit authorizing new construction or substantial rehabilitation of a building totaling 25,000 square feet or more shall be subject to the provisions of Section 22.20 of the Zoning Ordinance.

(Ord. No. 2021-3, Pt. 5, 6-7-2021; Ord. No. 2025-1, 2-10-2025)

10.50 REPETITIVE PETITIONS

10.51 No appeal, application or petition which has been unfavorably acted upon by the Board of Zoning Appeal or Planning Board shall be acted favorably upon within two years after the date of final unfavorable action unless:

(a) Four members of the Board of Appeal or five members of the Planning Board, depending upon which board took the original action, vote that there are specific and material changes in the conditions upon which the previous unfavorable action was based, and describe such changes in the record of its proceedings;

(b) All but one of the members of the Planning Board consents thereto; and

(c) Notice is given to parties in interest of time and place for the proceedings on such reconsideration findings.

The granting of "leave to withdraw" after application for a variance or special permit has been advertised shall be considered unfavorable action.

ARTICLE 11.000 SPECIAL REGULATIONS

11.10 DELETED
11.20 DELETED
11.30 FAST ORDER OR QUICK-SERVICE FOOD ESTABLISHMENTS
11.40 DELETED (See Article 22.70)
11.50 DELETED (See Article 20.000)
11.60 DELETED (See Article 20.000)
11.70 DELETED (See Article 20.000)
11.80 EMPLOYMENT COMPLIANCE PROCEDURE
11.90 DELETED
11.100 DELETED (See Article 20.000)
11.200 INCENTIVE ZONING AND INCLUSIONARY HOUSING
11.300 DELETED
11.400 DELETED
11.500 PLANNING OVERLAY REQUIREMENTS
11.700 DELETED (see Article 20.700)
11.800 CANNABIS USES

11.10 DELETED

Editor's note—Ord. No. 2025-1, adopted Feb. 10, 2025, repealed 11.10, which pertained to townhouse development and derived from the original Zoning Ordinance.

11.20 DELETED

11.30 FAST ORDER OR QUICK-SERVICE FOOD ESTABLISHMENTS

11.31 In considering applications for Special Permits for Fast Order or Quick-Service Food Establishments and Drive-In Food Service Establishments, the Board of Zoning Appeal shall find, in addition to the other criteria specified in Section 10.40, that the following requirements are met:

(a) The operation of the establishment shall not:

(1) Create traffic problems,

(2) Reduce available parking,

(3) Threaten the public safety in the streets and sidewalks, or

(4) Encourage or produce double parking on the adjacent public street(s),

(b) The physical design, including color and use of materials, of the establishment shall be compatible with and sensitive to the visual and physical characteristics of other buildings, public spaces and uses in the particular location;

(c) The establishment fulfills a need for such a service in the neighborhood or in the city;

(d) The establishment will attract patrons primarily from walk in trade as opposed to drive in or automobile related trade; however, should the Board specifically find that the district or area within which the establishment is proposed to be located does not have significant pedestrian traffic, this requirement need not be met.

(e) The establishment shall, to the greatest extent feasible, utilize biodegradable materials in packaging the food and in the utensils and other items provided for consumption thereof;

(f) The establishment shall provide convenient, suitable and well marked waste receptacles to encourage patrons properly to dispose of all packaging materials, utensils and other items provided with the sale of food; and

(g) The establishment complies with all state and local requirements applicable to ingress, egress, and use of all facilities on the premises for handicapped and disabled persons.

11.32 Establishments seeking to relocate their operations inside the boundary line of the zoning district in which the establishment is located shall not be required to obtain a special permit if both of the following conditions will be met.

11.32.1 The new site shall be within five hundred (500) feet of the original site of the establishment.

11.32.2 There will be no increase in the gross floor area of the establishment at the new site.

11.33 A Special Permit issued for a Fast Order or Quick-Service Food Establishment hereunder may be utilized only by the owner or operator of such establishment as described in the application documents or as those documents may be modified by the conditions of the Special Permit as granted.

In granting a Special Permit under this Section 11.30 the Board shall specifically detail in its decision the types of foods for which the Permit is granted and shall also identify those other aspects of the establishment as outlined in the application documents for which alterations will require the issuance of a new Special Permit.

(Ord. No. 2021-3, § vii, 6-7-2021)

Editor's note—Ord. No. 2021-3, § vii, adopted June 7, 2021, changed the title of § 11.30 from "fast order food establishments" to read as herein set out.

11.40 DELETED (See Article 22.70)

11.50 DELETED (See Article 20.000)

11.60 DELETED (See Article 20.000)

11.70 DELETED (See Article 20.000)

11.80 EMPLOYMENT COMPLIANCE PROCEDURE

11.81 *Purpose*. As specified in Section 1.30, one of the purposes of this Zoning Ordinance is encouragement of the most appropriate use of land throughout the City, including appropriate economic development. Through amendments to this Ordinance and by related actions the City has established a program for promoting new economic development activity in underutilized, industrially zoned districts. As part of its economic development program, the City seeks to promote development which will provide expanded job opportunities for unemployed and underemployed citizens of Cambridge. It is the purpose of this Section

11.80 to ensure that, prior to initiating construction of new employment generating land uses, development entities demonstrate that they have considered and responded to the "Cambridge Citizens Employment Plan."

11.82 *Applicability*. The provisions of this Section 11.80 shall apply to new economic development activity in the Alewife Revitalization District and the South Cambridgeport Revitalization Area and in other major economic revitalization areas designated by City Council through amendments to this Subsection 11.82. The Alewife Revitalization District shall be that area contained within the comprehensive Alewife Area rezoning amendment ordained on June 16, 1980. The South Cambridgeport Revitalization Area shall be that area contained within the comprehensive South Cambridgeport Rezoning Amendment as ordained by City Council on February 10, 1992. For purposes of this Section 11.80, the following shall be considered new economic activity:

11.82.1 Construction of any new building which will be a principal use under Subsections 4.31.1 b (hotel/motel), 4.34 (office and laboratory), 4.35 (retail business and consumer service), 4.36 (drive-in retail and service), 4.37 (light industry, wholesale business and storage) and 4.38 (heavy industry) of the table of use regulations.

11.82.2 Expansion or alteration of an existing building occupied by a principal use included in one of the use categories listed in Subsection 11.82.1, provided that such expansion or alteration will increase the gross floor area of the building by five thousand (5000) square feet or more.

11.83 **Employment Opportunity Certification**. When applying for a building permit for applicable development as specified in Subsection 11.82, the applicant for such permit shall file with the Superintendent of Buildings a certification from the City Manager, or his designee, that the applicant has prepared and filed with the City a statement indicating how the proposed development will comply with the most recently adopted Cambridge Citizens Employment Plan.

(Ord. No. 2024-2, 6-24-2024)

11.90 DELETED

11.100 DELETED (See Article 20.000)

11.200 INCENTIVE ZONING AND INCLUSIONARY HOUSING

11.201 *Purposes*.

The purposes of Sections 11.200 to 11.206 are to promote the public health, safety, and welfare by accommodating the expansion of commercial and residential opportunities throughout the city; by providing for a full range of housing choices throughout the City for households of all incomes, ages, and sizes in order to meet the City's goal of preserving diversity by mitigating the impacts of commercial and residential development on the availability and cost of housing and especially housing affordable to low and moderate income households; by increasing the production of affordable housing to meet anticipated housing and employment needs throughout the city; by providing a mechanism through

which commercial and residential development can contribute in a direct way to increasing the supply of affordable housing in exchange for a greater density or intensity of development than that otherwise permitted as a matter of right; and by establishing standards for the use of such contributions from the application of incentive zoning and inclusionary housing provisions.

11.202 *Incentive Zoning*. The developer or owner of an Incentive Project shall make a Housing Contribution in accordance with this Section 11.202.

(a) Calculation of Housing Contribution. The Housing Contribution shall be calculated by multiplying the Gross Floor Area devoted to the uses that qualify the new development as an Incentive Project by the Housing Contribution Rate effective at the time the Superintendent of Buildings issues the first building permit for the Incentive Project. If a building permit is not required, the Housing Contribution Rate shall be the rate effective at the time the Housing Contribution is provided.

(b) Housing Contribution Rate. The Housing Contribution Rate effective upon ordination shall be thirty-four dollars and fifty-eight cents ($34.58) per square foot of Gross Floor Area, excluding the first 30,000 sq. ft. for Incentive Projects less than 60,000 square feet in total Gross Floor Area, devoted to the uses that qualify the new development as an Incentive Project. The effective rate shall be subject to annual escalation equal to annual percentage increases in the Consumer Price Index (CPI) Housing Index for Boston-Brockton-Nashua, MA-NH-ME-CT or similar index to reflect changes in dollar values over time; however, annual decreases in CPI shall not cause the contribution rate to be decreased. The table below is intended to administratively track changes to the Housing Contribution Rate as it is adjusted over time.

Effective Date	*Housing Contribution Rate*
September 28, 2015	$12.00 per square foot.
September 28, 2016 (Annual Adjustment)	$13.00 per square foot.
November 16, 2016 (CPI Adjustment)	$13.50 per square foot.
September 28, 2017 (Annual Adjustment)	$14.50 per square foot.
October 18, 2017 (CPI Adjustment)	$14.95 per square foot.
September 28, 2018 (Annual Adjustment)	$15.95 per square foot.
November 18, 2019 (CPI Adjustment)	$17.10 per square foot.
January 28, 2020 (City Council Amendment)	$20.10 per square foot.
November 30, 2020 (CPI Adjustment)	$20.31 per square foot.
November 30, 2021 (CPI Adjustment)	$21.02 per square foot.
October 17, 2022 (City Council Amendment)	$33.34 per square foot.
March 1, 2024 (City Council Amendment)	$34.58 per square foot.
May 2, 2025 (CPI Adjustment)	$36.36 per square foot.

(c) Timing of Payment. The developer or owner of an Incentive Project shall provide the Housing Contribution to the Managing Trustee of the Affordable Housing Trust or its designee, who shall certify to the Superintendent of Buildings that the requirements of this Section are met prior to issuance of a certificate of occupancy for the Incentive Project. If the Gross Floor Area of an Incentive Project is subsequently increased

accommodating uses that qualify as Incentive Project uses, then notwithstanding the size of the increase, a Housing Contribution calculated in the manner set forth in this Section shall be provided for every square foot of that increase.

(d) Reevaluation of Housing Contribution Rate. The City shall initiate a reevaluation of the Housing Contribution Rate and any other aspect of these Incentive Zoning Provisions at an interval of no less than three (3) years from the time the previous reevaluation Housing Contribution Rate report first appeared on a City Council regular meeting agenda. Such reevaluation shall include a report provided to the City Council reviewing economic factors including but not limited to development activity, commercial rents per square foot, employment growth, housing trends measured in terms of, but not limited to, vacancy rates, production statistics, and prices for dwelling units, and the nexus between Incentive Projects and housing.

(Memo. of 11-18-2019(1); Ord. No. 1421, 3-16-2020; Ord. No. 2022-14, 10-17-2022; Ord. No. 2022-18, 11-21-2022; Memo. of 3-11-2024; Memo. of 5-2-2025)

11.203 *Inclusionary Housing.*

11.203.1 Applicability.

(a) Except as otherwise provided, this Section 11.203 shall apply in all zoning districts throughout the city.

(b) The requirements of this Section 11.203 shall apply to any Inclusionary Housing Project issued a special permit or, if no special permit has been issued, a building permit on or after December 1, 2016, (the date of the first advertisement of the most recent amendment to this Section 11.203).

(c) For any Inclusionary Housing Project that has been issued a Special Permit for a Planned Unit Development by the Planning Board prior to December 1, 2016, (the date of the first advertisement of the most recent amendment to this Section 11.203), an amendment to that Special Permit that relates to modification of the street layout or other aspects of the Final Development Plan directly resulting from a delay, cancellation, or change in a state controlled infrastructure project shall be subject to the Inclusionary Housing provisions in effect at the time of the issuance of the original Special Permit or any amendment thereto issued prior to December 1, 2016, (the date of the first advertisement of the most recent amendment to this Section 11.203.) In no case shall this provision allow an increase of gross floor area, an increase in the number of units above what is allowed by the Special Permit, or an increase of the maximum height allowed by zoning for the Project.

11.203.2 Inclusionary Housing Requirement.

(a) For Inclusionary Housing Projects issued a special permit or, if no special permit has been issued, a building permit on or after December 1, 2016 (the date of the first advertisement of the most recent amendment to this Section 11.203) but on or before June 30, 2017, fifteen percent (15%) of the total Dwelling Unit Net Floor Area within the project shall be devoted to Affordable Dwelling Units.

(b) For Inclusionary Housing Projects issued a special permit or, if no special permit has been issued, a building permit after June 30, 2017, twenty percent (20%) of the total Dwelling Unit Net Floor Area within the project shall be devoted to Affordable Dwelling Units.

(c) The City shall initiate a reevaluation of the Inclusionary Housing Requirement at an interval of no more than five (5) years from the time the Inclusionary Housing Requirement was last amended. Such reevaluation shall include a report provided to the City Council reviewing factors such as changes in demographic characteristics and residential development activity, housing trends measured in terms of, but not limited to, vacancy rates, production statistics, prices for dwelling units, and affordability, and the relationship between Inclusionary Housing Projects and all housing in Cambridge. The Community Development Department shall also conduct an annual review and report on the Inclusionary Housing Program.

11.203.3 Standards for Providing Affordable Dwelling Units Created through Inclusionary Housing.

(a) Affordable Dwelling Units shall be provided on-site.

(b) Affordable Dwelling Units shall be similar in size, layout, construction materials, fixtures, amenities, and interior and exterior finishes to comparable non-Affordable Dwelling Units in the project.

(c) Affordable Dwelling Units shall have similar access to common areas, facilities, and services as that enjoyed by comparable non-Affordable Dwelling Units in the project including but not limited to outdoor spaces, amenity spaces, storage, parking, bicycle parking facilities, and resident services.

(d) Affordable Dwelling Units shall be dispersed throughout the project rather than concentrated on particular floors, within sections of a building, or within particular buildings in a project with multiple buildings.

(e) Except as specified below for Family-Sized Dwelling Units, the proportionate amounts of Affordable Dwelling Units defined by size and number of bedrooms within the total amount of Affordable Dwelling Units shall be similar to the proportionate amounts of non-Affordable Dwelling Units defined by size and number of bedrooms within the total amount of non-Affordable Dwelling Units in the project.

(f) The ratio of Family-Sized Affordable Dwelling Units to all Affordable Dwelling Units shall be greater than or equal to the ratio of non-Affordable Family-Sized Dwelling Units to all non-Affordable Dwelling Units in the project, notwithstanding that in some cases this may result in a smaller proportion of Affordable Dwelling Units that are not Family-Sized Dwelling Units in the project and a smaller proportion of total Affordable Dwelling Units in the project in order to meet the required percentage of Dwelling Unit Net Floor Area devoted to Affordable Dwelling Units in the project.

(g) Townhouse or multifamily residential projects of at least thirty thousand (30,000) square feet of Dwelling Unit Net Floor Area shall provide Family-Sized Affordable Dwelling Units at a ratio of at least one dwelling unit per every six thousand (6,000)

square feet of required Affordable Dwelling Unit Net Floor Area in the project, rounded to the nearest whole unit with fractions of 0.5 unit or more rounded up and fractions of less than 0.5 unit rounded down, or the ratio derived from paragraph (f) above, whichever is greater.

(h) The ratio of rental to owner-occupied Affordable Dwelling Units shall mirror the ratio of rental to owner-occupied non-Affordable Dwelling Units in the project except that no Affordable Dwelling Units shall be rental Affordable Dwelling Units where a majority of all dwelling units in the project are initially offered for sale.

(i) In cases where the owner and the Community Development Department agree that the above standards, as applied, result in a total Dwelling Unit Net Floor Area of all Affordable Dwelling Units that is less than the Affordable Dwelling Unit Net Floor Area required to be provided pursuant to the Inclusionary Housing Requirement, the remainder of the Inclusionary Housing Requirement shall be met through a monetary contribution to the Affordable Housing Trust equal to the amount of subsidy necessary to create an equivalent amount of Affordable Dwelling Unit Net Floor Area in a project assisted by the Affordable Housing Trust. The Affordable Housing Trust shall periodically provide to the Community Development Department a report on projects it has assisted from which the Community Development Department shall calculate the amount of subsidy necessary to create a square foot of Dwelling Unit Net Floor Area in an affordable housing project assisted by the Affordable Housing Trust. Such calculation may be adjusted by the Community Development Department from time to time. Prior to issuance of a building permit for the project, the Community Development Department shall multiply the calculated per-square-foot amount by the outstanding Affordable Dwelling Unit Net Floor Area necessary to satisfy the Inclusionary Housing Requirement to determine the necessary monetary contribution, which shall be made prior to the issuance of any certificate of occupancy for the project.

11.203.4 Standards for Eligibility, Rent, Initial Sale Price, and Parking Fees for Affordable Dwelling Units Created through Inclusionary Housing.

(a) Affordable Dwelling Units shall be rented or sold only to Eligible Households, with preference given to Cambridge residents, in accordance with standards and procedures related to selection, transfers, asset limits, and marketing established by the Community Development Department.

(b) Affordable Dwelling Units shall be created and conveyed subject to recorded covenants guaranteeing the permanent availability of the Affordable Dwelling Units for Eligible Households.

(c) For rental Affordable Dwelling Units:

(i) The gross household income of an Eligible Household upon initial occupancy shall be at least fifty percent (50%) and no more than eighty percent (80%) of AMI. A gross household income less than fifty percent (50%) of AMI may be

permitted in the case of an Eligible Household having a rental subsidy allowing it to pay a rent equivalent to that paid by an Eligible Household with a gross household income within the range set forth above.

(ii) Rent, including utilities and any other fees routinely charged to tenants and approved by the Community Development Department, shall not exceed thirty percent (30%) of the gross household income of the Eligible Household occupying the Affordable Dwelling Unit, except that in the case of Affordable Studio Dwelling Units, rent shall not exceed twenty-five percent (25%) of the gross household income of the Eligible Household occupying the Affordable Dwelling Unit.

(iii) After initial occupancy, the gross household income of an Eligible Household shall be verified annually to determine continued eligibility and rent, in accordance with policies, standards, and procedures established by the Community Development Department.

(iv) An Eligible Household may continue to rent an Affordable Dwelling Unit after initial occupancy even if the Eligible Household's gross household income exceeds eighty percent (80%) of AMI, but if the Eligible Household's gross household income exceeds one hundred percent (100%) of AMI, or a percentage promulgated in a regulation by the Community Development Department from time to time, for more than one year after that Eligible Household's gross household income has been verified to exceed such percentage, the dwelling unit shall no longer qualify as an Affordable Dwelling Unit and either the dwelling unit must be rented to a new Eligible Household or a comparable non-Affordable Dwelling Unit in the project must become an Affordable Dwelling Unit.

(v) An Eligible Household may continue to rent an Affordable Dwelling Unit after initial occupancy even if the Eligible Household's gross household income falls below fifty percent (50%) of AMI, but the Eligible Household shall pay a rent that is no less than thirty percent (30%) of forty percent (40%) of AMI or, in the case of an Affordable Studio Dwelling Unit, the Eligible Household shall pay a rent that is no less than twenty-five percent (25%) of forty percent (40%) of AMI.

(vi) Where an optional parking fee exists, it shall not exceed the lesser of the following amounts for Affordable Dwelling Units:

i. an amount calculated by applying to the rent of the Affordable Dwelling Unit the ratio of optional parking fee to rent for comparable non-Affordable Dwelling Units with the lowest non-affordable rent in the project, or

ii. an amount which, when added to the rent for an Affordable Dwelling Unit, shall not exceed thirty-three percent (33%) of the renting Eligible Household's gross household income or, in the case of an Affordable Studio Dwelling Unit, twenty-eight percent (28%) of the renting Eligible Household's gross household income.

(vii) Notwithstanding the requirements set forth in (i) through (vi) above, an owner may voluntarily choose to charge a lower rent than as provided herein for Affordable Dwelling Units or to rent Affordable Dwelling Units to Eligible Households with lower gross household incomes than as provided herein.

(d) For owner-occupied Affordable Dwelling Units:

(i) The gross household income of an Eligible Household upon initial occupancy shall be no more than one hundred percent (100%) of AMI.

(ii) The initial sale price of an Affordable Dwelling Unit shall be determined to ensure that the monthly housing payment (which shall include debt service at prevailing mortgage loan interest rates, utilities, condominium or related fees, insurance, real estate taxes, and parking fees, if any) shall not exceed thirty percent (30%) of ninety percent (90%) of monthly AMI, except that in the case of an Affordable Studio Dwelling Unit, the monthly housing payment shall not exceed twenty-five percent (25%) of ninety percent (90%) of monthly AMI.

11.203.5 Relaxation of Dimensional Requirements for Inclusionary Housing Projects.

The following relaxations of the dimensional requirements in any zoning district, including base or overlay zoning districts, shall be permitted as-of-right for an Inclusionary Housing Project:

(a) If a limitation on GFA or FAR is applicable within the district, the Gross Floor Area permitted by the applicable zoning may be increased by thirty percent (30%), as long as such additional Gross Floor Area is used for residential uses not including hotel or motel use.

(b) If a limitation on the number of dwelling units is applicable within the district, the number of dwelling units permitted by the applicable zoning through rules for minimum lot area per dwelling unit or other applicable rules may be increased by thirty percent (30%).

(c) The additional Gross Floor Area or dwelling units permitted herein shall be counted toward the determination of any applicable threshold triggering the requirement of a special permit, including but not limited to Section 19.20 Project Review Special Permit.

(d) In a Residence C-1 district, the maximum height of buildings or portions of buildings used as Residences may be increased to a maximum of 6 stories above grade and 74 feet above grade per the provisions of Section 5.40, Paragraph (2) of this Zoning Ordinance.

11.204 Implementation of Incentive Zoning and Inclusionary Housing.

(a) The City Manager shall have the authority to promulgate regulations for the implementation of the provisions of Sections 11.200 to 11.205. There shall be a thirty day review period, including a public meeting, to receive public comments on draft regulations before final promulgation.

(b) The Community Development Department may develop standards and procedures appropriate to and consistent with the provisions of Sections 11.200 to 11.205.

11.205 Enforcement of Incentive Zoning and Inclusionary Housing.

The Community Development Department shall certify in writing to the Superintendent of Buildings that all applicable provisions of Sections 11.200 to 11.205 have been met before issuance of any building permit for any Incentive Project or Inclusionary Housing Project, and shall further certify in writing to the Superintendent of Buildings that all documents have been filed and all actions taken necessary to fulfill the requirements of Sections 11.200 to 11.205 before the issuance of any certificate of occupancy for any such project.

11.206 Affordable Housing Trust.

The entity "Cambridge Affordable Housing Trust Fund" was established by Chapter 482 of the Acts of 1991, and has been thereafter identified and known as the Cambridge Affordable Housing Trust or the Affordable Housing Trust.

11.206.1 Board of Trustees.

(a) The City Manager shall appoint and chair a nine (9) member Board of Trustees of the Affordable Housing Trust. The Board of Trustees shall be composed of the City Manager and representatives from different sectors of the community concerned with housing policy, including members of City boards and agencies, individuals affiliated with Cambridge non-profit housing organizations, and Cambridge community representatives.

(b) The Trustees shall establish regulations for the operations of the Trust.

(c) The Trustees shall administer the Affordable Housing Trust, whose activities shall include but not be limited to the following:

i. Disburse funds and property pursuant to the provisions of Sections 11.200 to 11.206;

ii. Review and approve or disapprove proposals submitted for use of funds and property;

iii. Advise on the establishment of new programs designed to meet the City's affordable housing needs;

iv. Provide assistance and reports where appropriate to any special permit granting authority authorized to issue a special permit for any development making use of funds from the Affordable Housing Trust; and

v. Advise on policies, standards, and procedures for the implementation of the provisions of Sections 11.200 to 11.206.

11.206.2 Receipt and Use of Funds and Property.

(a) The Affordable Housing Trust may receive funds and property generated by the provisions of Sections 11.200 to 11.206 as well as funds and property generated from other sources.

(b) The funds and property of the Affordable Housing Trust may be used for, but shall not be limited to, the following:

(i) Creation of rental or owner-occupied Affordable Dwelling Units through such mechanisms as favorable financing terms, capital grants to write down project costs, subsidies for land acquisition, subsidies for acquisition of existing structures, and subsidies for acquisition of Affordable Dwelling Units within a larger development;

(ii) Substantial rehabilitation of distressed multifamily residential properties in a manner that preserves the affordability of units through favorable financing terms or capital grants to write down project costs, interest rate subsidies, and loan guarantees with priority funding consideration given to multifamily housing owned by non-profit housing entities that ensure maximum long-term affordability;

(iii) Acquisition and rehabilitation of potential limited equity housing cooperatives or condominium conversions using low interest loans, share loans, or capital grants to write down project costs;

(iv) Preservation of existing affordable housing by providing acquisition and/or financing assistance for Affordable Dwelling Units that are part of a larger development; and

(v) Reasonable administrative expenses necessary to support Affordable Housing Trust activities, including but not limited to payment for consulting services such as legal, appraising, or engineering services, and other project related expenses.

11.207 Affordable Housing Overlay

11.207.1 Purpose and Intent

The purpose of this Section is to promote the public good by supporting the development of housing that is affordable to households earning up to 100% of area median income. The intent of this Section is to allow incremental increases in density, limited increases in height, and relaxation of certain other zoning limitations for residential developments in which all units are made permanently affordable to households earning up to 100% of area median income (referred to as "AHO Projects," as defined in Article 2.000 of this Zoning Ordinance); to incentivize the reuse of existing buildings in order to create AHO Projects that are more compatible with established neighborhood character; to promote the city's urban design objectives in Section 19.30 of this Zoning Ordinance while enabling AHO Projects to be permitted as-of-right, subject to non-binding advisory design consultation procedures that follow all design objectives set forth within this Zoning Ordinance and the results of the design review process shall be provided to the Cambridge Affordable Housing Trust; and to apply such standards throughout the City, to promote city planning goals of achieving greater socioeconomic diversity and a more equitable distribution of affordable housing citywide.

11.207.2 Applicability

(a) The provisions set forth in this Section shall apply to AHO Projects, as defined in Article 2.000 of this Zoning Ordinance, in all zoning districts except Open Space Districts.

(b) An AHO Project shall be permitted as-of-right if it meets all of the standards set forth in this Affordable Housing Overlay in place of the requirements otherwise applicable in the zoning district. Any development not meeting all of the standards set forth in this Affordable Housing Overlay shall be subject to the requirements otherwise applicable in the zoning district, including any requirements for special permits.

11.207.3 Standards for Eligibility, Rent, and Initial Sale Price for AHO Dwelling Units

(a) All dwelling units in an AHO Project shall comply with the standards for AHO Dwelling Units as set forth in this Section.

(b) For all AHO Dwelling Units:

(i) AHO Dwelling Units shall be rented or sold only to AHO Eligible Households, with preference given to Cambridge residents, and former Cambridge residents who experienced a no-fault eviction in Cambridge in the last twelve (12) months, in accordance with standards and procedures related to selection, asset limits, and marketing established by the Housing Department and applicable state funding requirements.

(ii) AHO Dwelling Units shall be created and conveyed subject to recorded covenants approved by the Housing Department guaranteeing the permanent availability of the AHO Dwelling Units for AHO Eligible Households.

(c) For rental AHO Dwelling Units:

(i) The gross household income of an AHO Eligible Household upon initial occupancy shall be no more than one-hundred percent (100%) of AMI.

(ii) At least eighty percent (80%) of AHO Dwelling Units within the project shall be occupied by AHO Eligible Households whose gross household income upon initial occupancy is no more than eighty percent (80%) of AMI.

(iii) Rent, including utilities and any other fees routinely charged to tenants and approved by the Housing Department, shall not exceed thirty percent (30%) of the gross household income of the AHO Eligible Household occupying the AHO Dwelling Unit or other similar standard pursuant to an applicable housing subsidy program which has been approved by the Housing Department.

(iv) After initial occupancy, the gross household income of an AHO Eligible Household shall be verified annually, or on such other basis required by an applicable housing subsidy program which has been approved by the Housing Department, to determine continued eligibility and rent, in accordance with policies, standards, and procedures established by the Housing Department.

(v) An AHO Eligible Household may continue to rent an AHO Dwelling Unit after initial occupancy even if the AHO Eligible Household's gross household income

exceeds the eligibility limits set forth above, but may not exceed one hundred twenty percent (120%) of AMI for more than one year after that Eligible Household's gross household income has been verified to exceed such percentage, unless otherwise restricted pursuant to an applicable housing subsidy program which has been approved by the Housing Department.

(vi) Notwithstanding the requirements set forth in (i) through (v) above, an owner may voluntarily choose to charge a lower rent than as provided herein for AHO Dwelling Units.

(d) For owner-occupied AHO Dwelling Units:

(i) The gross household income of an AHO Eligible Household upon initial occupancy shall be no more than one-hundred percent (100%) of AMI.

(ii) At least fifty percent (50%) of AHO Dwelling Units shall be sold to AHO Eligible Households whose gross household income upon initial occupancy is no more than eighty percent (80%) of AMI.

(iii) The initial sale price of an AHO Dwelling Unit shall be approved by the Housing Department and shall be determined to ensure that the monthly housing payment (which shall include debt service at prevailing mortgage loan interest rates, utilities, condominium or related fees, insurance, real estate taxes, and parking fees, if any) shall not exceed thirty percent (30%) of the monthly income of:

1) A household earning ninety percent (90%) of AMI, in the case of an AHO Dwelling Unit to be sold to an AHO Eligible Household whose income upon initial occupancy is no more than one-hundred percent (100%) of AMI; or

2) A household earning seventy percent (70%) of AMI, in the case of an AHO Dwelling Unit to be sold to an AHO Eligible Household whose income upon initial occupancy is no more than eighty percent (80%) of AMI

(e) An AHO Project meeting the standards set forth herein as approved by the Housing Department shall not be required to comply with the Inclusionary Housing Requirements set forth in 11.203 of this Zoning Ordinance.

11.207.4 Use

(a) In all zoning districts, an AHO Project may contain single-family, two-family, townhouse, or multifamily dwellings as-of-right.

(b) An AHO Project may contain active non-residential uses on the ground floor as they may be permitted as-of-right in the base zoning district or the overlay district(s) that are applicable to a lot, which for the purpose of this Section shall be limited to Institutional Uses listed in Section 4.33, Office Uses listed in Section 4.34 Paragraphs a. through e., and Retail and Consumer Service uses listed in Section 4.35 that provide services to the general public.

11.207.5 Development Standards.

11.207.5.1 General Provisions.

(a) For the purposes of this Section, the phrase "District Development Standards" shall refer to the development standards of the base zoning district as they may be modified by the development standards of all overlay districts (with the exception of this Affordable Housing Overlay) that are applicable to a lot.

(b) District Dimensional Standards shall include the most permissive standards allowable on a lot, whether such standards are permitted as-of-right or allowable by special permit, and inclusive of any additional development permissible under the Inclusionary Housing provisions of Section 11.203.5. A District Dimensional Standard that is allowable by special permit shall include any nondiscretionary requirements or limitations that would otherwise apply.

(c) An AHO Project that conforms to the following development standards shall not be subject to other limitations that may be set forth in Article 5.000 or other Sections of this Zoning Ordinance, except as otherwise stated in this Section.

(d) Section 3.32 shall generally apply to an AHO Project where a zoning district boundary line divides the AHO Lot, except that the AHO Project may choose to apply the requirements of the zoning district that covers the majority of the AHO Lot to the entirety of the AHO Lot as if it were within a single zoning district.

11.207.5.2 Dimensional Standards for AHO Projects.

11.207.5.2.1 Building Height and Stories Above Grade. For an AHO Project, the standards set forth below shall apply in place of any building height limitations set forth in the District Development Standards.

(a) Where the District Dimensional Standards set forth a maximum residential building height of less than seventy-five (75) feet, an AHO Project shall contain no more than nine (9) Stories Above Grade and shall have a maximum height of one hundred (100) feet, as measured from existing Grade.

(b) The height of an AHO Project on an AHO Corridor Lot may be increased from the height limits in Paragraph (a) above, not to exceed twelve (12) Stories Above Grade and a building height of one hundred and forty (140) feet.

(c) Where the District Dimensional Standards set forth a maximum residential building height of seventy-five (75) feet or more, an AHO Project shall contain no more than thirteen (13) Stories Above Grade and shall have a maximum height of one hundred and fifty (150) feet, as measured from existing Grade.

(d) The height of an AHO Project within an AHO Square District may be increased from the height limits in Paragraphs (a) through (c) above, not to exceed fifteen (15) Stories Above Grade and a building height of one hundred and seventy (170) feet.

(e) An AHO Project may exceed the allowable height limitations of the previous paragraphs of this Section, not to exceed three additional stories and thirty-five feet (35') of additional building height, under the following circumstances:

(i) The total gross floor area on the AHO Lot will not exceed 70% of the total lot area multiplied by the maximum number of stories otherwise permitted under the previous paragraphs of this Section; and

(ii) pre-existing, contiguous Green Area Open Space on the AHO Lot will be preserved or expanded, consisting of at least 5% or more of the total area of the AHO Lot; and

(iii) the AHO Project will exceed the minimum required open space as set forth in Section 11.207.5.2.4 of this Article; and

(iv) the AHO Project is not located in a Residence C-1 district, unless it is also on an AHO Corridor Lot or within an AHO Square.

(f) If the height of an existing building on the AHO Lot, or on an abutting lot, exceeds the height limits in the previous paragraphs of this Section 11.207.5.2.1, then the height of the AHO Project may be increased, not to exceed the building height and Stories Above Grade of the existing building.

(g) Where an AHO Project has different applicable Building Height and Stories Above Grade limitations as specified in the preceding paragraphs of this Section 11.207.5.2.1, the most permissive height limitations shall control.

(h) The Height Exceptions set forth in Section 5.23 of this Zoning Ordinance shall apply when determining the building height of an AHO Project.

11.207.5.2.2 Residential Density. There shall be no maximum FAR or minimum lot area per dwelling unit for an AHO Project.

11.207.5.2.3 Yard Setbacks.

(a) For the purpose of this Section, the applicable District Dimensional Standards shall not include yard setback requirements based on a formula calculation as provided in Section 5.24.4 of the Zoning Ordinance, but shall include non-derived minimum yard setback requirements set forth in Article 5.000 or other Sections of this Zoning Ordinance.

(b) Front Yards. An AHO Project shall have no minimum front yard setback.

(c) Side Yards. An AHO Project shall have no minimum side yard setback.

(d) Rear Yards. An AHO Project shall have a minimum rear yard setback of fifteen (15) feet, or may be reduced to the minimum rear yard setback set forth in the District Dimensional Standards if it is less restrictive.

(e) Projecting eaves, chimneys, bay windows, balconies, open fire escapes and like projections which do not project more than three and one-half (3.5) feet from the principal exterior wall plane, and unenclosed steps, unroofed porches and the like

which do not project more than ten (10) feet beyond the line of the foundation wall and which are not over four (4) feet above Grade, may extend beyond the minimum yard setback.

(f) Bicycle parking spaces, whether short-term or long-term, and appurtenant structures such as coverings, sheds, or storage lockers may be located within a required yard setback but no closer than seven and one-half (7.5) feet to an existing principal residential structure on an abutting lot.

11.207.5.2.4 Open Space.

The Open Space requirements set forth in the District Dimensional Standards shall apply except as set forth below:

(a) If the application of the District Dimensional Standards results in a required percentage of Open Space to lot area greater than thirty percent (30%), then the minimum percentage of Open Space to lot area for an AHO Project shall be thirty percent (30%).

(b) If the application of the District Dimensional Standards results in a required percentage of Open Space to lot area greater than fifteen percent (15%), then the minimum percentage of open space to lot area may be reduced to no less than fifteen percent (15%) if the AHO Project includes the preservation and protection of an existing building included on the State Register of Historic Places.

(c) Private Open Space shall not be subject to the dimensional limitations set forth in Section 5.22.1 of this Zoning Ordinance, paragraphs a. through c., but shall exclude parking and driveways for automobiles.

(d) Notwithstanding the foregoing, lots consisting of five thousand (5,000) square feet or less in total lot area that directly abut a Public Open Space consisting of at least one thousand five hundred (1,500) square feet of area shall not have a minimum open space requirement under this Article.

11.207.5.3 Standards for Existing Buildings.

A building that is in existence as of the effective date of this Ordinance and does not conform to the standards set forth in Section 11.207.5.2 above may be altered, reconstructed, extended, relocated, and/or enlarged for use as an AHO Project as-of-right in accordance with the standards set forth below. Except as otherwise stated, the required dimensional characteristics of the building and site shall be those existing at the time of the conversion to an AHO Project if they do not conform to the standards of Section 11.207.5.2. The following modifications shall be permitted as-of-right, notwithstanding the limitations set forth in Article 8.000 of this Zoning Ordinance:

(a) Construction occurring entirely within an existing structure, including the addition of Gross Floor Area within the interior of the existing building envelope, and including any increase to the number of dwelling units within the existing building,

provided that the resulting number of Stories Above Grade is not more than the greater of the existing number of Stories Above Grade or the existing height of the building divided by 10 feet.

(b) The relocation, enlargement, or addition of windows, doors, skylights, or similar openings to the exterior of a building.

(c) The addition of insulation to the exterior of an existing exterior wall to improve energy efficiency, provided that the resulting exterior plane of the wall shall either conform to the yard setback standards set forth in Section 11.207.5.2 above or shall not intrude more than eight (8) inches further into the existing yard setback and provided that the lot shall either conform to the open space standards set forth in Section 11.207.5.2 or shall not decrease the existing open space by more than 5% or 100 square feet, whichever is greater.

(d) The installation of exterior features necessary for the existing structure to be adapted to meet accessibility standards for persons with disabilities, including but not limited to walkways, ramps, lifts, or elevators, which may violate or further violate of the dimensional requirements set forth in Section 11.207.5.2.

(e) The repair, reconstruction, or replacement of any preexisting nonconforming portions of a building including but not limited to porches, decks, balconies, bay windows and building additions, provided that the repair, reconstruction or replacement does not exceed the original in footprint, volume, or area.

(f) Any other alterations, additions, extensions, or enlargements to the existing building that are not further in violation of the dimensional requirements set forth in Section 11.207.5.2 above.

11.207.6 Parking and Bicycle Parking

The limitations set forth in Article 6.000 of this Zoning Ordinance shall be modified as set forth below for an AHO Project.

11.207.6.1 Required Off-Street Accessory Parking

(a) There shall be no required minimum number of off-street parking spaces for an AHO Project except to the extent necessary to conform to other applicable laws, codes, or regulations.

(b) Deleted.

11.207.6.2 Accessory Parking Provided Off-Site

(a) Off-street parking facilities may be shared by multiple AHO Projects, provided that the requirements of this Section are met by all AHO Dwelling Units served by the facility and the facility is within 1,000 feet of all AHO Projects that it serves.

(b) Off-street parking facilities for an AHO Project may be located within existing parking facilities located within 1,000 feet of the AHO Project and in a district where parking is permitted as a principal use or where the facility is a pre-existing nonconforming

principal use parking facility, provided that the owner of the AHO Project shall provide evidence of fee ownership, a long-term lease agreement or renewable short-term lease agreement, recorded covenant, or comparable legal instrument to guarantee, to the reasonable satisfaction of the Superintendent of Buildings, that such facilities will be available to residents of the AHO Project.

11.207.6.3 Modifications to Design and Layout Standards for Off-Street Parking

(a) Notwithstanding Section 6.43.2, parking spaces may be arranged in tandem without requiring a special permit, provided that no more than two cars may be parked within any tandem parking space.

(b) Notwithstanding Section 6.43.6, owners of adjacent properties may establish common driveways under mutual easements without requiring a special permit.

(c) Notwithstanding Paragraph 6.44.1(a), on-grade open parking spaces may be located within ten (10) feet but not less than five (5) feet from the Ground Story of a building on the same lot or seven and one-half (7.5) feet from the Ground Story of a building on an adjacent lot without requiring a special permit, provided that such parking spaces are screened from buildings on abutting lots by a fence or other dense year-round visual screen.

(d) Notwithstanding Paragraph 6.44.1(b), on-grade open parking spaces and driveways may be located within five (5) feet of a side or rear property line without requiring a special permit, provided that screening is provided in the form of a fence or other dense year-round visual screen at the property line, unless such screening is waived by mutual written agreement of the owner of the lot and the owner of the abutting lot.

11.207.6.4 Modifications to Bicycle Parking Standards

(a) Notwithstanding Section 6.104, long-term or short-term bicycle parking spaces may be located anywhere on the lot for an AHO Project or on an adjacent lot in common ownership or under common control.

(b) Notwithstanding Section 6.107.5, up to 20 long-term bicycle parking spaces may be designed to meet the requirements for Short-Term Bicycle Parking Spaces, so long as they are covered from above to be protected from precipitation.

(c) The requirement for short-term bicycle parking shall be waived where only four of fewer short-term bicycle parking spaces would otherwise be required.

(d) The number of required bicycle parking spaces shall be reduced by half, up to a maximum reduction of 28 spaces, where a standard-size (19-dock) Public Bicycle Sharing Station is provided on the lot or by the developer of the AHO Project on a site within 500 feet of the lot, with the written approval of the City if located on a public street or other City property, or otherwise by legally enforceable mutual agreement with the owner of the land on which the station is located as approved by the Community Development Department. If additional Public Bicycle Sharing Station docks are

provided, the number of required bicycle parking spaces may be further reduced at a rate of 0.5 bicycle parking space per additional Public Bicycle Sharing Station dock, up to a maximum reduction of half of the required number of spaces.

(e) For AHO Dwelling Units created within an existing building, bicycle parking spaces meeting the standards of this Zoning Ordinance shall not be required but are encouraged to be provided to the extent practical given the limitations of the existing structure. Bicycle parking spaces shall be provided, as required by this Zoning Ordinance, for dwelling units in an AHO Project that are constructed fully outside the envelope of the existing structure.

11.207.6.5. [Deleted]

11.207.7 Building and Site Design Standards for New Development.

11.207.7.1 General Provisions.

(a) Except where otherwise stated, the Project Review requirements set forth in Article 19.000 of this Zoning Ordinance and any design standards set forth in Section 19.50 or elsewhere in the Zoning Ordinance shall be superseded by the following standards for an AHO Project.

(b) The following design standards shall apply to new construction and to additions to existing structures where such construction creates 25,000 or more square feet of GFA. Except as otherwise provided, an existing building that is altered or moved to accommodate an AHO Project shall not be subject to the following standards, provided that such alterations do not create a condition that is in greater nonconformance with such standards than the existing condition.

11.207.7.2 Site Design and Arrangement.

(a) The area directly between the front lot line and the principal wall plane of the building nearest to the front lot line shall consist of any combination of landscaped area, hardscaped area accessible to pedestrians and bicyclists, and usable spaces such as uncovered porches, patios, or balconies. Parking shall not be located within such area, except for driveway access which shall be limited to a total of thirty (30) feet of width for any individual driveway for each one hundred (100) feet of lot frontage.

(b) Pedestrian entrances to buildings shall be visible from the street, except where the building itself is not visible from the street due to its location. All pedestrian entrances shall be accessible by way of access routes that are separated from motor vehicle access drives.

(c) A building footprint exceeding two hundred and fifty (250) feet in length, measured parallel to the street, shall contain a massing recess extending back at least fifteen (15) feet in depth measured from and perpendicular to the front lot line and at least fifteen (15) feet in width measured parallel to the front lot line so that the maximum length of unbroken façade is one hundred fifty (150) feet.

11.207.7.3 Building Façades.

(a) At least twenty percent (20%) of the area of building façades facing a public street or public open space shall consist of clear glass windows. For buildings located in a Business A (BA), Business A-2 (BA-2), Business B (BB) or Business C (BC) zoning district, this figure shall be increased to thirty percent (30%) for non-residential portions of the building, if any.

(b) Building façades shall incorporate architectural elements that project or recess by at least two feet from the adjacent section of the façade. Such projecting or recessed elements shall occur on an average interval of 40 linear horizontal feet or less for portions of the façade directly facing a public street, and on an average interval of 80 linear horizontal feet or less for other portions of the façade. Such projecting or recessed elements shall not be required on the lowest Story Above Grade or on the highest Story Above Grade, and shall not be required on the highest two Stories Above Grade of a building containing at least six Stories Above Grade. The intent is to incorporate elements such as bays, balconies, cornices, shading devices, or similar architectural elements that promote visual interest and residential character, and to allow variation at the ground floor and on upper floors where a different architectural treatment may be preferable.

11.207.7.4 Ground Stories and Stories Below Grade.

(a) [Deleted]

(b) Where structured parking is provided within the Ground Story of a building, the portion of the building immediately behind the front wall plane shall consist of residential units, common areas, or other populated portions of the building in order to screen the provided parking over at least seventy-five percent (75%) of the length of the façade measured parallel to the street and excluding portions of the façade used for driveway access. On a corner lot, the requirements of this Paragraph shall only apply along one street.

(c) The façade of a Ground Story facing a public street shall consist of expanses no longer than twenty-five (25) feet in length, measured parallel to the street, which contain no transparent windows or pedestrian entryways.

(d) If the Ground Story is designed to accommodate active non-residential uses, the following additional standards shall apply:

(i) the height of the Ground Story for that portion of the building containing active non-residential uses shall be at least fifteen (15) feet;

(ii) the depth of the space designed for active non-residential uses shall be at least thirty-five (35) feet on average measured from the portion of the façade that is nearest to the front lot line in a direction perpendicular to the street, and measured to at least one street in instances where the space abuts two or more streets; and

(iii) that portion of the Ground Story façade containing active non-residential uses shall consist of at least thirty percent (30%) transparent glass windows or, if the use is a retail or consumer service establishment, at least thirty percent (30%) transparent glass windows, across the combined façade on both streets in the case of a corner lot.

(e) [Deleted]

(f) New habitable space may be created within Stories Below Grade only if the Flood Resilience Standards of Section 22.70 of this Zoning Ordinance are met.

11.207.7.5 Mechanical Equipment, Refuse Storage, and Loading Areas.

(a) All mechanical equipment, refuse storage, or loading areas serving the building or its occupants that are (1) carried above the roof, (2) located at the exterior building wall or (3) located outside the building, shall meet the requirements listed below. Mechanical equipment includes, but is not limited to, ventilation equipment including exhaust fans and ducts, air conditioning equipment, elevator bulkheads, heat exchangers, transformers and any other equipment that, when in operation, potentially creates a noise detectable off the lot. The equipment and other facilities: (a) Shall not be located within any required setback. This Paragraph (a) shall not apply to electrical equipment whose location is mandated by a recognized public utility, provided that project plans submitted for review by the City identify a preferred location for such equipment.

(b) When on the ground, shall be permanently screened from view from adjacent public streets that are within 100 feet of the building, or from the view from abutting property in separate ownership at the property line. The screening shall consist of a dense year-round screen equal or greater in height at the time of installation than the equipment or facilities to be screened, or a fence of equal or greater height that is comparable in quality to the materials used on the principal facades of the building, with no more than twenty-five (25) percent of the face of the fence open with adjacent planting.

(c) When carried above the roof, shall be set back from the principal wall plane by a dimension equal to at least the height of the equipment and permanently screened from view, from the ground, from adjacent public streets and any abutting residentially used lot or lots in a residential zoning district. The screening shall be at least seventy-five percent (75%) opaque and uniformly distributed across the screening surface, or opaque to the maximum extent permissible if other applicable laws, codes, or regulations mandate greater openness.

(d) Shall meet all city, state and federal noise regulations, as applicable, as certified by a professional acoustical engineer if the Department of Inspectional Services deems such certification necessary.

(e) That handle trash and other waste, shall be contained within the building or screened as required in this Section until properly disposed of.

11.207.7.6 Environmental Design Standards.

(a) This Section shall not waive the Green Building Requirements set forth in Section 22.20 of this Zoning Ordinance that may otherwise apply to an AHO Project.

(b) Where the provisions of the Floodplain Overlay District apply to an AHO Project, the performance standards set forth in Section 20.70 of this Zoning Ordinance shall apply; however, a special permit shall not be required.

(c) An AHO Project shall be subject to other applicable laws, regulations, codes, and ordinances pertaining to environmental standards.

(d) New outdoor light fixtures installed in an AHO Project shall be fully shielded and directed to prevent light trespass onto adjacent residential lots.

11.207.8 Advisory Design Consultation Procedures.

No special permit shall be required for an AHO Project. However, an AHO Project shall be subject to the non-binding design consultation procedures in Section 19.40 of this Zoning Ordinance as set forth below:

(a) An AHO Project that would otherwise require a Project Review Special Permit shall instead be subject to the Planning Board Advisory Consultation procedure set forth in Section 19.47.

(b) An AHO Project that exceeds the height limitations of the underlying district, inclusive of any additional height permissible under the Inclusionary Housing provisions of Section 11.203.5, but does not otherwise meet the size threshold for a Planning Board Advisory Consultation set forth in Section 19.47, shall nonetheless be subject to a Planning Board Advisory Consultation except that the developer may waive the preliminary design consultation and submit all required materials to be reviewed at a single final consultation session.

(c) Except as set forth in (a) and (b) above, an AHO Project shall be subject to Section 19.40 to the extent that a review threshold set forth in that section has been met.

(d) The intent of this non-binding review process is to advance the City's desired outcomes for the form and character of AHO Projects. To promote the City's goal of creating more affordable housing units, AHO Projects are permitted to have a greater height, scale, and density than other developments permitted by the zoning for a given district. This procedure is intended to promote design outcomes that are compatible with the existing neighborhood context or with the City's future planning objectives for the area.

(e) The City's "Design Guidelines for Affordable Housing Overlay," along with the Citywide Urban Design Objectives in Section 19.30 and other design objectives and guidelines established for the part of the city in which the AHO Project is located, are intended to inform the design of AHO Projects and to guide the Planning Board's consultation and report where required. It is intended that designers of AHO Projects, City staff, the

Planning Board, and the general public will be open to creative variations from any detailed provisions set forth in such objectives and guidelines as long as the core values expressed are being served.

(f) The Final Report from the Planning Board or other applicable report required by the procedures of Section 19.40 shall be provided to the Cambridge Affordable Housing Trust in addition to the Superintendent of Buildings to certify compliance with the procedures set forth herein.

11.207.9 Implementation of Affordable Housing Overlay

(a) The City Manager shall have the authority to promulgate regulations for the implementation of the provisions of this Section 11.207. There shall be a sixty-day review period, including a public meeting, to receive public comments on draft regulations before final promulgation.

(b) The Housing Department or Community Development Department may develop standards, design guidelines, and procedures appropriate to and consistent with the provisions of this Sections 11.207 and the above regulations.

11.207.10 Enforcement of Affordable Housing Overlay.

The Community Development and Housing Departments shall certify in writing to the Superintendent of Buildings that all applicable provisions of this Section have been met before issuance of any building permit for any AHO Project, and shall further certify in writing to the Superintendent of Buildings that all documents have been filed and all actions taken necessary to fulfill the requirements of this Section before the issuance of any certificate of occupancy for any such project.

11.207.11 Review of Affordable Housing Overlay.

(a) Annual Report. The Housing Department shall provide an annual status report to the City Council, beginning eighteen (18) months after ordination and continuing every year thereafter. The report shall contain the following information:

(i) List of sites considered for affordable housing development under the Affordable Housing Overlay, to the extent known by the Housing Department, including site location, actions taken to initiate an AHO Project, and site status;

(ii) Description of each AHO Project underway or completed, including site location, number of units, unit types (number of bedrooms), tenure, and project status; and

(iii) Number of residents served by AHO Projects.

(b) Five-Year Progress Review. Five (5) years after ordination, the Housing Department shall provide to the City Council, Planning Board and the Affordable Housing Trust, for its review, a report that assesses the effectiveness of the Affordable Housing Overlay in increasing the number of affordable housing units in the city, distributing affordable housing across City neighborhoods, and serving the housing needs of residents. The report shall also assess the effectiveness of the Advisory Design Consultation Proce-

dure in gathering meaningful input from community members and the Planning Board and shaping AHO Projects to be consistent with the stated Design Objectives. The report shall evaluate the success of the Affordable Housing Overlay in balancing the goal of increasing affordable housing with other City planning considerations such as urban form, neighborhood character, environment, and mobility. The report shall discuss citywide outcomes as well as site-specific outcomes.

(Ord. No. 2020-8, 10-5-2020; Ord. No. 2023-7, 10-16-2023; Ord. No. 2025-1, 2-10-2025; Ord. No. 2025-2, 2-10-2025; Ord. No. 2025-7, 6-2-2025; Ord. No. 2025-9, 6-2-2025)

11.300 DELETED

11.400 DELETED

11.500 PLANNING OVERLAY REQUIREMENTS

Purpose. The purpose of this section is to provide temporarily for review of large scale development in order to ensure conformance with the Cambridge Growth Policy Document, "Towards a Sustainable Future" and guarantee that the city infrastructure can support potential increases in traffic.

11.501 *Term of Effect*. The provisions of this Section 11.500 apply to any building permit granted between Wednesday, July 1, 1998 and Monday, February 12, 2001, inclusive.

11.502 *Applicability*. The provisions of this Section 11.500 apply to all new construction of 50,000 square feet or more of gross floor area or new construction of a parking facility which will cause such facility to have a net increase of more than 150 in the number of nonresidential parking spaces, involving a change of category of use, such categories being defined as those numbered and bolded in Section 4.30 of this Ordinance. The provisions of this section also apply to any project that will bring the total construction on the lot, or an abutting lot or lots that are or have been in common ownership at any time since May 1, 1998, to 50,000 square feet of more gross floor area during the effective period of this section. This section shall not apply to any housing projects with a substantial component of affordable units (defined as more than 25% of units affordable by households making 110% or less of median income). The provisions of this section apply to all zoning district in the City without exception.

11.503 The Planning Overlay Special Permit.

11.510 A Planning Overlay Special Permit shall be required from the Planning Board for all projects subject to this Section 11.502. The Planning Board may request reports from the Community Development Department, Conservation Commission, Historical Commission or other pertinent boards and commissions regarding compliance with Growth Policies 13, 27, 39, and 66 as set forth in Section 11.512. Before a building permit for a project to which paragraph 11.502 applies can be issued, the project must receive a "Planning Overlay Special Permit." The application for the Planning Overlay Special Permit may be simulta-

neous with the application to the Planning Board for other special permits. No application for this permit will be accepted unless it is accompanied, at a minimum, by the following documents:

(a) The information required by the Large Project Submittal Requirements as described in Paragraph 1.45 of this Ordinance.

(b) A traffic study certified as being done in a complete and reliable manner by the Traffic, Parking and Transportation Department. The required traffic study shall include information on Parking Transportation Demand Management measures, which may mitigate projected traffic impacts. Such certifications must be issued or denied within twenty-one (21) days of its request and must only certified the methodology used, not necessarily the accuracy of the data.

Any applicant who has been granted a special permit prior to the effective date of this amendment must apply for a "Planning Overlay Special Permit" by no later than 60 (sixty) days after the issuance of the original special permit.

11.511 *Criteria for Special Permit*.

A. In granting a planning overlay special permit the Planning Board will ensure that the project conforms with the following growth policies as set forth in the Cambridge Growth Policy Document, "Towards a Sustainable Future":

Growth Policy #13. A pace of development or redevelopment should be encouraged that permits the maintenance of a healthy tax base, allows for adjustment and adaptation to changing economic conditions, and is consistent with the City's urban design and other physical development objectives yet does not unreasonably disrupt the daily activities of the city's neighborhoods and residents or overburden the city's water and sewer infrastructure.

Growth Policy #27. Where possible, construct new affordable housing that fits neighborhood character. In existing residential neighborhoods housing should be built at scale, density, and character consistent with existing development patterns. Permit reconstruction of affordable housing (defined as more than 50% of units rented or owned by households at 80% or less than median income) that serves a wide range of incomes and groups at previous nonconforming density where reconstruction is less expensive than rehabilitation. Emphasize construction of affordable housing designed for families with children.

Growth Policy #39. Development patterns in all nonresidential areas must be planned to minimize negative impact on abutting residential neighborhoods.

Growth Policy #66. New open space facilities, including larger ones for organized activities, should be considered for those private developments where the size of the development, the amount of and area and/or the ownership patterns provide the flexibility to accommodate such a facility without loss of economic value for other uses.

B. Additionally, the Planning Board shall, before issuing a special permit, find that the project will have no substantial adverse impact on city traffic. In determining whether

there is a substantial adverse impact, the Planning Board shall apply criteria for measuring traffic impact based on the best available measures of traffic volumes and level of service, as recommended by the Traffic, Transportation and Parking Department. These criteria shall be updated as new data on existing traffic volumes and level of service are compiled.

11.512 *Enforcement*. The Superintendent of Buildings will require certification from the Planning Board that it has issued a special permit to the applicant to which paragraph 11.502 applies before issuing a building permit to that applicant.

11.513 *Expiration*. A Planning Overlay Special Permit will expire one (1) year if construction on the project has not begun and no extension has been granted by the Planning Board. Such extension may only be granted for good cause. If expiration takes place the Superintendent of Buildings will revoke any building permit granted under the special permit effective the date of expiration.

11.700 DELETED (see Article 20.700)

11.800 CANNABIS USES

11.801 Statement of Purpose. The purpose of this section is to provide for the limited establishment of Registered Marijuana Dispensaries for the medical use of cannabis products and Cannabis Establishments for the non-medical use of cannabis products, as they are authorized pursuant to applicable state laws and regulations.

11.802 General Requirements.

11.802.1 Allowed Cannabis Uses.

(a) Cannabis Retail Stores, Cannabis Delivery Operator Establishments, and Cannabis Production Facilities shall be allowed as set forth in the Table of Use Regulations (Section 4.30 of this Zoning Ordinance), subject to the requirements set forth in this Section 11.800, et seq.

(b) Cannabis Retail Stores, Cannabis Delivery Operator Establishments, or Cannabis Production Facilities, as defined in Article 2.000 of this Zoning Ordinance, may be established to provide cannabis products for medical or non-medical use, or both, in accordance with applicable state laws and regulations.

(c) A Cannabis Establishment that is licensed as a Cannabis Independent Testing Laboratory or Cannabis Research Facility pursuant to applicable state laws and regulations, but is not authorized to sell or otherwise transfer Cannabis Products to consumers or to cultivate, manufacture, or otherwise produce Cannabis Products that are intended to be sold or otherwise transferred to consumers, shall be regulated within the Table of Use Regulations in Section 4.30 of this Zoning Ordinance as a Technical Office (Section 4.34, Item "f") or, if such establishment is noncommercial, a

Noncommercial Research Facility (Section 4.33, Item "c"). Such establishment shall comply with all state and local laws and regulations, including regulations promulgated by the Cambridge Public Health Department, where applicable.

11.802.2 Licenses and Registration. A Special Permit (where applicable), Building Permit or Certificate of Occupancy issued pursuant to this Section shall be conditioned on the Permittee maintaining all required state and local licenses and/or registrations and complying with all applicable state and local public health regulations and all other applicable laws, rules and regulations at all times. No Building Permit or Certificate of Occupancy shall be issued for a Cannabis Use that is not properly licensed and/or registered with the applicable state and local agencies.

11.802.3 Limitation of Approval. A Special Permit (where applicable), Building Permit or Certificate of Occupancy authorizing the establishment of a Cannabis Use shall be valid only for the licensed or registered entity to which the permit was issued, and only for the site on which the Cannabis Use has been permitted. If the license or registration for a Cannabis Use has not been renewed or has been revoked, transferred to another controlling entity, or relocated to a different site, a new special permit and/or building permit, where applicable, shall be required prior to issuance of a Certificate of Occupancy.

11.802.4 Building. A Cannabis Establishment shall be located only in a permanent building and not within any mobile facility. All sales, cultivation, manufacturing, and other related activities shall be conducted within the building, except in cases where home deliveries are authorized in accordance with 935 CMR 500.000 and other applicable state and local regulations.

11.803 Location Standards.

11.803.1 Cannabis Retail Stores.

(a) Cannabis Retail Stores shall be allowed only in those districts set forth in the Table of Use Regulations (Section 4.30 of this Zoning Ordinance) and special districts and overlay districts whose use regulations are based on those districts, subject to any limitations set forth in the regulations of those districts. In the Business A-1 district, only applicants that have been designed as Economic Empowerment Applicants or certified as eligible to participate in the Social Equity Program by the Massachusetts Cannabis Control Commission may be permitted and such designation or eligibility shall be maintained.

(b) A Cannabis Retail Store shall not be permitted within one thousand and eight hundred (1,800) feet of another Cannabis Retail Store, except if the applicant has been designated as an Economic Empowerment Applicant or certified as eligible to participate in the Social Equity Program by the Massachusetts Cannabis Control Commission and maintains that designation and/or certification.

11.803.2 Cannabis Delivery Operator Establishments shall be allowed only in those districts set forth in the Table of Use Regulations (Section 4.30 of this Zoning Ordinance) and special districts and overlay districts whose use regulations are based on those districts, subject to any

limitations set forth in the regulations of those districts and provided that the establishment is not greater than 10,000 square feet in Gross Floor Area and that no packaging or repackaging of cannabis or marijuana products shall take place on the premises.

11.803.3 Cannabis Production Facilities shall be allowed only by Planning Board Special Permit in those districts set forth in the Table of Use Regulations (Section 4.30 of this Zoning Ordinance) and special districts and overlay districts whose use regulations are based on those districts, subject to any limitations set forth in the regulations of those districts and provided that the establishment is not greater than 10,000 square feet in Gross Floor Area.

11.803.4 Buffer Zones.

(a) A Cannabis Retail Store or Cannabis Production Facility shall not be permitted within 300 feet of a pre-existing public or private school providing education in kindergarten or any of grades one through 12, except where the Planning Board, in issuing a special permit, approves a reduced distance upon finding that the location will cause no substantial adverse impact due to site-specific factors or other mitigating efforts agreed to in writing by the permittee and made conditions of the special permit.

(b) A Cannabis Retail Store or Cannabis Production Facility shall not be permitted within 300 feet of a pre-existing public children's playground, public youth athletic field, or public youth recreation facility, except where the Planning Board, in issuing a special permit, approves a reduced distance upon finding that the location will cause no substantial adverse impact due to site-specific factors or other mitigating efforts agreed to in writing by the permittee and made conditions of the special permit.

11.804 Parking and Transportation.

(a) Any Cannabis Courier Establishment, Cannabis Delivery Operator Establishment, or other Cannabis Establishment shall park and store all delivery vehicles off-street. Such requirement may not be reduced or waived. Delivery vehicles shall not be parked on-street except for authorized active loading/unloading activities. Delivery vehicles may be parked in facilities that are accessory to the Cannabis Use or in authorized principal use parking facilities.

(b) All parking spaces to be used by customers, employees, visitors, or delivery vehicles shall be registered with the Cambridge Traffic, Parking and Transportation Department (TPTD), including a parking layout plan, in accordance with Chapter 10.18 of the City of Cambridge Code of Ordinances, and shall comply with all other applicable state or local laws, regulations, and ordinances.

(c) All Cannabis Retail Stores, Cannabis Courier Establishments, Cannabis Delivery Operator Establishments, and Cannabis Production Facilities shall submit an Operations and Logistics Plan to the Cambridge TPTD and Cambridge Police Department

before applying for a special permit (where applicable), building permit or certificate of occupancy. Such plan shall include the following information using narratives and graphics:

(1) hours of operation and anticipated numbers of employees and consumers on-site during operating hours;

(2) expected frequency of loading/unloading trips by delivery and service vehicles;

(3) access and egress routes for customers and employees;

(4) locations of parking and bicycle parking areas for customers and employees;

(5) number of delivery vehicles, where applicable, and locations where they will be stored on-site;

(6) locations where loading/unloading and service activities will take place and a description of how such activities will be conducted;

(7) a description of transportation options for customers and employees, including public transportation services, on-site and off-site parking facilities, transportation demand management measures to encourage and support sustainable forms of travel for employees and customers, and short-term and long-term bicycle facilities;

(8) specific measures that will be employed by the Cannabis Use to prevent adverse impacts on the public way including but not limited to sidewalk crowding, blocking of vehicular or bicycle travel lanes, potential safety hazards, and other issues identified by City departments; and

(9) a specific plan for the initial opening period that includes measures to identify and respond to unexpected impacts.

(d) The Cambridge TPTD and Cambridge Police Department shall approve a final Operations and Logistics Plan prior to issuance of a certificate of occupancy for a Cannabis Use, and may require operational practices to prevent or correct adverse impacts of the operation of the Cannabis Use on the public way, including but not limited to crowding on the public sidewalk, blocking of travel lanes by vehicles, or hazardous conditions. Such practices may include, but are not limited to, restrictions on the use of the public way, required pre-purchase and/or appointment-only customer service for a period of time, restrictions on the location and/or timing of loading/unloading activities, or similar measures. When granting a special permit, where applicable, the Planning Board may also include conditions pertaining to the Operations and Logistics Plan.

11.805 Application Requirements. An application to the Planning Board for a Cannabis Production Facility shall contain, at a minimum, the following information:

(a) Description of Activities: a narrative providing information about the type and scale of all activities that will take place on the proposed site, including but not limited to cultivating and processing of Cannabis Products, on-site sales, off-site deliveries, distribution of educational materials, and other programs or activities.

(b) Context Map: A map identifying, at a minimum, the location of the proposed establishment, the locations of all other Cannabis Uses in the vicinity, the locations of all public or private schools providing education in kindergarten or any of grades one through 12, and the locations of all children's playgrounds, youth athletic fields, or other youth recreation facilities, with measured distances provided to demonstrate whether the location complies with the standards of Section 11.803 above.

(c) Site Plan: A plan or plans depicting all existing and proposed development on the property, including the dimensions of the building, the detailed layout of automobile and bicycle parking, the location of pedestrian, bicycle and vehicular points of access and egress, the location and design of all loading, refuse and service facilities, the location, type and direction of all outdoor lighting on the site, and any landscape design.

(d) Building Elevations and Signage: Architectural drawings of all exterior building facades and all proposed signage, specifying materials and colors to be used. Perspective drawings and illustrations of the site from public ways and abutting properties are recommended but not required.

(e) Initial Operations and Logistics Plan: Containing the information set forth in Paragraph (d) of Section 11.804 above.

(f) License or Registration Materials: Copies of all materials submitted to applicable state and local agencies for the purpose of licensing and/or registration, and any certification or license issued by any such agency, excluding any information required by law to be kept confidential.

11.806 Special Permit Criteria. In granting a special permit for a Cannabis Production Facility Use, in addition to the general criteria for issuance of a special permit as set forth in Section 10.43 of this Zoning Ordinance, the Planning Board shall find that the following criteria are met:

(a) The site is designed such that it provides convenient, safe and secure access and egress for customers and employees arriving to and leaving from the site using all modes of transportation, including drivers, pedestrians, bicyclists and public transportation users.

(b) On-site loading, refuse and service areas are designed to be secure and shielded from abutting uses.

(c) The building and site have been designed to be compatible with other buildings in the area and to mitigate any negative aesthetic impacts that might result from required security measures and restrictions on visibility into the building's interior and/or from restrictions on direct access by consumers.

(d) If the proposed Cannabis Production Facility is not proposed to include a Medical Marijuana Treatment Center, it will nevertheless provide programs to assist qualifying patients within the city or neighborhood who are registered through the Massachusetts Medical Use of Marijuana Program in obtaining services under that program.

(Ord. No. 2021-8, 6-28-2021; Ord. No. 2023-4, 9-18-2023; Ord. No. 2025-6, 6-9-2025)

Editor's note—Ord. No. 2021-8, adopted June 28, 2021, repealed the former § 11.800, and enacted a new § 11.800 as set out herein. The former § 11.800 pertained to similar subject matter and derived from Ord. No. 1404, adopted Dec. 17, 2018.

ARTICLE 12.000 PLANNED UNIT DEVELOPMENT

12.10 STATEMENT OF PURPOSE
12.20 AREA OF APPLICABILITY
12.30 REVIEW OF PLANNED UNIT DEVELOPMENT APPLICATIONS
12.40 ENFORCEMENT
12.50 GENERAL DEVELOPMENT CONTROLS

12.10 STATEMENT OF PURPOSE

This Article of the Zoning Ordinance of the City of Cambridge is hereby adopted to encourage the construction of Planned Unit Developments. The Planned Unit Development districts and uses created herein are intended to provide greater opportunity for the construction of quality developments on large tracts of land by providing flexible guidelines which allow the integration a variety of land uses and densities in one development.

12.20 AREA OF APPLICABILITY

A Planned Unit Development shall be allowed by Special Permit in PUD districts so designated from time to time on the zoning map and shall be regulated by the general development controls set forth in Section 12.50 and by the specific development controls for the individual PUD district in which the project is located. Planned Unit Development Districts shall be overlay districts on the zoning map and, for any land within a PUD district, a developer may choose to conform either to all the controls which govern the base district or to all the PUD development controls and process.

12.30 REVIEW OF PLANNED UNIT DEVELOPMENT APPLICATIONS

12.31 *Review Scope*. An application to construct a Planned Unit Development must be reviewed in a manner which is consistent with the procedures set forth in this Section 12.30 and those procedures required by Chapter 40A of the General Laws of the Commonwealth of Massachusetts, as amended.

12.32 *Constitution of Review Authority*. The Planning Board shall review and approve or disapprove all applications for Special Permits to construct Planned Unit Developments. In reviewing an application for a Special Permit for a Planned Unit Development, the Planning Board may also seek the professional opinion of the staff of city departments, including but not limited to, the Community Development Department, Public Works Department, Traffic and Parking Department, Police Department, Fire Department, Water Department, and School Department.

12.33 *Pre-application Conference*. A developer desiring to obtain a Special Permit to construct a Planned Unit Development may request a Pre-Application Conference with the Planning Board prior to submitting an application for the Special Permit.

12.33.1 The purpose of the Pre-Application Conference shall be to familiarize both the developer and the Planning Board with each other's intentions with respect to the PUD. Although a

Pre-Application Conference shall not be required, this preliminary meeting between the Planning Board and the developer is desirable since it should help clarify many procedural and policy issues.

12.33.2 At the Pre-Application Conference, the Planning Board shall familiarize the developer with the process for obtaining a Special Permit for a PUD and explain to him issues that should be considered in planning the project. The developer may discuss his range of options concerning development and inform the Planning Board of his development concept. Any statement made by either the Planning Board or the developer concerning potential disposition of a Special Permit application of the final form of the development shall not be legally binding.

12.33.3 The developer shall not be required to present any written or graphic materials at the Pre-Application Conference. The Planning Board shall make available to the developer at this time any forms required for application for a Special Permit for a PUD.

12.34 *Development Proposal*. A developer who wishes to apply for a Special Permit for a PUD must submit to the Planning Board a Development Proposal completed on the appropriate forms which may be obtained from the Planning Board at the Pre-Application Conference or from the Community Development Department.

12.34.1 The written and graphic information specified in Section 12.34.3 and on the appropriate forms must be submitted for the entire proposed project. A copy of the Development Proposal shall remain open to the public during the application process and shall be located in the Community Development Department.

12.34.2 The purpose of the Development Proposal shall be to provide the Planning Board with an opportunity for in-depth substantive review of the PUD before final designs are developed.

12.34.3 The Development Proposal shall include written and graphic materials in the appropriate number as specified by the Planning Board.

(1) Written materials shall include, but not be limited to, the following:

(a) Legal description of the total development parcel proposed for development including exact location and a statement of present and proposed ownership;

(b) Statement of development concept, including the planning objectives and the character of the development to be achieved through the PUD;

(c) Development schedule indicating the appropriate date when construction of the PUD can be expected to begin and be completed, including initiation and completion dates of separate stages of a phased development;

(d) Statement of intentions regarding the future selling or leasing of all or portions of the PUD, such as land area, dwelling units, and public facilities;

(e) Statement of financing plan, including projected sources and amounts of funds;

(f) Statement of how utilities and other public works will be provided, including design standards;

(g) The impact of the development on existing city services outside the development.

(2) Quantitative data including:

(a) Parcel size;

(b) Proposed lot coverage of structures;

(c) Floor area ratio;

(d) Total amount of private open space, both private and public;

(e) Total number and type of dwelling units by number of bedrooms;

(f) Projected rent levels or selling price by unit size;

(g) Approximate gross residential densities;

(h) Total amount in square footage of nonresidential construction by type of use;

(i) Economic feasibility or market analysis including projected market area and proposed rent levels for commercial development;

(j) Number of parking spaces to be provided by use;

(k) Total length of streets to be conveyed to the city government;

(l) Total length of streets to be held as private ways within the development;

(m) Total length by type of other public works to be conveyed to the city government;

(n) Number and types of public facilities.

(3) Graphic materials shall include, but not be limited to, the following:

(a) Map of existing site conditions, including contours, water course, floor plains, unique nature features, existing vegetation, soil types, existing buildings;

(b) Map of existing land use;

(c) Existing and proposed lot lines;

(d) Location and size of gross floor area of all existing and proposed buildings, structures, and other improvements including maximum heights, types of dwelling units, and nonresidential structures by use;

(e) Location and size in square feet of all private open space and areas to be conveyed, dedicated, or reserved as common open spaces, public parks, recreational areas, school sites, and similar public and semi-public uses;

(f) The existing and proposed circulation system of arterial, collector, and local streets, including off-street parking areas, service areas, loading areas, and all points of access to existing public rights of way;

(g) Proposed pedestrian circulation system;

(h) Existing and proposed utility systems including sanitary sewers, storm sewers, and water, electric, gas, and telephone lines;

(i) General landscaped plan indicating the treatment of materials used for private and common open spaces;

(j) Description of adjacent land areas, including land uses, zoning, densities, circulation systems, public facilities, and unique natural features of the landscape;

(k) Proposed treatment of the perimeter of the development, including materials and techniques used such as screens, fences, and walls.

12.34.4 When applying for a Special Permit to construct a PUD, a developer must pay for all expenses incident to advertising for public hearings that may be incurred by the Planning Board.

12.35 *Review of Development Proposal*. Within sixty-five (65) days of the date of receipt of a complete application for a Special Permit to construct a PUD, the Planning Board shall hold a public hearing. The purpose of the public hearing shall be to solicit public opinion concerning the Development Proposal.

12.35.1 Between the date of submission of the application for a Special Permit to construct a PUD and the public hearing concerning the Development Proposal, the Planning Board may submit the Development Proposal for review to city departments, including but not limited to, the Community Development Department, Public Works Department, Traffic and Parking Department, Police Department, Fire Department, Water Department. Any city department desiring to comment on the Development Proposal shall submit comments in writing to the Planning Board within sixty (60) days of the date of receipt of the application for a Special Permit or no later than five (5) days before the date of the public hearing. All written comments shall be made a part of the application for a Special Permit and shall remain on public record.

12.35.2 Within twenty-one (21) days after the public hearing, the Planning Board shall make a determination concerning the Development Proposal. If the Planning Board approves the Development Proposal or conditionally approves the Development Proposal with recommendations for modifications, then the developer must submit a Final Development Plan as specified in Section 12.36. If the Planning Board disapproves the Development Proposal then the application for a Special Permit to construct a PUD shall be denied. If the Planning Board makes no decision within the specified time limit, then the Development Proposal shall be considered approved and the developer shall prepare a Final Development Plan.

12.35.3 Approval of the Development Proposal shall be granted only upon determination by the Planning Board that the Development Proposal:

(1) Conforms with the General Development Controls set forth in Section 12.50, and the development controls set forth for the specific PUD district in which the project is located;

(2) Conforms with adopted policy plans or development guidelines for the portion of the city in which the PUD district is located;

(3) Provides benefits to the city which outweigh its adverse effects; in making this determination the Planning Board shall consider the following:

(a) Quality of site design, including integration of a variety of land uses, building types, and densities; preservation of natural features; compatibility with adjacent land uses; provision and type of open space; provision of other amenities designed to benefit the general public;

(b) Traffic flow and safety;

(c) Adequacy of utilities and other public works;

(d) Impact on existing public facilities within the city; and

(e) Potential fiscal impact.

12.36 *Final Development Plan*. The purpose of the Final Development Plan shall be to set forth in final form the specifics of the proposed development proposal and to allow review for any additional items not present in the Development Proposal.

12.36.1 The developer shall submit a Final Development Plan to the Planning Board, no later than fifty-nine (59) days after the Public Hearing concerning the Development Proposal. Failure to submit a Final Development Plan within the specified time period shall result in the termination of the application for a Special Permit to construct a PUD.

12.36.2 The Final Development Plan shall consist of final versions of all statements and graphics presented in the Development Proposal and must contain any revisions which are required by the Planning Board at the time of conditional approval of the Development Proposal.

12.36.3 The Planning Board shall hold a public hearing to consider the Final Development Plan no later than sixty-nine (69) days after the public hearing concerning the Development Proposal. The purpose of the public hearing shall be to solicit public opinion on the Final Development Plan with emphasis placed on reviewing modifications made to the Development Proposal.

12.36.4 The Planning Board shall make the decision to approve or disapprove the application for a Special Permit to construct a Planned Unit Development no later than ninety (90) days after the public hearing concerning the Development Proposal Approval of the Final Development Plan shall be granted only upon determination by the Planning Board that the Final Development Plan meets the evaluation criteria set forth in Section 12.35.3 and contains any revisions to the Development Proposal required by the Planning Board. If the Planning Board grants the Special Permit with conditions, the conditions must be agreed to in writing by the developer before the Special Permit is granted. The Planning Board shall make its final decision in writing and shall specify its reason for not granting a Special Permit to construct a PUD. If the Planning Board makes no decision within the specified time limit, then the Final Development Plan shall be considered approved and the Special Permit to construct a PUD shall be deemed granted.

12.37 *Amendments to Final Development Plan*. After approval of the Final Development Plan by the Planning Board, the developer may seek amendments to the Final Development Plan, only if he encounters difficulties in constructing the PUD which could not have reasonably been foreseen, such as with terrain or soil conditions or other complications.

12.37.1 Amendments to the Final Development Plan shall be considered major or minor. Minor amendments, as specified in Section 12.37.2 shall be authorized by written approval of the Planning Board. Major amendments, as specified in Section 12.37.3, shall be considered as an original application for a Special Permit to construct a PUD and shall be subject to procedures specified in Section 12.34 through 12.36. The Planning Board shall decide whether proposed changes are major or minor.

12.37.2 Minor amendments are changes which do not alter the concept of the PUD in terms of density, floor area ratio, land usage, height, provision of open space, or the physical relationship of elements of the development. Minor amendments shall include, but not be limited to, small changes in the location of buildings, open space, or parking; or realignment of minor streets.

12.37.3 Major amendments represent substantial deviations from the PUD concept approved by the Planning Board. Major amendments shall include, but not be limited to, large changes in floor space, mix of uses, density, lot coverage, height, setbacks, lot sizes, open space; changes in the location of buildings, open space, or parking; or changes in the circulation system.

12.40 ENFORCEMENT

12.41 *Commencement of Construction*. The developer shall begin construction of the PUD within twelve (12) months of the date of the granting of the Special Permit to construct a PUD. The Planning Board may grant in writing an extension of this time period of up to twelve (12) months upon determination of good cause by the developer. If the developer fails to commence construction of the PUD within the specified time, the Special Permit shall lapse.

12.41.1 If the PUD is to be developed in stages, then the developer must begin the construction of each stage within the time limits specified in the Final Development Plan. Construction in each phase shall include all the elements of that phase specified in the Final Development Plan.

12.42 The Planning Board, or its Designee, shall periodically monitor the construction of the PUD, with respect to start of construction and development phasing. If the Planning Board, or its designee, finds that either the developer has failed to begin development within the specified time period or that the developer is not preceding in accordance with the approved development phasing, with respect to either timing or construction of an approved mix of project elements, then the Planning Board shall review the PUD and may extend the time for start of construction or the length of time needed to complete a phase, revoke the Special

Permit, or recommend that the developer amend the Final Development Plan subject to procedures specified in Section 12.37. If the Planning Board revokes the Special Permit for the PUD then the Final Development Plan shall be null and void.

12.50 GENERAL DEVELOPMENT CONTROLS

12.51 *Applicability and Conformance with Existing Policy Plans*. The following regulations in this Section 12.50 shall control development within each PUD district. Each development proposal for a PUD shall, to the extent feasible, be made to conform to existing policy plans established by the Planning Board or City Council from time to time for the specific area of the city in which the PUD is located.

12.52 *PUD Development Parcel Size*. The minimum size of a development parcel for a planned unit development shall be as indicated in each planned unit development's individual regulations; however the Planning Board may, at its discretion, allow development parcels containing less than the minimum parcel size required but at least five times the minimum required area for a lot in the base zoning district in which the development would be located. The Planning Board shall permit a development parcel containing less than the minimum parcel size required only upon its written determination that public review and approval of such a small development is necessary for accomplishing the planning objectives of the PUD district in which the development is located.

12.53 *Standards for Construction of Roadways*. All new roadways within a PUD shall be constructed in conformance with standards established by the Department of Traffic and Parking.

12.53.1 Any existing private way or subsequently constructed private way in a PUD may be accepted by the City as a public way only if it meets the Minimum Standards for Acceptance of Existing Private Ways as Public Ways as adopted by the Planning Board.

12.53.2 The design of the overall circulation pattern shall be prepared in accordance with the principles and concepts established in "Recommended Practices for Subdivision Streets" prepared by the Institute of Traffic Engineers (1965).

12.54 *Standards for Construction of Utilities and Public Works*. All improvements to the site which include the installation of utilities, public lighting, sewers, and other public works shall be constructed according to criteria established by the Public Works Department, Water Department, Electrical Department, the Planning Board and other appropriate departments. If the developer provides public works, roadways, and utility improvement to the site, the Planning Board may require the developer to post a performance bond.

12.55 *Landscaping*. All open areas within a PUD which are not used as driveways, walkways, or parking lots shall be landscaped in an appropriate manner utilizing both natural and manmade materials such as grass, trees, shrubs, and benches. Wherever possible, deciduous trees should be planted along new and existing streets. Plazas, arcades, malls, and similar manmade developments shall be counted as landscaped area. In addition, landscaping within a PUD shall conform to any landscaping criteria or requirements which

may be adopted by the Planning Board or City Council from time to time, except that any PUD development prior to the establishment of formal landscaping regulations shall not have to conform to them. Outdoor lighting shall be considered in a landscaping plan and shall be designed to complement both manmade and natural elements of the PUD.

12.56 *Environmental Performance Standards*. All uses in the PUD district shall conform to all applicable federal, state and local laws and regulations regarding the environment such as laws and regulations concerning noise, air quality, water quality, radiation, and radioactivity.

ARTICLE 13.000 PLANNED UNIT DEVELOPMENT DISTRICTS

13.10 PUD AT KENDALL SQUARE: DEVELOPMENT CONTROLS
13.20 PUD-1 DISTRICT: DEVELOPMENT CONTROLS
13.30 PUD-2 DISTRICT: DEVELOPMENT CONTROLS
13.40 PUD-3 AND PUD 3A DISTRICTS: DEVELOPMENT CONTROLS
13.50 PUD-4, PUD-4A, PUD-4B and PUD-4C DISTRICTS: DEVELOPMENT CONTROLS
13.60 DELETED
13.70 PLANNED UNIT DEVELOPMENT IN THE NORTH POINT RESIDENCE DISTRICT
13.80 PLANNED UNIT DEVELOPMENT 5 DISTRICT
13.90 PLANNED UNIT DEVELOPMENT 7 DISTRICT
13.100 PLANNED UNIT DEVELOPMENT 8 DISTRICT
13.200 PLANNED UNIT DEVELOPMENT AT CANAL DISTRICT KENDALL

13.10 PUD AT KENDALL SQUARE: DEVELOPMENT CONTROLS

13.11 *Purpose*. The PUD-KS district is intended to provide for the creation of a mixed-use district of high quality general and technical office and retail activity, with a significant component of residential use. The creation of a large public park is desired. The PUD-KS district permits larger scale development and supporting commercial activities close to Kendall Square and the major public transit services located there. It encourages strong linkages between new development at Kendall Square, the East Cambridge riverfront, and the PUD-KS area and the neighborhoods of eastern Cambridge, facilitated in part by a strong retail presence along Third Street. Development in the PUD-KS district should be generally consistent with the policy objectives set forth in the Eastern Cambridge Plan and the guidance provided in the Eastern Cambridge Design Guidelines.

13.12 *Uses Allowed in a PUD-KS District*. The uses listed in this Section 13.12, alone or in combination with each other, shall be allowed upon permission of the Planning Board. The amount and extent of uses may be further regulated and limited as set forth elsewhere in this Section 13.10.

13.12.1 Residential Uses.

(1) Townhouse Development.

(2) Multifamily dwellings.

13.12.11 *Transient Accommodations.*

For the purposes of this Section 13.10, the following Transient Accommodations shall be considered non-residential uses.

(1) Hotels or motels.

13.12.2 Transportation, Communication, Utility and Institutional Uses. All uses listed in sections 4.32 and 4.33 and which are allowed or conditionally allowed in the base zoning district. Telephone exchange use set forth in 4.32 g (1) shall be permitted provided that any facility having a floor area greater than four hundred (400) square feet shall only be permitted in a building in existence as of June 1, 2001 that, if vacant, has not been occupied by a residential use in the five years immediately preceding the time of application for a

Certificate Of Occupancy for the proposed use, or if occupied, the current use is any office and laboratory use, Section 4.34; any retail business and consumer service establishment, Section 4.35; any light industry, wholesale business or storage use, Section 4.37; or any heavy industry use, Section 4.38.

13.12.3 Office and Laboratory Uses. All uses listed in Section 4.34.

13.12.4 Retail or Consumer Service Establishments. The following retail uses shall be permitted, provided that the total amount of retail GFA in the District does not exceed 70,000 square feet and no individual establishment exceeds ten thousand (10,000) square feet of Gross Floor Area unless the Planning Board determines in writing that more retail GFA and establishments of a greater size better serve the residents within the PUD district and in adjacent districts and better advance the policies set forth in the Eastern Cambridge Plan and the Eastern Cambridge Design Guidelines.

(1) Merchandise Store for the sale of stationery and office supplies.

(2) [Deleted]

(3) Other Merchandise Store located in a structure primarily containing non-retail use provided no manufacturing, assembly or packaging occur on the premises.

(4) Personal Services Establishments.

(5) Restaurants or other eating and drinking establishments listed in Subsection 4.35 f-1, f-2, f-3, f-4, f-5, and g.

(6) Theaters.

13.12.5 Institutional Uses. All uses listed in Section 4.33 f and g.

13.12.6 Other Uses. Any use not listed in subsections 13.12.1 through 13.12.4, otherwise allowed in a Business B District may be allowed by the Planning Board only upon written determination by the Board that such use is consistent with the objectives of the PUD-KS district and the policies and guidelines set forth in the ECaPS Plan.

13.13 *District Dimensional Regulations*.

13.13.1 Permitted FAR. In the PUD-KS District the maximum ratio of floor area to Development Parcel shall be 3.0, subject to the further use limitations set forth below in Section 13.13.11.

13.13.11 Limitations on Non-Residential Development. In the PUD-KS District all non-residential uses shall be further limited as set forth below. Where the amount of non-residential Gross Floor Area (GFA) is limited to a percentage of the total GFA authorized, the calculation shall be based on GFA authorized exclusive of any GFA that may be constructed as a result of the application of the FAR bonuses permitted in Section 11.200 or any GFA devoted exclusively to structured parking.

(1) For any lot or combination of lots held in common ownership as of June 1, 2001 having in total an area of less than five acres, the total GFA devoted to non-residential uses shall not exceed ten (10) percent of the total GFA authorized in a PUD for that portion

of a PUD Development Parcel containing such lot or lots, or any portion thereof. This limitation shall apply to each Development Parcel individually. This limitation shall not apply to any individual lot created subsequent to the Planning Board approval of the PUD Final Development Plan.

Notwithstanding the above limitations, additional non-residential GFA shall be permitted as set forth in Paragraph (3) below.

(2) For any lot or combination of lots held in common ownership as of June 1, 2001 having in total an area of more than five (5) acres, the total GFA devoted to non-residential uses shall not exceed sixty (60) percent of total GFA authorized, inclusive of any GFA otherwise exempt from the provisions of the Cambridge Zoning Ordinance in a PUD for that portion of a PUD Development Parcel containing such lot or lots, or any portion thereof. This limitation shall not apply to any individual lot created subsequent to the Planning Board approval of the PUD Final Development Plan.

Notwithstanding the above limitations, additional non-residential GFA shall be permitted as set forth in Paragraph (3) below.

At least ninety-five (95) percent of the authorized non-residential GFA must be located on the portion of said lot or lots having an Office 2 base district designation.

However, where circumstances related to the transfer of property from the federal government to other governmental or private entities (for the purpose of private development on a portion or all of the land in the control of the federal government) the Planning Board may in its discretion approve a Final Development Plan providing GFA in excess of sixty (60) percent of the authorized GFA in the PUD provided it is conclusively demonstrated to the Planning Board that all residential GFA required to be developed on such lot or lots in their entirety, by this Paragraph, has already been constructed.

(3) For the entire PUD-KS district, the first 50,000 square feet of retail and customer service uses authorized in total in all approved PUDs shall not be counted toward the non-residential GFA limitations of Paragraphs (1) and (2) above provided the GFA is located on the ground floor of a multistory building, fronts on and has a public entrance onto Third Street, Broadway, or a public park, and for each individual establishment the GFA does not exceed 10,000 square feet.

13.13.2 Minimum Development Parcel Size. The minimum size of a Development Parcel within the PUD-KS shall be the greater of (1) 40,000 square feet or (2) seventy-five percent of the area of a lot or combination of lots (a) in existence as of June 1, 2001 and (b) held in common ownership where it is proposed to incorporate any portion of such lot or lots within the Development Parcel. A Development Parcel within the PUD-KS may contain noncontiguous lots elsewhere in the PUD-KS district or within a contiguous PUD district. There shall be no specified minimum lot size for lots located within a Development Parcel.

However, where circumstances related to the transfer of property from the federal government to other governmental or private entities (for the purpose of private development on a

portion or all of the land in the control of the federal government) limit the feasibility of creating a Development Parcel meeting the size requirements of this Section 13.13.2, the Planning Board may in its discretion approve a PUD application having a smaller Development Parcel size.

13.13.3 [Deleted]

13.13.4 Maximum Building Height.

13.13.41 The maximum height permitted in the district shall be sixty-five (65) feet except as it may be further limited or permitted below. The permitted heights are further illustrated on the Building Height Regulation Map for the PUD-KS, Map 13.11.

(1) Additional Building Height to Eighty-Five Feet. The maximum height shall be eighty-five (85) feet in the areas described below:

(a) An area bounded by the centerlines of Fifth Street, Monroe Street, Third Street and Potter Street.

(b) An area bounded by the centerline of Potter Street and its northwesterly extension; then the centerline of the former Sixth Street (the MXD district boundary line); then a line northeasterly of, parallel to and two hundred (200) feet distant from the northeasterly sideline of Broadway; then a line northwesterly of, parallel to, and three hundred (300) feet distant from the northwesterly sideline of Third Street, to the point of beginning.

(2) Additional Building Height to One Hundred and Twenty Feet. The maximum height shall be one hundred and twenty (120) feet in that area bounded by areas described in Paragraph (1) above; then the centerline of Third Street; then a line northeasterly of, parallel to, and one hundred (100) distant from the northeasterly sideline of Broadway; then the centerline of the former Sixth Street (the MXD district boundary line) to the point of beginning.

(3) Additional Building Height to One Hundred and Eighty Feet with Portions to Two Hundred and Fifty Feet. The maximum height shall be one hundred and eighty (180) feet in that area bounded by the area described in Paragraph (2) above; then the centerline of Third Street; then the centerline of Broadway; and then the centerline of the former Sixth Street (the MXD district boundary line) to the point of beginning. However, portions of buildings may rise above one hundred and eighty (180) feet to no more than two hundred and fifty (250) feet provided the area of all floorplates of portions of buildings above 180 feet do not exceed ten percent of the total area of the Development Parcel.

(4) Portions of Buildings limited to Forty-five Feet. Notwithstanding the provisions of Paragraphs (1) - (3) above, any portion of a building that is within fifty (50) feet of an existing or proposed Public Open Space or single intervening street abutting that open space may exceed 45 feet only if for each floor above 45 feet, that floor is set back an additional 10 feet from the façade of the floor below, until the maximum height is attained, or until a 20 foot setback from the façade at 45 feet is attained. Alternately, a

set back of 20 feet from the façade of the building at a height of 45 feet shall be permitted, and the remaining portions of the building allowed to achieve the maximum height permitted in Paragraphs (1)—(3) above or any variation between the two provisions.

13.13.42 The Planning Board shall not approve any Final Development Plan in the PUD-KS District not in conformance with the regulations of Section 13.13.4 above. In the portion of the PUD-KS that allows buildings to 200 feet or more, the Planning Board may approve a building up to 250 feet if other buildings or portions of buildings in that portion of the Development Parcel are no higher than one hundred and fifty (150) feet.

13.13.43 In evaluating a development proposal providing building height in excess of one hundred and twenty (120) feet, the Planning Board shall give consideration to evidence presented on the following:

(a) That increased height will not cast shadows or alter air currents in ways that will unreasonably limit the amount of light and air reaching other buildings in the vicinity to a significantly greater extent than if the building height did not exceed one hundred and twenty (120) feet;

(b) That increased height would mitigate detrimental environmental impacts such as excessive ground coverage, diminution of open space, and monotonous development;

(c) That increased height would not adversely affect and would result in increased sensitivity to the visual and physical characteristics of the particular location through more harmonious relationships to the terrain and to the proposed and existing buildings in the vicinity that have functional or visual relationships to the proposed building;

(d) That increased height would result from actions taken to lessen the impact of traffic and parking on the surrounding area; and

(e) That the orientation and location of the proposed structure would not otherwise diminish the health and safety of the area around the development parcel.

(f) The additional height permits accommodation of GFA transferred from the Eastern Cambridge Development Rights Transfer Donating District.

13.13.5 Other Dimensional Requirements. There shall be no minimum width for the development parcel and no minimum width for lots located within the development parcel. There shall be no minimum required front, rear and side yard requirements for a development parcel or for lots located within a development parcel. The Planning Board shall approve all such lot sizes and building setbacks.

13.14 *Open Space*. The following Open Space requirements shall be met on each Development Parcel.

(1) For that portion of a Development Parcel consisting of lots described in Section 13.13.11, Paragraph (1) above, any combination of Public Open Space, Green Area

Open Space or Permeable Open Space, as defined in this Ordinance, shall be provided on the Development Parcel and shall in the aggregate equal at least twenty (20) percent of the area of that portion of the Development Parcel.

(2) For that portion of a Development Parcel consisting of lots described in Section 13.13.11, Paragraph (2) above, any combination of Public Open Space, Green Area Open Space or Permeable Open Space, as defined in this Ordinance, shall be provided on the Development Parcel and shall in the aggregate equal at least Forty-two (42) percent of the area of that portion of the Development Parcel, subject to the further limitations set forth in Section 13.14.1 below.

Owners of adjacent Development Parcels may collectively provide the required open space by easement, deed restriction, covenant, or comparable legal instrument enforceable by the City of Cambridge or other public entity. In that event each Development Parcel shall, for purposes of this Section 13.10 be deemed to include that portion of such open space as the owners shall allocate to it in chosen legal instrument.

All required open space shall be generally accessible to the public for reasonable periods throughout the day for the purposes for which the open space is designed and approved by the Planning Board, which may include but not be limited to walking, bicycling, active and passive recreation. The Planning Board must approve any proposal to significantly limit public access to the required open space.

13.14.1 Required Public Open Space. For that open space required in Section 13.14, Paragraph (2) above, the required open space shall consist in part of a contiguous 7.5 acre Public Open Space to be located in the northwest quadrant of the PUD-KS district as further described and located in the Eastern Cambridge Plan. The Public Open Space shall be under the control of the City of Cambridge through fee simple conveyance, easement, or other legal mechanism acceptable to the City. In the event that the City of Cambridge does not accept the facility, the PUD permittee shall maintain the park for the use of the general public as originally designed and approved by the Planning Board in the Special Permit. The Public Open Space shall be designed and constructed by the permittee according to the conditions of the PUD special Permit and when conveyed to the City shall be environmentally and otherwise suitable for the recreational uses for which it is designed.

However, where circumstances related to the transfer of property from the federal government to other governmental or private entities (for the purpose of private development on a portion or all of the land in the control of the federal government) limit the feasibility of creation of a 7.5 acre park, the Planning Board may at its discretion approve a Final Development Plan providing a contiguous Public Open Space of less than 7.5 acres. In approving such a Final Development Plan the Planning Board shall find that a smaller facility continues to meet the objectives of the Eastern Cambridge Plan and the Eastern Cambridge Design Guidelines,

13.14.2 The Planning Board shall encourage development that is located adjacent to a Public Open Space to be physically and functionally integrated with the open space by means of building orientation, location of building entrances, pedestrian linkages between major activity centers, and similar techniques.

13.15 *Perimeter and transition*. Any part of the perimeter of a PUD-KS which fronts on an existing street or public open space should be so designed as to complement and harmonize with adjacent land uses with respect to scale, density, setback, bulk, height, landscaping, and screening. Developments in the PUD-KS district should provide integrated pedestrian circulation systems, with particularly strong linkages among the riverfront, Kendall Square, and the Eastern Cambridge neighborhoods.

13.17 *Parking and Loading Requirements*. Development the PUD-KS District shall conform to the off street Parking and Loading Requirements set forth in Article 6.000, and in the Schedule of Parking and Loading Requirements applicable to the Residence C-3, Office 3, Business B and Industry B districts, except as modified by this Section 13.17.

13.17.1 Off street parking facilities shall be provided as follows:

(1) Residence: 1.5 spaces per unit maximum.

13.18 *Traffic Mitigation Measures*. In reviewing a development proposal under the provisions of this Section 13.70 and Section 19.20, the Planning Board shall determine that the proponent has demonstrated, at the time of Final Development Plan approval, a commitment to a Transportation Demand Management Program consistent with the reduce parking mandated in this PUD. The measures to be taken in this program must address:

(1) The amount of parking provided,

(2) The scale of development and the mix of uses proposed, and

(3) The assumptions employed with regard to the proportion of automobile use for those traveling to the site.

For examples of such Measures, the Planning Board shall refer to the Eastern Cambridge Plan, Article 18.000, and the requirements of Section 19.20 in establishing Transportation Demand Management measures applicable to any approved PUD.

13.19 *Relationship to MBTA Urban Ring Transportation Planning Project*. In all PUD application documents, the applicant shall indicate how the proposed PUD development relates physically to the most current plans developed by the MBTA for implementation of the Urban Ring transportation project.

13.110 *Residential Uses Abutting Binney Street*. Where any Development Proposal locates residential dwellings along Binney Street, the Planning Board shall, in approving a Final Development Plan containing such residential units, be satisfied that the negative impacts of truck and other heavy vehicular traffic on Binney Street will be adequately mitigated for the residents of the proposed dwelling units. Such mitigation shall be achieved through the location of the buildings within the Development Parcel and the distribution of activities within those buildings; the provision of setbacks, landscaping and similar kinds of buffers;

the inclusion of non-residential uses at the ground floor; the employment of construction techniques to minimize the transmission of sound and vibrations; and/or through the employment of any other appropriate measures.

(Ord. No. 2021-3, § vii, 6-7-2021; Ord. No. 2024-2, 6-24-2024; Ord. No. 2025-1, 2-10-2025)

13.20 PUD-1 DISTRICT: DEVELOPMENT CONTROLS

13.21 *Purpose*. The PUD-1 district is intended to provide the opportunity for a medium density mixed use development with commercial, office, and a variety of residential uses.

13.22 *Uses Allowed in a PUD-1 District*.

13.22.1 The following uses alone or in combination with other uses shall be allowed upon permission of the Planning Board:

(1) All Residence Uses specified in Section 4.31 and Transient Accommodations specified in Section 4.31.1

(2) All Institutional, Transportation, Communication, and Utility Uses specified in Sections 4.32 and 4.33

(3) All Office and Laboratory Uses specified in Section 4.34

(4) All Retail Business and Consumer Service Establishment uses specified in Section 4.35

13.22.2 Any other use, alone or in combination with other uses, contained in Article 4.000 may be allowed by permission of the Planning Board only if a substantial public benefit can be demonstrated by the applicant.

13.23 *District Dimensional Regulations*.

13.23.1 The maximum ratio of floor area to total area of the development parcel shall be 3.0.

13.23.2 The minimum size of the development parcel for PUD shall two and one half (2 1/2) acres. There shall be no specified minimum lot size for lots located within a development parcel. The Planning Board shall approve all lot sizes located within a development parcel.

13.23.3 [Deleted]

13.23.4 There shall be no minimum width for the development parcel and no minimum width for lots located within the development parcel. There shall be no minimum required front, rear, and side yard requirements for a development parcel or for lots located within a development parcel. The Planning Board shall approve all such building setbacks.

13.24 *Height*.

13.24.1 The maximum height of any building shall be sixty (60) feet, except as modified by sections 13.24.2 and 13.24.3, below.

13.24.2 The maximum allowable height may be increased to one hundred and ten (110) feet upon permission of the Planning Board, if the Planning Board finds that provision of any of the following amenities provides substantial public benefits:

(1) Open space or recreational facilities dedicated to public use;

(2) Walkways or similar facilities which enable the public to have access through the PUD to existing areas of unique natural or man-made value;

(3) Development design, which enhances any unique natural or man-made features of the site or abutting areas;

(4) Pedestrian malls, arcades, decks, bridges, or similar facilities within the interior of the PUD which are designed to appeal to the general public;

(5) Designs for residential development which are intended to appeal to a family population;

(6) Provision of residential development for a mixture of economic groups utilizing federal, state, or private programs conditional upon the provision of appropriate legal assurance, that a mixed income development will be implemented;

(7) Other amenities that the developer may propose which the Planning Board feels provide unique advantages to the general public or which contribute to achieving city development goals;

provided, however, that the Planning Board shall not approve any Final Development Plan in which 20 (twenty) percent or more of the land area of the development parcel is covered with buildings or parts of building not exempted by Section 5.23 in excess of eighty (80) feet in height or in which five (5) percent or more of the land area of the development parcel is covered with such buildings or parts thereof in excess of 100 (one hundred) feet in height. Notwithstanding the foregoing, the Planning Board, in its discretion, may accept for review an application for a Special Permit based on a Development Proposal which deviates from the aforesaid provisions of this Section 13.24.2, provided that the Final Development Plan is in conformity with such provisions.

13.24.3 In evaluating a Development Proposal providing height in excess of sixty (60) feet, the Planning Board shall give consideration to evidence presented on the following:

(a) That increased height will not cast shadows or alter air currents in ways that will unreasonably limit the amount of light and air reaching other buildings in the vicinity to a significantly greater extent than it the building height did not exceed sixty (60) feet;

(b) That increased height would mitigate detrimental environmental impacts such as excessive ground coverage, diminution of open space, and monotonous development;

(c) That increased height would not adversely affect and would result in increased sensitivity to the visual and physical characteristics of the particular location through more harmonious relationships to the terrain and to proposed and existing buildings in the vicinity that have functional or visual relationships to the proposed building;

(d) That increased height would result from actions taken to lessen the impact of traffic and parking on the surrounding area; and

(e) That the orientation and location of the proposed structure shall not otherwise diminish the health and safety of the Harvard Square area.

13.25 *Private open space*. The minimum ratio of private open space to the total area of the development parcel as defined in Article 2.000 and Section 5.22 shall be fifteen (15) percent, except as modified below.

13.25.1 The Planning Board may reduce the private open space requirement if the development is located adjacent to a public open space and if the development is physically and functionally integrated with the open space by means of building orientation, location of building entrances, pedestrian linkages between major activity centers, or similar factors.

13.25.2 Private open space shall include parks, plazas, landscaped areas open to the sky, playgrounds, balconies, roofs, developed for recreational or leisure usage, and pedestrian ways such as bridges, decks arcades, loggias, and gallerias as specified by the Planning Board.

13.26 *Perimeter and Transition*. Any part of the perimeter of a PUD-1 which fronts on an existing street or public open space shall be so designed as to complement and harmonize with adjacent land uses with respect to scale, density, setback, bulk, height, landscaping, and screening.

13.27 *Parking and Loading Requirements*. Development in a PUD-1 district shall conform to the Off street Parking and Loading Requirements set forth in Article 6.000.

13.27.1 Off street parking facilities shall be provided as follows:

(1) Residence: Minimum number of spaces per group of dwelling units: 10 per 10

(2) Public Assembly: Number of seats requiring one space: 15.

13.27.2 Institutional, Retail and Office: Number of Square Feet of Gross Floor Area Requiring One Space:

(1) Institutional: 1,800 square feet.

(2) Retail and Office:

Ground Floor: 900 square feet

Other Level: 1,800 square feet

(Ord. No. 2024-2, 6-24-2024; Ord. No. 2025-1, 2-10-2025)

13.30 PUD-2 DISTRICT: DEVELOPMENT CONTROLS

13.31 *Purpose*. The PUD-2 district is intended to encourage a medium density residential and office development with some supporting retail uses along the riverfront in East Cambridge. It is also intended to encourage an active, high quality development substantially in accordance with the Development Policies outlined in the 1978 East Cambridge Riverfront Plan.

13.32 *Uses Allowed in a PUD-2 District*. The uses listed in this Section 13.32 alone or in combination with each other shall be allowed upon permission of the Planning Board. Residential uses are preferred. Development of about four hundred (400) new dwelling units in this district is encouraged.

13.32.1 Residential Uses.

(1) Multifamily dwellings.

(2) Hotels or Motels.

13.32.2 Transportation, Communication, Utility Uses and Institutional Uses. All uses listed in Sections 4.32 and 4.33 which are allowed or conditionally allowed in the base zoning district.

13.32.3 Office and Laboratory Uses. All uses listed in Section 4.34.

13.32.4 Retail or Consumer Service Establishments.

(1) Convenience Store or Merchandise Store located in a structure primarily containing non-retail uses, provided that no such establishment shall exceed two thousand five hundred (2500) square feet gross floor area and that no manufacturing, assembly or packaging occur on the premises.

(2) Personal Services Establishments.

(3) Restaurants or other eating and drinking establishments listed in Subsections 4.35 f-1, f-2, f-3, f-4, f-5, and g.

(4) Theaters.

13.32.5 Other Uses. Any use not listed in Subsections 13.32.1, 13.32.4 shall be allowed only upon the written determination by the Planning Board that such use is compatible with the development policies for "The Front" district specified in the East Cambridge Riverfront Plan and is necessary to support the predominant uses in the PUD-2 district.

13.33 *District Dimensional Regulations*.

13.33.1 The maximum ratio of floor area to total area of the development parcel shall be 3.0; however, the maximum ratio for a planned unit development in which seventy-five (75) percent or more of the gross floor area of development will be devoted to multifamily dwellings or townhouses shall be 4.0.

13.33.2 The minimum size of a development parcel shall be one acre (43,560 square feet.) A development parcel within the PUD-2 district may contain noncontiguous lots elsewhere in

this PUD district or within a contiguous lots elsewhere in this PUD district or within a contiguous PUD district. There shall be no minimum lot size for lots located within a development parcel. The Planning Board shall approve all lot sizes located within a development parcel.

13.33.3 [Deleted]

13.33.4 There shall be no minimum width for the development parcel. Buildings on parcels abutting the Cambridge Parkway should be setback from the Parkway Street line. There shall be no minimum required front, rear and side yard requirements for a development parcel or for lots located within a development parcel. The Planning Board shall approve all such building setbacks. A variety of setbacks along Cambridge Parkway and crenellated facades are encouraged along the riverfront rather than a continuous, unbroken building mass.

13.34 *Height*.

13.34.1 The maximum height of any building shall be one hundred twenty (120) feet.

13.34.2 A variety of building heights ranging between five (5) and twelve (12) stories are encouraged within the district.

13.34.3 In order to assure that adequate sunlight reaches public open space along the riverfront, building planes facing or generally oriented toward the riverfront should be stepped back in such a way as to minimize the shadows that are cast on the river side of the Cambridge Parkway.

13.35 *Private open space*. The minimum ratio of private open space to the total area of the development parcel as defined in Article 2.000 and Section 5.22 shall be twenty-five (25) percent except as modified below.

13.35.1 The Planning Board may reduce the private open space requirement if the development is located adjacent to a public open space and if the development physically and functionally integrated with the open space by means of buildings orientation, location of building entrances, pedestrian linkages between major activity centers, or similar factors.

13.35.2 Private open space shall include parks, plazas, landscaped areas open to the sky, playgrounds, balconies, roofs developed for recreational or leisure usage, and pedestrian ways such as bridges, decks, arcades, loggias, and gallerias as specified by the Planning Board.

13.35.3 Private open space at the ground level should be located and designed to complement and to be connected with existing and planned public open space in the district. Private open space oriented toward Cambridge Parkway and the riverfront park between Cambridge Parkway and Commercial Avenue is preferred for development parcels abutting those areas. In approving a final development plan, the Planning Board may specify certain landscaping and other site design details to assure that that the development will be compatible with public improvements in the PUD-2 district and with the development policies outlined in the East Cambridge Riverfront Plan.

13.36 *Parking and Loading Requirements*. Development in a PUD-2 district shall conform to the off street Parking and Loading Requirements set forth in Article 6.000, except as modified by this Section 13.36.

13.36.1 [Deleted]

13.36.2 [Deleted]

13.36.3 On grade parking, not enclosed in a structure, may be constructed in the PUD-2 District only under the following conditions:

(1) On an interim basis in anticipation of later construction of structured parking provided that there is compliance with each of the following:

(a) The future parking structure will be constructed within the District but it may be located either on or off of the lot;

(b) Construction of the future parking structure will commence within three years of the date of permit application for development on the lot;

(c) Such future parking structure may be constructed and/or operated by the applicant or by any public or private entity;

(d) The future parking structure will contain sufficient spaces reserved for users of the lot to meet the parking requirements for the lot specified in Subsections 13.36.1 and 13.36.2; and

(e) Binding commitments shall exist to guarantee, to the reasonable satisfaction of the Planning Board that requirements (a) through (d) above shall be satisfied. Such commitments shall be made by negotiated lease agreement, deed restriction, covenant, performance bond, or comparable legal instrument.

(2) On a permanent basis on the lot for visitors parking or for such other limited uses as the user of the lot deems appropriate provided that no more than ten (10) percent of the spaces required by subsections 13.36.1 and 13.36.2 or twenty (20) spaces, whichever is greater, shall be allowed on grade under this Section 13.36.3(2).

13.36.4 The parking requirements specified in this Section 13.36 may be satisfied in total or in part by a lease agreement between the developer and the City, other public entity, or private consortium for use of parking spaces in a public or pooled private parking facility located within the District.

(Ord. No. 2021-3, § viii, 6-7-2021; Ord. No. 2025-1, 2-10-2025)

13.40 PUD-3 AND PUD 3A DISTRICTS: DEVELOPMENT CONTROLS

Unless otherwise indicated in this Section 13.40, the following provisions apply equally to all PUD-3 districts.

13.41 *Purpose*. The PUD-3 districts are intended to provide for the creation of a high quality general and technical office environment which permits larger scale development and supporting commercial activities and which encourages strong linkages between new

development at Kendall Square and along the East Cambridge riverfront. The PUD 3A District specifically is intended to permit larger scale development along the Binney Street corridor, consistent with the scale of development permitted in the abutting PUD-3 District, which also creates large areas of contiguous Public Open Space in the PUD 3A district or in adjacent PUD Districts in order to create a better transition from neighborhoods to commercial areas. As required by Section 13.48 and 13.59, any Final Development Plan for a Development Parcel in a PUD-3A District containing increased density and heights as described in Sections 13.43.1(2) and 13.44.4 shall minimize noise from rooftop mechanical equipment; contain environmentally sustainable buildings; promote pedestrian usage of the sidewalks, an improved pedestrian environment, pedestrian connections to public transit, and a sense of neighborhood continuity by providing an interesting, lively, and active presence at street level, by requiring a mix of residential, retail, and other uses as part of the Final Development Plan and by providing attractive exterior through-block connector space; provide parking which is primarily located underground and is maintained at lower ratios than customarily required by the Zoning Ordinance, so as to eliminate surface parking lots and promote public transportation and other parking and traffic demand measures which will reduce automobile trips; be consistent with the Eastern Cambridge Design Guidelines dated October 15, 2001; and preserve certain existing structures which add to the character of the neighborhood. Any such Final Development Plan encompassing land area in excess of 10 acres is expected to be constructed over a lengthy period of time of up to 20 years. By meeting these requirements and providing large areas of contiguous Public Open Space, a Final Development Plan in the PUD 3A district meeting these requirements will promote the goals of the Eastern Cambridge Planning Study dated October 2001 and the public health, safety, and welfare.

13.42 *Uses Allowed in the PUD-3 Districts*. The uses listed in this Section 13.42, alone or in combination with each other, shall be allowed upon permission of the Planning Board. Office and laboratory uses are preferred.

13.42.1 Residential Uses.

(1) Townhouse Development.

(2) Multifamily dwellings.

(3) Hotels or motels.

13.42.2 Transportation, Communication, Utility Uses and Institutional Uses. All uses listed in sections 4.32 and 4.33 and which are allowed or conditionally allowed in the base zoning district.

13.42.3 Office and Laboratory Uses. All uses listed in Section 4.34.

13.42.4 Retail or Consumer Service Establishments.

(1) Merchandise Store for the sale of stationery and office supplies.

(2) [Deleted]

(3) Other Convenience Store, Merchandise Store, or Grocery Store located in a structure primarily containing nonretail use, provided that no such establishment shall exceed two thousand, five hundred (2,500) square feet gross floor area (except in a PUD-3A district, where such establishments shall not exceed 12,000 gross square feet), and that no manufacturing, assembly or packaging occur on the premises.

(4) Personal Services Establishment.

(5) Restaurants or other eating and drinking establishments listed in Subsection 4.35 f-1, f-2, f-3, f-4, f-5, and g.

(6) Theaters, including Performing Arts Centers as hereinafter defined.

(7) Commercial Recreation Establishments.

13.42.5 Other Uses. Any use not listed in subsections 13.42.1 - 13.42.5 shall be allowed only upon written determination by the Planning Board that such use is consistent with the objectives of the PUD-3 district and is necessary to support the predominant uses in the district. Certain additional uses may be permitted in the PUD-3A district as set forth in Section 13.59.

13.42.6 "Performing Arts Center" means one or more buildings on the same or adjacent lots used exclusively for the production, creation, performing, presentment, screening, development or viewing of at least three distinct forms of theatrical, musical, cinematic, dance, oratorical and other performing arts, to be viewed or experienced in at least three distinct venues within such building or buildings, together with such uses customarily accessory thereto, such as, but not limited to, stage, backstage, rehearsal or practice, classroom, storage, mechanical, dressing room, green room, lobby shop and/or store, ticketing, restaurant and/or lounge, and accessory office uses.

13.43 *District Dimensional Regulations*.

13.43.1 (1) PUD-3 District: The maximum ratio of floor area to the total area of the Development Parcel shall be 3.0 for Residential Uses, 4.31 a-h, and Dormitory Uses, Section 4.33 b (7), and 2.0 for all other permitted uses.

A portion or portions of the existing or former Broad Canal without reference to ownership may be counted in calculating the area of the Development Parcel. Each portion so counted shall be included in computing the development parcel area for one planned unit development.

(2) PUD-3A District: The maximum ratio of floor area to total area of the Development Parcel shall be 1.25 except that the Planning Board may approve a Final Development Plan with a maximum FAR exceeding 1.25 but not to exceed a maximum FAR of 3.0 where the Final Development Plan meets the requirements of Section 13.59. Pursuant to Sections 13.59.4 and 13.59.9, certain building areas may be excluded from Gross Floor Area for purposes of calculating such FAR.

13.43.11 Notwithstanding any other provision of the Zoning Ordinance, including the definition of Gross Floor Area in Article 2.000, the Gross Floor Area of a Performing Arts Center in the PUD-3 District shall include only publicly accessible, above grade, circulation, performance,

and amenity spaces as measured from the interior face of walls of each space provided that all other dimensional requirements, limitation on the permitted number of seats, or other requirements imposed under a PUD-3 District Special Permit, as amended, have been found by the Planning Board to have been satisfied.

13.43.2 The minimum size of the Development Parcel for a PUD shall be two (2) acres. A Development Parcel within the PUD-3 may contain noncontiguous lots elsewhere in this PUD district or within adjacent PUD districts.

A Development Parcel within the PUD-3A District may contain noncontiguous lots elsewhere in one or more of the PUD-3A District, the PUD-4C District and, solely for the purpose of including lots to be dedicated to Public Open Space, the PUD-2 District subject to the provisions of Section 13.59.

There shall be no specified minimum lot size for lots located within a Development Parcel. Planning Board approval of all proposed lots located within a Development Parcel shall be required.

13.43.3 [Deleted]

13.43.4 There shall be no minimum width for the Development Parcel and no minimum width for lots located within the Development Parcel. There shall be no other minimum required front, rear and side yard requirements for a Development Parcel or for lots located within a Development Parcel. The Planning Board shall approve all such building setbacks. Any buildings on a parcel abutting the Broad Canal should be set back or so designed as to provide a pedestrian pathway along the canal's edge.

13.43.41 In a PUD-3A District, there shall be a setback of ten (10) feet from the streetline of Binney Street at and above a point between 78 and 85 feet above grade (the exact location of such point to be determined by the Planning Board in its review of the Development Proposal and Final Development Plan). Up to one-third of façade length on a cumulative basis may be exempted from this requirement.

13.44 *Height*.

13.44.1 In the PUD-3 District the maximum height of any building shall be two hundred and thirty (230) feet, except as modified in Section 13.44.2.

13.44.2 In the PUD-3 District the Planning Board shall not approve any Final Development Plan in which twenty-five (25) percent or more of the land area of the Development Parcel is covered with such buildings or parts of buildings not exempted by Section 5.23 in excess of one hundred and twenty (120) feet in height or in which fifteen (15) percent or more of the land areas of the Development Parcel is covered with such buildings or parts thereof in excess of two hundred (200) feet in height. Notwithstanding the foregoing, the Planning Board, in its discretion, may accept for review an application for a Special Permit based on a Development Proposal which deviates from the aforesaid provisions of this Section

13.44.2, provided that the Final Development Plan is in conformity with such provisions. Lower buildings or building elements are encouraged closer to the Charles River while taller buildings or building elements are encouraged closer to Kendall Square.

13.44.3 In the PUD-3 District, in evaluating a Development Proposal providing building height in excess of one hundred and twenty (120) feet, the Planning Board shall give consideration to evidence presented on the following:

(a) that increased height will not cast shadows or alter air currents in ways that will unreasonably limit the amount of light and air reaching other buildings in the vicinity to a significantly greater extent that if the building height did not exceed one hundred and twenty (120) feet;

(b) that increased height would mitigate detrimental environmental impacts such as excessive ground coverage, diminution of open space, and monotonous development;

(c) that increased height would not adversely affect and would result in increased sensitivity to the visual and physical characteristic of the particular location through more harmonious relationships to the terrain and to the proposed and existing buildings in the vicinity that have functional or visual relationships to the proposed building;

(d) that increased height would result from actions taken to lessen the impact of traffic and parking on the surrounding area; and

(e) that the orientation and location of the proposed structure would not otherwise diminish the health and safety of the area around the development parcel.

13.44.4 In the PUD-3A District, the maximum height of any building shall be one hundred twenty (120) feet, except that the Planning Board may approve a Final Development Plan with a building height within the PUD-3A District of one hundred forty (140) feet subject to the requirements of Section 13.59.

13.45 *Open Space*. The minimum ratio of open space to the total area of the Development Parcel as defined in Article 2.000 and Section 5.22 shall be fifteen (15) percent except as modified below.

13.45.1 The Planning Board may reduce the open space requirement if the development is located adjacent to a Public Open Space and if the development is physically and functionally integrated with the Public Open Space by means of building orientation, location of building entrances, pedestrian linkages between major activity centers, or similar factors, or if the development provides for contiguous Public Open Space as described in Section 13.59.

13.45.2 Open space shall include parks, plazas, landscaped areas open to the sky, playgrounds, balconies, roofs developed for recreational or leisure usage, and pedestrian ways such as bridges, decks, arcades, loggias, and gallerias as specified by the Planning Board.

13.46 *Perimeter and transition*. Any part of the perimeter of a PUD which fronts on an existing street or Public Open Space should be so designed as to complement and harmonize with

adjacent land uses with respect to scale, density, setback, bulk, height, landscaping, and screening. Development in the PUD-3 districts should provide integrated pedestrian circulation systems, particularly strong linkages between the riverfront and Kendall Square. Development in the PUD-3A District should enhance the pedestrian experience along Binney Street. See Section 13.59.3

13.47 *Parking and Loading Requirements*. Development in the PUD-3 district shall conform to the off street Parking and Loading Requirements set forth in Article 6.000, except as modified by this Section 13.47. In the PUD-3A district these provisions shall be further modified by Section 13.59 for any development subject to the provisions of Section 13.59.

13.47.1 [Deleted]

13.47.2 [Deleted]

13.47.3 The parking requirements of this Section 13.47, and as modified in Section 13.59 for development subject to the provisions of Section 13.59, may be satisfied anywhere on the Development Parcel, notwithstanding anything to the contrary contained in Article 6.000.

13.48 Where indicated in this Section 13.40, the provisions of Section 13.59 shall apply equally in the PUD-3A District. The Planning Board shall include in any Special Permit conditions that require ongoing compliance with any and all applicable provisions of Section 13.59.

(Ord. No. 2021-3, § ix, 6-7-2021; Ord. No. 2025-1, 2-10-2025)

13.50 PUD-4, PUD-4A, PUD-4B and PUD-4C DISTRICTS: DEVELOPMENT CONTROLS

Unless otherwise indicated in this Section 13.50, the following provisions apply equally to all PUD-4 Districts.

13.51.1 *Purpose*. The PUD-4, PUD-4A and PUD-4B districts are intended to provide the opportunity for creation of a highly active, medium density commercial and residential area with a mix of retail, office and residential uses. Development in the PUD-4, PUD-4A and PUD-4B districts shall be generally consistent with the policy objectives set forth in the Eastern Cambridge Planning Study dated October 2001 and the guidance provided in the Eastern Cambridge Design Guidelines dated October 15, 2001 and with the East Cambridge Riverfront Plan dated October 15, 2001. The PUD-4A and 4B districts specifically are intended to encourage a mix of uses with a substantial component of housing, with the housing, where possible, located within the development parcel adjacent to the existing residential neighborhood. In the PUD-4A District reuse of existing historic industrial structures for mixed residential, retail and office uses is encouraged. It is the intent of these Districts to encourage an active urban setting around the Lechmere Canal and along public and private streets both during and after customary business hours. Ground floor building spaces oriented toward the Lechmere Canal and public streets should primarily contain retail or consumer service office uses to the extent possible. Extensive ground level building frontage along the Lechmere Canal developed to institutional or office uses is not encouraged.

13.51.2 *Purpose*. The PUD-4C District is intended to provide for the creation of quality development that enhances the pedestrian experience along Binney Street, creates a transition between

commercial development along the Binney Street corridor and residential neighborhoods to the north, and creates large areas of contiguous Public Open Space in the PUD-4C District or in adjacent PUD Districts. As required by Section 13.59, any Final Development Plan in a PUD-4C District containing increased density and heights as described in Sections 13.53.1(4) and 13.54.4 shall minimize noise from rooftop mechanical equipment; contain environmentally sustainable buildings; promote pedestrian usage of the sidewalks and pedestrian connections to public transit, and a sense of neighborhood continuity by providing an interesting, lively and active presence at street level, by requiring a mix of residential, retail and other uses as part of the Final Development Plan and by providing attractive exterior through-block connector space; provide parking which is primarily located underground and is maintained at lower ratios than customarily required by the Zoning Ordinance, so as to eliminate surface parking lots and promote the use of public transportation and other parking and traffic demand measures which will reduce automobile trips; be consistent with the Eastern Cambridge Design Guidelines dated October 15, 2001; and preserve certain existing structures which add to the character of the neighborhood. Any such Final Development Plan encompassing land area in excess of 10 acres is expected to be constructed over a lengthy period of time of up to 20 years. By meeting these requirements and providing large areas of contiguous Public Open Space, an approved Final Development Plan in the PUD 4C district will promote the goals of the Eastern Cambridge Planning Study dated October 2001 and the public health, safety and welfare.

13.52 *Uses Allowed in PUD-4 Districts*. The uses listed in this Section 13.52, alone or in combination shall be allowed. However, the amount and extent of uses may be further regulated and limited in each PUD district as set forth elsewhere in this Section 13.50.

13.52.1 *Residential Uses.* All uses listed in Section 4.31 a-h, and hotels or motels listed in Section 4.31.1 b.

13.52.2 Transportation, Communications and Utility Uses and Institutional Uses. All uses listed in Sections 4.32 and 4.33, which are allowed or conditionally allowed in the applicable base zoning districts.

13.52.3 Office and Laboratory Uses. All uses listed in Section 4.34.

13.52.4 Retail or Consumer Service Establishments. All uses listed in Section 4.35.

13.52.5 Outdoor Retail or Consumer Service Establishments.

(1) Open-Lot Retail Sales Establishment;

(2) Outdoor Entertainment and Recreation Facility;

(3) Auto Service Station located within or attached to a parking garage or other structure as accessory use.

13.52.6 Other Uses. Any use not listed in Subsections 13.52.1 - 13.52.5 shall be allowed only upon written determination by the Planning Board that such use is (1) compatible with the Lechmere Canal and Square district in the East Cambridge Riverfront Plan dated May, 1978

and the policy objectives set forth in the Eastern Cambridge Plan dated October 2001 and the guidance provided in the Eastern Cambridge Design Guidelines dated October 15, 2001 and (2) necessary to support the predominant uses in the PUD-4 districts.

Certain additional uses may be permitted in the PUD-4C as set forth in Section 13.59

13.53 *District Dimensional Regulations*.

13.53.1 Maximum Floor Area Ratio. The maximum ratio of floor area to the total area of the Development Parcel shall be as set forth below. For purposes of this Section 13.53.1, residential use shall mean those uses set forth in Section 4.31 a-h.

(1) PUD-4 District: 2.0 for all uses, or the Gross Floor Area of the buildings contained within the Development Parcel at the time of application for a PUD special permit, whichever is greater.

(2) PUD-4A District: 2.5 for all uses, or the Gross Floor Area of the buildings contained within the Development Parcel at the time of application for a PUD special permit, whichever is greater. In no case, however, may non-residential uses, including hotels and motels, exceed fifty (50) percent of the total GFA authorized by a PUD special permit.

(3) PUD-4B: For all uses an FAR twice that permitted for non-residential uses in the applicable base zoning district (i.e. 2.0 in the Business A District; 2.5 in the Industry A-1 district). In no case, however, may the GFA of the non-residential uses, including hotels and motels, authorized by a PUD special permit exceed that resulting from the application of the non-residential FAR permitted in the applicable base zoning district to the PUD parcel area (i.e. 1.0 in a Business A district and 1.25 in an Industry A-1 district).

(4) PUD-4C District: 1.25 for all uses, except that the Planning Board may approve a Final Development Plan with a maximum FAR exceeding 1.25 but not to exceed a maximum FAR of 3.0 where the Final Development Plan meets the requirements of Section 13.59. Pursuant to Sections 13.59.4 and 13.59.9, certain building areas may be excluded from Gross Floor Area for purposes of calculating such FAR.

13.53.2 Minimum Development Parcel. The minimum size of the Development Parcel for a PUD shall be twenty-five thousand (25,000) square feet. A Development Parcel within the PUD-4 districts may contain non-contiguous lots elsewhere in any one of the PUD-4 districts or within a contiguous PUD district.

For a Development Parcel within the PUD-4C District that is subject to the provisions of Section 13.59, the minimum size shall be two (2) acres and may contain non-contiguous lots elsewhere in the PUD-4C District, the PUD-3A District, and, solely for the purpose of including lots to be dedicated to Public Open Space, the PUD-2 District.

There shall be no specified minimum lot size for lots located within a Development Parcel. Planning Board approval of all lots located within a Development Parcel shall be required.

13.53.3 [Deleted]

13.53.4 Other Dimensions. There shall be no minimum width for the Development Parcel and no minimum width for lots within the Development Parcel. There shall be no minimum required front, rear and side yard requirements for a Development Parcel or for lots located within a Development Parcel. The Planning Board shall approve all such building setbacks.

Any development subject to the provisions of Section 13.59 shall be subject to the following setback requirements:

(1) Four (4) feet from the Rogers Street streetline for any building facing Rogers Street Park (see Section 13.59).

(2) Eight (8) feet for the first two stories and four (4) feet above the second story, measured from the northerly street line of Binney Street between Second Street and Third Street.

13.54 *Maximum Height*. The maximum height for any building shall be as set forth below:

(1) PUD-4 district: Eighty-five (85) feet.

(2) PUD-4A district: Sixty-five (65) feet except as provided for below:

(a) Alterations and additions within the footprint of any building or group of abutting buildings existing on the site at the time of the application for a PUD special permit may exceed sixty-five feet but may be no higher than the highest portion of the existing buildings within the Development Parcel.

(b) Building height shall be thirty-five (35) feet in that area bounded by the centerline of Cambridge Street; then by a line easterly of, parallel to and one hundred (100) feet distant from the westerly boundary line of the PUD-4A; then the centerline of O'Brien Highway; then the westerly boundary line of the PUD-4A, to the point of origin.

(3) PUD-4B district: Sixty-five (65) feet except that between Thorndike Street and Bent Street building height shall be forty-five (45) feet within 200 feet of the easterly sideline of Second Street.

(4) PUD-4C District: Forty-five (45) feet north of the northerly sideline of Rogers Street (subject to the limitation on buildings set forth in Section 13.59 below, where applicable) and Sixty-five (65) feet south of the northerly sideline of Rogers Street, except the Planning Board may approve a Final Development Plan with the following building heights, subject to the provisions of Section 13.59:

(a) In the block bounded by Binney Street, Third Street, Rogers Street and Second Street:

(i) A building height of eighty-five (85) feet for a building devoted primarily to residential uses north of the northerly sideline of Binney Street and within seventy-five (75) feet of the easterly sideline of Third Street; and

(ii) A building height of seventy-eight (78) feet within one hundred and thirty-eight (138) feet of the northerly sideline of Binney Street, exclusive of the area described in Paragraph (i) above.

(b) In the block bounded by Binney Street, Sixth Street, Rogers Street, and Fifth Street: a building height of seventy-five (75) feet.

In approving heights in a PUD development the Planning Board shall be guided by the intent of this Section 13.50 to provide transitions in height between the higher density development along First and Binney Streets and lower density development and lower height along Second Street adjacent to the residential neighborhood.

13.55 *Open Space*. The minimum ratio of open space to the total area of the Development Parcel shall be twenty (20) percent except as modified below. The open space may be any combination of Useable, Permeable, Green Area or Publicly Beneficial Open Space as defined in Article 2.000 and further regulated in Section 5.22 of the Ordinance.

13.55.1 The Planning Board may reduce the open space requirement if the development is located adjacent to a Public Open Space and if the development is physically and functionally integrated with that Public Open Space by means of building orientation, location of building entrances, pedestrian linkages between major activity centers, or similar factors. The open space requirement may also be reduced to the extent that the Planning Board finds that such reduction facilitates preservation and reuse of existing historic structures, facilitates the conversion of such structures to residential use, or otherwise advances the urban design objectives as they apply to a PUD's specific location. The Planning Board also may reduce the open space requirement if the Final Development Plan conforms to the requirements and limitations of Section 13.59, as applicable.

13.55.2 Open space may include parks, plazas, landscaped areas open to the sky, playgrounds, balconies, roofs developed for recreational or leisure usage, and pedestrian ways, such as bridges, decks, arcades, loggias, and gallerias as permitted by the Planning Board.

13.55.3 Open space at the ground level held in private ownership to serve the needs of residents and employees of buildings within the PUD should be located and designed to complement and to be connected with existing and planned Public Open Space in the district. In approving a Final Development Plan, the Planning Board may specify certain landscaping and other site design details to assure the PUD will be compatible with public improvement in the districts and with the development policies outlined in the East Cambridge Riverfront Plan dated May, 1978 and the Eastern Cambridge Planning Study dated October 2001.

13.56 *Perimeter and Transition*. Any part of the perimeter of a planned unit development which fronts on an existing street or Public Open Space should be so designed as to complement and harmonize with adjacent land uses with respect to scale, density, setback, bulk, height, landscaping and screening.

13.57 *Parking and Loading Requirements*. Development in the PUD-4 districts shall conform to the off street Parking and Loading Requirements set forth in Article 6.000, and in the Schedule of Parking and Loading Requirements applicable to the Residence C-3, Office 3,

Business B and Industry B districts. In the PUD-4C District these provisions shall be modified by the parking provisions of Section 13.59 for any development subject to the provisions of Section 13.59.

13.57.1 [Deleted]

13.57.2 [Deleted]

13.57.3 The parking requirements specified in this Section 13.57 may be satisfied in total or in part by a lease agreement between the developer and the City, other public entity, or private consortium for use of parking spaces in the public or pooled private parking facilities located within the Districts. The parking requirements specified in this Section 13.57, as may be modified in Section 13.59 below for applicable development also may be satisfied anywhere on the Development Parcel, notwithstanding anything to the contrary contained in Article 6.000. Amend Section 13.59.5 to read as follows:

13.58 *Relationship to MBTA Urban Ring Transportation Planning Project*. In all PUD application documents, the applicant shall indicate how the proposed PUD development relates physically to the most current plans developed by the MBTA for implementation of the Urban Ring transportation project.

13.59 *Special Requirements, Conditions and Standards Applicable to Certain Development Authorized by the Planning Board in the PUD-3A and PUD-4C Districts*. Where compliance with the provisions of this Section 13.59 is required by certain provisions of Sections 13.40 and 13.50, the Planning Board shall approve a Final Development Plan only after finding that in addition to all other applicable requirements the following requirements have been met. The Planning Board shall, in addition, include conditions in the approval of the Final Development Plan that will ensure ongoing compliance with these requirements.

13.59.1 Rooftop Mechanical Equipment Noise Mitigation. Sound emanating from rooftop mechanical equipment on all new structures in the approved Final Development Plan shall be minimized by the adoption of best available and feasible practices regarding the location and sizing of equipment, the selection of equipment and sound attenuation measures.

At a minimum, any noise or vibration shall not be normally perceptible at ground level without instruments at a distance of one hundred (100) feet from the source lot line and buildings shall comply with the City of Cambridge Noise Ordinance.

In order to enforce these requirements, the applicant shall provide, in addition to the Noise Mitigation narrative required as part of Article 19.000 review, acoustical reports prepared by a professional acoustical engineer as described below:

(1) Prior to and as a condition of the issuance of the first certificate of occupancy for a new building, an acoustical report, including field measurements, demonstrating compliance of such building with all applicable noise requirements; and

(2) Prior to obtaining any building permit to add any equipment having a capacity greater than 5 horsepower to the rooftop, a narrative report demonstrating that there will be

continued compliance with all applicable noise requirements after such addition, and upon completion of such addition and as a condition to operation thereof, an acoustical report, including field measurements, demonstrating such compliance.

13.59.2 Sustainability.

All new structures within a Final Development Plan shall be planned, designed and constructed to be eligible to achieve at least the level "Silver" using the applicable LEED Rating System of the United States Green Building Council in effect on January 1, 2009 (or any higher standard to which new buildings in the City of 50,000 square feet or more are made subject by City Ordinance). An applicant subject to this requirement shall provide to the Planning Board as part of its application for final approval under Article 19.000 for any new building in an approved Final Development Plan a completed LEED scorecard, with supporting documentation, demonstrating that the new building will meet the requirements of this section.

13.59.3 Active Uses and Pedestrian Activity.

The Final Development Plan shall enhance the public pedestrian usage of the sidewalks and create a sense of neighborhood continuity by providing an interesting, lively and active presence at street level. Accordingly, portions of the ground floors of buildings in locations such as the ones enumerated below, or comparable locations, shall generally be planned, designed, constructed and used for Active Uses (defined below). At a minimum, at least 20,000 square feet shall be developed Active Uses.

13.59.31 Definition of Active Uses. For purposes of this Section 13.59, "Active Uses" means:

(1) Retail sales and services listed in Sections 4.35 and 4.36;

(2) Restaurants, and establishments where alcoholic beverages are sold and consumed, listed in Section 4.35;

(3) Mixed-Mode Transportation Hub, which shall mean a facility which shall include a bicycle storage and bicycle service facility, convenient access to a "car-sharing" program, and a shuttle bus stop and a protected waiting area for shuttle buses to public transit facilities; and

(4) Other uses which the Planning Board determines meet the goals of this Section 13.59.3.

13.59.32 Location of Active Uses.

While Active Uses are desirable and encouraged at many locations throughout a Development Parcel located in a PUD-3A or PUD-4C district, potential locations of Active Uses of particular merit include the following locations for the portion of the Development Parcel within the PUD-3A District:

(1) Portions of buildings and sites adjacent to the intersection of Binney Street and Second Street (including a "Mixed-Mode Transportation Hub," as defined above); and

(2) Portions of buildings and sites facing First Street across from the Triangle Park (as defined below).

Potential locations of Active Uses of particular merit include the following location for the portion of the Development Parcel within the PUD-4C District:

(3) Portions of buildings and sites adjacent to the intersection of Binney Street and Third Street.

The Planning Board shall have flexibility in approving the actual location of Active Uses in the Final Development Plan. In order to preserve such flexibility, all ground floor space in an approved Final Development Plan, whether or not in one of the potential locations for Active Uses described above, shall contain design features which could accommodate future Active Uses.

13.59.33 Building and Site Design Requirements for Active Uses and Open Spaces.

(1) Each Active Use shall have at least one entrance from the sidewalk separate from the principal entrance of the building.

(2) Where the length of a commercial building's primary façade exceeds 135 feet, loading, service, and garage ramp areas shall occur behind no more than one third (1/3) of ground level façade length facing a park. Along the remaining two-thirds (2/3) of ground level façade length, transparent glazing shall make up at least 40% of ground-level façade area, and areas of opaque wall may extend no more than 25 feet horizontally. Notwithstanding these design requirements, it is preferred that parking entries and service facilities not be located within that portion of a building facing Rogers Street Park.

(3) In order to provide open and inviting public access between buildings and sidewalks, a Final Development Plan shall contain attractive exterior through-block connector space in the block bounded by Binney Street, Second Street, Rogers Street and Third Street (where that area is encompassed by the Development Parcel) and shall provide for the expansion and enhancement of the existing through-block connector in the block bounded by Binney Street, Second Street, Linskey Way and Third Street (where that area is encompassed by the Development Parcel). Exterior connector space shall be open to the public at all times.

(4) Outdoor courtyards, delineated gathering space, or sitting areas are encouraged throughout the Development Parcel in any approved Final Development Plan.

13.59.34 Required Marketing Plan.

An approved Final Development Plan shall include a marketing and merchandising plan to be implemented over the life of the permit in order to recruit users and otherwise use diligent efforts to cause ground floor areas of buildings and adjacent sites as approved in the Final Development Plan to be occupied by Active Uses. Among other things, the marketing plan shall (1) set forth target uses and users (and shall particularly target local and/or independent retailers), (2) designate an individual responsible for implementing the plan who shall

serve as a point of contact with the Community Development Department (through its Economic Development Division), (3) describe the types of economic incentives which may be offered to tenants such as rental and fit-up allowances, and (4) include a street activation plan.

The Planning Board shall require in its conditions of approval an annual reporting to the Community Development Department, until the later of three years after full occupancy of all required Active Use space and ten years after the issuance of the first building permit for a building in the Final Development Plan, regarding the ongoing efforts on the part of the Permittee to comply with such plans. The Permittee shall revise the marketing and management plan as necessary to achieve full occupancy of all required Active Use space within a reasonable period of time.

13.59.4 Required Housing.

The Final Development Plan shall provide for at least 220,000 square feet of gross floor area to be devoted to residential uses. The residential units shall contain at least 47,000 square feet of Gross Floor Area of housing affordable to middle income households whose total income does not exceed one hundred twenty (120%) percent of the median income for the Boston Standard Metropolitan Statistical Area and at least 33,000 square feet of Gross Floor Area of housing affordable to low and moderate income households whose total income does not exceed eighty (80%) percent of the median income for the Boston Standard Metropolitan Statistical Area.

The residential uses shall be constructed in accordance with the following schedule:

(1) Construction of the first 70,000 square feet of Gross Floor Area of required residential uses must commence prior to the issuance of a building permit allowing non-residential Gross Floor Area in excess of 767,000 square feet of non-residential Gross Floor Area in the aggregate.

(2) Construction of the remaining 150,000 square feet of Gross Floor Area of required residential uses shall commence no later than the later of (a) issuance of a building permit allowing non-residential Gross Floor Area in excess of 1,000,000 square feet of non-residential Gross Floor Area in the aggregate or (b) eight years after the grant of a Special Permit approving a Final Development Plan.

The required 220,000 square feet of Gross Floor Area devoted to residential uses shall be excluded from Gross Floor Area for the purposes of calculating Floor Area Ratio (FAR). The required residential Gross Floor Area shall not be subject to the provisions of Section 11.200 of the Zoning Ordinance. The required residential Gross floor Area shall specifically not be eligible for the FAR and dwelling unit bonuses set forth in Section 11.203.2.

Notwithstanding the exclusion of the 220,000 square feet of Gross Floor Area to be devoted to residential uses from the provisions of Section 11.200, the required low and

moderate income units shall be constructed, marketed and administered in conformance with the requirements, policies and procedures established by the City for units otherwise subject to Section 11.200.

Residential Gross Floor Area approved in the Final Development Plan exceeding 220,000 square feet of Gross Floor Area shall be subject to the FAR limitations of the PUD Districts and shall be subject to the provisions of Section 11.200.

13.59.41 Incentive Zoning Provisions.

A PUD Final Development Plan subject to the provisions of this Section 13.59 shall provide to the Cambridge community significant material benefits in the form of, among other things, a significant component of housing serving households with a wide range of incomes at least equivalent to the housing which would have been provided pursuant to Sections 11.203.1 and 11.203.2, as well as providing the land for two large public parks and the funds to design and construct improvements thereon, an active program to establish and support retail activities within the development, donation of an existing building to the City of Cambridge with a preference for its use for municipal or community use, and measures to monitor and manage noise generation within the development; therefore, any such Final Development Plan shall not be subject to the requirements of Section 11.203.1 and 11.203.2 of the Zoning Ordinance.

13.59.5 Parking.

The approved Final Development Plan shall provide for parking for non-residential uses in new buildings at a ratio no greater than .9 spaces per 1,000 feet of Gross Floor Area for retail and office uses (including technical office and laboratory uses). The Planning Board may allow, consistent with the provisions of Section 6.35, parking at a ratio which is less than 1 space per dwelling unit for any residential use. All parking for nonresidential uses shall be underground structured parking, provided that a Development Parcel may contain on grade parking equal in number to 5% of the parking provided for the uses in the Final Development Plan (but in no event more than 60 spaces). In its approval of a Final Development Plan, the Planning Board may approve the location, layout and design of parking spaces which deviate from the requirements of Article 6.000 of this Ordinance.

13.59.51 Interim Use of Surface Parking.

On an interim basis in anticipation of later construction of underground structured parking sufficient to meet all parking requirements, on grade open parking shall be allowed in a Development Parcel subject to the following conditions:

(1) The future underground parking structure will be constructed within the Development Parcel but it may be located either on or off of the lot which it will serve;

(2) Construction of the replacement subsurface parking structure will commence within four years of the date of certificate of occupancy for the building initially served by on grade parking;

(3) The future subsurface parking structure will contain sufficient spaces for users of the building initially served by on grade open parking so as to meet the parking requirements for such building; and

(4) Binding commitments shall exist to establish, to the reasonable satisfaction of the Planning Board, that requirements (1) through (3) above shall be satisfied. Such commitments shall be made by negotiated lease agreement, deed restriction, covenant, or comparable legal instrument.

13.59.52 Accessory Parking for Uses Outside the Development Parcel.

The Planning Board may approve in the Final Development Plan underground structured parking spaces as replacements for pre-existing spaces that will be displaced by improvements contemplated by such Final Development Plan.

In addition, notwithstanding any provisions of the Zoning Ordinance to the contrary, in the event that any pre-existing accessory off-street parking facilities located in a Development Parcel, that are serving a pre-existing use located outside the Development Parcel (whether within or outside the applicable PUD district), are proposed to be eliminated or displaced in accordance with the Final Development Plan, such pre-existing off-street parking may be relocated by Special Permit granted by the Planning Board to the owner of the off-site use. In granting such Special Permit, the Planning Board may grant deviations from the requirements of Article 6.000 of this Ordinance for the number, location, layout and design of the relocated parking spaces

13.59.6 Consistency with Design Guidelines.

The Final Development Plan shall be generally consistent with the guidance provided in the Eastern Cambridge Design Guidelines dated October 15, 2001, provided that in the event of any conflict between such Design Guidelines and this Ordinance, the provisions of this Ordinance shall govern. Application of such Design Guidelines may vary within the context of specific building proposals in a way that, nevertheless, respects the intent of such Design Guidelines and this Ordinance. Accordingly, variations from the Design Guidelines may be approved so long as it is demonstrated that the alternate approach serves as well or better the objectives of the PUD-3A and PUD-4C Districts or creates positive design opportunities not envisioned in the Design Guidelines. In granting approval under Article 19.000 for all buildings in a Final Development Plan subject to this Section 13.59, the Planning Board may approve buildings for which physical design information is presented in conceptual form, subject to later design review and approval by the Planning Board and a finding that final design of such buildings is consistent with such Design Guidelines as aforesaid, and such other design goals as are set forth in this Ordinance and the Special Permit approving such Final Development Plan.

13.59.7 Preservation.

In the event that all or any portion of a lot listed below is included in a Final Development Plan, the exterior of the currently existing structure thereon shall not be demolished but shall be preserved in place for adaptive re-use during its useful life (or relocated, as noted):

(1) 140-146 Sixth Street (The building at the corner of Sixth Street and Rogers Street on Tax Parcel 28-23)

(2) 213 Binney Street (The building on the corner of Binney Street and Fifth Street on Tax Parcel 28-23 but not including the building on such Tax Parcel known as 126 Rogers Street)

(3) 161 First Street (excluding three story rear addition) (Tax Parcel 16-20)

(4) 41 Linskey Way (Also known as 219 Second Street) (Building may be moved to another location, in compliance with all applicable laws) (Tax Parcel 15-11)

13.59.8 Letter of Commitment.

Issuance of any base building permit or certificate of occupancy for any building in the Final Development Plan shall be conditioned upon certification by all relevant departments of the City to the Superintendent of Buildings that the Project is proceeding in accordance with all provisions of that certain "Letter of Commitment" dated February 9, 2009.

13.59.9 Required Public Open Space Features.

Where compliance with this Section 13.59 in required by any provision of Sections 13.40 and 13.50 of the Zoning Ordinance, the following Public Open Space to be dedicated to the City of Cambridge shall be required in the approved Final Development Plan:

(1) In the block bounded by Rogers Street, Third Street, and Second Street (Tax Parcels 16-25, 16-27 and 16-1), a Public Open Space no less than two (2) acres in size in the aggregate (Rogers Street Park).

(2) In the block bounded by Land boulevard, First Street, Binney Street and Monroe Street Extension (Tax Parcel 11-32) and the block bounded by Land Boulevard, First Street and Munroe Street Extension (Tax Parcel 11-46), a Public Open Space no less than 0.30 acres in size in the aggregate (Triangle Park).

13.59.91 Timing of the Permanent Dedication of Required Public Open Space.

The required Public Open Space shall be permanently dedicated to the City of Cambridge by a legal device or instrument acceptable to the City, with all buildings and foundations removed, and in an environmental condition consistent with all federal, state and local laws, rules, and regulations for all uses to which Public Open Space is intended to be put, including, but not limited to (in the case of the Rogers Street Park), unrestricted excavation for purposes of construction of recreational buildings and facilities and landscaping, and (in the case of the Triangle Park), unrestricted excavation for purposes of construction and installation of sidewalks, poles, walls, fences, landscaping and similar site improvements. The open space shall be dedicated to the City on the following schedule:

(1) In the case of the Rogers Street Park, no later than the issuance of the first certificate of occupancy for the first non-residential building constructed in the approved Final Development Plan.

(2) In the case of the Triangle Park, no later than the issuance of certificates of occupancy for non-residential buildings in the Final Development Plan that in the aggregate of such building construction contain at least 700,000 square feet of Gross Floor Area.

The dedication of the required Public Open Space shall be accomplished by transfer of ownership of the required lots to the City in fee simple absolute, subject to encumbrances acceptable to the City which do not interfere with the use of the land for its intended purposes such as subsurface utility easements. If the City does not accept such transfer of ownership, then the Permitee, or its successors and assigns, shall hold the land as Public Open Space available to the public in perpetuity for all uses and activities identified in the definition of Public Open Space in this Zoning Ordinance. The development of the Public Open Space, whether or not ownership is transferred to the City, shall be designed and its use shall be programmed and controlled by the City of Cambridge. No building other than any building constructed by the City ancillary to the use of the site shall be constructed on the lots so dedicated as Public Open Space. The Gross Floor Area of any such buildings shall be excluded from Gross Floor Area for purposes of calculating Floor Area Ratio.

13.59.10 Donation of an Existing Building with a preference for its use for Municipal or Community Uses. Any Final Development Plan shall provide for the transfer of ownership to the City of Cambridge of the existing building and lot identified as 101 Rogers Street (also known as 117 Rogers Street and as the Foundry Building) (Tax Parcel 27-82), with a preference for its use for municipal or community uses as generally set forth in Section 4.33 of the Table of Use Regulations, at least 10,000 square feet of which shall be devoted to educational, cultural or institutional uses listed in Section 4.33 of the Table of Use Regulations, at a time and in a form acceptable to the City. Such transfer shall include the full development rights attendant to such lot at an FAR of 3.0 as generally permitted within the applicable PUD. Upon the execution of such transfer of ownership, the PUD Permittee shall be entitled to 43,684 square feet of additional Gross Floor Area for non-residential or residential development within the approved Final Development Plan above that otherwise permitted through application of the FAR limitations set forth in the PUD-3A and 4C Districts, and if ownership of a portion of up to 5,254 square feet of the lot identified as 249 Third Street (Tax Parcel 27-76) is transferred to the City of Cambridge, upon the execution of such transfer of ownership, the PUD Permittee shall be entitled to additional Gross Floor Area, as well, equal to the product of 3 times the number of square feet of such portion of such lot. Such Gross Floor Area may be included in the approved Final Development Plan, notwithstanding that such approval may precede the actual transfer of the property to the City.

13.59.11 Floor Area Ratio and Gross Floor Area Exemptions for Up to ten thousand (10,000) square feet of Innovation Office Space.

(1) Notwithstanding anything appearing in this Section 13.59 or otherwise contained in the Zoning Ordinance to the contrary, up to ten thousand (10,000) square feet of Gross Floor Area in the preserved and redeveloped building at 161 First Street dedicated as Innovation Office Space (as defined in 13.59.11(2) below) shall not be counted as

Gross Floor Area for the purposes of calculating allowable Floor Area Ratio or maximum allowable Gross Floor Area for the Final Development Plan, or the Gross Floor Area limitations otherwise contained in the Zoning Ordinance.

(2) For the purposes of this Section 13.59.11, Innovation Office Space shall meet the following requirements:

a. Duration of lease agreements (or other similar occupancy agreements) with individual business entities shall be for periods of approximately one (1) month.

b. No single business entity may occupy more than two thousand (2,000) square feet of the Innovation Office Space approved under this Section 13.59.11.

c. The average side of separately contracted private suites may not exceed two hundred (200) square feet of Gross Floor Area.

d. Innovation Office Space shall include shared resources (i.e., co-working areas, conference space, office equipment, supplies and kitchens) available to all tenants and must occupy at least fifty percent (50%) of the Innovation Office Space.

e. Individual entities occupying Innovation Office Space may include small business incubators, small research laboratories, office space for investors and entrepreneurs, facilities for teaching and for theoretical, basic and applied research, product development and testing and prototype fabrication or production of experimental products.

f. At least twenty-five percent (25%) of the Innovation Office Space shall be set aside as below market rate space. Guidelines for eligible tenants and for determining below market rent shall be prepared by the building owner and approved in concept by the Planning Board prior to the Issuance of a Certificate of Occupancy for (or including) the Innovation Office Space, subject to continuing review of Innovation Office Space marketing and leasing programs by the Community Development Department.

(3) The owner of the building where the dedicated Innovation Office Space is located may enter into a least, license or other contract or occupancy agreement with a third party, where the third parking provides (via sublease or other occupancy agreement), administers and manages the required Innovation Office Space without violating the requirements of Section 13.59.11, provided that such third party complies with the requirements of Section 13.59.11 as the same may be varied by the Planning board pursuant to Section 13.59.11(4).

(4) The Planning Board may allow variations to the specific standards and characteristics set forth in this Section 13.59.11 by Minor Amendment to the approved Development Plan or otherwise, if the Planning Board finds that the Innovation Office Space, as proposed, will be consistent with the purposes of these standards and characteristics.

(Ord. No. 2021-3, § x, 6-7-2021; Ord. No. 2024-2, 6-24-2024; Ord. No. 2025-1, 2-10-2025)

13.60 DELETED

13.70 PLANNED UNIT DEVELOPMENT IN THE NORTH POINT RESIDENCE DISTRICT

13.71 *Purpose*. This Section 13.70 is intended to provide the opportunity to create a new residential neighborhood from an area now primarily industrial in character. Retail and office uses and community services are encouraged as part of that neighborhood to serve the residential community and stimulate activity in the area for extended hours throughout the day. Significant new public open space to serve the residents of the district and the general public is desired. It is also intended that development in the PUD in the North Point Residence District will be generally consistent with the policy objectives set forth in the Eastern Cambridge Plan and guidance provided in the Eastern Cambridge Design Guidelines.

13.72 *Applicability*. A special permit for a Planned Unit Development may be granted by the Planning Board in the North Point Residence District in accordance with the requirements of Sections 12.30 and 12.40, and the development controls specified in Section 12.50 and this Section 13.70. All references to and requirements for a PUD district in those sections shall also apply to a Planned Unit Development in the North Point Residence District.

13.73 *Use Regulations*. Any use permitted in Article 16.000 - North Point Residence District may be allowed by the Planning Board, but subject only to the requirements and limitations of this Section 13.70. Other uses, not permitted in Article 16.000 but permitted in a Business B District, may be allowed by the Planning Board upon a written determination that such use is compatible with and advances the policy objectives of the Eastern Cambridge Plan and that it is necessary to support the predominant residential use in the PUD in the North Point Residence District. However, except as set forth in Section 13.73.0 below, non-residential uses may not constitute more than thirty-five (35) percent of the total authorized Gross Floor Area within any Development Parcel, exclusive of both Gross Floor Area devoted to parking facilities and the additional Gross Floor Area (GFA) that may be constructed as a result of the application of FAR bonuses permitted in Section 11.200.

13.73.0 Special Permit for Non-residential Uses. The Planning Board may permit up to one hundred (100) percent of the total authorized Gross Floor Area within a Development Parcel to consist of non-residential uses if there is only one (1) building proposed to be located within the Development Parcel.

13.73.1 Special Provisions Related to Permitted Retail Uses. The total Gross Floor Area for retail and consumer service establishments authorized by the Planning Board in all approved PUDs within that portion of the PUD in the North Point Residence District located west of Charlestown Avenue shall not exceed 75,000 square feet or 25,000 square feet for that portion of the PUD located east of Charlestown Avenue, unless a finding is made by the Planning Board that additional retail use will better serve the objectives of this Section 13.70 and the objectives of the Eastern Cambridge Plan. All retail and consumer services establishments shall be subject to the following limitations:

(i) In no instance shall any individual retail or consumer service establishment exceed 10,000 gross square feet unless the Planning Board determines in

writing that establishments of a greater size better support and serve the residents within the PUD district and better advance the policy objectives set forth in the Eastern Cambridge Plan and the guidance proved in the Eastern Cambridge Design Guidelines.

(ii) No off street parking is provided except that the Planning Board, in approving a Final Development Plan, may explicitly permit accessory off street parking not to exceed one space per two thousand (2,000) square feet of Gross Floor Area approved for retail and consumer service establishments, provided that mitigating measures are included to ensure that the goals of the district will be met.

(2) The initial 50,000 square feet of retail and consumer service establishments authorized in total in approved PUDs shall be exempt from any limitations as to non-residential Gross Floor Area as set forth in Section 13.73.1 above subject to the following limitations:

(i) The GFA is located on the ground floor and fronts on and has a public entry onto a publicly accessible street.

(ii) The establishment is located within the 500-radius described in Section 13.74.11 below.

13.73.2 Limitations on Telephone Exchange Uses. Where the floor area of any such use exceeds 400 square feet, the use shall only be located within 250 feet of the Boston/ Somerville/ Cambridge municipal boundary line and west of Charlestown Avenue.

13.74 *Dimensional Requirements*.

13.74.1 Floor Area Ratio (FAR) Limitation. The maximum ratio of Gross Floor Area to the total area of the Development Parcel, which area shall be calculated in accordance with Section 13.74.2 below, shall be 2.4 except as modified by Sections 13.74.11 - 13.74.12 below. Any GFA contained within the head house or transit station serving the MBTA Green Line, excluding any GFA occupied by private retail, office, or other uses, shall not be subject to the FAR limitations set forth in this Section 13.74.1. Where a Development Parcel encompasses lots to which different FAR and non-residential use limitations apply, the FAR and non-residential use limitation regulations shall be used only to determine the total amount of GFA permitted including the GFA devoted to residential and non-residential uses. Those FAR and non-residential use regulations shall not regulate or limit the distribution of the authorized GFA or uses within the Development Parcel as a whole. That distribution shall be determined by the Planning Board in its approval of the Final Development Plan.

13.74.11 Additional FAR for Proximity to Transit. For any portion of a Development Parcel located within a 500-foot radius of a point defined as the intersection of the centerline of McGrath and O'Brien Highway and the northerly extension of the centerline of First Street, the permitted FAR shall be 3.0. That portion of said Development Parcel shall be permitted to use up to 35% of the allowable FAR for non-residential uses. The portions of the development parcel outside the 500-foot radius shall be subject to the limitations of Sections 13.74.1 and 13.74.12. The additional GFA permitted by this Section 13.74.11 must be located within

the portion of the development parcel located within the 500-foot radius; provided that the Planning Board may allow such additional GFA to be located outside of the 500-foot radius upon determining that such relocation of GFA would further the establishment of an active retail plaza near Lechmere Station. (See Map 13.81)

13.74.12 Additional FAR for Increased Residential Use. For those portions of the PUD district not located within the 500-foot radius described in Section 13.74.11, the FAR permitted in Section 13.74.1 may be increased according to the schedule set forth below as the proportion of GFA devoted to residential uses increases, as proposed in the application for a PUD special permit and approved by the Planning Board.

Proportion of Residential GFA Proposed and Approved	*Permitted FAR*
All residential	3.0
No less than 90%	2.9
No less than 85%	2.8
No less than 80%	2.7
No less than 75%	2.6
No less than 70%	2.5
No less than 65%	2.4

To attain the increase in FAR, the proposed development must attain the percentage thresholds indicated above. There shall be no partial application of the gradations noted above.

13.74.2 Minimum Development Parcel Size. The minimum size of the Development Parcel shall be the larger of (1) one hundred thousand (100,000) square feet or (2) seventy-five percent of the area of a lot or combination of lots (a) in existence as of June 1, 2001 and (b) held in common ownership where it is proposed to incorporate any portion of such lot or lots within the Development Parcel provided that clause (2) shall not apply to a lot or combination of lots owned by The Commonwealth of Massachusetts or a department thereof as of June 1, 2001. The area of a development parcel may include land dedicated (after adoption of this Section 13.70 and prior to the issuance of any building permit for work under a PUD special permit under this Section 13.70) by the owner or former owner of the land, whether in fee or by easement, deed restriction, covenant or comparable legal instrument enforceable by the City of Cambridge or other public entity, as a public way, private way open to public use, or public open space.

13.74.21 Where the Development Parcel required in Section 13.74.2 is greater than 100,000 square feet, the applicant may at his own discretion designate a portion of Development Parcel as a Master Plan Area, within which area physical information may be presented in a more generalized way, subject to more detailed approval by the Planning Board at a time and in a manner determined by the Board in its PUD special permit decision. Within the Master Plan Area location of streets and public parks, the quantities of proposed land uses, general building envelopes, locations and heights shall be indicated in sufficient detail that the

Planning Board can reasonably assess the impact of the Master Plan and its general consistency with the objectives of the PUD district and the guidance provided in the Eastern Cambridge Design Guidelines.

13.74.3 Maximum Building Height. The maximum height of buildings in the PUD district shall be eighty-five (85) feet except as otherwise shown on the PUD in the North Point Residence District Height Limitation Map (Map 13.71) and as provided herein and as further regulated by the provisions set forth in Sections 13.74.31 - 13.74.33 below.

(1) Maximum Building Height of One Hundred and Fifty (150) Feet. The maximum height of buildings shall be 150 feet in the following described areas:

(a) That area bounded by a line beginning as the centerline of Charlestown Avenue, then the centerline of North Point Boulevard and its southeasterly extension to the Cambridge/Boston municipal boundary line, then the Cambridge/Boston municipal boundary line, and then the centerline of O'Brien Highway (Bridge Street) to the point of origin.

(b) That area bounded by a line beginning at the intersection of the Boston and Cambridge municipal boundary line and the centerline of Charlestown Avenue, then southwesterly to the centerline of Monsignor O'Brien Highway, then northwesterly by the centerline of Monsignor O'Brien Highway to the intersection of a line 200 feet northwesterly of and parallel to northwesterly sideline of Charlestown Avenue, then northeasterly by a line 200 feet northwesterly of an parallel to the northwesterly sideline of Charlestown Avenue to Reference Line #1 (see Section 13.74.34), then northwesterly by Reference Line #1 to its intersection with a line that is 117 feet southerly of and parallel to the westerly portion of Reference Line #1 that is deflected 22 degrees south then westerly by a line 117 feet southerly of and parallel to the westerly portion of Reference Line #1 that is deflected 22 degrees south to a point that is the intersection of a line which is 525 feet easterly of and parallel to the northerly extension of the centerline of Second Street, then northerly by a line which is 525 feet easterly of and parallel to northerly extension of the centerline of Second Street, to a point that is the intersection of a line that is 100 feet northerly of and parallel to Reference Line #1, ten westerly by a line 100 feet northerly of and parallel to Reference Line #1 to the intersection of a line that is, the northerly extension of the centerline of Second Street, then northerly by a line that is the northerly extension of Second Street to its intersection with the Cambridge and Somerville municipal boundary line, then the Cambridge/Somerville/Boston municipal boundary line to the point of origin.

(2) Maximum Building Height of One Hundred and Twenty (120) Feet. The maximum height of buildings shall be 120 feet in the following described areas:

(a) That area bounded by a line beginning at the centerline of Monsignor O'Brien Highway at the boundary of the area described in 13.74.3(1)(b) above; then northwesterly by the centerline of Monsignor O'Brien Highway to the intersection of a line which is 325 feet northwesterly of and parallel to the northwesterly

sideline of Charlestown Avenue, then northeasterly by a line 325 feet northwesterly of and parallel to then northwesterly sideline of Charlestown Avenue to Reference Line #1 at the boundary of the area described in 13.74.3(1)(b) above, then southeasterly by the boundary of the area described in 13.74.3(1)(b) above then southwesterly by the boundary of the area described in 13.74.3(1)(b) to the point of beginning.

(b) That area bounded by a line beginning at the boundary of the area described in 13.74.3(1)(b) above at the intersection of a line that is the northerly extension of the centerline of Second Street and a line that is 100 feet north of and parallel to Reference Line #1, then easterly and southerly by the boundary of the area described in 13.74.3(1)(b) above to the intersection of Reference Line #1, then westerly by Reference Line #1 to the intersection of Special Zoning District 1 zoning district boundary line, then northwesterly by the Special District 1 zoning district boundary to the Cambridge and Somerville municipal boundary line, then easterly by the Cambridge and Somerville municipal boundary line to the boundary of the area described in 13.74.3(1)(b) above, then southerly by a line that is the centerline extension of Second Street and the westerly boundary of the area described in 13.74.3(1)(b) above to the point of beginning.

13.74.31 Portions of Buildings Limited to Sixty-five Feet. Except within the area described in Section 13.74.3(1)(a), any portion of a building that is within fifty (50) feet of an existing or proposed Public Open Space or single intervening street abutting that open space may exceed 65 feet only if for each floor above 65 feet, that floor is set back an additional 10 feet from the façade of the floor below, until the maximum height is attained, or until a 20 foot setback from the façade at 65 feet is attained. Alternately, a set back of 20 feet from the façade of the building at a height of 65 feet shall be permitted, and the remaining portions of the building allowed to achieve the maximum height permitted by Section 13.74.3, or any variation between the two provisions.

13.74.32 Additional Height to Two-hundred and Twenty Feet. The Planning Board may in its discretion permit no more than seven residential buildings (in addition to those permitted in Section 13.74.33 below) and one commercial building to exceed a height of one hundred and fifty (150) feet up to a maximum height of two hundred and twenty (220) feet in that portion of the PUD in the North Point Residence District west of Charlestown Avenue, subject to the following limitations.

(1) All such buildings shall be located in that portion of the PUD in the North Point Residence District where the base height for all buildings is one hundred and fifty feet, provided that portions of such buildings may be located in other municipalities and, as to the portion(s) in another municipality only, governed by the zoning regulations of the other municipality.

(2) When approving the building heights permitted under this Section 13.74.32, the Planning Board shall determine that portions of any such buildings above sixty-five feet are appropriately separated from each other.

13.74.33 Additional Height to Two-hundred and Fifty Feet. The Planning Board may in its discretion permit no more than two residential buildings to exceed one hundred and fifty feet in height up to a maximum height of two hundred and fifty (250) feet in that portion of the PUD in the North Point Residence District east of Charlestown Avenue, subject to the following limitations.

(1) All such buildings shall be located in that portion of the PUD in the North Point Residence District where the base height for all buildings is one hundred and fifty feet.

13.74.34 Description of Reference Lines. Reference Line #1 and Reference Line #2 shall be as described herein:

(1) Reference Line #1 is that line which is the northwesterly extension of the centerline of North point Boulevard that, at its intersection with Reference Line #2, is deflected south by 22* degrees and continues thereafter to its intersection with the Special District 1 zoning district boundary line. (*scrivener's error corrected 2/14/11)

(2) Reference Line #2 is that line which is northwesterly of, parallel to, and nine hundred (900) feet distant from the northwesterly sideline of Charlestown Avenue.

13.74.35 Waiver of Height Limitations. In order to provide a limited level of flexibility in developing a comprehensive plan for currently vacant or underdeveloped parcels of land in North Point, the Planning Board may accept a (preliminary) Development Proposal and may approve a Final Development Plan in which one or more buildings or portions of buildings, no higher than one hundred and fifty (150) feet, do not conform to the height limitations set forth in Section 13.74.3 above, subject to the following limitations and conditions.

(1) The building or portion of a building does not extend more than 100 feet into the adjacent, more restrictive height band as set forth in Section 13.74.3 and illustrated on Map 13.71.

(2) The building or portion of a building extending into the more restrictive height band does not exceed the height limit established in the less restrictive height band from which it is being extended.

(3) Such extensions are limited in nature, not inconsistent with the objective of establishing the height band provisions of Section 13.74.3, and are generally consistent with the Eastern Cambridge Design Guidelines.

(4) Other buildings proposed can be demonstrated to be lower than might otherwise be required should the height waiver not be granted by the Planning Board.

(5) The applicant can demonstrate to the satisfaction of the Planning Board that the requested deviations from the height provisions of Section 13.74.3 are reasonable in the context of the proposed Final Development Plan as a whole and permit an organization of buildings, streets, opens space and other features of the Final Development Plan that better serve the public interest and the objectives of the PUD than might otherwise be the case with strict adherence to the height limits established in Section 13.74.3

13.74.36 In the event that two or more height limitation provisions (as set forth in Sections 13.74.3 (1) and (2), 13.74.31, and 13.74.35 above) apply to a single parcel of land defined and approved by the Planning Board as part of a Master Plan and intended to be developed singly and separate from other approved parcels in the Master plan and located within 700 feet of the northwesterly sideline of Charlestown Avenue and within 400 feet south of Reference Line #1, the total allowable massing of a structure on that parcel, as limited in the Master Plan, may be distributed and allocated across the entire parcel without regard to the restrictions set forth in the above referenced Sections to the extent that it furthers the purpose of this Section 13.70 and provided that neither the maximum allowable height applicable on the parcel by the above referenced Sections nor the maximum allowable square footage at the parcel are exceeded. Such redistribution of height may be approved by the Planning Board as part of any design review of individual buildings in the manner set forth in the approved Master Plan.

13.74.4 Other Dimensional Requirements. There shall be no specified minimum lot size for lots located within a Development Parcel. There shall be no minimum lot area per dwelling unit requirement. There shall be no requirement with respect to minimum lot widths or minimum front, side or rear yards in the District. The Planning Board shall approve all proposed building setbacks and lot configurations.

13.75 *Open Space*. Any combination of Public Open Space, Green Area Open Space or Permeable Open Space, as defined in this Ordinance, shall be provided on every Development Parcel and shall in the aggregate equal at least twenty (20) percent of the area of such Development Parcel. Owners of adjacent Development Parcels may collectively provide such open space by dedication, easement, deed restriction, covenant, or comparable legal instrument enforceable by the City of Cambridge or other public entity, in which event each such development parcel shall, for purposes of this Section 13.70 be deemed to include such portion of such open space as such owners shall allocate to it in such legal instrument. This open space requirement shall be subject to the following provisions.

(1) All required open space shall be generally accessible to the public for reasonable periods throughout the day for the purposes for which the open space is designed and approved by the Planning Board, which may include but not be limited to walking, bicycling, active and passive recreation. The Planning Board must approve any proposal to significantly limit public access to the required open space.

13.75.1 Required Public Open Space. Any approved Planned Unit Development whose Development Parcel consists in part or entirely of a lot or combination of lots (a) in existence as of June 1, 2001, (b) held in common ownership, and (c) is at least 250,000 square feet in size shall be obligated to allocate a portion of its open space requirement as set forth in Section 13.75 above as Public Open Space meeting the requirements set forth in Section 13.75.11 below. This obligation shall remain with such lot or combination of lots in its entirety, notwithstanding any subdivision or change of ownership that may occur after June 1, 2001. In each instance where such a lot or combination of lots, or a portion thereof, is included within a development parcel, the PUD special permit shall only be granted if it is established

to the satisfaction of the Planning Board that the Public Open Space required in this Section 13.75.1 can be provided even if its location is on a portion of the lot or combination of lots not included within the Development Parcel under review.

13.75.11 Requirements of the Public Open Space. The required Public Open Space shall consist of a contiguous parcel of land of at least two and one half (2.5) acres in size at a location and designed in a manner consistent with the Eastern Cambridge Plan. As defined, the Public Open Space shall be within the control of the City of Cambridge through fee simple conveyance, easement, or other legal mechanism acceptable to the City. The Planning Board in its conditions shall establish the time by which the facility shall be completed. In the event that the City of Cambridge does not accept the facility, the PUD permittee shall maintain the park for the use of the general public as originally designed and approved by the Planning Board in the Special Permit. The Public Open Space shall be designed and constructed by the permittee according to the conditions of the PUD Special Permit and when conveyed to the city shall be environmentally and otherwise suitable for the recreational uses for which it is designed.

Only one facility of 2.5 acres or greater shall be required within the North Point PUD District. Once the Public Open Space obligation has be met, any remaining open space required for any PUD need only be consistent with the requirements of Section 13.75 and the applicable guidelines of the Eastern Cambridge Plan. The required facility shall be created according to the following rules.

(1) Where the Development Parcel includes a lot or combination of lots defined in 13.75.1 above where that lot or combination of lots is at least 250,000 square feet in area but less than ten acres, and where the development parcel encompasses a portion of the site of the required Public Open Space as illustrated in the Eastern Cambridge Plan, the open space required in the PUD shall be allocated in the approved Final Development Plan in part or in full at the proposed location of the Public Open Space.

(2) Where the PUD Development Parcel includes all or a portion of a lot or combination of lots with an area greater than 10 acres, the PUD Final Development Plan shall be required to create in its entirety a 2.5-acre Public Open Space consistent with the Eastern Cambridge Plan; if development of a 2.5-acre Public Open Space has previously occurred in whole or in part, that portion of the Public Open Space not designated in any previously approved PUD shall be provided.

13.76 *Parking and Loading Requirements*. Off-street parking and loading requirements shall be the same as currently specified in Article 6.000 and in the Schedule of Parking and Loading Requirements applicable to the Residence C-3, Office 3, Business B and Industry B districts, except as modified below.

13.76.1 Parking facilities may be located on the lot they serve or may be located in whole or in part in one or more pooled private or public parking facilities located anywhere within the PUD in the North Point Residence District.

13.76.2 Parking and loading requirements shall be as follows:

(1) Residential Uses: 1.5 spaces per unit maximum.

(2) General Office Uses: 1 space per 625 gross square feet maximum.

(3) Technical Office for Research and Development Uses: 1 space per 840 gross square feet maximum.

13.76.21 Notwithstanding the provisions of Section 13.76.2 above, the total number of parking spaces serving non-residential uses in the PUD in the North Point Residence District shall not exceed 2,500 spaces, allocated to each Development Parcel at the rate of 1.2 spaces per 1,000 square feet of land in the Development Parcel.

13.77 *Approval of Roadway Plan*. No Final Development Plan shall be approved by the Planning Board without Planning Board approval of a Roadway Plan. The Planning Board shall not approve a Roadway Plan (which shall include all proposed roads, streets, driveways and other motor vehicle circulation routes) as part of the Final Development Plan unless the Planning Board finds that the impact of traffic projected to use the approved roadways is consistent with the objective of the PUD in the North Point Residence District to limit the extent of single occupancy vehicle access to the district and is consistent with the traffic findings required in Section 19.20 - Project Review Special Permit.

Notwithstanding the provisions of Section 6.22.4, all accessory parking for development approved in a Final Development Plan shall be provided within the approved PUD area unless the Planning Board specifically allows accessory parking at other locations, consistent with all other provisions of Article 6.000.

13.78 *Other Provisions*.

13.78.1 Signs. The sign regulations of Article 7.000 applicable to Retail, and Office Districts shall be applicable in the District.

13.78.2 Perimeter and Transition. Any part of the perimeter of a planned unit development which fronts on a public open space for not less than two hundred and fifty (250) feet or is immediately adjacent to and within three hundred (300) feet of the Charles River shall be so designed as to complement and harmonize with adjacent land uses (existing or proposed) with respect to scale, density, setback, bulk, height, landscaping, and screening.

13.78.3 Traffic Mitigation Measures. In reviewing a development proposal under the provisions of this Section 13.70 and Section 19.20, the Planning Board shall determine that the proponent has demonstrated, at the time of Final Development Plan Approval, a commitment to a Transportation Demand Management program consistent with the reduced parking mandated in this Section 13.70. The measures to be taken in this program must address:

(1) The amount of parking provided,

(2) The scale of development and the mix of uses proposed, and

(3) The assumptions employed with regard to the proportion of automobile use for those traveling to the site.

For examples of such Measures, the Planning Board shall refer to the Eastern Cambridge Plan, Article 18.000, and the requirements of Section 19.20 in establishing Transportation Demand Management measures applicable to any approved PUD.

13.78.4 Relationship to MBTA Urban Ring Transportation Planning Project. In all PUD application documents, the applicant shall indicate how the proposed PUD development relates physically to the most current plans developed by the MBTA for implementation of the Urban Ring transportation project.

13.79 *Development Flexibility: Additional Permitted FAR and Height*. Notwithstanding any other provisions of this Section 13.70, the Planning Board may accept a (preliminary) Development Proposal and may approve a Final Development Plan that exceeds (1) the FAR limits otherwise required and (2) the proportion of non-residential GFA otherwise required subject to the following limitations and conditions:

13.79.1 Previously Issued Planned Unit Development Special Permits. The mix of uses, Gross Floor Area, and other dimensional characteristics of any existing construction authorized by the grant of a PUD Special Permit, issued before the adoption of this amended Section 13.70, shall be permitted by this Section 13.70. Such mix of uses, GFA, and dimensional characteristics may be reauthorized by any subsequent PUD Special Permit issued for the same Development Parcel under procedures established in this Section 13.70.

13.79.2 Additional Gross Floor Area for Above Ground Structured Parking. The Planning Board may permit additional Gross Floor Area for the exclusive use of structured accessory parking located above grade subject to the following limitations. It is the intent of this Section 13.79.2 to permit the use of above ground parking structures as an acoustical, visual and aesthetic barrier between occupied space (particularly housing within the district and beyond the district in the existing East Cambridge neighborhood) and the active rail lines, yards and operations therein, and adjacent bridge structures abutting the North Point Residence District. In permitting such above ground structured parking, it is expected that the authorized structures will be architecturally and visually well integrated with the development as a whole and not in themselves negatively impact the quality of the development.

(1) The parking facility shall be located adjacent to the Somerville municipal boundary line, the Boston municipal boundary line or Charlestown Avenue (the Gilmore Bridge), but in no case may it extend further than one hundred and ninety-five (195) feet from the lot line between (A) either property used for active rail use as of January 1, 2012 or Charlestown Avenue (the Gilmore Bridge) and (B) property proposed to be developed within the Development Parcel for other uses or on other land proposed to be developed in conjunction with any development authorized by this Section 13.70. It is understood that such lot line and land may be in part located in another municipality.

(2) The facility shall have a height no greater than twenty-five (25) feet unless the Planning Board specifically authorizes a greater height.

(3) The design of the garage shall be of a quality comparable to that of other, non-parking structures in the PUD.

(4) The structure shall be screened with active uses to the maximum extent possible, but at least where it is likely to be viewed from the principal pedestrian pathways within the PUD.

(5) The applicant shall provide to the Planning Board a study prepared by an acoustical engineer outlining the anticipated impact of the proposed development plan on the abatement of sound transmission from the adjacent rail yards to areas within the PUD area and in the residential East Cambridge neighborhood south and west of Msgr. O'Brien Highway.

13.79.3 Additional Gross Floor Area for Non-residential Uses. The Planning Board may permit additional Gross Floor Area for permitted non-residential uses subject to the following limitations:

(1) The additional non-residential GFA authorized shall not exceed that resulting from the application of an FAR of 0.26 and it shall be in addition to and not a substitute for the residential uses required in Section 13.74.1. In no case, however, shall the total authorized GFA for the approved PUD exceed an FAR of 2.66. The provisions of Section 13.74.11 (Additional FAR for Proximity to Transit) may continue to apply but in no case may the FAR permitted in that section exceed 3.0.

(2) No additional parking shall be provided for this additional authorized non-residential GFA. The parking supply upon which that determination is made shall be that supply permitted by the Planning Board for the development and mix of uses permitted in Section 13.74.1.

(3) The applicant shall demonstrate through the Project Review Special Permit process, Section 19.20, that the project with the additional non residential GFA shall not create a more adverse impact upon traffic than the quantity and mix of development permitted in Section 13.74.1. It is anticipated that such a standard shall be met through limitations as to the uses permitted in the additional GFA and through the provision of permanent transit enhancement improvements above those required to be provided to gain approval of the GFA and use mix permitted in Section 13.74.1. In no case, however, shall the additional non-residential FAR permitted in this Section 13.79 be granted by the Planning Board unless the relocation of the MBTA Green Line Station at Lechmere is a part of the PUD application and the Planning Board is satisfied that its construction at a new North Point location will occur prior to the occupancy of any element of the project utilizing the additional non-residential GFA.

(4) To be assured that the transportation related behavior of residents and commercial tenants predicted to occur in the Traffic Study to be conducted under Section 19.20 is borne out in fact as structures are occupied, the Planning Board may require monitoring of actual traffic generation by those residents and employees actually occupying the site. In its decision the Planning Board may establish criteria and procedures for

the timing of such subsequent monitoring of traffic generation, including but not limited to the proportion of total development that is occupied, the length of time such buildings have been fully occupied, and the mix of uses in place.

13.79.4 Provision of Public Benefits. In reviewing any application for additional Gross Floor Area as authorized in Sections 13.79.2 and 13.79.3 above, the Planning Board may consider demonstrated efforts on the part of the applicant to provide permanently affordable housing for middle income households having an income at or below one hundred and twenty (120) percent of the median income for households in the Boston Standard Metropolitan Statistical Area, in addition to those affordable units otherwise required in Section 11.200 and (2) to facilitate the provision of a public sports facility.

13.710 Monitoring of Compliance with PUD Conditions. The Planning Board shall establish in its Decisions the details for monitoring of the project and its performance, as it is implemented phase by phase. In anticipation of such conditions, the applicant shall provide in the application a proposed plan for such long-term monitoring and review.

(Ord. No. 2025-1, 2-10-2025)

13.80 PLANNED UNIT DEVELOPMENT 5 DISTRICT

13.81 *Purpose*. The PUD-5 District is intended to provide for Kendall Square's continued prominence as a world-renowned center of innovation and a vibrant neighborhood through the creation of a mixed-use district of high quality general and technical office and laboratory uses with significant retail activity proximate to the MBTA station. The PUD-5 District helps organize placement of commercial and institutional buildings and establishes an additional mixed-use development containing a significant residential component to support the burgeoning residential corridor along Third Street and the strong links to existing neighborhoods and the riverfront. The PUD-5 District allows for continued support of the academic mission at MIT and encourages connective links, physical and otherwise, between the Institute and adjacent neighborhoods.

The PUD-5 District responds to the Kendall Square planning process and is intended to be a smart-growth, transit-oriented district and therefore allows for replacing surface parking lots with larger scale development in Kendall Square and the major public transit services located there. The PUD-5 District encourages low parking ratios, shared parking strategies, the use of public transportation and improved pedestrian and bicycle environments. The PUD-5 District furthers the City's goals for sustainable development through buildings and sites that are planned, designed and constructed in a sustainable way so as to minimize adverse environmental impacts as they are initially constructed and as they are occupied and operated over the course of their useful lives.

The PUD-5 District promotes the creation of a strong retail corridor along Main Street and the enhancement of Broad Canal Way. Combined, this new public crossroads will have broad appeal as a desirable destination during and beyond the traditional workday by providing a critical mass of diverse restaurants, shops, entertainment and programming.

The ground floor space will engage pedestrians and provide a variety of indoor and outdoor gathering spaces, including retail that can address the needs and reflect the creativity of the local community.

13.81.1 Establishment and Scope of Subdistricts within the PUD-5 District. The PUD-5 District shall be divided into a series of Subdistricts as described below for the purpose of defining requirements that may not apply to the District as a whole. All provisions of the PUD-5 shall apply equally to each Subdistrict, except as provided for elsewhere in Section 13.80.

13.81.2 Description of the Subdistricts within the PUD-5 District.

13.81.2.1 The Third Street Transition Subdistrict is the area bounded by the northern sideline of Lot # 31 on Assessor's Map 14 running to the centerline of Third Street, then the centerline of Third Street running southerly to the centerline of Broadway, then the centerline of Broadway and Main Street running from Third Street to a point in the centerline of Main Street that is consistent with the point of intersection that the eastern sideline of the above-referenced Parcel would have with the centerline of Main Street if such sideline continued in a straight line to the centerline of Main Street, then the eastern sideline of the above-reference Parcel northerly from the centerline of Main Street to the northern sideline of the above-referenced Parcel.

13.81.2.2 The Main Street Subdistrict is the area bounded by the point in the centerline of Main Street that is consistent with the point of intersection that the eastern sideline of Lot #15 on Assessor's Map 46 would have with said centerline if said eastern sideline were continued in a straight line to said centerline, then southerly by the eastern boundary of said Parcel to a line 150 feet north of and parallel to the property lines of lots abutting the northern sideline of Memorial Drive, then westerly by said line to the centerline of Wadsworth Street, then the centerline of Wadsworth Street running north from Memorial Drive, then the centerline of Amherst Street running west from Wadsworth Street, then the centerline of Hayward Street running north from Amherst Street to its intersection with a line 400 feet to the south of and parallel to the Main Street front property lines of lots abutting Main Street and located between Ames and Hayward Streets, then centerline of Ames Street from the parallel line to Main Street, then the centerline of Main Street, but excluding Lot #14 on Assessor's Map 48 (and the portion of Main Street immediately abutting the northern sideline of Lot #14 on Assessor's Map 48).

13.81.2.3 The Transitional Height Subdistrict is the area bounded by the centerline of Ames Street running northerly from the intersection with Amherst Street to a line 400 feet to the south and parallel to the Main Street front lot lines of properties abutting Main Street and located between Ames and Hayward Streets, then westerly by said line to the centerline of Hayward Street, then the centerline of Hayward Street running south toward Amherst Street and then the centerline of Amherst Street running west to Ames Street.

13.81.2.4 The Memorial Drive Height Subdistrict is the area bounded by the centerline of Ames Street running northerly from the northern sideline of Memorial Drive, then the centerline of Amherst Street running east toward Wadsworth Street, then the centerline of Wadsworth

Street running south to its intersection with a line 150 feet north of and parallel to the lot lines of the parcels abutting the northerly boundary of Memorial Drive, then easterly along said line to the easterly boundary of Lot #15 on Assessor's Map 46, then southerly along said easterly boundary to the northern edge of the DCR right of way along Memorial Drive, then westerly by the northern sideline of Memorial Drive.

13.82 *Uses Allowed in the PUD-5 District*. The uses listed in this Section 13.82, alone or in combination with each other, shall be allowed upon permission of the Planning Board.

13.82.1 *Residential Uses.* All uses listed in Section 4.31(d-g) and hotels or motels listed in Section 4.31.1(b).

13.82.2 Transportation, Communication and Utility Uses. All uses listed in Sections 4.32, except for railroad freight terminal, railroad yard and shops (4.32c), truck or bus terminal yard or building for storage or servicing of trucks, trailers or buses, or parking lot for trucks (4.32d), and helipad or airport (4.32h).

13.82.3 Institutional Uses. All uses listed in Section 4.33.

13.82.4 Office and Laboratory Uses. All uses listed in Section 4.34.

13.82.5 Retail or Consumer Service Establishments. All uses listed in Section 4.35.

13.82.6 Outdoor Retail or Consumer Service Establishments. All uses listed in Sections 4.36a. (Open-Lot Retail Sales Establishment) and 4.36d. (Outdoor Entertainment and Recreation Facility), but not including 4.36e. (Drive-In Theater).

13.82.7 Light Industry, Wholesale Business and Storage. All uses listed in Sections 4.37(a), (b), (c) and (f).

13.82.8 Other Uses. Any use not listed in subsections 13.82.1 - 13.82.7 shall be allowed only upon written determination by the Planning Board that such use is consistent with the objectives of the PUD-5 District and is consistent with the predominant uses in the PUD-5 District.

13.83 *Floor Area Ratio; Gross Floor Area*.

13.83.1 Maximum Floor Area Ratio. The maximum total Floor Area Ratio (FAR) of the PUD-5 District shall be 3.9 for all permitted uses. The FAR of any given Development Parcel may exceed the limitation set forth above as long as the overall FAR in the PUD-5 District for such uses does not at any time exceed the limitation set forth above.

13.83.2 Floor Area Ratio and Gross Floor Area Exemptions. Notwithstanding anything appearing in this Section 13.83 or otherwise contained in the Zoning Ordinance to the contrary, the following shall not be counted as Gross Floor Area for the purposes of calculating the allowable FAR for the PUD-5 District or the Gross Floor Area limitations set forth further below:

a. The Gross Floor Area of any first floor or areas situated no more than one (1) floor below grade of a building devoted to the retail uses identified in Sections 13.82.5 and 13.82.6, constructed or, if located in an existing building, substantially renovated, after

the adoption of Section 13.80, provided, however, that in the event that the average size of individual retail uses located in the PUD-5 District exceed 5,000 square of Gross Floor Area, the portion of any individual retail use exceeding 5,000 square feet (or 10,000 square feet for a grocery, market or pharmacy retail use) shall be counted as Gross Floor Area for the purposes of calculating allowable FAR. The floor area of any grocery, market or pharmacy uses shall not be included in calculating the average size of individual retail uses for the purposes of this Section 13.82.3.a.

b. The area of any public transportation facility directly providing public transportation services that is owned or controlled by a public transportation agency.

c. The Gross Floor Area of any residential and institutional dormitory uses constructed in any of the Main Street, Transitional Height and Memorial Drive Height Subdistricts after January 1, 2013, but only to the extent that such Gross Floor Area, when taken together with the aggregate Gross Floor Area of all other residential and institutional dormitory uses then-situated within said Subdistricts, exceeds the total amount of Gross Floor Area devoted to such uses within said Subdistricts as of January 1, 2013.

d. Fifty percent (50%) of the Gross Floor Area devoted to Innovation Office Space (as defined in Section 13.89.3), up to an amount equal to twenty percent (20%) of the total office space remaining in the PUD-5 District.

13.83.3 Gross Floor Area Limitations.

a. Definition of New Gross Floor Area. For purposes of this Section 13.80, "New Gross Floor Area" shall mean an amount of square feet of Gross Floor Area in excess of the amount of Gross Floor Area in existence in the PUD-5 District as of January 1, 2013. For example, if an existing building in the PUD-5 District containing 50,000 square feet of Gross Floor Area is demolished and a building containing 55,000 square feet of Gross Floor Area is constructed in its place, 5,000 square feet of Gross Floor Area would be considered New Gross Floor Area.

b. Plan Requirements.

i. Existing Uses. As part of the first application for a PUD special permit under the provisions of this Section 13.80, such existing Gross Floor Area for the entire PUD-5 District shall be identified as to quantity, type of use and location and such enumeration shall thereafter serve as the basis from which to administer this Section 13.83.3.

ii. Conceptual Development Plan. A Development Proposal shall include, in addition to the required site plans for development within that particular Development Parcel, a conceptual plan depicting the range of potential building sites elsewhere in the PUD-5 District and indicating the potential size and use (or alternate uses) of future development on those sites. The purpose of this plan is to place the Development Proposal in context with existing and potential future development and to illustrate how the remaining allowed development within the District may be distributed in the future. The conceptual development plan shall be

expected to evolve over time. With each subsequent Development Proposal within the PUD-5 District, a revised conceptual plan shall be submitted. Revisions to a conceptual plan shall not require amending any previously approved PUD Special Permit, but shall not be effective to waive or modify any of the specific conditions contained in a previously approved PUD Special Permit. The Conceptual Development Plan may also incorporate the Conceptual Open Space Plan required in Section 13.87.2.

c. Commercial Limitation. No more than an aggregate of 980,000 square feet of New Gross Floor Area of the types of uses listed in Sections 13.82.4-13.82.7 shall be permitted in the PUD-5 District.

Notwithstanding anything in this Ordinance to the contrary, a building shall not be considered to be a "commercial building" if institutional uses occupy in excess of seventy-five percent (75%) of the Gross Floor Area of the building, excluding the Gross Floor Area of any retail contained therein, for the purposes of Sections 13.88 and 13.89.4.

13.84 *Parcel and Lot Requirements*.

13.84.1 Parcel and Lot Size. The minimum size for a Development Parcel for a PUD in the PUD-5 District shall be 25,000 square feet. There shall be no minimum lot size for lots within a Development Parcel in the PUD-5 District.

13.84.2. [Deleted]

13.84.2 Minimum Lot Area Per Dwelling Unit. There shall be no required minimum Lot Area per dwelling unit in the PUD-5 District.

13.85 *Setbacks*. Except as provided below, there shall be no minimum required front, rear and side yard requirements for a Development Parcel or for lots located within a Development Parcel.

13.85.1 New commercial buildings along Main Street, Third Street and Broadway containing uses set forth in Sections 13.82.4 -13.82.7 above in the PUD-5 District must be set back sixteen (16) feet from the Street Line of Main Street, Third Street and Broadway at and above a point eighty-five (85) feet above mean grade. Up to one-third of the façade length on such a street, on a cumulative basis, may be exempt from this requirement.

13.85.2 New buildings constructed in the Third Street Transition Sub-District must be set back from the portion the easterly boundary of the Sub-District situated within 120 feet of the northerly Street Line of Main Street (the "Limited Setback Boundary") (a) a distance of at least twenty (20) feet, running parallel from the Limited Setback Boundary, and (b) thirty-six (36) feet for any portions of the building that exceed a height of eighty-five (85) feet above mean grade, running parallel from the Limited Setback Boundary.

13.86 *Height*.

13.86.1 In the Third Street Transition and the Main Street Subdistricts, the maximum height of any building shall be 250 feet, except as permitted by Section 13.86.1.1.

13.86.1.1 The Planning Board may approve Final Development Plans that result in no more than one new building exceeding 250 feet up to 300 feet in height in the Third Street Transition Subdistrict and one additional building up to 300 feet in height in the Main Street Subdistrict; provided that:

a. The use of any occupiable space situated above 250 feet in height shall be limited to residential and/or institutional dormitory uses, and

b. Within a residential building, Middle Income Units (as defined below) shall occupy an aggregate Gross Floor Area equal to at least twenty-five percent (25%) of the total residential Gross Floor Area (excluding any Gross Floor Area occupied by institutional dormitory uses) in the portions of the building that exceed 250 feet in height. Such Middle Income Units shall be evenly distributed throughout the residential building in a manner approved by the Planning Board, in consultation with City staff, in the Final Development Plan for a Development Parcel, in order to ensure that the Middle Income Units are of an appropriate location, size, configuration and quality for households intended to occupy such units.

For the purposes of this Section 13.86.1.1, Middle Income Units shall be defined as residential dwelling units for which:

i. The occupancy is restricted to households whose total income exceeds 80% but does not exceed 120% of the median income of households in the Boston Standard Metropolitan Statistical Area adjusted for family size, or such other equivalent income standard as may be determined by the Board of Trustees of the Affordable Housing Trust Fund; and

ii. The rent (including utilities) does not exceed thirty percent (30%) of the income of the renting household or, in the instance of home ownership units, the monthly mortgage payment (including insurance, utilities and real estate taxes) does not exceed thirty percent (30%) of the income of the purchasing household, or such other equivalent standard as may be determined by the Board of Trustees of the Affordable Housing Trust Fund.

13.86.2 In the Transitional Height Subdistrict, the maximum height of any building shall be 200 feet. Notwithstanding the above, if at least 50% of the area of the ground floor footprint of a building is located within the Main Street Subdistrict, a portion of the building at the higher height may extend into the Transition Height Subdistrict, but by no more than 50 feet.

13.86.3 In the Memorial Drive Height Subdistrict, the maximum height of any building shall be 150 feet.

13.87 *Open Space*.

13.87.1 Minimum Open Space. The minimum overall percentage of Publicly Beneficial Open Space of the total area of the PUD-5 District shall be fifteen percent (15%). The percentage of Publicly Beneficial Open Space provided in any given Final Development Plan for a Development Parcel may be less than 15% as long as the overall ratio in the PUD-5 District is not less than 15%. In the event that a Development Parcel provides less than 15% open

space, the Final Development Plan for the Development Parcel shall identify the Publicly Beneficial Open Space in the PUD-5 District that shall equal or exceed 15% of the total area of the PUD-5 District.

13.87.2 Conceptual Open Space Plan. A Development Proposal shall include a conceptual plan depicting the size, layout and configuration of Publicly Beneficial Open Space within the PUD-5 District upon completion of the proposed building(s) in the Development Parcel. This conceptual plan shall indicate the Publicly Beneficial Open Space that exists in the PUD-5 District as of the time of the submission of the Development Proposal, that will be constructed as part of the Development Proposal, and that are planned for elsewhere in the PUD-5 District. The conceptual open space plan shall be expected to evolve over time as some portions of Publicly Beneficial Open Space may be relocated or reconfigured as part of future Development Proposals. With each subsequent Development Proposal within the PUD-5 District, a revised conceptual open space plan shall be submitted. Revisions to a conceptual open space plan shall not require amending any previously approved PUD Special Permit, but shall not be effective to waive or modify any of the specific conditions contained in a previously approved PUD Special Permit. The Conceptual Open Space Plan may be presented jointly with the Conceptual Development Plan required in Section 13.83(b)(ii).

13.88 *Parking and Loading Requirements.* Development in the PUD-5 District shall conform to the off street Parking and Loading Requirements set forth in Article 6.000, except as modified by this Section 13.88.

13.88.1 With regard to uses contained within new commercial buildings, provided that the requirements of Section 6.23 of the Ordinance are met, the parking requirements of this Section 13.88 may be satisfied (a) anywhere in the PUD-5 District or, if located outside of the PUD-5 District, within 2,000 feet of the use being served, notwithstanding anything to the contrary contained in Article 6.000 and (b) in total or in part by a lease agreement between the developer and the City, other public entity or private owner or consortium for use of parking spaces in the public or pooled private parking facilities within said area.

13.88.2 All parking provided within an approved PUD shall be considered collectively accessory to all approved uses within the PUD, including any uses outside of the Development Parcel that may be approved by the Planning Board. Notwithstanding anything to the contrary in Article 6.000, this Ordinance shall not restrict the management and assignment of parking spaces in a way that will most efficiently utilize the existing and proposed parking spaces to serve all approved uses. As an exception to this rule, all parking spaces (whether existing or proposed) to be included within an institutional parking pool shall be distinctly identified, and shall not be used for any other uses except in ways that are explicitly approved by the Planning Board in issuing a PUD Special Permit Decision.

13.88.3 [Deleted]

13.88.4 *Maximum Parking.* Maximum allowed parking for a PUD shall be limited by applying the rates set forth below to each use within the PUD and taking the summation of the result for all uses. Exceeding the maximum allowed parking shall require a waiver of maximum parking required under the general provisions of Article 6.000.

a. Maximum of 0.9 spaces per 1,000 square feet of Gross Floor Area for office uses, excluding technical office (Section 4.34(a-e)).

b. Maximum of 0.8 spaces per 1,000 square feet of Gross Floor Area for laboratory use and technical office uses (Section 4.34(f)).

c. Maximum of 0.75 spaces per residential dwelling unit (Section 4.31(d-g)).

d. Maximum of 0.5 spaces per 1,000 square feet of retail (Sections 4.35 and 4.36).

e. Maximum of 1 space per 4 guest units for hotel use (Section 4.31.1(b)).

13.88.5 Shared Parking Study. A Development Proposal for development in the PUD-5 District shall include an analysis of anticipated parking demand for all uses in the development throughout the course of a typical day and week. This analysis may identify opportunities for reducing the total amount of parking required to serve all uses through the sharing of parking spaces by multiple uses. Based on this analysis, the Planning Board may approve a reduced minimum or maximum parking requirement upon finding that the approved amount of parking will be sufficient to serve all permitted uses.

13.88.6 Design, Dimensional, and Other Requirements of Provided Parking and Loading Facilities

a. Except as provided herein, all parking for new non-residential and non-institutional uses shall be underground structured parking. Notwithstanding this underground parking requirement, parking for all uses in the Third Street Transition Subdistrict may be in above-ground structured parking provided such structured parking is consistent with the existing structured parking in the Subdistrict.

b. In its approval of a Final Development Plan, the Planning Board, in consultation with City staff (including the Traffic Parking and Transportation Department), may approve (i) the location, layout and design of parking spaces that deviate from the requirements of Article 6.000; (ii) the location, width and layout of curb cuts serving the Development Parcel that deviate from the requirements of Section 6.43; and (iii) a small number of on-grade parking and loading spaces to be used for, among other things, handicap parking, short-term loading, use by food trucks and other short-term or special purposes.

13.88.7 Temporary On-Grade Open Parking for Commercial Uses. On an interim basis in anticipation of later construction of underground or other structured parking sufficient to meet all parking requirements of a new commercial use constructed on a Development Parcel, on-grade open parking shall be allowed within the PUD-5 District to serve such a use subject to the following conditions:

a. The future underground parking structure will be constructed within the PUD-5 District, but it may be located either on or off of the lot which it will serve;

b. Construction of the replacement subsurface parking structure is anticipated to commence within four (4) years of the date of certificate of occupancy for the building initially served by on grade parking;

c. The future subsurface parking structure will contain sufficient spaces for users of the building initially served by on grade open parking so as to meet the parking requirements for such building; and

d. Binding commitments shall exist to establish, to the reasonable satisfaction of the Planning Board, that requirements (a) through (c) above shall be satisfied. Such commitments shall be made by negotiated lease agreement, deed restriction, covenant, or comparable legal instrument.

13.88.8 Pre-Existing Parking Spaces.

a. The Planning Board, after consultation with City staff, may approve in a Final Development Plan, underground or structured parking spaces as replacements for pre-existing accessory parking spaces that will be displaced by improvements contemplated by such Final Development Plan, provided that such spaces are serving pre-existing commercial uses that are not proposed to be substantially altered. The Planning Board shall approve such replacement spaces upon determining that they were legally permitted under the applicable zoning regulations when the pre-existing use was established and that the traffic generated by the pre-existing use shall not be increased as a result. If such pre-existing spaces have been guaranteed to a third party by virtue of the terms of a duly executed lease, license or other legally binding written agreement that exists as of January 1, 2013, the Planning Board may include conditions to its approval that would take effect upon the expiration of the third party's pre-existing use and occupancy of building, pursuant to the existing agreement (as such agreement may be extended and/or renewed from time to time).

b. Where any pre-existing accessory off-street parking spaces located in a Development Parcel that are serving a pre-existing use located outside the Development Parcel (whether within or outside the PUD-5 District) are proposed to be eliminated or displaced in accordance with the Final Development Plan for that Development Parcel, such pre-existing off-street parking may be relocated to a Parcel other than the Development Parcel by Special Permit granted by the Planning Board to the owner of the off-site use after consultation with City staff, provided, however, that such use is permitted on such other Parcel either as-of-right or by virtue of zoning relief granted for such Parcel by the Planning Board or the Board of Zoning Appeals, as the case may be. In granting such Special Permit, the Planning Board may grant deviations from the requirements of Article 6.000 of this Ordinance for the number, location, layout and design of the relocated parking spaces.

c. Such replacement or relocated accessory parking spaces for pre-existing uses shall not count toward the maximum parking permitted under this Section 13.88.

13.88.9 The Planning Board, in its approval of a Final Development Plan for a Development Parcel, may waive any requirements for the amount, location and design of loading facilities within a Development Parcel, and may permit loading facilities to be shared across various uses and lots within the PUD-5 District.

13.88.10 The quantity, design and location of bicycle parking shall comply with the provisions set forth in Article 6.000 of this Ordinance.

13.89 *Special Requirements, Conditions and Standards Applicable to Certain Development Authorized by the Planning Board in the PUD-5 District*. The Planning Board shall approve a Final Development Plan only after finding that in addition to all other applicable requirements the following requirements have been met. The Planning Board shall, in addition, include conditions in the approval of a Final Development Plan that will ensure ongoing compliance with these requirements.

13.89.1 Rooftop Mechanical Equipment Noise Mitigation. Sound emanating from rooftop mechanical equipment on all new or substantially altered structures (i.e., alterations to an existing structure or building the cost of which exceeds fifty percent (50%) of the assessed value of such building or structure) in an approved Final Development Plan shall be minimized by the adoption of best available and feasible practices regarding the location and sizing of equipment, the selection of equipment and sound attenuation measures.

At a minimum, any noise or vibration emanating from new commercial or substantially altered (as defined in this Section 13.89.1) commercial buildings shall not be normally perceptible at ground level without instruments at a distance of one hundred (100) feet from the source lot line and shall comply with the provisions of the City of Cambridge Noise Ordinance applicable to Commercial Areas (as such term is defined in the Noise Ordinance).

In order to enforce these requirements, the applicant shall provide, in addition to Noise Mitigation narrative required as part of Article 19.000 review, acoustical reports prepared by a professional acoustical engineer as described below:

a. Prior to and as a condition of the issuance of the first certificate of occupancy for a new or substantially altered commercial building, an acoustical report, including field measurements, demonstrating compliance of such building with all applicable noise requirements; and

b. Prior to obtaining any building permit to add any equipment having a capacity greater than five (5) horsepower to the rooftop, a narrative report demonstrating that there will be continued compliance with all applicable noise requirements after such addition, and upon completion of such addition and as a condition to operation thereof, an acoustical report, including field measurements, demonstrating such compliance.

13.89.2 Required Housing. At least 240,000 square feet of New Gross Floor Area in the aggregate must be devoted to residential uses in the PUD-5 District. Prior to the issuance of a building permit allowing construction of New Gross Floor Area for commercial uses in excess of 600,000 square feet in the aggregate, the Developer must demonstrate that construction of

a minimum of 240,000 square feet of New Gross Floor Area of residential use has commenced, a full building permit has been issued for the construction of such residential use and that the construction of such square footage is being continuously and diligently pursued. The required residential Gross Floor Area shall be subject to the provisions of Section 11.200 of the Zoning Ordinance. Except as otherwise set forth herein, a Final Development Plan shall be subject to the requirements of Section 11.203.1 (Requirements for Incentive Zoning Contributions) and 11.203.2 of the Zoning Ordinance (Requirements for Inclusionary Housing), provided, however, in the Third Street Transition Subdistrict, subject to the provisions of Section 11.203, the percentage shall be increased to eighteen percent (18%).

13.89.3 Innovation Space. A Development Proposal containing at least 200,000 square feet of new Office Uses shall include a plan for Innovation Office Space meeting the requirements of this Section 13.89.3.

13.89.3.1 Required Space. For a Development Proposal containing new Office Uses, Innovation Office Space within the PUD-5 District must occupy Gross Floor Area equal to, or in excess of, the amount of Gross Floor Area that is five percent (5%) of the New Gross Floor Area approved in the Final Development Plan for Office Uses. Existing Gross Floor Area within the PUD-5 District may be used to meet this requirement. Where at least 40,000 square feet of Innovation Office Space is required, Innovation Office Space may be distributed in separate buildings, provided, however, that each separate "unit" of Innovation Office Space, contains at least 20,000 square feet. If less than 40,000 square feet of Innovation Office Space is required to be contained in the PUD-5 District, the Innovation Office Space must be contained in a single building.

Developers of properties within the PUD-5 District may collaborate with property owners in adjacent zoning districts in the Kendall Square area to develop joint Innovation Office Space Plan. In such a case, the total square footage of joint Innovation Office Space must be large enough to satisfy the sum of the requirements, if any, for such participating developers and zoning districts.

13.89.3.2 Characteristics. For the purposes of this Section 13.89.3, the required Innovation Office Space shall have the following characteristics:

a. Durations of lease agreements (or other similar occupancy agreements) with individual business entities shall be for periods of approximately one (1) month.

b. No single business entity may occupy more than 2,000 square feet or 10% of the entire Innovation Office Space required to be provided in the PUD-5 District, whichever is greater.

c. The average size of separately contracted private suites may not exceed 200 square feet of GFA.

d. Innovation Office Space shall include shared resources (i.e., co-working areas, conference space, office equipment, supplies and kitchens) available to all tenants and must occupy at least 50% of the Innovation Office Space.

e. Individual entities occupying Innovation Office Space may include small business incubators, small research laboratories, office space for investors and entrepreneurs, facilities for teaching and for theoretical, basic and applied research, product development and testing and prototype fabrication or production of experimental products.

13.89.3.3 Variations. In approving a Final Development Plan or a Minor Amendment to a Final Development Plan, the Planning Board may allow variations in the specific standards and characteristics set forth Sections 13.89.3.1 and 13.89.3.2 above, if the Planning Board finds that the Innovation Office Space, as proposed, will be consistent with the purposes of these standards and characteristics.

13.89.4 Sustainability. New buildings constructed within the PUD-5 District shall comply with the provisions of Section 22.20 of the Ordinance. Notwithstanding the above, new commercial buildings containing uses identified in Sections 13.82.4 and 13.82.7 and new residential buildings identified in Section 13.82.1, shall comply with LEED Gold level criteria. In connection with the submission requirements of Section 22.24.2.a., the developer of such buildings shall submit a Statement of Energy Design Intent produced through the EnergyStar Target Finder tool, or comparable method. New institutional buildings will meet LEED Gold level criteria, unless the technological specifications of a proposed specialized research facility are such that the developer can demonstrate the impracticability of achieving the LEED Gold level criteria or the inordinate impact achieving the LEED Gold level would have on such specialized research facility. New buildings in the PUD-5 District must incorporate an integrated design approach and incorporate the best practices for meeting sustainability in the following five (5) areas:

a. Energy and Emissions; Steam. Each new building must conserve building energy and, to the extent applicable, reduce carbon/GHG emissions. The Developer, with each Development within the PUD-5 District, must evaluate the potential for on-site energy generation or the construction of co-generation facilities within the PUD-5 District that will serve the new building and other buildings located within the PUD-5 District. A Development Proposal for a commercial building shall include a study, prepared by the Developer, considering the feasibility of connecting the building identified in the Development Proposal to the existing district steam system.

b. Urban Site and Landscaping; Water Management. The Developer, for each new building, must explore opportunities for (i) potable water use reductions, (ii) storm water management using open spaces, (iii) the incorporation of indigenous vegetation and (iv) storm water for irrigation purposes. At a minimum, all new buildings within the PUD-5 District must meet the Department of Public Works' standards for water quality management and the retention/detention of the difference between the 2-year 24-hour pre-construction runoff hydrograph and the post-construction 25-year 24-hour runoff hydrograph.

c. Healthy Living & Working. Each new building must provide people with access to daylight and enhance the visual and thermal comfort of people living and working within the PUD-5 District.

d. Transportation. The Final Development Plan for the PUD-5 District must encourage multimodal transportation, provide facilities for cyclists and provide an infrastructure to support alternative energy vehicles.

e. Promotion of Sustainability Awareness. New buildings within the PUD-5 must be designed to incorporate features that demonstrate other sustainability strategies.

f. Cool Roofs. All new buildings approved in the District after January 1, 2013, must employ Functional Green Roofs (as such term is defined in Article 22.000 of this Zoning Ordinance), high-albedo "white" roofs or a functionally equivalent roofing system.

g. Monitoring. All new buildings approved in the PUD-5 District after January 1, 2013, shall track and report energy use to the City using EnergyStar, Labs21, LEED-EBOM or a substantially similar mechanism. Such reporting shall occur at the end of the first year of occupancy of the building, then once annually during the first five (5) years of occupancy, and once every five (5) years thereafter. Failure to provide such reports to the City shall not constitute a failure of condition of any PUD-5 Special Permit.

h. In connection with the approval of a Final Development Plan or in connection with the granting of a Special Permit pursuant to Article 19 of the Ordinance, the Planning Board may grant dimensional and other zoning relief in order to permit the construction of a co-generation facility or other energy systems that allow developments to develop shared solutions to minimize energy usage.

13.810 *Other Provisions*.

13.810.1 Active Uses and Pedestrian Activity. Final Development Plans for commercial uses shall enhance the public pedestrian usage of the sidewalks and create a sense of neighborhood continuity by providing an interesting, lively and active presence at street level. Accordingly, portions of the first floors of commercial buildings in locations enumerated below shall generally be planned, designed, constructed and used for Active Uses (defined below). At a minimum, a total of at least seventy-five percent (75%) of the aggregate New Gross Floor Area of the Activation Space situated within a commercial building in the PUD-5 District shall be devoted to Active Uses. For the purposes of this Section 13.810.1, the term "Activation Space" shall mean the portions of the first floors of commercial buildings immediately abutting Main Street, Broadway and the Broad Canal, situated between the Principal Front Wall Plane of such building along said Main Street and Broadway and along the northerly and easterly boundaries of the Third Street Transition Subdistrict along Broad Canal Way and the line that is situated twenty (20) feet from said Principal Front Wall Plane. Notwithstanding the above, the Planning Board, in approving a Final Development Plan for a new building, may, in consultation with City staff, grant a reduction of the required minimum total area of Active Uses within the Activation Space of the new building, where such reduction is necessitated by site conditions or other complications.

Definition of Active Uses. For purposes of this Section 13.810.1, "Active Uses" means:

(1) Retail business and consumer service establishments listed in Section 4.35;

(2) Institutional uses that are generally open to the public, such as museums and exhibition spaces;

(3) Uses listed in Section 13.82.6; and

(4) Other uses which the Planning Board determines meet the goals of this Section 13.810.1.

The definition of "Active Uses" shall specifically exclude lobbies or other spaces that serve an accessory function to upper-story office or laboratory uses.

Building and Site Design Requirements for Active Uses and Open Spaces.

(1) Active Uses shall have one or more entrance(s) from the sidewalk or plaza separate from the principal entrance of the building for non-retail uses.

(2) Outdoor courtyards, delineated gathering space, or sitting areas are encouraged throughout each Development Parcel in any approved Final Development Plan.

Prior to submitting any application for a special permit in the PUD-5 District, the applicant shall engage the services of a consultant or other party with retail expertise to advise the applicant in connection with retail and other Active Uses to be included in the applicable Development Parcel. The recommendations of that consultant shall be included in the applicable special permit application.

13.810.2 Contribution to Community Fund. Upon the Planning Board's approval of the first Final Development Plan for a Development Parcel within the PUD-5 District, the permittee shall contribute to a Community Fund, established by the City Manager, an amount equal to $10.00 multiplied by the number of square feet of new gross floor area for the commercial uses identified in section 13.82.4 and 13.82.7 (an amount, a "Fund Contribution Payment"). The City shall use the funds contributed by the developer pursuant to this Section 13.810.2.

Notwithstanding the above, the permittee shall, within ninety (90) days of the adoption of this Section 13.80, make a payment of $2,500,000 to the City as a deposit against future Fund Contribution Payments. On the earlier to occur of the issuance of the first Final Certificate of Occupancy for a new commercial building within the PUD-5 District or three (3) years from the date of the adoption of Article 13.80, the permittee shall make a payment of $2,500,000 to the City as an additional deposit against future Fund Contribution Payments. Following the payment of the second deposit the permittee shall not be required to make any further Fund Contribution Payments until such time as the City has issued Final Certificates of Occupancy for new commercial buildings containing 500,000 square feet of Gross Floor Area, in the aggregate.

13.810.3 Planning and Zoning Studies; Design Guidelines. In its review and approval of a Final Development Plan for a Development Parcel, the Planning Board shall consider all future planning and zoning studies and design guidelines adopted by the Planning Board for a geographic area containing the Development Parcel.

13.810.4 Letter of Commitment. The Letter of Commitment dated April 8, 2013, by the Massachusetts Institute of Technology shall be binding upon the Massachusetts Institute of Technol-

ogy and its successors and assigns. The issuance of any building permit or certificate of occupancy authorized by a Planned Unit Development Special Permit issued pursuant to this Section 13.80 shall be conditioned upon certification by the Community Development Department and all other relevant City departments to the Inspectional Services Department that all portions of the aforementioned Letter of Commitment are continuing to be met.

(Ord. No. 2021-3, § xi, 6-7-2021; Ord. No. 2024-2, 6-24-2024; Ord. No. 2025-1, 2-10-2025)

13.90 PLANNED UNIT DEVELOPMENT 7 DISTRICT

13.91 *Purpose*. The PUD-7 District is intended to provide for the creation of a vibrant mixed-use district of high quality general and technical office and retail activity, with significant components of residential use and open space. The retention of government office facilities on the site is desired, as well as space for smaller innovation companies as a component of the commercial space that is created. The creation of open space to serve residents of the District and the surrounding neighborhoods, as well as workers, students from nearby institutions, and visitors, is desired. The PUD-7 District permits larger scale development and supporting commercial activities and residences close to Kendall Square and the major public transit services located there. It encourages strong connections between new development at Kendall Square, the East Cambridge riverfront, the PUD-7 area and the neighborhoods of eastern Cambridge. It also promotes permeability at the edges of the district, public spaces that will feel welcoming and comfortable to all users, ground floors that will activate public streets and spaces, and civic functions and amenities serving residents and visitors of all ages and all socioeconomic backgrounds. The expectation is for the District to transform into a recognizable center of activity and civic life for Kendall Square and the surrounding neighborhoods. Development in the PUD-7 District is expected to meet high standards for urban design, architectural design, environmental sustainability and open space design. Development should be generally consistent with the policy objectives set forth in the then current Kendall Square ("K2") Planning Study and Design Guidelines (2013), the Planning and Design Principles established by the City's Volpe Working Group (2017) and Volpe Site Design Guidelines (2017), collectively, the "PUD-7 Guidelines and Principles."

13.91.1 Master Plan Area. To further the purpose of this Section 13.90, any Development Parcel or portion of a Development Parcel meeting the requirements set forth in Section 13.93 below that is at least five (5) acres in area shall be considered a Master Plan Area, within which a Development Proposal shall present physical information in a more conceptual or generalized way, subject to more detailed approval by the Planning Board at a time and in a manner determined by the Board in its PUD special permit decision.

13.91.2 Master Plan Requirements. Within the Master Plan Area, the locations of streets and open spaces, the quantities of proposed land uses, and general building envelopes, locations and heights shall be indicated in sufficient detail that the Planning Board can reasonably assess the impact of the Master Plan and its general consistency with the Master Plan Criteria set

forth in Section 13.91.4 below and the guidance provided in the PUD-7 Guidelines and Principles. At a minimum, a Development Proposal and subsequent Final Development Plan for a Master Plan Area must contain the following components:

(a) Site Development Plan — describing how the Master Plan Area is divided into distinct building sites (including any Government Owned Lot as defined in Section 13.97 below), streets, and open spaces and their development characteristics, including potential uses and Gross Floor Area ("GFA").

(b) Site Massing Plan — illustrating the height and massing of building volumes for each proposed building site, and including studies of anticipated shadow and wind impacts resulting from building mass.

(c) Parking and Loading Plan — identifying the locations of all parking facilities, bicycle parking facilities and facilities for loading or other vehicular service functions, and the number of spaces proposed at each location.

(d) Connectivity Plan — illustrating all pedestrian, bicycle and vehicular circulation routes within the Master Plan Area, their connections to nearby public circulation routes and destinations outside the Master Plan Area, and approximate locations of access and egress points on each building and parking facility within the Master Plan Area.

(e) Open Space Plan — illustrating and quantifying the areas of all proposed open space and the ownership and designation of each area, specifically delineating open space required in Section 13.94 below and the portions of such open space that will be permanently guaranteed for public use, as well as descriptions of major design elements and themes to be incorporated into each space and the types of uses and activities that could be accommodated in each space, including areas that will be designated for programmed uses such as spill-out dining and performance space.

(f) Ground Floor and Activation Plan — illustrating the conceptual arrangement of functions such as retail establishments and other active uses, residential and office lobbies, and utility spaces at the ground floor of each building in the Master Plan Area, as well as the locations and anticipated sizes of Active Space, Innovation Space, and Community Space that may be required or incentivized by the specific provisions of this Section 13.90 and strategies for programming and activating those spaces (specifically including a report from a retail specialist describing strategies for recruiting and supporting retail tenants in a manner that will support the requirements and goals of the District).

(g) Housing Plan — providing the approximate number and mix of housing unit types proposed on each residential site, and identifying the anticipated location of dwelling units that may be required or incentivized by specific provisions of this Section 13.90.

(h) Phasing Plan — describing the general sequence in which development is proposed to proceed, and specifically describing how the phasing requirements set forth in this Section 13.90 will be met.

(i) Sustainability Plan — describing: (1) how the sustainability requirements set forth in Section 13.96.4 below will be met; (2) expected greenhouse gas emissions from the development and strategies employed to improve energy efficiency and support renewable energy production, through individual building design and by utilizing existing or new district-wide energy systems; and (3) expected vulnerability of the development to the effects of climate change, including increased precipitation, flood risk, temperature, and urban heat island effect, and strategies to promote resiliency within individual building sites and at a larger district-wide level, including natural stormwater management systems, increased vegetation and shade, and measures to withstand and recover from extreme climatological events.

(j) Transportation Plan — incorporating: (1) a Transportation Impact Study required by Section 19.20 of this Ordinance; (2) a Shared Parking Study required by Section 13.95.5 below; (3) a study of the impacts of increased demand on public transportation services in the Kendall Square area; (4) a description of the development's relationship to future regional rail, bus, pedestrian/bicycle and other transportation system connections in the area, such as the Grand Junction rail corridor; and (5) a Transportation Demand Management and Mitigation program describing measures to offset or mitigate the project's impacts on transportation systems. Such studies shall account for the proposed scale and phasing of development and the limitations on system capacity to accommodate new vehicle, transit, and other trips.

(k) Environmental Comfort Plan — describing or showing screening, building elements, or other site improvements designed to reduce impacts from wind and shadows, provide adequate lighting for safe use while minimizing excessive light, mitigate urban heat island effect, and control noise generated by mechanical systems and by truck traffic, particularly on Binney Street.

(l) Architectural Character Plan — describing general approaches to the design of buildings, landscaped areas, streets, and pathways, identifying the type of visual character that the development will aim to achieve, with the expectation that specific designs of individual buildings and spaces will be reviewed in further detail as they are developed.

13.91.3 Master Plan Approval. The Planning Board shall grant a PUD special permit approving a Final Development Plan for a Master Plan Area (with the exception of any Government Owned Lot that is not subject to local regulation) upon finding that the Final Development Plan is consistent with the criteria set forth below, all other criteria applicable to approval of a Final Development Plan in this Zoning Ordinance and any other special permits being sought, and upon consideration of the PUD-7 Guidelines and Principles. In approving a Final Development Plan, the Planning Board may incorporate criteria and additional guidelines for future design review of individual building sites and open spaces in support of its findings. The PUD special permit may identify specific modifications to the Final Development Plan that may be subject to future approval by a written determination of the

Planning Board. Otherwise, any modifications to a Final Development Plan for a Master Plan Area shall be considered pursuant to the PUD Amendment provisions set forth in Section 12.37 of this Zoning Ordinance.

13.91.4 Master Plan Criteria. An approved Final Development Plan for a Master Plan Area shall meet the following objectives:

(1) Providing a mix of commercial, including research and technology, and residential uses, with particular emphasis on ground-floor retail along portions of Third Street and Broadway, to encourage activity throughout the day and evening.

(2) For residential uses, incorporating a diversity of dwelling unit sizes that are appealing and accessible to a variety of users, including families with children and households from a variety of socioeconomic backgrounds.

(3) Breaking up large blocks to increase permeability and create a fine-grained network of connections that seamlessly integrates the PUD-7 District with the surrounding urban fabric of Kendall Square and the East Cambridge, Wellington-Harrington, and Port neighborhoods.

(4) Sensitively interfacing with adjacent land uses with respect to use scale, density, setback, bulk, height, landscaping, and screening, while providing integrated pedestrian circulation systems with particularly strong linkages to the Broad Canal, riverfront, Grand Junction corridor, other public spaces within Kendall Square, and the East Cambridge, Wellington-Harrington, and Port neighborhoods.

(5) Sensitively managing the height and bulk of new buildings to (a) reduce the impact of shadows, excessive wind, and obstruction of light and views, with specific consideration given to residential buildings and public spaces; (b) reduce detrimental environmental impacts such as excessive ground coverage, diminution of open space, and monotonous development; (c) provide an appropriate scale at interfaces with adjoining lower scale uses, such as proposed and existing buildings and open spaces in the vicinity; (d) not otherwise diminish the health and safety of the area around the development parcel; and (e) establish a defined urban character at a "streetwall" height that is distinct from taller "tower" elements of buildings, in accordance with the goals set forth in the PUD-7 Guidelines and Principles.

(6) Creating an integrated network of high-quality streets and open spaces, including significant space for public gathering and recreation, that serves the surrounding communities as well as the development on the site by encouraging and fostering a sense of community, civic engagement, social interaction, economic development, and environmental sustainability.

(7) Integrating development with open space physically and functionally by means of building orientation, active frontages, location of building entrances, pedestrian linkages between major activity centers, and similar techniques in accordance with the objectives set forth in the PUD-7 Guidelines and Principles.

(8) Providing a strong street edge on major public streets, including Broadway and Third Street as well as new street connections through the district, to create a memorable "main street" experience.

(9) Providing active ground floors that animate streets and open spaces, and add to the vitality of Kendall Square.

(10) Fostering a spirit of inclusiveness and diversity, particularly in the planning and programming of Open Space, Active Space, Innovation Space, and Community Space (in accordance with the requirements set forth below) to draw users and visitors from across the city.

(11) Enhancing the architectural diversity and aesthetic qualities of the PUD-7 District to harness the spirit of innovation and creativity in Kendall Square and reinforces a Cambridge sense of place.

(12) Promoting best practices for environmental sustainability in district-wide planning and in establishing design objectives for individual buildings and sites, in accordance with the City's ongoing planning efforts, including the Net Zero Action Plan and Climate Change Preparedness and Resiliency Plan.

(13) Demonstrating a commitment to implementing a Transportation Demand Management and Mitigation Program consistent with the reduced parking mandated in this PUD zoning and the capacity limitations of the transportation network that serves the Kendall Square area, including roadways and public transportation systems. In approving a Final Development Plan, the Planning Board shall refer to Article 18.000 and Section 19.20 of this Zoning Ordinance, applicable PUD-7 Guidelines and Principles, and other City transportation planning efforts (including the Kendall Square Mobility Task Force), and may require measures to be linked to milestones, thresholds or performance standards connected to the scale and pace of development within the PUD.

13.91.5 Pre-Application Conference. In the course of preparing a Development Proposal for a Master Plan Area, the Developer shall be required to participate in at least one PUD Pre-Application Conference as established in Section 12.33 of this Zoning Ordinance and a similar conference with the full City Council or Ordinance Committee. The purpose of the conference will be to discuss the conceptual alternatives for site arrangement, building massing, circulation systems and public space arrangement, as well as general approaches to architectural and landscape design, and for the Developer to receive informal feedback from the Planning Board prior to preparing the materials required by Section 13.91.2. As set forth in Section 12.33.2, any statement made by the Planning Board or the Developer at the Pre-Application Conference shall not be legally binding. Notwithstanding Section 12.33.3, the Developer shall present graphic and written materials as needed to illustrate and describe conceptual development alternatives.

13.92 *Uses Allowed in a PUD-7 District*. The uses listed in this Section 13.92, alone or in combination with each other, shall be allowed upon permission of the Planning Board. The

amount and extent of uses may be further regulated and limited as set forth elsewhere in this Section 13.90. This Section 13.92 shall refer to uses as they are listed in Article 4.000 and otherwise defined in this Zoning Ordinance as of the effective date of the enactment of this Section 13.90.

13.92.1 Residential Uses. All uses listed in Sections 4.31 d. (Townhouse Development); 4.31 g. (Multifamily Dwelling); and 4.31.1 b. (Hotels or Motels).

13.92.2 Transportation, Communication and Utility Uses. All uses listed in Section 4.32 and which are allowed or conditionally allowed in the base zoning district.

13.92.3 Office and Laboratory Uses. All uses listed in Section 4.34.

13.92.4 Retail or Consumer Service Establishments. All uses listed in Section 4.35 with the exception of j. (Funeral Home).

13.92.5 Outdoor Retail or Consumer Service Establishments. Uses listed in Sections 4.36 a. (Open-Lot Retail Sales Establishment) and 4.36d. (Outdoor Entertainment and Recreation Facility), but not including 4.36e. (Drive-In Theater).

13.92.6 Institutional Uses. All uses listed in Section 4.33.

13.92.7 Light Industry, Wholesale Business and Storage. Uses listed in Sections 4.37 a. (Assembly and packaging of articles), b. (Manufacturing, processing, assembly and packaging), c. (Bottling of beverages) and f. (Printing, binding, published and other related arts and trades).

13.92.8 Other Uses. Any use not listed in subsections 13.92.1 through 13.92.7, otherwise allowed in a Business B District, may be allowed by the Planning Board upon written determination by the Board that such use is consistent with the objectives of the PUD-7 District and is consistent with the predominant uses in the PUD-7 District.

13.93 *District Dimensional Regulations*.

13.93.1 Permitted Gross Floor Area (GFA). In the PUD-7 District the maximum GFA shall be three million, two hundred fifty thousand (3,250,000) square feet, including the up to four hundred thousand (400,000) square feet of GFA devoted exclusively to a use designated as Other Government Facility in the Table of Use Regulations on a Government Owned Lot (as set forth in Section 13.97 below), subject to the provisions set forth below.

(a) Assignment of GFA to Lots. A Development Proposal for a Development Parcel including all lots within the PUD-7 District shall describe how all of the permitted GFA set forth above will be assigned to lots within the District. However, to the extent a Development Proposal for a Development Parcel excludes the single lot identified on the Cambridge Assessing Maps as Map/Lot 28-43, which is located at the southwesterly corner of Binney Street and Third Street and is approximately five thousand, eight hundred eighty-nine (5,889) square feet in size , such Development Parcel shall be allowed a maximum of three million, two hundred twenty thousand (3,220,000) square feet of GFA to be allocated to the remaining lots in the District.

(b) GFA Exemptions. The following shall be excluded from the calculation of GFA for the purpose of meeting the requirements set forth in this Section or elsewhere in this Zoning Ordinance:

(1) GFA devoted exclusively to a use designated as Other Government Facility in the Table of Use Regulations on a Government Owned Lot (as set forth in Section 13.97 below), but only to the extent that the GFA of all Other Government Facility uses on any and all Government Owned Lots located within the PUD-7 District exceeds four hundred thousand (400,000) square feet, in the aggregate.

(2) GFA devoted to Active Space that is exempt according to the provisions of Section 13.96.1, Paragraph (3) below, up to a maximum of five percent (5%) of GFA allowed in the PUD-7 District.

(3) Fifty percent (50%) of the GFA devoted to Innovation Space, up to a maximum of five percent (5%) of non-residential GFA allowed in the PUD-7 District, as described in Section 13.96.3 below.

(4) Private outdoor decks or balconies, up to eight percent (8%) of the GFA of any building.

(5) Any and all of the GFA devoted to the Community Space required by Section 13.96.5.

(c) Required Residential Development.

(1) At least forty percent (40%) of the total permitted GFA in a Final Development Plan, excluding up to four hundred thousand (400,000) square feet of GFA devoted exclusively to a use designated as Other Government Facility in the Table of Use Regulations on a Government Owned Lot (as set forth in Section 13.97 below), shall be devoted to residential use. Such calculation shall be based on GFA authorized exclusive of any GFA devoted solely to structured parking. Individual Development Parcels may exceed the limitations set forth above, as long as the limitations are satisfied, in the aggregate, within the PUD-7 District.

(2) For the purpose of this Section, residential uses shall mean the residential uses listed in Section 4.31 d. and g. of this Zoning Ordinance. In addition, hotel or motel uses (Section 4.31.1 b.), up to a maximum of one hundred thousand (100,000) square feet, may be used to partially satisfy the required residential development.

(3) Final Development Plans for Development Parcels shall include a Phasing Plan providing a general sequence for the construction of residential and non-residential uses. The Planning Board shall approve such a Phasing Plan if it is found to ensure that residential uses will be completed on a schedule that meets the objectives of the City and ensures compliance with the requirement set forth in Paragraph (1) above. In general, exclusive of Other Government Facility Uses on Government Owned Lots, non-residential development on Development

Parcels shall not be authorized to exceed, in the aggregate, sixty percent (60%) of the total non-exempt GFA permitted for non-residential uses until substantial construction activity of a significant portion of the required residential GFA within the Final Development Plan has commenced. Full completion of all of the permitted non-residential GFA shall not be allowed before substantial construction activity has commenced on all of the required residential development. The Planning Board may approve variations to the standards in this Paragraph if the Phasing Plan is found to be in general conformance with the intent of this Paragraph.

(4) Residential GFA shall be subject to the Inclusionary Housing Provisions of Section 11.203 of this Zoning Ordinance, but in no case shall the Inclusionary Housing Requirement be less than twenty percent (20%). However, notwithstanding the provisions of Section 11.203.5, no further increase in Floor Area Ratio or Gross Floor Area beyond the limitations set forth in this Section 13.93.1 shall be provided.

(5) In the event that a Final Development Plan contains hotel or motel uses in partial satisfaction of the housing requirements as set forth in Paragraph (2) above, the Final Development Plan shall also include Affordable Dwelling Units containing an aggregate Net Dwelling Unit Floor Area equal to twenty percent (20%) (or such larger percentage as may be specified in Section 11.203.2 of this Zoning Ordinance) of the aggregate GFA of any hotel or motel uses to the extent such uses are being counted toward satisfaction of the minimum residential use requirement set forth above in Section 13.93.1(c)(1), in addition to the Affordable Dwelling Units required in the non-hotel residential portions of the Final Development Plan. No hotel uses shall receive a certificate of occupancy until the City has issued certificates of occupancy for the Affordable Dwelling Units comprising the Net Dwelling Unit Floor Area required by this Paragraph.

13.93.2 Minimum Development Parcel Size.

(a) A Development Parcel within the PUD-7 District shall include all lots that are in existence as of July 6, 2017, and held in common ownership where it is proposed to incorporate any portion of such lot or lots within the Development Parcel. A portion of a Development Parcel may be designated as a Government Owned Lot subject to the provisions set forth in Section 13.97 below. Where circumstances related to the transfer of property from the federal government to other governmental or private entities (for the purpose of private development on a portion or all of the land in the control of the federal government) limit the feasibility of creating a Development Parcel meeting the size requirements of this Section 13.93.2, the Planning Board may in its discretion approve a PUD application having a smaller Development Parcel size. However, in no case shall a Development Parcel contain less than twenty-five thousand (25,000) square feet of total lot area.

(b) A Development Parcel within the PUD-7 District may also contain contiguous or noncontiguous lots elsewhere in the PUD-7 District or within another PUD District that are situated within three hundred (300) feet of the boundaries of the PUD-7 District. There shall be no specified minimum lot size for lots located within a Development Parcel.

13.93.3 [Deleted]

13.93.4 Maximum Building Height.

(a) The maximum height permitted in the PUD-7 District shall be two hundred fifty (250) feet, except as it may be further limited or increased in this Section 13.93.4. The permitted heights are further illustrated on the Building Height Regulation Map for the PUD-7 District, Map 13.91.

(b) Reduced Building Height to One Hundred Seventy Feet. The maximum height for non-residential buildings shall be reduced to one hundred seventy (170) feet in the portion of the PUD-7 District bounded by the centerline of Binney Street, the centerline of Third Street, the southerly line of Monroe Street and a line that is the extension of the easterly line of Fifth Street running from the northerly line of Fifth Street to centerline of Binney Street. In such portion of the District, any part of a building exceeding one

hundred seventy (170) feet in height shall (i) be limited to residential and/or institutional dormitory uses (and may include related amenity space), and (ii) have floor plates measuring no more than fifteen thousand (15,000) square feet.

(c) Increased Building Height. In the portion of the PUD-7 District bounded by the centerline of Third Street, the centerline of Broadway, the westerly boundary of the PUD-7 District and the northerly line of Potter Street and its extension from the centerline of Third Street to the westerly boundary of the PUD-7 District, building heights can be increased above two hundred fifty (250) feet, subject to the limitations set forth below:

(1) The use of any occupiable space situated above three hundred (300) feet in height shall be limited to residential and/or institutional dormitory uses (and may include related amenity space).

(2) Portions of buildings situated above two hundred fifty (250) feet in height shall have floor plates measuring no more than fifteen thousand (15,000) square feet of GFA.

(3) No more than ten percent (10%) of the aggregate land area of the PUD-7 District (including any private rights of way situated on or constructed within parcels owned by the Developer or public streets created after the adoption of this Article 13.90) may be covered by portions of buildings in excess of two hundred fifty (250) feet in height, excluding the height of any buildings containing Other Governmental Uses. In approving a Final Development Plan, the Planning Board may increase such coverage upon finding that it would facilitate the accommodation of residential uses in accordance with the requirements of this Section 13.90 and the PUD-7 Guidelines and Principles.

(4) No more than one building shall be allowed to exceed three hundred fifty (350) feet in height. In reviewing a Development Proposal or Final Development Plan including a building that exceeds three hundred fifty (350) feet in height, the Planning Board shall give consideration to a building that is designed to be a distinctive architectural landmark. In no event shall any building having a height in excess of five hundred (500) feet be permitted.

(d) Notwithstanding the non-residential height limits contained above, publicly accessible areas of a building located at or above a height of three hundred (300) feet shall be permitted, subject to approval by the Planning Board. Such public access shall be subject to such reasonable hours of operation and rules and regulations as the owner of the building containing such uses may from time to time adopt; however, the Planning Board must approve any proposal to significantly limit public access to such uses.

13.93.5 Other Dimensional Requirements. There shall be no minimum width for a Development Parcel and no minimum width for lots located within a Development Parcel. There shall be no minimum required front, rear and side yard requirements for a Development Parcel or for lots located within a Development Parcel, except that no building shall be constructed within

ten (10) feet of the westerly boundary of a development parcel abutting the existing open space parcel that connects the corner of Binney Street and Sixth Street to the corner of Broadway and Ames Street. There shall be no minimum required distance between buildings situated on the same lot within a Development Parcel. The Planning Board shall approve all such lot sizes and building setbacks.

13.94 *Open Space*.

(a) At a minimum, twenty-five percent (25%) of the land area within the PUD-7 District, excluding any land designated as a Government Owned Lot, shall be Public Open Space or Publicly Beneficial Open Space, subject to the further standards set forth below. Less than twenty-five percent (25%) of the land area of an individual Development Parcel may be Public Open Space or Publicly Beneficial Open Space, provided that the requirement of this Paragraph is otherwise met within a combination of parcels in the PUD-7 District in accordance with Paragraph (c) below.

(b) For the purpose of this Section 13.90, the building footprint of any free-standing structure devoted to Community Space, as defined in Section 13.96.5 below, shall be applied toward the minimum Open Space requirements set forth in the preceding paragraph. Such free-standing structure must be used solely for Community Space, with the exception that Active Space, as described in Section 13.96.1 below, is permitted on the ground floor but such Active Space shall not apply toward the minimum Open Space requirements set forth in Paragraph (a) above.

(c) Owners of adjacent Development Parcels or non-adjacent parcels contained within the PUD-7 District (with the exception of Government Owned Lots) may collectively provide the required Open Space, provided that the parcels are held in common ownership or the Planning Board finds that the owners of each Development Parcel have provided written evidence of an agreement that the total amount of open space required for both Development Parcels is provided and that the Open Space Plans for each Development Parcel meet the standards for approval. In that event, the Planning Board shall identify in the Special Permits for each PUD the amount of open space required on each parcel.

(d) The required Open Space shall contain, in the aggregate, at least two (2) acres of such Open Space that is permanently guaranteed for public use by means of a recorded covenant, easement, conservation restriction, or other similar legal instrument acceptable to the City. Such public use may include active or passive recreation, pedestrian and bicycle connections, enjoyment of natural environments, spillover activity from publicly accessible ground floor uses, public performances, or other programming opportunities. All such open space shall be generally accessible to the public for the purposes for which the open space is designed and approved by the Planning Board.

13.95 *Parking and Loading Requirements*. Development in the PUD-7 District shall conform to the off-street Parking and Loading Requirements set forth in Article 6.000, and in the Schedule of Parking and Loading Requirements applicable to the Residence C-3, Office 3, Business B and Industry B districts, except as modified by this Section 13.95.

13.95.1 With regard to uses contained within new commercial buildings, provided that the requirements of Section 6.23 of the Ordinance are met, the parking requirements of this Section 13.95 may be satisfied (a) anywhere in the PUD-7 District or, if located outside of the PUD-7 District, within 2,000 feet of the use being served, notwithstanding anything to the contrary contained in Article 6.000; and (b) in total or in part by a lease agreement, occupancy agreement, license or other comparable legal instrument between the Developer and the City, other public entity or private owner or consortium for use of parking spaces in the public or pooled private parking facilities within said area.

13.95.2 All parking provided within an approved PUD shall be considered collectively accessory to all approved uses within the PUD and the PUD-7 District. Notwithstanding anything to the contrary in Article 6.000, this Ordinance shall not restrict the management and assignment of parking spaces in a way that will most efficiently utilize the existing and proposed parking spaces to serve all approved uses. As an exception to these rules, all parking spaces (whether existing or proposed) that are accessory to an Other Government Facility use as listed in Section 4.33, paragraph (g) of the Table of Use Regulations shall be distinctly identified and shall not be accessory to any other uses.

13.95.3 Minimum Parking. In approving a Final Development Plan for a Development Parcel, the Planning Board may waive any minimum parking requirements applicable in the PUD-7 District and the underlying Zoning District. The Planning Board may approve arrangements for shared parking of such residential parking spaces with commercial spaces. The Planning Board shall specify a minimum parking requirement for a PUD Final Development Plan based on review and analysis of Transportation Impact Studies and other relevant information on parking demand provided in application documents, including the Shared Parking Study as required below and with the guidance of City agencies.

13.95.4 *Maximum Parking.* Maximum allowed parking for a PUD shall be limited by applying the rates set forth below to each use within the PUD and taking the summation of the result for all uses. For any use not listed below, the maximum parking ratio set forth in Article 6.000 shall apply. Exceeding the maximum allowed parking shall require a waiver of maximum parking required under the general provisions of Article 6.000.

(a) Maximum of 0.8 spaces per 1,000 square feet of GFA for office and laboratory uses.

(b) Maximum of 0.75 spaces per residential dwelling unit.

(c) Maximum of 0.5 spaces per 1,000 square feet of retail space.

(d) Maximum of 1 space per 4 guest units for hotel use.

13.95.5 Shared Parking Study. A Development Proposal for development in the PUD-7 District shall include an analysis of anticipated parking demand for all uses in the development throughout the course of a typical day and week. This analysis may identify opportunities for reducing the total amount of parking required to serve all uses through the sharing of parking spaces by multiple uses. Based on this analysis, the Planning Board may approve a reduced minimum or maximum parking requirement upon finding that the approved amount of parking will be sufficient to serve all permitted uses.

13.95.6 Surface Parking. All parking within the PUD-7 District shall be provided underground, as defined in Section 5.25.3.22 of this Zoning Ordinance, with the following exceptions that may be approved by the Planning Board in a Final Development Plan:

(a) Surface Parking on Private Roadways. On-grade parking shall be allowed along private ways to be constructed within the PUD-7 District, provided that the location and amount of said on-grade parking shall be depicted in the Final Development Plan.

(b) Interim Use of Surface Parking. On an interim basis, in anticipation of later construction of structured parking sufficient to meet all parking requirements, on grade open parking shall be allowed in a Development Parcel subject to the following conditions:

(1) The future parking structure will be constructed within the Development Parcel or on an adjacent Development Parcel or outside of the PUD-7 District in a location that complies with the provisions of Section 13.95.1, but it may be located either on or off of the lot which it will serve;

(2) Construction of the replacement parking structure will commence within five years of the date of certificate of occupancy for the building initially served by on grade parking;

(3) The future parking structure will contain sufficient spaces for users of the building initially served by on grade open parking so as to meet the parking requirements for such building; and

(4) Binding commitments exist to establish, to the reasonable satisfaction of the Planning Board, that requirements (1) through (3) above shall be satisfied. Such commitments shall be made by negotiated lease agreement, deed restriction, covenant, license, occupancy agreement or comparable legal instrument.

(c) Where required, parking spaces for persons with disabilities may be located on-grade.

(d) Nothing in this Section 13.95 shall prohibit the use of the surface parking spaces on Government Owned Lots.

13.95.7 Ground Floor Retail and Customer Service Uses. Retail and customer service uses not exceeding ten thousand (10,000) square feet of space for each separately leased establishment shall not be required to provide any accessory parking. Where parking is provided, it shall be subject to the other provisions of this Section 13.95.

13.95.8 Loading. The Planning Board, in its approval of a Final Development Plan, may waive any requirements for the amount, location and design of loading facilities within a Development Parcel, and may permit loading facilities to be shared across various uses and lots within the PUD-7 District, upon finding that such waiver would reduce the negative impacts of loading activities on the public realm.

13.95.9 Bicycle parking shall be provided in accordance with Section 6.100 of this Zoning Ordinance.

13.96 *Special Requirements, Conditions and Standards Applicable to Certain Development Authorized by the Planning Board in Kendall Square*. The Planning Board shall approve a

Final Development Plan in the PUD-7 District only after finding that in addition to all other applicable requirements the following requirements have been met. The Planning Board shall, in addition, include conditions in the approval of a Final Development Plan that will ensure ongoing compliance with these requirements.

13.96.1 Active Space. Final Development Plans shall enhance the public pedestrian usage of the sidewalks and create a sense of neighborhood continuity by providing an interesting, lively and active presence at street level. Accordingly, with the exception of buildings containing Other Government Facility uses on Government Owned Lots, the ground floors of buildings in the PUD-7 District immediately fronting on Third Street or Broadway shall be planned, designed, and constructed to contain Active Space as required below, and the ground floors of buildings facing public parks and public streets in the PUD-7 District shall be designed to be inviting to the public and to accommodate Active Space in the future where feasible.

(a) Characteristics of Active Space. For purposes of this Section, "Active Space" shall include any interior floor area meeting the following standards:

(1) Use Limitations. Active Space shall include retail business and consumer service establishments permitted in Section 13.92.4, institutional uses that are generally open to the public such as museums and exhibition spaces, child care, education or recreation uses serving families with children, Community Space as required in Section 13.96.5 below, and other uses that are generally open to the public and that the Planning Board determines meet the goals of this Section. Space occupied by office uses, specifically including lobbies for office or laboratory tenants, as well as banks, trusts, and other financial institutions, shall not be considered Active Space. Portions of hotel and other lobbies containing retail uses that are open to the general public, and not reserved exclusively for hotel guests or tenants, may be considered Active Space with written Planning Board approval.

(2) Location. Active Space shall be located at the ground floor of a building, adjacent to and at the grade of a public sidewalk or Open Space, and with one or more entrance(s) providing direct access from such sidewalk or Open Space and not requiring passage through any non-Active Space, provided that access through lobbies constituting Active Space as set forth above in Section 13.96(a)(1) shall be permitted. In addition, with Planning Board approval, Active Space may be located either below grade or above the ground floor if such space is combined with or accessory to Active Space with entrances at the ground floor, provided the Board finds that such location is appropriate for the intended use and is generally consistent with the purpose and objectives of the District.

(3) Establishment Size Limitations for GFA Exemption. Active Space shall be exempt from the GFA requirements of this Section 13.90, up to the maximum exemption set forth above in Section 13.93.1(b)(2), only to the extent that it is leased or otherwise occupied by individual commercial establishments or uses occupying no more than three thousand (3,000) square feet, which may include

vendor stalls or kiosks located within larger public spaces. Grocery, market or pharmacy uses of up to ten thousand (10,000) square feet shall also be exempt. The Planning Board may also exclude other Active Space from the calculation of GFA to facilitate the inclusion of specific larger-scale active uses that are consistent with the purpose and objectives of the District and the PUD-7 Guidelines and Principles. The GFA and approximate location of all such exempt Active Space shall be depicted in a Final Development Plan.

(b) Required Active Space.

(1) At a minimum, a total of at least sixty-five percent (65%) of those portions of the interior ground floors of buildings that are within a minimum depth of twenty (20) feet from a Principal Front Wall Plane directly fronting Broadway or Third Street shall be Active Space. Active Space is also encouraged to activate new major streets and open spaces created within a PUD.

(2) At least twenty-five percent (25%) of the floor area of the Required Active Space in the Final Development Plan shall be devoted to Independent Retail Operators each occupying no more than three thousand (3,000) square feet of floor area. Such space requirements may be satisfied as larger public atrium spaces containing smaller vendor stalls or kiosks. For the purposes of this Section 13.90, "Independent Retail Operators" shall mean any retail operator that does not own and operate more than ten (10) retail locations in the Commonwealth of Massachusetts with same name and the same retail concept on the date that the first lease is initially executed for such retail space.

(c) Notwithstanding the provisions set forth above, the Planning Board, in approving a Final Development Plan, may grant minor modifications to the requirements set forth in this Section 13.96.1, upon finding that the proposed Ground Floor and Activation Plan meets the purpose of the PUD-7 District.

(d) Prior to submitting an application for a special permit in the PUD-7 District, the Developer shall have either hired or engaged, respectively, an employee with substantial retail experience or the services of a consultant or other party with retail expertise in order to advise the Developer in connection with tenanting and programming of retail and other Active Space to be included in the applicable Development Parcel. The recommendations of that consultant shall be included in the Development Proposal.

13.96.2 Rooftop Mechanical Equipment Noise Mitigation. Sound emanating from rooftop mechanical equipment on all new or substantially altered structures in an approved Final Development Plan shall be minimized by the adoption of best available and feasible practices regarding the location and sizing of equipment, the selection of equipment and sound attenuation measures.

At a minimum, any noise or vibration emanating from new commercial or substantially altered commercial buildings shall not be normally perceptible without instruments at a

distance of one hundred (100) feet from the source lot line and shall comply with the provisions of the City of Cambridge Noise Ordinance applicable to Commercial Areas (as such term is defined in the Noise Ordinance).

In order to enforce these requirements, the Developer shall provide, in addition to a Noise Mitigation narrative required as part of Article 19.000 review, acoustical reports prepared by a professional acoustical engineer as described below:

(a) Prior to and as a condition of the issuance of the first certificate of occupancy for a new or substantially altered commercial building, an acoustical report, including field measurements, demonstrating compliance of such building with all applicable noise requirements; and

(b) Prior to obtaining any building permit to add any new equipment having a capacity greater than five (5) horsepower to the rooftop, a narrative report demonstrating that there will be continued compliance with all applicable noise requirements after such addition, and upon completion of such addition and as a condition thereof, an acoustical report, including field measurements, demonstrating such compliance.

13.96.3 Innovation Space. A Development Proposal containing at least two hundred thousand (200,000) square feet of new GFA for Office Uses identified in Section 4.34, and specifically excluding any office space designated as Other Government Facility on a Government Owned Lot, shall include a plan for Innovation Space meeting the requirements set forth below.

(a) Required Space.

(1) The Development Proposal must identify Innovation Space that has a GFA equal to, or in excess of, five percent (5%) of the new GFA approved in the Final Development Plan for Office Uses other than the office space designated as an Other Government Facility on a Government Owned Lot. GFA, including, without limitation, existing GFA, within the PUD-7 District or other Zoning and/or PUD Districts situated within one and one-half (1.50) miles from the PUD-7 District may be used to meet this requirement.

(2) Where at least 40,000 square feet of Innovation Space is required, Innovation Space may be distributed in separate buildings, provided, however, that each separate "unit" of Innovation Space contains at least 20,000 square feet. If less than 40,000 square feet of Innovation Space is required, the Innovation Space must be contained in a single building.

(3) Developers of properties within the PUD-7 District may collaborate with one or more property owners in Zoning and/or PUD Districts located within one and one-half (1.50) miles from the PUD-7 District to develop or designate joint Innovation Space. In such a case, the total square footage of Innovation Space must be large enough to satisfy the sum of the requirements, if any, for such participating Developers and their Zoning and/or PUD Districts.

(4) A developer may enter into a lease, license or other contract or occupancy agreement with a third party, whereby the third party provides (via sublease or other occupancy agreement), administers, and manages the required Innovation Space within a building (or buildings) without violating the requirements of this Section 13.96.3, provided that such third party complies with the requirements of this Section as the same may be varied by the Planning Board.

(b) Characteristics. For the purposes of this Section, Innovation Space shall have the following characteristics:

(1) Durations of lease agreements (or other similar occupancy agreements) with individual business entities shall be for periods of approximately one (1) month.

(2) No single business entity may occupy more than 2,000 square feet or ten percent (10%) of the entire Innovation Space required to be provided in the PUD-7 District, whichever is greater. The average size of separately contracted private suites may not exceed 200 square feet of GFA.

(3) Innovation Space shall include shared resources (i.e., co-working areas, conference space, office equipment, supplies and kitchens) available to all tenants occupying at least fifty percent (50%) of the Innovation Space.

(4) Individual entities occupying Innovation Space may include small business incubators and accelerators, small research laboratories, office space for investors and entrepreneurs, facilities for teaching and for theoretical, basic and applied research, product development and testing prototype fabrication, or production of experimental products.

(c) Variations. In approving a Final Development Plan or a Minor Amendment to a Final Development Plan, the Planning Board may allow variations in the specific standards and characteristics set forth in this Section 13.96.3, if the Planning Board finds that the Innovation Space, as proposed, will be consistent with the purposes of these standards and characteristics.

13.96.4 Sustainability. New buildings constructed within the PUD-7 District shall comply with the provisions of Section 22.20 of the Zoning Ordinance. For those construction projects subject to Section 22.23, LEED certification at the Gold level or better is required. In connection with the submission requirements of Section 22.24.2.a., the Developer of such buildings shall submit a Statement of Energy Design Intent produced through the EnergyStar Target Finder tool, or comparable method. New institutional buildings will meet LEED Gold level criteria, unless the technological specifications of a proposed specialized research facility are such that the developer can demonstrate to the reasonable satisfaction of the Planning Board the impracticality of achieving the LEED Gold level criteria or the inordinate impact achieving the LEED Gold level would have on such specialized research facility. New buildings in the PUD-7 District must incorporate an integrated design approach and incorporate the best practices for meeting sustainability in the following five (5) areas:

(a) Energy and Emissions; Steam. Each new building must conserve building energy and, to the extent applicable, reduce carbon/GHG emissions. The Developer, with each

Development within the PUD-7 District, must evaluate the potential for on-site energy generation or the construction of co-generation facilities within the PUD-7 District. A Development Proposal for a commercial building shall include a study, prepared by the Developer, considering the feasibility of connecting the building(s) identified in the Development Proposal to the existing district steam system.

(b) Urban Site and Landscaping; Water Management. The Developer, for each new building, must explore opportunities for (i) potable water use reductions, (ii) storm water management using open spaces, (iii) the incorporation of indigenous vegetation, and (iv) storm water for irrigation purposes. At a minimum, all new buildings within the PUD-7 District must meet the Department of Public Works' standards for water quality management and the retention/detention of the difference between the 2-year 24-hour pre-construction runoff hydrograph and the post-construction 25-year 24-hour runoff hydrograph. The design of buildings and outdoor spaces must also provide for vegetation such as canopy trees, green walls and other measures to reduce urban heat gain.

(c) Cool Roofs. All new buildings approved in the PUD-7 District, must employ Functional Green Roofs (as such term is defined in Article 22.000 of this Zoning Ordinance), high-albedo "white" roofs, or a functionally equivalent roofing system. Where Functional Green Roofs are not employed, roofs shall be constructed to facilitate the future installation of Solar Energy Systems.

(d) Monitoring. All new buildings approved in the PUD-7 District shall be required to conform to the requirements of the Cambridge Building Energy Use Disclosure Ordinance, Chapter 8.67 of the Municipal Code.

(e) In connection with the approval of a Final Development Plan or in connection with the granting of a PUD or other special permit pursuant to this Zoning Ordinance, the Planning Board may grant dimensional and other zoning relief in order to permit the construction of a co-generation facility or other energy systems that allow developments to develop shared solutions to minimize energy usage.

13.96.5 Community Space. A Final Development Plan shall provide for the establishment of a Community Space, which for the purpose of this Section shall mean a freestanding building or a portion of a building containing other uses that is occupied and programmed for one or more non-commercial service functions, including but not limited to public recreation, social services, and educational programs. The intent is for the Community Space to serve residents of nearby neighborhoods, including East Cambridge, Wellington-Harrington, and the Port, and to complement other public and community services available in those neighborhoods.

13.96.6 Funding Contributions.

(a) Contribution to Kendall Square Fund. Prior to issuance of a Certificate of Occupancy for any building authorized by a PUD special permit in the PUD-7 District and containing non-residential uses not exempt from GFA pursuant to Section 13.93.1, the

permittee shall be required to contribute to a Kendall Square Fund established by the City Manager. The contribution (referred to as a "Fund Contribution Payment") shall be calculated by multiplying ten dollars ($10.00) by the number of square feet of new GFA for all non-residential uses in the subject building not exempt from GFA pursuant to the provisions of Section 13.93.1, excluding the GFA of any Other Government Facility uses. The City shall use any Fund Contribution Payment made pursuant to this Section 13.96.6 for the following uses in such allocations and amounts as the City Manager may determine:

(1) Transit Improvements. Fifty percent (50%) of any Fund Contribution Payments shall be allocated for transportation improvements and services to benefit the Kendall Square neighborhood and residents in adjacent neighborhoods not already required by the City of Cambridge Parking and Traffic Demand Management (PTDM) Ordinance. The transit improvement funds shall be allocated at the direction of the City Manager.

(2) Community Benefits Fund. Fifty percent (50%) of any Fund Contribution Payments shall be allocated to the Community Benefits Fund that has been established by the City Manager.

(b) All development that meets the definition of an Incentive Project as set forth in Article 2.000 of this Zoning Ordinance shall make a contribution in accordance with the requirements of Section 11.202 of this Zoning Ordinance.

13.97 *Special Requirements Related to Government Use on Government Owned Lots*. Where a Development Parcel or Master Plan Area in the PUD-7 District includes a Government Owned Lot as it is defined below, the special provisions set forth in this Section 13.97 shall apply notwithstanding any other regulations to the contrary set forth in this Ordinance.

(a) For the purpose of this Section 13.97, a Government Owned Lot shall mean a lot owned by the federal government that may be developed in conjunction with a transfer of land to a private entity, where such transferred land is adjacent to the Government Owned Lot, and where the Government Owned Lot is included as part of a Development Parcel or Master Plan Area. If so included, such Government Owned Lot shall be clearly identified in a Development Proposal and Final Development Plan.

(b) Uses on a Government Owned Lot categorized as Other Government Facility in Section 4.33 g. in in this Zoning Ordinance, if included within a Final Development Plan, shall be exempt from the requirements set forth in this Section 13.90 and elsewhere in the Ordinance, except when calculating Permitted GFA in the PUD-7 District as set forth in Section 13.93.1 above.

(c) If a Special Permit has been granted authorizing development on a Development Parcel or Master Plan Area containing a Government Owned Lot in accordance with a Final Development Plan, and the controlling government entity later separates the Government Owned Lot from the remainder of the Development Parcel or Master Plan Area, then no future modification to development on the Government Owned Lot shall

affect the development authorized in the approved Final Development Plan on the remainder of the Development Parcel or Master Plan Area, and such development shall be allowed to proceed in accordance with the Final Development Plan.

13.98 *Letter of Commitment*. The Letter of Commitment dated October 23, 2017 by the Massachusetts Institute of Technology is incorporated herein by reference and made part of the Cambridge Zoning Ordinance and shall be binding upon the Massachusetts Institute of Technology and its successors and assigns.

(Ord. No. 2021-3, § xii, 6-7-2021; Ord. No. 2022-9, 2-27-2023; Ord. No. 2024-2, 6-24-2024; Ord. No. 2025-1, 2-10-2025)

13.100 PLANNED UNIT DEVELOPMENT 8 DISTRICT

13.101 ***Purpose***. The PUD-8 District is intended to provide for the creation of a vibrant mixed-use district of high quality general and technical office and lab use, active commercial use, including retail, fitness and restaurant, components of residential use and enhancement of open space to serve residents of the District and the surrounding neighborhoods, as well as workers, students and visitors. The PUD-8 District encourages strong connections between the neighborhoods of eastern Cambridge and new development in that area, particularly along First Street, the East Cambridge riverfront (focusing on Lechmere Canal) and the PUD-8 area. It also promotes retail- and service-oriented ground floors that will activate surrounding public streets and spaces, such as First Street and Lechmere Canal Park. The expectation is for the District to continue to be a recognizable center of activity and economic viability for East Cambridge and the surrounding neighborhoods in light of the changing landscape of brick and mortar retail. Development in the PUD-8 District is expected to meet high standards for urban design, architectural design, environmental sustainability and open space design. To the extent reasonably practicable and subject to the provisions of Section 13.107.5 below, new buildings shall be generally consistent with the policy objectives set forth in the Eastern Cambridge Planning Study dated October 2001, the guidance provided in the Eastern Cambridge Design Guidelines dated October 15, 2001, the East Cambridge Riverfront Plan dated May 1978, the East Cambridge Development Review Process and Guidelines dated June, 1985 and the Cambridge Riverfront Plan dated Spring 2011.

13.102 ***PUD-8 Special Permit***.

13.102.1 Eligible Development Parcel. To further the purpose of this Section 13.100, an applicant may submit a Development Proposal and obtain a special permit from the Planning Board approving a Final Development Plan for the Development Parcel located within the PUD-8 District which, at the time of application for a PUD-8 Special Permit, (i) contains at least 100,000 sf of retail and/or restaurant space on the ground-floor allowed pursuant to a valid special permit under the PUD-4 District, (ii) contains at least 7.5 acres in area and (iii) is within 600 feet of 3 acres of Public Open Space. The Development Parcel within the PUD-8

District may contain contiguous or noncontiguous lots elsewhere in the PUD-8 District or within another PUD District that are situated within twelve hundred (1200) feet of the boundaries of the PUD-8 District.

13.102.2 PUD-8 Special Permit Approval. The Planning Board may grant a PUD-8 Special Permit approving a Final Development Plan for the Development Parcel upon finding that the Final Development Plan is consistent with the criteria set forth below, all other criteria applicable to approval of any other special permits being sought, and upon consideration of the PUD-8 Guidelines and Principles (as hereinafter defined). Any modification to a Final Development Plan, the need for which arises for any reason, shall require a major or minor amendment in accordance with Section 12.37 of this Zoning Ordinance and the provisions of the PUD-8 Special Permit. A PUD-8 Special Permit approving a Final Development Plan may specify a range of modifications that may be approved as minor amendments to the PUD-8 Special Permit, which are subject only to written approval of the Planning Board, if such modifications are found by the Planning Board not to significantly alter the concept of the approved **PUD-8 Special Permit**.

13.102.3 PUD-8 Special Permit Requirements. Within the Development Parcel, the locations of streets and open spaces, the quantities of proposed land uses, and general PUD-8 lots, building envelopes, locations and heights shall be indicated in sufficient detail that the Planning Board can reasonably assess the impact of the PUD-8 Special Permit and its general consistency with the PUD-8 Special Permit Criteria set forth in Section 13.102.4 below. At a minimum, a Development Proposal and subsequent Final Development Plan must contain the following components:

(a) Site Development Plan - describing how the Development Parcel is divided into distinct PUD-8 lots, streets, and open spaces and their development characteristics, including potential uses and Gross Floor Area ("GFA").

(b) Site Massing Plan - illustrating the height and massing of building volumes for each proposed building site, including representative ground-level views from selected vantage points, and studies of anticipated shadow and wind impacts resulting from building mass.

(c) Parking and Loading Plan - identifying the locations of all parking facilities, bicycle parking facilities and facilities for loading or other vehicular service functions, the number of spaces proposed at each location**,** and explaining in detail any restrictions or commitments applicable to existing parking facilities, including but not limited to commercial parking permits, ongoing lease agreements, and programs to make parking available to off-site users.

(d) Connectivity Plan - illustrating all pedestrian, bicycle and vehicular circulation routes within the Development Parcel, their connections to nearby public circulation routes and destinations outside the Development Parcel, and approximate locations of access and egress points on each building and parking facility within the Development Parcel.

(e) Open Space Plan - illustrating and quantifying the areas of all open space areas utilized by the development in satisfaction of Section 13.105, including, without limitation, pedestrian ways providing connectivity to the riverfront.

(f) Ground Floor and Activation Plan - illustrating the conceptual arrangement of functions such as retail establishments and other active uses, and residential and office lobbies at the ground floor of each building in the Development Parcel, as well as the locations and anticipated sizes of Active Uses that may be required by the specific provisions of this Section 13.100 and strategies for programming and activating those spaces.

(g) Housing Plan - providing the approximate number and mix of housing unit types proposed on the residential site, and identifying the anticipated location of dwelling units that may be required by specific provisions of this Section 13.100.

(h) Phasing Plan - describing the general sequence in which development is proposed to proceed.

(i) Sustainability and Resiliency Plan - describing: (1) how the sustainability requirements set forth in Section 13.107.4 below will be met; (2) how the proposed development will promote best practices for environmental sustainability and resiliency; (3) how the proposed development serves nearby East Cambridge community-wide needs for emergency refuge or shelter during heat or storm emergencies in coordination with the Cambridge Climate Vulnerability Assessment dated February 2017.

(j) Net Zero Plan - describe how the proposed development will address the goals set forth in the Net Zero Action Plan, including the potential incorporation of enhanced commissioning for newly constructed or renovated office and lab buildings, opportunities for ground source and air source heat pumps, solar photovoltaics, solar hot water, bio-fuel emergency power fuel, battery storage, facilities electrification, airtightness and additional methods to eliminate fossil fuel usage, including in the context of relevant energy initiatives implemented through the City of Cambridge, and exploring participation, if available, in any program sponsored by the City of Cambridge for community renewable energy purchase.

(k) Transportation Plan - incorporating: (1) a Transportation Impact Study required by Section 19.20 of this Ordinance; (2) a Shared Parking Study required by Section 13.106.5 below; (3) a study of the impacts of increased demand on public transportation services in the East Cambridge area; (4) a description of the development's relationship to future regional rail, bus, pedestrian/bicycle and other transportation system connections in the area; and (5) a Transportation Demand Management and Mitigation program describing measures which may be incorporated by the Planning Board into a condition of a PUD-8 Special Permit to offset or mitigate the development's impacts on transportation systems, including measures set forth in this Zoning Ordinance and the City's planning efforts to be linked to milestones, thresholds or performance standards. Such studies (and the recommendations set forth therein) shall account for the proposed scale and phasing of development and the limitations on system capacity to accommodate new vehicle, transit, and other trips.

(l) Environmental Comfort Plan - describing or showing screening, building elements, or other site improvements designed to reduce impacts from wind and shadows, provide

adequate lighting for safe use while minimizing excessive light, mitigating urban heat island effect, and controlling noise generated by mechanical systems and by truck traffic, particularly on First Street.

(m) Architectural Character Plan - describing general approaches to the design of buildings, landscaped areas, streets, and pathways, identifying the type of visual character that the development will aim to achieve, with the expectation that specific designs of individual buildings and spaces will be reviewed in further detail as they are developed.

(n) Comprehensive Signage Plan - providing the approximate number, type and characteristics of signage to be installed within the District.

(o) Utilities Plan - analyzing existing infrastructure and demonstrating that each proposed building site at the time of development will be adequately served by water, sewer, gas, and electric infrastructure capacity or describing appropriate infrastructure capacity improvements that will be implemented to ensure such building site will be adequately served upon the completion of such improvement.

13.102.4 PUD-8 Special Permit Criteria. In approving a Final Development Plan, the Planning Board shall consider the following objectives with respect to any Net New GFA (as defined below) or construction of a new building:

(a) Providing a mix of commercial, including research and technology, and residential uses, with particular emphasis on ground-floor retail along First Street, to encourage activity throughout the day and evening.

(b) For residential uses, incorporating a diversity of dwelling unit sizes that are appealing and accessible to a variety of users, including families with children and households from a variety of socioeconomic backgrounds.

(c) Improving the network of connections that integrate the PUD-8 District with the surrounding urban fabric of the East Cambridge neighborhood and the activity surrounding the East Cambridge Riverfront, and maintaining existing ground level pedestrian connections between Charles Park and Lechmere Canal Park, including interior connections with active retail uses.

(d) Enhancing the existing network of high-quality streets, landscaping and open spaces, including significant space for public gathering and recreation, that serves the surrounding communities as well as the development on the site by encouraging and fostering a sense of community, civic engagement, social interaction, economic development, and environmental sustainability.

(e) Integrating development with open space physically and functionally by means of building orientation, active frontages, location of building entrances, pedestrian linkages between major activity centers, enhanced landscaping and similar techniques.

(f) Providing a strong street edge and active ground floors that animate streets and open spaces, including through the presence of Active Uses (defined below) on the first-floor fronting on First Street and Cambridgeside Place.

(g) Enhancing the architectural richness and diversity and aesthetic qualities of the PUD-8 District to complement and strengthen the architectural character of the district as it has evolved historically.

(h) To the maximum extent practicable, promoting best practices for environmental sustainability in establishing design objectives for individual buildings and sites, in accordance with the City's ongoing planning efforts and current Massachusetts Department of Environmental Protection standards.

(i) Demonstrating a commitment to implementing a Transportation Demand Management and Mitigation Program consistent with the reduced parking mandated in this PUD zoning and the capacity limitations of the transportation network that serves the area, including roadways and public transportation systems. In approving a Final Development Plan, the Planning Board shall refer to Article 18.000 and Section 19.20 of this Zoning Ordinance, plans and guidelines applicable to the PUD-8 District, and consider other City transportation planning efforts for the surrounding area (including the Kendall Square Mobility Task Force and Cambridge Bicycle Plan, with a particular focus on initiatives to improve north-south connections along First Street), and may require measures to be linked to milestones, thresholds or performance standards connected to the scale and pace of development within the PUD.

(j) Activating surrounding streets by incorporating Active Uses on the portion of the ground floors of new and renovated buildings immediately fronting on First Street, Cambridgeside Place and Lechmere Canal Park (excluding those areas of such ground floors utilized for lobbies, limited mechanical areas and/or entrances to parking and/or loading areas).

(k) Strengthening pedestrian access from First Street to retail establishments and the Riverfront.

(l) Demonstrating a commitment to implement programming for proximate Public Open Space.

13.102.5 PUD-8 Lot. A lot within the PUD-8 District is a parcel of land that may be in more than one ownership, provided that the developer thereof has control over the entirety of the parcel, whether via fee ownership, long-term lease or enforceable easement rights, which parcel is bounded by other lots or by streets, and which is designated by the developer thereof to be used, developed or built upon as a unit.

13.102.6 Condominium Property Regime. Nothing in this Section 13.100 shall prevent a developer from submitting a building(s) subject to a PUD-8 Special Permit to a condominium property regime. The violation of the conditions of a PUD-8 Special Permit by one owner or occupant of a condominium unit within a development shall not be deemed to be a violation by any other owner or occupant within the development, but shall be deemed to be a violation by the owner or occupant of the condominium unit(s)/premises violating the conditions of the PUD-8 Special Permit. Nothing herein shall limit the rights of a condominium association against a violating owner or occupant.

13.102.7 Applicability of Requirements to Development Parcel. The requirements of this Section 13.100 may be satisfied for the entire Development Parcel on any lot(s) located within the limits of such Development Parcel or, with respect to Section 13.105 (Open Space), on other land within 1,000 feet of the PUD-8 District; provided, however, the requirements of this Section 13.100 shall not be applied to individual PUD-8 lots or ownership units comprising such Development Parcel, but shall be applied as if such Development Parcel were a single conforming PUD-8 lot whether or not such Development Parcel is in single or multiple ownership. A violation, with respect to an individual PUD-8 lot or ownership unit within the Development Parcel, of any provision of this Section 13.100 shall not constitute a violation with respect to any other individual PUD-8 lot or ownership unit within the Development Parcel.

13.102.8 Phasing Plan and Lapse. Any development within the Development Parcel shall commence and, to the extent built in multiple phases over a period of time, be constructed in accordance with the time limits set forth in the Final Development Plan. Any changes to the Phasing Plan after issuance of the PUD-8 Special Permit are subject only to written approval by the Planning Board.

In no event shall any portion of the development approved by a PUD-8 Special Permit for which a building permit has been issued and construction has commenced be deemed to have lapsed due to the fact that any other phase of the development approved by a PUD-8 special permit has not been commenced or completed.

13.102.9 Relationship to PUD-4. With respect to the Development Parcel, the rights granted pursuant to a PUD-8 Special Permit shall be in addition to any rights previously granted under a PUD-4 special permit and the PUD-8 Special Permit shall govern with respect to such additional rights. The previously issued PUD-4 special permit shall remain valid and in full force and effect for, and govern with respect to, any remaining land outside of the Development Parcel subject thereto, provided that the terms of such PUD-4 special permit shall be applied to such remaining land without regard to any rights granted to the Development Parcel pursuant to the PUD-8 Special Permit.

To the extent the Development Parcel is subject to the provisions of one or more PUD District(s), special permit(s), site plan approval(s) and/or variance(s) issued prior to the issuance date of a PUD-8 Special Permit granted hereunder and the provisions of such PUD District(s) or existing approval(s) conflict or are inconsistent with the PUD-8 Special Permit, the provisions of the PUD-8 Special Permit shall govern.

13.102.10 Pre-Application Conference. In the course of preparing a Development Proposal, the developer shall be required to participate in at least one PUD Pre-Application Conference as established in Section 12.33 of this Zoning Ordinance and a similar conference with the full City Council or Ordinance Committee. The purpose of the conference will be to discuss the conceptual alternatives for site arrangement, building massing, circulation systems and public space arrangement, as well as general approaches to architectural and landscape design, and for the developer to receive informal feedback from the Planning Board prior to preparing the materials required by Section 13.102.3 above. As set forth in Section 12.33.2,

any statement made by the Planning Board or the developer at the Pre-Application Conference shall not be legally binding. Notwithstanding Section 12.33.3, the developer shall present graphic and written materials as needed to illustrate and describe conceptual development alternatives.

13.102.11 Design Review. In approving a Final Development Plan, the Planning Board may incorporate criteria and additional guidelines for future design review of individual building sites and open spaces in support of its findings, including with respect to: streetscape activation, amenities, and dimensions; the provision of canopy street trees; coordination with the City's plans for vehicular, pedestrian, and bicycle movement in East Cambridge; ground floor design; sidewalk widths and features; the location of the ground floor façades relative to the plane of the streetwall above; the height and façade expression of ground floors; façade length; modulation of the streetwall façade; the continuity of the streetwall; bay widths; window-to-wall ratios; the massing and façade expression of towers, mechanical penthouses and their stepbacks; screening of mechanical systems; architectural details; building materials; incorporation of art; lighting design; sustainability; and universal access.

13.103 Uses Allowed in a PUD-8 District . The uses listed in this Section 13.103, alone or in combination with each other, shall be allowed, provided that the amount and extent of uses may be further regulated and limited as set forth elsewhere in this Section 13.100, including, without limitation, Section 13.107. This Section 13.103 shall refer to uses as they are listed in Article 4.000 and otherwise defined in this Zoning Ordinance as of the effective date of the enactment of this Section 13.100. For the avoidance of doubt, the Planning Board shall be the sole permit granting authority with respect to determining uses allowed under this Zoning Ordinance in the PUD-8 District.

(a) Residential Uses. All uses listed in Section 4.31 a-h, and i.2.

(b) Transportation, Communication and Utility Uses. All uses listed in Section 4.32, which are allowed or conditionally allowed in the base zoning district.

(c) Institutional Uses. All uses listed in Section 4.33, which are allowed or conditionally allowed in the applicable base zoning district.

(d) Office and Laboratory Uses. All uses listed in Section 4.34.

(e) Retail or Consumer Service Establishments. All uses listed in Section 4.35.

(f) Outdoor Retail or Consumer Service Establishments.

i. Open-Lot Retail Sales Establishment;

ii. Outdoor Entertainment and Recreation Facility.

(g) Light Industry, Wholesale Business and Storage. All uses listed in Section 4.37.

(h) Other Uses. Any use not listed in subsections 13.103(a) through 13.103(g) above, otherwise allowed in a Business A District, may be allowed by the Planning Board upon written determination by the Board that such use is consistent with the objectives of the PUD-8 District and is consistent with the predominant uses in the PUD-8 District.

13.104 ***Dimensional Regulations***.

13.104.1 Permitted Gross Floor Area (GFA). The following GFA shall be permitted within the PUD-8 District:

(a) Existing GFA. The GFA that exists on a lot(s) to be covered by a PUD-8 Special Permit on the date of application for such PUD-8 Special Permit, which shall be calculated in accordance with the definition of Gross Floor Area under the Zoning Ordinance in effect at the time of adoption of this Section 13.100, except that the GFA of above-ground structured parking facilities in existence on or before September 15, 2000 shall be included in the calculation of Existing GFA (notwithstanding the exemptions under Section 5.25.3.3).

(b) Net New GFA. A maximum of 575,000 square feet of Net New GFA shall be permitted within the Development Parcel. For purposes of this Section 13.100, Net New GFA shall be calculated as the total Gross Floor Area proposed within the Development Parcel, less the Existing GFA pursuant to Section 13.104.1(a) above.

(c) Assignment of GFA to PUD-8 Lots. A Development Proposal for the PUD-8 Development Parcel including all PUD-8 lots within such PUD-8 Development Parcel shall describe how all of the permitted GFA will be assigned to PUD-8 lots within such PUD-8 Development Parcel. However, with the exception of the 100,000 square feet that comprises the core retail component of the PUD-8 District, all permitted GFA shall be assignable among PUD-8 lots within such PUD-8 Development Parcel, subject to approval by the Planning Board.

(d) Required Residential Development. A Development Proposal for the PUD-8 Development Parcel shall be required to provide a plan for the provision of at least thirty percent (30%) of its Net New GFA as residential development, subject to the following provisions.

1. Timing. Such residential component may be provided on any portion of such Development Parcel and may be provided during any phase of a multi-phase development, provided, however, that construction of such residential component shall have commenced prior to or simultaneous with the earlier to occur of (i) issuance of a final certificate of occupancy for more than 325,000 square feet of non-residential Net New Gross Floor Area or (ii) issuance of a building permit for the second new building within the PUD-8 District (for the avoidance of doubt, a building permit for a new building shall mean a building permit authorizing the construction of a new structure that did not previously exist on the subject property).

2. Inclusionary Housing Requirements. GFA assigned to residential use shall be subject to the Inclusionary Housing Provisions of Section 11.203 of this Zoning Ordinance, except that at least thirty percent (30%) of the total Dwelling Unit Net Floor Area constructed shall be devoted to Affordable Dwelling Units created through Inclusionary Housing.

3. Middle Income Housing Requirement. The following requirements for Middle Income Housing Units shall apply in addition to the Inclusionary Housing Requirements set forth above:

   i. Thirty-five percent (35%) of the total Dwelling Unit Net Floor Area constructed shall be devoted to Middle Income Units (as defined below). Such Middle Income Units shall be distributed throughout the residential development in a manner approved by City staff, in order to ensure that the Middle Income Units are of an appropriate location, size, configuration and quality for households intended to occupy such units.

   ii. For the purposes of this Section 13.104.1, Middle Income Units shall be defined as residential dwelling units for which:

      (a) The occupancy is restricted to households whose total income is not below seventy percent (70%) and which also does not exceed one hundred and twenty percent (120%) of the Area Median Income (AMI); and

      (b) The rent (including utilities) does not exceed thirty percent (30%) of the income of the renting household or, in the instance of home ownership units, the monthly mortgage payment (including insurance, utilities and real estate taxes) does not exceed thirty percent (30%) of the income of the purchasing household, or such other equivalent standard as may be determined by the Board of Trustees of the Affordable Housing Trust Fund.

   iii. Except as otherwise provided in Section 13.104.1(d)(4), GFA devoted to Middle Income Units shall be subject to the provisions of Sections 11.203.3 and 11.203.4, provided that such provisions shall be applied in a manner that reflects the income restrictions for Middle Income Units provided above (rather than the income restrictions for Inclusionary Housing provided in Sections 11.203.3 and 11.203.4).

4. Family-Sized Dwelling Units. The required residential development shall include a range of dwelling unit types and sizes, including Family-Sized Dwelling Units. The total number of Affordable Family-Sized Dwelling Units required under Section 11.203.3(g) shall be determined based on the total Dwelling Unit Net Floor Area devoted to Affordable Dwelling Units required by Section 13.104.1(d)(2). To the extent legally permissible under Section 11.200 of this Zoning Ordinance and other applicable legal requirements, all Family-Sized Dwelling Units will be Middle Income Units and Affordable Dwelling Units, allocated in accordance with the following: (i) those units required under Section 11.203.3(g) shall be Affordable Dwelling Units created through Inclusionary Housing; and (ii) any additional Family-Sized Dwelling Units shall be Middle Income Units.

(e) Housing Contribution. To the extent that a development proposed within the PUD-8 District is considered an Incentive Project, it shall comply with the requirements of Section 11.202 of this Ordinance.

13.104.2 Residential Density. There shall be no required minimum Lot Area Per Dwelling Unit in the PUD-8 District.

13.104.3 Maximum Building Height.

(a) As shown on the attached Building Height Map for the PUD-8 District, Map 13.101, the maximum height of buildings permitted in the PUD-8 District shall be eighty-five (85) feet except as hereinafter provided.

(b) The height of buildings or portions thereof may be increased by issuance of a PUD-8 Special Permit by the Planning Board upon a finding that all of the criteria in Section 13.102.4 have been satisfied and that the proposed height complies with the following distance parameters and the design guidelines in Section 13.107.5(a) (including stepbacks and materials):

i. The height of buildings or portions thereof that are less than three hundred (300) feet from the centerline of First Street and more than four hundred eighty (480) feet from the centerline of Charles Street may be up to ninety-five (95) feet in a location that is setback from the nearest boundary of the PUD-8 Development Parcel to the Lechmere Canal by greater than one hundred eighty (180) feet;

ii. The height of buildings or portions thereof that are less than three hundred (300) feet from the centerline of First Street and between four hundred eighty (480) feet and three hundred fifteen (315) feet of the centerline of Charles Street may be up to one hundred forty-five (145) feet; and

iii. The height of buildings or portions thereof that are less than three hundred fifteen (315) feet of the centerline of Charles Street and either (i) less than three hundred (300) feet from the centerline of First Street or (ii) more than four hundred twenty-five (425) feet from the centerline of First Street may be up to one hundred fifty-five (155) feet.

13.104.4 Other Dimensional Requirements. There shall be no minimum lot area for PUD-8 lots located within the PUD-8 Development Parcel. There shall be no minimum width for the PUD-8 Development Parcel and no minimum width for PUD-8 lots located within such Development Parcel. There shall be no minimum required front, rear and side yard requirements for the PUD-8 Development Parcel or for PUD-8 lots located within such Development Parcel. There shall be no minimum required distance between buildings on the PUD-8 Development Parcel and no minimum required distance between buildings situated on the same PUD-8 lot within such Development Parcel. The Planning Board shall approve all such PUD-8 lot sizes and building setbacks in accordance with the PUD-8 Design Guidelines and Principles set forth in Section 13.107.5.

13.105 ***Open Space***.

13.105.1 Subject to the provisions of 13.105.2 below, at a minimum, twenty percent (20%) of the land area within the PUD-8 Development Parcel shall be Public Open Space or Publicly

Beneficial Open Space, which may be located in the PUD-8 District and/or within 1,000 feet of the PUD-8 District, subject to the further standards set forth below (the "Minimum Open Space").

13.105.2 To the extent that the Minimum Open Space requirement is to be satisfied, in whole or in part, with Public Open Space or Publicly Beneficial Open Space that is located outside of the PUD-8 District, the developer shall demonstrate that the developer (or its affiliates) has historically contributed to, or is committed to contributing to, the creation of such Open Space (e.g., through a financial contribution to, or development of, such Open Space).

13.106 Parking and Loading. Development in the PUD-8 District shall conform to the off-street Parking and Loading Requirements set forth in Article 6.000, and in the Schedule of Parking and Loading Requirements applicable to the Residence C-3, Office 3, Business B and Industry B districts, except as modified by this Section 13.106 below.

13.106.1 With regard to uses contained within new commercial buildings, provided that the requirements of Section 6.23 of the Ordinance are met, the parking requirements of this Section 13.106 may be satisfied (a) anywhere in the PUD-8 District or, if located outside of the PUD-8 District, within 2,000 feet of the use being served, notwithstanding anything to the contrary contained in Article 6.000; and (b) in total or in part by a lease agreement, occupancy agreement, license or other comparable legal instrument between the developer and the City, other public entity or private owner or consortium for use of parking spaces in the public or pooled private parking facilities within said area.

13.106.2 Notwithstanding anything to the contrary in Article 6.000, this Ordinance shall not restrict the management and assignment of parking spaces in a way that will most efficiently utilize the existing and proposed parking spaces to serve all approved uses.

13.106.3 Minimum Parking. There shall be no minimum parking requirements within the PUD-8 District; provided, however, in approving a Final Development Plan, the Planning Board may specify a minimum parking requirement based on review and analysis of Transportation Impact Studies and other relevant information on parking demand provided in application documents, including the Shared Parking Study as required below, and with the guidance of City agencies. The Planning Board, through its approval of a Final Development Plan, shall make a finding that the Final Development Plan provides adequate parking for proposed residential uses.

13.106.4 Maximum Parking. Maximum allowed parking for a PUD-8 shall be limited by applying the rates set forth below to each use within the PUD-8 and taking the summation of the result for all uses. For any use not listed below, the maximum parking ratio set forth in Article 6.000 shall apply.

(a) Maximum of 5.0 spaces per 1,000 square feet of retail, consumer service and restaurant use.

(b) Maximum of 0.9 spaces per 1,000 square feet of GFA for office use.

(c) Maximum of 0.8 spaces per 1,000 square feet of GFA for laboratory use

(d) Maximum of 1.0 space per residential dwelling unit.

In approving a Final Development Plan, the Planning Board may waive any maximum parking requirements applicable in the PUD-8 District and the underlying Zoning District.

13.106.5 Shared Parking Study. A Development Proposal for development in the PUD-8 District shall include an analysis of existing and anticipated parking demand for all uses in the development throughout the course of a typical day and week. The purpose of this analysis is to consider parking demands for different land uses that have peak parking demands at different times of day, thus enabling parking facilities to be used more efficiently. Accordingly, this analysis may identify opportunities for reducing the total amount of parking required to serve all uses through the sharing of parking spaces by multiple uses. Based on this analysis, the Planning Board, with guidance from City staff, may approve a reduced minimum or maximum parking requirement upon finding that the approved amount of parking will be sufficient to serve all permitted uses. This analysis may be approved by the Planning Board as a working study that can be adjusted by written approval of the Planning Board over time, as dictated by changes in parking demands.

13.106.6 Loading. The Planning Board, in its approval of a Final Development Plan, may waive any requirements for the amount, location and design of loading facilities within the PUD-8 Development Parcel, and may permit loading facilities to be shared across various uses and PUD-8 lots within the PUD-8 District or adjacent PUD-4 Districts.

13.106.7 Bicycle Parking. Bicycle parking shall be provided in accordance with Section 6.100 of this Zoning Ordinance, provided that, in accordance with Section 6.108, any of the requirements in Section 6.100 may be modified by the Planning Board through its approval of a Final Development Plan.

13.107 ***Special Requirements, Conditions and Standards Applicable to Certain Development Authorized by the Planning Board in East Cambridge***.

13.107.1 Active Uses. Final Development Plans shall enhance the public pedestrian usage of the sidewalks and create a sense of neighborhood continuity by providing an interesting, lively and active presence at street level. Accordingly, the portion of ground floors of new buildings in the PUD-8 District immediately fronting on First Street, Cambridgeside Place and Lechmere Canal Park (excluding those areas of such ground floors utilized for lobbies, mechanical areas and/or entrances to parking and/or loading areas) shall be planned, designed, and constructed to contain Active Uses as required below.

(a) Definition of Active Uses. For purposes of this Section 13.100, "Active Uses" means:

1. Any use listed in Sections 4.35 and 4.36; and

2. Any other use which the Planning Board determines meets the goals of this Section 13.107.1(a).

13.107.2 Rooftop Mechanical Equipment Noise Mitigation. Sound emanating from rooftop mechanical equipment on all new or substantially altered structures in an approved Final Develop-

ment Plan shall be minimized by the adoption of best available and feasible practices regarding the location and sizing of equipment, the selection of equipment and sound attenuation measures. At a minimum, any noise or vibration emanating from new commercial or substantially altered commercial buildings shall not be normally perceptible without instruments at a distance of one hundred (100) feet from the source lot line and shall comply with the provisions of the City of Cambridge Noise Ordinance applicable to Commercial Areas (as such term is defined in the Noise Ordinance).

In order to enforce these requirements, the developer shall provide, in addition to a Noise Mitigation narrative required as part of Article 19.000 review, acoustical reports prepared by a professional acoustical engineer as described below:

(a) Prior to and as a condition of the issuance of the first certificate of occupancy for a new or substantially altered commercial building, an acoustical report, including field measurements, demonstrating compliance of such building with all applicable noise requirements; and

(b) Prior to obtaining any building permit to add any new equipment having a capacity greater than five (5) horsepower to the rooftop, a narrative report demonstrating that there will be continued compliance with all applicable noise requirements after such addition, and upon completion of such addition and as a condition thereof, an acoustical report, including field measurements, demonstrating such compliance.

With respect to any new commercial or substantially altered commercial building that will contain laboratory use, the heating, ventilation and air conditioning (HVAC) design shall adopt Best Available Noise Control Technology (BANCT) in the sizing and selection of equipment, its placement on the roof, and the use of effective sound attenuation design elements, including through the following measures: (i) fans shall be provided with variable speed drives to conserve energy when airflow is not needed to condition the space, and sound attenuators will be installed in the ductwork; (ii) cooling towers shall be provided with large diameter, slow speed whisper quiet fans and variable speed drives for capacity control and energy conservation, and such towers will be located within a sound absorbent screen wall; (iii) air cooled chillers shall use variable-speed compressors, variable-speed fans and integrated compressor mufflers; and (iv) air handling units shall be in a sound-insulated penthouse that is ventilated through acoustical louvers. Any PUD-8 Special Permit may contain conditions with respect to noise mitigation consistent with this Section 107.2 for any building containing laboratory use.

Additionally, appropriate screening for any rooftop mechanical equipment shall be provided to the fullest extent permitted by law.

13.107.3 Light Mitigation. Any new commercial or substantially altered commercial building that will contain laboratory use shall install a Building Automation System (BAS) that is programmed to dim or turn lights off and to lower shades after 9:30 pm to reduce light pollution to the

surrounding neighborhoods. Any PUD-8 Special Permit may contain conditions with respect to light mitigation consistent with this Section 107.3 for any building containing laboratory use.

13.107.4 Sustainability. New buildings constructed within the PUD-8 District shall comply with the Green Building Requirements set forth in Section 22.20 of the Zoning Ordinance. The Development Proposal shall contain documentation showing how the development at an aggregate level will comply with the requirements of Section 22.20. The conditions of a PUD special permit shall set forth procedures for individual buildings within an approved Final Development Plan to meet the requirements of Section 22.20.

The Sustainability and Resiliency Plan component of a Development Proposal shall describe how new buildings in the PUD-8 District will incorporate a comprehensive design approach and incorporate the best practices for meeting sustainability as outlined in the City's Net Zero Action Plan, Climate Change Preparedness and Resilience Plan, and other sustainability plans and guidelines promulgated by the City at the time the Development Proposal is submitted. The conditions of a PUD special permit shall set forth sustainability guidelines to be reviewed as part of any continuing design review procedure for individual buildings within an approved Final Development Plan. At a minimum, buildings shall incorporate best practices in the following areas:

(a) Energy and Emissions. Each new or renovated building must conserve building energy and, to the extent practicable, reduce carbon/GHG emissions. The developer, with each new or renovated building within the PUD-8 District, will evaluate the potential for implementation of net zero ready measures and on-site energy generation (which may include rooftop solar pv) within the PUD-8 District in the context of ownership, economic viability and phasing constraints. The Developer will conduct a greenhouse gas emissions analysis for each new or renovated building and will implement energy efficiency mitigation for such building to achieve the maximum energy reductions possible identified in such analysis.

(b) Urban Site and Landscaping; Water Management. The Developer, for each new building, must explore opportunities for potable water use reductions and the ability to enhance indigenous plantings in and around the development site.

(c) Cool Roofs. All new buildings approved in the PUD-8 District must employ Functional Green Roofs (as such term is defined in Article 22.000 of this Zoning Ordinance), high-albedo "white" roofs, or a functionally equivalent roofing system.

(d) Monitoring. All new buildings in the PUD-8 District shall be required to conform to the requirements of the Cambridge Building Energy Use Disclosure Ordinance, Chapter 8.67 of the Municipal Code.

(e) Healthy Living and Working. All new buildings in the PUD-8 District shall provide people with access to daylight and enhance the visual and thermal comfort of people living within the PUD-8 District.

(f) Transportation. Final Development Plans within the PUD-8 District shall encourage multimodal transportation, provide facilities for cyclists and provide an infrastructure to support alternative energy vehicles.

(g) Flood Resiliency. All new buildings must incorporate the City of Cambridge's most up-to-date standards to address projected future flooding impacts.

(h) Site Cooling Strategies. Final Development Plans within the PUD-8 District shall incorporate measures to reduce urban heat island effects and identify interior and exterior spaces in designated locations to act as cooling areas.

13.107.5 PUD-8 Design Guidelines and Principles.

(a) To the extent reasonably practicable, new buildings constructed within the PUD-8 District shall be generally consistent with: (i) the policy objectives set forth in the Eastern Cambridge Planning Study dated October 2001; (ii) the guidance provided in the Eastern Cambridge Design Guidelines dated October 15, 2001; (iii) the East Cambridge Riverfront Plan dated May 1978; (iv) the East Cambridge Development Review Process and Guidelines dated June, 1985; and (v) the Cambridge Riverfront Plan dated Spring 2011 (collectively, the "PUD-8 Guidelines and Principles"); provided, however, that the provisions of this Section 13.100 shall govern with respect to process, uses, density, open space and streetwalls, and new buildings constructed within the PUD-8 District shall be generally consistent with the following provisions in lieu of the provisions pertaining to height, setback, stepbacks and materials in the PUD-8 Guidelines and Principles:

i. Height and Setbacks: A diversity of height and massing as permitted in Section 13.104.3 is encouraged to be located in buildings immediately fronting on First Street, Cambridgeside Place and Land Boulevard and designed to create a rich and varied skyline along streets abutting the Development Parcel.

1. Buildings fronting on First Street are encouraged to establish a recognizable base, activated by commercial, residential, retail, dining and entertainment uses, of a scale and proportion to support an active, pedestrian-oriented public realm.

2. New buildings fronting on First Street will enhance the public realm by providing a setback of at least 10 feet or more as may be necessary to provide a sidewalk that allows comfortable pedestrian circulation in addition to street furniture, bicycle parking, tree plantings and other streetscape features. Bays, balconies, tapers, cornices and other architectural elements may project 5 feet into this setback zone, beginning at the second floor, to establish scale compatible with the neighboring structures and to modulate the massing of the buildings so that they are read as distinct and individual buildings.

3. Buildings along First Street are encouraged to create separation between buildings and to adopt massing strategies within the building facades to create visual interest on the street.

4. Mechanical penthouses, attic stories and other architectural treatments will be utilized to create tops to the buildings that will contribute to a varied skyline and unique reading of each building.

5. Maintaining the existing pedestrian atrium, which provides a connection between Charles Park and Lechmere Canal Park, at its height as of the effective date of the enactment of this Section 13.100 is encouraged.

ii. Stepbacks.

1. New or renovated buildings within the PUD-8 District that exceed 85 feet in height shall provide (a) a 10-foot stepback of the building façade at an elevation of approximately 65 feet in height and (b) a 10-foot stepback of the building façade at an elevation of approximately 135 feet in height (if applicable), provided in each case that bays, balconies, tapers, cornices and other architectural elements may project 5 feet into this stepback zone to establish scale compatible with the neighboring structures, and to modulate the massing of the buildings so that they are read as distinct and individual buildings.

2. New or renovated buildings within the PUD-8 District that do not exceed 85 feet in height are encouraged to provide a distinct horizontal articulation at a datum height of approximately 65 feet, through means other than a stepback (significant change in material, projecting cornice/fin/shade, etc.).

3. New or renovated buildings within the PUD-8 District shall provide a 15-foot stepback of the rooftop mechanical penthouses.

iii. Building Spacing: New buildings shall be designed to provide for appropriate spacing to preserve adequate light, air and view corridors for the benefit of the East Cambridge neighborhood. New buildings should, to the extent feasible, be separated by courtyards or other significant breaks to avoid long lengths of unbroken building mass. Along First Street, such breaks should be aligned with Spring and Hurley Streets to the extent possible.

iv. Materials and Details: A diverse and varied use of finishes and façade elements is encouraged in new and renovated buildings to further contribute to the reading of individual buildings along First Street, Cambridgeside Place and Land Boulevard. Individual, architecturally expressive buildings may be supported if they are positive additions to the East Cambridge neighborhood.

1. Exterior finishes may include high quality, durable, warm, rich and varied materials such as, but not limited to, brick, terra cotta, natural and cast stone, and, to a lesser extent, pre-cast and high performance concrete panels and cast shapes and curtain wall recognizing that the base of the buildings will be primarily masonry and glass.

2. A variety of exterior façade elements may be incorporated to create visual texture and interest, including bays, residential balconies, fixed or operable windows, roof decks, terraces, shutters and shading devices.

(b) In its approval of a Final Development Plan, the Planning Board may (i) make a determination that one or more provisions of the PUD-8 Guidelines and Principles are inapplicable to new buildings to be constructed within the PUD-8 District, or (ii) waive or modify any provisions of the PUD-8 Guidelines and Principles set forth above upon making a determination that such waiver or modification maintains an architectural character consistent with the planning and design goals of this Section 13.107.5.

13.107.6 Letter of Commitment. The Letter of Commitment dated December 4, 2019 by Stephen R. Karp is incorporated herein by reference and made part of the Cambridge Zoning Ordinance and shall be binding upon New England Development and CambridgeSide Galleria Associated and its successors and assigns. To the extent the provisions of the Letter of Commitment are inconsistent with the provisions of this Section 13.100, the more stringent provisions shall govern.

(Ord. No. 1415, 12-16-2019; Ord. No. 2021-3, § xiii, 6-7-2021; Ord. No. 2022-9, 2-27-2023)

13.200 PLANNED UNIT DEVELOPMENT AT CANAL DISTRICT KENDALL

13.201 Purpose. The PUD-CDK District is intended to provide for a mixed-use district that is comprised of high quality general and technical office and laboratory uses with diverse active commercial retail and community uses; to promote and enhance the existing open space network within and surrounding the district through the public open space connections among Termeer Square, the plaza abutting the Broad Canal, the Broad Canal, public recreation pathways leading towards the Charles River, and future open space west of Third Street; and to provide unique community benefits through community arts and public gathering spaces. The PUD-CDK District creates incentives to (A) incorporate a high-caliber arts and culture facility within the district that will further diversify the mix of uses within the neighborhood, and (B) remove the existing above-grade utility and industrial facilities located at the existing gas transfer station on Third Street to enhance the streetscape experience along Third Street and provide an attractive connector corridor between the district and the East Cambridge neighborhood. The parcel on which the existing gas regulator/transfer station is located is referred to herein as the "Gas Transfer Station Parcel".

13.202 PUD-CDK Special Permit

13.202.1 Eligible Development Parcel. To further the purpose of this Section 13.200, an applicant may submit a Development Proposal and obtain a special permit from the Planning Board approving a Final Development Plan for a Development Parcel located within the PUD-CDK District that, at the time of application for a PUD-CDK special permit, consists of at least 45,000 square feet in area and has at least 75 feet of linear frontage on Third Street. In addition to the foregoing, the Final Development Plan for a currently vacant or undeveloped Development Parcel under this PUD-CDK overlay zoning shall include an Arts and Culture Center, as further provided in Section 13.204.1(b) below.

13.202.2 PUD-CDK Special Permit Approval. The Planning Board may grant a PUD-CDK special permit approving a Final Development Plan for a Development Parcel upon finding that the Final Development Plan is consistent with the criteria set forth below, and all other criteria applicable to approval of any other special permits being sought.

13.202.3 PUD-CDK Special Permit Requirements. The Final Development Plan for a Development Parcel shall contain the following components:

(a) *Site Development Plan:* a current development program illustrating the size, location and uses of the existing buildings at the time of submission together with a site plan for (1) the new building(s) proposal in context with existing and proposed new development within the district, and (2) how the new building(s) is (are) divided into use areas, including the potential size and location of uses within the building(s).

(b) *Building and Massing Plans:* a plan illustrating proposed building scale, height, and massing, including a model and study demonstrating the anticipated shadow and wind impacts of any proposed buildings taller than 100 feet, and a general description of proposed mitigation measures that will be employed.

(c) *Parking and Loading Plan:* identifying the locations of all parking facilities supporting the district, long- and short-term bicycle parking facilities, and facilities for loading or other vehicular service functions serving the proposed building site, the number of new parking spaces proposed delineated by use, if any, and identifying appropriate strategies for the management of parking within such parking facilities. Such a plan shall also describe the anticipated parking and loading needs of the proposed Arts and Culture Center.

(d) *Connectivity Plan:* illustrating pedestrian, bicycle and vehicular circulation route connections in the district to the surrounding public transportation infrastructure outside of the Development Parcel, and approximate locations of access and egress points for each building and parking facility within the Development Parcel.

(e) *Street and Public Improvements:* a plan describing street and public improvements to be undertaken in connection with the development, if any, including all proposed water, stormwater, and sewage facilities, which shall also be submitted to the Department of Public Works for review.

(f) *Open Space Plan:* illustrating and quantifying the areas of all open space areas utilized by the development in satisfaction of Section 13.204.5, including, without limitation, existing open space constructed under a PUD-3 special permit and pedestrian ways providing connectivity to the Broad Canal.

(g) *Ground Floor and Activation Plan:* illustrating the conceptual arrangement of functions such as retail establishments and other ground floor uses, and residential and office lobbies at the ground floor of the building(s) in the Development Parcel, as well as the locations and anticipated sizes of the Arts and Culture Center and strategies for programming and activating such spaces.

(h) *Sustainability and Resiliency Plan:* describing: (1) how the sustainability requirements set forth in Section 13.206.2 below will be met; (2) how the proposed development will promote best practices for environmental sustainability and resiliency; and (3) how the

proposed development serves nearby East Cambridge community-wide needs for emergency refuge or shelter during heat or storm emergencies in coordination with the Cambridge Climate Vulnerability Assessment dated February 2017.

(i) *Transportation Plan:* incorporating: (1) a Traffic Impact Study as required by Section 19.20 of this Zoning Ordinance; (2) a shared parking study to demonstrate that the district's parking supply can accommodate future anticipated demands at full build out; (3) a study of the impacts of increased demand on public transportation services in the East Cambridge area; (4) a description of the development's relationship to future regional rail, bus, pedestrian/bicycle and other transportation system connections in the area; and (5) a Transportation Demand Management and Mitigation program describing measures which may be incorporated by the Planning Board into a condition of a PUD-CDK special permit to offset or mitigate the development's impacts on transportation systems, including measures set forth in this Zoning Ordinance and the City's planning efforts to be linked to milestones, thresholds or performance standards.

(j) *Arts and Culture Operations Plan:* describing opportunities and strategies for promoting inclusive engagement of local residents and the general public, promoting intergenerational interactions through arts and culture programming, and stimulating community gatherings and interactions for extended hours throughout the day and seasons.

(k) *Local Retail Plan:* identifying opportunities and strategies for promoting retail collaboration with local independent artists for the display and/or sale of their work, crafts, or wares.

13.202.4 PUD-CDK Special Permit Criteria. In approving a Final Development Plan, the Planning Board shall consider the following objectives with respect to any new Gross Floor Area or the construction of a new building:

(a) Incorporating an Arts and Culture Center that (i) takes into consideration the orientation of the uses, location of building entrances, pedestrian connectivity between such uses and adjacent open space areas, and the ability of such uses to promote diversity and serve all residents of the City of Cambridge, and (ii) creates a facility available for the neighborhood that supports or promotes small arts or theater organizations, independent artists, art co-working opportunities, or partnerships among the foregoing and the local community. Furthermore, the developer of such Arts and Culture Center shall have demonstrated a commitment to establishing an arts and culture operational plan for space within the new building that will be made available for teaching, learning, rehearsing, or idea exchange.

(b) Contributing to the diversity of East Cambridge and Kendall Square through encouraging innovative uses, activities, programs, or opportunities that will be publicly accessible such as art galleries or community gathering spaces, and considers or incorporates applicable recommendations from the Mayor's Arts Task Force Recommendations (2019) (the "Arts Task Force Recommendations").

(c) Enhancing the Third Street corridor by improving the streetscape through visible activity and publicly accessible elements within and adjacent to the ground floor in place of the existing gas regulator/transfer station equipment currently occupying that frontage on the Gas Transfer Station Parcel.

(d) Providing active ground floors that animate streets and open spaces, and add to the vitality of Kendall Square.

(e) Integrating development with new and existing open spaces physically and functionally.

(f) Enhancing the pedestrian connections among Termeer Square, the plaza abutting the Broad Canal, the Broad Canal, and Third Street, and creates publicly accessible interior ground floor pathways to such areas.

(g) Fostering a spirit of inclusiveness and diversity, particularly in the planning and programming of the publicly accessible ground floor elements, community gathering and other open spaces, to draw users and visitors from across the city.

(h) Demonstrating a commitment to seeking high quality, locally-based retail and restaurant owners or operators where such uses are part of the Final Development Plan, and promotes collaboration between any retail component and the Arts and Culture Uses that are part of the Final Development Plan, taking into consideration applicable components of the Arts Task Force Recommendations with respect to the Arts and Culture Uses.

(i) Sensitively interfacing with adjacent land uses with respect to use scale, density, setback, bulk, height, landscaping, and screening, while providing integrated pedestrian circulations systems with particularly strong linkages between Broad Canal, Third Street, and Termeer Square.

(j) Sensitively managing the massing of the buildings to minimize the impact of shadows, excessive wind, and obstruction of light and views.

(k) General consistency with the policy objectives set forth in the (i) Kendall Square Planning Study and Design Guidelines (2013) (the "K2 Study"), (ii) the draft Kendall Square Design Guidelines (the "K2 Design Guidelines"), (iii) the Connect Kendall Square Open Space Plan (the "Kendall Square Open Space Plan"), and (iv) the Volpe Working Group Planning & Design Principles dated July 20, 2017 (the "Volpe Guidelines"), while also taking into account the size, shape, and location of the applicable Development Parcel. The planning studies identified above are collectively herein referred to as the "PUD-CDK Guidelines and Principles".

13.202.5 Condominium Property Regime. A developer may submit a building subject to PUD-CDK to a condominium property regime. A violation of one or more conditions of a PUD-CDK special permit by one condominium unit owner (or its occupant) shall not be deemed to be a violation by another condominium unit owner (or its occupant).

13.202.6 Applicability of Requirements to Development Parcel. A violation, with respect to an individual PUD-CDK lot or ownership unit within the Development Parcel, of any provision of this Section 13.200 shall not constitute a violation with respect to any other individual PUD-CDK lot or ownership unit within the Development Parcel. A PUD-CDK special permit may specify that certain future modifications to the Final Development Plan do not alter the concept of the PUD and such modifications shall be considered minor amendments under Section 12.37 of this Zoning Ordinance subject only to written approval of the Planning Board.

13.203 Allowed Uses within the PUD-CDK District.

(a) Office and Laboratory Uses. All uses allowed in the base zoning district shall be permitted in the PUD-CDK district, as well as the following uses, with the permitted range of uses in a Final Development Plan to be approved by the Planning Board:

(b) Residential Uses.

1. Multifamily dwellings.
2. Hotels or motels.

(c) Retail Business and Consumer Service Establishments. All uses listed in Section 4.35 of this Zoning Ordinance, including:

1. Arts, crafts, photography, or media studio, and print shop.
2. Commercial recreation or other recreation establishment (e.g., bowling alley, skating rink, fitness or athletic studio).

(d) Arts and Culture Uses.

1. Community Arts Uses: uses dedicated to arts creation, exhibition, and education, which may be programmed with or by community arts organizations, including but not limited to Art/Craft studios.
2. Performing Arts Uses: a facility (e.g., forum, theater, hall, or other space), or multiple facilities operated under agreements with building ownership or management, which may be sited within a mixed-use building, providing space for music, performing arts, visual arts, and private or public gatherings or assembly, Including but not limited to Theaters and Performing Arts Studios.
3. All-Season Public Gathering Uses: indoor-outdoor public gathering spaces (including any gallery, hall, or other space for private and/or public gatherings or assembly, and any programmable outdoor landscaped areas), open to the general public, which may be programmed to provide educational or recreational services to the community and may or may not be accessory to Performing Arts Uses.
4. Indoor Public Gathering Uses: indoor public gathering spaces open to the general public (including any gallery, hall, or other space for private and/or public

gatherings or assembly), which may be programmed to provide educational or recreational services to the community and may or may not be accessory to Community Arts Uses.

5. Together with such uses customarily accessory to any of the foregoing, such as, but not limited to, stage, backstage, rehearsal or practice, studio, classroom, storage, mechanical, dressing room, green room, lobby shop and/or store for goods and/or food and beverage, ticketing, restaurant and/or lounge or other eating and drinking establishment, community meeting space, and accessory office uses.

(e) Open Air or Drive-in Retail & Services. All uses listed in Section 4.36(a)-(e) of this Zoning Ordinance, including open air place of public gatherings.

(f) Transportation, Communication, and Utility Uses. All uses listed in Section 4.32 of this Zoning Ordinance.

(g) Other Uses. Any uses not listed above shall be allowed upon written determination by the Planning Board that such use is consistent with the objectives of the PUD-CDK District and is useful to support the predominant uses in the district.

13.204 Dimensional Regulations.

13.204.1 Permitted Gross Floor Area. The following shall be permitted within the PUD-CDK District:

(a) Existing Gross Floor Area. The Gross Floor Area that exists on a lot(s), which shall be calculated in accordance with the definition of Gross Floor Area, excluding permitted exemptions, under the Zoning Ordinance in effect at the time of adoption of this Section 13.200. The permitted, existing Gross Floor Area allocations for each lot under this PUD-CDK overlay zoning are shown in the following table:

Lot Note: each as approximately shown on the PUD-CDK overlay zoning map of even date.	**Street Address**	**Permitted Gross Floor Area Allocation**
Parcel A	675 West Kendall Street	245,125 sf
Parcel B	650 East Kendall Street	217,398 sf
Parcel C	585 Third Street	undeveloped
Parcel D	500 Kendall Street	280,021 sf
Parcel E - West	350 Third Street	357,000 sf
Parcel E - East	250 Kendall Street	135,530 sf
Parcel F	350 Kendall Street	144 sf
Parcel G	450 Kendall Street	53,000 sf
Termeer Square (f/k/a Open Space 3)	300 Athenaeum Street	2,782 sf
Gas Transfer Station Parcel	330 Third Street	n/a

(b) Required Arts and Culture Center. The Final Development Plan for a currently vacant or undeveloped Development Parcel under this PUD-CDK overlay zoning shall include an Arts and Culture Center.

The square footage of the Arts and Culture Center shall be as approved by the Planning Board, but shall not be less than 30,000 square feet.

(c) Permitted New Gross Floor Area. Any planned Development Parcel within the PUD-CDK District that is currently vacant or undeveloped shall be permitted to have a maximum of 525,000 square feet of Gross Floor Area in the aggregate, excluding any Gross Floor Area for the Arts and Culture Center as described in Section 13.204.1(b) above.

13.204.2 [Deleted]

13.204.3 Maximum Building Height: The maximum height of any building within the PUD-CDK District shall be 250 feet. Any portion of a building that is within 10 feet of the property line directly abutting Third Street shall have a height not to exceed 85 feet.

13.204.4 Other Dimensional Requirements: There shall be no minimum lot area, no minimum lot width, no minimum frontage, and no minimum front, side or rear yard requirements for the Development Parcel or any lot within the PUD-CDK District. There shall be no minimum building setbacks or other minimum or maximum building dimensional requirements other than as provided by this Section 13.204; however, all dimensional characteristics of a Final Development Plan shall be subject to review and approval by the Planning Board.

13.204.5 Open Space: Any Final Development Plan within the PUD-CDK District shall demonstrate that, following completion of such development, there shall be not less than twenty percent (20%) open space as defined in Article 2.000 and Section 5.22 in the PUD-CDK District except as modified below.

13.204.5.1 The Planning Board, through its approval of a Final Development Plan, shall make a finding that there is no net-loss of open space already existing within the PUD-CDK District (other than within any previously undeveloped or vacant Development Parcel).

13.204.5.2 Open space, whether already existing within the PUD-CDK District or to be constructed by the developer or its affiliate, shall include, without limitation, the following: parks; plazas; lawns; landscaped areas substantially open to the sky; playgrounds; balconies; roofs developed for recreational or leisure usage; pedestrian ways such as bridges, decks, arcades, loggias, and gallerias as specified by the Planning Board; and such other areas or spaces determined, or approved, by the Planning Board to be open space.

13.204.6 Perimeter and Transition: Any part of the perimeter of a PUD which fronts on an existing street or Public Open Space should be so designed as to complement and harmonize with adjacent land uses with respect to scale, density, setback, bulk, height, landscaping, and screening. Development in the PUD-CDK District should provide integrated pedestrian circulation systems, particularly strong linkages between the Broad Canal and Kendall Square.

13.205 Parking and Loading Requirements.

13.205.1 Generally: Development in the PUD-CDK District shall conform to the off-street Parking and Loading Requirements set forth in Article 6.000, except as modified by this Section 13.205.

13.205.2 Parking:

13.205.2.1 [Deleted]

13.205.2.2 Maximum Parking. Maximum allowed parking for a Development Parcel within the PUD-CDK District shall be limited by applying the rates set forth below to each use within a Development Parcel subject to PUD-CDK and taking the summation of the result for all uses. For any use not listed below, the maximum parking ratio set forth in Article 6.000, to the extent provided, shall apply. Exceeding the maximum allowed parking shall require a waiver of maximum parking required under the general provisions of Article 6.000.

i. Maximum of 0.8 spaces per 1,000 square feet of Gross Floor Area for office and laboratory uses.

ii. Maximum of 0.5 spaces per 1,000 square feet of Gross Floor Area for retail space.

13.205.2.3 The Planning Board, through its approval of a Final Development Plan, shall make a finding that that the Final Development Plan provides adequate parking for the proposed uses, including the Arts and Culture Center, and that the Final Development Plan does not substantially increase net-new off-street parking spaces within the PUD-CDK District.

13.205.2.4 The parking requirements of this Section 13.205.2 may be satisfied (a) anywhere in the PUD-CDK District, or if located outside of the PUD-CDK District, within 2,000 feet of the use being served, notwithstanding anything to the contrary contained in Article 6.000; and (b) in total or in part by an easement, lease agreement, occupancy agreement, license or other comparable legal instrument between the developer and the City, other public entity or private owner or consortium for use of parking spaces in the public or shared parking facilities within said area.

13.205.2.5 Notwithstanding anything to the contrary in Article 6.000, this Zoning Ordinance shall not restrict the management and assignment of parking spaces in a way that will most efficiently utilize the existing and proposed parking spaces to serve all approved uses.

13.205.3 Loading: The Planning Board, in its approval of a Final Development Plan, may waive any requirements for the amount, location and design of loading facilities within the PUD-CDK District, and may permit loading facilities to be shared across various uses within the PUD-CDK District or the adjacent PUD-3 District.

13.205.4 Bicycle Parking: Bicycle parking shall be provided in accordance with Section 6.100 of this Zoning Ordinance, provided that, in accordance with Section 6.108, any of the requirements in Section 6.100 may be modified by the Planning Board through its approval of a Final Development Plan.

13.206 Special Requirements, Standards, and Provisions Applicable to Development Authorized by the Planning Board in the PUD-CDK District.

13.206.1 Relationship to PUD-3. The special permit(s) previously issued pursuant to the provisions of the Planned Unit Development 3 (PUD-3) District shall remain valid and in full force and effect for, and govern with respect to, all remaining land of the PUD-CDK District outside of a Development Parcel that is subject to a special permit issued pursuant to the provisions of the PUD-CDK district.

Upon approving a Final Development Plan pursuant to the provisions of the PUD-CDK District, the Planning Board may concurrently approve modifications to previously issued special permits as Minor Amendments if the Board finds that such modifications are for the purpose of clarifying the applicability of previously issued and newly issued special permits and do not constitute major amendments, as that term is defined by Section 12.37.3, to the previously issued special permit(s).

13.206.2 Sustainability. New buildings constructed within the PUD-CDK District shall comply with the Green Building Requirements set forth in Section 22.20 of this Zoning Ordinance. The Development Proposal shall contain documentation showing how the development at an aggregate level will comply with the requirements of Section 22.20. The conditions of a PUD special permit shall set forth procedures to meet the requirements of Section 22.20.

The Sustainability and Resiliency Plan component of a Development Proposal shall describe how new buildings in the PUD-CDK District will incorporate a comprehensive design approach and incorporate the best practices for meeting sustainability as outlined in the City's Net Zero Action Plan, Climate Change Preparedness and Resilience Plan, and other sustainability plans and guidelines promulgated by the City at the time the Development Proposal is submitted. The conditions of a PUD special permit shall set forth sustainability guidelines to be reviewed as part of any continuing design review procedure for individual buildings within an approved Final Development Plan. At a minimum, buildings shall incorporate best practices in the following areas:

(a) *Energy and Emissions; Steam.* A new building must conserve building energy and, to the extent practicable, reduce carbon/GHG emissions. The developer of a new building within the PUD-CDK District will evaluate the potential for implementation of net zero ready measures and on-site energy generation (which may include rooftop solar pv) within the PUD-CDK District in the context of ownership, economic viability and phasing constraints. The Developer will conduct a greenhouse gas emissions analysis for such new building and will implement energy efficiency mitigation for such building to achieve the maximum energy reductions possible identified in such analysis. The Development Proposal for a new commercial building shall include a study, prepared by the developer, considering the feasibility of connecting the proposed building to the existing district steam system, if available.

(b) *Urban Site and Landscaping; Water Management.* The developer of a new building must explore opportunities for potable water use reductions and the ability to enhance indigenous plantings in and around the development site.

(c) *Cool Roofs.* All new buildings approved in the PUD-CDK District must employ Functional Green Roofs (as such term is defined in Article 22.000 of this Zoning Ordinance), high-albedo "white" roofs, or a functionally equivalent roofing system.

(d) *Monitoring.* All new buildings in the PUD-CDK District shall be required to conform to the requirements of the Cambridge Building Energy Use Disclosure Ordinance, Chapter 8.67 of the Municipal Code.

(e) *Healthy Living and Working.* All new buildings in the PUD-CDK District shall provide people with access to daylight and enhance the visual and thermal comfort of people living within the PUD-CDK District.

(f) *Transportation.* A Final Development Plan within the PUD-CDK District shall encourage multimodal transportation, provide facilities for cyclists and provide an infrastructure to support alternative energy vehicles.

(g) *Flood Resiliency.* All new buildings must incorporate the City of Cambridge's most up-to-date standards to address projected future flooding impacts.

(h) *Site Cooling Strategies.* A Final Development Plan within the PUD-CDK District shall incorporate measures to reduce urban heat island effects and identify interior and exterior spaces in designated locations to act as cooling areas.

13.206.3 Letter of Commitment. The Letter of Commitment received by the City Council during its meeting on December 21, 2020 by BMR-Third LLC is incorporated herein by reference and made a part of the Cambridge Zoning Ordinance and shall be binding upon BMR-Third LLC, 585 Third Street, Cambridge, MA, also Known as Parcel C and the Adjacent Eversource Gas Regulator, 330 Third Street (the "GTS site") and its successors and assigns. To the extent the provisions of the Letter of Commitment are inconsistent with the provisions of this Section 13.200, the more stringent provisions shall govern.

(Ord. No. 2020-16, 12-21-2020; Ord. No. 2025-1, 2-10-2025)

ARTICLE 14.000 MIXED USE DEVELOPMENT DISTRICT: KENDALL CENTER

14.10 SCOPE AND INTENT
14.20 USE REGULATIONS
14.30 INTENSITY OF DEVELOPMENT REQUIREMENTS
14.40 OPEN SPACE REQUIREMENTS
14.50 VEHICULAR ACCESS, PARKING AND LOADING
14.60 SIGNS
14.70 SPECIAL PROVISIONS
14.80 INAPPLICABILITY OF CERTAIN OTHER REGULATIONS

14.10 SCOPE AND INTENT

14.11 *Scope*. This Article regulates development within the Kendall Center Mixed Use Development (MXD) District, located within the Kendall Square Urban Renewal Project Area, as shown on the Zoning Map, as amended.

14.12 *Intent*. The purpose of the District is to allow a diversity of land uses in close proximity, within a limited area; to promote a balance of land uses; to facilitate development proposals responsive to current and future market conditions; to facilitate integrated physical design; and to encourage interaction among activities located within the District.

14.13 *Approach*. This Article is designed to fulfill the above purposes of the Kendall Center MXD District by establishing controls which will facilitate development while protecting the public interest; by setting regulations which limit the aggregate amount of development within the District and set other district wide requirements while permitting flexible development scale and configuration on individual lots within the District; by allowing a broad set of land uses within the District; and by encouraging development of appropriate density for each class of land use.

14.20 USE REGULATIONS

14.21 *Permitted Uses*. The following uses, except as explicitly prohibited are permitted in the Kendall Center MXD District. All uses not listed within one of the use groups in this section shall be prohibited. All uses within the District shall comply with the environmental protection standards of Section 14.23.

14.21.1 Light Industry.

(1) Manufacturing: fabrication, assembly, finishing work (including packaging and bottling, but only as an accessory use) without limit as to category or product.

(2) Wholesale business, only if affiliated with and accessory to another use or located on the same lot as other non-wholesale uses. Development on any lot in the district shall not be devoted exclusively to wholesale uses.

(3) Printing, binding, or related establishment.

(4) Storage warehouse, cold storage building, as an accessory use only and not exceeding twenty thousand (20,000) square feet, but not including storage or bailing of junk scrap metal, rags, paper or other waste materials and not including outside storage of products or materials.

14.21.2 Office Uses and Biotechnology Manufacturing Uses

(1) Business or professional offices.

(2) Bank, trust company, or other financial institution

(3) Research and development office.

(4) Research, experimental and testing laboratory.

(5) Radio or television studio.

(6) Manufacturing of biotechnology and pharmaceutical products, including

(a) Fabrication, assembly, finishing work (including packaging and bottling, but only as an accessory use).

(b) Wholesale business, only if affiliated with and accessory to another use or located on the same lot as other non-wholesale uses.

(c) Storage warehouse, cold storage building, as an accessory use only.

14.21.3 Retail and Consumer Service Establishments.

(1) Store for retail sale of merchandise, including Convenience Store, Merchandise Store, and Grocery Store, but not an Indoor Auto Sales Facility except for auto rentals as provided below.

(2) Eating and/or drinking establishment, whether or not liquor is sold or consumed, including Restaurant, Bar, Craft Beverage Establishment, Food Stand or Kiosk, Food Hall, and food commissary.

(3) Fast Order or Quick-Service Food Establishment only if (i) it is not located in a separate structure, (ii) it does not exceed three thousand (3,000) square feet of gross floor area, (iii) there will be no more than fifteen (15) such establishments within the District (a maximum of eight (8) of which shall be located in the Ames Street District and a maximum of seven (7) of which shall be located in the portions of the District outside of the Ames Street District) and (iv) it is granted a Special Permit, as provided in Section 10.40 and 11.30.

(4) Personal Services Establishment.

(5) Rental agency for autos or other products, but not including taxi companies. Such agencies shall be operated entirely within a building and no major automobile repairs shall be made on the premises.

(6) Auto Service Station, provided that it is located within or attached to a parking garage or other structure as an accessory use.

14.21.4 Residential Uses.

(1) Multifamily dwelling.

(2) Hotel or Motel.

14.21.5 Entertainment and Recreational Uses.

(1) Dance Hall or Nightclub.

(2) Commercial Recreation Establishment, Fitness Center, or Outdoor Entertainment and Recreation Facility. Such recreation facilities shall be allowed only if they are located in or attached to structures containing other principal uses.

(3) Theater.

(4) Park or playground.

14.21.6 Institutional Uses.

(1) Religious purposes

(2) Educational purposes exempt by statute

(3) Library or museum as an accessory use only.

(4) Governmental offices and facilities, including post office, fire station and police station.

(5) Clinic licensed under Section 51, Ch. 111, General Laws but not a hospital licensed under said Chapter.

14.21.7 Transportation, Communication and Utility Uses.

(1) Bus, subway or railroad passenger station.

(2) Automobile parking lot or parking garage.

(3) Distribution center, parcel delivery center or delivery warehouse as accessory uses only.

(4) Telephone exchange, as an accessory use.

(5) Radio or television transmission station.

(6) Transformer station, substation, gas regulator station, or pumping station and related utility uses.

14.21.8 Other Uses. Any use not listed in subsections 14.21.1 through 14.21.7 may be allowed by the Planning Board in its approval of an Infill Development Concept Plan or subsequent Amendment, upon written determination by the Board that such use is consistent with the objectives of the District and with adopted City policies and guidelines applicable to Kendall Square.

14.22 *Multiple Uses in the Same Structure*. Within the District there shall be no restriction on combining different categories of use within the same building other than those imposed by the State Building Code or other federal, state or local regulations other than the Zoning Ordinance.

14.23 *Environmental Protection Standards*. No activity shall be permitted in the District unless it shall be in conformity with the following standards for environmental protection.

14.23.1 All dust, fumes, odors, smoke or vapor shall be effectively confined to the premises or so disposed of as to avoid air pollution.

14.23.2 Any noise, vibration or flashing shall not be normally perceptible without instruments at a distance of one hundred (100) feet from the premises.

14.23.3 All development proposals shall comply with Federal and State air pollution and water pollution control regulations, the City of Cambridge Ordinances, and other applicable environmental laws.

14.23.4 Except during construction activity on the lot all refuse and other waste materials shall be stored within buildings prior to collection and disposal.

(Ord. No. 2020-17, § 1, 2-3-2021; Ord. No. 2021-3, § xiv, 6-7-2021)

14.30 INTENSITY OF DEVELOPMENT REQUIREMENTS

14.31 *Applicability*. The amount and density of development within the Kendall Center MXD District shall be governed by the provisions of this Section 14.30.

14.32 *District Development Limitations*. There shall be limitations on the overall amount of development within the District as specified below.

14.32.1 The Aggregate gross floor area (GFA) of development in the District shall not exceed the sum of (i) four million, four hundred seventy three thousand (4,473,000) square feet, plus (ii) six hundred thousand (600,000) square feet that shall be limited to multi-family residential uses as permitted in Section 14.21.4(1), for a total Aggregate GFA not to exceed five million, seventy three thousand (5,073,000) square feet. Up to sixty thousand (60,000) square feet of such Aggregate GFA of four million, four hundred seventy-three thousand (4,473,000) in clause (i) of the preceding sentence, shall be allowable only by special permit pursuant to Section 14.72.

At least two hundred thousand (200,000) square feet of the GFA restricted to housing uses shall occur only within the area designated on the Zoning Map as the "Ames Street District" and has been approved by special permit dated March 27,2015 (the "Ames Street Residential Project").

Additionally, a building permit for construction of a residential project of at least four hundred thousand (400,000) square feet shall be issued prior to or concurrently with the issuance of a building permit for any project utilizing Utility Project GFA (as defined in Section 14.32.2 below). The design review process for a residential project of at least four hundred thousand (400,000) square feet shall also precede, or proceed concurrently with, the design review process for any project utilizing Utility Project GFA, in accordance with a special permit approving a Concept Plan as set forth in Section 14.32.2 below.

14.32.2 The Cambridge Redevelopment Authority (CRA) shall cause an Infill Development Concept Plan ("Concept Plan") to be prepared providing for the distribution of additional GFA for new

development within the District above and beyond 3,333,000 square feet ("Infill GFA") and meeting the requirements of Section 14.32.2.1. The Concept Plan shall be approved by CRA and by a special permit granted by the Planning Board in order to authorize the development of Infill GFA. The purpose of the Concept Plan is to provide a context and a conceptual governance structure for existing and potential future development that allows development to proceed in a flexible manner without requiring additional special permits for each building. The Concept Plan is expected to evolve over time, and with each subsequent development proposal updates to the Concept Plan shall be submitted. Amendments to the special permit may be granted as set forth below, but revisions to a Concept Plan shall not necessarily require amending the special permit so long as the revisions remain in conformance with the conditions of the special permit.

Any additional Infill GFA for commercial uses that is not the subject of the existing Concept Plan approved by Special Permit PB #315 on March 20, 2017 (as amended by Amendment #1 (Major) dated January 31, 2019) (collectively, the "Existing Concept Plan") may only be utilized in conjunction with the development by NSTAR Electric Company d/b/a Eversource (or its successors and assigns) of a substation within the District ("the Substation Project") and only on property within the District owned by the entity (or an affiliate thereof) that provided the land on which the Substation Project is to be developed. For the purposes of this Article, the eight hundred thousand (800,000) square feet of Infill GFA for commercial uses that is not the subject of the Existing Concept Plan may sometimes be referred to as "Utility Project GFA". The issuance of a building permit for the Substation Project shall precede or be issued concurrently with the issuance of a building permit for any project utilizing Utility Project GFA.

The MXD District is expected to achieve high standards for urban design, architectural design, environmental sustainability and open space design, and to transform the area into a recognizable center of activity and civic life for Kendall Square and the surrounding neighborhoods. The District should create open space to serve residents in the area, as well as workers, students from nearby institutions, and visitors. It should promote permeability at the edges of the District, and create public spaces that will feel welcoming and comfortable for all users.

14.32.2.1 Infill Development Concept Plan Requirements.

1) A current development program illustrating the size, location, and uses of existing buildings at the time of submission,

2) A site plan for all proposed new development within the District including locations of Innovation Space as described in Section 14.32.5 and Active Ground Floor Uses described in Section 14.36.

3) A table summarizing the current and proposed future uses on building sites in the District and indicating the potential size and use (or alternate uses) of future development.

4) A Phasing Plan describing the anticipated timing of commercial and housing development.

5) A Transportation Impact Study certified by the Traffic, Parking and Transportation Department in accordance with the requirements of Section 19.24, Paragraph (2) of this Zoning Ordinance, which shall also include a parking demand analysis and a projection of proposed reliance on transit and plans to address non-automobile use.

6) A housing program describing the distribution of new housing units, including affordable housing units, middle income housing units, and larger family units containing two (2), three (3) or more bedrooms. The housing program shall also describe the anticipated housing tenancy (rental/home ownership) and a description of efforts to provide a mixture of tenancy types.

7) An open space plan depicting the size, layout and configuration of all open space within the District. This open space plan shall illustrate the open space existing in the District and open space to be developed or modified within the District and / or outside of the District in accordance with Section 14.40. The plan shall provide a narrative discussion of public programming concepts for new and existing open space. The open space plan should also describe connections between the District and the neighboring PUD-KS District.

8) A plan describing street, public infrastructure, and utility improvements to be undertaken in coordination with the development program, including all proposed water, stormwater and sewage facilities, and (in conjunction with the Substation Project) the general location of the proposed substation, which shall also be submitted to the Department of Public Works for review.

9) A plan illustrating proposed building scale, height and massing, including a model and a study demonstrating the anticipated shadow and wind impacts of all proposed buildings taller than 100 feet, and a general description of proposed mitigation measures that will be employed. Additionally the plan will include a narrative describing the plan's compatibility, coordination and consistency with the urban design guidelines set forth in the Kendall Square Final Report of the K2C2 Planning Study ("K2 Guidelines") the Volpe Working Group's Planning & Design Principles dated July 20, 2017 (the "Volpe Guidelines") and the planning principles referenced in Section 14.32.2.

10) Proposed modifications, if any, to the development plans then approved pursuant to the Massachusetts Environmental Policy Act (MEPA) and an update on implementation of required mitigations from MEPA.

11) A sustainability plan describing concepts for how additional development will meet the requirements set forth in Section 14.74 below, including but not limited to district-wide approaches to energy, water and wastewater management, climate resiliency and waste management.

12) In order to effectuate the goals of promoting a vibrant retail environment and street-level activation, the Concept Plan shall include a Retail Plan to demonstrate how the project will improve and diversify the existing retail environment, create active street-level uses and attract and support the provision of local and independent businesses. Among other things, the Retail Plan shall:

a. Set forth target uses and users (and shall particularly target local/independent retailers and grocery store/pharmacy operators),

b. Designate an individual responsible for implementing the plan who shall serve as a point of contact with the CRA,

c. Describe the types of economic incentives which may be offered to tenants such as rental and fit-up allowances,

d. Provide a street activation plan for Main Street, Broadway and Ames Street, and

e. Identify opportunities for "start-up" retail uses at an entrepreneurial or developmental stage of business, which opportunities may, for example, be located in indoor or outdoor temporary space (such as kiosks, markets, food trucks and the like) or in leased space, or in some combination thereof.

The Concept Plan must include an annual reporting process to the CRA for the duration of the Kendall Square Urban Renewal Plan regarding the ongoing efforts on the part of the development to comply with the Retail Plan.

14.32.2.2 *Findings and Approval.* The Planning Board shall grant a special permit approving a Concept Plan upon finding that the new development identified within the plan meets the criteria for approval of a Planned Unit Development set forth in Section 12.35.3(3) of the Zoning Ordinance and the criteria for approval of a Project Review Special Permit set forth in Section 19.25 of the Zoning Ordinance. In making its findings, the Board shall consider the objectives set forth in the K2 Guidelines and the Volpe Guidelines. The approval of a Concept Plan shall serve to meet any applicable project review requirements of Article 19.000, and no additional Project Review Special Permit shall be required for new development that is identified within an approved Concept Plan. In addition, while the location of the Substation Project is to be shown on a Concept Plan, the actual development of the Substation Project shall not be included within the scope of a special permit approving a Concept Plan (but shall remain subject to all applicable regulations governing the construction of such projects).

14.32.2.3 *Conditions*. The special permit shall include a summary of approved Infill GFA in the aggregate, a description of the sites on which the development of Infill GFA is permitted, and the allowed range of development and uses on each site. Alternatives and variations may be allowed as set forth in the conditions of the special permit. The special permit shall also include conditions for project mitigation applicable to each Infill GFA development site. Development on a particular site identified in the Concept Plan shall be authorized if the conditions applicable to that site are met.

14.32.2.4 *Ongoing Review*. The conditions of the special permit shall set forth a process for future review and approval of the design of buildings, landscaping and other significant components of an approved Concept Plan. Such process shall include representation by the CRA, Planning Board and City staff, in compliance with the Kendall Square Urban Renewal Plan. The special permit may specify that such further review not be required for any building design that is determined to have been sufficiently advanced at the time of granting of the special permit as to meet the standards for project review as set forth in Section 14.73.

14.32.2.5 *Amendments*. Major or Minor Amendments to the Concept Plan may be approved as set forth in Section 12.37 of the Zoning Ordinance after review and approval by the CRA, with Major Amendments requiring the granting of a special permit by the Planning Board and Minor Amendments requiring a written determination by the Planning Board. The conditions of the special permit may specify what types of modifications would constitute Major or Minor Amendments.

14.32.[2.]6 Notwithstanding anything contained in this Section 14.32.2 to the contrary, (i) the GFA utilized for the Ames Street Residential Project and (ii) a maximum of 60,000 square feet of Aggregate GFA associated with a project seeking a special permit under Section 14.72.3, shall not be deemed to be Infill GFA for the purposes of this Article 14.

14.32.3 Any construction or change of use within the District, which would cause Aggregate GFA limitation of Section 14.32.1 to be exceeded, shall not be allowed.

(1) Compliance with this Section 14.32.3 shall be determined by the Superintendent of Buildings at all times including at the time of issuance of a building permit and at the time of issuance of a Certificate of Occupancy under Section 9.20 of this Ordinance.

(2) The CRA shall maintain a record of the Aggregate GFA within the District and shall provide an Aggregate GFA record to the Superintendent of Buildings and the Community Development Department (CDD) with any building permit or certificate of occupancy application utilizing Infill GFA. Such record shall separately account for development within the Ames Street District. These records shall be adjusted as appropriate, from time to time, including upon issuance, revocation or expiration of a building permit or certificate of occupancy and upon receipt of a certificate from the CRA as to an outstanding contract (including option) for the construction of a building. The CRA shall also maintain a record of cumulative GFA by land use for the purpose of determining and tracking open space requirements for existing and future development.

(3) Each applicant for a Special Permit, building permit or a certificate of occupancy shall submit to the Superintendent of Buildings information, including the following, as appropriate to the application, in order to determine compliance with this Section 14.32 and to demonstrate that the proposed construction and/or occupancy will not violate or be inconsistent with any outstanding contract or deed:

(a) measurement of total gross floor area of the building or building additions;

(b) measurement of future development commitments or limitations on the lot specified in deed restrictions, covenants or comparable legal instruments.

14.32.4 *Applicability of Section 19.20*. Notwithstanding the provisions of Section 19.22 (1), a structure, any portion of which contains residential uses as set forth in Section 14.21.4 (1) above, shall be subject to the provisions of Section 19.20 - Project Review Special Permit. In addition, notwithstanding the provisions of Section 19.22(1), any development within the area designated on the Zoning Map as the "Ames Street District" utilizing the 2010 Additional GFA under Section 14.32.3(2) above shall be subject to the provisions of Section 19.20-Project Review Special Permit, with the exception of Section 19.21.1. It is understood and agreed that the provisions of this Section 14.32.4 shall apply only to development proposals that are not included within the Infill Development Concept Plan process described in Section 14.32.2 above.

14.32.5 *Innovation Space:* A Concept Plan proposing more than 100,000 square feet of GFA for Office and Biotechnology Manufacturing Uses shall include a plan for Innovation Space meeting the requirements below. Innovation Space within the District must occupy GFA equal to, or in excess of, ten percent (10%) of the Infill GFA used for Office and Biotechnology Manufacturing Uses. Existing GFA within the District may be converted to meet this requirement. The Innovation Space requirement shall be met through the provision of office spaces of at least 10,000 square feet (or ten percent (10%) of the newly-constructed GFA for Office and Biotechnology Manufacturing Uses, if less) within a single building and may be satisfied by means of a lease to a single user who will operate and manage a facility meeting the requirements hereof:

(a) *Combined Spaces*. Developers of properties within the District may collaborate with other developers in adjacent zoning districts in the Kendall Square area (defined as zoning districts reviewed as part of the K2 Planning Study) to develop a Joint Innovation Space Plan. In such a case, the total square footage of joint Innovation Space must be large enough to satisfy the sum of the requirements, if any, for such participating developers and zoning districts.

(b) *Characteristics*. For the purposes of this Section 14.32.5, Innovation Space shall have the following characteristics:

(i) Durations of lease agreements (or other similar occupancy agreements) with individual office tenants shall be for periods of approximately one (1) month.

(ii) No single business entity may occupy more than 2,000 square feet or 10% of the entire Innovation Space provided in the District, whichever is greater.

(iii) The average size of separately contracted private office suites may not exceed 200 square feet of GFA.

(iv) Innovation Space shall include shared resources (i.e., co-working areas, conference space, classroom space, office equipment, showroom, shop or lab equipment, storage, circulation, supplies and kitchens) available to all tenants and must occupy at least 50% of the Innovation Space.

(v) Individual entities occupying Innovation Space may include small business incubators, small research laboratories, office space for investors and entrepre-

neurs, facilities for teaching and for theoretical, basic and applied research, product development and testing and prototype fabrication or production of experimental products.

(c) *Variations*. In approving a Concept Plan, Major or Minor Amendments to the Concept Plan, or through subsequent design review of individual building design per Section 14.32.2.4, the Planning Board may approve variations in the specific characteristics set forth above if the proposed Innovation Space is found to be consistent with the purposes of these characteristics.

(d) Inapplicability to Utility Project GFA. Notwithstanding the foregoing provisions of this Section 14.32.5. there shall be no Innovation Space requirement for any project utilizing Utility Project GFA (nor shall any such project utilizing Utility Project GFA be entitled to utilize Innovation Space in order to obtain a GFA Exemption under Section 14.32.6(3) below).

14.32.6 *GFA Exemptions*. The following items shall be excluded from the calculation of Aggregate GFA within the District for the purposes of determining compliance with the intensity of development requirements of Article 14:

(1) *Variances:* Any GFA within the District authorized by a variance issued by the Board of Zoning Appeal.

(2) *Outdoor Area Exemptions:* Private outdoor decks or balconies for multi-family residential or commercial development, up to eight percent (8%) of the building floor area.

(3) *Innovation Space:* Innovation Space GFA up to the lesser of either twenty percent (20%) of the Infill GFA dedicated to Office and Biotechnology Manufacturing Uses or one hundred five thousand (105,000) square feet. In order for the Innovation Space GFA to be exempt from the Aggregate GFA limitations, at least twenty five percent (25%) of the Innovation Space utilization (measured by square footage or shared space membership) must be set aside as below market rate space to be offered by the CRA or the City to qualifying tenants for short-term leases consistent with Section 14.32.5(b).

(4) *Retail:* The GFA occupied by retail and consumer service uses listed in Section 14.21.3, if the following conditions are met:

a) the excluded GFA is not located above the ground level of a building (provided, however, that the Planning Board may waive this limitation in specific instances where it finds that the proposed use would be uniquely beneficial to area residents, such as a grocery store or pharmacy);

b) the excluded GFA has frontage and direct pedestrian entrances onto Main Street, Binney Street, Broadway, Ames Street, Galileo Way, Pioneer Way, internal service drives or onto open space that is directly accessible and not more than one hundred (100) feet distant from at least one of the aforementioned streets or services drives;

c) the excluded GFA is occupied by separate retail establishments, each occupying no more than five thousand (5,000) square feet of floor area (provided, however, that the Planning Board may waive this limitation in specific instances where it finds that the proposed use would be uniquely beneficial to area residents, such as a grocery store, pharmacy, or an innovative retail format where multiple small vendors occupy a larger market space);

d) the ground level façade is designed with entrances and glazing materials such that at least 60% of the façade area is transparent providing visibility between the retail use and the public sidewalk or open space; and

e) A minimum of 25% of the retail space, exclusive of retail space used for grocery stores and/or pharmacies, consists of Independent and Local Retailers. "Independent and Local Retailers" shall include any retail operator, which does not own or operate more than ten (10) retail locations in the Commonwealth of Massachusetts with the same name and retail concept.

(5) *Middle Income Housing Units:* The square footage of any middle income housing units as defined in Section 14.35(c).

(6) *Transfer of Development Rights:* Any GFA acquired through the transfer of development rights provisions of the Zoning Ordinance.

(7) Electrical Substation: The Substation Project shall be exempt from Aggregate GFA calculation as well as the requirements as to Floor Area Ratio. Further, substation construction shall not constitute Infill GFA (or Utility Project GFA).

(8) Educational Lab, Classroom or Training Facility: Up to twenty thousand (20,000) square feet of educational, health or workforce training facilities operated to provide services to the general public (as opposed to private facilities that are solely accessible by tenants or occupants of commercial buildings within the District), which such services are either permitted as of right within the District in accordance with the provisions of this Article 14 or may otherwise be permitted by special permit.

14.33 *Lot Density Limitation*. In addition to the Aggregate GFA limitation established in Section 14.32, there shall also be a density limitation for each lot within the District. The following floor area ratios (as defined in Article 2.000) for each lot shall not be exceeded, except as provided in Sections 14.32.6 and 14.33.6. The area of the lot to be counted in determining FAR shall include land dedicated by the owner or former owner of the lot as public open space under Section 14.42.

Notwithstanding the provisions of the immediately preceding paragraph, there shall be no maximum floor area ratio for any project utilizing Infill GFA (including Utility Project GFA). However, the District Development Limitations in Section 14.32 shall continue to apply.

14.33.1 Industrial and Wholesale uses: FAR 4.0

14.33.2 Office Uses and Biotechnology Manufacturing Uses: FAR 8.0

14.33.3 Retail and Consumer Services uses: FAR 5.0

14.33.4 Residential uses:

(1) Multifamily housing: FAR 8.0

(2) Hotel/Motel: FAR 6.0

14.33.5 Other uses: FAR 4.0

14.33.6 If development on a lot is to include activities in more than one of the use groups above, the maximum FAR for the lot shall be the FAR for the use group containing the largest proportion of space on the lot.

14.34 *Building Height Limitation.* The maximum building height in the District shall be two hundred and fifty (250) feet. Notwithstanding the foregoing, one building within the District may reach four hundred (400) feet provided, however, that the occupied floors above two hundred and fifty feet (250) feet may only contain residential and associated amenity space. Additionally, the floorplate of any portion of a building above two hundred fifty (250) feet shall not exceed twelve thousand five hundred (12,500) square feet.

This requirement shall not apply to chimneys, water towers, air conditioning equipment, elevator bulkheads, skylights, ventilators, solar or wind energy systems, and other necessary features appurtenant to buildings, which are usually carried above roofs and are not used for human occupancy. These requirements shall also not apply to (i) domes, towers or spires above buildings if such features are not used for human occupancy and occupy less than ten percent (10%) of the lot area, (ii) wireless or broadcasting towers and other like unenclosed structures which occupy less than ten percent (10%) to the lot area or (iii) rooftop terraces and enclosed structures ancillary thereto (provided that such structures occupy less than ten percent (10%) of the lot area).

14.35 *Middle Income Housing Requirement*. For any project utilizing Infill GFA for multi-family residential use, the following requirements for Middle Income Housing Units shall apply in addition to the Inclusionary Housing requirements set forth below:

(a) Middle Income Units (as defined below) shall occupy floor area equal to at least five percent (5%) of the total floor area devoted to multi-family residential use. Such Middle Income Units shall be distributed throughout the residential building in a manner approved by the Planning Board, in consultation with City and CRA staff, in order to ensure that the Middle Income Units are of an appropriate location, size, configuration and quality for households intended to occupy such units. The floor area of Middle Income Units provided per this Section 14.35 shall not be counted against the Aggregate GFA limitation in the District.

(b) For the purposes of this Section 14.35, Middle Income Units shall be defined as residential dwelling units for which:

i. the occupancy is restricted to households whose total income does not exceed 120% of the median income of households in the Boston Standard Metropolitan

Statistical Area adjusted for family size, or such other equivalent income standard as may be determined by the Board of Trustees of the Affordable Housing Trust Fund;

ii. the rent (including utilities) does not exceed thirty percent (30%) of the income of the renting household or, in the instance of home ownership units, the monthly mortgage payment (including insurance, utilities and real estate taxes) does not exceed thirty percent (30%) of the income of the purchasing household, or such other equivalent standard as may be determined by the Board of Trustees of the Affordable Housing Trust Fund; and

iii. the Middle-Income Units are not also designated as Affordable Units for the purpose of meeting the Inclusionary Housing requirements in Section 11.200.

14.36 *Affordable Housing Requirement*. For any project utilizing the Infill GFA for multi-family residential uses, the following requirements shall apply in place of the Inclusionary Housing requirements set forth in Section 11.200 of this Zoning Ordinance, including but not limited to the requirements regarding the number of Affordable Units:

a) No less than twenty percent (20%) of the total floor area devoted to multi-family residential use shall be devoted to Affordable Units in accordance with the definitions and procedures set forth in Section 11.200 of the Zoning Ordinance. No increase in GFA beyond the limitations set forth in Section 14.32.1 shall be provided for a project or the District subject to the requirements of this Section 14.36.

b) The Planning Board may approve a Special Permit providing Affordable Units that are, on average, larger in area than the other dwelling units in the building. Where such units are larger in size and provide a greater number of bedrooms, they may be accordingly, fewer in number within the project, provided that the requirements set forth in 14.36(a) are satisfied.

c) If the Inclusionary Housing requirements of Section 11.200 are amended subsequent to September 1, 2015 such that more than twenty percent (20%) of the total number of dwelling units must be devoted to Affordable Units, then the twenty percent (20%) total floor area requirement set forth in this Section 14.35 shall be increased to the same percentage to which the requirements have been increased under said Section 11.200.

14.37 *Dwelling Units*. New multi-family residential development utilizing Infill GFA shall include a range of dwelling unit types and sizes. At a minimum, five percent (5%) of the residential GFA utilizing Infill GFA shall be devoted to dwelling units with three (3) bedrooms or more, which shall be designed to accommodate families with children.

To the extent legally permissible under Section 11.200 of the Zoning Ordinance and other applicable legal requirements, these three-bedroom units will all be Middle Income Units and Affordable Units; provided, however, that if three-bedroom units comprise more than five percent (5%) of the total floor area devoted to multi-family residential units, any such units in excess of five percent (5%) of the total floor area may be market-rate units.

14.38 *Active Ground Floors.* The ground floor of newly constructed buildings utilizing fifty thousand (50,000) square feet or more of Infill GFA, where that ground floor fronts onto Main Street, Broadway or Ames Street, must be occupied by (i) Retail and Consumer Service uses, as listed in Section 14.21.3, or (ii) active public gathering space (whether enclosed or open), along a minimum length of seventy-five percent (75%) of the building façade along this frontage; provided, however, that the requirement shall be forty percent (40%) for any building with a façade length of one hundred (100) feet or less along such frontage onto Main Street, Broadway or Ames Street. Dimensional variations and alternate uses may be approved by the Planning Board upon determining that the specific uses and designs proposed are consistent with the purpose and intent of this Section 14.38. Alternatively, if a Concept Plan provides for the redevelopment of existing buildings to include new Retail and Consumer Service uses along the ground floor of any of the identified street frontages, then the Planning Board may permit a reduction in the required length of active street frontage for new buildings for up to fifty percent (50%) of the length of new active street frontage provided in existing buildings and only if the Board finds that it results in a better outcome for the District as a whole. Banks and financial institutions shall not be considered active ground floor uses for the purposes of meeting this requirement.

14.39 *Letter of Commitment.* It is acknowledged and agreed that the Letter of Commitment dated December 21, 2015 by Boston Properties Limited Partnership is hereby replaced by the Letter of Commitment dated January 28, 2021 by the Cambridge Redevelopment Authority. As such, the Letter of Commitment dated December 21, 2015 by Boston Properties is declared null and void and of no further force or effect, and shall no longer be binding upon Boston Properties Limited Partnership or its successors and assigns.

(Ord. No. 2020-17, §§ 2—12, 2-3-2021)

14.40 OPEN SPACE REQUIREMENTS

14.41 *Definition of Open Space*. For purposes of this Section 14.40, open space shall mean a portion of a lot or other area of land associated with and adjacent to a building or group of buildings in relation to which it serves to provide light and air, or scenic, recreational or similar purposes. Such space shall, in general, be available for entry and use by the occupants of the building(s) with which it is associated, and at times to the general public, but may include a limited proportion of space so located and treated as to enhance the amenity of development by providing landscaping features, screening or buffering for the occupants or neighbors or a general appearance of openness. Open space shall include parks, plazas, lawns, landscaped areas, decorative plantings, roof decks, balconies, pedestrian ways listed in Section 14.45, active and passive recreational areas, including playgrounds and swimming pools. Streets, parking lots, driveways, service roads, loading areas, and areas normally inaccessible to pedestrian circulation beneath pedestrian bridges, decks or shopping bridges shall not be counted in determining required open space.

14.42 *District Public Open Space Requirement*. A minimum of one hundred thousand (100,000) square feet within the District shall be reserved or designated as public open space. No development shall be allowed which would reduce public open space in the District below one hundred thousand (100,000) square feet.

14.21.1 Public Open Space shall be open space reserved for public use and enjoyment as guaranteed through one or more of the following:

a) Retention by the Cambridge Redevelopment Authority;

b) Dedication to and acceptance by the City of Cambridge or other public entity;

c) Easements or deed restrictions over such land sufficient to ensure its perpetual reservation for public open space purposes.

d) Dedication, by covenant or comparable legal instrument, to the community use of the residents, lessees and visitors to the District for reasonable amounts of time on a regular basis;

e) Lease agreements of ninety-nine (99) years or longer from the private developer or owner to the City or other public entity.

14.42.2 In addition to the Public Open Space provisions above, development in the District shall provide that a combination of public open spaces and private but publicly accessible spaces such that the total open space areas in the District are equivalent to at least fifteen percent (15%) of the land area (excluding road rights-of-way) within the District. The open spaces within the District shall contribute to an interconnected network of public spaces in the broader Kendall Square neighborhood, accommodating a variety of activities for employees, residents and visitors, consistent with the place-making goals of the 2013 K2 Final Report.

14.43 *Project Based Minimum Open Space Requirement*. Each development project shall be required to contribute to the open space network of the District and/or the surrounding neighborhood, consistent, in the case of Infill GFA, with an open space plan approved through the Special Permit application as described in Section14.32.2 and consistent with the Open Space Requirements of Section 403 of the Kendall Square Urban Renewal Plan.

14.45 *Pedestrian Ways*.

14.45.1 Pedestrian ways listed and defined below may be counted toward the open space requirement determined in Section 14.43.

14.45.2 Pedestrian ways shall be designed to provide for public access and shall have the following meanings:

(1) An open pedestrian bridge is a continuous open bridge having a minimum width of six (6) feet and spanning a street, pedestrian way, access or service road or open space within a lot or between two adjacent lots.

(2) A raised pedestrian deck is a continuous, open platform at least twenty (20) feet in width which is at least eight (8) feet above the mean elevation of the lot and which extends over a street, pedestrian way, access or service road or open space within a lot or between two adjacent lots. It shall have direct pedestrian access from abutting

buildings, shall provide seating facilities and shall be landscaped including one tree, of at least three and a half (3 1/2) inch caliper, per five hundred (500) square feet of pedestrian deck.

(3) An enclosed pedestrian bridge is a continuous, enclosed space having a minimum width of eight (8) feet which spans a street, pedestrian way, access or service road or open space, making connections within a lot or between two adjacent lots. At least fifty (50%) percent of the surface area along its facades shall consist of transparent materials.

(4) An elevated shopping bridge is a continuous, enclosed space which spans a street, pedestrian way, access or service road or open space, making connection within a lot or between two adjacent lots. Such a shopping bridge shall have a minimum width of thirty-six (36) feet and a maximum width of forty-eight (48) feet, with retail uses as allowed in Section 14.21.3 along one or both sides of a pedestrian circulation route with a minimum width of twelve (12) feet. Such shopping bridge shall connect, at a minimum, at both ends to other internal or external pedestrian ways.

(5) A shopping arcade is a continuous, covered, but not necessarily enclosed, space which extends along the front facade of a building facing a street or pedestrian way within the District, and having retail uses as permitted in Section 14.21.3 accessible from it. It shall have a minimum continuous width, unobstructed, except for building columns, of at least twelve (12) feet, and also have a minimum continuous height of twelve (12) feet. Such shopping arcades shall have access from the abutting street or pedestrian way, having its floor at the same level and continuous with the sidewalk or other abutting pedestrian way. It shall be open to the public at all hours.

(6) An elevated shopping way is a continuous, enclosed space which extends along the front facade of a building facing a street or a pedestrian way and which has a minimum width of twelve (12) feet. It shall be located on the second level of the building and have a minimum continuous height of twelve (12) feet. It shall be open to the public for a minimum of twelve (12) hours daily, on weekdays, and shall have fronting retail uses as permitted in Section 14.21.3.

(7) A through block arcade is a covered space which provides a connection through a building and connects streets, open spaces, pedestrian ways, or any combination of the above, and is directly accessible to the public. A through block arcade shall have a minimum area of at least two thousand (2,000) square feet and a minimum width at any point of twenty (20) feet. A through block arcade shall have openings at the face of the building for entrance at least twelve (12) feet in width and ten (10) feet high. At least fifty (50%) percent of its aggregate interior frontage shall be retail use as permitted in Section 14.21.3. Vertical circulation elements, columns, pedestrian bridges and balconies are permitted obstructions provided they do not cover in the aggregate more than fifteen (15%) percent of the floor area of the arcade.

14.45.3 The minimum height of any pedestrian way above the surface of a public way over which it is constructed shall be fourteen feet (14'-0").

14.50 VEHICULAR ACCESS, PARKING AND LOADING

14.51 *Access*. Buildings erected in the Kendall Center MXD District need not be located on lots which have frontage on a street. However, provisions for access to all buildings by emergency and service vehicles in lieu of public street access shall be made possible by the layout and design of driveways, interior service roads, or pedestrian and bicycle circulation corridors not normally open to vehicular traffic to the reasonable satisfaction of the City of Cambridge Fire Department, and the Cambridge Traffic Department.

14.52 *Parking Requirements*. Off-street parking regulations for the Kendall Center MXD District shall be as follows:

14.52.1 No on-grade, open parking areas shall be allowed in the District except as provided for in Section 14.52.4.

14.52.2 There are no minimum parking requirements for new development in the District. All proposed development shall be restricted from constructing parking spaces, either on or off the lot within the District, beyond the maximum allowances of Table 1. If a development includes more than one category of use, then the number of spaces allowed for the development shall be the sum of the allowance for each category of use. Where the computation of required spaces results in a fractional number, only a fraction of one half or more shall be counted as one. The Planning Board may approve arrangements for shared parking of such residential parking spaces with commercial spaces or otherwise adjust the minimum parking requirements based on review and analysis of anticipated parking demand within the Transportation Impact Study.

At least ten (10) additional parking spaces reserved for car-sharing vehicles shall be provided by the first development project utilizing at least 100,000 square feet of Infill GFA. These spaces are not counted toward maximum parking space ratios. In the event that no car sharing or site-based car rental organization is prepared to offer services, the designated car share spaces may be rented on a monthly basis unless and until an organization agrees to provide the services, if there is clear documentation that such parking spaces are continuously offered to car sharing organizations.

Table 1 MXD District Parking Requirements

Use	*Maximum number of spaces*
Light Industrial uses allowed by Section 14.21.1	.8/1000 sq. ft.[1]
Office uses and Biotechnology Manufacturing Uses allowed by Section 14.21.2	.9/1000 sq. ft.
Retail and consumer establishment allowed by Section 14.21.3	.5/1000 sq. ft.
Residential uses allowed by Section 14.21.4	
Multifamily residences	.75 dwelling unit
Hotels or Motels	1/4 sleeping rooms
Public assembly uses allowed by Sections 14.21.3(2), 14.21.3(3), and Section 14.21.5	1/15 seats
Other uses allowed by Section 14.21.6 and 14.21.7	.9/1000 sq. ft.[2]

[1] All space measurements are in terms of square feet of gross floor area.
[2] For assembly spaces having no fixed seating.

14.52.3 The parking allowances specified in Table 1 may be satisfied by a lease agreement between the developer and the City, other public entity, or private consortium for use of parking spaces in a public or pooled private parking facility located within the District (or, in the case of the spaces required for residential uses, located outside of the District but within one thousand (1,000) feet of the residential building for which the parking is being provided, measured from property edge to property edge), provided that on a temporary basis, spaces required for residential uses may be within two thousand (2,000) feet of the residential building while permanent residential parking is being constructed. The total number of parking spaces leased and constructed within the district for development on a lot shall not exceed the maximum allowances provided for in Table 2.

14.52.4 Off-street, on-grade parking lots, not enclosed in a structure, may be constructed in the District only on an interim basis in anticipation of later construction of structured parking provided that there is compliance with each of the following:

(a) the future parking structure will be constructed within the District but it may be located either on or off the lot;

(b) construction of the future parking structure will commence within three years of the date of permit application for development on the lot;

(c) such future parking structure may be constructed and/or operated by the applicant or by a public or private entity;

(d) the future parking structure will contain sufficient spaces reserved for users of the lot to meet the parking requirements of the lot specified in Table 3; and

(e) binding commitments shall exist to guarantee, to the reasonable satisfaction of the Superintendent of Buildings, that requirements (a) through (d) above shall be satisfied. Such commitments shall be made by negotiated lease agreement, deed restriction, covenant, performance bond, or comparable legal instrument.

14.52.5 Regulations governing the layout and design of parking facilities in Article 6.000 of this Ordinance shall not be applicable in the MXD District. This Article 14.000 sets no such regulations for the MXD District.

14.52.6 *Bicycle Parking:* Bike parking shall be provided as set forth in Section 6.100 of this Zoning Ordinance; provided that in issuing a special permit approving a Concept Plan, the Planning Board may determine that the bicycle parking requirements for individual buildings shown on the Concept Plan may be met utilizing a campus planning approach toward bicycle parking.

14.52.6.1 *Intent:* To allow flexibility within the high-density environment of the MXD District while providing high quality, equitable, and thoughtfully planned bicycle parking and sustainable transportation amenities for all users, consistent with Section 6.108.2. Given the complexity

of infrastructure requirements of the Substation Project, the bicycle parking provisions set forth in Section 6.100 is infeasible, and a comprehensive bicycle parking plan will be needed to help to balance space constraints and competing uses on or near the ground level.

14.52.6.2 *Bike Parking Plan:* The bicycle parking plan may utilize a combination of the following strategies, or other design provisions that meet the principles of Section 6.108.3:

a) Public Bicycle Sharing Facilities: Where a new, standard-size Public Bicycle Sharing Station or larger is provided (i) on the lot, or (ii) on a site within five hundred (500) feet of the lot, with written approval of the City if located on a public street or other City Property, or otherwise by legally enforceable mutual agreement with the owner of the land on which the station is to be located. If Public Bicycle Sharing Station(s) are provided, each bicycle dock within that station may count for up to two (2) required bicycle parking spaces.

Should it be deemed beneficial to the operation of a Public Bicycle Sharing system by the Community Development Department and the Public Bicycle Sharing system operator, a developer may meet additional bicycle parking requirements by providing a secure, accessible and geographically central location for the storage and/or maintenance of the publicly shared bicycles. If a Public Bicycle Sharing storage and/or maintenance facility is provided, each designated bicycle storage space shall count for up to one-half (0.5) of a required bicycle parking space

b) Countercyclical Bicycle Parking Facility: As the District will contain residential and commercial uses having different peak parking demand times, multiple buildings may share parking facilities within three hundred (300) feet from each other. A shared bicycle parking space may count as a required bicycle parking space for both a residential use and a commercial use within separate buildings within a campus plan.

c) Complementary Valet Bicycle Parking: Bicycle parking may be provided through a valet bicycle parking program that is offered free of charge to users. In order to utilize valet bicycle parking, a developer must submit for the Planning Board's approval a plan describing:

i. The design of the valet bicycle parking facilities (which shall not be required to conform with the dimensional regulations of Section 6.100).

ii. The proposed number of attendants, number of bicycle parking spaces provided, hours of valet service operations, and other pertinent information.

When an approved valet bicycle parking program that was utilized to meet the requirements of Section 6.100 is discontinued, the property owner must either bring the bicycle parking spaces into full conformance with the bicycle parking requirements of Section 6.100 or seek approval from the Planning Board for an alternative approach.

The combination of the strategies above, or other provisions accepted by the Planning Board, shall allow a project to adjust the minimum required number of bicycle parking spaces, as supported through analysis made available to the Planning Board.

14.53 *Loading Requirements*. It is the intent of this Section that sufficient off-street loading facilities be constructed within the District to meet the needs of users located there. The requirements of Article 6.000 shall not apply in the MXD District.

14.53.1 All buildings in the MXD District shall provide the number of bays required in Table 3 unless they qualify for one or more of the exemptions below:

(1) In buildings with uses in more than one use group under Section 14.21, the loading bay requirements for that use consuming the most gross floor area shall be first computed and required. Only fifty (50%) percent of the floor area of the other uses shall be counted in determining the additional loading requirements.

(2) Where there are contractual arrangements for sharing loading and service facilities with other users in the District for a period of ten (10) years of more, a fifty (50%) percent reduction in the loading bay requirements computed in Subsection 14.53.1 or 14.53.1(1) shall be allowed. Such contractual agreement shall be guaranteed to the satisfaction of the Superintendent of Buildings by covenant, deed restriction, or comparable legal instrument.

Table 2 MXD Off-Street Loading Requirements
(Number of bays required by gross floor area or use)

GROSS FLOOR AREA BY USE

(1) Use	*Up to 25,000 sq. ft.*	*25,001—40,000 sq. ft.*	*40,001—100,000 sq. ft.*	*100,001—200,00 sq. ft.*	*Over 200,000 sq. ft. for each additional 150,000 sq. ft.*
Light Industrial Uses allowed by Section 14.21.1	1		2	3	1
Office Uses and Biotechnology Manufacturing Uses allowed by Section 14.21.2	0	1	1	2	1
Retail and consumer service establishments allowed by Section 14.21.3	1	1	2	4	1
Residential uses allowed by Section 14.21.4					
Multifamily residences	0	1	1	2	1
Hotels and motels	1	1	1	2	1
Public assembly uses allowed by Sections 14.21.3(2), 14.21.3(3), 14.21.5 (restaurants, entertainment and recreational facilities)	0	1	1	2	1
Other uses allowed by Section 14.21.6 and 14.21.7	0	0	1	2	1

14.53.2 Regulations governing the location, layout and design of loading facilities, specified in Section 6.90 of this Ordinance shall not be applicable in the MXD District. This Article 14.000 establishes no such regulations for the MXD District.

(Ord. No. 2020-17, §§ 13—15, 2-3-2021; Ord. No. 2024-2, 6-24-2024; Ord. No. 2025-1, 2-10-2025)

14.60 SIGNS

During the life of the Kendall Square Urban Renewal Plan as amended, the sign regulations of Section 7.10 shall not be applicable in the MXD District.

14.70 SPECIAL PROVISIONS

14.71 *Special Provisions Applicable within the Ames Street District*.

14.71.1 *Applicability*. The provisions set forth in this Section 14.71 shall apply solely within the Ames Street District. Where this Section 14.71 specifies some standards or makes some other requirement contrary to the standards or requirements set forth elsewhere in this Article 14.00 or in the Ordinance, the provisions of this Section 14.71 shall control.

14.71.2 *Lot Density Limitation*. Notwithstanding the Lot Density Limitations in Section 14.33, there shall be no maximum floor area ratio for Multifamily dwelling uses. However, the District Development Limitations in Section 14.32 shall continue to apply.

14.71.3 *Lot Minimum Open Space Requirement*. So long as the District Public Open Space Requirement in Section 14.42 is met, and there exists within the Ames Street District a minimum of fifty-three thousand (53,000) square feet of public open space (as defined in Section 14.42), there shall be no open space requirement for any individual lots within the Ames Street District.

14.71.4 *[Deleted]*

14.71.5 *Loading Requirements*. Where there are contractual arrangements for sharing loading and service facilities with other users in the Ames Street District for a period of ten (10) years or more, a sixty percent (60%) reduction in the loading bay requirements computed in Subsection 14.53.1 or 14.53.1(1) shall be allowed. Such contractual agreement shall be guaranteed to the satisfaction of the Superintendent of Buildings by covenant, deed restriction, easement or comparable legal instrument.

14.72 *Special Provisions Applicable Outside the Ames Street District*.

14.72.1 *Applicability*. The provisions set forth in this Section 14.72 shall apply solely within the portion of the MXD District consisting of lots fronting on Main Street that are not within the Ames Street District as such District is constituted as of October 1, 2014. Where this Section 14.72 specifies some standards or makes some other requirement contrary to the standards or requirements set forth elsewhere in this Article 14.00 or in the Ordinance, the provisions of this Section 14.72 shall control.

14.72.2 *Purpose and Intent*. In furtherance of the intent provided in Section 14.72, and in response to the Kendall Square planning process, the purpose and intent of this Section 14.72 is to provide an incentive for improvements that will remedy a gap in the urban street edge, propose retail and other ground floor activity to increase public engagement, reduce parking utilization levels and enhance sustainability, and upgrade design to current standards, in keeping with Kendall Square's identity as a world-renowned research center and a vibrant neighborhood.

14.72.3 *Special Permit*. Where improvements are proposed to be constructed on any lot within the portion of the MXD District fronting on Main Street that is not within the Ames Street District as such District is constituted as of October 1, 2014, and release of an open space covenant by the City will be necessary to accommodate such improvements, the Planning Board may grant a special permit allowing improvements containing incremental square footage of not more than 60,000 square feet of GFA within the limits of Section 14.32 in excess of the square footage of improvements located on such lot as of October 1, 2014. In granting such special permit, the Planning Board shall find the following:

(1) The lot upon which such improvements are proposed contained, as of October 1, 2014, no portion of a building located so as to create a street edge along any part of the Main Street frontage of such lot; and the proposed improvements will remedy that condition by including the establishment of a street edge in keeping with the urban nature of the area, on at least a portion of the Main Street building façade.

(2) The ground level of the proposed improvements fronting on Main Street will be designed to enhance public access and interaction.

14.72.4 *Retail and Consumer Services Uses*. If retail or consumer services uses are a part of any improvements authorized by special permit under this Section 14.72, the Gross Floor Area of any first floor or areas situated no more than one (1) floor below grade of such improvements devoted to such retail or consumer service uses shall be excluded from calculations of Gross Floor Area and FAR for all purposes of this Article 14.00 and the Ordinance, provided that the portion of any individual retail or consumer service use exceeding 5,000 square feet (or 10,000 square feet for a grocery, market or pharmacy retail use) shall be counted as Gross Floor Area for the purposes of calculating allowable FAR.

14.72.5 *Parking and Loading*. The improvements authorized by special permit under this Section 14.72 shall not require vehicle parking or loading facilities by reason of the incremental development authorized, and no additional parking spaces shall be provided by reason of improvements located on such lot beyond the number of parking spaces provided as of October 1, 2014.

14.72.6 *Bicycle Parking*. Additional bicycle parking shall be provided as required in Section 6.100 to the extent of the incremental development authorized by special permit under this Section 14.72, provided that any such spaces may be located anywhere on the lot or in such other location as the Planning Board may in its discretion approve.

14.72.7 *Open Space*. The Lot Open Space Requirements in Section 14.43 shall be inapplicable on any lot on which improvements are authorized by special permit under this Section 14.72, and the Planning Board may in its discretion waive any other open space requirement applicable to such lot under this Ordinance. Any ground floor publicly accessible feature, if so determined by the Planning Board, shall be excluded from calculations of Gross Floor Area and FAR for the purposes of this Article 14.00 and the Ordinance. The Planning Board

may grant a special permit for improvements to be located within the area of the open space covenant that would need to be released by the City notwithstanding that such open space covenant may not have been released prior to issuance of such special permit.

14.72.8 *Sustainable Design and Development*. The incremental development authorized by special permit under this Section 14.72 shall comply with the green building requirements of Section 22.20, provided that the Planning Board may in its discretion vary or waive any such requirements.

14.72.9 *Project Review*. Incremental development authorized by special permit under this Section 14.72 shall be subject to project review by the Planning Board under the provisions of Section 19.20.

14.72.10 *Incentive for Housing Development*. The incremental development authorized by special permit under this Section 14.72 shall be considered an Incentive Project pursuant to Section 11.200.

14.72.11 *Contribution to Community Fund*. Upon issuance of a Final Certificate of Occupancy for the incremental development authorized by special permit under this Section 14.72, the permittee shall contribute to a Community Fund, established by the City Manager, an amount equal to $10.00 multiplied by the number of square feet of new gross floor area for office and biotechnology manufacturing uses identified in Section 14.21.2 contained in such incremental development.

14.72.12 *Public Benefits*. The public benefits to be provided by a development for which a special permit may be granted under this Section 14.72, including those provided in Sections 14.72.10 and 14.72.11, shall be deemed to satisfy any future requirements for public benefits that may be adopted with respect to the MXD District or any portion thereof that may include any lot eligible for such special permit, including without limitation any other funding requirement or exaction, any requirements to provide innovation or other space or services, or any limitations relating to the progress or sequence of development of residential or other space, none of which shall apply thereto.

14.72.13 *Letter of Commitment*. The Letter dated March 26, 2015, by Richard McKinnon on behalf of the Whitehead Institute and received by the City Council as Communication #5 of March 30, 2015, and attached "Design Narrative/Zoning Guidelines" Memorandum prepared by Andy Pecora of Tsoi / Kobus & Associates, shall be binding upon the Whitehead Institute and its successors and assigns. The issuance of any building permit or certificate of occupancy authorized by a special permit issued pursuant to this Section 14.72 shall be conditioned upon certification by the Community Development Department and all other relevant City departments to the Inspectional Services Department that all portions of the aforementioned Letter are continuing to be met.

14.73 *Inter-Agency Design Review*. Review and approval of the Concept Plan, as described in Section 14.32.2, and subsequent building design review under Section 14.32.2.4 shall be conducted jointly by the Planning Board and the CRA. The Planning Board and CRA shall

hold at least one joint public meeting to consider the Concept Plan. In order to insure high quality architectural design and thoughtful adherence to the Concept Plan, evaluation of subsequent building proposes shall include the review of:

a) A site plan illustrating the new building proposal in context with existing and proposed new development within the District.

b) A proposed development program illustrating the size and location of uses within the building.

c) Building plans, sections, elevations, and rendering sufficient to describe the urban design setting and architectural character of the proposed building(s). A materials board shall be provided along with annotated building elevations.

d) A digital or physical model of the building within the context of neighboring buildings.

e) A project specific open space plan depicting the design of open space provided on site by the project and any Public Open Space contributions to the area to be executed by the Project. Additionally streetscape designs for building frontages.

f) A sustainability narrative describing how the development proposal will meet the requirements set forth in Section 14.74 below.

As set forth in Section 14.32.2.4, the procedures for ongoing design review of subsequent building proposals shall be further defined per the Concept Plan Special Permit.

14.74 *Sustainability*. New buildings constructed within the District shall comply with the provisions of Section 22.20 of the Ordinance. For those construction projects utilizing Infill GFA subject to Section 22.23, LEED certification at the Gold level or better is required and must enlist a Commissioning Authority to perform Enhanced Commissioning of the building's performance. In connection with the submission requirements of Section 22.24.2.a., the Developer of such buildings shall submit a Statement of Energy Design Intent produced through the EnergyStar Target Finder tool, or comparable method. New buildings in the District utilizing Infill GFA must incorporate an integrated design approach and incorporate best practices for meeting sustainability in the following five (5) areas:

a) *Energy and Emissions*. Each new building must conserve building energy and, to the extent applicable, reduce greenhouse gas emissions. The project proponent must evaluate the potential for on-site energy generation or the construction or expansion of co-generation or district energy facilities within the District. All new construction shall be developed to be Solar-Ready, allowing for the immediate installation of solar voltaic units or provisions of building systems to allow future solar installation. Building proposals shall include a study considering the feasibility of connecting to the existing district steam system or other energy co-generation facility in the area.

b) *Water Management*. The Developer, for each new building, must explore opportunities for:

(i) potable water use reductions,

(ii) storm water management using open spaces,

(iii) the incorporation of indigenous vegetation and,

(iv) storm water for irrigation purposes.

c) *Cool Roofs*. All new buildings approved in the District must employ Functional Green Roofs (as such term is defined in Article 22.000 of this Zoning Ordinance), high-albedo "white" roofs or a functionally equivalent roofing system.

d) *Monitoring*. All new buildings approved in the District shall be required to conform to the requirements of the Cambridge Building Energy Use Disclosure Ordinance, Chapter 8.67 of the Municipal Code.

e) *Rooftop Mechanical Equipment Noise Mitigation*. Sound emanating from rooftop mechanical equipment on all new or substantially altered structures shall be minimized by the adoption of best available and feasible practices regarding the location and sizing of equipment, the selection of equipment and sound attenuation measures.

(Ord. No. 2025-1, 2-10-2025)

14.80 INAPPLICABILITY OF CERTAIN OTHER REGULATIONS

Where this Article 14.000 specifies some standard or makes some other requirement contrary to a requirements elsewhere in this Ordinance, the provisions of this Article 14.000 shall control.

ARTICLE 15.000 CAMBRIDGEPORT REVITALIZATION DEVELOPMENT DISTRICT

15.10 SCOPE AND INTENT
15.20 USE REGULATIONS
15.30 INTENSITY OF DEVELOPMENT REQUIREMENTS
15.40 PUBLICLY BENEFICIAL OPEN SPACE REQUIREMENT
15.50 PARKING AND LOADING REQUIREMENTS
15.60 SIGNS
15.70 INAPPLICABILITY OF CERTAIN OTHER REGULATIONS
15.80 PUBLIC BENEFITS
15.90 SUSTAINABILITY REQUIREMENTS
15.100 CONSISTENCY WITH LETTER OF COMMITMENT

15.10 SCOPE AND INTENT

15.11 *Scope*. This Article regulates development within the Cambridgeport Revitalization Development District, located as shown on the Zoning Map as amended.

15.12 *Purpose*. The purpose of the District is to implement the Blue Ribbon Committee Report dated December, 1986 adopted by the Cambridge City Council February 9, 1987; to allow a diversity of land uses in close proximity within a limited area; to provide a transition from the existing Cambridgeport residential neighborhoods to the business oriented uses in the District; and to encourage interaction among activities located within the District; to provide for mixed income residential uses as an extension of the existing Cambridgeport residential neighborhood.

15.13 *Approach*. This Article is designed to fulfill the above purpose of the Cambridgeport Revitalization Development District by establishing controls which will facilitate development while protecting the public interest; by setting regulations which limit the aggregate amount of development within the District by setting other district wide requirements while permitting flexible development scale and configuration on individual lots within the District; by requiring a minimum of residential development and encouraging additional residential development within the District and by allowing mixed uses within the District.

15.20 USE REGULATIONS

15.21 *Permitted Uses*. The following uses are allowed in the Cambridgeport Revitalization Development District. All uses not listed within one of the use groups in this section shall be prohibited. All uses within the District shall comply with the environmental protection standards of Section 15.23.

15.21.1 Light Industry.

(1) Manufacturing and fabrication, assembly, finishing work (including packaging and bottling, but only as an accessory use) as permitted in Section 4.37 a and b.

(2) Wholesale business, as permitted in Section 4.37; only if affiliated with and accessory to another use or located on the same lot as other nonwholesale uses. Development on any lot in the district shall not be devoted exclusively to wholesale uses.

(3) Printing, binding, or related establishment, as permitted in Section 4.37f.

(4) Storage warehouse, cold storage building, as permitted in Section 4.37k, but as an accessory use only and not exceeding twenty thousand (20,000) square feet, (GFA), but not including storage or bailing of junk, scrap metal, rages, paper or other waste materials and not including outside storage of products or materials.

(5) Automotive repair garage as permitted in Section 4.37h, provided the use is contained within a building having other uses (including among other uses permitted, accessory parking) and further provided that the garage occupy no more than twenty percent (20%) of the area of the building.

15.21.2 Office Uses.

(1) All uses permitted in Section 4.34.

(2) Radio or television studio as permitted in Section 4.32f.

15.21.3 Retail and Consumer Service Establishments.

(1) Convenience Store, Merchandise Store, or Grocery Store.

(2) Eating and/or drinking establishment, whether or not liquor is sold or consumed, including Restaurant, Bar, Craft Beverage Establishment and food commissary.

(3) Fast Order or Quick-Service Food Establishment subject to the Special Permit requirements of Section 11.30, unless such use is enclosed in a structure principally containing other uses and is a Food Stand or Kiosk or Food Hall.

(4) Personal Services Establishment.

(5) Rental agency for autos or other products, but not including taxi companies. Such agencies shall be operated entirely within a building and no major automobile repairs shall be made on the premises.

(6) Auto Service Stations.

15.21.4 Residential Uses.

(1) One and two family dwellings.

(2) Townhouse development.

(3) Multifamily dwelling.

(4) Hotel or motel.

15.21.5 Entertainment and Recreational Uses.

(1) Dance Hall or Nightclub.

(2) Commercial Recreation Establishment, Fitness Center, or Outdoor Entertainment and Recreation Facility. Such recreation facilities shall be allowed only if they are located in or attached to structures containing other principal uses.

(3) Theater.

(4) Park or playground.

15.22 *Multiple Uses in the Same Structure*. Within the District there shall be no restriction on combining different categories of use within the same building other than those imposed by the State Building Code or other federal, state or local regulations other than the Zoning Ordinance.

15.23 *Environmental Protection Standards*. No activity shall be permitted in the District unless it shall be in conformity with the following standards for environmental protection:

15.23.1 All dust, fumes, odors, smoke or vapor shall be effectively confined to the premises or so disposed of as to avoid air pollution.

15.23.2 Any noise, vibration or flashing shall not be normally perceptible without instruments at a distance of one hundred (100) feet from the premises.

15.23.3 All development proposals shall comply with Federal and State air pollution and water pollution control regulations, the City of Cambridge Ordinances, and other applicable environmental laws.

15.23.4 Except during construction activity on the lot, all refuse and other waste materials shall be stored within buildings prior to collection and disposal.

15.24 *Required Retail Uses on Massachusetts Avenue*. For any building directly facing or abutting Massachusetts Avenue, a minimum of seventy-five percent (75%) of the linear ground floor frontage along Massachusetts Avenue, to a minimum average depth of forty (40) feet from the Massachusetts Avenue building façade, shall be occupied by Retail and Consumer Service uses as permitted by Subsection 15.21.3 or Entertainment and Recreational Uses as permitted by Subsection 15.21.5. This requirement shall apply in addition to the Use Limitations and Restrictions for the Central Square Overlay District set forth in Subsection 20.304.5.

15.24.1 Marketing of Required Retail Space. As of January 1, 2012, where it is proposed to create new retail space as required in Section 15.24, the proponent shall include a marketing plan for such retail space as part of the Submittal for any Project Review procedure that may be required in accordance with Section 15.36. At a minimum, such a marketing plan shall (1) set forth target uses and users (and shall particularly target local and/or independent retailers), (2) designate an individual responsible for implementing the plan who shall serve as a point of contact with the Community Development Department (through its Economic Development Division), and (3) describe the types of economic incentives which may be offered to tenants such as rental and fit-up allowances. Subsequent to completing all project review procedures, the proponent shall periodically consult with the Economic Development Division on the implementation of the marketing plan and shall, at a minimum, submit any further modifications or clarifications of the plan to the Economic Development Division for

review. The Community Development Department shall certify to the Inspectional Services Department that this requirement has been met prior to issuance of a Certificate of Occupancy for the required retail space.

(Ord. No. 2021-3, § xv, 6-7-2021)

15.30 INTENSITY OF DEVELOPMENT REQUIREMENTS

15.31 *Applicability*. The amount and density of development within the Cambridgeport Revitalization Development District shall be governed by the provisions of this Section 15.30.

15.32 *District Development Limitations*. There shall be a limitation on the amount of all development within the District and a minimum requirement of residential (excluding hotel and motel uses) development within the District, both as specified below.

15.32.1 The aggregate of all development in the District shall not exceed (i) one million eight hundred twenty thousand (1,820,000) square feet of gross floor area (GFA) in nonresidential buildings (which term for the purpose of this Article shall exclude parking facilities and portions of the buildings containing parking facilities and shall include buildings and portions of buildings containing hotel and motel uses and (ii) seven hundred twenty-five thousand (725,000) square feet of GFA in residential buildings.

Aggregate GFA development in the District is at any time the sum of the GFA (as defined in Article 2.000 of this Ordinance) of all such nonresidential buildings (i) which are then located in the District and (ii) which are being constructed or may be constructed in the District pursuant to then effective building permits.

15.32.2 As an incentive for the maximum allowable density as provided in Subsection 15.32.1 there is a minimum requirement of residential (excluding hotel and motel uses) development within the District of four hundred (400) dwelling units as set forth in Section 15.32.5. One hundred (100) dwelling units shall be made available for a period not less than thirty (30) years for families having an income of eighty percent (80%) or less of the median family income for the Metropolitan Boston Statistical Area adjusted for family size (hereinafter identified as low income units) and an additional fifty (50) units shall be made available for a period not less than thirty (30) years for occupants meeting the income limits established from time to time by the Massachusetts Housing Finance Agency for first time homebuyers, adjusted for family size (hereinafter identified as moderate income units). A minimum of two hundred and fifty (250) of the required dwelling units shall be located West of Sidney Street.

Notwithstanding the exclusion set forth in Section 11.202.2, the provisions of Section 11.200 of this Ordinance shall apply to any development in the District that is approved after January 1, 2012, except for those provisions that relate to authorizations for an increase in permissible density or intensity of use in Section 11.203.2(b) and (c), which shall not be available beyond the overall limitations for GFA established for the District by this Section 15.000.

15.32.3 Retail and consumer service establishments as permitted in Section 15.21.3 (excluding uses accessory to and within hotels and other accessory uses such as newsstands and cafeterias serving primarily occupants of the development within the District) and entertainment uses as permitted in Section 15.21.5(1) shall be limited to a maximum of one hundred and fifty thousand (150,000) gross square feet. Any such uses that are required by Section 15.24 shall be exempt from this limitation.

15.32.4 Any construction or change of use within the District which would cause aggregate or cumulative GFA or dwelling unit limitations of Subsections 15.32.1, 15.32.2, and 15.32.3 to exceeded shall not be allowed.

(1) Compliance with this Section 15.32.4 shall be determined by the Superintendent of Buildings at all times including at the time of issuance of a certificate of occupancy under Section 9.20 of this Ordinance.

(2) The Superintendent of Buildings shall maintain a record of the aggregate GFA of nonresidential buildings within the District, a record of the cumulative number of dwelling units in the District, the GFA of such dwelling units and a list of the units designated to satisfy the requirements of Section 15.32.2. These records shall be updated as appropriate, from time to time, including upon issuance, revocation or expiration of a building permit or certificate of occupancy and may relied on by any interested party to determine compliance with the provisions and requirements of this Article.

(3) Prior to the issuance of any building permits the Superintendent of Buildings shall on the basis of information submitted with the building permit application determine whether the minimum required residential development and the minimum required publicly beneficial open space are capable of being developed within the District.

In no case, however, shall the Superintendent of Buildings issue a building permit increasing the aggregate gross floor area of all buildings in the District beyond 1,000,000 square feet unless there exists at least one hundred ten (110) dwelling units of which at least twenty-seven (27) are low income dwelling units, and at least sixty thousand (60,000) square feet of area have been reserved or designated as publicly beneficial open space in partial satisfaction of the requirements of Section 15.40; nor shall the Superintendent of Buildings issue a building permit increasing the aggregate gross floor area of nonresidential buildings in the District beyond 1,850,000 square feet unless there exist at least four hundred (400) dwelling units of which at least one hundred (100) are low income units and at least fifty (50) are moderate income units.

(4) The application for a building permit or a certificate of occupancy shall be accompanied with the following information submitted to the Superintendent of Buildings, as appropriate to the application, in order to determine compliance with this Section 15.32.

(a) Measurement of total gross floor area of the new nonresidential buildings or building additions to nonresidential buildings;

(b) Measurement of gross floor areas of renovations or use changes within existing buildings;

(c) The total number of dwelling units in the new building, building addition or renovated building, the gross floor area of such units, and the number of such units being dedicated to families having an income maximum specified in Section 15.32.2;

(d) The aggregate or cumulative gross floor area of all nonresidential buildings located within the District;

(e) The aggregate or cumulative number of dwelling units located within the District, the aggregate or cumulative gross floor area of units and the aggregate or cumulative number of such units dedicated to families having an income maximum specified in Section 15.32.2;

(f) The development site(s) set aside for compliance with minimum residential development required pursuant to Section 15.32.2;

(g) The aggregate or cumulative gross floor area devoted to retail and consumer service establishments as permitted in Section 15.21.3 (but excluding accessory uses such as newsstands and cafeterias serving primarily occupants of the development within the District) and entertainment uses as permitted in Section 15.21.5(1);

(h) The aggregate total publicly beneficial open space provided in conformance with the requirements of Section 15.40.

15.32.5 Notwithstanding the provisions of Subsection 15.32.1, development in the District shall not exceed one million and seven hundred and fifty thousand (1,750,000) square feet of GFA in nonresidential buildings and four hundred (400) dwelling units, without first submitting a development plan of the District to the Planning Board and obtaining the approval of the Planning Board of the further proposed development within the District or any portion thereof. The development plan shall show the approximate location of all existing and proposed buildings, the aggregate GFA thereof, and the uses thereof; and all streets, parking facilities, the number of parking spaces thereof, curb cuts, offstreet loading areas and publicly beneficial open spaces within the District. There shall be submitted with the development plan sufficient additional information to enable the Planning Board to determine whether the existing improvements and uses thereof comply within the requirements of this Article at the time that such development plan is submitted. The development plan shall be accompanied by a traffic report containing such information as may be necessary to determine whether or not the provisions of subparagraph (v) of this Subsection 15.23.5 have been satisfied. In considering the development plan the Planning Board shall conform to all requirements of procedure applicable to requests for special permits (including requirements for public hearing and notice) pursuant to this Ordinance. The Planning Board shall approve any development plan under the provisions of this Subsection 15.32.5 if the following requirements are met:

(i) The improvements and the uses thereof existing at the time of the submittal of any development plan and the proposed improvements and uses thereof as depicted on the development plan shall be in conformity with the provisions of this Article;

(ii) There shall have been constructed a minimum of two hundred (200) dwelling units conforming to the provisions of Subsection 15.32.2 which include seventy-five (75) low income dwelling units;

(iii) There shall have been dedicated and installed at least one hundred thousand (100,000) square feet of publicly beneficial open space conforming to the provisions of Subsection 15.41;

(iv) The improvements existing at the time of the submittal of any development plan shall have been constructed substantially in accordance with design guidelines (including without limitation any restrictions on building heights) agreed to between the City and owner as may be amended pursuant to the Development Consultation Procedure; and

(v) Implementation of traffic mitigation measures which have as a standard the maximum generation of one thousand seven hundred (1,700) two way (inbound and outbound) vehicular trips at PM peak hour from all development within the District measured in accordance with the traffic mitigation agreement between Cambridge Community Development Department and owner as may be amended pursuant to the Development Consultation Procedure; to the extent that the total PM peak hour two way vehicle trip generation for all development with the District measured at the time of the submission of development plan pursuant to this Subsection 15.32.5 exceeds one thousand five hundred (1,500) trips but is less than the maximum one thousand seven hundred (1,700) trips, additional gross floor area shall be permitted up to the maximum limit of one hundred and fifty thousand (150,000) square feet pursuant to such traffic mitigation agreement.

15.33 *Building Height Limitation*. The maximum building height within one hundred (100) feet of the easterly sideline of Brookline Street south of Franklin Street shall be forty (40) feet. The maximum building height within two hundred twenty-five (225) feet of the easterly sideline of Brookline Street north of Franklin Street shall be eighty (80) feet. The maximum building height north of Green Street shall be eighty (80) feet, except that east of Blanche Street the height may be increased to ninety-five (95) feet provided that for at least two-thirds of the Massachusetts Avenue frontage of any building, there shall be a cornice line at or below sixty-five (65) feet, above which any taller portions of the building shall step back at least fifteen (15) feet from the Massachusetts Avenue facade. The maximum building height within two hundred (200) feet westerly of the westerly sideline of Sidney Street and within two hundred (200) feet northerly of the northerly sideline of Pacific Street shall be one hundred and five (105) feet. The remaining portion of the District shall have a maximum building height of seventy (70) feet except that buildings or portions thereof shall be allowed to exceed such seventy (70) feet maximum building height to the following extent. Easterly of Sidney Street up to one million ninety thousand (1,090,000) gross square feet of building area within not more than five (5) buildings or portions thereof may exceed the seventy (70) feet height limitation to the maximum building height of one hundred and sixty (160) feet and one of such buildings or portions thereof shall be permitted to the maximum building height of two hundred and five (205) feet if it is located easterly of Landsdowne Street.

15.34 *Maximum Floor Area Ratio Requirements*. For the area west of Sidney Street the following aggregate FAR limitations shall be in effect:

(1) For the subarea bounded by Sidney, Franklin, Brookline, and Pacific Streets, the maximum aggregate FAR shall be 3.0 except that for the portion of the subarea within one hundred and seventy-five (175) feet of the easterly sideline of Brookline Street the maximum aggregate FAR shall be 1.5.

(2) For the subarea bounded by Sidney, Green, Brookline, and Franklin Streets the maximum aggregate FAR shall be 3.0 with the following exceptions:

(a) For the portion of the subarea within 100 feet of the easterly sideline of Brookline Street, the maximum aggregate FAR shall be 2.0.

(b) Renovation of the existing building in the block (commonly known as the Fenton Shoe Building) shall be permitted to exceed the 3.0 aggregate FAR limitation, to no more than 4.4.

As used herein, the term "aggregate FAR" shall mean the ratio of Gross Floor Area of all structures within the applicable subarea (or portion thereof) to the total area of all lots within the applicable subarea (or portion thereof).

15.35 *Dimensional Requirements*. There shall be no minimum lot size in the District. There shall be no requirement with respect to minimum lot widths or minimum front, side or rear yards in the District.

15.36 *Project Review*. All development occurring after January 1, 2012 within the Cambridgeport Revitalization Development District shall be comply with the applicable project review requirements set forth in Article 19.000 of the Zoning Ordinance. The Cambridgeport Revitalization Development District shall be considered an area of special planning concern and a district in which the Project Review Special Permit provisions set forth in Section 19.20 are applicable, notwithstanding anything to the contrary in Section 19.22. All development within the District must comply with the Procedures specified in Article 19.000 except as herein modified:

(1) The Planning Board shall conduct the Development Consultation Procedure in lieu of the Community Development Department;

(2) The Public Advisory Consultation Procedure (Section 19.43) shall be modified so that the required consultation session shall occur within fourteen (14) days of the submission of the required documents and the required written comments shall be issued within fourteen (14) days of that session;

(3) The Submittal Requirements for any project review procedure shall, in addition to those detailed in the applicable Sections of Article 19.000, include the following:

(a) A schematic master development plan of the entire district with anticipated phasing as it is known at the time of submission;

(b) Details of the design of at least sixty thousand (60,000) square feet of publicly beneficial open space, to be provided for review prior to the issuance of building permits for nonresidential development exceeding nine hundred and fifty thousand (950,000) square feet;

(c) Details of the design of the one hundred thousand (100,000) square feet of publicly beneficial open space required under Section 15.32.5, to be provided or reserved prior to the issuance of building permits for nonresidential development exceeding one million five hundred thousand (1,500,000) square feet;

(d) A status report on the implementation of and effectiveness of the traffic mitigation measures in place including those counts of traffic generated within the District at intervals required under the Traffic Mitigation Agreement.

15.37 For those portions of the District along Massachusetts Avenue located within the Central Square Overlay District, notwithstanding anything set forth in Section 20.300, Public Advisory Consultation shall be undertaken by the Planning Board. Where applicable, the Planning Board shall be guided by the objectives and criteria contained in the publications "Central Square Action Plan", City of Cambridge, November 1987, and "Central Square Development Guidelines", June 1989, and by any additional relevant zoning or planning studies subsequently undertaken by or on behalf of the City. To the extend any provision in these documents is in conflict with the Design Guidelines for the Cambridgeport Revitalization Development District ("CRDD"), the Planning Board shall determine which guideline is most appropriate to be considered in the Public Advisory Consultation.

(Ord. No. 2025-2, 2-10-2025)

15.40 PUBLICLY BENEFICIAL OPEN SPACE REQUIREMENT

15.41 *Public Open Space Requirement*. As an incentive for the maximum allowable density as provided in Subsection 15.32.1 there is a requirement that a minimum amount of one hundred thousand (100,000) square feet within the District be permanently reserved or designated (without reference to location) as publicly beneficial open space accessible at ground level as set forth in Section 15.32.5. No development shall be allowed which would permanently reduce publicly beneficial open space in the District below one hundred thousand (100,000) square feet. A minimum of fifty thousand (50,000) square feet of contiguous publicly beneficial open space shall be located west of Sidney Street. The initial location of the required publicly beneficial open space shall be guaranteed through one or more of the following.:

15.41.1 Dedication to and acceptance by the City of Cambridge or other public entity;

15.41.2 Easements or deed restrictions over such land sufficient or ensure that reservation for public open space purposes for at least seventy-five (75) years or longer to the City or other public entity;

15.41.3 Lease agreements of seventy-five (75) years or longer to the City or other public entity;

15.41.4 Dedication, by covenant or comparable legal instrument, enforceable by the City and binding on the owner for seventy-five (75) years or longer.

15.41.5 Compliance with this provision shall be determined as satisfying the requirements of Section 19.59 of this Ordinance.

15.50 PARKING AND LOADING REQUIREMENTS

15.51 *Parking and Loading requirements*. Off Street parking and loading requirements for the Cambridgeport Revitalization Development District shall be the same as set forth in Article 6.000 and in the Schedule of Parking and Loading Requirements applicable to Residence C-3, Office 3, Business B and Industry B Districts.

15.51.2 The parking requirement may be satisfied in total or in part by a pooled private or public parking facility located anywhere within the District.

15.51.3 For any development that is approved in the District after January 1, 2012, the provisions of Section 6.37 pertaining to Bicycle Parking requirements shall apply regardless of whether the automobile parking requirements for the development are fulfilled with newly-constructed or pre-existing parking spaces.

15.60 SIGNS

The sign regulations of Article 7.000 applicable to Office and Industrial Districts shall be applicable in the Cambridgeport Revitalization Development District.

15.70 INAPPLICABILITY OF CERTAIN OTHER REGULATIONS

Where this Article 15.000 specifies some standard or makes some other requirements contrary to a requirement or standard established elsewhere in this Ordinance including any dimensional limitations contained in Article 20.300, the provisions of this Article 15.000 shall control.

15.80 PUBLIC BENEFITS

The obligations to limit development to the aggregate gross floor area set forth in Section 15.32.1, to provide residential development pursuant to Section 15.32.2 and to create publicly beneficial open space pursuant to Section 15.41 , and to conform to the requirements set forth in this Article 15.000 and all other applicable requirements set forth elsewhere in the Zoning Ordinance shall satisfy the obligations to provide public benefits, linkage payments or hereinafter required in the City of Cambridge.

15.90 SUSTAINABILITY REQUIREMENTS

15.91 *Green Building Standards*. Any new building that is approved in the District after January 1, 2012 and that is subject to the provisions of Section 22.20 of the Ordinance shall required to meet the requirements of the most current applicable LEED building rating system at the

level 'Gold' or better. Additionally, the submission requirements under Section 22.20 for each new building shall include a Statement of Energy Design Intent produced through the Energy Star Target Finder tool, or comparable method.

15.92 *Energy Monitoring*. All new buildings approved in the District after January, 2012 shall track and report energy use to the City using EnergyStar, Labs21, LEED-EBOM or a comparable mechanism. Such reporting shall occur on an annual basis beginning at initial building occupancy, then once every five (5) years thereafter.

15.93 *Cool Roofs*. All new buildings approved in the District after January 1, 2012 must employ Functional Green Roofs (as such term is defined in Article 22.000 of this Zoning Ordinance) or high albedo "white" roofs.

15.100 CONSISTENCY WITH LETTER OF COMMITMENT

The Letter of Commitment dated February 25, 2013, by Forest City Commercial Group shall be binding upon Forest City Commercial Group and its successors and assigns. The issuance of any building permit or certificate of occupancy for new development occurring after January 1, 2012 shall be conditioned upon certification by the Community Development Department and all other relevant City departments to the Inspectional Services Department that all portions of the Letter of Commitment dated February 25, 2013 by Forest City Commercial Group are continuing to be met.

ARTICLE 16.000 NORTH POINT RESIDENCE, OFFICE AND BUSINESS DISTRICT

16.10 SCOPE AND INTENT
16.20 USE REGULATIONS
16.30 ENVIRONMENTAL PROTECTION STANDARDS
16.40 DIMENSIONAL REGULATIONS
16.50 PARKING AND LOADING REQUIREMENTS
16.60 SIGNS
16.70 EASTERN CAMBRIDGE DESIGN GUIDELINES.
16.80 INAPPLICABILITY OF CERTAIN OTHER REGULATIONS

16.10 SCOPE AND INTENT

16.11 *Scope*. This Article regulates development within the North Point Residence District (the "District"), located as shown on the Zoning Map, as amended.

16.12 *Intent*. The purpose of the District is to limit as of right development due to limited road access and general traffic concerns. The intent of this Article 16.000 is to provide for use development of the area into a residential community with limited retail and office uses at a modest density through the provisions of this Article or at a higher density through the PUD process provided in Section 13.70.

16.20 USE REGULATIONS

16.21 *Permitted Uses*. The following uses are allowed in the District. All uses not listed within one of the use groups in this section shall be prohibited. All uses within the District shall comply with the environmental protection standards of Section 16.22. The provisions of Section 4.50 et seq. shall not apply to institutional uses permitted within the District pursuant to Section 16.21.5.

16.21.1 Residential Uses, Section 4.31. The following residential uses shall be permitted.

(1) One and two family dwelling (Sections 4.31 a, b, and c).

(2) Townhouse development (Section 4.31.d).

(3) Elderly congregate housing (Sections 4.31.e and f).

(4) Multifamily dwelling (Section 4.31.g and h).

16.21.2 Office and Laboratory Uses, Section 4.34. The following office and laboratory uses shall be permitted provided they are in a building in existence as of June 1, 2001 that, if vacant, has not been occupied by a residential use in the five years immediately preceding the time of application for a Certificate of Occupancy for the proposed office use, or if occupied, the current use is any office and laboratory use, Section 4.34; any retail business and consumer service establishment, Section 4.35; any light industry, wholesale business or storage use,

Section 4.37; or any heavy industry us, Section 4.38. In permitting such office and laboratory uses, additional Gross Floor Area up to 10% of the existing Gross Floor Area in the building shall be permitted provided the total FAR does not exceed 1.0.

(1) Office of a physician, dentist or other medical practitioner not located in a clinic listed in Subsection 4.33.d, as an accessory use occupying not more than twenty-five (25) percent of the aggregate gross floor area of all buildings on a lot, excluding from that calculation any Gross Floor Area devoted to parking facilities (Section 4.34.a).

(2) Office of an accountant, attorney, or other nonmedical professional person (Section 4.34.b).

(3) Real estate, insurance or other agency office (Section 4.34.c).

(4) General office use (Section 4.34.d).

(5) Bank, trust company or similar financial institution (Section 4.34.e).

(6) Technical office for research and development, laboratory and research facility (Section 4.34.f),

16.21.3 Retail or Consumer Service Establishments (Section 4.35). The following uses shall be permitted provided they are located on the first floor of the structure, front on a public way, and occupy no more than 10 (10) percent of the total Gross Floor Area of the structure in which they are located, excluding from that calculation any Gross Floor Area devoted to parking facilities located in the structure.

(1) Convenience Store, Merchandise Store, or Grocery Store (Sections 4.35 a-1, a-2, and a-3).

(2) Eating and /or drinking establishment, whether or not liquor is sold or consumed, including Restaurant, Bar, Craft Beverage Establishment, Food Stand or Kiosk, Food Hall, and food commissary (Sections 4.35 f-1, f-2, f-3, f-4, f-5, g).

(3) Fast Order or Quick-Service Food Establishment subject to the Special Permit requirements of Section 11.30 (Section 4.35.o).

(4) Personal Services Establishment (Section 4.35 c, and similar establishments).

(5) Bank, trust company or similar financial institution located on the first floor (Section 4.34.e).

16.21.4 Utilities, Section 4.32.g(1) and Section 4.32.g (2) by special permit subject to the following provisions: Any Telephone Exchange use [Section 4.32.g (1)] proposed having a floor area greater than four hundred (400) square feet shall only be permitted in a building in existence as of June 1, 2001 that, if vacant, has not been occupied by a residential use in the five years immediately preceding the time of application for a Certificate of Occupancy for the proposed office use or if occupied, the current use is any office and laboratory use, Section 4.34; any retail business and consumer service establishment, Section 4.35; any light industry, wholesale business or storage use, Section 4.37; or any heavy industry use, Section 4.38.

16.21.5 Institutional Uses.

(1) All uses permitted in Sections 4.33 a, b, c, d, e, f, and g.

(2) All uses permitted in Section 4.33 h, 1 or 2.

(3) Any institutional use not referred to in subparagraphs (1) and (2) above, but only by special permit from the Planning Board pursuant to Section 10.40.

16.21.6 Bus, Transit or Railroad Passenger Station, Section 4.32.a. Any such facility operated by the Commonwealth of Massachusetts or any of its agencies, subdivisions, or bodies politic.

16.21.7 Registered Marijuana Dispensary, Section 4.35 s, permitted by special permit from the Planning Board only within the Medical Marijuana Overlay Districts pursuant to the requirements of Section 20.700.

(Ord. No. 2021-3, § xvi, 6-7-2021)

16.30 ENVIRONMENTAL PROTECTION STANDARDS

No activity shall be permitted in the District unless it shall conform to the following standards for environmental protection:

16.31 All dust, fumes, odors, smoke or vapor shall be effectively confined to the premises or disposed of in compliance with applicable environmental laws.

16.32 Any noise, vibration or flashing shall not be normally perceptible without instrument measurement at a distance of one hundred (100) feet or more from the premises.

16.33 All development proposals shall comply with the Federal and State air pollution and water pollution control regulations, City of Cambridge Ordinances, and other applicable environmental laws.

16.34 Except during construction activity on the lot, all refuse and other waste materials shall be stored within buildings prior to collection and disposal.

16.40 DIMENSIONAL REGULATIONS

16.41 *Lot Density Limitation*. For each lot within the District, a permitted floor area ratio (as defined in Article 2.000) of 1.0 is hereby established for non-residential uses on each lot, and shall not be exceeded. The area of the lot to be counted in determining the floor area ratio shall include land dedicated (after adoption of this Article 16.000) by the owner or former owner of the lot, whether in fee or by easement, deed restriction, covenant or comparable legal instrument enforceable by the City of Cambridge or other public entity, as a public way, private way open to the public use, or public open space.

16.42 *Building Height Limitation*. The maximum building height for all portions of buildings containing non-residential uses within the District shall be forty (40) feet. The maximum building height for all buildings or portions of buildings containing residential uses shall be forty (40) feet or the applicable height limit in the Residence C-1 district, whichever is greater.

16.43 *Open Space*. Publicly beneficial open space, as defined by this ordinance, shall be provided on every lot and shall in the aggregate equal at least twenty (20) percent of the area of such lot.

16.44 *Other Dimensional Regulations*. There shall be no requirement with respect to minimum lot width. Minimum front, side or rear yards shall be as required in the Residence C-2 District.
(Ord. No. 2025-1, 2-10-2025)

16.50 PARKING AND LOADING REQUIREMENTS

16.51 *Parking and Loading Requirements*. Off-street parking and loading requirements shall be the same as currently specified in Article 6.000 and in the Schedule of Parking and Loading Requirements applicable to the Residence C-3, Office 3, Business B and Industry B districts, except as modified below.

16.51.1 Parking facilities may be located on the lot they serve or, by special permit from the Planning Board under Section 10.40 or Section 13.70, may be located in whole or in part in one or more pooled private or public parking facilities located anywhere within the North Point Residence District. The Planning Board shall not withhold a special permit permitting such a pooled parking facility so long as the limitations of the maximum amount of parking provided in this Section 16.50 are observed with respect to all affected lots, in the aggregate.

16.51.2 Maximum Parking Requirements: Accessory off street parking shall be provided as follows:

(1) Residential Uses: 1.5 spaces per unit maximum.

(2) General Office Use: 1 space per 625 gross square feet maximum.

(3) Technical Office for Research and Development Uses: 1 space per 840 gross square feet maximum.

All other uses shall be subject to the requirements of Article 6.000

16.51.21 Notwithstanding the provisions of Section 16.51.2 above, the total number of parking spaces serving non-residential uses in the North Point Residence District shall not exceed 2,500 spaces, allocated to each lot in the district at the rate of 1.2 spaces per 1,000 square feet of lot area.
(Ord. No. 2025-1, 2-10-2025)

16.60 SIGNS

16.61 The sign regulations of Article 7.000 applicable to Retail, Office and Industrial Districts shall be applicable in the District.

16.70 EASTERN CAMBRIDGE DESIGN GUIDELINES.

In reviewing any special permit that may be required for development in the North Point Residence District, the permit granting authority shall find that any development proposal is

generally consistent with the policy objectives set forth in the Eastern Cambridge Plan and the guidance provided in the Eastern Cambridge Design Guidelines. Any development permitted as-of-right is encouraged to be consistent with these Guidelines.

16.80 INAPPLICABILITY OF CERTAIN OTHER REGULATIONS

16.81 Where this Article 16.000 specifies some standard or establishes some other requirement contrary to or inconsistent with a requirement elsewhere in this Ordinance, the provisions of this Article 16.000 shall control.

ARTICLE 17.000 SPECIAL BUSINESS, OFFICE AND INDUSTRIAL DISTRICTS

17.10 SPECIAL DISTRICT 1
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17.10 SPECIAL DISTRICT 1

17.11 *Scope*. This Section 17.10 regulates development within the Special District 1 at Monsignor O'Brien Highway as shown on the Zoning Map of the City of Cambridge, as amended. Except as herein provided in this Section 17.10, all requirements of and regulations applicable to the Industry A-1 District shall apply equally to the Special District 1.

17.12 *Permitted Uses.* Uses permitted in the Industry A-1 District shall be equally allowed in the Special District 1 with the exception of the following:

(1) The following uses shall be permitted by special permit from the Board of Zoning Appeal:

a. Hotel and Motel Uses, Section 4.31.1 b.

b. Auto Wash, Section 4.36 h.

(2) The following uses shall be prohibited:

Parking lot or parking garage for private passenger cars, Section 4.32 b.

17.13 *Dimensional Regulations*.

17.13.1 Maximum FAR.

(1) The maximum FAR for any non-residential uses on a lot in the district shall not exceed 1.50.

17.13.2 Building Height Limitation. The maximum height permitted in the district shall be eighty-five (85) feet except as modified below:

(1) For lots lying northeasterly of Monsignor O'Brien Highway, the maximum height may be increased to one hundred and twenty (120) feet provided no portion of the building

rises above a forty-five (45) degree bulk control plane beginning at an elevation of eighty-five (85) feet above the O'Brien Highway front lot line and rising thereafter in a northeasterly direction.

(2) Notwithstanding the provisions of this Subsection 17.13.2 above no portion of a building containing non-residential uses may exceed thirty-five (35) feet within fifty (50) feet of the Special District 1/Residence C-1 zoning district line, or where the zoning district line splits a lot, within fifty (50) feet of the lot line located in the residential district.

17.13.3 Minimum Yard Requirements. Only the following yard requirements shall apply in the Special District 1.

a. Front Yard - a minimum three feet, measured from the property line, shall be required at the Monsignor O'Brien Highway lot line; no front yard shall be required however for any structure in existence as of May 1, 1989.

b. Side Yard - None

c. Rear Yard - None

d. Notwithstanding the requirements of Paragraphs a - c above all portions of buildings containing permitted non-residential uses shall be set back a minimum of twenty (20) feet from any Special District/Residence C-1 district line; said setback shall consist exclusively of landscaped green area as defined in Article 2.000. Where the zoning district line splits a lot the setback shall be measured from the lot lines located in the residential district.

17.13.4 [Deleted]

17.14 *Off Street Parking and Loading Requirements*.

17.14.1 [Deleted]

17.14.2 Maximum Parking Requirements. The maximum accessory parking permitted for all non-residential uses shall be 4.5 spaces for each one thousand (1,000) square feet of lot area. Notwithstanding the provisions of Section 6.31.3, accessory parking provided to meet the requirements of Section 17.14 shall not exceed that number permitted in this Section 17.14.2 under any circumstances.

17.15 *Special Development Standards*. All buildings constructed in the Special District 1 shall meet the following requirements.

17.15.1 Building Facades. Building facades should be designed so as to enhance the visual quality of the district. The following standards shall apply:

(1) A principal building entrance shall face Monsignor O'Brien Highway;

(2) Building facades and roof lines shall be articulated and expanses of unbroken wall planes shall be limited to thirty-five (35) linear feet for those facades facing public open spaces and/or public roadways;

(3) Ground floor levels shall include a minimum of thirty (30) percent transparency (non-reflective glass) to enliven and enrich the public environment where such levels contain active gross floor area (i.e. habitable space occupied by persons throughout the day) as defined in Article 2.000.

17.15.2 Tree Planting. At least one street tree, having a minimum caliper of three(3) inches, shall be located in the front yard provided along Monsignor O'Brien Highway, for each twenty-five (25) feet of frontage on the Highway. Where sufficient front yard is not provided said trees may be located within the public right of way consistent with the requirements for street tree planting established by the City of Cambridge.

17.15.3 Siting of Parking Areas. Parking areas shall not be located in the front yard required for any lot in the district. Enclosed parking facilities are encouraged. On grade open parking areas shall be located behind the building or buildings served or arranged in such a way as to minimize their visibility from public ways. Where enclosed, or structured parking is provided, the structure shall be finished in materials equal in quality to that used on the principal structures on the site to which the parking facility is accessory.

17.15.4 Mechanical Equipment and Refuse Storage Areas:

(1) No refuse storage areas nor mechanical equipment areas shall be located in a front yard within the district. Where such areas are outside a building they shall be screened from view from street and parking areas, residential districts and open space areas, by a six (6) foot high, durable nonliving barrier (or earth berm) planted with at least one shrub or vine for each ten (10) feet of barrier towards the abutting property.

(2) Mechanical equipment on the roof of any building shall be permanently screened from view from the ground.

17.16 Special District 1 shall be considered an area of special planning concern and shall be subject to the applicable development review procedures as set forth in Article 19.000 of this Zoning Ordinance.

17.17 Transfer of Development Rights. Notwithstanding the limitations of Article 2.000 with regard to the definition of "lot" and "owner", the Planning Board may by special permit authorize the transfer of some or all of the allowed gross floor area dedicated to permitted non-residential uses, as determined by Section 17.13.1 above, from one or more lots (donating lots) to one or more to other lots (receiving lots) anywhere within the Special District 1 without regard to location of the lot or lots or their ownership, provided the following conditions are met or findings made:

(1) The receiving lot and donating lot in combination are at least twenty thousand (20,000) square feet in area.

(2) The receiving lot is located northeasterly of Monsignor O'Brien Highway.

(3) The development plans for both the donating and receiving lots meet the intent and requirements of this Section 17.10 as a whole and this Subsection 17.17 and are both subject to the special permit authorization and such conditions as may be attached thereto.

(4) The resulting development on both, or the several, lots provides a superior site and building design than might occur without the special permit authorization. Among the conditions which may be reviewed by the Planning Board in reaching such a finding are the following:

a. Reduction in density of development is achieved on lots adjacent to residential uses or zoning districts;

b. An increase in open space and green area is achieved adjacent to residential uses and zoning districts;

c. Active gross floor area uses are located at the base and perimeter of the buildings constructed on the site (sites) where visible from public streets or residential uses;

d. Overall reduction in the bulk of the building(s) is achieved through location of some or all of the required parking below grade;

e. Parking located above grade is screened from view from public streets and residential uses by active gross floor area uses;

f. Improved building design is achieved through the use of quality masonry materials and other quality details as well as an improved pedestrian environment along major public streets.

(5) All site and building designs shall be subject to binding design review by the Planning Board.

(Ord. No. 2021-3, § xvii, 6-7-2021; Ord. No. 2024-2, 6-24-2024; Ord. No. 2025-1, 2-10-2025; Ord. No. 2025-2, 2-10-2025)

17.20 SPECIAL DISTRICT 2

17.21 *Scope*. This Section regulates development in Special District 2 as shown on the Zoning Map of the City of Cambridge, as amended. Except as herein provided this Section 17.20, all requirements of and regulations applicable to the Residence C-1 District shall apply equally to the Special District 2.

17.22 *Purpose*. It is the intent of this Special District 2 to encourage the establishment of residential uses in the district in a form and density compatible with the adjacent residential neighborhood. However, given the significant presence of nonresidential uses in the district, provision is made for the conversion of those existing nonresidential uses to other nonresidential uses more compatible with the residential neighbors, with the intent that all nonresidential uses will, over time, be replaced with permitted residential use.

17.23 *Use Regulations*. The uses allowed in the Residence C-1 district shall be equally allowed in Special District 2 except as modified by the following provisions.

17.23.1 Additional Permitted Residential Uses. Multifamily Dwelling, Section 4.31.g shall be permitted.

17.23.2 Permitted Non Residential Uses.

17.23.21 The following nonresidential uses, not otherwise permitted in a Residence B District, shall be permitted as of right in this Special District 2 provided the conditions set forth in Section 17.23.22 are met. Nevertheless, for purposes of the Zoning Ordinance, Special District 2 shall be considered a residential district.

(a) Section 4.34 - Office and Laboratory Use, Paragraph a (medical professional), Paragraph b (nonmedical professional), Paragraph c (agency office), Paragraph d (general office).

(b) Section 4.35 - Retail or Consumer Service Establishments, Paragraph q-1 (Art/Craft Studio) and q-2 (Performing Arts Studio).

(c) Section 4.36 - Outdoor Retail or Consumer Service Establishments, Paragraph a (Open-Lot Retail Sales Establishment).

17.23.22 The above nonresidential uses shall be permitted to occupy a nonresidential building in existence as of September 1, 1998 provided the current use of the building, if occupied, is any use described in Section 4.34 (office and laboratory use), Section 4.35 (retail business and consumer service establishment), Section 4.36 (open air and drive-in retail and service), Section 4.37 (light industry) or Section 4.38 (heavy industry). Where the building is unoccupied it may be so occupied with permitted nonresidential uses provided the building has not been occupied by a residential use in the five years immediately preceding the time of application for a certificate of occupancy for the new nonresidential use.

17.24 *Dimensional Requirements*. The dimensional requirements of the Residence C-1 district shall apply to the Special District 2, except as modified by the provisions set forth below.

17.24.1 Maximum FAR.

1. The FAR applicable to non-residential uses in the Special District 2 shall be 0.50.

17.24.2 [Deleted]

17.24.3 Other Dimensional Requirements.

1) [Deleted]

2) Where it is proposed to convert an existing nonresidential structure to residential use, and where that structure covers fifty (50) percent or more of its lot, the Minimum Ratio of open space to Lot Area may be reduced to the ratio existing on the site at the time of conversion, if any. However, if the land area required for provided parking outside the building, including required setbacks is less than the area of land that has no structure on it, the remainder of the open land shall have any paving material (asphalt,

concrete, or gravel) removed, topsoil of a minimum two foot depth shall be added, and the space shall be landscaped with trees, shrubs, and/or grass up to the maximum percentage of the lot required to be open space in the Ordinance.

3) The maximum building height for portions of buildings containing non-residential uses shall be forty (40) feet with a cornice height not to exceed thirty (30) feet. However, any portion of a building containing non-residential uses located fifty (50) feet or less from the boundary of any other zoning district with a maximum building height of thirty-five (35) feet or less or from the sideline of a street shall have a maximum height of thirty-five (35) feet.

17.25 *Protection of the Linear Park Open Space*. Any fences within the building setback of the Linear Park Open Space will be such that sight lines are minimally obstructed. Examples of conforming fences are wrought iron, wire, or chain link. Examples of non-conforming fences are board, stockade, or concrete walls.

(Ord. No. 2021-3, § xviii, 6-7-2021; Ord. No. 2025-1, 2-10-2025)

17.30 SPECIAL DISTRICT 3

17.31 *Scope and Purpose*. This Section 17.30 regulates development in Special District 3 as shown on the Zoning Map of the City of Cambridge, as amended.

It is the intent of this Special District 3 to permit a modest level of residential and nonresidential development in the District consistent with the public interest in protecting regulated wetlands where they occur within the district; maintaining flood storage capacity in the district consistent with federal regulations; minimizing the amount of additional traffic passing through congested intersections on arterial streets, and on local, neighborhood streets, that could provide access to the district; limiting stormwater runoff onto property located outside the district ensuring adequate visual buffers and screening of buildings and parking facilities from adjacent public parks and recreation facilities; minimizing the disturbance of existing soil within the district to limit dispersal and exposure to possible harmful residual substances in the soil; and in enhancing the parkway character of the Parkway Overlay District.

17.32 *Use Regulations*. The following uses are allowed in the Special District 3.

17.32.1 Permitted Residential Uses.

Section 4.32 - Residential Uses, Paragraphs a-l

17.32.2 Permitted Nonresidential Uses.

Section 4.34 Office and Laboratory Use, Paragraphs a-f

Section 4.33 Institutional Uses, all uses.

Section 4.35 Retail or Consumer Service Establishments, Paragraph a, c, f-1, q-1, q-2, and r provided that no individual retail establishments exceeds one thousand and two hundred (1,200) square feet in gross floor area, except that a single retail establishment containing

a grocery store or supermarket may total no more than fifty-five thousand (55,000) square feet provided that nothing in this section alters any other limitations as set forth in this district.

17.33 *Dimensional Requirements*. The following dimensional requirements shall apply in Special District 3.

17.33.1 Total Gross Floor Area Permitted

17.33.11 Total Development Permitted. The total Gross Floor Area (GFA) permitted in Special District 3 shall be seven hundred, eighty two thousand and five hundred (782,500) square feet, exclusive of Gross Floor Area occupied by the MBTA Red Line transit station and any structure in existence at the time of adoption of this Section 17.30 that is used exclusively for residential use. Total Gross Floor Area in the District is at any time the sum of the Gross Floor Area of all structures then located in the District (excepting the above described structures and those other structures required to be demolished prior to the issuance of a certificate of occupancy for any newly constructed building in the district) and those which are being constructed or may be constructed in the District pursuant to a then effective building permit. At no time may a building permit be issued for any structure that would result in the above Gross Floor Area limit for all structures in the District (excepting the above described structures and those other structures required to be demolished prior to the issuance of a certificate of occupancy for any newly constructed building in the District) being exceeded. Development within the District shall be further regulated as set forth below.

17.33.12 Allocation of GFA to Lots in Existence as of the Date of Adoption of this Section 17.30. In allocating the total permitted GFA within the district, each lot in existence as of the date of adoption of this Section 17.30 shall be allocated a minimum gross floor area equal to the allocation of a Floor Area Ratio of 0.45 to the lot area. No building permit shall be issued for any lot that would require the reduction of GFA allocated to any such existing lot below that which is allowed by the application of the FAR of 0.45 without the written consent by the owner of such existing lot. Future subdivision of any existing lot shall be permitted, but in no event shall the amount of GFA permitted on the original existing lot as set forth in this Section 17.33.12 be increased by such subdivision. For the purposes of this Section 17.33.12, a lot may consist of parcels of land held in separate ownership but developed as a single zoning lot.

17.33.13 Maximum Floor Area Ratio. There shall be no FAR limit with regard to the amount of GFA on any single lot within the District, subject to the total development limits set forth in Sections 17.33.11 and 17.33.12 above. Additional GFA above that permitted by the application of an FAR of 0.45 to any lot, may be constructed on any lot to the extent that the total amount of development (GFA) at the time within the entire Special District 3 is less than that permitted in Section 17.33.11 above.

17.33.2 [Deleted]

17.33.3 Minimum Lot Size and Minimum Lot Width.

1. The minimum lot size shall be twenty thousand (20,000) square feet.

2. There shall be a minimum width of one hundred (100) feet.

17.33.4 Minimum Yard Requirements. There shall be no minimum yard requirements in the district except as set forth below.

1. For those portions of a lot abutting Alewife Brook Parkway and Whittemore Avenue a minimum front yard setback of twenty-five (25) feet shall be required and it shall consist entirely of Green Area Open Space as defined in Article 2.000 with the exception of necessary driveways crossing the yard in a generally perpendicular manner to provide access to other portions of the lot.
2. For those portions of a lot abutting Rindge Avenue, any Open Space District, and any public park or recreation area, a minimum yard setback from that property line of fifty (50) feet shall be required. The first twenty-five (25) feet from the lot line of that required setback shall consist entirely of Green Area Open Space as defined in Article 2.000 with the exception of necessary driveways crossing the yard in a generally perpendicular manner to provide access to other portions of the lots. Notwithstanding any provision of Article 6.000, accessory parking, circulation and loading facilities shall be allowed within the second twenty-five (25) feet of the required setback where such setback is a front yard.
3. Notwithstanding the minimum yard requirements set forth in Paragraphs (1) and (2) above, the following yard setbacks shall be required for that portion of any new structure containing residential use; or for any new structure containing nonresidential uses that is within one hundred (100) feet of a lot containing a public park, recreation area, or a structure containing a residential use, or a residential or open space zoning district line: a side yard of (H+L)/7 and a rear yard of (H+L)/5.
4. Notwithstanding the minimum yard requirements set forth in Paragraph (1) above with respect to Whittemore Avenue, the buildings located on Whittemore Avenue existing at the time of adoption of this Section 17.30 shall be deemed to be in compliance with the minimum yard requirements of this Section 17.33.4. However, any alteration, reconstruction, extension, or structural change of such buildings shall be subject to the minimum yard requirements of Section 17.33.4 in the following circumstances:
   (a) The height or footprint of the existing building is increased or extended;
   (b) The installation of any loading bay or installation of any mechanical equipment on the roof that is otherwise exempt from the height limit or prohibited from any required yard; or
   (c) The demolition and reconstruction of more than twenty-five (25) percent of the area or volume of that portion of a building within the minimum yard required in Section 17.33.4.

17.33.5 Maximum Height. The maximum height in Special District 3 shall be fifty-five (55) feet for portions of buildings containing non-residential uses and 75 feet and six Stories Above Grade for residential uses except as modified below.

1. For that portion of a structure exceeding thirty-five (35) feet in height, a setback shall be required from any public park or recreation area equal to one and a half (1.5) feet for every foot of building height.

2. A maximum height of seventy (70) feet shall be permitted for portions of buildings containing non-residential uses within the following area bounded by:

   (a) A line parallel to and abutting the southerly façade of the structure known as the MBTA Red Line east headhouse;

   (b) A second line perpendicular to Line (a) and proceeding north from a point on line (a) one hundred and twenty (120) feet easterly of the southwesterly corner of the MBTA headhouse;

   (c) A third line proceeding in a westerly direction that is perpendicular to Line (b) and parallel to and three hundred and twenty (320) feet northerly of Line (a); and

   (d) The centerline of Alewife Brook Parkway.

17.34 *Parking and Loading Requirements*. The requirements of Article 6.000 shall apply in Special District 3 except as modified below.

17.34.1 Minimum Off Street Accessory Parking Requirements. There shall be no minimum parking requirement for any use within Special District 3.

17.34.2 Maximum Off Street Accessory Parking Requirements

1. No more than one thousand (1,000) parking spaces shall be permitted within Special District 3. That number may be increased by one paring space for each parking space, accessory to uses located within Special District 3 and in existence as of the date of adoption of this Section 17.30, that is removed permanently from Lots 7, 62, 70, 72, and 73 as shown on Assessor's Plat numbered 187, and Lots 25, 28, 29, 55, and 121 on Assessor's Plat numbered 188; the area occupied by such removed parking space shall remain unused or converted to any permitted residential use.

2. Parking facilities may be located in whole or in part in one or more pooled parking facilities located anywhere within Special District 3.

17.35 *Required Open Space*. Any combination of Private open space, Publicly Beneficial Open Space, or Green Area Open Space shall be provided on every lot and shall in the aggregate equal to at least twenty (20) percent of the area of such lot. Owners of lots within Special District 3 may pool such open space at any location within the District provided its permanency is guaranteed by dedication, easement, deed restriction covenant or comparable legal instrument. The surface area of the body of water known as Jerry's Pond shall not be included within the required open space.

17.36 Other Regulations.

17.36.1 Limitations on Construction Below Existing Grade. No portion of a building or structure, including parking structures, shall be located below the existing mean grade of the ground adjacent to the proposed building or structure prior to construction except as may be required to reasonably accommodate necessary utility systems and building foundations (e.g. elevator shafts, foundation pilings, etc.).

17.36.2 Limitations on Storm Water Runoff Beyond Property Lines. No net increase in the peak runoff rate of storm water beyond any property line shall be permitted as a consequence of any construction on a lot consistent with the state Department of Environmental Protection Stormwater management Policy. Property owners within the Special District may combine lots, retention areas and drainage facilities in meeting this requirement. Conformance with this requirement shall be certified by an engineer registered in the Commonwealth and competent to make such certification.

17.36.3 Access to Harvey Street. No building, structure, parking facility or access road within Special District 3 may have access to Harvey Street except as may be necessary for emergency vehicles.

17.36.4 Pedestrian and Bicycle Connections. Notwithstanding the provisions of Section 17.33.11, no building permit shall be issued that allows the total amount of development in the District (GFA) to exceed seven hundred and seven thousand and five hundred (707,500) square feet until a pedestrian and bike connection has been constructed, or the property owner has guaranteed such construction in a manner satisfactory to the City of Cambridge and prior to the issuance of any certificate of occupancy for space constructed pursuant to such building permit, within the District between the Linear Park and Whittemore Avenue in the vicinity of Madison Avenue, to a standard comparable to the improvements in the Linear Park and the Minuteman Bikeway.

17.36.5 Area of Special Planning Concern. Special District 3 shall be considered an area of Special Planning Concern. All development within the District shall comply with the development review procedures as specified in Article 19.000, except as modified below:

1. [Deleted]

2. The Public Advisory Consultation Procedure shall be modified so that the Community Development Department shall have ten (10) business days to certify that an application is complete, ten (10) business days from certification to hold a public meeting, and ten (10) business days thereafter to make a report.

3. In reviewing a proposal the Planning Board shall be guided by the provisions of the Design Guidelines for Special District 3.

17.36.6 Traffic Study. Before issuance of any building permit for construction of GFA within Special District 3, a Traffic Study shall be prepared and made available to the Planning Board for the applicable development review procedure as established in Article 19.000. The traffic study may be prepared for the total amount of development allowed in the District when the first building permit is requested and shall be applicable to all future building permits issued in the district except that traffic data shall be updated at least every five (5) years after the initial submission of the study whenever a new building permit is sought. The Traffic Study shall include the following elements.

1. A Transportation Demand Management Plan, which at a minimum shall include a program to subsidize transit passes for employees at the site in the amount of at least fifty (50) percent of the cost of such passes; joining the Alewife Transportation

Management Association (TMA); provision of secure indoor bicycle parking, showers, and lockers/changing rooms; and reservation of ten (10) percent of available parking spaces for ridesharing commuters.

2. Data, which at a minimum, shall include current traffic volumes, projected future trip generation, distribution of trips on area roadway network, evaluation of roadway operations and safety, and identification of traffic operation and safety improvements.

3. A commitment to implement the provisions of the Transportation Demand Management Plan and a commitment of the proponent to work in a cooperative manner to assist the City in implementing a neighborhood protection plan including reasonable traffic mitigation measures such as institution of one way streets, traffic calming, signal timing changes and other traffic control measures and initiatives which may affect traffic flows relating to development in the District.

4. A procedure by which implementation of the recommendations in the plan will be periodically monitored and reported to the Planning Board.

17.37 *Certification*. Before issuance of any building permit for new Gross Floor Area within Special District 3 the following certifications shall be made to the Superintendent of Buildings. In making an application for a building permit the applicant shall provide all information necessary to determine whether the requirements of this Section 11.70 with regard to limitations on GFA are being met.

1. Certification from the Community Development Department that the applicable development review procedure has been applied and conducted in accordance with Article 19.000 of the Zoning Ordinance, and that all other requirements of the District have been met.

2. Certification from the Conservation Commission that the requirements of the state Wetlands Act with regard to flood storage retention and peak storm water runoff have been met, or alternatively, delivery of an outstanding Order of Conditions issued under the Wetlands Act.

3. Certification from the Community Development Department and the Department of Traffic, Parking and Transportation, in consultation with the Planning Board, that the Traffic Study has been prepared.

4. Certification by the Community Development Department that all other requirements of the District have been met.

5. Failure to issue such certification, or notice that the requirements have not been met, within twenty-five (25) days of application for a building permit shall be deemed to be positive certification.

17.38 *Exemption from Section 11.500*. Section 11.500 of the Zoning Ordinance, adopted as Ordinance #1209, shall not apply to any construction in Special District 3 as regulated by this Section 17.30.

(Ord. No. 2021-3, § xix, 6-7-2021)

17.40 SPECIAL DISTRICT 4 AND 4A

17.41 *Scope and Purpose*. This Section 17.40 regulates development in Special Districts 4 and 4A as shown on the Zoning Map of the City of Cambridge, as amended.

It is the intent of these Special Districts 4 and 4A to permit an appropriate level of residential and nonresidential development in the Districts consistent with the public interest in protecting regulated wetlands where they occur; maintain in flood storage capacity consistent with federal, state and local regulations; restoring areas currently developed to urban uses to their natural state in order to eliminate harmful impacts on sensitive wetlands environments; limiting the extent of land covered by impervious surfaces; and minimizing the amount of additional traffic passing through congested intersections on arterial and neighborhood streets. Further enhancement of the parkway character of Concord Turnpike is also intended.

Except as herein provided, all requirements of and regulations applicable to the Office 2 district shall apply equally to Special Districts 4 and 4A.

Except as noted, the provisions of this Section 17.40 shall apply equally to Special District 4 and Special District 4A.

17.42 *Dimensional Requirements*.

17.42.1 Total Development Permitted.

17.42.11 Special District 4. Other than as may be temporarily allowed in Section 17.46.1, the Gross Floor Area (GFA) permitted in Special District 4 shall be nine hundred thousand (900,000) square feet, exclusive of GFA occupied by structured parking not otherwise exempt as set forth in Section 5.25. An additional four hundred thousand (400,000) square feet of GFA shall be permitted for the exclusive use of structured parking not otherwise exempt from the calculations as to GFA, as set forth in Section 5.25. The permitted GFA shall be further limited by the requirements of Section 17.45 below. There shall be no maximum FAR limit imposed on any lot within the Special District 4. The provisions of Section 5.25.3.42 shall not apply in this Special District 4.

17.42.12 Special District 4A. The maximum permitted FAR shall be 1.14 for all nonresidential uses except it shall be 1.5 for Dormitory Uses, Section 4.33.b.7.

17.42.2 Yard Requirements. The minimum yards required in the Districts may be waived by the Planning Board by Special Permit. In no case, however, shall the front yard required in the Parkway Overlay District, Section 11.60, be waived.

17.42.3 Maximum Height. The maximum height in the Districts shall be sixty (60) feet for buildings or portions of buildings containing non-residential uses, except that it may be increased to eight-five (85) feet for nonresidential uses and ninety (90) for residential uses, by special permit from the Planning Board. The special permit shall be granted where the applicant demonstrates to the satisfaction of the Board that the additional height will better serve the objectives of this Section 17.40 to increase the amount of open space in the district and to limit the extent to which building and other hard surfaces cover the ground.

17.43 *Parking and Loading Requirements*. The requirements of Article 6.000 shall apply in the Districts except as modified below.

17.43.1 Maximum Off-Street Accessory Parking Permitted in Special District 4. No more than one thousand and fifty-two (1052) parking spaces shall be permitted within Special District 4 and in no event shall the number of surface parking spaces in the district exceed the amount that existed at the time of enactment of this Section 17.40. Notwithstanding the provisions of Article 6.000, one thousand and fifty-two (1052) parking spaces shall be the maximum required for any amount of development in Special District 4, up to the nine hundred thousand (900,000) square feet of GFA (exclusive of GFA occupied by structured parking) permitted in Special District 4, or such temporary exceedance of that GFA limit as may be allowed by Section 17.46.1.

17.44 *Permanent Natural Areas in Special District 4*. No building construction, other than restoration following catastrophe, whether consisting of GFA or not, or construction associated with the provision of parking access to parking that is not accessory to a recreational use permitted in an Open Space zoning district, shall be permitted in the large Wetland Area described in Section 17.44.1 and the Little River Area described in Section 17.44.2. These areas consist substantially of natural wetland, and their associated uplands, or areas abutting the Little River that were formerly natural wetlands and uplands and which are intended to be preserved or restored as natural areas and open space by the provisions of Special District 4. Where buildings or parking facilities exist in these areas at the time of adoption of this Section 17.40, no expansion of the footprint of the buildings of their GFA and no expansion of the area devoted to parking facilities and access to them shall be permitted.

The MDC Parking Facility Area described below in Section 17.44.3 lies outside Special District 4 in an Open Space zoning district but provides accessory parking for uses located within Special District 4. Provisions in Section 17.45 are designed to facilitate the restoration of this area to its natural state as part of the Alewife Reservation.

17.44.1 Large Wetland Area. The Large Wetland Area shall be that area bounded on the northwest and west by the Belmont-Cambridge municipal boundary line; on the northeast by the northeastern lot line of lot #157, the northwesterly lot line of Lot #268, the southwesterly lot line of Lot #269, and the southwesterly lot line of Lot #270 (all of which lot lines constitute the Special District 4A zoning district boundary line) to its intersection with a line parallel to and 880 feet southeasterly of the Belmont-Cambridge municipal boundary line; on the southeast by a line parallel to and 880 feet southeasterly of the Belmont-Cambridge municipal boundary line; and on the south by the Special District 4 - Open Space zoning district line and the Special District 4-Special District 4A zoning district line. All lots are located on Assessor's Plat #267(1).

17.44.2 Little River Area. The Little River Area shall be that area located generally south of Acorn Park Road that is bounded on the north by the centerline of Acorn Park Road and on the west, south and east by the Special District 4 - Open Space zoning District line. The area encompasses all of Lots #260, 197, 258, and 259, located on Assessor's Plat #267(2).

17.44.3 MDC Parking Facility Area. This area is located within the Alewife Reservation and is designated as an Open Space zoning district on the City of Cambridge Zoning Map. It currently contains nonconforming accessory parking spaces that serve uses located in Special District 4.

The MDC Parking Facility Area shall be that area bounded on the west by the easterly lot line of Lot #258 and its southerly extension on Assessor's Plat #267(2), which is the Special District 4 - Open Space zoning district line; on the north by the Arlington - Cambridge municipal boundary line; and on the south by the centerline of the channel of the Little River.

17.45 *Allocation of Permitted Gross Floor Area in Special District 4*. No building permit, special permit or Certificate of Occupancy shall be issued for construction in Special District 4 that will result in a total amount of GFA in the Special District 4 district exceeding four hundred and sixteen thousand (416,000) square feet for all uses including structured parking, except as permitted below.

17.45.1 Phase One: Total Gross Floor area exceeding four hundred and sixteen thousand (416,000) square feet in the District. A building or special permit may be issued for construction in Special District 4 that will result in a total amount of GFA in the district greater than four hundred and sixteen thousand (416,000) square feet but in no case more than nine hundred and sixteen thousand (916,000) square feet for all uses including structured parking, but no case more than six hundred and sixty-six thousand (666,000) square feet for all uses exclusive of structured parking, provided the following requirements are met:

(a) All leases, licenses, rental agreements or agreements of any other description, between the Metropolitan District Commission (or any successor owner of the MDC Parking Facility Area) and the property owner/applicant, its affiliates, or their tenants for principal or accessory parking in the MDC Parking Facility Area described in Section 17.44.3 above are permanently terminated prior to or simultaneously with the issuance of a Certificate of Occupancy for new GFA whether for structured parking or otherwise, and provided that such parties shall not thereafter enter into any subsequent lease, license, rental agreement, or agreements of any other description for the same purposes in the MDC Parking Facility Area. Any owner of property in Special District 4 seeking a Certificate of Occupancy of new GFA that will result in the total amount of GFA in the district exceeding four hundred and sixteen thousand (416,000) square fee shall as a condition of such certificate be required to certify, in a form satisfactory to the City of Cambridge, that all leases, licenses, rental agreement, or agreements of any other description for principal or accessory parking held by said property owner/applicant, its affiliates or their tenants have been so terminated as required by the Paragraph (a).

(b) The owner applying for any building permit or special permit shall prepare a plan for the restoration of the MDC Parking Facility Area and the Little River Area such that at least ninety (90) percent of the area will consist of Green Area Open Space as defined in this Ordinance. Such Plan shall be prepared by the owner, and approved by the Planning Board, prior to the issuance of any building permit for any development authorized

under this Section 17.45.1. The owner of property shall actively seek approval for the design and implementation of said Plan from the Cambridge Conservation Commission, with respect to those areas under the Commission's jurisdiction and of the Metropolitan District Commission with respect to the MDC Parking Facility Area.

(c) The owner shall bear the cost of restoration of the MDC Parking Facility Area. The owner shall post a bond or other instrument satisfactory to the City of Cambridge with the Cambridge Conservation Commission in an amount equal to the estimated cost of restoration of the MDC Parking Facility Area as proposed in the plan required in Condition (b) above prior to the issuance of the first Certificate of Occupancy for any permitted structures authorized by this Section 17.45.1. Said bond shall be in force and effect until the area is restored or the construction authorized in Section 17.45.22 - Phase Three has been granted a final Certificate of Occupancy.

(d) For the purposes of Condition (a) above, Certificate by the Office of the City Solicitor that the lease or leases have been terminated shall be determined in establishing compliance with that requirement. For the purposes of Condition (b) above, approval of the restoration plan by the Cambridge Conservation Commission, the Metropolitan District Commission, or the Cambridge Planning Board, as necessary, shall be determinative in establishing compliance with that requirement. For the purposes of Condition (c) above, Certification by the Cambridge conservation Commission that the bond has been properly posted shall be determinative in establishing compliance with that requirement.

17.45.2 Phases Two and Three: Total Gross Floor Area exceeding eight hundred and fifteen thousand (815,000) square feet in the District.

A building or special permit may be issued for construction in Special District 4 that will result in a total amount of GFA in the district greater than nine hundred and sixteen thousand (916,000) square but in no case more than one million and three hundred thousand (1,300,000) square feet subject to the following provisions:

17.45.21 Phase Two. A building or special permit may issued for construction in Special District 4 that will result in a total amount of GFA in the district greater than nine hundred and sixteen thousand (916,000) square feet but in no case more than one million and two hundred and fifty thousand (1,250,000) square feet for all uses including structured parking, but in no case more than eight hundred and fifty thousand (850,000) square feet for all uses exclusive of structured parking, provided the following requirements are met:

a. Those existing buildings within the Little River Area identified as Buildings 1-5 on May 17.41 shall be demolished provided that the demolition shall not be required for any building for which demolition approval is permanently refused on historic or other statutory grounds by a local, state or federal agency of competent jurisdiction.

However, in the event that the demolition of one or more buildings is not allowed by the lawful action of a local, state or federal agency, the owner shall be obligated to

demolish any other buildings required to be demolished in Section 17.42.2 and shall restore to its natural state all portions of the Little River Area not occupied by buildings required to remain, as required in Section 17.42.2.

The owner shall restore, and bear the full cost thereof, at least fifty (50) percent of area within the Little River Area consistent with the plan for the restoration of that area required to be prepared in Condition (b) of Section 17.45.1. The required demolitions and restoration shall be complete prior to the issuance of a final Certificate of Occupancy for the nonstructured parking portion of the authorized construction.

b. The MDC Parking Facility Area shall have been restored to the plan identified in Section 17.45.1(b) above, or the applicant shall demonstrate to the satisfaction of the conservation commission that the restoration could not occur prior to the issuance of any final Certificate of Occupancy for any construction authorized by this Section 17.45.21. If the MDC has not authorized the applicant to restore the MDC Parking Facility Area within six (6) months following the applicant's written request for such authorization, the applicant may pay to the City of Cambridge the amount of the bond or other instrument, and the applicant shall have no further obligations with respect to the restoration of the MDC Parking Facility Area.

17.45.22 Phase Three. Any subsequent new construction for any use beyond that authorized in Section 17.45.21 - Phase Two above shall be permitted provided the total GFA permitted in Special District 4 shall not exceed nine hundred thousand (900,000) square feet, exclusive of GFA occupied by structured parking plus four hundred thousand (400,000) square feet of GFA exclusively for use as structured parking, provided the following conditions are met:

a. The conditions set forth in Section 17.45.21 - phase Two have been met.

b. All remaining buildings in the Little River Area shall have been demolished and the entire area restored to a natural state by the owner pursuant to the restoration plan required in Condition (b) of Section 17.45.1 above prior to the issuance of the Final Certificate of Occupancy for any construction permitted by this Section 17.45.22.

17.46 *Other Provisions*.

17.46.1 Total Gross Floor Area Temporarily Exceeding one million and three hundred thousand (1,300,000) Square Feet.

In the event that demolition of structures and restoration of their sites to a natural state as required in Section 17.45.2 above cannot reasonably occur before the issuance of any interim Certificate of Occupancy for any new construction permitted in Section 17.45.2, the total GFA permitted in Special District 4 may temporarily exceed one million, three hundred thousand (1,300,000) square feet, or any intermediate threshold established in this Section 17.40, for that period necessary to secure the demolition of the existing structures located in the Little River Area and the required restoration of a portion of or the entire area thereafter. No final Certificate of Occupancy for any construction authorized in 17.45.22 - Phase Two shall be issued until all requirements of Section 17.45.22 have been met.

17.46.2 Measurement of Compliance. Nothing in this Section 17.40 shall prevent the Planning Board, when issuing a special permit for any construction within the Special District 4, from establishing as a condition of the permit further monitoring and management provisions that will assure complete compliance within the requirements of this Section 17.40.

(Ord. No. 2022-9, 2-27-2023; Ord. No. 2025-1, 2-10-2025)

17.50 SPECIAL DISTRICT 5

17.51 *Scope*. This Section 17.50 regulates development within the Special District 5 as shown on the Zoning Map of the City of Cambridge, as amended. Except as herein provided in this Section 17.50, all requirements of and regulations applicable to the Office 2 District shall apply equally to the Special District 5.

17.52 *Permitted Uses.* Uses permitted in the Office 2 District shall be equally allowed in the Special District 5 with the exception of the following:

a. The following additional uses shall be permitted:

(1) Manufacturing, processing, assembly and/or packaging of articles and products listed in Section 4.37 a, and Section 4.37 b 4,5,9 provided the fully assembled product regularly produced shall not exceed two hundred (200) pounds in weight.

(2) Retail or Consumer Service Establishments, Section 4.35 a-1, a-2, a-3, and b as would otherwise be permitted in a Business B District, provided such uses are in a building containing uses permitted in an Office 2 District and do not exceed in area an amount equal to ten (10) percent of the gross floor area of the building in which they are located, or twenty-five thousand (25,000) square feet, whichever is less.

(3) Residential Uses Section 4.31 a-h shall be permitted as of right.

b. The following uses shall be prohibited:

Parking lot or parking garage for private passenger cars, Section 4.32 b.

17.53 *Dimensional Regulations*. The following Dimensional Regulations shall apply to all development proposals within the district.

17.53.1 Maximum FAR. The FAR applicable on any lot in the district shall not exceed 1.25 for all permitted non-residential uses, including hotels and motels. However, the applicable FAR may be increased by an additional 0.75 to a maximum of 2.0, by special permit from the Planning Board, for permitted dormitory uses, Section 4.33 b(7).

17.53.2 Building Height Limitations. The maximum height for permitted uses shall be eighty-five (85) feet and may be increased to one hundred (100) feet for all permitted uses excluding hotels and motels after the issuance of a special permit from the Planning Board.

17.53.3 Front Yard Requirements.

a. The minimum front yard setback from Memorial Drive for the principal front wall plane for any structure shall be twenty-five (25) feet, measured from the street line. The required front yard setback shall apply to any portion of a structure below ground as well as those portions of a structure above ground.

b. The required Memorial Drive front yard shall consist entirely of Green Area Open Space as defined in Article 2.000 with the exception of paving necessary for vehicular access. Such paved access area shall be limited to one twenty-four (24) foot driveway for each one hundred (100) feet of lot frontage, or fraction thereof, located so as to provide the most direct access to parking facilities located elsewhere on the site. It is preferred that all vehicular access be provided from other than Memorial Drive.

c. The Memorial Drive front yard shall contain at least one three and one-half (3 1/2) to four (4) inch caliper tree for every twenty-five (25) linear feet of street frontage.

d. All other yards shall conform to the requirements of the Office 2 District, except that there shall be no front or side yard setback requirements for the existing building that lies adjacent to the northwest sideline of the Main Line railroad right of way as shown on Assessor's Plat #64.

17.54 Off Street Parking and Loading Requirements.

17.54.1 Off street parking and loading requirements shall be as specified in Article 6.000 for uses in the Office 2 District except as provided below.

17.54.2 [Deleted]

17.54.3 Maximum Parking. The maximum accessory parking permitted for all uses in the district shall be one parking space for each six hundred and fifty (650) square feet of gross floor area, except that for residential uses, Section 4.31 a-h, there shall be no maximum accessory parking. No parking shall be provided which exceeds the maximum parking permitted, notwithstanding the provisions of Section 6.31.3.

(Ord. No. 2021-3, § xx, 6-7-2021; Ord. No. 2025-1, 2-10-2025)

17.60 SPECIAL DISTRICT 6

17.61 *Scope*. This Section 17.60 regulates development within the Special District 6 as shown on the Zoning Map of the City of Cambridge, as amended. Except as herein provided in this Section 17.60, all requirements of and regulations applicable to the Residence C-3 District shall apply equally to the Special District 6.

17.62 *Permitted Uses.* Uses permitted in the Residence C-3 District shall be equally allowed in the Special District 6 with the exception of the following:

a. The following uses shall be prohibited:

(1) Parking lot or parking garage for private passenger cars, Section 4.32 b.

(2) Hotel and Motel uses, Section 4.31.1 b.

17.63 *Dimensional Regulations*.

17.63.1 Yard Requirements. There shall be no minimum yard requirements for structures within the Special District 6.

17.63.2 Maximum Height. The maximum height permitted in the district shall be one hundred (100) feet except as permitted or further restricted below:

a. In that portion of the district lying southwesterly of a line, which line is the southeasterly projection of a line one hundred feet northeasterly of and parallel to the southwesterly sideline of Reardon Street the maximum height shall be sixty (60) feet.

b. The maximum height may be increased above one hundred (100) feet to a maximum of one hundred and eighty (180) feet in that portion of the district lying northeasterly of the line described in Paragraph a above and between the centerline of Vassar Street and the centerline of the main line railroad right of way after the issuance of a special permit by the Planning Board, provided that portions of buildings exceeding one hundred (100) feet but not exceeding one hundred and eighty (180) feet in height contain no more than 165,000 square feet of gross floor area, in total for the entire district.

c. In granting a special permit for additional height the Planning Board shall consider the following:

1. The height of the other buildings or portions of buildings constructed in the district is reduced to significantly below the one hundred (100) foot height permitted as of right.

2. In the vicinity of Fort Washington buildings are constructed below the one hundred (100) foot height permitted or green space is created so as to increase the views from Fort Washington across the MIT campus to the river and to the Boston skyline beyond.

3. The view corridors along residential Cambridgeport streets, such as Erie and Pacific Streets, are uninterrupted by buildings, wherever possible.

4. Green space is created in the district at grade where it can be visible to the general public.

5. The buildings are distributed in the district so as to create a visual penetration as viewed from the residential Cambridgeport neighborhood to the MIT campus and to the River Beyond.

17.64 *Off Street Parking and Loading Requirements*. Off street parking and loading requirements shall be the same as specified in Article 6.000 for uses in the Residence C-3 District except as provided below.

17.64.1 [Deleted].

17.64.2 Maximum Parking. The maximum accessory parking permitted for all uses in the district shall be one parking space for each six hundred and fifty (650) square feet of floor area,

except that for residential uses, Section 4.31 a-h, there shall be no maximum accessory parking. No parking shall be provided which exceeds the maximum parking permitted, notwithstanding the provisions of Section 6.31.3.

(Ord. No. 2024-2, 6-24-2024; Ord. No. 2025-1, 2-10-2025)

17.70 SPECIAL DISTRICT 7

17.71 *Scope*. This Section 17.70 regulates development within the Special District 7 as shown on the Zoning Map of the City of Cambridge, as amended. Except as herein provided in this Section 17.70, all requirements of and regulations applicable to the Business B District as modified by the Central Square Overlay District shall apply equally to the Special District 7.

17.72 *Additional Permitted Uses*.

a. The following uses shall be permitted as of right:

Assembly or packaging of articles (Section 4.37.a) and manufacture, processing, assembly and/or packaging of specified articles and products (Section 4.37 b, 1-15) shall be permitted on any lot on which any one or combination of the above uses has been established on or before January 1, 1991 and which uses remain in continuous operation thereafter. Once said industrial uses have been discontinued on the lot, the lot shall only be used for those uses permitted in the Business B District.

b. The following uses shall be prohibited:

Parking lot or parking garage for private passenger cars, Section 4.32 b.

17.73 *Dimensional Regulations*.

17.73.1 Maximum FAR. The maximum FAR for any lot in the district shall not exceed 3.0 for Dormitory Uses, Section 4.33 b(7) and 2.0 for all other permitted non-residential uses.

17.73.2 Additional Height. The maximum height permitted in the district may be increased to one hundred (100) feet by special permit from the Planning Board; all other height limitations imposed by the Central Square Overlay District shall apply.

17.74 *Off Street Parking and Loading Requirements*.

17.74.1 Off street parking and loading requirements shall be the same as specified in Article 6.000 for uses in the Office 2 District except as provided below.

17.74.2 [Deleted]

17.74.3 Maximum Parking. The maximum accessory parking permitted for all uses in the district shall be one parking space for each one thousand (1,000) square feet of floor area, except that for residential uses, Section 4.31 a-h, there shall be no maximum accessory parking. No parking shall be provided which exceeds the maximum parking permitted, notwithstanding the provisions of Section 6.31.3.

(Ord. No. 2025-1, 2-10-2025)

17.80 SPECIAL DISTRICT 8 AND SPECIAL DISTRICT 8A

17.81 *Special District 8*.

17.81.1 *Scope*. This Section 17.81 regulates development within the Special District 8 as shown on the Zoning Map of the City of Cambridge, as amended. Except as herein provided in this Section 17.81, all requirements of and regulations applicable to the Industry A-1 District shall apply equally to the Special District 8.

17.81.2 *Permitted Uses*. Uses permitted in the Industry A-1 District shall be equally allowed in the Special District 8 with the exception of the following:

a. The following additional uses shall be permitted as of right:

(1) Dormitory and resident fraternity or sorority, Section 4.33 b (7).

(2) Residential uses, Section 4.31 a-h.

(3) Heavy Industry, Section 4.38 e, but only if the specific use has been established on a lot on or before January 1, 1991 and which use shall remain in continuous operation thereafter. Once said industrial use has been discontinued, the lot shall only be used for those uses otherwise permitted in this Special District 8.

b. The following uses shall be prohibited:

(1) Parking lot or parking garage for private passenger cars, Section 4.32 b.

(2) All Retail, Business and Consumer Service Establishments Section 4.35 with the exception of 4.35 a (1) and 4.35 b-e.

17.81.3 Dimensional Regulations. The dimensional requirements of the Industry A-1 district shall apply the Special District 8 except as provided below:

17.81.31 Maximum FAR. The FAR applicable on any lot in the district shall be increased to 1.75 for permitted dormitory uses.

17.81.32 Building Height Limitations. The maximum height permitted in the district shall be sixty (60) feet for all portions of buildings containing non-residential uses except as modified by the provisions of Sections 17.81.32.1 and 17.81.5.

17.81.32.1 For all uses, the maximum height shall be further limited as follows:

(a) Any portion of a building containing non-residential uses exceeding a height of sixty (60) feet shall be set back a minimum of twenty (20) feet from the adjacent front property lines on all abutting streets.

(b) Height shall be limited to forty-five (45) feet in that area defined by a line one hundred (100) feet distant from and parallel to all front and side property lines of Fort Washington Park, lot #72, Assessor's Plat #66, to the extent that the described area is within the Special District 8.

(c) Height shall be limited to forty-five (45) feet for all portions of buildings containing non-residential uses within one hundred (100) feet from the boundary of the existing Residence C-1 District.

17.81.33 Yard Requirements. A minimum five (5) foot front yard setback shall be required for all development in the district.

17.81.33.1 Restrictions in Required or Provided Front Yard Setbacks. That area between the principal front wall plane of a building and a public street, whether required or provided, shall be devoted to Green Area Open Space as defined in Article 2.000 of this Ordinance, an expansion of the adjacent public sidewalk, or other landscaped or paved area devoted exclusively to pedestrian use and extending along the entire length of that portion of a lot abutting the street. Areas devoted to vehicular use are prohibited from this area with the exception of access drives located to provide the most direct access to parking facilities located elsewhere on the site. Said access drives shall be limited to a total of thirty (30) feet of width for each one hundred (100) feet of lot frontage. Where a lot is bounded by more than one street, the provisions of this subsection 17.81.33 shall apply fully only to a single street, which street shall be the principal, major or most important street abutting the lot. For all other streets the provisions of this subsection 17.81.33 shall apply only to the required front yard setback.

17.81.34 [Deleted]

17.81.4 Off Street Parking and Loading Requirements

17.81.41 Off street parking and loading requirements shall be the same as specified in Article 6.000 for the applicable base zoning district except as provided below.

17.81.42 [Deleted]

17.81.43 Maximum Parking. The maximum parking permitted for uses in the district shall be one parking space for each six hundred and fifty (650) square feet of gross floor area, except that for residential uses, Section 4.31 a-h, there shall be no maximum accessory parking. No parking shall be provided which exceeds the maximum parking permitted, notwithstanding the provision of Section 6.31.3; however the Planning Board may permit by special permit the number of parking spaces to exceed the maximum allowed under this Section 17.81.43 provided the number of parking spaces authorized by special permit does not exceed that number which would be permitted on the lot if the maximum parking ratio of 650 were applied to the maximum gross floor area permitted on the lot, notwithstanding the fact that all such allowed gross floor area is not in fact proposed to be constructed.

17.81.44 No special permit shall be issued in this district which permits the total number of parking spaces on a lot to exceed (a) that number permitted in Section 17.81.43 for development authorized by the special permit plus (b) any additional parking present on the site before the date of application for uses not located on the lot, which parking is provided as legally established required accessory parking, not exceeding the minimum required in Article 6.000 at the time of the granting of the special permit in the zoning district applicable to such uses.

Where the parking provided on the site at the time of the special permit approval exceeds that quantity permitted above, the approved Special Permit shall provide a schedule by which the parking on the development parcel shall be brought into compliance with this subsection 17.81.44.

17.81.5 Transfer of Development Rights and/or Additional Height to secure Publicly Accessible Open Space.

Transfer of permitted Gross Floor Area for non-residential uses, between two or more lots that may not be contiguous or held in common ownership shall be permitted in Special Districts 8, 8A, 9, and 10 pursuant to the provisions of Section 21.30 of the Zoning Ordinance. Additional height to accommodate such transferred GFA shall also be permitted subject to the limitations set forth in Section 21.30.

17.82 *Special District 8A*.

17.82.1 Scope. This Section 17.82 regulates development within the Special District 8, as shown on the Zoning Map of the City of Cambridge, as amended. Except as herein provided in this Section 17.82, all requirements of and regulations applicable to the Residence C-1A District shall apply equally to the Special District 8A.

17.82.2 *Permitted Uses.* Uses permitted in the Industry A-1 District shall be equally allowed in the Special District 8 with the exception of the following:

a. The following additional uses shall be permitted as of right:

(1) Dormitory and resident fraternity or sorority, Section 4.33 b (7).

(2) Residential uses, Section 4.31 a-h.

(3) Heavy Industry, Section 4.38 e, but only if the specific use has been established on a lot on or before January 1, 1991 and which use shall remain in continuous operation thereafter. Once said industrial use has been discontinued, the lot shall only be used for those uses otherwise permitted in this Special District 8.

b. The following uses shall be prohibited:

(1) Parking lot or parking garage for private passenger cars, Section 4.32 b.

(2) All Retail or Consumer Service Establishments Section 4.35 with the exception of 4.35 a-1 and 4.35 b, c, and f-1.

17.82.21 Retail, business and Consumer Service Establishments Section 4.35.a-1 and 4.35.b, c, and f-1 shall be permitted as of right provided they are located in a building with other permitted uses, are located on the first floor or the basement of the building, do not exceed twenty-five (25) percent of the total Gross Floor Area of the building in which they are located. No individual establishment may exceed two thousand and five hundred (2,500) gross floor feet in area.

17.82.22 The following uses shall be prohibited:

Parking lot or parking garage for private passenger cars, Section 4.32.b.

17.82.3 Dimensional Regulations. The dimensional requirements of the Residence C-1A district shall apply in the Special District 8A district except as provided below:

17.82.31 Maximum FAR. The FAR applicable on any lot in the district shall not exceed 0.75 for permitted nonresidential uses except it may be increased to 1.75 for permitted dormitory uses.

17.82.32 Building Height Limitations. The maximum height permitted in the district shall be sixty (60) feet for all portions of a building containing non-residential uses except as the permitted height may be modified by the provisions of Section 17.82.32.1 below.

17.82.32.1 For all uses, the maximum height shall be further limited as follows:

(a) Any portion of a building containing non-residential uses exceeding a height of sixty (60) feet shall be set back a minimum of twenty (20) feet from the adjacent front property lines on all abutting streets.

(b) Maximum height shall be limited to forty-five (45) feet in that area defined by a line one hundred (100) feet distant from and parallel to all front and side property lines of Fort Washington Park, lot #72, Assessor's Plat #66.

(c) Maximum height for portions of buildings containing non-residential uses shall be limited to forty-five (45) feet within one hundred (100) feet from the boundary of a Residence C-1 district.

17.82.33 Yard Requirements.

17.82.33.1 Restrictions in Required or Provided Front Yard Setbacks. That area between the principal front wall plane of a building and a public street, whether required or provided, shall be devoted to Green Area as defined in Article 2.000 of this Ordinance, an expansion of the adjacent public sidewalk, or other landscaped or paved area devoted exclusively to pedestrian use and extending along the entire length of that portion of a lot abutting the street. Areas devoted to vehicle use are prohibited from this area with the exception of access drives located to provide the most direct access to parking facilities located elsewhere on the site. Said access drives shall be limited to a total of thirty (30) feet of width for each one hundred (100) feet of lot frontage. Where a lot is bounded by more than one street, the provisions of this subsection 17.82.33.1 shall apply fully only to a single street, which street shall be the principal, major or most important street abutting the lot. For all other streets the provisions of this subsection 17.82.33.1 shall apply only to the required front yard setback.

17.82.33.2 Where lots abut the railroad right of way, there shall be no minimum yard requirement for that yard abutting the right of way.

17.82.34 [Deleted]

17.82.4 Off Street Parking and Loading Requirements.

17.82.41 Off street parking and loading requirements shall be as specified in Article 6.000 for the applicable base zoning district except as provided below.

17.82.42 Minimum Parking Requirement. There shall be no minimum parking requirements.

17.82.5 Interim Non-Residential Uses.

17.82.51 Any use allowed in Special District 8 may be allowed in the Special District 8A district on an interim basis by Special Permit from the Planning Board subject to the following conditions and limitations:

(a) The authorized use is located in a nonresidential building in existence as of June 1, 2001.

(b) A Special Permit under this section has been applied for by no later than January 1, 2003.

(c) The use is authorized for a period not to exceed seven years in total from the date at which a final Certificate of Occupancy for the authorized nonresidential use is issued by the Superintendent of Buildings.

(d) All nonresidential use on the site shall cease after expiration of the period granted by the special permit for the authorized nonresidential use. Thereafter the site shall only be use for residential uses.

(e) In no case may any special permit under this Section 17.82.5 authorizing an interim nonresidential use be granted after January 1, 2005.

(f) In granting a special permit under this Section 17.82.5 the Planning Board shall determine that the proposed nonresidential use will not unreasonably negatively impact the use of adjacent property for permitted residential uses.

17.82.6 Additional FAR and Uses to Secure Near-Term Housing Construction

17.82.61 The Planning Board may issue a special permit to permit a mixed-use development containing residential dwelling units and nonresidential uses, subject to the following provisions, limitations and restrictions.

(a) The application for the special permit is accepted by the Planning Board on or before January 1, 2005.

(b) The subject lot contains nonresidential GFA at the time of application for a special permit, in a building in existence as of June 1, 2001.

(c) The total FAR for the authorized development does not exceed 1.50.

(d) The development may contain any use permitted in Special District 8.

(e) At least one third of the authorized GFA is devoted to residential use with fifty (50) percent of the housing units (representing 50% of the residential GFA) affordable. Affordable units in excess of the number required under the inclusionary zoning provisions of the Cambridge Zoning Ordinance may be devoted to middle income housing using up to one hundred and twenty (120) percent of HUD median area incomes as a guideline for eligibility.

(f) All dimensional requirements of the Special District 8A are met unless the Planning Board, as part of the special permit, waives those provisions. In no case, however, may the height limits applicable in the SD-8A be waived.

(g) No Final Certificate of Occupancy may be granted for any nonresidential GFA unless construction of the authorized residential portion of the development is complete.

(h) In approving the development plan, the Planning Board shall determine that the housing uses are appropriately located to reinforce existing housing development and buffer that existing housing from nonresidential use on the subject lot and from other nonresidential development elsewhere within the SD-8A.

(Ord. No. 2021-3, § xxi, 6-7-2021; Ord. No. 2025-1, 2-10-2025)

17.90 SPECIAL DISTRICT 9

17.91 *Scope*. This Section 17.90 regulates development within the Special District 9 as shown on the Zoning Map of the City of Cambridge, as amended. Except as herein provided in this Section 17.90, all requirements of and regulations applicable to the Residence C-1 District shall apply equally to the Special District 9.

17.92 *Purpose*. This section 17.90 is intended to:

(a) promote in this portion of Cambridgeport significant housing development that becomes integrated with the existing neighborhood physically, architecturally, and socially;

(b) address current housing needs in Cambridge, especially the need for units affordable for households with children; and

(c) provide significant incentives for developing housing affordable by persons of low and moderate income, in accordance with Chapter 40A, Section 9 of the General Laws, while balancing the goals of affordability and low density.

17.93 *Use Regulations*. The uses allowed in the Residence C-1 district shall be allowed except as may otherwise be permitted in Section 17.97 below. Use variances are hereby expressly prohibited, Section 10.31 notwithstanding.

17.94 *Dimensional Requirements*. The dimensional requirements of the Residence C-1 district, as set forth in Section 5.31 shall apply in the Special District 9.

17.95 *Additional Use and Gross Floor Area Provisions for Existing Nonresidential Uses and Structures*.

(A) It is the intent of this Section 17.97 to encourage a gradual evolution of nonresidential uses in this Special District 9 now heavily nonresidential in character, from those least in harmony with the adjacent residential neighborhood and the residential uses ultimately desired in the district, to those nonresidential uses most compatible with residential uses and ultimately to residential uses exclusively. Therefore, in the Special District 9 the following additional uses not otherwise permitted in a Residence C-1 District shall be permitted as of right, provided the conditions set forth below are met.

Notwithstanding the provisions of Section 10.31, no variance for use shall be permitted in this Special District 9. For the purposes of Article 8.000 this Special District 9 shall continue to be considered a residential district and therefore Section 8.22, Paragraphs a and b shall not apply.

(1) All uses in Section 4.34, Office and Laboratory Uses, shall be permitted but only if the following conditions are met:

a. The building thereon, (or that portion of the building proposed to be reused) is vacant and not occupied by a residential use in the five years immediately preceding the time of application for a Certificate of Occupancy for the proposed use, or if occupied, the current use is any office and laboratory use, Section 4.34; any retail business and consumer service establishment, Section 4.35; any light industry, wholesale business or storage use, Section 4.37; or any heavy industry use, Section 4.38.

(2) All uses in Section 4.35, Retail Business and Consumer Service Establishments, Paragraphs a, c and d shall be permitted, but only if the following conditions are met:

a. The use existing at the time of application for a Certificate of Occupancy for the proposed new use, or that first legally established use immediately preceding the application for a proposed new use should the premises be vacant (provided that the previous use was in operation within the two years immediately preceding the application for a Certificate of Occupancy), is any retail business and Consumer Service Establishment, Section 4.35; or any light Industry, wholesale business and storage use, Section 4.37; or any heavy industry use, Section 4.38; and

b. The use shall occupy only that gross floor area meeting the use limitations of Paragraph a above.

(3) All uses in Section 4.37, light industry, wholesale business, and storage, Paragraphs a and b shall be permitted, but only if the following conditions are met:

a. The use existing at the time of application for a Certificate of Occupancy for the proposed use, or that first legally established use immediately preceding the application for a Certificate of Occupancy for a proposed new use should the premises be vacant (provided that the previous use was in operation within the two years immediately preceding the application for a Certificate of Occupancy), is light industry, wholesale business or storage use, Section 4.37; or any heavy industry use, Section 4.38; and

b. The use shall occupy only that gross floor area meeting the Use Limitations of Paragraph a above.

(B) Notwithstanding the provisions of Paragraphs (A) (1) - (3) above, in any structure containing a residential use which is less than fifty (50) percent of the total gross floor

area of the building within which it is located, that residential use may be replaced by any one of the permitted uses in Paragraphs (A) (1) - (3) above, which use shall thereafter be subject to all of the provisions of this Section 17.97.

(C) Notwithstanding the provisions of (A) (1) - (3) above, in any structure containing a use which is less than fifty (50) percent of the total gross floor area of the building within which it is located, that use may be replaced by any one of the permitted uses in Paragraphs (A) (1) - (3) above, which use shall thereafter be subject to all of the provisions of this Section 17.97.

(D) For structures satisfying the requirements of (B) above, in existence as of January 1, 1991 the maximum gross floor area on a lot devoted to nonresidential uses shall be limited by an FAR of .9.

17.96 *Nonconforming Structures*. Notwithstanding the provisions of Section 8.23, that portion of a legal, nonconforming structure lying within this Special District 9 which is destroyed or damaged by fire, explosion, or other catastrophe may be rebuilt or restored and used again, in the same way as it had been legally used immediately before the damage, without limit as to cost of such rebuilding or restoring provided the following conditions are met:

(a) Any restoration or rebuilding shall commence within twelve (12) months after the catastrophe;

(b) The structure shall be restored or rebuilt to the same design, including materials and design details as existed previously; or should the restoration not be feasible necessitating that the structure be rebuilt to a different design, said design shall be at least equal to the original design of the structure in quality of materials used, the quantity and quality of design details employed, and the compatibility of the site design with abutting properties;

(c) The Community Development Department shall certify to the Superintendent of Buildings that the above conditions have been met.

With respect to the comparability of newly designed buildings, the Community Development Department shall consult the Cambridge Historical Commission for structures greater than fifty (50) years old. Should the Community Development Department find that said conditions have not been met the restoring or rebuilding shall require a special permit from the Board of Zoning Appeal.

The restored or rebuilt structure shall in no aspect increase the nonconforming nature of the original structure; nothing in this Section 17.98, however, shall prohibit a rebuilding or restoring which reduces the nonconforming nature of the original structure.

17.97 *Standards for Issuance of Special Permit*. In addition to the general standards for the issuance of a special permit found in Section 10.40 of the Zoning Ordinance, the special permit granting authority shall in addition make the following findings:

1. The proposed development is consistent with the following goals and objectives:
   - To encourage mixed use development compatible with the Cambridgeport residential neighborhood with housing uses strongly encouraged along Brookline Street and over to Sidney Street;

- To promote street and sidewalk improvements to create a unified image and improve the physical and visual environment and tie the existing nonresidential district to the existing residential neighborhood; and
- To promote strong visual and pedestrian connections between the residential neighborhood and the MIT campus and the Charles River.

2. The development is consistent with the provisions of the South Cambridgeport Development Guidelines;

3. No National Register or contributing building is demolished or so altered as to terminate or preclude its designation as a National Register or contributing building; and

4. No National Register or contributing building has been demolished or altered so as to terminate or preclude its designation within the five (5) years preceding the application.

17.98 *Transfer of Development Rights and/or Additional Height to Secure Publicly Accessible Open Space*. Transfer of permitted Gross Floor Area for non-residential uses, between two or more lots that may not be continuous or held in common ownership shall be permitted in Special Districts 8, 8A, 9, and 10 pursuant to the provisions of Section 21.30 of the Zoning Ordinance.

(Ord. No. 2025-1, 2-10-2025)

17.100 SPECIAL DISTRICT 10

17.101 *Scope*. This Section 17.100 regulates development within the Special District 10 as shown on the Zoning Map of the City of Cambridge, as amended. Except as herein provided in this Section 17.100, all requirements of and regulations applicable to the Residence C-1 District shall apply equally to the Special District 10. The provisions of this Section 17.100 are not severable and if a court declares any such provision invalid then this Section 17.100 shall cease to operate in its entirety.

17.102 *Purpose*. This Section 17.100 is intended to:

(a) Promote in this portion of Cambridgeport significant housing development that becomes integrated with the existing neighborhood physically, architecturally, and socially;

(b) Address current housing needs in Cambridge, especially the need for units affordable for households with children; and

(c) Provide significant incentives for developing housing affordable by persons of low and moderate income, in accordance with Chapter 40A, Section 9 of the General Laws, while balancing the goals of affordability and low density.

17.103 *Use Regulations*. The uses allowed in the Residence C-1 district shall be allowed except as may otherwise be permitted in Section 17.107 below. Use variances are hereby expressly prohibited, Section 10.31 notwithstanding.

17.104 *Dimensional Requirements*. The dimensional requirements of the Residence C-1 District as set forth in Section 5.31 shall apply in the Special District 10.

17.105 *Additional Use and Gross Floor Area Provisions for Existing Nonresidential Uses and Structures.*

(A) It is the intent of this Section 17.107 to encourage a gradual evolution of nonresidential uses in this Special District 10 now heavily nonresidential in character, from those least in harmony with the adjacent residential neighborhood and the residential uses ultimately desired in the district, to those nonresidential uses most compatible with residential uses and ultimately to residential uses exclusively. Therefore, in the Special District 10 the following additional uses not otherwise permitted in the Residence C-1 District shall be permitted as of right, provided the conditions set forth below are met. Notwithstanding the provisions of Section 10.31, no variance for use shall be permitted in the Special District 10. For the purposes of Article 8.000 the Special District shall continue to be considered a residential district and therefore Section 8.22, Paragraphs a and b shall not apply.

(1) All uses in Section 4.34, Office and Laboratory Uses, shall be permitted but only if the following conditions are met:

a. The building thereon, (or that portion of the building proposed to be reused) is vacant and not occupied by a residential use in the five years immediately preceding the time of application for a Certificate of Occupancy for the proposed use, or if occupied, the current use is any office and laboratory use, Section 4.34; any retail or consumer service establishment, Section 4.35; any light industry, wholesale business or storage use, Section 4.37; or any heavy industry use, Section 4.38.

(2) All uses in Section 4.35, Retail or Consumer Service Establishments, Paragraphs a-1, a-2, a-3, and c shall be permitted, but only if the following conditions are met:

a. The use existing at the time of application for a Certificate of Occupancy for the proposed new use, or that first legally established use immediately preceding the application for a proposed new use should the premises be vacant (provided that the previous use was in operation within the two years immediately preceding the application for a Certificate of Occupancy), is any Retail or Consumer Service Establishment, Section 4.35; or any light Industry, wholesale business and storage use, Section 4.37; or any heavy industry use, Section 4.38; and

b. The use shall occupy only that gross floor area meeting the use limitations of Paragraph a above.

(3) All uses in Section 4.37, light industry, wholesale business, and storage, Paragraphs a and b shall be permitted, but only if the following conditions are met:

a. The use existing at the time of application for a Certificate of Occupancy for the proposed use, or that first legally established use immediately preced-

ing the application for a Certificate of Occupancy for a proposed new use should the premises be vacant (provided that the previous use was in operation within the two years immediately preceding the application for a Certificate of Occupancy), is light industry, wholesale business or storage use, Section 4.37; or any heavy industry use, Section 4.38; and

b. The use shall occupy only that gross floor area meeting the Use Limitations of Paragraph a above.

(B) Notwithstanding the provisions of Paragraphs (A) (1) - (3) above, in any structure containing a residential use which is less than fifty (50) percent of the total gross floor area of the building within which it is located, that residential use may be replaced by any one of the permitted uses in Paragraphs (A) (1) - (3) above, which use shall thereafter be subject to all of the provisions of this Section 17.107.

(C) Notwithstanding the provisions of Paragraphs (A) (1) - (3) above, in any structure containing a use which is less than fifty (50) percent of the total gross floor area of the building within which it is located, that use may be replaced by any one of the permitted uses in Paragraphs (A) (1) - (3) above, which use shall thereafter be subject to all of the provisions of this Section 17.107.

(D) For structures satisfying the requirements of (B) above and in existence as of January 1, 1991, the maximum gross floor area on a lot may be increased by an amount equal to twenty-five (25) percent of the gross floor area present on the lot on January 1, 1991.

17.106 *Nonconforming structures*. The provisions of Section 17.98, Special District 9, shall apply equally to this Section 17.108, Special District 10.

17.107 *Standards for Issuance of Special Permits*. In addition to the general standards for the issuance of a special permit found in Section 10.40 of the Zoning Ordinance, the special permit granting authority shall in addition make the following findings:

1. The proposed development is consistent with the following goals and objectives:
   - To encourage mixed use development compatible with the Cambridgeport residential neighborhood with housing uses strongly encouraged along Brookline Street and over to Sidney Street;
   - To promote street and sidewalk improvements to create a unified image and improve the physical and visual environment and tie the existing nonresidential district to the existing residential neighborhood; and
   - To promote strong visual and pedestrian connections between the residential neighborhood and the MIT campus and the Charles River.
2. The development is consistent with the provisions of the South Cambridgeport Development Guidelines;
3. No National Register or contributing building is demolished or so altered as to terminate or preclude its designation as a National Register or contributing building; and

4. No National Register or contributing building has been demolished or altered so as to terminate or preclude its designation within the five (5) years preceding the application.

17.108 *Transfer of Development Rights and/or Additional Height to Secure Publicly Accessible Open Space*. Transfer of permitted Gross Floor Area for non-residential uses between two or more lots that may not be contiguous or held in common ownership shall be permitted in Special Districts 8, 8A, 9, and 10 pursuant to the provisions of Section 21.30 of the Zoning Ordinance.

(Ord. No. 2021-3, § xxii, 6-7-2021; Ord. No. 2025-1, 2-10-2025)

17.200 SPECIAL DISTRICT 11

17.201 *Scope*. This Section 17.200 regulates development within the Special District 11 as shown on the Zoning Map of the City of Cambridge, as amended. Except as herein provided in this Section 17.200, all requirements of and regulations applicable to the Office 2 District shall apply equally to the Special District 11.

17.202 *Permitted Uses.* Uses permitted in the Office 2 District shall be equally allowed in the Special District 11 with the exception of the following:

a. The following additional uses shall be permitted:

(1) Manufacturing, processing, assembly and/or packaging of articles and products listed in Section 4.37 a, and Section 4.37 b 4,5,9 provided the fully assembled product regularly produced shall not exceed two hundred (200) pounds in weight.

(2) Retailor Consumer Service Establishments, Section 4.35 a-1, a-2, a-3, and b as would otherwise be permitted in a Business B District, provided such uses are in a building containing uses permitted in an Office 2 District and do not exceed in area an amount equal to ten (10) percent of the gross floor area of the building in which they are located, or twenty five thousand (25,000) square feet, whichever is less.

(3) Residential Uses Section 4.31 a-h shall be permitted as of right.

b. The following uses shall be prohibited:

Parking lot or parking garage for private passenger cars, Section 4.32 b.

17.203 *Dimensional Regulations*. The following Dimensional Regulations shall apply to all development proposals within the district.

17.203.1 Maximum FAR.

a. The FAR applicable on any lot in the district shall not exceed 1.25 for all permitted non-residential uses, including hotels and motels. However, the applicable FAR may be increased by an additional 0.75 to a maximum of 2.0, by special permit from the Planning Board for dormitory uses, Section 4.33 b(7).

b. In that part of Special District 11 lying southeast of Vassar Street, the maximum FAR for all non-residential uses shall be increased to 1.7.

17.203.2 Building Height Limitations. The maximum height for permitted uses shall be eighty-five (85) feet and may be increased to one hundred (100) feet for all permitted uses excluding hotels and motels after the issuance of a special permit from the Planning Board.

17.203.3 Front Yard Requirements.

a. The minimum front yard setback from Memorial Drive for the principal front wall plane for any structure shall be twenty-five (25) feet, measured from the street line. The required front yard setback shall apply to any portion of a structure below ground as well as those portions of a structure above ground.

b. The required Memorial Drive front yard shall consist entirely of Green Area Open Space as defined in Article 2.000 with the exception of paving necessary for vehicular access. Such paved access area shall be limited to one twenty-four (24) foot driveway for each one hundred (100) feet of lot frontage, or fraction thereof, located so as to provide the most direct access to parking facilities located elsewhere on the site. It is preferred that all vehicular access be provided from other than Memorial Drive.

c. The Memorial Drive front yard shall contain at least one three and one-half (3 1/2) to four (4) inch caliper tree for every twenty-five (25) linear feet of street frontage.

17.204 *Off Street Parking and Loading Requirements*.

17.204.1 Off street parking and loading requirements shall be as specified in Article 6.000 for uses in the Office 2 District except as provided below.

17.204.2 Minimum Parking Requirement. There shall be no minimum parking requirement.

17.204.3 Maximum Parking. The maximum accessory parking permitted for all uses in the district shall be one parking space for each six hundred and fifty (650) square feet of gross floor area, except that for residential uses, Section 4.31 a-h, there shall be no maximum accessory parking. No parking shall be provided which exceeds the maximum parking permitted, notwithstanding the provisions of Section 6.31.3.

(Ord. No. 2021-3, § xxiii, 6-7-2021; Ord. No. 2025-1, 2-10-2025)

17.300 SPECIAL DISTRICT 12

17.301 *Scope*. This Section 17.300 regulates development in Special District 12 as shown on the Zoning Map of the City of Cambridge, as amended. Except as herein provided in this Section 17.300, all requirements of and regulations applicable to the Residence C-2B District shall apply equally in Special District 12.

17.302 *Dimensional Modifications Permitted*. The following dimensional modifications to the Residence C-2B district shall be permitted or further required in Special District 12.

a. The maximum FAR for non-residential uses shall be 1.0.

b. [Deleted]

c. The maximum height for portions of buildings containing non-residential uses shall be thirty-five (35) feet in that portion of the district located south of Hingham Street and that portion of the district north of Hingham Street located within one hundred (100) feet of the westerly sideline of Banks Street.

d. The Minimum Ratio of open space shall be thirty (30) percent.

17.303 *Dimensional and Use Modifications*. The following further modifications to the regulations applicable to the Residence C-2B district, as modified in Section 17.302 above, shall be permitted, subject to compliance with the provisions of Section 17.305 below.

17.303.1 Permitted Uses. All uses permitted in the Residence C-2B district shall be allowed in Special District 12 including but not limited to residential housing for faculty, staff, employees, and students of educational, religious and charitable institutions in single-family, two-family and multi-family structures and accessory uses thereto. Dormitory uses shall be permitted; however, no other uses serving educational, religious and charitable institutions as set forth in Section 4.33 shall be allowed, except as otherwise allowed in this Section 17.300.

17.303.2 Building Height Limitations. The maximum height permitted for portions of buildings containing non-residential uses shall be sixty-five (65) feet except as further regulated below:

a. No building may be higher than thirty-five (35) feet on land shown as Lots #103, 104, 105 and 106 on Assessors Plat #130, and

b. No building may be higher than thirty-five (35) feet within forty-five (45) feet of the westerly sideline of Banks Street.

17.303.3 Yard Requirements. In lieu of the provisions of Table 5-1 - Table of Dimensional Requirements - Residential Districts, the following Minimum Yard requirements shall apply. Any formulas set forth in Table 5-1 to determine minimum yard requirements shall not apply.

(a) The minimum yard on Memorial Drive shall be ten (10) feet.

(b) The minimum yard on Western Avenue shall be ten (10) feet.

(c) The minimum yard along that portion of the easterly boundary of Special District 12 determined by the easterly sidelines of Lots # 103 and 106 on Assessors Plat 130 shall be fifteen (15) feet.

(d) No minimum yard shall be required along Akron Street.

(e) The minimum yard on Banks Street shall be ten (10) feet.

(f) The minimum yard on the southerly side of Hingham Street shall be ten (10) feet.

(g) The minimum yard on the northerly side of Hingham Street shall be thirty (30) feet within one hundred (100) feet of the westerly sideline of Banks Street, and thereafter 10 feet.

(h) The requirements of Section 5.40, Footnote (11) shall not apply in the Special District 12.

17.303.4 [Deleted]

17.303.5 Total Development Permitted. The aggregate of all development in Special District 12 shall not exceed 172,950 square feet of Gross Floor Area. If the property owner is in compliance with the provisions of a letter of commitment dated October 27, 2003, given by the property owner of land in Special Districts 12, 13 and 14 to the City of Cambridge pertaining to the development of the property owner's land in Special Districts 12, 13 and 14 ("Letter of Commitment"), the aggregate of all development in Special District 12 shall not exceed 224,835 square feet of Gross Floor Area. Such development may be located anywhere in the district without reference to FAR or any other Gross Floor Area limitation.

17.303.6 Minimum Ratio of open space to Lot Area. The required open space in the district may be any combination of Useable, Green Area, Permeable or Public Open Space and shall be required for all uses permitted in the district.

17.303.7 Parking. Except as otherwise provided in this Section 17.303.7, all requirements of Article 6.000 shall apply in Special District 12, except that with regard to the provisions of Section 6.22 - Location of accessory off street parking facilities, any accessory parking required by Article 6.000 to serve development constructed within Special District 12 shall be located within Special District 12. Provided it is located within Special District 12, said parking may be located on any lot without reference to the locational limitations of Section 6.22. All such parking shall be deemed institutional. In addition, all parking existing on October 27, 2003 on property in Special District 12 owned by any educational, religious or charitable institution shall be deemed institutional parking and shall be an allowed use. Off street loading facilities are not permitted for development in Special District 12. Up to four access drives may be provided to underground parking facilities.

For any development subject to the special permit provisions of Section 19.20 or 19.50, any provision of Sections 6.31.3, 6.35.2 and 6.40 - Design and Maintenance of Off Street Parking Facilities may be waived within the scope of those special permits in order to facilitate the location of significant portions of parking within the district in below grade facilities or to provide surface parking for residents in dwelling not conveniently served by an underground parking facility.

17.303.8 Multiple Buildings. Notwithstanding the provisions of Section 5.13, where multiple buildings are built on any Lot in Special District 12, the minimum distance required between buildings shall be 15 feet. Buildings that are connected below grade by tunnels or by underground parking structures shall be considered multiple, freestanding and unattached buildings for the purposes of Section 5.13 and this Section 17.303.8.

No building may be built on the land shown as Lots # 103, 104, 105, and 106 of Assessors Plat 130, that has a horizontal dimension (length or width) at grade greater than 75 feet, and each building shall be physically separated from adjoining buildings on such land by at least

15 feet. Project Review pursuant to the provisions of Article 19.000 shall not limit the number or location of buildings on such land if such buildings comply with the foregoing provisions of Section 17.303.

The formula set forth in Section 5.13 to determine minimum distance between buildings shall not apply.

17.304 *Mechanical Equipment*. The HVAC equipment and exhaust or intake vents located in and serving buildings or underground garages serving buildings in Special District 12 constructed after October 27, 2003 shall be designed or screened so that they are not visible to a pedestrian standing in the public way, and so that they comply with governmental laws regulating noise.

17.305 *Procedural Requirements*. A Building Permit for any structure complying with the dimensional and other provisions of Section 17.303 above shall be issued if the conditions in this Section 17.305 have been met.

17.305.1 Prior to the issuance of the first Building Permit within the Special District 12, a site plan ("Site Plan") shall be submitted to the Superintendent of Buildings indicating the location of any required open space and the location of proposed buildings and accessory parking. The Site Plan shall, in both graphic form and text, indicate how the requirements of this Section 17.300 and the provisions of the "Letter of Commitment" shall be met including all dimensional and use requirements. After review by the Community Development Department, the Superintendent of Buildings shall certify that the Site Plan as submitted conforms to these provisions and will permit the fulfillment of all requirements of Section 17.300.

17.305.2 The Site Plan may be modified by the owner from time to time, provided, however, that any change shall require a recertification from the Superintendent of Buildings. In all instances that the Site Plan is modified, the development shall continue to conform to all requirements of this Section 17.300 and the "Letter of Commitment".

17.305.3 "Letter of Commitment". Prior to the issuance of any Building Permit or Certificate of Occupancy in Special District 12 and after review by the Community Development Department, the Superintendent of Buildings shall certify that construction is proceeding in accordance with all provisions of the "Letter of Commitment".

17.305.4 In the event that the development rights and uses in Special District 12 as set forth in the Site Plan required in Section 17.305.1 above are reduced before they can be fully utilized, through an amendment or other change to the Zoning Ordinance of the City of Cambridge, the easement to the City of Cambridge for a Public Open Space in conformance with the provisions of the "Letter of Commitment" shall not be granted, or if granted previously, shall terminate automatically upon the effective date of such amendment or change to the Zoning Ordinance. Thereafter the requirement for the provision of an open space shall be voided and the site may be developed subsequent to and in accordance with the provisions of the change or amendment of the Zoning Ordinance.

17.306 *Other Provisions*. The following additional provisions shall apply.

(a) Special District 12 shall be considered an Area of Special Planning Concern, subject to the applicable development review procedures as set forth in Article 19.000 of this Ordinance.

(b) Development in Special District 12 utilizing the use and dimensional provisions of Section 17.303 above shall not be subject to the provisions of Section 11.200 of the Zoning Ordinance.

(c) Nothing in Article 19.000 shall prohibit the submission of a request for a single Project Review Special Permit containing construction in both this Special District 12 and Special District 14.

17.307 *Inapplicability of Certain Other Regulations*. Where this Section 17.300 specifies some standard or makes some other requirements contrary to a requirement elsewhere in this Ordinance, the provisions of this Section 17.300 shall control.

(Ord. No. 2025-1, 2-10-2025; Ord. No. 2025-2, 2-10-2025)

17.400 SPECIAL DISTRICT 13

17.401 *Scope*. This Section 17.400 regulates development in Special District 13 as shown on the Zoning Map of the City of Cambridge, as amended. Except as herein provided in this Section 17.400, all requirements of and regulations applicable to the Residence C-2 District shall apply equally in Special District 13.

17.402 *Permitted Uses*. All uses permitted in the Residence C-2 District shall be allowed in Special District 13, and in addition Power Plant use for the non-nuclear production, generation and distribution of electricity or steam, Section 4.32 g shall be permitted. The Power Plant use shall be permitted as of right provided such use occurs within structures in existence as of October 27, 2003. Location of the Power Plant use in a new structure shall be permitted only after the issuance of a Special Permit from the Planning Board.

17.402.1 Parking. Except as otherwise provided in this Section 17.400, all requirements of Article 6.000 shall apply in Special District 13, except that with regard to the provisions of Section 6.22 - Location of accessory off street parking facilities, any accessory parking required by Article 6.000 to serve development constructed within Special District 13 shall be located within Special District 13. Provided it is located within Special District 13, said parking may be located on any lot without reference to the locational limitations of Section 6.22. All such parking shall be deemed institutional. In addition, all parking existing on October 27, 2003 on property in Special District 13 owned by any educational, religious or charitable institution shall be deemed institutional parking and shall be an allowed use.

17.403 *Dimensional Limitations*. All dimensional requirements of the Residence C-2 District shall apply in Special Districts 13 except as provided in this Section 17.403:

17.403.1 Maximum FAR. The maximum FAR for non-residential uses shall be 1.5 but shall be increased by special permit from the Planning Board to 2.0 for dormitories.

17.403.2 Maximum Height. The maximum height for portions of buildings containing non-residential uses shall be limited to sixty-five (65) feet, except that within ninety (90) feet of the westerly sideline of Blackstone Street and within two hundred and forty-five (245) feet of the southerly line of Western Avenue the height for portions of buildings containing non-residential uses shall be limited to forty-five (45) feet. The height of structures in existence in Special District 13 as of October 27, 2003 shall be deemed conforming.

17.403.3 Yard Requirements. The minimum requirement for all yards shall be five (5) feet. The required yards for structures in existence as of October 27, 2003 shall be the yards existing at that time. Any new construction shall be subject to the yard requirements of the Residence C-2 district; the yards for new construction, however, may be reduced to not less than five (5) feet after the issuance of a Special Permit from the Planning Board. In addition, the minimum distance between multiple buildings on a lot, as set forth in Section 5.13, if greater than ten (10) feet, may be reduced to not less ten (10) feet by special permit from the Planning Board.

17.403.4 Mechanical Equipment. The HVAC equipment and exhaust or intake vents located in and serving buildings or underground garages serving buildings in Special District 13 constructed after October 27, 2003 shall be designed or screened so that they are not visible to a pedestrian standing in the public way, and so that they comply with governmental laws regulating noise.

17.404 *Inapplicability of Certain Other Regulations*. Where this Section 17.400 specifies some standard or makes some other requirements contrary to a requirement elsewhere in this Ordinance, the provisions of this Section 17.400 shall control.

(Ord. No. 2025-1, 2-10-2025)

17.500 SPECIAL DISTRICT 14

17.501 *Scope*. This Section 17.500 regulates development in Special District 14 as shown on the Zoning Map of the City of Cambridge, as amended. Except as herein provided in this Section 17.500, all requirements of and regulations applicable to the Residence C-1 District shall apply equally in Special District 14.

17.502 *Subdistricts*. Special District 14 shall consist of three subdistricts as described below. Except as noted, all provisions of Special District 14 shall apply equally to all subdistricts.

a. The Athens Terrace Subdistrict shall be that portion of Special District 14 located north of Grant Street.

b. The Grant Street Subdistrict shall be that portion of Special District 14 that lies within ninety (90) feet of the southerly sideline of Grant Street.

c. The Cowperthwaite Subdistrict shall be that portion of Special District 14 that lies between the Grant Street Subdistrict and Cowperthwaite Street.

17.503 *Permitted Uses*. All uses permitted in the Residence C-1 District shall be allowed in Special District 14 including but not limited to residential housing for faculty, staff, employees, and students of educational, religious and charitable institutions in single-family, two-family,

three-family and multi-family structures and accessory uses thereto. No other uses serving educational, religious and charitable institutions as set forth in Section 4.33 shall be allowed, notwithstanding the provisions of Section 4.50, except as otherwise allowed in this Section 17.500.

17.504 *Use and Dimensional Modifications Permitted*. The following modifications to the regulations applicable to the Residence C-1 district shall be permitted in Special District 14.

a. In the Cowperthwaite Subdistrict, Dormitories, Section 4.33 (b) (7) shall be permitted; Section 4.50 limitations shall not apply.

b. In the Cowperthwaite Subdistrict the following dimensional limitations shall apply:

(i) The maximum FAR for non-residential uses shall be 1.0.

(ii) The maximum height for portions of buildings containing non-residential uses shall be forty-five (45) feet.

(iii) [Deleted]

(iv) The minimum total open space shall be fifteen (15) percent.

c. In the Grant Street Subdistrict the following dimensional limitations shall apply:

(i) The maximum FAR for non-residential uses shall be 1.0.

(ii) [Deleted]

(iv) The minimum total open space shall be fifteen (15) percent.

d. In the Athens Terrace Subdistrict the following dimensional limitations shall apply:

(i) [Deleted]

(ii) The minimum total open space shall be fifteen (15) percent.

17.505 *Other Use and Dimensional Modifications*. The following modifications to the regulations applicable to the Residence C-1 district, as modified by Section 17.504 above, shall be permitted, subject to compliance with the provisions of Section 17.506 below.

17.505.1 Maximum FAR. The maximum FAR for non-residential uses shall be 3.0 within the Cowperthwaite Subdistrict provided the FAR for non-residential uses in the Grant Street Subdistrict does not exceed 0.75 on land under the same ownership. If the property owner is in compliance with the provisions of the "Letter of Commitment" referenced in Section 17.303.5 above, in the Cowperthwaite Subdistrict additional FAR at the rate of 0.9 shall be permitted, and in the Athens Terrace and Grant Street Subdistricts additional FAR at the rate of 0.225 shall be permitted.

17.505.2 Building Height Limitations.

a. The maximum height permitted for portions of buildings containing non-residential uses shall be fifty-five (55) feet Hin the Cowperthwaite Subdistrict subject to the further restrictions set forth in Paragraph b below; however no building or portion of a building within 40 feet of the westerly sideline of Banks Street shall be higher than thirty-five (35) feet.

b. Any portion of a building containing non-residential uses in the Cowperthwaite Subdistrict in excess of forty-five (45) feet shall be set back behind a forty-five degree bulk control plane beginning at a height of forty-five (45) feet above the Cowperthwaite/ Grant Street Subdistricts boundary line and rising thereafter toward Cowperthwaite Street.

17.505.3 [Deleted]

17.505.4 Minimum Ratio of open space to Lot Area. The required open space in Special District 14 may be any combination of Useable, Green Area, Permeable or Public Open Space and shall be required for all uses permitted in the district. In the Cowperthwaite and Athens Terrace Subdistricts, the minimum open space requirements of Table 5-1 as modified in Section 17.504 above shall not apply.

17.505.5 Cowperthwaite Minimum Side Yard. The minimum side yard for buildings containing non-residential uses in the Cowperthwaite Subdistrict shall be 15 feet, and the minimum front yard shall be 10 feet.

17.505.6 Building Size. Except within the Cowperthwaite Subdistrict, each building containing non-residential uses in Special District 14 shall be freestanding and unattached to any other building, and may contain no more than 5,000 square feet of GFA.

17.505.7 Multiple Buildings. Notwithstanding the provisions of Section 5.13, multiple buildings may be built on any Lot in Special District 14, and the minimum distance between buildings shall be 10 feet. Buildings that are connected below grade by tunnels or by underground parking structures shall be considered multiple, freestanding and unattached buildings for purposes of between-building setbacks. The formula set forth in Section 5.13 shall not apply.

17.505.8 Parking Requirements. Except as otherwise provided in this Section 17.505.8, all requirements of Article 6.000 shall apply in Special District 14.

(a) With regard to the provisions of Section 6.22 - Location of accessory off street parking facilities, at least eighty (80) percent of the minimum required accessory parking required by Article 6.000 to serve development constructed in the Athens Terrace Subdistrict shall be located in that Subdistrict.

(b) For any development subject to the special permit provisions of Section 19.20 or 19.50, any provision of Section 6.22, 6.22.1, 6.22.2 (Location of Parking), 6.31.3, 6.35.2 and Section 6.40 - Design and Maintenance of Off Street Parking Facilities may be waived within the scope of those special permits in order to facilitate the location of significant portions of parking within the district in below grade facilities or to provide surface parking for residents in dwellings not conveniently served by an underground parking facility. Notwithstanding the provisions of Article 6.000, requirements for loading facilities within the Cowperthwaite Subdistrict may be satisfied by providing one loading facility on Cowperthwaite Street, which may be located on abutting private or public ways. All parking provided on property in Special District 14 owned by any educational, religious or charitable institution shall be deemed institutional parking. In

addition, all parking existing on October 27, 2003 on property in Special District 14 owned by any educational, religious or charitable institution shall be deemed institutional parking and shall be an allowed use.

17.505.9 Mechanical Equipment. The HVAC equipment and exhaust or intake vents located in and serving buildings or underground garages serving buildings in Special District 14 constructed after October 27, 2003 shall be designed or screened so that they are not visible to a pedestrian standing in the public way, and so that they comply with governmental laws regulating noise.

17.506 *Procedural Requirements*. A Building Permit for any structure employing the use, dimensional, or parking flexibility provided in Sections 17.505 above shall be issued if the following conditions have been met.

17.506.1 Prior to the issuance of the first Building Permit within the Special District 14, a site plan ("Site Plan") shall be submitted to the Superintendent of Buildings indicating the location of the required open space and the general location of proposed buildings and accessory parking. The Site Plan shall, in both graphic form and text, indicate how the requirements of this Section 17.500 shall be met. The Site Plan may be modified from time to time by the owner; provided, however, that any change shall require a re-certification from the Superintendent of Buildings. In all instances that the Site Plan is modified, the development shall continue to conform to all requirements of this Section 17.500.

17.506.2 "Letter of Commitment". Prior to the issuance of any Building Permit or Certificate of Occupancy in Special District 14, after review by the Community Development Department, the Superintendent of Buildings shall certify that construction is proceeding in accordance with all provisions of the "Letter of Commitment".

17.506.3 In the event that the development rights and uses in Special District 14 as set forth in the Site Plan required in Section 17.506.1 above are reduced before they can be fully utilized, through an amendment or other change to the Zoning Ordinance of the City of Cambridge, the easement to the City of Cambridge for a Public Open Space in conformance with the provisions of the "Letter of Commitment" shall not be granted, or if granted previously, shall terminate automatically upon the effective date of such amendment or change to the Zoning Ordinance. Thereafter the requirement for the provision of an open space shall be voided and the site may be developed subsequent to and in accordance with the provisions of the change or amendment of the Zoning Ordinance.

17.507 *Other Provisions*. The following additional provisions shall apply.

(a) Special District 14 shall be considered an Area of Special Planning Concern, subject to the applicable development review procedures as set forth in Article 19.000.

(b) Development in Special District 14 utilizing the use and dimensional provisions of Section 17.505 above shall not be subject to provisions of Section 11.200 of the Zoning Ordinance.

(c) Nothing in Article 19.000 shall prohibit the submission of a request for a single Project Review Special Permit containing construction in both this Special District 14 and Special District 12.

17.508 *Inapplicability of Certain Other Regulations*. Where this Section 17.500 specifies some standard or makes some other requirements contrary to a requirement elsewhere in this Ordinance, the provisions of this Section 17.500 shall control.

(Ord. No. 2025-1, 2-10-2025; Ord. No. 2025-2, 2-10-2025)

17.600 SPECIAL DISTRICT 15

17.601 **Scope**. This Section 17.600 regulates development within the Special District 15 as shown on the Zoning Map of the City of Cambridge, as amended. Except as herein provided in this Section 17.600, all requirements of and regulations applicable to the Industrial B District shall apply equally to the Special District 15.

17.602 *Purpose*. It is the intent of Special District 15 to provide for the creation of a high quality general and technical office environment which enhances the Massachusetts Avenue street front in this area by promoting active uses at the street level, encouraging building heights and massing that are appropriately scaled within the context of surrounding structures, and creating an improved pedestrian environment through the introduction of open space, the creation of pedestrian connections that enhance links between Kendall and Central Squares and the nearby residential neighborhood, and the elimination of surface parking lots.

17.603 *Permitted Uses*. Uses permitted in the Industry B District shall be equally allowed in Special District 15.

17.604 *Dimensional Regulations*.

17.604.1 Maximum FAR. The maximum FAR for non-residential uses on any lot in the district shall be 3.5.

17.604.2 Additional Height. The maximum height permitted in the district may be increased to one hundred forty (140) feet by special permit from the Planning Board.

17.605 *Criteria for Granting Special Permit*. In granting a Special Permit for additional height above one hundred twenty (120) feet, the Planning Board shall give consideration to the following:

1. Only a portion of the building, not to exceed more than thirty percent (30%) of the district, will extend to one hundred forty (140) feet.

2. Portions of the building along Massachusetts Avenue will not exceed 85 feet in height.

3. The additional height will allow for greater opportunities for open space on the site, including plazas, landscaped areas, and pedestrian pathways.

17.606 *Parking*. Notwithstanding the requirements of Article 6.000, the maximum ratio of off-street parking for all non-residential uses shall be 0.90 spaces per 1,000 square feet of Gross Floor Area. Parking that exceeds this ratio shall require a waiver under the general provisions of Article 6.000.

For any project seeking a special permit from the Planning Board, the Planning Board in its discretion, after review and analysis of Transportation Impact Studies and other relevant information on parking demand provided in application documents, and with the guidance of City agencies, may approve a request for reduction in off-street parking that it deems appropriate without requiring a waiver under Article 6.000.

17.607 *Design Guidelines*. In accordance with the provisions of Section 19.22, any new building construction in this Special District that exceeds the Land Use Thresholds set forth in Section 19.23 is required to obtain a Project Review Special Permit. In addition to the Citywide Urban Design Objectives enumerated in Section 19.30, the Planning Board shall, when making a determination on an application for a Project Review Special Permit in Special District 15, consider the following Design Guidelines:

1. Parking should be located below grade where possible.
2. Vehicular access/egress should not be located on Massachusetts Avenue or Albany Street.
3. Public pedestrian connections are encouraged through the site.
4. Open space in the form of plazas, landscaped areas and pedestrian pathways should be integrated into the site plan so as to benefit building users and the general public.
5. To the extent possible, active uses and transparency is encouraged on the ground floor of new buildings. The ground floor building frontage along Massachusetts Avenue shall create an active street presence with a particular emphasis on retail uses and shall be generally 50% transparent.
6. The applicant should indicate how a proposed building would relate physically to the most current design plans developed by the MBTA for implementation of the Urban Ring transportation project.
7. Attention should be given to walkability, with appropriate sidewalk widths, maintenance of street trees, and other pedestrian friendly amenities.
8. The site massing should include a variety of heights to provide visual interest and break-up building mass.

17.608 *Consistency with Letter of Commitment*. Prior to the issuance of any building permit or Certificate of Occupancy for any construction authorized by special permit under the provision of this Section 17.600, the Community Development Department shall certify to the Inspectional Services Department that all provisions of the Letter of Commitment dated June 20, 2011 by Novartis are continuing to be met.

(Ord. No. 2025-1, 2-10-2025)

ARTICLE 18.000

18.10 TRAFFIC MITIGATION REQUIREMENTS
18.20 CONSTRUCTION MANAGEMENT PROGRAM

18.10 TRAFFIC MITIGATION REQUIREMENTS

Where a Traffic Mitigation Plan is required as a condition of approval of any special permit the plan shall be submitted to the special permit granting authority for review and approval, at a time and in a manner set forth by the special permit granting authority in its Decision. Upon approval of the plan the permittee shall be obligated to thereafter implement the provisions of the plan for as long as the special permit is in force and effect. In developing the plan the permittee shall consider and adopt as appropriate but shall not be limited to the following traffic mitigation techniques:

(1) Join and participate in a Landowners' Transportation Management Association if in operation, and ensure that the following traffic mitigation measures are implemented, maintained and monitored. If such an operation is not in effect, then reasonable efforts shall be undertaken to form such an organization.

(2) Promote the use of public transportation by providing up to date maps, schedules and transit information, establishing an MBTA Pass sales office, educating and strongly encouraging or requiring all tenants to subsidize employee "T" Passes, and making reference to transit facilities and proximity in marketing and advertising materials.

(3) Operate the computer based ride sharing program RideSource from CARAVAN for Commuters, Inc., collect and disseminate ride sharing information, and share information with other tenants, organizations and companies where applicable.

(4) Encourage staggered or flexible work hours for employees of all tenants through the provisions of utilities and open parking facilities during off peak hours and other appropriate means.

(5) Establish parking management techniques such as providing preferential parking spaces and reduced rates for van pools and car pools, and encouraging short term parking when possible.

(6) Consider joint use of parking facilities to maximize effectiveness of parking management programs.

(7) Operate a shuttle system or join with and expanding an existing system, e.g. CambridgeSide Galleria, to serve tenants and make public transit more accessible.

(8) Provide sufficient covered and secure bicycle racks.

(9) Consider cooperating to provide innovative tenant services, such as day care, courier and copy services, shower and locker room facilities, and shuttles to airports.

(10) Work with the Commuter Mobility Manager of the City of Cambridge to facilitate implementation of this traffic mitigation program.

(11) Require that all conditions of an approved plan be made a condition of tenant leases as applicable or appropriate.

18.20 CONSTRUCTION MANAGEMENT PROGRAM

Where a construction management program is required as a condition of approval of any special permit the applicant shall submit such a program, detailing the construction period impacts anticipated and a program for mitigation of those impacts. The permittee shall be obligated to thereafter implement the provisions of the Plan until a certificate of occupancy has been issued for all development authorized by the Permit. This program will include but not be limited to the following:

Restricting contractor and supplier site access to designated roadways;

Identify construction worker parking areas at sufficient capacity to prevent on street parking. Include a shuttle bus system if needed;

Designating locations for storing construction equipment and materials;

Developing a construction plan which will ensure minimum disruption to street and pedestrian flow and safety; and

Posting of a bond or other surety to ensure the repair of all damage to public property resulting from construction of the project.

ARTICLE 19.000 PROJECT REVIEW

19.10 INTENT AND PURPOSE OF ARTICLE 19.000
19.20 PROJECT REVIEW SPECIAL PERMIT
19.30 CITYWIDE URBAN DESIGN OBJECTIVES
19.40 CITYWIDE ADVISORY DEVELOPMENT CONSULTATION PROCEDURES
19.50 BUILDING AND SITE PLAN REQUIREMENTS

19.10 INTENT AND PURPOSE OF ARTICLE 19.000

The intent of this Article 19.000 is to establish traffic and urban design standards for development projects likely to have significant impact on abutting properties and the surrounding urban environment.

To realize this intent, Article 19.000 (1) codifies the city's urban design objectives and establishes detailed building and site development standards to regulate new building construction in the city's commercial and high density residential areas, (2) establishes standards by which significant adverse traffic impacts can be measured, and (3) establishes procedures by which individual proposals can be reviewed by the Planning Board, city staff and the general public before a building permit is issued.

The Building and Site Plan Requirements describe the minimally acceptable arrangement of buildings on a lot and as they face the public environment. The Urban Design Objectives establish more general guidelines which, along with the Traffic Impact Indicators, can assist property owners as they consider alternate uses for their property. Where a special permit is required from the Planning Board, the Urban Design Objectives and Traffic Impact Indicators serve as considerations through which the merits of a proposal are judged.

To apply the Building Requirements and Objectives effectively, procedures are established by which public review of new construction can be undertaken. The procedures provide an opportunity for the general public to review and comment on significant new development projects and, where appropriate, they allow the Planning Board, through a special permit process, to establish conditions by which new development can be shaped to serve city urban design objectives more effectively. It is the intent of these procedures to provide a method by which new development proposals can be assessed at an early stage. Such assessment offers the opportunity to explore potential modifications and refinements that would better serve the interests of both the city and the project proponent. Similarly, potential negative impacts can be identified and modifications explored that would reduce or eliminate them.

It is understood that nonprofit educational and religious uses and activities have special use, building and site development requirements and characteristics. Therefore the procedures and standards established in this Article 19.000 are designed to reflect those special circumstances. In reviewing any development proposal of a nonprofit educational or religious organization, the reviewing body shall apply the standards herein contained in a reasonable manner in light of the special circumstances applicable to nonprofit religious and educational activities.

This Article 19.000 shall apply to any new construction of a building or structure, addition to a building or structure, or a change of use in an existing building undertaken on or after September 15, 2000.

19.20 PROJECT REVIEW SPECIAL PERMIT

19.21 *Purpose*. It is the intent of this Section 19.20 to ensure that new construction or changes of use in existing buildings (1) are consistent with the urban design objectives of the City and (2) do not impose substantial adverse impacts on city traffic. A special permit process is established by which the Planning Board may make such findings.

19.21.1 Purpose of Traffic Impact Review. The Planning Board shall assess the impact of the vehicular service and passenger car traffic and pedestrian and bicycle circulation and expected to be generated by a proposed development project. The procedures and requirements of this Section 19.20 are intended to encourage applicants to adopt a development program that reduces the number of single occupancy vehicles coming to the site. Such a program would encourage pedestrian and bicycle access to the site and throughout the neighboring district and reduce potential negative impacts on abutting properties of the vehicles coming to the site. While the review will focus especially on the impacts affecting abutting properties and the immediate environment, the impacts on streets and locations more distant from the site and on transit and bus facilities serving the site will also be assessed.

19.21.21 Purpose of Urban Design Review. The Board shall review the specific design details of buildings and their site layout to ensure that the design of the building and its location on the lot minimize any potential negative impact on abutting properties and on the environment along public streets and sidewalks. Particular attention will be paid to the design of the ground floor; the layout of service facilities including driveways, and parking and loading facilities; the location and screening of mechanical service equipment and waste disposal facilities; landscape amenities; and similar building and site layout details.

19.22 *Applicable Zoning Districts*. The Project Review Special Permit shall apply to construction and changes of use located in the following zoning districts.

(1) All Office, Business, and Industrial Districts, any PUD district, and NP districts, and any Special District for which an office, business or industrial district serves as the underlying base regulation (SD-1, SD-3, SD-5, SD-7, SD-8 and SD-11), but excluding the MXD district.

(2) Residence C-1, C-1A, C-2, C-2A, C-2B, C-3, C-3A, and C-3B districts, and any Special District for which any one of these residence districts serves as the underlying base regulation (SD-2, SD-6, SD-12 and SD-13) and SD-14. A Project Review Special Permit in these districts shall be required only where the construction or portion of the construction is located within one hundred (100) feet of a public way unless the uses proposed in the building are subject to the thresholds established in Table 1.

19.23 *Special Permit Threshold.* In all applicable zoning districts, a Project Review Special Permit shall be required for new building construction or change of use (pursuant to Subsection 19.23.1 below) where a Table I threshold has been met, on a lot or combination of contiguous lots held in common ownership at any time after September 15, 2000. In a Business A, Business A-1, or Business A-2 district, a Project Review Special Permit shall also be required for new building construction of 20,000 square feet or more of non-residential Gross Floor Area (GFA), though a Traffic Study shall not be required if a Table I threshold is not met. Where a mix of uses is proposed the threshold shall be determined by the application of the Mixed Use Formula set forth in Table 1.

Notwithstanding the provisions of this Section 19.23 set forth above, the Project Review Special Permit requirement shall not apply to existing gross floor area on a lot built and occupied prior to the effective date of this Article 19.000 that is demolished and subsequently rebuilt as part of a building project, provided (1) there is no change of use, (2) the reconstruction commences within two years of the start of demolition of the building, and (3) the standards of Section 19.50 are met.

Where a threshold is set forth below in square feet ("sf") it shall refer to the total GFA calculated pursuant to Section 5.25 but shall exclude GFA in parking facilities, except as otherwise noted. Where reference is made in this Section 19.23 to Gross Floor Area thresholds as set forth in Table 1, the term shall also encompass any other measure of quantity enumerated in the Table (e.g. dwelling units, beds, acres, parking spaces).

Table 1
Thresholds for Required Traffic Study by Land Use Type

Land Use Category	*Threshold*
Standard Threshold: All Land Uses Set forth in Tables 4.30 and 4.56 except as enumerated below.	50,000 sf
Residences: All uses in Section 4.31, a—j	75,000 sf
Transportation Communication & Utility Uses: Section 4.32	
a. Bus or railroad passenger station	Required
b. Automobile parking lot or parking garage for private passenger cars	150 parking spaces
c. Railroad freight terminal, railroad yards and shops	50 acres
d. Truck or bus terminal, yard or building for storage or servicing of trucks, trailers, or buses; parking lot for trucks	Required
Institutional Uses: Section 4.56 (See also Section 4.33)	
a. Religious purposes	
1. Social or recreation center	40,000 sf
2. Other use with religious purpose	40,000 sf
b. Educational purposes	
1. Preschool, day care center, kindergarten	25,000 sf
2. Primary school	40,000 sf

Land Use Category	*Threshold*
3. Secondary school	40,000 sf
4. College or university athletic facility, auditorium, theatre, library, museum or similar facility, any of which is customarily accessible to the general public on a paid admission fee or other basis	Creation of 150 new parking spaces or the relocation of 250 existing parking spaces or any combination thereof.[1,2]
5. College or university laboratory or research facility customarily involving radioactive materials and other controlled substances, high intensity electromagnetic radiation or chemical or biological processes which could entail a high level of danger to the public health	
6. Other college or university facility	
Dining halls, canteens and similar eating areas	
Administrative faculty and staff offices, teaching facilities, service facilities, and facilities not specified above	
1. The addition to or relocation of parking spaces in the inventory of institutional parking in existence as of September 15, 2000 (see Section 6.32.2) in association with the construction of a new building.	
2. Relocation shall mean the construction of parking spaces at a new location, where the distance between that entrance at the new location most proximate to the closest entrance at the old location is 1,000 feet or more.	
7. Vocational or other schools	40,000 sf
e. Health Care Facilities	
1. Hospital	35,000 sf
2. Infirmary	25,000 sf
3. Nursing home, convalescent home	250 beds
4. Clinic not affiliated with any other institution	25,000 sf
5. Clinic affiliated with a hospital or accredited university medical school	25,000 sf
6. Clinic connected to a community center	25,000 sf
7. Other health care facilities	25,000 sf
f. Social Service Facilities	
1. Social service center	40,000 sf
2. Community Center	40,000 sf
g. Local Government	
1. Fire or police station	Not Required

Land Use Category	*Threshold*
2. Public parks, playgrounds or public recreation buildings	400 acres
i. Other Institutional Uses	
1. Cemetery	100 acres
2. Other institutional use	40,000 sf
Office and Laboratory Uses: Section 4.34	
a. Office of a physician, dentist or other medical practitioner not located in a clinic listed under Subsection 4.33(d)	25,000 sf
b. Bank, trust company or similar financial institution	25,000 sf
Retail or Consumer Service Establishments: Section 4.35	25,000 sf
Outdoor Retail or Consumer Service Establishments: Section 4.36	
a. Open-Lot Retail Sales Establishment	25,000 sf
b. Drive-In Food Service Establishments	Required
c. Drive-In Consumer Service Establishments	Required
d. Outdoor Entertainment and Recreation Facility	300 seats
e. Drive-In Theater	300 seats
f. Outdoor Auto Sales Facility	25,000 sf
g. Auto Service Station	5 fueling positions
h. Auto Wash	Required
Light Industry, Wholesale Business and Storage: Section 4.37	
a. Auto body or paint shop	25,000 sf
b. Automotive repair garage not including [1.] above	25,000 sf

Mixed Use Formula

Where it is proposed to include a mix of uses in a new development, or substitute a mix of uses for an existing use in an existing building, a special permit shall not be required under the provisions of Section 19.20 if:

$(GFA \div Threshold_a) + (GFA \div Threshold_b) + (GFA \div Threshold_c) \leq 1$

Where "GFA" is the proposed Gross Floor Area (or other indicated quantity measure) for a use denoted by a subscript and where "Threshold" is the Threshold for that use in Table 1.

19.23.1 Change of Use in an Existing Building Threshold.

19.23.11 In an existing building, the Project Review Special Permit shall be required where the total Gross Floor Area of a new use or uses on a lot exceeds the Gross Floor Area threshold limits set forth in Table 1 for that new use. Where the change is to a mix of uses the threshold shall be determined by the application of the Mixed Use Formula set forth in Table 1.

19.23.2 Incremental Changes on a Lot. Any amount of Gross Floor Area on a lot, subject to this Article 19.000, that is less than those threshold amounts set forth in Table 1 shall be subject to this Section 19.20 only when the sum of the following equals or exceeds the Gross Floor Area thresholds set forth in Sections 19.23 and 19.23.1 above:

(1) The current proposal for new Gross Floor Area on the lot, plus

(2) The Gross Floor Area on the lot developed or changed in use within the preceding five years so as to be subject to this Section 19.20 but for which a Special Permit under this Section 19.20 was not required, plus

(3) Any Gross Floor Area on the lot for which a building permit has been issued but which has yet to be built and occupied and for which a Special Permit authorized by this Section 19.20 has not been issued within the preceding five years.

After the granting of the first special permit under this Section 19.20, a subsequent special permit shall only be required when the total of additional Gross Floor Area or new uses exceeds the Gross Floor Area thresholds set forth in Sections 19.23 and 19.23.1 above.

19.23.3 Phased Project. Nothing in this Section 19.20 shall prohibit the Planning Board from granting a special permit for a phased project to be built over an extended period of time, which period shall be defined in the permit, provided sufficient information is available in the application to permit the Board to make the findings required.

19.23.4 Special Permit Thresholds Exemptions. Construction of a new building or a change of use that has been granted a Planning Overlay Special Permit (IPOP), under the provisions of Section 11.500 of this Ordinance in effect from July 1, 1998 through October 2, 2000 (Ordinance # 1209 and subsequent amendments), shall not be subject to this Section 19.20. However, any change of use in the authorized building subsequent to occupancy as authorized under the provisions of a Section 11.500 special permit, shall require the issuance of a Project Review Special Permit under this Section 19.20 where the proposed new use exceeds the relevant threshold established in Table 1.

19.24 *Application Procedures*. An application for the Project Review Special Permit shall be made to the Planning Board. The Application shall consist of the following materials:

(1) Planning Board Special Permit Application Form. The application shall include all required plans and narrative statements. The site plan and other plans, elevations and drawings shall clearly show: (1) the access and egress points for all forms of travel to the site, (2) the location of adjacent bus and transit stops, (3) the schematic design of proposed mechanical equipment, and (4) the architectural screening treatment proposed for that mechanical equipment. The proponent shall provide perspectives of the proposed development, including mechanical equipment, from all critical viewpoints.

(2) Traffic Study. Where the use thresholds established in Table 1 are met or exceeded, the application shall include a traffic study with a geographic and functional scope determined by the Traffic, Parking, and Transportation Department (TPTD) to be appropriate to the location of the project. In general, the study shall review intersections where the project will have significant and measurable impact. The TPTD shall issue a certification to the applicant within twenty-one (21) days of its submission that the traffic study has been done in a complete and reliable manner. Where that certification is denied, the applicant may revise the information in the traffic study and resubmit it; a certification of the revised study shall be issued or denied by the TPTD within fourteen (14) days of the resubmission of material.

Based on guidelines established by TPTD, the traffic study shall include a narrative discussion of (a) the nature and quantity of vehicles traveling to the site including, in

addition to passenger cars, service, delivery and other commercial vehicles, (b) the likely impact of such vehicular traffic on abutters, abutting streets and nearby residential streets, including on-street parking behavior, (c) the physical nature of pedestrian and bicycle access to the site and the quantity of movements anticipated for each, and (d) an analysis of the crash history at intersections within the study area. The study shall identify parking and transportation demand management measures and other mitigation measures proposed to ameliorate any adverse traffic impacts identified in the study.

(3) Tree Study. A Tree Study, certified complete by the City Arborist, as required by the Tree Protection Ordinance of the City of Cambridge, Chapter 8.66.

(4) Urban Design Objectives Narrative. The application shall include a narrative description of how the proposal addresses each of the seven Urban Design Objectives set forth in Section 19.30. In addition the applicant shall comment specifically on the following: (a) the design and location of proposed mechanical equipment, including HVAC equipment, as well as a strategy for possible future expansion, if relevant, (b) location and operation of trash storage and removal systems, (c) location and operation of loading facilities, (d) measures taken to minimize the negative visual and noise impacts of such facilities on abutters, and (e) the provision in the building and site design to accommodate pedestrian, bicycle and transit access.

(5) Sewer Service Infrastructure Narrative. The application shall include a report by the applicant detailing the anticipated impact of the project on the city's sanitary, stormwater, and combined sewer infrastructure. It shall indicate the adequacy of the preliminary site plan in meeting city, state, and federal requirements or established standards for implementation of best management practices for stormwater management and the likely improvements to infrastructure necessary to accommodate the impacts of the proposed project. Where such determinations cannot be made at the time of application, the report shall indicate what investigations must be undertaken by the applicant to make such determination, their anticipated costs, and the schedule for their completion. The applicant shall provide certification that this report has been submitted to the Department of Public Works.

(6) Water Service Infrastructure Narrative. The application shall include a report by the applicant detailing the anticipated impact of the project on the city's water delivery infrastructure and supply. It shall indicate the likely improvements to infrastructure necessary to accommodate the identified impacts. Where such determinations cannot be made at the time of application, the report shall indicate what investigations must be undertaken by the applicant to make such determination, their anticipated costs, and the schedule for their completion. The applicant shall provide certification that this report has been submitted to the Water Department.

(7) Noise Mitigation Narrative. The application shall include a report detailing how the project shall conform to the requirements of the Cambridge Noise Ordinance. The report shall indicate the approaches to be adopted by the applicant in minimizing the

impact of noise from the project on neighbors. When a project consists entirely or in part of residential uses located in a mixed-use or commercial or industrial area, the narrative shall describe how building materials, building design, building orientation, and site layout are being used to reduce the transmission of noise to the residences from the surrounding environment.

(8) Resilience Narrative. The application shall include a report by the applicant describing how the project will mitigate and adapt to anticipated climate change impacts over the lifetime of the building, to include the following information at a minimum:

(i) The Flood Resilience Standards documentation required in Section 22.80 of this Zoning Ordinance, and a description of specific design approaches used to respond to anticipated flood impacts, referencing plans, elevations, and other submitted drawings. Examples may include but are not limited to the following:

• raising of the finished floors of occupied spaces;

• use of fixed or movable flood barriers at exterior access/egress points;

• raising and/or protection of critical building equipment that is vulnerable to flooding;

• use of flood-resistant building materials in areas of the building that are at risk of flooding, or materials that are readily replaceable if damaged by floodwater;

• passive design approaches that maintain interior comfort in the event of a power outage or other extreme event;

• and/or other design strategies.

(ii) The Green Factor documentation required in Section 22.90 of this Zoning Ordinance and a description of specific design approaches used to mitigate the anticipated impacts of heat on the building and site, referencing plans, elevations, and other submitted drawings. Examples may include but are not limited to the following:

• site landscaping and building design features that provide direct cooling to occupants of the site and any abutting public streets, reduce heat gain on the building, and mitigate urban heat island effect;

• passive design approaches that increase a building's ability to withstand heat gain and maintain interior comfort in the event of a power outage or other extreme event;

• interior cooling centers where occupants and/or other community members can seek shelter during extreme heat events;

• and/or other design strategies.

(iii) A description of any mitigation strategies that the owner will agree to implement for operational preparedness that will supplement design-based resilience strategies. Examples may include but are not limited to the following:

• information provided to building occupants about flood risk at initial occupancy;

• protocols for alerting occupants when an extreme flood or heat event is likely;

• response plans for maintaining occupant safety if occupants need to shelter in place temporarily, which may include measures to maintain emergency access/ egress and to help occupants maintain access to water, food, medications, and means of communication;

• recovery plans for restoring habitability of spaces that may be damaged during an extreme weather event;

• participation in coordinated areawide programs and resources to promote social resilience;

• and/or other strategies.

(iv) Other strategies that the owner proposes to implement in order to promote climate change resilience not described above.

19.25 *Review Criteria*. In granting a special permit under this Section 19.20 the Planning Board shall make the following findings.

19.25.1 Traffic Impact Findings. Where a Traffic Study is required as set forth in Section 19.24 (3) above the Planning Board shall grant the special permit only if it finds that the project will have no substantial adverse impact on city traffic within the study area as analyzed in the Traffic Study. Substantial adverse impact on city traffic shall be measured by reference to the traffic impact indicators set forth in Section 19.25.11 below.

In areas where the Planning Board determines that area-specific traffic guidelines have been established in the Ordinance, the Board recognizes written agreements between project proponents and the City dealing with transportation mitigation strategies.

19.25.11 Traffic Impact Indicators. In determining whether a proposal has substantial adverse impacts on city traffic the Planning Board shall apply the following indicators. When one or more of the indicators is exceeded, it will be indicative of potentially substantial adverse impact on city traffic. In making its findings, however, the Planning Board shall consider the mitigation efforts proposed, their anticipated effectiveness, and other supplemental information that identifies circumstances or actions that will result in a reduction in adverse traffic impacts. Such efforts and actions may include, but are not limited to, transportation demand management plans; roadway, bicycle and pedestrian facilities improvements; measures to reduce traffic on residential streets; and measures undertaken to improve safety for pedestrians and vehicles, particularly at intersections identified in the Traffic Study as having a history of high crash rates.

The indicators are: (1) Project vehicle trip generation weekdays and weekends for a twenty-four hour period and A. M. and P.M. peak vehicle trips generated; (2) Change in level of service at identified signalized intersections; (3) Increased volume of trips on residential streets; (4) Increase of length of vehicle queues at identified signalized intersections; and (5) Lack of sufficient pedestrian and bicycle facilities. The precise numerical values that will be

deemed to indicate potentially substantial adverse impact for each of these indicators shall be adopted from time to time by the Planning Board in consultation with the TPTD, published and made available to all applicants.

19.25.2 Urban Design Findings. The Planning Board shall grant the special permit only if it finds that the project is consistent with the urban design objectives of the city as set forth in Section 19.30. In making that determination the Board may be guided by or make reference to urban design guidelines or planning reports that may have been developed for specific areas of the city and shall apply the standards herein contained in a reasonable manner to nonprofit religious and educational organizations in light of the special circumstances applicable to nonprofit religious and educational activities.

(Ord. No. 2021-3, § xxiv, 6-7-2021; Ord. No. 2022-9, 2-27-2023; Ord. No. 2025-2, 2-10-2025)

19.30 CITYWIDE URBAN DESIGN OBJECTIVES

The following urban design objectives are intended to provide guidance to property owners and the general public as to the city's policies with regard to the form and character desirable for new development in the city. It is understood that application of these principles can vary with the context of specific building proposals in ways that, nevertheless, fully respect the policies' intent. It is intended that proponents of projects, city staff, the Planning Board, and the general public, where public review or approval is required, should be open to creative variations from the detailed provisions presented in this Section as long as the core values expressed are being served. A project need not meet all the objectives of this Section 19.30 where this Section serves as the basis for issuance of a special permit. Rather, the permit granting authority shall find that, on balance, the objectives of the city are being served. Nor shall a project subject to special permit review be required to conform to the Required Building and Site Plan Requirements set forth in Section 19.50.

Further indicators of conformance with these policy objectives shall be found in planning documents and plans developed for specific areas of the City or the City as a whole, to the extent that they are not inconsistent with the objectives set forth in this Section 19.30. These documents include the Harvard Square Development Guidelines, the Central Square Action Plan, the Central Square Development Guidelines, the North Massachusetts Avenue Urban Design Guidelines Handbook, the University Park at MIT Urban Design Guidelines, the North Point Policy Plan and Design Guidelines, the Cambridge Institutional Growth Management Plan, the East Cambridge Riverfront Plan, the Eastern Cambridge Plan, the Eastern Cambridge Design Guidelines, the Alewife Revitalization, Alewife Urban Design Study Phase II and its Draft update of 1991, and Toward a Sustainable Future: Cambridge Growth Policy Document.

19.31 New projects should be responsive to the existing or anticipated pattern of development. Indicators include:

(1) Heights and setbacks provide suitable transition to abutting or nearby residential zoning districts that are generally developed to low scale residential uses.

(2) New buildings are designed and oriented on the lot so as to be consistent with the established streetscape on those streets on which the project lot abuts. Streetscape is meant to refer to the pattern of building setbacks and heights in relationship to public streets.

(3) In mixed-use projects, uses are to be located carefully to respect the context, e.g. retail should front onto a street, new housing should relate to any adjacent existing residential use, etc.

(4) Where relevant, historical context is respected, e.g. special consideration should be given to buildings on the site or neighboring buildings that are preferably preserved.

19.32 Development should be pedestrian and bicycle-friendly, with a positive relationship to its surroundings. Indicators include:

(1) Ground floors, particularly where they face public streets, public parks, and publicly accessible pathways, consist of spaces that are actively inhabited by people, such as retail stores, consumer service businesses and restaurants where they are allowed, or general office, educational or residential uses and building lobbies. Windows and doors that normally serve such inhabited spaces are encouraged to be a prominent aspect of the relevant building facades. Where a mix of activities are accommodated in a building, the more active uses are encouraged facing public streets, parks, and pathways.

In commercial districts, such active space consists of retail and consumer service stores and building lobbies that are oriented toward the street and encourage pedestrian activity on the sidewalk. However, in all cases such ground floor spaces should be occupied by uses (a) permitted in the zoning district within which the building is located, (b) consistent with the general character of the environment within which the structure is located, and (c) compatible with the principal use for which the building is designed.

(2) Covered parking on the lower floors of a building and on-grade open parking, particularly where located in front of a building, is discouraged where a building faces a public street or public park, and publicly accessible pathways.

(3) Ground floors should be generally 25-50% transparent. The greatest amounts of glass would be expected for retail uses with lesser amounts for office, institutional or residential use.

(4) Entries to buildings are located so as to ensure safe pedestrian movement across streets, encourage walking as a preferred mode of travel within the city and to encourage the use of public transit for employment and other trips. Relating building entries as directly as possible to crosswalks and to pathways that lead to bus stops and transit stations is encouraged; siting buildings on a lot and developing site plans that reinforce expected pedestrian pathways over the lot and through the district is also encouraged.

(5) Pedestrians and bicyclists are able to access the site safely and conveniently; bicyclists should have secure weatherproof storage facilities conveniently located on-site. If bicycle parking is provided in a garage, special attention must be paid to providing safe access to the facilities from the outside.

(6) Alternate means of serving policy objective 19.32 through special building design, siting, or site design can be anticipated where the building form or use is distinctive such as freestanding parking structures, large institutional buildings such as churches and auditoriums, freestanding service buildings, power plants, athletic facilities, manufacturing plants, etc.

19.33 The building and site design should mitigate adverse environmental impacts of a development upon its neighbors. Indicators include:

(1) Mechanical equipment that is carefully designed, well organized or visually screened from its surroundings and is acoustically buffered from neighbors. Consideration is given to the size, complexity and appearance of the equipment, its proximity to residential areas, and its impact on the existing streetscape and skyline. The extent to which screening can bring order, lessen negative visual impacts, and enhance the overall appearance of the equipment should be taken into account. More specifically:

(a) Reasonable attempts have been made to avoid exposing rooftop mechanical equipment to public view from city streets. Among the techniques that might be considered are the inclusion of screens or a parapet around the roof of the building to shield low ducts and other equipment on the roof from view.

(b) Treatment of the mechanical equipment (including design and massing of screening devices as well as exposed mechanical elements) that relates well to the overall design, massing, scale and character of the building.

(c) Placement of mechanical equipment in enclosed locations within the building (if it does not violate the Flood Resilience Standards in Section 22.80), which reduces the bulk of elements located on the roof; however, at-grade locations external to the building should not be viewed as desirable alternatives and should be visually and acoustically screened with fencing and/or landscape features wherever they are necessary.

(d) Tall elements, such as chimneys and air exhaust stacks, which are typically carried above screening devices for functioning reasons, are carefully designed as features of the building, thus creating interest on the skyline.

(e) All aspects of the mechanical equipment have been designed with attention to their visual impact on adjacent areas, particularly with regard to residential neighborhoods and views and vistas.

(2) Trash that is handled to avoid impacts (noise, odor, and visual quality) on neighbors, e.g. the use of trash compactors or containment of all trash storage and handling within a building is encouraged.

(3) Loading docks that are located and designed to minimize impacts (visual and operational) on neighbors.

(4) Stormwater Best Management Practices and other measures to minimize runoff and improve water quality are implemented.

(5) Landscaped areas and required Green Area Open Space, in addition to serving as visual amenities, are employed to reduce the rate and volume of stormwater runoff compared to pre-development conditions.

(6) The structure is designed and sited to minimize shadow impacts on neighboring lots, especially shadows that would have a significant impact on the use and enjoyment of adjacent open space and shadows that might impact the operation of a Registered Solar Energy System as defined in Section 22.80 of this Zoning Ordinance.

(7) Changes in grade across the lot are designed in ways that minimize the need for structural retaining walls close to property lines.

(8) Building scale and wall treatment, including the provision of windows, are sensitive to existing residential uses on adjacent lots.

(9) Outdoor lighting is designed to provide minimum lighting and necessary to ensure adequate safety, night vision, and comfort, while minimizing light pollution.

(10) The creation of a Tree Protection Plan that identifies important trees on the site, encourages their protection, or provides for adequate replacement of trees lost to development on the site.

19.34 Projects should not overburden the City infrastructure services, including neighborhood roads, city water supply system, and sewer system. Indicators include:

(1) The building and site design are designed to make use of water-conserving plumbing and minimize the amount of stormwater run-off through the use of best management practices for stormwater management.

(2) The capacity and condition of drinking water and wastewater infrastructure systems are shown to be adequate, or the steps necessary to bring them up to an acceptable level are identified.

(3) Buildings are designed to use natural resources and energy resources efficiently in construction, maintenance, and long-term operation of the building, including supporting mechanical systems that reduce the need for mechanical equipment generally and its location on the roof of a building specifically. The buildings are sited on the lot to allow construction on adjacent lots to do the same. Exceeding the Green Building Requirements set forth in Section 22.20 of this Zoning Ordinance and other evolving environmentally sustainable standards is encouraged.

19.35 New construction should reinforce and enhance the complex urban aspects of Cambridge as it has developed historically. Indictors include:

(1) New educational institutional construction that is focused within the existing campuses.

(2) Where institutional construction occurs in commercial areas, retail, consumer service enterprises, and other uses that are accessible to the general public are provided at the ground (or lower) floors of buildings. Where such uses are not suitable for programmatic reasons, institutional uses that encourage active pedestrian traffic to and from the site.

(3) In large, multiple-building non-institutional developments, a mix of uses, including publicly accessible retail activity, is provided where such uses are permitted and where the mix of uses extends the period of time the area remains active throughout the day.

(4) Historic structures and environments are preserved.

(5) Preservation or provision of facilities for start-up companies and appropriately scaled manufacturing activities that provide a wide diversity of employment paths for Cambridge residents as a component of the development; however, activities heavily dependent on trucking for supply and distribution are not encouraged.

19.36 Expansion of the inventory of housing in the city is encouraged. Indicators include:

(1) Housing is a component of any large, multiple building commercial development. Where such development abuts residential zoning districts substantially developed to low-scale residential uses, placement of housing within the development such that it acts as a transition/buffer between uses within and without the development.

(2) Where housing is constructed, providing affordable units exceeding that mandated by the Ordinance. Targeting larger family-sized middle-income units is encouraged.

19.37 Enhancement and expansion of open space amenities in the city should be incorporated into new development in the city. Indicators include:

(1) On large-parcel commercial developments, publicly beneficial open space is provided.

(2) Open space facilities are designed to enhance or expand existing facilities or to expand networks of pedestrian and bicycle movement within the vicinity of the development.

(3) A wider range of open space activities than presently found in the abutting area is provided.

19.38 Development should be resilient to the effects of climate change as anticipated in the *Resilient Cambridge* plan published by the City. Indicators include:

(1) The design has incorporated the most up-to-date projections of climate change impacts over the project's anticipated lifespan, including increases in temperature and precipitation and risk of future flooding.

(2) The project is designed to meet or exceed the Flood Resilience Standard in Section 22.80 of this Zoning Ordinance and the Green Factor Standard in Section 22.90 of this Zoning Ordinance. Design strategies may be supplemented by mitigation strategies to manage the effects of flooding and heat where appropriate.

(3) The design uses resilience strategies that have environmental co-benefits. An example is passive building envelope design, which promotes occupant comfort during extreme heat and resilience from power outages due to storms while also reducing energy use and greenhouse gas emissions. Another example is intensive vegetation at grade and on roofs, which provides cooling benefits while improving stormwater management.

(4) The design takes an integrative approach to climate change resilience that accounts for the existing context and promotes the other design objectives of the area and the City.

(Ord. No. 2022-9, 2-27-2023)

19.40 CITYWIDE ADVISORY DEVELOPMENT CONSULTATION PROCEDURES

19.41 *General Purpose*. This Section 19.40 provides the opportunity for City staff and the general public (1) to review and comment on development proposals prior to the formulation of final plans and before the issuance of a building permit and (2) to determine compliance with the zoning requirements applicable to the development. Each application for a building permit for one of the categories of development specified in Sections 19.42 and 19.43 shall be accompanied by a written certification from the Cambridge Community Development Department (CDD) indicating that the applicant has participated in the Development Consultation Procedure specified in this Section 19.40, for the proposal for which the permit is being sought. In each instance where the application for a building permit occurs more than six (6) months after the consultation session, CDD shall additionally certify to the Superintendent of Buildings whether the plans submitted for a building permit are consistent with those reviewed at the consultation session, and if not how they differ. Unless otherwise indicated elsewhere in the Zoning Ordinance, the Community Development Department shall conduct the consultation session. No certification pursuant to provisions of this Section 19.40 shall be deemed to be in lieu of the responsibility of the Superintendent of Buildings to enforce all provisions of the Zoning Ordinance - each Certificate of Compliance is advisory to the applicant and the Superintendent of Buildings. The failure of CDD to hold the consultation session or to issue the Certificate of Compliance within the review time periods specified in this Section shall not prevent an applicant for a building permit from receiving such permit after such time period has expired.

19.41.1 Types of Advisory Development Consultations

a. Staff Advisory Consultations are intended for City staff from CDD and other departments with relevant expertise to discuss requirements and City standards that will be

applicable to the project and to provide non-binding comments on the project's conformance with the Citywide Urban Design Objectives and design objectives specific to an area. The process is informal with few requirements for submission.

b. Public Advisory Consultations are intended for members of the public to learn about a proposed development and provide non-binding input directly to the developer, sometimes through an appointed Advisory Committee which makes a report. The process is more structured with requirements for materials submission, scheduling and notification.

c. Planning Board Advisory Consultations are intended to provide a forum for input from the public, city staff, and the Planning Board through a process similar to a special permit hearing but not resulting in an approval or denial of permits for the proposed development.

19.42 *Staff Advisory Consultation Procedure*.

19.42.1 *Applicability of Staff Advisory Consultation Procedure.*

a. For those zoning districts identified in Section 19.46 as Areas of Special Planning Concern, the following types of development proposals shall be subject to the Staff Advisory Consultation Procedure (unless the regulations for an individual Area of Special Planning Concern provide for specific exceptions or additional types):

(1) Construction of any new building having a gross floor area of less than two thousand (2,000) square feet devoted to uses other than Residences listed in Section 4.31 a-j.;

(2) Construction of any other new structure having a floor area of less than two thousand (2,000) square feet devoted to uses other than Residences listed in Section 4.31 a-j.;

(3) Any exterior building alteration increasing gross floor area by one hundred (100) square feet or more; or

(4) Construction of five or more parking spaces, whether on grade or in a structure.

b. Where a Staff Advisory Consultation is not required by Paragraph b. above, it shall be required if the development is subject to the Building and Site Plan Requirements in Section 19.50.

c. A Staff Advisory Consultation may be requested voluntarily for any development proposal, and is strongly encouraged for any development before requesting a Public or Planning Board Advisory Consultation procedure and before applying for any special permit from the Planning Board.

19.42.2 Request for a Staff Advisory Consultation. Prior to application for a building permit, the applicant shall contact CDD and request a development consultation session. Upon making such a request, the applicant shall present for review such written or graphic materials necessary to give a reasonably complete, though not necessarily detailed, indication of the nature and scope of the development proposal. For projects that involve the construction of

a new building or an addition to a building on a new foundation, for advisory purposes only, the materials should include those required by the Flood Resilience standards set forth in Section 22.80 and the Green Factor standards set forth in Section 22.90. For projects that involve an increase in the amount or area of surface parking, or a decrease in the amount of open space provided, the materials should include those required by the Green Factor standards set forth in Section 22.90. The consultation session shall occur no later than ten business days after the request for such a consultation, unless a longer timeframe is mutually agreed to by the developer and CDD.

19.42.3 Completion of the Staff Consultation. In most cases CDD and other City staff will provide feedback during the consultation session and will discuss with the developer if further review will be needed to determine compliance with applicable standards.

Where the Staff Advisory Consultation is required, the final staff comments and the issuance of the Certificate of compliance shall be made within ten business days of the consultation session, unless a longer timeframe is mutually agreed to by the developer and CDD.

19.43 *Public Advisory Consultation Procedure*.

19.43.1 Applicability of Public Advisory Consultation Procedure. For those zoning districts identified in Section 19.46 as Areas of Special Planning Concern, any development proposal involving the construction of a new building or new structure or an alteration of an existing building or structure that increases the gross floor by two thousand (2,000) square feet but does not require a Planning Board Advisory Consultation or a special permit from the Planning Board.

19.43.2 Application for a Public Advisory Consultation. Prior to application for a building permit, the applicant shall submit the following materials to CDD for its review. The written and graphic materials listed below shall give a reasonably complete indication of the nature and scope of the development proposal. Each of the following shall be submitted as appropriate to the proposal:

(1) A site plan indicating the general location and boundaries of the lot, major anticipated changes in natural features, existing and proposed buildings, publicly beneficial open space and/or useable beneficial open space and/or private open space, existing and proposed curb cuts, off street parking areas, loading and service facilities, and generalized landscaping scheme or other anticipated treatment of open spaces.

(2) Cross section(s), generalized floor plans and other diagram(s) indicating the anticipated locations of various land uses within the building and on the site and major pedestrian pathways.

(3) Architectural elevations or sketches indicating anticipated facade treatment along public ways including the proposed entrances, fenestration, and signage.

(4) A summary indicating compliance with applicable zoning requirements.

(5) For projects that involve the construction of a new building or an addition to a building on a new foundation, materials identified in the Flood Resilience standards set forth in

Section 22.80 shall be submitted to CDD for review and approval. If Section 22.80 is not applicable to the project, the materials shall nonetheless be provided for advisory purposes.

(6) For projects that involve the construction of a new building, enlargement of an existing building footprint, increase in the amount or area of surface parking, or decrease in the amount of open space provided, materials identified in the Green Factor standards set forth in Section 22.90 shall be submitted to CDD for review and approval. If Section 22.90 is not applicable to the project, the materials shall nonetheless be provided for advisory purposes.

19.43.3 Conduct of the Public Advisory Consultation. Abutters and representatives of various agencies and interest groups shall be invited to participate in a consultation session for proposals submitted for review in accordance with Section 19.43.2. Where an advisory committee has been established in this Zoning Ordinance for the area where the proposal is located (for example, the Harvard Square Overlay District or Central Square Overlay District), the consultation session shall be held at a public meeting of that advisory committee. Otherwise, CDD shall schedule a public meeting and give notification of any scheduled development consultation to each abutting property owner and to any individual or organization who each year files with CDD a written request for such notification, or to any other individual or organization CDD may wish to notify.

Within twenty (20) business days of submittal of the application documents, or at a regularly scheduled meeting of an advisory committee if applicable, the Department will schedule and hold a consultation session with the applicant or the applicant's representatives and any parties listed in this Section 19.43.3. Within ten (10) days of the consultation session, CDD shall issue to the applicant written comments on the development proposal as expressed by City staff and others in attendance, which shall constitute the Certificate of Compliance. Timeframes may be extended by mutual agreement of the applicant and CDD.

CDD may seek the advice and assistance of other City departments and of the organizations given notice of the consultation procedure in reviewing a development proposal.

19.43.4 Review Criteria and Required Findings of the Public Advisory Consultation Procedure. In reviewing each application, CDD shall:

(1) Evaluate the proposal for general compliance with zoning requirements, for consistency with City development guidelines prepared for the proposal area, for appropriateness in terms of other planned or programmed public or private development activities in the vicinity and for consistency with the Citywide Urban Design Objectives set forth in Section 19.30. The Department shall consider the proposal in terms of the specific and general impact of the use and/or dimensions proposed therein on the area of special planning concern and on adjacent neighborhoods and shall further take

account of the following considerations: scale, bulk, density, aesthetic qualities, land use, traffic impacts and other functional characteristics; parking and loading; and impact on public services and facilities.

(a) Additional Criteria in Business A-4 District Ground Floor Retail uses of less than 2,000 square feet which will serve as an amenity for the surrounding residential neighborhood should be included in any building greater than 20,000 square feet.

(2) Make recommendations in a written report to the applicant including general approval or disapproval of the proposal and in connection therewith may suggest specific project adjustments and alterations to further the purposes of this Ordinance.

19.44 The Memorandum of Understanding ("MOU") dated October 5, 2015, signed by Eric Hoagland on behalf of Observatory Hill Apartments, LLC (the "LLC"), acting on behalf of the LLC as developer of the proposed development at 253 Walden Street, identified as Map 272, Lot 17 in the records of the City of Cambridge (the "Project"), and the Neighborhood Review Committee ("NRC"), consisting of residents of the surrounding community , is incorporated by reference hereto and shall be binding upon the Project as set forth in the MOU. The issues of any building permit or certificate of occupancy for the Project shall be conditioned upon certification by the Commissioner of Inspectional Services that the Project is in compliance with all provisions of the aforementioned MOU.

19.45 [Deleted]

19.46 *Areas of Special Planning Concern*. The following zoning districts shall be considered Areas of Special Planning Concern: Business A-1 and Business A-2 and Business A-4 Districts, the Parkway Overlay District, the Kirkland Place Overlay District, the Harvard Square Overlay District, the Central Square Overlay District, The Cambridgeport Revitalization Development District, the Massachusetts Avenue Overlay District, Special District 12, Special District 13, Special District 14 and the Memorial Drive Overlay District, Prospect Street Overlay District and the Alewife Overlay Districts.

19.47 *Planning Board Advisory Consultation Procedure*

19.47.1 *Applicability of Planning Board Advisory Consultation Procedure.*

a. The Planning Board Advisory Consultation Procedure shall be required as set forth below, except it shall not be required for any development requiring a special permit from the Planning Board.

b. The Planning Board Advisory Consultation Procedure shall be required for new construction of at least 50,000 square feet of GFA in those districts where the Project Review Special Permit is applicable pursuant to Section 19.22. In the case of a change of use, as described in Section 19.23.1, projects containing at least 50,000 square feet of GFA devoted to a new use shall require a Planning Board Advisory Consultation Procedure only to review proposed changes to the exterior of the building, including but not limited to changes to the site design or roof layout.

c. The Planning Board Advisory Consultation may be required in other instances as set forth elsewhere in this Zoning Ordinance.

19.47.2 *Preliminary Consultation*

a. The developer shall request a preliminary consultation by submitting the following plans and other documents to the Planning Board for review. Meeting with CDD staff is strongly encouraged before preparing materials. All drawings shall be drawn to scale and shall include a graphic scale and north arrow for orientation. For the preliminary consultation, the submitted plans do not need to be detailed but must sufficiently describe the proposed layout of buildings and major site features, the height and massing of proposed buildings in relation to surrounding buildings, and circulation routes through the site for pedestrians, bicycles, and motor vehicles.

1. A preliminary dimensional form, in a format provided by CDD, along with any supplemental materials, summarizing the dimensional characteristics of the project (such as height, Gross Floor Area, dwelling units, parking, and bicycle parking) and demonstrating compliance with applicable zoning requirements. Figures may be approximate for the preliminary consultation but must be accurate for the final consultation.
2. A brief project narrative describing the project and the design approach, and indicating how the project has been designed in relation to the citywide urban design objectives set forth in Section 19.30 of the Zoning Ordinance and any design guidelines that have been established for the area and for the type of project.
3. A context map indicating the location of the project and surrounding land uses, including transportation facilities.
4. Existing conditions photographs and narrative information describing the site and the context of surrounding lots including building heights, setbacks, architectural character, and unique features that inform and influence the design of the project.
5. An existing conditions site plan depicting the boundaries of the lot, the locations of buildings, open space features, parking areas, trees, landscape/hardscape, and other major site features on the lot and abutting lots, and the conditions of abutting streets.
6. A proposed conditions site plan depicting the same information above as modified to depict the proposed conditions, including new buildings (with one version showing a plan of building entrances and uses on the ground story, and a second version showing a plan of building roofs) and major anticipated changes in site features including but not limited to parking and bicycle parking locations.
7. Elevation drawings of all proposed new buildings and/or existing buildings on the site that are within the scope of the proposal, depicting the ground story

elevations and heights of proposed and existing buildings (including portions of buildings that abut the site) and the locations of entrances and window openings.

8. Proposed conditions perspective renderings from a variety of vantage points on the public sidewalk and from public open space, including locations adjacent to the site as well as longer views if proposed buildings will be visible from a distance.

9. Example photographs and specifications of surface materials being considered for use on different portions of building façades.

10. A statement of intent describing applicable development standards in this Zoning Ordinance and how they are proposed to be met, including but not limited to sustainable development standards in Article 22.000 and affordable housing standards in Section 11.200.

11. A summary of community engagement efforts as described below.

b. In the process of preparing plans and materials, the developer shall conduct a process to inform members of the surrounding community about the proposal and receive advisory feedback.

1. The community engagement shall include, at a minimum, one in-person opportunity and one virtual opportunity for community members to ask questions and provide input, which could be conducted at separate times or simultaneously in a hybrid meeting format.

2. The developer shall create a notification in physical and digital formats that includes the location of the project, a general description of the project, the date, time, location, and other information necessary for people to attend engagement events, and contact information (telephone and e-mail, at minimum) for the developer.

3. The developer shall provide the notification to CDD. CDD shall provide the developer with a list of abutters, owners of land directly opposite on any public or private street or way, and abutters to the abutters within three hundred feet of the property line of the lot and to any individual or organization who each year files with CDD a written request for such notification. The developer shall provide notification to those parties at least two weeks in advance of any meeting or event and is expected to reach out to other individuals and groups within the community surrounding the site to reach a diverse range of community members with an interest in the proposal. The developer shall also post a notification at a physical location on or near the site that is visible and legible from the public sidewalk.

4. The preliminary submission to the Planning Board shall include a description of what outreach was conducted, what feedback was received, and how it informed the design approach.

c. CDD shall review the submitted written and graphic materials to certify that they provide the required information in sufficient detail for the preliminary consultation. Within 65 days of receipt of a complete set of materials, or longer if the developer and CDD mutually agree in writing to a longer timeframe, CDD shall schedule a preliminary consultation as a general business matter at a regular public meeting of the Planning Board and shall send written notification to abutters, owners of land directly opposite on any public or private street or way, and abutters to the abutters within three hundred feet of the property line of the lot on which the project is proposed and to any individual or organization who each year files with CDD a written request for such notification, and to any other individual or organization CDD may wish to notify. The submitted materials shall be made available to the public in advance. Members of the public may send written comments to the Planning Board in advance of the consultation in accordance with the Planning Board's rules for written comment.

d. The developer shall prepare a physical or digital massing model of the proposal to be presented at the scheduled consultation. The purpose of the model is to illustrate the scale and massing of new buildings in relation to nearby buildings, streets and open spaces. The developer shall consult with CDD staff to determine the appropriate scale and extent of the model given the characteristics of the site and of the proposal. CDD may determine that a model is not required if it does not propose any new construction or significant enlargement of a building or otherwise does not represent a significant change from existing conditions in terms of the scale or height of buildings.

e. At the scheduled consultation, the Planning Board shall hear a presentation of the proposal from the developer and oral comments from the public in accordance with the Planning Board rules. The Board may ask questions or seek additional information from the developer or from City staff.

f. The Planning Board shall evaluate the proposal for general compliance with the requirements of the zoning district and for consistency with the Citywide Urban Design Objectives set forth in Section 19.30 and other plans or guidelines established by the City that are applicable to the development. The Board may also suggest improvements to the proposal to further the purposes of this Ordinance.

g. The Planning Board shall conclude the session by making a preliminary report to the developer with comments and suggestions to be discussed at a final consultation. The written report shall be provided to the developer within 20 business days of the preliminary consultation.

19.47.3 *Final Consultation*

a. To request a final consultation, after receiving the preliminary report, the developer shall provide revised versions of the materials provided for the preliminary consultation at a level of design development sufficient to verify that applicable standards are being met and to accurately represent the project's final design. Plans shall include labeled

distances and dimensions of significant building and site features. The following specific materials shall be included in addition to those listed above, or in place of those materials where they provide greater detail.

1. Narrative information describing the feedback received in the preliminary report and how the revised proposal has incorporated that feedback.
2. Floor plans of all proposed new buildings and/or remaining existing buildings proposed to be altered.
3. Elevations and cross-section drawings of all proposed new buildings and/or remaining existing buildings proposed to be altered, depicting the distances to lot lines and the heights of surrounding buildings, and labeling the proposed materials on each façade elevation.
4. A landscape plan depicting and labeling all hardscape, permeable, and vegetated areas proposed for the site along with other structures or appurtenances on the site and locations of light fixtures.
5. Plans of parking and bicycle parking facilities, as required by Section 6.50 of this Zoning Ordinance.
6. Materials palettes cataloguing and depicting with photographs the proposed façade and landscape materials.
7. Shadow studies that show the impact on neighboring properties and public spaces.
8. Materials required to verify compliance with applicable sustainable development standards in Article 22.000, as would be required at the special permit stage of review.

b. CDD shall review the submitted written and graphic materials to certify that they provide the required information in sufficient detail for the final consultation. Within 65 days of receipt of a complete set of materials, or longer if the developer and CDD mutually agree in writing to a longer timeframe, CDD shall schedule a final consultation as a general business matter at a regular public meeting of the Planning Board. CDD shall provide notification, and written comments may be submitted in advance, in accordance with the same procedures as the preliminary consultation.

c. At the final consultation, the Planning Board shall hear a presentation of the proposal from the developer, focusing on changes and additional details provided since the preliminary consultation, and oral comments from the public. A massing model, revised to reflect any design changes, will again be made available for review. The Board may ask questions or seek additional information from the developer or from City staff.

d. The Planning Board shall evaluate the revised design for general compliance with the requirements of the zoning district and for consistency with the Citywide Urban Design Objectives set forth in Section 19.30 as well as any other plans or guidelines

established by the City that are applicable to the development. The Board may also suggest specific project adjustments and alterations to further the purposes of this Ordinance.

e. The Planning Board shall conclude the final consultation by making a final report to the developer with general comments and suggestions for further design improvements, if any, to be considered before seeking a building permit. The written report shall be provided to the developer within 20 business days of the design consultation and shall be provided to the Superintendent of Buildings to certify that the procedural requirements have been met before issuance of a building permit.

(Ord. No. 2022-9, 2-27-2023; Ord. No. 2025-2, 2-10-2025)

19.50 BUILDING AND SITE PLAN REQUIREMENTS

19.51 *Applicability*.

19.51.1 Applicable Zoning Districts. This Section 19.50 shall apply in the following zoning districts:

(1) All Office, Business, and Industrial Districts and NP districts, and any Special District for which an office, business or industrial district serves as the underlying base regulation (SD-1, SD-3, SD-5, SD-7, SD-8, and SD-11).

(2) Residence C-1, C-1A, C-2, C-2A, C-2B, C-3, C-3A, and C-3B districts, and any Special District for which any one of these residence districts serves as the underlying base regulation (SD-2, and SD-6) for a building or portion of a building within one hundred (100) feet of a public street.

19.51.2 Applicable Construction. The building design and site development requirements set forth in this Section 19.50 shall be required for the following construction projects:

(1) Any new building or structure of twenty-five thousand (25,000) gross square feet or more.

(2) Any addition of twenty-five thousand (25,000) gross square feet or more to an existing building or structure.

(3) Any alteration to the elements of a building of twenty-five thousand (25,000) gross square feet or more, or any alteration of its site, that is regulated by this Section 19.50, where the change is undertaken to accommodate a new use or uses or where the change is to a building constructed pursuant to a building permit certified to be in compliance with this Section 19.50 and where (a) the alterations to accommodate the new use are proposed to the exterior of the building, or on the lot outside the building and (b) those alterations would increase the extent to which the building or lot's physical configuration would violate the requirements set forth in Section 19.50 to a greater extent than the existing configuration.

Where applicable zoning district regulations differ from the requirements of this Section 19.50, the stricter provisions shall apply.

A project that does not comply with the requirements of this Section 19.50 shall not receive a building permit until a Special Permit is granted by the Planning Board. The Planning Board shall grant such special permit only upon finding that the project is consistent with the Urban Design Objectives set forth in Section 19.30. Nothing in this Section 19.50 shall prevent an applicant, not wishing to conform to the requirements of this Section 19.50, from directly seeking a special permit from the Planning Board subject to consistency with Section 19.30.

Any application for a Building Permit for development subject to this Section 19.50 shall be accompanied by a Tree Study, certified complete by the City Arborist, as required by the Tree Protection Ordinance of the City of Cambridge, Chapter 8.66.

19.52 *Heights, Setbacks and Building Façades*. The provisions of this Section 19.52 shall not apply to Special District 8.

(1) For development on a lot abutting a lot in a residential zoning district having a more restrictive height limit, the cornice line of the principal wall plane facing the residential zoning district line shall not exceed by more than twenty (20) feet at any point the maximum height permitted in the residential zoning district. Any portion of the building rising above the cornice line shall be located below a forty-five (45) degree bulk control plane starting at ground level at the zoning district line, subject to the following provisions.

(a) Where the zoning district line lies within a lot, the bulk control plane shall begin at the lot line in the residential zoning district that divides the subject lot (including any intervening lots held in identical ownership but not part of the development lot and such lots located across the street) from another lot in different ownership.

(b) Where the zoning district line occurs within a public street, the provisions of this Section 19.52 shall apply but the bulk control plane shall be measured from the centerline of the street regardless of the location of the zoning district line.

(2) For development on a lot abutting a residential zoning district having more restrictive yard requirements, the yard requirements of the residential district shall apply to any portion of the development rising above the bulk control plane set forth in Paragraph (1) above. As in (1) above, where the zoning district line lies within a lot, the bulk control plane shall begin at the lot line in the residential zoning district that divides the subject lot (including any intervening lots held in identical ownership but not part of the development lot) from another lot in different ownership. This Paragraph (2) shall not apply where the zoning district line lies within or across a street.

(3) A building footprint exceeding two hundred and fifty (250) feet in length, measured parallel to the street, shall contain a massing recess extending back at least fifteen (15) feet in depth measured from and perpendicular to the front lot line and at least fifteen (15) feet in width measured parallel to the front lot line so that the maximum length of unbroken façade is one hundred fifty (150) feet.

(4) For portions of buildings containing residential uses, building façades shall incorporate architectural elements that project or recess by at least two feet from the adjacent section of the façade. Such projecting or recessed elements shall occur on an average interval of 40 linear horizontal feet or less for portions of the façade directly facing a public street, and on an average interval of 80 linear horizontal feet or less for other portions of the façade. Such projecting or recessed elements shall not be required on the lowest Story Above Grade or on the highest Story Above Grade, and shall not be required on the highest two Stories Above Grade of a building containing at least six Stories Above Grade. The intent is to incorporate elements such as bays, balconies, cornices, shading devices, or similar architectural elements that promote visual interest and residential character, and to allow variation at the ground floor and on upper floors where a different architectural treatment may be preferable.

19.53 *Location of Uses*.

(1) In mixed-use developments containing a residential component (Section 4.31 - Residential uses, excluding Hotel and Motel use), the housing shall be located on the lot adjacent to existing residential uses located on abutting lots or across a street or shall be located adjacent to an existing abutting residential zoning district, including a district located across a street.

(2) In mixed-use developments containing a retail component (Section 4.35 - Retail Business and Consumer Service Establishments), at least fifty (50) percent of the area devoted to retail uses shall be located fronting onto at least one of the public streets abutting the development. However, in multiple building developments where internal private streets open to the general public are created, retail uses may located on those private streets shall be deemed to meet the requirements of this Paragraph (2).

19.54 *Historic Resources*. No building permit pursuant to a Certificate of Compliance issued for a project subject to this Section 19.50 shall be issued until at least one of the following events has occurred:

(1) The project has received, where applicable, a Certificate of Appropriateness, Hardship, or non-applicability from the Cambridge Historical Commission under the provisions of M.G.L. Chapter 40C and/or Chapter 2.78, Articles I or III, Cambridge city Ordinances, or from a Neighborhood Conservation District Commission under Chapter 2.78, Article III.

(2) Where a building on the site has been determined by the Cambridge Historical Commission to be a Preferably Preserved Significant Building under the provisions of Chapter 2.78, Article II, Cambridge City Ordinances, or the six month demolition delay period has expired.

19.55 *Landscaping*.

(1) The area between the principal wall plane of a building and a public street or public park, whether required or provided, shall be devoted to Green Area (as defined in Article 2.000), expansion of the adjacent public sidewalk, park area, or other land-

scaped area or paved pedestrian area and extending along the entire length of the lot facing the street or park. Areas devoted to motor vehicular use are prohibited from this area with the exception of access drives providing direct access to parking and service facilities located elsewhere on the site and which shall be limited to a total of thirty (30) feet of width for any individual driveway for each one hundred (100) feet of lot frontage.

Where the front lot width is greater than three hundred (300) feet the provisions of this Paragraph shall only apply to that portion of the front yard extending beyond the side facades of the building, parallel to the front lot line or parallel to the adjacent park lot line, equal in length to the side yard setback(s) that would otherwise be required for the building in the district within which it is located.

(2) The green area required in Paragraph (1) above shall initially be located at the mean grade of the relevant public street or open space at the property line. Beyond that point, a change in grade that can be maintained permanently without structural support shall be permitted.

19.56 *Pedestrian Environment*. The portion of the ground floor of a building (defined as the first floor of a building located either at mean grade or no more than four feet above the mean grade of the building) and the floors above that face and are within one hundred (100) feet of a public street or directly abuts and is within one hundred (100) feet of a public park shall consist of space routinely occupied by people throughout normal business hours engaged in those activities for which the building is principally intended to accommodate, including, but not limited to, retail stores sales areas; consumer service businesses; general, professional and agency offices; institutional offices, classrooms and dormitories; building lobbies, residential units, manufacturing and research and development activities, etc. (but excluding specifically parking and loading facilities), subject to the following requirements.

(1) The actively used area shall have a depth of at least 20 feet, or the depth of the building if less. If the area is occupied by uses other than Residences or Dormitories, the height of the Ground Story for that portion of the building shall be at least fifteen (15) feet and the depth shall be at least thirty-five (35) feet on average measured from the portion of the façade that is nearest to the front lot line in a direction perpendicular to the street, and measured toward at least one street in instances where the space abuts two or more streets.

(2) The facades shall consist of a minimum twenty-five (25) percent clear glass in total for the façade and at the ground floor subject to the following further provisions.

(a) At the ground floor; the minimum amount of clear glass shall be increased to fifty (50) percent of the area of the façade of the ground floor where retail and office uses are established (Section 4.34 - Office and Laboratory Uses, Paragraphs a-e, and Section 4.35 - Retail Business and Consumer Service Establishments). For purposes of this Section 19.56, the area of the façade of any given floor shall be measured vertically from the finished interior floor to the underside of the structural joists of the floor above.

(b) Where residential and dormitory uses are established, the minimum area of clear glass shall be reduced to twenty (20) percent of the entire façade, with no minimum requirement on the first floor.

(c) No minimum requirement shall be imposed for Theaters (Section 4.35 h), Place of worship [Section 4.56 a (1)], College or university athletic facility, auditorium, and theater facility [Section 4.56 c (4)], Fire and police stations [Section 4.56 g (2)], Municipal service facility [4.56 g (4)], Museum [4.56 g (3)], and Transformer station, substation [Section 4.32 g (2)].

(3) Where retail uses are established, each separately leased space shall have an individual public entrance onto the abutting street where any portion of the space fronts towards the street;

(4) At least one building entrance shall front on a street where the building abuts a street.

(5) The façade of a Ground Story facing a public street shall consist of expanses no longer than twenty-five (25) feet in length, measured parallel to the street, which contain no transparent windows or pedestrian entryways.

Where a freestanding parking garage is established, the requirements of this Section 19.55 shall apply only to the ground floor of the structure. Exempt from this requirement shall be one two-way access drive to accessory parking located elsewhere on the lot and the area necessary to meet the minimum zoning required for loading facilities provided that no more than twenty-five (25) percent of the total length of any one façade is occupied by all such facilities.

19.57 *Parking*. On-grade surface parking shall not be placed in front of the principal front wall plane of a building, extended across the entire width of a lot, unless the parking is screened from view from the public street by other buildings. Where the lot width at the Principal Front Wall Plane of the building is greater than 300 feet, the provisions of this paragraph shall only apply to that portion of the front yard extending beyond the side facades of the building, parallel to the front lot line, equal in length to the side yard setback(s) that would otherwise be required for the building in the district within which it is located.

Where a lot abuts more than two streets, the provisions of this Section 19.57 shall apply to no more than two streets.

19.58 *Mechanical Equipment, Refuse Storage, and Loading Areas*. All mechanical equipment, refuse storage, or loading areas serving the building or its occupants that are (1) carried above the roof, (2) located at the exterior building wall or (3) located outside the building, shall meet the requirements listed below. Mechanical equipment includes, but is not limited to, ventilation equipment including exhaust fans and ducts, air conditioning equipment, elevator bulkheads, heat exchangers, transformers and any other equipment that, when in operation, potentially creates a noise detectable off the lot. The equipment and other facilities:

(1) Shall not be located within any required setback. Where no setback is required, it shall not be located closer than 10 feet to any property line or it shall be entirely contained within the building. This Paragraph (1) shall not apply to electrical equipment whose location is mandated by a recognized public utility.

(2) When on the ground, shall be permanently screened from view from adjacent public streets that are within 100 feet of the building, or from the view from abutting property in separate ownership at the property line. The screening shall consist of densely planted shrubs or trees equal or greater in height at the time of installation than the equipment or facilities to be screened, or a fence of equal or greater height that is comparable in quality to the materials used on the principal facades of the building, with no more than twenty-five (25) percent of the face of the fence open.

When carried above the roof, shall be permanently screened from view, from the ground, from adjacent public streets and any abutting residentially used lot or lots in a residential zoning district. The screening shall be at least 50% opaque, uniformly distributed across the screening surface.

(3) Shall be designed to meet all city, state and federal noise regulations, as applicable, as certified by a professional acoustical engineer if the Department of Inspectional Services deems such certification necessary.

(4) That handle trash and other waste, shall be contained within the building or screened as required in this Section 19.58 until properly disposed of.

19.59 *Open Space*. At least 15% of the lot shall consist of any combination of Green Area or Permeable Open Space as defined in Article 2.000. This requirement may be met on a lot held in the same ownership, provided the Open Space is located within 300 feet of the development lot and does not serve to meet the requirement of this Section 19.59 for any other development.

19.510 *Green Building Requirements*. The requirements of Section 22.20 of this Zoning Ordinance shall be met.

(Ord. No. 2025-2, 2-10-2025)

ARTICLE 20.000 OVERLAY DISTRICTS

20.10 TRANSITION OVERLAY DISTRICTS
20.11 HAMMOND AND GORHAM STREETS TRANSITION OVERLAY DISTRICT
20.12 KIRKLAND PLACE TRANSITION OVERLAY DISTRICT
20.20 MIXED USE RESIDENTIAL OVERLAY DISTRICT (MXR)
20.30 DELETED
20.40 EASTERN CAMBRIDGE HOUSING OVERLAY DISTRICT
20.50 HARVARD SQUARE OVERLAY DISTRICT AND HARVARD SQUARE HISTORIC OVERLAY DISTRICT
20.60 PARKWAY OVERLAY DISTRICT
20.70 FLOODPLAIN OVERLAY DISTRICT
20.80 MEMORIAL DRIVE OVERLAY DISTRICT
20.90 ALEWIFE OVERLAY DISTRICTS 5 AND 6
20.100 MASSACHUSETTS AVENUE OVERLAY DISTRICT
20.200 PROSPECT STREET OVERLAY DISTRICT
20.300 CENTRAL SQUARE OVERLAY DISTRICT
20.400 PATHWAY OVERLAY DISTRICT
20.500 LESLEY PORTER OVERLAY DISTRICT
20.600 BASEMENT HOUSING OVERLAY DISTRICT
20.700 DELETED (SEE SECTION 11.800)
20.800 DELETED
20.1000 GRAND JUNCTION PATHWAY OVERLAY DISTRICT
20.1100 ALEWIFE OVERLAY DISTRICT—QUADRANGLE
20.1200 EAST CAMBRIDGE COMMUNITY ENHANCEMENT OVERLAY DISTRICT

[Note: *Institutional Overlay Districts are located in Section 4.50 of the Zoning Ordinance and the Eastern Cambridge Development Rights Transfer Districts are located in Article 21.000]*

20.10 TRANSITION OVERLAY DISTRICTS

These overlay districts are intended to apply special dimensional, use, and other standards to development in areas where abutting zoning districts have significantly different character in one or more use or dimensional aspects. It is intended that the provisions of the overlay district will modify the form, location, and use of buildings such that the use of land in each district will not be unreasonably negatively impacted by the use of land in the adjoining district. The requirements of each overlay district shall apply in addition to the requirements of the pertinent base zoning district; where the base zoning regulations differ from the requirements of the overlay district, the requirements of the overlay district shall apply.

20.11 HAMMOND AND GORHAM STREETS TRANSITION OVERLAY DISTRICT

20.11.1 Establishment and Scope. There is hereby established the Hammond and Gorham Streets Transition Overlay District, which shall be governed by the regulations and procedures specified in this Section 20.11. These regulations are intended to provide a transition between the character and scale of development existing and permitted in the abutting Residence C-1 district and the institutional development existing and permitted in the base Residence C-3 district. It is the intent of this Section that these regulations shall apply to a single area located at the southerly edge of Hammond Street and Gorham Street, which

shall be designated as the "Hammond and Gorham Streets Transition Overlay District" on the Zoning Map of the City of Cambridge established in Section 3.20, and shall be an area as bounded and described in Section 20.11.2 below.

20.11.2 Boundaries of the District. The boundaries of the district shall be as described below.

a. Southerly, southwesterly, and southeasterly, by a line that is 100 feet distant from and parallel to the southerly and southwesterly centerlines of Hammond, Gorham, and Museum Streets, said line making an arc with a radius of 100 feet as it follows the intersection of Gorham and Museum Streets;

b. Easterly, by the existing boundary lines between the Residence C-3 zoning district and the Residence C-1 zoning district;

c. Northerly, by the centerlines of Hammond, Gorham, and Museum Streets; and

d. Westerly, by the easterly sideline of Oxford Street and its extension northerly to the centerline of Hammond Street.

Affecting lots or portions of lots numbered 2 and 44, as shown on Assessors Plat #148, and lot 41 on Assessors Plat #147.

20.11.3 Applicability. Divergence from the standards established in this Section 20.11 shall be allowed only by issuance of a special permit from the Planning Board as specified in Section 10.45. The Planning Board shall grant such permit upon its determination that the development proposed will better serve the objectives of this Section 20.11 and that the criteria specified in Section 10.43 will be satisfied. The Planning Board may not waive the requirements of the base Residence C-3 district.

20.11.4 Review Process. The Hammond and Gorham Streets Transition Overlay District shall be considered an area of special planning concern. Development proposals shall be subject to the applicable development review procedures as set forth in Article 19.000 of this Zoning Ordinance.

20.11.5 Dimensional Standards

20.11.51 Maximum Height for Non-residential Uses. The maximum height of a building or portion of a building containing non-residential uses shall be thirty-five feet. However, a building may exceed thirty-five feet in height provided all portions of the building above thirty-five feet in height are located beneath one or more roofs that are visible from Hammond, Gorham, Museum or Oxford Streets, that meet the following requirements:

(a) The slope of the roof or roofs shall be at least 30 degrees, as measured from the vertical plane.

(b) The centerline of the sloped roof, being the average distance between the thirty-five foot height and the top of the sloped roof, shall not exceed forty-five feet.

(c) Notwithstanding the above provisions (a) and (b), portions of a building in the Overlay District that are not visible at pedestrian height from Hammond, Gorham, or Museum Streets may exceed thirty-five (35) feet (whether or not they are located under a sloped roof) if they meet the following requirements:

(i) The portions of the building above thirty-five (35) feet are located between one or more sloping roofs that meet the requirements of Paragraphs (a) and (b) above.

(ii) The building height does not exceed the height of the top of any abutting sloped roof.

20.11.52 Minimum Yard Requirement. The minimum front yard for portions of buildings containing non-residential uses at Hammond, Museum, and Gorham Streets shall be fifteen feet, as measured from the street line.

20.11.53 Relocated Buildings. Existing structures may be relocated into the Hammond and Gorham Streets Transitional Overlay District. Such structures shall comply with all provisions of this Section 20.11. However, as set forth below, variations from the requirements of this Section 20.11 shall be permitted for those relocated buildings meeting the following standards.

(a) The structure is at least fifty years old and consists of wood framed construction;

(b) The height above grade of the structure does not exceed by more than ten percent the maximum height specified in Section 20.11.51;

(c) The structure is not wider than fifty feet (measured along a line parallel to the street line on whichever of Hammond Street, Gorham Street, or Museum Street that the structure faces) ; and

(d) The structure does not exceed by more than 10% any of the other dimensional regulations specified in Section 20.11.6.

20.11.6 Special Provisions.

20.11.61 Special Dimensional Limitations for Non-residential Uses. A number of special dimensional requirements shall be imposed on buildings or portions of buildings containing non-residential uses in the Hammond and Gorham Streets Transition Overlay District to ensure compatibility of future institutional building and site design with the residential scale of development across these streets. These requirements are subject to the following definitions.

Overlay Design Building Width. A width above grade no greater than forty-five feet measured at the widest point through the building along a line that (i) is parallel to the sideline of the street and that (ii) extends from the two most extreme points on opposite sides of the relevant portion of the building (excluding from that measurement any Permitted Projections).

Overlay Design Front Yard. A front yard that is a minimum of fifty feet measured from the streetline and required of all buildings in the Transition Overlay District except as may otherwise be provided in this Section 20.11.61.

Permitted Projections. (i) Trellises, pergolas, arbors, unenclosed steps, and unroofed porches that do not extend more than ten feet beyond the foundation wall, and (ii) bay windows that do not extend beyond 3.5 feet, cornices, projecting eaves, patios, chimneys, balconies, open fire escapes, and like projections with dimensions that do not exceed four feet beyond the line of the foundation wall.

The following requirements and limitations apply to all buildings or portions of buildings containing non-residential uses in the Transition Overlay District.

(a) A single building or a portion of a building located in the Hammond and Gorham Streets Transition Overlay District facing Hammond, Gorham, or Museum Streets, that is proposed to have a width above grade no greater than the Overlay Design Building Width, may extend into the Overlay Design Front Yard but may not extend into the minimum front yard; however Permitted Projections (other than open fire escapes) may extend into the minimum front yard.

(b) Where more than one portion (excluding any Permitted Projections) of a building, each of which portions (i) is proposed to have a width above grade no greater than the Overlay Design Building Width, and (ii) is proposed to be located in the Overlay Design Front Yard, there shall be at least a minimum of thirty feet distance, measured parallel to the street, between any two said portions (excluding Permitted Projections) of such building that are located in the Overlay Design Front Yard. Permitted Projections are allowed in the courtyard area existing between the portions of the building.

(c) The minimum distance between buildings (excluding Permitted Projections) above grade shall be as set forth in Section 5.13 but not less than twenty-five feet, except that where such area is to be used as a pedestrian access in conformity with Section 20.11.62 (c) below, the minimum distance shall be thirty feet. There shall be at least three strips of land no less than twenty-five feet in width that extend uninterrupted by any building or portion of a building from Hammond, Gorham, or Museum Streets to the southern boundary of the Hammond and Gorham Streets Transition Overlay District. Such land may be used for permitted driveways, pedestrian walkways, green area, or landscaped area. In each instance where a building permit for construction of a new building or construction beyond the existing footprint of a building is sought from the Inspectional Services Department for a building within the Transition Overlay District, a map at a minimum scale of 1" = 50' shall be included in the set of building plans showing any existing, proposed, or potential locations for the open areas required in this Paragraph (c) and the pedestrian access required in Section 20.11.62 (c) below.

(d) The portions of the buildings located below ground are ignored when applying the dimensional limitations in this Section 20.11.61. Underground parking in the Hammond and Gorham Streets Transition Overlay District is permitted. Buildings in the Hammond and Gorham Streets Transition Overlay District that are not

connected at and above ground shall be deemed separate buildings, even if an underground garage connects one or more of them below ground. If permitted by governmental regulations and codes, the air exhaust and intake vents shall be oriented so as not to be pointed toward the area north of Hammond Street.

(e) The HVAC equipment and exhaust or intake vents that are located in and are serving the buildings or underground garages in the Hammond and Gorham Streets Transitional Overlay District shall be designed or screened so that they are not visible to a pedestrian standing in the public way of Hammond or Gorham Streets, and so that they comply with governmental laws regulating noise. Such equipment not serving a building within the Overlay District shall not be located within the district.

(f) The buildings built in the Hammond and Gorham Streets Transition Overlay District shall have at least one entrance facing Gorham or Hammond Streets. Nevertheless, the building may also have one or more additional entrances facing elsewhere that are actually the principal or functioning entrances serving the building.

20.11.62 Pedestrian and Vehicle Access and Accessory Parking.

(a) Vehicular Access. Within the Hammond and Gorham Streets Transition Overlay District, no curb cut shall be permitted that provides access to accessory or non-accessory parking and loading facilities within the Hammond Street Transition Overlay District or to such facilities lying outside the Hammond and Gorham Streets Transition Overlay District. However, such curb cuts shall be permitted to provide access for emergency vehicles and to satisfy the requirements of the Americans with Disability Act ("ADA") or the Massachusetts Architectural Access Board ("MAAB"), including the provision of parking facilities needed to meet accessibility requirements.

(b) Permitted Parking and Loading. Within the Hammond and Gorham Streets Transition Overlay District, any on-grade accessory loading facilities shall serve only the buildings within the District, and only parking spaces for emergency vehicles and to meet ADA and MAAB requirements shall be permitted. Underground parking garages and underground loading facilities that are accessory to an institutional use are permitted in the Hammond and Gorham Streets Transition Overlay District if the vehicular access to the garage is from south of the Hammond and Gorham Streets Transition Overlay District.

(c) Pedestrian Access. At least two pedestrian walkways not obstructed by buildings shall be maintained within the Hammond and Gorham Streets Transition Overlay District that connect Hammond or Gorham Streets with portions of the Residence C-3 district located south of and outside of the Hammond and Gorham Streets Transition Overlay District. Such walkways may traverse the strips of land identified in Section 20.11.61 (c), or may be separate pathways.

20.11.7 Applicability of Section 19.50 - Building and Site Plan Requirements. The requirements of Section 19.50 shall not apply to any construction within the Hammond and Gorham Streets Transition Overlay District.

(Ord. No. 2025-1, 2-10-2025; Ord. No. 2025-2, 2-10-2025)

20.12 KIRKLAND PLACE TRANSITION OVERLAY DISTRICT

20.12.1 Establishment and Scope. There is hereby established the Kirkland Place Transition Overlay District which shall be governed by the regulations and procedures specified in this Section 11.400. These regulations are intended to provide a transition between the character and scale of the abutting C-1 residential district and the development options possible in the base Residence C-3 zone. It is the intent of this Section that these regulations will apply to a single area located at the westerly edge of Kirkland Place, north of Kirkland Street and bounded and described as follows:

Amend the Zoning Map of the City of Cambridge by designating on the map as the Kirkland Place Overlay District that area bounded and described below:

Beginning at a point, said point being the intersection of the westerly side line of Kirkland Place and a line 135 feet distant from and parallel to the northerly street line of Kirkland Street. Thence running westerly 90 feet to a point, said point being the intersection of a line 135 feet distant from and parallel to the northerly street line of Kirkland Place 402 feet to a point, said point being the intersection of a line 90 feet distant from and parallel to the westerly street line of Kirkland Place and the northerly lot line of lot numbered 45 as shown on Assessor's Plat numbered 145. Thence turning and proceeding easterly along said northerly lot line to the northeasterly corner of said lot numbered 45. Thence turning and running southerly along the easterly lot line of lot numbered 45 to the intersection of the lot line and the circular part of Kirkland Place. Thence turning and proceeding southwesterly along the circular part of the westerly street line of Kirkland Place approximately 62.69 feet. Thence turning and running southerly along the western street line of Kirkland Place for a distance of approximately 327 feet, to the point of origin.

The affected premises: odd numbers 3-13 Kirkland Place, all or portions of lots numbered 21, 37, 38, 39, and 45 as shown on Assessor's Plat numbered 145.

20.12.2 General Purpose. It is the purpose of this Section 20.12 to augment the existing zoning regulations to respond to the unique problems and pressures for change particular to the Kirkland Place area. These regulations are intended to encourage retention of buildings of historic value and enhance the established streetscape; to maintain the visual character and open space patterns; and to provide sufficient regulatory flexibility to advance the general purposes of this Section 20.12.2.

20.12.3 Applicability. The Kirkland Place Transition Overlay District shall be an overlay district on the zoning map established by Section 3.20.

The buildings and land uses within said district shall be controlled by the pertinent regulations within the base zoning district, except as modified by the requirements of

Section 20.12 which shall apply in addition to regulations imposed by the base zoning map designation. Where the base zoning regulations differ from requirements of this Section 20.12, the requirements of this Section shall apply. Divergence from the standards established in this Section may be allowed only by issuance for a Special Permit by the Planning Board as specified in Section 10.45. The Board may grant such a permit upon its determination that the development proposed will better serve the objectives of this Section 20.12 and that the criteria specified in Section 10.43 will be satisfied.

20.12.4 The Kirkland Place Transition Overlay District shall be considered an area of special planning concern and shall be subject to the applicable development review procedures as set forth in Article 19.000 of this Zoning Ordinance.

20.12.5 Use Regulations. Use regulations of the Residence C-3 zoning designation shall apply in the Kirkland Place Transition Overlay District.

20.12.6 Dimensional Standards in the Kirkland Place Transition Overlay District

20.12.61 Floor Area Ratio. The above ground floor area ratio for non-residential uses shall be the same as in the C-1 zoning district. The overall floor area ratio for non-residential uses in the Transition Overlay District shall be 3.0. Any non-residential floor area created in excess of .5 must be completely below grade.

20.12.62 Maximum Height. The maximum height in the Transition Overlay District shall be 35 feet for portions of buildings containing non-residential uses.

20.12.63 Setbacks. Building setbacks in the Transition Overlay District shall be the same as in the Residence C-1 zoning district.

20.12.64 Open space. Open space requirements in the Transition Overlay District shall be the same as in the Residence C-1 zoning district.

20.12.65 Nonconforming structures. Notwithstanding the provisions of Section 8.23, that portion of a legal nonconforming structure lying within the Kirkland Place Transition Overlay District which is destroyed or damaged by fire, explosion or other catastrophe may be rebuilt or restored and used again in the same way as it had been legally used immediately before the damage, without limit as to cost of such rebuilding or restoring provided the following conditions are met:

(a) Any restoration or rebuilding shall commence within twelve (12) months after the catastrophe; and

(b) The structure shall be restored or rebuilt to the same design, Including materials and design details as existed previously; or should the restoration not be feasible necessitating that the structure be rebuilt to a different design, said design shall be at least equal to the origin design of the structure in quality of materials used, the quantity and quality of design details employed, and the compatibility of the site design with abutting properties;

(c) The Community Development Department shall certify to the Superintendent of Buildings that the above conditions have been met.

Should the Community Development Department find that said conditions have not been met, the restoring or rebuilding shall require a special permit from the Board of Zoning Appeal.

The restored or rebuilt structure shall in no respect increase the nonconforming nature of the original structure; nothing in this Section, however, shall prohibit a rebuilding or restoring which reduces the nonconforming nature of the original structure.

(Ord. No. 2025-1, 2-10-2025; Ord. No. 2025-2, 2-10-2025)

20.20 MIXED USE RESIDENTIAL OVERLAY DISTRICT (MXR)

20.21 *Establishment and Purpose*. There is hereby established the Mixed Use Residential Overlay District as shown on the Zoning Map of the City of Cambridge, as amended. It is the intent of this Overlay District to modify base residential district regulations, where a substantial inventory of non-residential uses already exists, such that: (1) existing non residential activities, compatible with existing and future residential construction, may continue, (2) retail and consumer service uses that might serve as support for existing or future residential construction are permitted, and (3) future residential construction on suitable sites is not inhibited. The Overlay District is intended to facilitate a mixed use environment supportive of housing construction within the district in the future while permitting existing non residential activities to operate and adjust to changing circumstances through limited expansion in built area in ways that will not negatively impact residential activities.

20.22 *Permitted Non-Residential Uses and New Construction*. A use not otherwise permitted in the base residential district may be permitted in the Mixed Use Residential Overlay District where such use is allowed or conditionally allowed in the Industry A-1 district, subject to the following conditions and limitations and the procedures established in Section 20.24 below.

a. The use does not replace an existing residential use or, if the lot or area of a building proposed to be the location a non-residential use is vacant, no residential use had been established at any time in the previous five years.

b. Retail uses, Sections 4.35 and 4.36, shall only be permitted on the first floor and basement of a building, shall be located in a building containing other uses, and may not exceed more than twenty-five (25) percent of the gross floor area of the building in which they are located, or alternately no more than twenty-five (25) percent of the total area of a development proposal or any combination of existing and proposed buildings if so permitted by the Planning Board. No individual retail establishment may exceed 2500 gross square feet in area unless specifically permitted by the Planning Board.

c. Transportation, communication and utility uses, Section 4.32; Office and Laboratory Uses, Section 4.34; Light industry, wholesale business or storage uses, Section 4.37; or Heavy industry uses, Section 4.38 may be permitted in an existing building, or as an

addition to an existing building or as new construction on a vacant lot provided the additional gross floor area is to serve uses or operations already in existence in the district.

d. Parking lot or parking garage for private passenger cars, Section 4.32 b shall be prohibited.

20.23 *Dimensional Limitations*. The Gross Floor Area for any non-residential use or combination of non-residential uses on a lot shall be limited by the FAR set forth below for the applicable residential base district.

a. [Deleted]

b. Residence C-1: 0.75

c. Residence C-1A: 1.0

d. Residence C-2: 1.25

e. Residence C-2B: 1.25

f. Residence C-2A: 1.5

g. Residence C-3: 2.0

h. Residence C-3B: 2.0

All other dimensional requirements of the residential district shall continue to apply.

20.24 *Procedures*.

20.24.1 Changes Permitted As-of-Right. Any structure existing or authorized by permit as of September 15, 2000, which contains a non-residential use not permitted in the residential base district, may be expanded in area to accommodate the existing use in an amount not to exceed, in total for all additions, 15% of the existing Gross Floor Area of the building. In no case, however, may the FAR on the lot after said addition or additions exceed that set forth in Section 20.23 above.

20.24.2 Changes Permitted by Special Permit. All other changes of use, additions to existing buildings, or construction of new buildings permitted in Section 20.22 above, and otherwise not permitted to proceed as-of-right as set forth in Section 20.24.1 above, shall require the granting of a special permit from the Planning Board

20.25 **Criteria for Issuance of a Special Permit**. Designation of the base residential zoning district expresses the policy objective of the City of Cambridge that new construction in the district should principally be for residential use, or for other uses permitted in the residential base district. However, recognizing the present land use character of the area, this Mixed Use Residential Overlay District provides flexibility such that existing non-residential uses may continue to operate without unreasonable regulatory impediment provided they do not

now or will not in the future hinder the expansion or introduction of residential uses to the district. Therefore, in granting a special permit under this Section 20.20, the Planning Board shall take into consideration the following and make appropriate findings related thereto:

1. The proposed new use or expansion of an existing use will contribute to a physical and use environment that is supportive of residential uses, as for example the introduction of ancillary retail and consumer services;

2. In its operations, scale, building design and location on the lot, the proposed use or new constriction will not significantly impair the health, safety and welfare of current residential occupants of the district or impair the prospects for construction of new residential uses on adjacent lots or within the district, or alternately will positively contribute to the health, safety and welfare of residents in the district;

3. In its design, the new construction could be reasonably converted to residential use in the future;

4. Where it is proposed to construct a building on a vacant lot or where it is proposed to expand an existing facility not used for residential purposes by more than fifteen (15) percent of its existing gross floor area, the lot is not suitable for residential use as indicated by its location and surrounding uses. Where the lot may be suitable for residential use, the proposed construction is to serve an existing operation or enterprise now in the district. That operation or enterprise shall be found to be an important contributor to the Cambridge economy, through the provision of employment, the generation of new ideas, products or processes, and through the potential to expand and grow elsewhere in the city in areas intended for non-residential development;

5. Special attention is paid in the design and layout of the new construction to mitigate or prevent negative impacts on present and future residential uses, including among other measures screening of mechanical equipment for visual or acoustical reasons, location of refuse management systems within the structure, and the location of loading and service delivery systems in the least obtrusive areas of the lot.

(Ord. No. 2025-1, 2-10-2025)

20.30 DELETED

20.40 EASTERN CAMBRIDGE HOUSING OVERLAY DISTRICT

20.41 *Purpose*. It is the intent of this Section 20.40 to provide an incentive for residential development within the designated ECHO district as an extension of the existing residential neighborhood and to permit housing to be developed in combination with other uses permitted on a lot where a mix of uses is desirable. It is the intent of this Section 20.40 to provide an incentive through additional development potential to convert a lot devoted to non-residential uses to residential use.

20.42 *Applicability*. The ECHO District shall be an overlay district on the zoning map established in Section 3.20. Buildings and land uses shall be controlled by the pertinent regulations within the applicable base zoning districts and any other regulations that may apply in the

City of Cambridge Zoning Ordinance, including Section 5.30.12, except as modified by the provisions of this Section 20.40. Except as modified by the provisions of this Section 20.40, the base district regulations shall apply. Where reference is made in this Section 20.40 to residential uses, it shall mean residential uses as set forth in Section 4.31 a-h.

20.43 [Deleted]

20.44 *Maximum Height of Buildings and Maximum Permitted Non-Residential FAR*. The following limitations as to height of buildings shall only apply to new buildings or additions to existing buildings. The permitted heights are set forth on the Eastern Cambridge Housing Overlay District Height Limitation Map, Map 20.41. The permitted heights are further described below, however, where the base zoning district establishes a more permissive height limitation for Residences as listed in Section 4.31 a-j, the more permissive shall apply. Where the maximum height permitted in this Section 20.44 is thirty-five feet, it shall apply to all uses permitted in the applicable base-zoning district. Where the height permitted is greater than forty-five feet, it shall apply only to permitted residential uses. For any location not appearing on Map 20.41 or described below, the permitted heights shall be those permitted in the base zoning district. The FAR set forth below shall apply to non-residential uses. Where no FAR is indicated the non-residential FAR shall be that permitted in the applicable base zoning district.

20.44.1 Maximum Height and Non-Residential FAR in that area between the centerline of Fulkerson Street and the centerline of Third Street.

1. Height of thirty-five (35) feet: from the centerline of Charles Street to a line one hundred (100) feet distant from and parallel to the southerly sideline of Charles Street, which is approximately the mid block between Charles and Bent Street.

2. Height of forty-five (45) feet: from the mid block between Charles and Bent Streets described in (1) above to a line one hundred (100) feet distant from and parallel to the southerly sideline of Bent Street, which is approximately the mid block between Bent Street and Rogers Street. Non-residential FAR of 1.50.

3. Height of fifty-five (55) feet: from the mid block between Bent Street and Rogers Street described in (2) above to a line one hundred (100) feet distant from and parallel to the southerly sideline of Rogers Street, which is approximately the mid block between Rogers Street and Binney Street. Non-residential FAR of 1.75.

4. Height of sixty-five (65) feet: from the mid block of Rogers Street and Binney Street described in (3) above to the centerline of Binney Street. Non-residential FAR of 2.0.

20.44.11 Maximum Height in that area between the centerline of Third Street and the centerline of Second Street.

1. Thirty-five (35) feet: from the centerline of Charles Street to a line one hundred (100) feet distant from and parallel to the southerly sideline of Charles Street, which is approximately the mid block between Charles and Bent Street.

2. Forty-five (45) feet: from the mid block between Charles and Bent Streets described in (1) above to a line one hundred (100) feet distant from and parallel to the southerly sideline of Bent Street, which is approximately the mid block between Bent Street and Rogers Street.

3. Fifty-five (55) feet: from the mid block between Bent Street and Rogers Street described in (2) above to a line one hundred (100) feet distant from and parallel to the southerly sideline of Rogers Street, which is approximately the mid block between Rogers Street and Binney Street.

4. Sixty-five (65) feet: from the mid block of Rogers Street and Binney Street described in (3) above to the centerline of Binney Street.

20.44.2 Maximum Height in that area between the centerline of Fulkerson Street and the centerline of the of the railroad right-of-way.

1. Thirty-five (35) feet: extension of the area described in Section 20.43.1, Paragraph (1) above westerly from the centerline of Fulkerson Street to the centerline of the railroad right of way.

2. Sixty-five (65) feet: from the centerline of Binney Street and the centerline of the railroad right-of-way to a line 100 feet distant from the northerly sideline of Binney Street and 100 feet from the northwesterly sideline of Fulkerson Street to the areas intersection with the area described in Paragraph (1) above.

3. Forty-five (45) feet: extension of the area described in 20.43.1, paragraph (2), above to its intersection with the northeasterly sideline of the area described in Paragraph (2) of this Section 20.43.2

4. Fifty-five(55) feet: extension of the area described in 20.43.1, paragraph (3), above to its intersection with the northeasterly sideline of the area described in Paragraph (2) of this Section 20.43.2

20.44.3 Maximum Height in that area between the centerline of the railroad right-of way and the centerline of Cardinal Medeiros Way.

1. Eighty-five (85) feet except as described in Paragraph (2) below.

2. Thirty-five (35) feet in that area bounded by the centerline of Binney Street, then the centerline of Medeiros Avenue; then the Residence C-1 zoning district line; then the centerline of the railroad right of way; then a line one hundred (100) feet distant from, parallel to, and southerly or easterly of the Residence C-2 zoning district line and the easterly sideline of Medeiros Avenue, to the point of origin.

20.44.4 [Deleted]

20.44.5 Maximum Height at All Other Locations. At all other locations the maximum height permitted shall be the maximum height permitted in the base zoning district

20.45 *Eastern Cambridge Design Guidelines*. In reviewing any special permit that may be required for development in the ECHO District, the permit granting authority shall find that the

development is generally consistent with the policy objectives set forth in the Eastern Cambridge Plan and the guidance provided in the Eastern Cambridge Design Guidelines. Any development permitted as-of-right is encouraged to be consistent with the Guidelines.

20.46 *Transfer of Development Rights*. Non-residential development capacity may be transferred from the areas designated within the ECHO District consistent with the regulations set forth in Article 21.000 of this Ordinance.

20.47 *Non-Conforming Uses*. Notwithstanding any provision of Article 8.000, in the Eastern Cambridge Housing Overlay District, any structure containing a non-conforming use may be altered or enlarged without limit as to percent of enlargement in order to accommodate expansion of that non-conforming use provided the structure or portion of the structure to be altered or enlarged is located within a non-residential base district and further provided that the structure will not be in further violation of the dimensional requirements of this Section 20.40 or any applicable base district.

(Ord. No. 2025-1, 2-10-2025)

20.50 HARVARD SQUARE OVERLAY DISTRICT AND HARVARD SQUARE HISTORIC OVERLAY DISTRICT

20.51 *Establishment and Scope*. There is hereby established the Harvard Square Overlay District, the Harvard Square Historic Overlay District, and Harvard Square Conservation District Goals and Guidelines which shall be governed by the regulations and procedures specified in this Section 20.50. It is the intent of this section that these regulations will apply to an area described generally as the Harvard Square business district and certain abutting portions of the neighborhoods around it.

20.51.1 The Harvard Square Overlay District shall be that overlay district established on the Zoning Map of the City of Cambridge by Section 3.20. The Harvard Square Historic Overlay District shall be that portion of the Harvard Square Overlay district that is encompassed by any historic district duly established by the City Council under the authority granted by the City of Cambridge by Chapter 40C of the General Laws of the Commonwealth of Massachusetts or any Neighborhood Conservation District established by the City Council under the provisions of chapter 2.78 of the Cambridge Municipal Code. All provisions of the Harvard Square Overlay District and all references to it in this Ordinance shall apply equally to the Harvard Square Historic Overlay District except as set forth below.

20.52 *General Purpose.* It is the purpose of this Section 20.50 to augment existing zoning regulations to respond to the unique problems and pressures for change particular to the Harvard Square area. The regulations contained in said section provide for more careful public scrutiny of development proposals that may alter the established urban form of the Harvard Square area. These regulations are intended to channel the extreme development pressures in ways which will preserve and enhance the unique functional environment and visual character of Harvard Square; to mitigate the functional impacts of new development on adjacent residential neighborhoods; to maintain the present diversity of development and open space patterns and building scales and ages; and to provide sufficient regulatory

flexibility to advance the general purposes of this Section 20.52. The additional flexibility granted to development within the Harvard Square Historic Overlay District is intended to facilitate the protection and enhancement of the historic resources and character of Harvard Square while not unreasonably limiting the opportunities for appropriate contemporary changes to the built environment in the Harvard Square area.

20.53 *General Provisions.*

20.53.1 The Harvard Square Overlay District shall be considered an area of special planning concern. Development proposals listed in Subsection 19.42 and 19.43, Development Consultation Procedures, shall be subject to the Development Consultation Procedure specified in Article 19.40 except that any Public Advisory Consultation (new buildings of 2,000 square feet or more) shall be conducted by the Harvard Square Advisory Committee using procedures specified in Subsection 20.54.1 of this Section 20.50.

20.53.2 Criteria for Advisory Development Consultations and Review of Applications for Special Permits and Variances. In reviewing applications for variances, special permits or development consultation reviews the permit or special permit granting authority or the Harvard Square Advisory Committee shall be guided by the objectives and criteria contained in the publication Harvard Square Development Guidelines [Document complied from the Guidelines for Development and Historic Preservation as contained in the Final Report of the Harvard Square Neighborhood Conservation District Study Committee, dated November 29, 2000 and the Harvard Square Development Guidelines, 1986], in addition to the requirements of Sections 10.30 (Variances) and 10.40 (Special Permits) and this Section 20.50. These guidelines are also intended to assist in shaping any contemplated physical change within the Harvard Square Overlay District

20.53.3 National Register and Contributing Buildings. For the purposes of this Section 20.50 the following definitions shall apply:

1. National Register Building shall be a building individually listed or determined eligible for the National Register of Historic Places as determined by the Secretary of the Department of the Interior.

2. A contributing building shall be:

   a. Identified as a contributing building in a listed or eligible National Register District as determined by the Secretary of the Department of Interior; or

   b. A building located outside a National Register District but identified as a contributing building in the Harvard Square Development Guidelines, Community Development Department, July 1, 1986.

   However, a building shall no longer be considered a contributing building as defined in this Subsection 20.53.3(b) for the purposes of this Section 20.50 if, upon application for a demolition permit, the Cambridge Historical Commission shall determine the building not to be a preferably preserved significant building as defined in the City of Cambridge Demolition Ordinance.

20.54 *Detailed Provisions.*

20.54.1 Harvard Square Advisory Committee. There shall be established a Harvard Square Advisory Committee, with members appointed by the City Manager, which shall have the following duties, responsibilities, and membership.

1. Purpose. It is the intent of this Subsection 20.54.1 that the Committee shall in its official actions fulfill the following purposes.

    a. To establish a formal, ongoing body that will review all major development actions in the Harvard Square Overlay District.

    b. To provide a forum within which a wide range of perspectives on development actions can be heard.

    c. To support local businesses and uses that enhance the vibrancy and historical nature of Harvard Square with the aspirational goal of maintaining a seventy percent local and non-formula retail experience throughout the district, at the ground floor level.

    d. To establish a citizen/professional body which can advise both public agencies and private interests as to the development and urban design issues raised by a development or planning proposal and suggest avenues of research which might be pursued to resolve identified conflicts or make the project better fulfill both public and private objectives for the Harvard Square Overlay District.

2. Responsibilities. The Committee shall undertake all Public Advisory Consultations and shall receive all applications for variances and special permits for activities within the Harvard Square Overlay District for review and comment. In addition, the Committee may comment on any preliminary proposal for which any public agency or private interest has planned for the Overlay. The Committee shall meet on an approximately monthly basis or with as much frequency as is needed to address pertinent issues in the Harvard Square Overlay District, with the schedule to be determined at the discretion of the Chair.

3. Procedures.

    a. Within six (6) months preceding any application for (1) a building permit for any project subject to the Public Advisory Consultation Procedure or (2) a special permit or variance for any project within the Harvard Square Overlay District, the graphic and other material required in Section 19.43.2 - Application for a Public Advisory Consultation shall be submitted to the Harvard Square Advisory Committee for their review and comment.

    b. Within thirty (30) days of that submittal, [or within up to sixty (60) days with the written consent of the applicant] the Committee shall prepare a written report of findings and recommendations with respect to the applicant's proposed project.

    c. The Committee's written report shall outline the urban design and development issues raised by the proposal. It shall suggest those areas within which additional

exploration of alternatives might be sought or factual information gathered which might help to resolve potential conflicts between the public and private objectives or which help to shape the project to better serve these objectives.

d. The report shall be forwarded to the applicant and shall be included in any application for a building permit, special permit or variance.

e. It is expected that, in making decisions regarding special permits and variances within the Overlay District, the Planning Board and/or Zoning Board of Appeal will give due consideration to the report and recommendations of the Advisory Committee. Where the Committee makes recommendations with respect to the granting of special permits and/or variances, and the Planning Board and/or Zoning Board of Appeal does not follow said recommendations, then the Board(s) shall make written reply to the Committee, detailing why the Board(s)'s decisions were different from the Committee recommendations.

f. The Community Development staff shall serve as staff to the Committee.

4. Membership and Terms.

a. Membership.

(1) At least two members having recognized qualification as an architect, attorney who specializes in zoning, urban planner, architectural historian, or landscape architect.

(2) One member who operates a non-formula business within the Harvard Square Overlay District.

(3) One member owning commercial property within the Harvard Square Overlay District.

(4) Four residents living within a half mile of the Harvard Square Overlay.

(5) One member representing the Harvard Square Neighborhood Association or Neighborhood group representing Harvard Square.

(6) One member representing an institution owning institutional property in the Harvard Square Overlay District.

(7) One member representing the Cambridge Historical Commission.

b. Terms. Committee members shall be appointed for terms of three years each. Initial appointment shall, however, be staggered such that four members shall have terms of one year, five members shall have terms of two years, and four members shall have terms of three years each. On an annual basis at the first meeting in September the Harvard Square Advisory Committee will elect a Chair who may serve no more than two (2) years as chair within a three (3) year period.

20.54.2 Building Height Limitations. The maximum height of buildings in the Harvard Square Overlay District shall be governed by the requirements of this Section 20.54.2; however, at locations where the base zoning district establishes a more restrictive height limitation for

non-residential uses, the more restrictive shall apply. Where the base zoning district establishes a more permissive height limitation for Residences as listed in Section 4.31 a-j, the more permissive shall apply.

1. As of Right Height Limitations. The maximum height of any building shall be sixty (60) feet.

2. Special Permit for Additional Height. The maximum allowable height in the Harvard Square Overlay District may be increased up to eighty (80) feet upon issuance of a Special Permit by the Planning Board. If a Special Permit is issued portions of the building may extend to eighty (80) feet in height provided that those portions in excess of sixty (60) feet are set back from the street line at least ten (10) feet, and that those portions are also set back from one or more forty-five (45) degree sky exposure planes, unless otherwise permitted by the Planning Board. A forty-five (45) degree sky exposure plane shall be an imaginary inclined plane beginning fifty-five (55) feet above any streetline in the districts and rising over one or more lots at a forty-five (45) degree angle.

   Allowed Special Permit exceptions to upper floor setbacks must successfully reduce the overall negative effect of multiple floor setbacks and enhance both the proposed building silhouette and townscape of the block. Such architectural elements as pergolas, and occupiable corner pavilions, occupiable pavilion directly above the main building entry, and special features that animate the public domain experience. All such exceptions are to be limited in scope and work cohesively.

   All approved facade setbacks are to provide accessible, useable balconies for tenants.

20.54.3 Retail, Business, and Consumer Service Establishments (Section 4.35) in Office and Residential Districts.

1. Any retail use (4.35) allowed in the Business B zoning districts, as of right, within the Overlay may also be allowed as of right in any office or residential zone within the Overlay provided the structure that contains the use has a main entrance on Massachusetts Avenue, Mt. Auburn Street, Arrow Street or Bow Street. For all other lots, the Planning Board may allow by special permit the retail use of a lot or structure all or partially within the Harvard Square Overlay District and in a base residential or office district where retail uses are not permitted under the provisions of Section 4.30 - Table of Use Regulations; provided, however, that the following conditions are met:

   a. The general purposes of this Section 20.50 are met.

   b. The use will be located in a structure in existence as of June 1, 1985.

   c. The addition of such use(s) will assist in the preservation, rehabilitation and/or restoration of a National Register or contributing building or important open space by increasing the economic feasibility of maintaining such features.

   d. The preservation of the buildings and open space identified in (c) above is assured through an approved mechanism for the full period that the special permit is in force and effect.

e. The proposed use will preserve, rehabilitate or restore the outward appearance of the structure or open space.

f. In its operation the use will not, in impact, be significantly different from the uses permitted in the base district.

g. The use is completely contained within the structure.

h. The use will be patronized substantially by pedestrians and will, if required by the Planning Board, function adequately without additional off street parking or loading facilities and will in any case not generate vehicular traffic in quantity and type substantially different from that generated by permitted uses.

i. The retail use does not take the place of a residential or dormitory use.

j. The use is not a formula business.

k. The following uses listed in Section 4.35 are however specifically prohibited:

4.35j (Mortuary, undertaking or funeral establishment);

4.35l (Veterinary establishment, kennel, pet shop);

4.35m (Sales place for new and used cars);

4.35p (Massage establishment);

4.35s (Cannabis Retail Store).

2. In the Office 2 base district the provisions of Section 4.40 - Footnotes to the Table of Use Regulations, footnote 12, shall not apply in the Harvard Square Overlay District.

20.54.4 Parking and Loading Requirements. Uses in the Harvard Square Overlay District which meet the following requirements shall be exempt from the parking and loading requirements as specified in Section 6.36 - Schedule of Parking and Loading Requirements.

1. The use is contained within a structure or portion of a structure in existence on or before June 1, 1940 or if constructed later is identified as a National Register or contributing building; or

2. The use is contained in a new structure or new addition to a structure identified in (1.) above, after the issuance of a special permit by the Planning Board provided:

a. The subject lot is sufficiently small in size as to contribute to a development pattern of diverse, small scale, new structures and the retention of existing structures (for lots exceeding 10,000 square feet a specific finding shall be made that this objective has been met).

b. The Planning Board shall specifically find that an exemption from parking and loading requirements will result in a building design that is more appropriate to its location and the fabric of its neighborhood and that it is in conformance with the objectives and criteria contained in Harvard Square Development Guidelines.

c. No National Register or contributing building is demolished or so altered as to terminate or preclude its designation as a National Register or contributing building; and

d. No National Register or contributing building has been demolished or altered so as to terminate or preclude its designation within the five (5) years preceding the application.

20.54.5 Building Setbacks. Maintenance of the Harvard Square Overlay District's positive diversity of building form and scale and its variety of open spaces, yards and courtyards is encouraged throughout the District. It is therefore desirable to permit design flexibility to allow any physical change in the District to reflect the character of the area within which it is located. To this end any building in the Harvard Square Overlay District shall be exempt from the yard requirements as specified in Section 5.30, (except where such yard abuts a lot, but not a public way, outside the Overlay District) if the following conditions are met:

1. The building existed as of December 15, 1985 or a building permit had been issued by that date, or

2. For any new building in any Business, Office or Residence C-3 base-zoning district, for which a building permit is issued after December 15, 1985, the Planning Board issues a Special Permit exempting the building from yard requirements provided:

   a. The design of the new structure shall be in conformance with the objectives and criteria contained in Harvard Square Development Guidelines.

   b. No National Register or contributing building is demolished or so altered as to terminate or preclude its designation as a National Register or contributing building; and

   c. No National Register or contributing building previously existed on the site in the preceding five (5) years and which has been so altered as to terminate or preclude its designation or demolished prior to the application.

3. For any new building or portion of a building containing non-residential uses in a Business B district seeking a Special Permit a rear yard setback of twenty (20) feet shall be provided with upper floor ten (10) foot setbacks beginning at forty-five (45) feet above grade. The resulting yard shall create a landscaped open space.

20.54.6 Maximum Ratio of Floor Area to Lot Area (FAR) in the Harvard Square Historic Overlay District. Notwithstanding the FAR limits set forth in Article 5.000 or elsewhere in this Ordinance, the maximum FAR applicable to non-residential uses in the Harvard Square Historic Overlay District shall be as follows: Business B district: 4.0; Office 3 district: 3.0; Office 2 district: 2.0; Residence C-3 district: 3.0; Residence C-2B district: 1.75; Residence C-1 district: 0.75; Business A district: 1.0.

20.54.7 Additional FAR. Upon the issuance of a special permit, the special permit granting authority (Planning Board) may increase the allowable FAR on any lot or portion of a lot in the Business B district located within the Harvard Square Overlay District for any commercial use in section 4.34 or 4.35 provided the Planning Board finds that the use and design

complies with the goals and design guidelines set forth in the Harvard Square Conservation District and provides additional public benefits commensurate with the additional development, such as the following:

1. Ground floors that are devoted to retail and similar uses that activate the square and serve the needs of the surrounding community and visitors;
2. Commitments to recruit and retain small, local, and independent businesses, in part through maintaining 50 percent of first floor public frontage as commercial rental space of approximately 1,500 sq. ft.in size;
3. Creation of mixed-income housing;
4. Commitments to sustainable design that minimize greenhouse gas emissions and increases vegetation, and;
5. Investments into creating or improving public space.

20.54.8 FAR Exemption for Ground Floor Retail. Retail spaces of 1,500 square feet or less shall be excluded from the calculation of floor area ratio.

20.54.9 Frontage Restrictions. Banks, trust companies, or similar financial institutions as identified in Section 4.34e shall occupy no more than twenty-five feet (25') of the ground-floor level frontage of a building facing a street, measured horizontally parallel to that street. In addition, such uses shall not occupy more than thirty percent (30%) of a building's total horizontal ground-floor building frontage aggregated over one or more streets. The Planning Board may grant a special permit to allow a minor increase in the permitted frontage upon finding that such increase would create a result that is more compatible with the unique conditions of a particular building or site and that the criteria set forth in Section 20.53.2 above are met.

20.54.10 Fast Order Food Establishments (as identified in Section 4.35o) are allowed by right within the Harvard Square Overlay District and are further not subject to the provisions of Article 11.30 of this Ordinance provided the Fast Order Food Establishment is not a Formula Business.

20.55 *Sign Regulations in the Harvard Square Historic Overlay District.*

20.55.1 All provisions of Article 7.000 shall apply in the Harvard Square Historic District, except as modified below. It is the intent of these modifications to allow greater flexibility in the size, location and illumination of signs in order to encourage more thoughtful design of individual signs, to encourage greater respect for the building and visual context within which new signs are erected, and thereby add interest and character to the shopping environment in Harvard Square.

1. In Section 7.16.22 - Signs in all Business, Office and Industrial Districts, Paragraphs A, B, and C shall not apply in office and business base districts. However, no sign on the outside of a building may extend higher than 20 feet above grade.
2. In Section 7.16.3 - Application of the Sign Frontage Formula shall not apply.

3. In the Residence C-2B base district the provisions of Section 7.16.22 shall apply to permitted or legally established nonconforming office and retail uses.

(Ord. No. 1420, 3-2-2020; Ord. No. 2025-1, 2-10-2025; Ord. No. 2025-2, 2-10-2025)

20.60 PARKWAY OVERLAY DISTRICT

20.61 *Establishment and Scope*. There is hereby established a Parkway Overlay District which shall be governed by the regulations specified in this Section 20.60. Within this parkway district is also a subdistrict to be referred to as the Concord Avenue Parkway Subdistrict. It is the intent of this section that these regulations will apply to areas of the city where development is likely to occur near major public open space connectors, especially arterial roadways that could provide such connections.

20.62 *Purpose*. It is the purpose of this Section 11.60 to augment base zoning regulations in designated areas in order to create unified identifiable images of designated areas, to enhance public safety by reducing visual confusion and haphazard development, to encourage development which will protect and enhance the use and enjoyment of public open space resources. The Parkway Overlay District has been designated specifically for the areas adjacent to arterial roadways located in parklike settings such as the Fresh Pond Reservation. To more fully implement these objectives for a portion of the Parkway Overlay District that includes the Fresh Pond Reservation, this article includes special provisions for the "Concord Avenue Parkway Subdistrict," which is defined in section 20.69 and is subject to the provisions of that section, as well as the provisions generally governing the Parkway Overlay District. The terms "the district" or "said district" or "the Parkway Overlay District" shall mean both the Parkway Overlay District and the Concord Avenue Subdistrict, unless specifically noted otherwise.

20.63 *Applicability*. The Parkway Overlay District shall be an overlay district on the zoning map established by Section 3.20. The Concord Avenue Parkway Subdistrict shall also be shown on the map established by Section 3.20.

20.63.1 The buildings and land uses within said district shall be controlled by the pertinent regulations within the base zoning districts, except as modified by the requirements of this Section 20.60 which shall apply in addition to regulations imposed by the base zoning map designations. Where the base zoning regulations differ from requirements of this Section 20.60, the stricter provisions shall apply.

20.63.2 The requirements of this Section 20.60 shall not apply to Planned Unit Development proposals filed, reviewed and regulated by Articles 12.000 and 13.000; however, said requirements shall apply to other development proposals in a PUD district.

20.63.3 The requirements of this Section 20.60 shall not apply to lots containing one family, two family or three family residences as principal uses.

20.63.4 The requirements of this Section 20.60 shall not apply to construction activities incidental to emergency repairs of public utility facilities.

20.63.5 In reviewing applications for any special permit in the Parkway Overlay District, the Planning Board shall consider compliance with the requirements specified in this Section 20.60, the recommendations made in the Cambridge Community Development Department's 1979 report entitled Alewife Revitalization, and the criteria specified in Section 10.43.

20.63.6 Developments that must obtain a special permit under any section of the Zoning Ordinance shall be exempt from the Development Consultation Procedures mandated by Subsection 20.69. Compliance with the regulations and guidelines for the Parkway Overlay District shall be considered in the context of the special permit review.

20.63.7 The development standards specified in this Section 20.60 shall apply to all development within the Parkway Overlay District not exempted by subsections 20.63.2, 20.63.3, and 20.63.4. Divergence from these standards may be allowed only by issuance of a special permit from the Planning Board as specified in Subsection 10.45. The Board may grant such a permit upon its determination that the development proposed will better serve the objectives of this Section 20.60 than if the standards were followed and that the criteria specified in Section 10.43 will be satisfied.

20.64 *Dimensional Standards in the Parkway Overlay District*.

20.64.1 Front Yards. Front yards should be of sufficient size and appropriately landscaped so as to increase public safety and to positively contribute to the visual and environmental quality of the district. Therefore the following standards shall apply:

1. The minimum front yard setback for the principal front wall plane for any structure shall be twenty-five (25) feet measured from the street line. For corner lots, only the front yard oriented toward Concord Turnpike, Alewife Brook Parkway, Concord Avenue, or Fresh Pond Parkway shall be required to provide this setback. The other front yard shall satisfy the minimum setback specified in Section 5.30 for the base zoning district.

2. Required front yards shall consist entirely of Green Area Open Space as defined in Article 2.000 with the exception of paving necessary for vehicular access. Such paved access area shall be limited to one 24-foot driveway for each one hundred (100) feet of lot frontage or fraction thereof.

3. Front yards shall contain at least one three (3) inch caliper tree for every twenty-five (25) linear feet of street frontage.

4. Front yards may contain fences along front and side lot lines in accordance with the provisions of Subsection 20.65.

20.64.2 Maximum Building Height. The transition from public open spaces to private development should not be abrupt. Therefore, the maximum height of the principal front wall plane of buildings in the Parkway Overlay District shall be fifty-five (55) feet. Portions of buildings may be allowed to extend to eighty-five (85) feet in height provided that those portions in excess of fifty-five (55) feet are set back from the principal front wall plane at least ten (10) feet and that those portions also set back from one or more sixty (60) degree building bulk

control planes. Notwithstanding the foregoing, where the base zoning district establishes a more permissive height limitation for Residences as listed in Section 4.31 a-j, the more permissive shall apply.

20.64.3 Building Facades. Building facades should be designed so as to enhance the visual quality of the district. The following standards shall apply:

1. Principal building entrances shall face the parkways and boulevards which serve to define the district.
2. Building facades and rooflines shall be articulated and expanses of unbroken wall planes shall be limited to thirty-five (35) linear feet for those facades facing public open space and/or public roadways.
3. Ground floor levels shall include a minimum of thirty (30) percent transparency to enliven and enrich the public environment.

20.65 *Fences*. In order to maintain a feeling of openness, to facilitate pedestrian enjoyment and use, and to maximize scenic views, fences along the front and side lot lines shall comply with the following standards:

1. No fence along a front or side lot line and within twenty-five (25) feet of a public right of way shall be more than four (4) feet in height from the curb level of the street or more than thirty (30) percent opaque.
2. Chainlink and wire fences are prohibited.

20.66 *Parking Standards*. Development in the Parkway Overlay District shall conform to the Off street Parking and Loading Requirements set forth in Article 6.000, except as modified by this Section 20.66.

20.66.1 Curb Cuts. Only one curb cut of a maximum of forty (40) feet shall be permitted per one hundred (100) linear feet of street frontage in the Parkway Overlay District. Wherever possible, curb cuts should be on local streets rather than arterial roadways and in no case shall a curb cut be allowed within one hundred (100) feet of an intersection unless the lot contains less than one hundred and twenty-five (125) feet of street frontage.

20.66.2 Siting of Parking Areas. Parking areas, whether accessory or nonaccessory, shall not be located in the front yard required for any lot in the district. Enclosed parking facilities are encouraged. On grade, open area parking areas shall be located behind the building or buildings served or arranged in such a way as to minimize their visibility from public ways.

20.66.3 General Landscaping of On Grade, Open Parking. Landscaping of parking areas in the district should help to ensure public safety, moderate the microclimate and minimize noise, glare and the unsightly intrusion of automobiles and unbuffered hard surfaces in the area of public open space. Therefore, any on grade open parking area for ten (10) or more cars shall be required to meet the following landscaping standards:

1. On grade, open parking areas shall be arranged and landscaped to properly screen cars from public rights of way and pedestrian ways. Such screening shall consist of a fence or wall not less than fifty (50) percent opaque and not less than four (4) feet in height.

2. At least ten (10) percent of the area devoted to on grade open parking shall be landscaped. The area devoted to on grade open parking shall be that portion of the lot containing parking spaces, driveways and landscaped area located between or adjacent to parking spaces and drives. No portion of the lot required as a setback between parking spaces and a building or lot line shall be counted in computing the ten (10) percent landscape requirement.

3. Each landscape area shall have minimum dimensions of three (3) feet.

4. Landscaped areas at least six (6) feet in width shall be used to divide parking areas into bays of not more than twenty (20) spaces. Such landscaped areas may be counted as part of the ten (10) percent required landscaped area.

20.66.4 Trees for Landscaping On grade, Open Parking Areas. The landscaping necessary to meet the standards specified in Subsection 20.66.3 shall include trees as follows:

1. For every ten (10) on grade, open parking spaces or fraction thereof, there shall be a minimum of one 3-inch caliper tree located within the area devoted to on grade parking.

2. The trees required for the landscaping of on grade, open parking areas - whether such trees are coniferous or deciduous, flowering or nonflowering - should be tolerant to urban environmental conditions, able to screen parking areas by virtue of their size, form, density of foliage and spread, and easy to maintain. A suggested list of trees which meet these criteria is listed in Subsection 11.16.4 of this Ordinance.

3. Standards of Tree Protection

   a. Each tree planted in a paved area shall have minimum of fifty (50) square feet of porous surface area surrounding the tree.

   b. Trees which are planted along roadways or in parking lots shall be protected by a curbed planter strip or by precast concrete curbs or railroad ties or by suitably designed concrete, steel or wood bollards placed at least four feet (4') from the tree.

20.67 *Mechanical Equipment and Refuse Storage Areas*.

1. No refuse storage areas nor mechanical equipment areas shall be located in a front yard within the district. Such areas shall be screened from view from street and parking areas, residential districts, open space areas, and designated parkways by a six (6) foot high durable nonliving barrier (or earth berm) planted with at least one shrub or vine for each ten (10) feet of barrier towards the abutting property.

2. Mechanical equipment on the roof of any building shall be permanently screened from view from the ground or other buildings in the area.

20.68 *Development Consultation Procedure*. The Parkway Overlay District shall be considered an area of special planning concern and shall be subject to the applicable development review procedures as set forth in Article 19.000 of this Zoning Ordinance.

20.68.1 [Deleted]

20.68.2 Subsection 19.43.1 notwithstanding, only exterior building alterations increasing gross floor area by one thousand (1000) square feet or more shall be subject to the development consultation procedure.

20.68.3 Subsection 19.42.1(4) notwithstanding, only construction of ten (10) or more parking spaces shall be subject to the development consultation procedure.

20.69 *Concord Avenue Parkway Subdistrict*. For the purposes of providing additional protection to a portion of Concord Avenue that abuts the Fresh Pond Reservation and which serves as a gateway to Cambridge, this section hereby creates a "Concord Avenue Parkway Subdistrict" within the Parkway Overlay District. The subdistrict is that portion of the Parkway Overlay District along Concord Avenue that is bounded on the west by the dividing line between the Residence C-1 district and the Office 2 district, and is bounded on the east by the dividing line between the Business C district and the Office 2 district. This subdistrict includes the following parcels as shown on The City of Cambridge GIS Maps: map 267D, parcel numbers 323, 282, 327, 328, 289, 259, 304, 284, 300, 316, 307, 285, 287, 286, 291, 310, and 311; Map 267E, parcel numbers 234, 277, 261, 283, 270, 269, 288, 289, 17, and 242; and Map 267F, parcels 293, 274, and 301, and includes, but is not necessarily limited to, the following street address on Concord Avenue: 795, 777, 775, 773, 769, 763, 745, 737, 729, 725, 711, 701, 689, 681, 675, 665, 655, 653, 651, 650, 647, 645, 641, 625, 617, 603, and 591.

20.69.1 Notwithstanding any other provisions in either the Parkway Overlay District and/or the base zoning district, the maximum height for any building or portion of a building containing a non-residential use within Concord Avenue Parkway Subdistrict shall not exceed fifty (50) feet.

20.69.2 Notwithstanding any other provisions in either the Parkway Overlay District and/or the base zoning district, any building within the Concord Avenue Parkway Subdistrict containing greater than twenty-five thousand (25,000) square feet of non-residential floor area shall require a special permit under this paragraph. When determining whether to grant a special permit under this paragraph, the Planning Board shall require compliance with the following criteria, in addition to the general special permit criteria set forth in section 10.43:

1. New buildings shall be related sensitively to the existing built environment. The location, orientation and massing of structures in the development should avoid overwhelming the existing buildings in the vicinity of the development. Visual and functional disruptions should be avoided.

2. New buildings should be in harmony with the purposes of the Parkway Overlay District as specified in Section 20.62, which are to create unified identifiable images of designated areas, to enhance public safety by reducing visual confusion and haphazard development, and to encourage development which will protect and enhance the use and enjoyment of public open space resources.

(Ord. No. 2025-1, 2-10-2025; Ord. No. 2025-2, 2-10-2025)

20.70 FLOODPLAIN OVERLAY DISTRICT

20.71 *Purpose.* The purpose of the Floodplain Overlay District is to: (1) Ensure public safety through reducing the threats to life and personal injury, (2) eliminate new hazards to emergency response officials, (3) prevent the occurrence of public emergencies resulting from water quality, contamination, and pollution due to flooding, (4) avoid the loss of utility services which if damaged by flooding would disrupt or shut down the utility network and impact regions of the community beyond the site of flooding, (5) eliminate costs associated with the response and cleanup of flooding conditions, and (6) reduce damage to public and private property resulting from flooding waters.

20.72 *Establishment and Scope.*

20.72.1 *Designation of Floodplain Overlay District.* The Floodplain Overlay District is herein established as an overlay district. The Floodplain Overlay District includes all special flood hazard areas within Cambridge designated as Zone A, AE, AH, AO, A99, V, or VE on the Middlesex Flood Insurance Rate Map (FIRM) dated July 8, 2025, issued by the Federal Emergency Management Agency (FEMA) for the administration of the National Flood Insurance Program (NFIP). The exact boundaries of the Floodplain Overlay District shall be defined by the 1%-chance base flood elevations shown on the FIRM and further defined by the Middlesex Flood Insurance Study (FIS) report dated July 8, 2025. The FIRM and FIS report are incorporated herein by reference and are on file with the City Clerk, Inspectional Services Department (ISD), Department of Public Works (DPW), Community Development Department (CDD), and Conservation Commission.

20.72.2 *Designation of Floodplain Administrator.* The City of Cambridge hereby designates the position of City Engineer, or their designee, to be the official Floodplain Administrator for the City of Cambridge. The Floodplain Administrator, if not the City Engineer then in consultation with the City Engineer, may develop standards and procedures appropriate to and consistent with the provisions of this Section 20.70, et seq. and any permits, rules and/or regulations that may be promulgated pursuant to this Section 20.70, et seq.

20.72.3 *Implementation of Floodplain Overlay District.* This Floodplain Overlay District shall become effective on July 8, 2025. Until July 8, 2025, Cambridge Zoning Ordinance 20.70, et seq., as amended on September 11, 2023 remains in full force and effect.

20.73 *Definitions.* For the purpose of this Section certain words and terms are hereby defined and applicable to this Section only. To the extent certain words and terms defined below are elsewhere defined in the City of Cambridge's Zoning Ordinance, the definitions in this Section supersede those definitions for the purpose of this Section. The definitions set forth in the State Building Code are also applicable, where appropriate, with respect to words and terms not defined herein. Words used in the present tense include the future; the singular number includes the plural, and the plural the singular; the word "lot" includes "plot", the word "building" includes "structure"; the word "occupied" includes "designed, arranged," or "intended to be occupied". Where the verb "use" is employed it shall be construed as if

followed by the words "or is intended, arranged, designed, built, altered, converted, rented, or leased to be used", the word "shall" is mandatory and "may" is permissive or discretionary.

Development means any man-made change to improved or unimproved real estate, including but not limited to buildings or other structures, mining, dredging, filling, grading, paving, excavation or drilling operations, or storage of equipment or materials.

Flood Boundary and Floodway Map means an official map of a community issued by FEMA that depicts, based on detailed analyses, the boundaries of the 100-year and 500-year floods and the 100-year floodway. (For maps done in 1987 and later, the floodway designation is included on the FIRM.)

Flood Hazard Boundary Map (FHBM) is an official map of a community issued by the Federal Insurance Administrator, where the boundaries of the flood and related erosion areas having special hazards have been designated as Zone A or E.

Floodway means the channel of the river, creek, or other watercourse and the adjacent land areas that must be reserved in order to discharge the base flood without cumulatively increasing the water surface elevation more than a designated height.

Functionally Dependent Use means a use which cannot perform its intended purpose unless it is located or carried out in close proximity to water. The term includes only docking facilities, port facilities that are necessary for the loading and unloading of cargo or passengers, and ship building and ship repair facilities, but does not include long-term storage or related manufacturing facilities.

Highest Adjacent Grade means the highest natural elevation of the ground surface prior to construction next to the proposed walls of a structure.

Historic Structure means any structure that is:

(a) Listed individually in the National Register of Historic Places (a listing maintained by the Department of Interior) or preliminarily determined by the Secretary of the Interior as meeting the requirements for individual listing on the National Register; or

(b) Certified or preliminarily determined by the Secretary of the Interior as contributing to the historical significance of a registered historic district or a district preliminarily determined by the Secretary to qualify as a registered historic district; or

(c) Individually listed on the Massachusetts State Register of Historic Places ; or

(d) Individually listed on a local inventory of historic places in communities with historic preservation programs that have been certified either:

  (1) By an approved Massachusetts program as determined by the Secretary of the Interior, or

  (2) Directly by the Secretary of the Interior in states without approved programs.

New Construction means structures for which the start of construction commenced on or after the effective date of the first floodplain management code, regulation, ordinance, or

standard adopted by the authority having jurisdiction, including any subsequent improvements to such structures. New construction includes work determined to be substantial improvement.

Recreational Vehicle means a vehicle which is: (a) built on a single chassis, (b) 400 square feet or less when measured at the largest horizontal projection, (c) designed to be self-propelled or permanently towable by a light duty truck; and (d) designed primarily not for use as a permanent dwelling but as temporary living quarters for recreational, camping, travel, or seasonal use.

Regulatory Floodway - ***See Floodway***.

Special Flood Hazard Area. The land area subject to flood hazards and shown on a Flood Insurance Rate Map or other flood hazard map as Zone A, AE, A1-30, A99, AR, AO, AH, V, VO, VE or V1-30.

Start of Construction means the date of issuance for new construction and substantial improvements to existing structures, provided the actual start of construction, repair, reconstruction, rehabilitation, addition, placement or other improvement is within 180 days after the date of issuance. The actual start of construction means the first placement of permanent construction of a building (including a manufactured home) on a site, such as the pouring of a slab or footings, installation of pilings or construction of columns. Permanent construction does not include land preparation (such as clearing, excavation, grading or filling), the installation of streets or walkways, excavation for a basement, footings, piers or foundations, the erection of temporary forms or the installation of accessory buildings such as garages or sheds not occupied as dwelling units or not part of the main building. For a substantial improvement, the actual "start of construction" means the first alteration of any wall, ceiling, floor or other structural part of a building, whether or not that alteration affects the external dimensions of the building.

Structure means, for floodplain management purposes, a walled and roofed building, including a gas or liquid storage tank, that is principally above ground, as well as a manufactured home.

Substantial Repair of a Foundation. When work to repair or replace a foundation results in the repair or replacement of a portion of the foundation with a perimeter along the base of the foundation that equals or exceeds 50% of the perimeter of the base of the foundation measured in linear feet, or repair or replacement of 50% of the piles, columns or piers of a pile, column or pier supported foundation, the building official shall determine it to be substantial repair of a foundation. Applications determined by the building official to constitute substantial repair of a foundation shall require all existing portions of the entire building or structure to meet the requirements of 780 CMR.

Variance means any state or City of Cambridge grant of relief from the terms of a floodplain management regulation.

Violation means the failure of a structure or other development to be fully compliant with the City of Cambridge's floodplain management regulations. A structure or other development

without the elevation certificate, other certifications, or other evidence of compliance required in §60.3 is presumed to be in violation until such time as that documentation is provided.

20.74 *Procedures and Requirements.*

20.74.1 The City of Cambridge requires a permit from the Floodplain Administrator for all proposed development in the Floodplain Overlay District, including new construction or changes to existing buildings, placement of manufactured homes, placement of agricultural facilities, fences, sheds, storage facilities or drilling, mining, paving and any other development that might increase flooding or adversely impact flood risks to other properties.

20.74.2 The City of Cambridge's permit review process includes the requirement that the proponent obtain all local, state, and federal permits that will be necessary in order to carry out the proposed development in the Floodplain Overlay District. The proponent must acquire all necessary permits and must demonstrate that all necessary permits have been acquired.

20.74.3 Any proposed development shall comply in all respects with the provision of the underlying zoning district, provisions of the State Building Code, Wetlands Protection Act, and any other applicable laws.

20.75 *Floodway Data.*

20.75.1 In Zones A, A1-30, and AE, along watercourses that have not had a regulatory floodway designated, the best available federal, state, local, or other floodway data shall be used to prohibit encroachments in floodways which would result in any increase in flood levels within the community during the occurrence of the base flood discharge.

20.75.2 In Zones A1-30 and AE, along watercourses that have a regulatory floodway designated on the City of Cambridge's FIRM encroachments are prohibited, including fill, new construction, substantial improvements, and other development within the adopted regulatory floodway unless it has been demonstrated through hydrologic and hydraulic analyses performed in accordance with standard engineering practice that the proposed encroachment would not result in any increase in flood levels within the City of Cambridge during the occurrence of the base flood discharge.

20.75.3 In A Zones, in the absence of FEMA BFE data and floodway data, the Floodplain Administrator will obtain, review and reasonably utilize base flood elevation and floodway data available from a federal, state, or other source as criteria for requiring new construction, substantial improvements, or other development in Zone A and as the basis for elevating residential structures to or above base flood level, for floodproofing or elevating nonresidential structures to or above base flood level, and for prohibiting encroachments in floodways.

20.75.4 Requirement to Submit New Technical Data. If the City of Cambridge acquires data that changes the base flood elevation in the FEMA mapped Special Flood Hazard Areas, the City of Cambridge will, within 6 months, notify FEMA of these changes by submitting the

technical or scientific data that supports the change(s.) Notification shall be submitted to: NFIP State Coordinator Massachusetts Department of Conservation and Recreation and NFIP Program Specialist Federal Emergency Management Agency, Region I.

20.76 *General Provisions.*

20.76.1 All proposed development in the Floodplain Overlay District shall be reviewed to assure that: (a) Such proposals minimize flood damage, (b) public utilities and facilities are located and constructed so as to minimize flood damage, and (c) adequate drainage is provided.

20.76.2 For any proposed development, the proponent must provide technical data to determine base flood elevations for each developable parcel shown on the design plans.

20.76.3 Within Zones AO and AH on the FIRM, adequate drainage paths must be provided around structures on slopes, to guide floodwaters around and away from proposed structures.

20.76.4 *Recreational Vehicles.* In A, A1-30, AH, AO, AE Zones, V1-30, VE, and V Zones, all recreational vehicles to be placed on a site must be elevated and anchored in accordance with the zone's regulations for foundation and elevation requirements or be on the site for less than 180 consecutive days or be fully licensed and highway ready.

20.76.5 *Watercourse Alterations or Relocations in Riverine Areas.* In a riverine situation, the Floodplain Administrator shall notify the following of any alteration or relocation of a watercourse: (1) adjacent communities, especially upstream and downstream, (2) NFIP State Coordinator Massachusetts Department of Conservation and Recreation, (3) NFIP Program Specialist Federal Emergency Management Agency, Region I.

20.77 *Variances.* Floodplain management variance criteria are outlined in Title 44 Code of Federal Regulations (CFR) 60.6.

20.77.1 *Variances to Building Code Floodplain Standards.*

20.77.1.1 Variances from the provisions and requirements of the State Building Code shall be filed by an applicant in accordance with the required variance procedures of the Massachusetts Building Code Appeals Board (BCAB).

20.77.1.2 Following a decision of the BCAB, an applicant shall provide the ISD Commissioner with a written and/or audible copy of the portion of the BCAB hearing related to the variance, and the ISD Commissioner will maintain this record in ISD's files.

20.77.1.3 For any property granted a variance from the State Building Code, the City of Cambridge shall issue a letter, in writing over the signature of a city official, to that property owner regarding potential impacts to the annual premiums for the flood insurance policy covering that property. The letter shall state that (i) the issuance of a variance to construct a structure below the base flood level will result in increased premium rates for flood insurance up to amounts as high as $25 for $100 of insurance coverage and (ii) such construction below the base flood level increases risks to life and property.

20.77.1.4 Such notification shall be maintained with the record of all variance actions for the referenced development in the floodplain overlay district.

20.77.2 Variances to Local Zoning Ordinances Related to Community Compliance With the NFIP. A variance from this floodplain section granted pursuant to Section 10.30 of this Zoning Ordinance must meet the requirements set out by State law, and may only be granted if: (1) good and sufficient cause and exceptional non-financial hardship exist, (2) the variance will not result in additional threats to public safety, extraordinary public expense, or fraud or victimization of the public, and (3) the variance is the minimum action necessary to afford relief.

20.78 *Enforcement.*

20.78.1 *Notice of Violation.*

20.78.1.1 The ISD Commissioner shall serve a written notice of Violation of Order to any owner or person responsible for the violation of any requirement under the provisions of this Ordinance, and such notice or order shall direct the immediate discontinuance of the unlawful action, use or condition and the abatement of the violation.

20.78.1.2 Any violator and/or owner who has been served with a notice shall stop work immediately, except that in ceasing any work or other activity they shall not leave any structure or lot in such a condition as to be a hazard or menace to the public safety, health, and general welfare.

20.78.1.3 In situations that require remedial action to prevent adverse impacts within the floodplain district, the City of Cambridge may order the owner or operator of the premises to remedy the violation.

20.78.1.4 Any person who violates the provisions of this Ordinance may be ordered to restore property to its original condition and take other actions deemed necessary to remedy such violations.

20.78.2 *Penalties.* Fines and penalties for violations of the Floodplain Overlay District Ordinance shall be levied in accordance with the provisions of Article 9.00 of the City of Cambridge Zoning Ordinance.

20.79 *Abrogation; Disclaimer of Liability; Severability.*

20.79.1 *Abrogation.* The floodplain management regulations found in this Floodplain Overlay District section shall take precedence over any less restrictive conflicting local laws, ordinances, or codes.

20.79.2 *Disclaimer of Liability.* The degree of flood protection required by this Section is considered reasonable but does not imply total flood protection.

20.79.3 *Severability.* If any section, provision, or portion of this Section is deemed to be unconstitutional or invalid by a court, the remainder of the Section shall be effective.

(Ord. No. 2023-5, 9-11-2023; Ord. No. 2025-9, 6-2-2025)

20.80 MEMORIAL DRIVE OVERLAY DISTRICT

20.81 **Establishment and Scope**. There is hereby established the Memorial Drive Overlay District which shall be governed by the regulations and procedures specified in this Section 20.80. It is the intent of this section that these regulations will apply to that area abutting Memorial Drive that lies between the Drive and the residential neighborhoods beyond and that has a non-residential or medium to high density residential base zoning designation.

20.82 *Purpose*. It is the purpose of this Section 20.80 to augment base zoning regulations in the District in order to create a more harmonious and consistent character for the development along Memorial Drive and where such development faces or abuts low density neighborhood residential districts; to encourage good building design and site development that enhances amenities available to pedestrians walking along Memorial Drive and the Charles River waterfront; and where commercial uses and higher density residential development abut residential neighborhoods, to ensure that physical changes within the Overlay District are compatible with the scale and character of the abutting neighborhoods; to encourage the retention of existing buildings of historic value; to encourage uses that will serve needs of residents of abutting neighborhoods or those persons enjoying the open space amenities along the Charles River; and to discourage new development inappropriate in both scale and design.

20.83 *Applicability*. The Memorial Drive Overlay District shall be an overlay district on the zoning map established by Section 3.20.

20.83.1 The building and land uses within the Memorial Drive Overlay District shall be regulated by the provisions of the applicable base zoning district except as modified by the requirements of this Section 20.80, which shall apply in addition to regulations imposed by the base zoning district designations. Where the base zoning regulations differ from the requirements of this Section 20.80 the stricter provisions shall apply, unless a Special Permit is issued by the Planning Board pursuant to Article 20.88.

20.84 *Dimensional Standards in the Memorial Drive Overlay District*.

20.84.1 Maximum Height. The maximum height of any structure in the Overlay District shall be permitted in the applicable base zoning district, except as provided below. Lots abutting Memorial Drive may be subject to further height limitations imposed by Chapter 91 of the Massachusetts General Laws.

20.84.2 For that portion of the Overlay District located north of the centerline of River Street and within ninety (90) feet of Blackstone Street the maximum height for portions of buildings containing non-residential uses shall be forty-five (45) feet where the base district permits heights greater than thirty-five (35) feet.

20.84.3 Minimum Required Front Yard Abutting Memorial Drive. The minimum required front yard for that portion of a lot abutting Memorial Drive shall be twenty-five (25) feet.

20.85 *Restrictions in Required and/or Provided Setbacks*.

20.85.1 That area between the principal wall plane of a building and a public street or public park, whether required or provided, shall be devoted to Green Area Open Space as defined in Article 2.000 of this Ordinance, an expansion of the adjacent public sidewalk, a park, or other landscaped or paved area devoted exclusively to pedestrian and bicycle use and extending along the entire length of the lot facing the street or park. Areas devoted to vehicular use are prohibited from this area with the exception of access drives leading directly to parking facilities located elsewhere on the site, which drives shall be limited as follows:

1. A maximum of one two-way access drive (and curb cut) or two one-way access drives (and curb cuts) from Memorial Drive per lot shall be permitted. The access drive shall not exceed thirty (30) feet in width in non-residential districts for a two-way drive or fifteen (15) feet in width for a one-way drive, and twenty (20) feet in width in residential districts for two-way drives and fifteen (15) feet in width for a one-way drive.
2. For portions of lots abutting other streets, a maximum of one access drive (and curb cut) shall be permitted per street, or one access drive (and curb cut) for each four hundred (400) feet of lot frontage, whichever is greater. If only one access drive is provided on a lot, it shall be located on the most minor street according to the hierarchy set forth in Section 20.87.1 below. Each access drive shall not exceed thirty (30) feet in width in non-residential districts and twenty (20) feet in residential districts.

   The required Green Area Open Space, landscaping or other paved area devoted to pedestrian and bicycle uses shall be located at mean grade of abutting public street or open space at the property line unless an exception is granted under the provisions of Section 20.88 below. Nothing in this Section 20.85.1 shall prohibit customary landscape features, elements and grading that may vary the grade of the required setback above that of the adjacent street or park provided the setback remains essentially at grade.

   Where the lot abuts more than two streets, the provisions of this Section 20.85.1 shall apply to no more than two streets. The two streets to which this Section shall apply shall be determined by the street hierarchy set forth in Section 20.87.1 below.

20.85.12 Notwithstanding the provisions of Section 20.85.1 above or any provision of Article 6.000, any on grade open parking facility shall be set back from front lot line by at least ten (10) feet. Such setback shall be landscaped as required in Section 20.85.1 above.

20.86 *Use Provisions*.

20.86.1 *Use Restrictions*. The ground (first) floor of that portion of a building facing a public street or public park, and located within seventy-five (75) feet of that public street or park, shall consist of Gross Floor Area devoted to any one or combination of the following uses: Residential (Section 4.31), Office (Section 4.34), Retail Business (Section 4.35), Institutional (4.33), but specifically excluding Gross Floor Area in structured parking counted as Gross Floor Area, meeting the following conditions:

1. At least eighty (80) percent of the floor elevation of the ground (first) floor shall be no higher than the four (4) feet above the mean grade of the adjacent public sidewalk or public park, at the property line, except that Retail Business uses in new construction shall be located at mean grade;

2. The use shall have a minimum depth of twenty (20) feet;

3. One parking space for each unit in a Townhouse shall be exempt from the limitations of this Section 20.106.

4. The use is permitted in the applicable base zoning district or otherwise permitted in this Section 20.80.

20.86.11 The food service establishments permitted in the Office 2 district, pursuant to the provisions of Section 4.40, Footnote 12, shall be subject to the provisions of Section 20.86.2 below. Where the provisions of the two sections differ, the more restrictive shall apply.

20.86.2 Additional Permitted Uses. In any office the following retail uses shall be permitted by Special Permit from the Planning Board: Convenience Store, Merchandise Store, Restaurant, Bar, Food Stand or Kiosk, Food Hall. Such uses shall be intended to provide services to the abutting residential neighborhoods or to persons making use of the open space recreational amenities of the Charles River waterfront and its constituent parks. Such retail uses shall be subject to the following limitations and conditions.

a. The retail use shall be located on a lot that abuts Memorial Drive.

b. The principal entrance to the retail use shall be on Memorial Drive.

c. The total Gross Floor Area on the lot devoted to retail uses permitted in this Section 20.86.2 shall not exceed five thousand (5,000) square feet.

d. No additional accessory parking shall be provided for the retail use unless specifically authorized by the Planning Board. The accessory parking requirements for these uses otherwise specifically required in Article 6.000 in herein specifically waived.

e. The use shall be located in a building principally containing uses otherwise permitted in the office or residential district.

20.87 *Design Standards*.

20.87.1 Building Facades shall be designed to enhance the visual quality of the Overlay District, create an environment pleasant and inviting for the pedestrians and compatible with the residential neighborhoods in close proximity to the District. The following standards shall apply:

1. A principal, publicly accessible building entrance shall be located on the building façade facing the principal street the lot abuts. Where a building abuts more than one street, a principal, publicly accessible building entrance on each street is encouraged but only one shall be required. That entrance shall face the most important street as determined by the following hierarchy (most important street to the least important street): Memorial Drive, River Street, Putnam Avenue, Pleasant Street, Magazine Street, Blackstone Street and Riverside Road. A principal, publicly accessible entrance serving a separate ground floor establishment shall be deemed to meet the

requirements of this paragraph. Nothing in this Paragraph 1 requires generally public access to a building or facility that is customarily accessible to only the inhabitants of the building, its guests and customers.

2. Where office and/or retail uses are accommodated on the ground floor each separately leased space shall have an individual public entrance onto the abutting street where any portion of the space fronts the street.

3. Facades facing a public street or a public park, designated city landmark building or a building in a local historic district or neighborhood conservation district that is located on an abutting lot, shall consist of a minimum twenty-five (25) percent clear glass in total for each separate façade facing a street park or building. That clear-glass requirement shall be increased to fifty (50) percent on the ground floor where retail and office uses are established. However, where a retail establishment abuts more than one street, park or building, only the façade facing the principal street (as set forth in Paragraph 1 above) shall be required to meet the 50% requirement.

20.88 *Waiver of Certain Provisions of the Overlay District or its Base Districts*.

20.88.1 Divergence from the standards specified in Sections 20.86 - 20.87 may be allowed by issuance of a Special Permit from the Planning Board. The Board shall grant such a permit upon its determination that the development proposed will still serve the objectives of this Section 20.80 and that proposed development is consistent with the Section 19.30 - Urban Design Objectives.

20.88.2 In recognition of the preservation, enhancement or creation of the Memorial Drive Overlay District Objectives, the Planning Board may, by Special Permit, allow a reduction in the required front yard setback, on any lot abutting Memorial Drive with an existing building (as of July 1, 2004) exceeding one hundred and twenty (120) feet, to a minimum of five (5) feet with the exception of Memorial Drive, where it may, by Special Permit, allow the reduction in required minimum setback to fifteen (15) feet.

The Planning Board may also, or instead, waive the base zone height limit for any lot abutting Memorial Drive with an existing building (as of July 1, 2004) exceeding one hundred and twenty (120) feet, by Special Permit, allowing height up to one hundred and twenty (120) feet.

20.89 The required yards, permitted Gross Floor Area (GFA) and permitted height for structures in existences as of July 1, 2004 shall be those yards, GFA, or height existing at that time and shall be deemed conforming for the purpose of applying the nonconforming provisions of Article 8.000. Otherwise, for any other provision of the Zoning Ordinance and for any new construction, the dimensional requirements of this Section 20.80 and any applicable base zoning district shall apply.

20.810 [Deleted]

20.811 The Memorial Drive Overlay District shall be considered an area of special planning concern subject to the provisions of Article 19.000.

(Ord. No. 2021-3, § xxv, 6-7-2021; Ord. No. 2025-1, 2-10-2025; Ord. No. 2025-2, 2-10-2025)

20.90 ALEWIFE OVERLAY DISTRICTS 5 AND 6

20.91 *Establishment and Scope.* There are hereby established two Alewife Overlay Districts, which shall be governed by the regulations and procedures specified in this Section 20.90. It is the intent of this section that these regulations will apply to the area at Alewife that has historically developed as a retail and industrial area generally at rather low densities, but which can be expected to develop more extensively and in greater variety of uses in the future.

20.91.1 The Alewife Overlay Districts shall be a series of Overlay Districts established on the Zoning Map of the City of Cambridge by Section 3.20. Provisions of this Section 20.90 and all references to it in this Zoning Ordinance shall apply equally to each of the six Overlay districts except as set forth below.

20.92 *General Purpose*. It is the purpose of this Section 20.90 to augment existing base district zoning regulations to respond to the unique problems and pressures for change in the Alewife area. The regulations contained in this Section 20.90 provide for more careful public scrutiny of future development proposals and provide an opportunity to shape the form and character of that development in ways that will benefit both individual property owners and the general interests of the larger commercial and residential neighborhood as a whole.

These regulations are intended to harness the opportunities presented with the redevelopment of private property in ways that will:

1. Encourage forms of development, mix of uses, and range of improvements that will facilitate and encourage walking, biking and transit use and reduce the growth of auto trips in an area already burdened with regional vehicular traffic passing through to other destinations in the metropolitan region;

2. Preserve and enhance the capacity to store floodwater, recharge groundwater and manage the collection and disposal of stormwater in ways that add to the quality and visual appeal of the built environment as well as to the quality of the water itself;

3. Minimize the negative impact of new development on the adjacent Cambridge Highlands residential neighborhood while introducing new amenities and services that will benefit the residents of that neighborhood;

4. Integrate the entire area through the creation of new pedestrian paths, roadways, green spaces and bridges that will facilitate movement within the several Districts and beyond to the Cambridge Highlands, North Cambridge and Neighborhood Nine neighborhoods and the Fresh Pond Reservation;

5. Introduce a significant component of residential living and support retail services to enhance the area's appeal for all persons who come to work, shop as well as live within the Districts; and

6. Create an identity and sense of place for the Alewife Districts that parallels the development of the historic urban centers that characterize much of Cambridge.

20.93 *General Provisions*.

20.93.1 The Alewife Overlay Districts shall be considered areas of special planning concern and shall be subject to the applicable development review procedures as set forth in Article 19.000 of this Zoning Ordinance.

20.93.2 Criteria for Development Consultation Review and Review of Applications for Special Permits and Variances. In reviewing applications for variances, special permits or development consultation reviews the permit or special permit granting authority shall be guided by the objectives, criteria, and guidelines contained in the publication Concord-Alewife Plan in addition to the requirements of Sections 10.30 (Variances) and 10.40 (Special Permits) and this Section 20.90. These guidelines are also intended to assist in shaping any contemplated physical change within the Alewife Overlay Districts. With respect to consistency with the Concord-Alewife Plan, special emphasis shall be placed on preservation of key rights-of-way for infrastructure projects as indicated in the Priority Infrastructure Plan.

20.93.3 Applicability. Buildings and uses within the Alewife Overlay Districts shall be controlled by the pertinent regulations within the applicable base districts, except as modified by the requirements of this Section 20.90, which shall apply in addition to the regulations imposed by the base district map designations.

20.93.4 Districts. The Alewife Overlay Districts shall be identified in this Section 20.90 by the following names:

1. Alewife Overlay District 5 (Shopping Center)

2. Alewife Overlay District 6 (Triangle)

20.93.5 Development Moratorium. For a period beginning from the date of enactment of this Section 20.93.5 and lasting until December 31, 2023, or until the time of enactment of an amendment to or deletion of this Section 20.93.5, whichever occurs sooner, no permits for the building, renovation, or enlargement of any structures to accommodate a new or enlarged Office or Laboratory Use as listed in Section 4.34 of this Zoning Ordinance shall be issued within the Alewife Overlay Districts 1-5. The purpose of such moratorium is to create and enact amended requirements for the Alewife Overlay Districts in consultation with residents of the Alewife Overlay Districts and surrounding neighborhoods, based on development plans and guidelines published by the City.

20.94 *Modifications to Permitted Uses*.

20.94.1 Additional Permitted Uses. In any base office or industrial district all uses listed in Section 4.35 - Retail Business and Consumer Service Establishments shall be permitted by special

permit from the Planning Board (if not otherwise allowed as of right in the district), subject to the following limitations unless the limitations are specifically waived by the Planning Board upon its finding that the purposes set forth in Section 20.92 above have been met:

1. No individual establishment may exceed 10,000 square feet in area.
2. The retail use shall be located on the first floor or basement of the building in which it is located.
3. The total Gross floor Area devoted to retail uses may not exceed 10% of the Gross Floor Area of the buildings constructed or authorized on the lot.

20.94.11 Modification to Uses Permitted in the IB-2 District. A Distribution Center, Parcel Delivery Center, or Delivery Warehouse - Section 4.37 (d) shall be permitted in the Industry B-2 district only after the granting of a special permit from the Planning Board.

20.94.2 Environmental Limitations. Within the Alewife Overlay Districts 1-6 the following restrictions shall apply.

1. All dust, fumes, odors, smoke, or vapors are effectively confined to the premises or disposed of so as to avoid air pollution.
2. Any noise, vibration, or flashing is not normally perceptible without instruments at a distance of one hundred (100) feet from the premises.

20.95 *District Dimensional Regulations*.

20.95.1 Maximum Floor Area Ratio. The maximum ratio of non-residential floor area to the lot area may be increased as set forth below, after the issuance of a special permit from the Planning Board.

1. Shopping Center District: 1.25. However, Gross Floor Area shall be further limited as set forth below.
   (a) No individual retail establishment (Section 4.35 and 4.36) shall have a Gross Floor Area exceeding 50,000 square feet, except in the case of a grocery store or supermarket, which may be as large as 60,000 square feet.
   (b) Where the total amount of Gross Floor Area on a lot (which shall be any lot or combination of lots held in common ownership as of January 1, 2006) exceeds 100,000 square feet, the square footage devoted to non-residential uses shall be at a minimum 20% and shall not exceed 50%. For a lot (which shall be any lot or combination of lots held in common ownership as of January 1, 2006) of ten acres or more, the required non-residential development shall consist of Retail Business and Consumer Service Establishments, Section 4.35, exclusively until at least 225,000 square feet of retail use is located on the lot, after which any non-residential use shall be permitted. Where a project subject to the provisions of this Paragraph (b) has received a special permit from the Planning Board, the permit decision shall establish how the requirements of this Paragraph (b) are met if a project is constructed in phases over time.

2. Triangle District: 1.75.

20.95.11 Additional FAR for Public Improvements. In order to provide an incentive to property owners to protect important segments of future roadways and infrastructure from permanent building construction, the Planning Board, in its review of any Special Permit application, may grant additional FAR above that permitted in Section 20.95.1 above in all Overlay Districts where the proposed development incorporates or provides one or more of the following improvements or property interests in a manner and to an extent determined to be sufficient to significantly advance the objectives of the Concord-Alewife Plan.

1. Conveyance of fee or easement property interests to the City of Cambridge (in a form acceptable to the City) to permit the future construction of roadway segments, pedestrian paths, the pedestrian bridge referenced above in Paragraph 1, public parks and other publicly accessible open space and recreation features consistent with the Concord-Alewife Plan, which segment, path, park or open space is identified on the maps entitled Priority Infrastructure Plan and Additional Infrastructure Plan or is otherwise identified by the Planning Board at another location and determined by the Board to be of equal value and consistent with those elements identified on the Map and the objectives set forth in the Plan.

   In this instance, the additional FAR shall be equal to the FAR otherwise permitted on the lot as-of-right or by special permit, but shall be applied only to that portion of the lot for which a fee or easement interest is to be conveyed.

20.95.2 Maximum Permitted Height. The maximum height for any building may be increased as set forth below, after the issuance of a special permit from the Planning Board, however, where the base zoning district establishes a more permissive height limitation for Residences as listed in Section 4.31 a—j, the more permissive shall apply by right:

1. Shopping Center District: 55 feet for all uses. However, these heights are modified further as set forth below:
   (a) For non-residential uses the height may be increased to 70 feet provided the building floorplate above 55 feet is limited to 15,000 square feet or less and those portions of buildings above 55 feet are separated by at least 50 feet; for residential uses the height may be increased to 85 feet provided the building floorplate above 55 feet is limited to 10,000 square feet or less and those portions of buildings above 55 feet are separated by at least 50 feet.
   (b) GFA transferred into this District pursuant to the TDR provisions of Section 21.40, may be located in portions of buildings used for residential purposes up to 105 feet in height provided the floorplate above 85 feet does not exceed 6,000 square feet and portions of buildings greater than 85 feet in height are separated by at least 50 feet.
2. Triangle District: 85 feet for all uses. However, these heights are modified further as set forth below:
   (a) For residential uses the height may be increased to 105 feet provided the building floorplate above 85 feet is limited to 10,000 square feet or less and those portions of buildings above 85 feet are separated by at least 50 feet.

(b) Residential GFA transferred into this District pursuant to the TDR provisions of Section 21.40, may be located in portions of buildings up to 125 feet in height provided the floorplate above 105 feet does not exceed 6,000 square feet and portions of buildings greater than 105 feet in height are separated by at least 50 feet.

20.95.21 Permitted Height Within the Parkway Overlay District, Section 20.60. The provision for heights in Section 20.95.2 above shall be subject to the further height limitations of Sections 20.64.2 and 20.69.1 of the Parkway Overlay District.

20.95.3 Yard Requirements. Except as herein provided in this Section 20.95.3, all development within the Alewife Overlay Districts shall meet the minimum yard requirements of the applicable base zoning district; and in Southwest Quadrangle, Southeast Quadrangle, Shopping Center and Triangle Districts the front yard provisions of the Parkway Overlay District, Section 20.64.1, shall continue to apply.

20.95.31 Restrictions in Required or Provided Yards.

1. Required or Provided Front Yards. That area between the principal front wall plane of a building and a street, whether required or provided, shall consist entirely of Green Area or Permeable Open Space extending along the entire length of the lot. Areas devoted to vehicular use are prohibited from this area with the exception of access drives leading directly to parking facilities located elsewhere on the site, in conformance with the requirements of Article 6.000.

   The Open Space shall be located at mean grade of the abutting street but nothing in this Section 20.95.32 shall prohibit customary landscaping features, elements and grading that may vary the grade of the required setback above that of the adjacent street provided the setback area remains essentially at grade.

   Where a lot abuts more than two streets the provision of this Section shall apply to no more than two streets.

20.95.32 Restrictions in Required or Provided Yards.

1. Required or Provided Front Yards. That area between the principal front wall plane of a building and a street, whether required or provided, shall consist entirely of Green Area or Permeable Open Space extending along the entire length of the lot. Areas devoted to vehicular use are prohibited from this area with the exception of access drives leading directly to parking facilities located elsewhere on the site, in conformance with the requirements of Article 6.000.

   The Open Space shall be located at mean grade of the abutting street but nothing in this Section 20.95.32 shall prohibit customary landscaping features, elements and grading that may vary the grade of the required setback above that of the adjacent street provided the setback area remains essentially at grade.

   Where a lot abuts more than two streets the provision of this Section shall apply to no more than two streets.

2. Other Yards. Required Yards in the Quadrangle Northwest and Quadrangle Southwest Districts, as set forth in Paragraph 2 of Section 20.95.31 above, shall consist entirely of Green Area or Permeable Open Space. Areas devoted to vehicular use are prohibited from this area.

20.95.33 Setbacks Applied to at-grade Open Parking Facilities. Notwithstanding the provisions of Section 20.95.32 above or any provision of Article 6.000, any on grade open parking facility shall be set back from the front lot line by at least ten feet. Such setback shall be Open Space as required in Section 20.95.32, Paragraph 1 above.

20.95.34 Waiver of Yard Requirements. The yard requirements of the applicable base or Overlay districts may be reduced or waived as set forth below.

1. Side and rear yard requirements of any applicable base zoning district may be waived, subject to the minimum requirements of Section 20.95.31 above, and front yards may be reduced to a minimum of fifteen (15) feet after the issuance of a special permit from the Planning Board (and in the Parkway Overlay District after making the findings required of the Planning Board in Section 20.63.7).

2. In the Shopping Center and Triangle Districts, the front yard requirements of the Parkway Overlay District, Section 20.64.1, and the front yard requirements of the applicable base district and this Section 20.95.3 may be waived entirely by special permit from the Planning Board for any portion of a lot where the roadbed of the abutting Alewife Brook Parkway is at least six feet above the grade of the lot at the front property line.

3. The Planning Board shall consider the following in making its findings:

   a. The objectives of the Concord-Alewife Plan continue to be met.

   b. The stormwater management objectives for the area continue to be met both on the site and as the site may be a part of a larger system for managing stormwater runoff.

   c. The reduction or waiver of yard requirements provides for more efficient development of land; encourages or facilitates a more logical pattern of buildings, streets, parks and open space; or enhances the urban, pedestrian character of the area as envisioned in the Concord-Alewife Plan.

20.95.4 [Deleted]

20.96 *At Grade Open Space and Permeable Area Requirements*. Each lot shall be required to provide open space located at grade in the quantities set forth below. That open space may be any combination of Green Area, Permeable, Public, Publicly Beneficial, or Private open space as defined in Article 2.000.

In addition, each lot shall provide Permeable Area in quantities set forth below. Permeable Area shall be defined as that at-grade surface of a lot that is fully permeable to the infiltration

of water to the soil below and whose subsurface permits the percolation of such surface water to the groundwater without interruption or diversion by any building, pavement, structure, or other manmade element with the exception of incidental utilities.

Nothing in these requirements shall prohibit the same portion of a lot from meeting both the Open Space and the Permeable Area requirements of this Section 20.96

20.96.1 Quantity. The minimum ratio of Open Space and Permeable Area to the total area of the lot shall be fifteen (15) percent for Open Space and twenty-five (25) percent for Permeable Area. The Permeable Area requirement may be reduced as of right with the certification to the Superintendent by the City Engineer that the lot and the development upon it meet the Department of Public Works standards for water quality management and the retention/ detention of the difference between the 2-year 24-hour pre-construction runoff hydrograph and the post-construction 25-year 24-hour runoff hydrograph as outlined in the publication Proposed Concord - Alewife Area Stormwater Management Guidelines, May 2006, Cambridge Department of Public Works, and upon a finding by the Planning Board pursuant to its review of an application under the provisions of Section 20.93.2, that such reduction advances the relevant purposes of this Section.

20.96.2 Pooled Open Space and Permeable Area Requirement. In order to provide the flexibility to advance the policy objectives of the Concord-Alewife Plan to create a system of parks and pathways throughout the Area, facilitate the storage and management of stormwater runoff, encourage the development of land management practices that facilitate and encourage the recharging of the area's groundwater, and allow multiple owners to cooperate in advancing these objectives to their benefit as well as to the benefit of the general public, the Planning Board may permit by special permit the pooling of Open Space and Permeable Area requirements for one lot on other adjacent or non-contiguous lots, subject to the following requirements:

1. There is no reduction in the total area of required Open Space or Permeable Area unless such reduction is permitted by the Planning Board under the provisions of Section 20.96.3 below.

2. The relocated Open Space or Permeable Area continues to serve, or better serve, the policy objectives of the Concord-Alewife Plan.

3. More useful and better located open space and water management facilities are created, which may, in turn, permit better designed and coordinated development on the affected lots.

20.96.3 Reduction in Required Open Space. The Planning Board may allow by Special Permit the reduction of required Open Space, or permit such Open Space to be located other than at grade if the applicant can demonstrate that the urban design and stormwater management objectives as set forth in the Concord-Alewife Plan continue to be met, as for example through the use of innovative stormwater management techniques like green roofs.

20.97 Parking and Loading Requirements. Development in the Alewife Overlay Districts shall conform to the off street Parking and Loading Requirements set forth in Article 6.000 for the applicable base zoning district, except as modified below.

20.97.1 Setbacks Applied to At-grade Open Parking Facilities. Notwithstanding the provisions of Section 20.95.32 above or any provision of Article 6.000, any on grade open parking facility shall be set back from the front lot line by at least ten feet. Such setback shall be landscaped as required in Section 20.95.32, Paragraph 1 above.

20.97.2 Pooled Parking. In order to provide the flexibility to advance the policy objectives of the Concord-Alewife Plan through the creation of more pedestrian friendly development throughout the area, to permit greater permeable land surface to be established, to facilitate environments with greater landscaping and green area including parks and recreation areas, to more efficiently use the supply of parking available in a district where greater use of non-auto forms of transportation are encouraged and less land area devoted to parking use is desired, the Planning Board may, by special permit, allow accessory parking serving one or more lots to be located in whole or in part in pooled parking facilities, or a public parking facility, located anywhere within the Alewife Overlay Districts, notwithstanding the limitations set forth in Section 6.22.1. In granting such a special permit the Planning Board shall consider the following:

1. The facility advances the objective of the Concord-Alewife Plan.
2. A shared facility is established that aids in implementation of effective Transportation Demand Management measures to reduce dependence on the single occupancy automobile.
3. The facility is appropriately located to serve the development it serves.
4. The facility is well designed, does not diminish the pedestrian-friendly quality the area around it, and is otherwise consistent with the urban design objective of the Concord-Alewife Plan.

20.97.3 Waiver of Gross Floor Area Provisions for Parking Facilities - Section 5.25. Because of the unique factors related to flooding and groundwater management in Alewife, the importance of maintaining a high level of permeability, and the difficulty of constructing large areas of building below grade, the Planning Board may by special permit exempt the Gross Floor Area contained in any above ground structured parking facility from the FAR limitations established in this Section 20.90 and any applicable base zoning (such special permit shall supersede the provisions of Section 5.25.3.42 for any lot within the Alewife Overlay Districts). In granting such a special permit the Planning Board shall consider the following:

1. The facility advances the objective of the Concord-Alewife Plan.
2. A shared facility is established that aids in implementation of effective Transportation Demand Management measures to reduce dependence on the single occupancy automobile.

3. The facility is well designed, does not diminish the pedestrian-friendly quality the area around it, and is otherwise consistent with the urban design objective of the Concord-Alewife Plan.

4. The additional bulk of building above grade is well designed and does not have an unreasonably negative impact on its abutters or the public realm.

5. The extent to which the construction of an above grade parking structure facilitates the creation of at grade soil permeability.

20.97.4 Schedule of Parking and Loading Requirements. Any development seeking one or more special permits allowed in this Section 20.90 shall be subject to the minimum and maximum parking requirements and loading requirements set forth in Column 3 of Section 6.36 - Schedule of Parking and Loading Requirements.

20.98 *Transfer of Development Rights.* The transfer of permitted GFA from a Donating Lot to a Receiving Lot shall be permitted in the Alewife Overlay Districts Q, 5 and 6, subject to the provisions of Section 21.40 and the dimensional and use provisions of the applicable base zoning districts, as modified by the provisions of Alewife Overlay Districts as set forth in the Section 20.90.

20.99 *Subdivision of Lots*. Where it is proposed to subdivide a lot (after approval by special permit has been granted by the Planning Board for development on that lot) in order to convey to the City of Cambridge an easement or fee interest in property for the purpose of creation of a city or private street, a pedestrian pathway, a pedestrian bridge, bicycle path, open space or park, (or otherwise provided by others as a condition of the issuance of the special permit), such subdivision shall be permitted, notwithstanding any definition of lot or street in this Ordinance or any limitation in applicable base or overlay districts with regard to minimum lot size, required yards or other dimensional, open space or other regulatory requirement or limitation. All dimensional requirements of the Zoning Ordinance and this Section 20.90 shall be satisfied by the lot as a whole as defined in the application for a special permit and shall be waived with regard to any subsequent subdivided lots.

No development approved by special permit in this Section 20.90 shall be subsequently rendered non-conforming with regard to the dimensional requirements applicable to it as a result of a subdivision of land to create an approved public or private street, park or pedestrian, bicycle or other pathway.

20.910 *Special Provisions Related to Local Government Uses—Section 4.33(f)*. Notwithstanding any provisions of the applicable base district regulations or any provision of this Section 20.90, all uses set forth in Section 4.33 (f) shall be permitted as of right in Overlay Districts 1-4, subject to the following as-of-right dimensional and other requirements.

20.910.1 Maximum Floor Area Ratio. The maximum FAR shall be as permitted in Section 20.95.1 for residential uses.

20.910.2 Maximum Height. The maximum height shall be as permitted in Section 20.95.2 for residential uses, subject to the limitations imposed in the Parkway Overlay District (Section 20.60).

20.910.3 Yard Requirements. The following yard requirements only shall apply.

1. Front Yard. A fifteen foot front yard shall be required.
2. Side and Rear Yards. A ten foot side and rear yard shall be required.
3. Any Yards Abutting a Residential or Open Space District. Any yard abutting a residential or open space district shall be twenty-five feet and shall consist entirely of Green Area or Permeable Open Space.

20.910.4 Required Open Space. The minimum ratio of Open Space to the total area of the lot shall be fifteen (15) percent and shall consist of any combination of Green Area, Permeable, Public, Publicly beneficial or Private open space. The Open Space shall be located at grade.

20.910.5 Permeable Area Requirement. There shall be no Permeable Area requirement provided the City Engineer certifies to the Superintendent of Buildings that the development meets the Department of Public Works standards for water quality management and the retention/detention of the difference between the 2-year 24-hour pre-construction runoff hydrograph and the post-construction 25-year 24-hour runoff hydrograph.

20.910.6 The provisions of Section 19.20 and 19.50 shall not apply to these uses.

[20.910.7] Other Requirements. All other requirements and procedures of this Section 20.90 and the applicable base zoning district shall continue to apply.

20.920 Special Provisions Related to Lots of 5,000 Square Feet or Less with buildings containing non-residential uses. Notwithstanding any provision of the applicable base district regulations or any provision of this Section 20.90, for lots of 5,000 square feet or less in existence as of January 1, 2005 and held in separate ownership from any abutting lot, the following dimensional standards shall apply as of right to non-residential uses. For residential uses, the base zoning shall control.

20.920.1 Maximum Floor Area Ratio. The maximum FAR shall be as permitted in Section 20.95.1.

20.920.2 Maximum Height. The maximum height shall be as permitted in Section 20.95.2, subject to the limitations imposed in the Parkway Overlay District (Section 20.60).

20.920.3 Yard Requirements. The following yard requirements only shall apply.

1. Front Yard. A fifteen foot front yard shall be required.
2. Side and Rear Yards. A ten foot side and rear yard shall be required.
3. Any Yards Abutting a Residential or Open Space District. Any yard abutting a residential or open space district shall be twenty-five feet and shall consist entirely of Green Area or Permeable Open Space.

20.920.4 Required Open Space. The minimum ratio of Open Space to the total area of the lot shall be fifteen (15) percent and shall consist of any combination of Green Area, Permeable, Public, Publicly beneficial or Private open space. The Open Space shall be located at grade.

20.920.5 Permeable Area Requirement. There shall be no Permeable Area requirement provided the City Engineer certifies to the Superintendent of Buildings that the development meets the Department of Public Works standards for water quality management and the retention/detention of the difference between the 2-year 24-hour pre-construction runoff hydrograph and the post-construction 25-year 24-hour runoff hydrograph to the maximum extent possible.

20.920.6 Other Requirements. All other requirements and procedures of this Section 20.90 and the applicable base zoning district shall continue to apply.

(Ord. No. 2022-1, 5-23-2022; Ord. No. 2022-9, 2-27-2023; Ord. No. 2023-5, 9-11-2023; Ord. No. 2025-1, 2-10-2025)

20.100 MASSACHUSETTS AVENUE OVERLAY DISTRICT

20.101 *Establishment and Scope*. There is hereby established the Massachusetts Avenue Overlay District which shall be governed by the regulations and procedures specified in this Section 20.100. It is the intent of this section that these regulations will apply to the area described generally as Northern Massachusetts Avenue and certain abutting portions of the neighborhood abutting it.

20.102 *Purpose*. It is the purpose of this Section 20.100 to augment base zoning regulations in the District in order (a) to protect and promote the retail and service ecosystem along the Avenue, (b) to create a more harmonious and consistent image for the development along the Avenue and adjacent areas, to encourage good building design and site development which enhances the pedestrian amenities along the Avenue, (c) to ensure that changes along the Avenue are compatible with the scale and character of the abutting neighborhoods, (d) to encourage the retention of existing buildings of historic value and uses which serve the abutting neighborhoods, and to (e) discourage new development inappropriate in both scale and design.

20.103 *Applicability*. The Massachusetts Avenue Overlay District shall be an overlay district on the zoning map established by Section 3.20.

20.103.1 The buildings and land uses within said district shall be controlled by the pertinent regulations within the base zoning district, except as modified by the requirements of this Section 20.100 which shall apply in addition to regulations imposed by the base zoning map designations. Where the base zoning regulations differ from the requirements of this Section 20.100 the stricter provisions shall apply except where a waiver from those requirements is granted by special permit from the Planning Board under any of the provisions of this Section 20.100.

20.103.2 Deleted #1385

20.104 *Dimensional Standards in the Massachusetts Avenue Overlay District*.

20.104.1 Maximum Height for Non-residential Uses. The maximum height of any building or portions of a building containing non-residential uses in the Overlay District shall be sixty (60) feet or the height applicable in the base district, whichever is less, except that in the Business A-5 district the base district height limit shall control.

20.104.2 Modifications to the Definition of Gross Floor Area. Notwithstanding the definition of Gross Floor Area contained in Article 2.000 - Definitions, the following shall not be included as part of the gross floor area of any building in the Overlay District:

1. Enclosed bays and other small projections from the principal wall plane of a building normally included as gross floor area, provided they are three (3) feet or less in depth and further provided that the following conditions are met:
    a. The maximum width of the projection does not exceed six (6) feet in length;
    b. No more than fifty (50) percent of the area of each principal wall plane is covered with such projections.

20.104.3 Additional Dimensional Standards for Lots Located in both a Business C zoning district and an abutting Residence C-1 Zoning District. The provisions of this Section 20.104.3 shall apply to lots held in single ownership as of June 1, 2008 that are located entirely within the Overlay District and shall be granted after the issuance of a special permit from the Planning Board

1. Modification of the Transitional Requirements of Section 5.40. The Planning Board may waive the requirements of footnote (33), footnote (34), and footnote (35) of Section 5.40 for Hotel or Motel Use provided the Board finds that the intended buffering provided by the provisions of footnote (33), footnote (34), and footnote (35) of Section 5.40 is reasonably provided through other means. The Board shall specifically find the following:
    a. The lot contains a contiguous area that is within the adjoining residential district.
    b. The portion of the lot in the residential district is substantially dedicated to at grade Green Area, Permeable, or Publicly Beneficial Open Space as defined in Article 2.000.
    c. The portion of the lot dedicated to Open Space provides an adequate transition buffer between any structure constructed in the commercially zoned portion of the lot and adjacent residential uses in the residential district. Such Open Space shall have a minimum depth of twenty (20) feet.
2. Modification of the FAR limitations for a Hotel or Motel Use (Sections 5.30 and 5.33), for a lot located in both a Business C and a Residence C-1 Zoning District. The Planning Board may allow a FAR of 1.60, calculated on the area of the entire lot, in both the Business C and Residence C-1 districts, subject to the following conditions and limitations:
    a. All of the resulting Gross Floor Area will be located on the Business C portion of the lot.

b. All parking required by this ordinance will be located in a below-grade parking facility.

c. The at-grade portion of the lot within the Residence C-1 District is substantially dedicated to Green Area, Permeable, or Publicly Beneficial Open Space as defined in Article 2.000.

d. The additional FAR of 1.60 shall only apply to the first 15,000 square feet of a lot. For portions of the lot greater than 15, 000 square feet the FAR permitted in the applicable base Business C and residential districts shall continue to apply.

e. No preferably preserved significant building, as determined by the Cambridge Historical Commission, is demolished, as set forth in the City of Cambridge Demolition Ordinance #965.

20.105 *Restrictions in Required and/or Provided Setbacks*. That area between the principal wall plane of a building and a public street or public park whether required or provided shall be devoted to Green Area Open Space as defined in Article 2.000 of this Ordinance, an expansion of the adjacent public sidewalk, park, or other landscaped or paved area devoted exclusively to pedestrian use and extending along the entire length of the lot facing the street or park. Areas devoted to vehicular use are prohibited from this area with the exception of access drives to parking facilities located elsewhere on the site and which shall be limited to a total of thirty (30) feet of width for each one hundred (100) feet of lot frontage.

The required Green Area Open Space, landscaping or other paved area devoted to pedestrian uses shall be located at the mean grade of the relevant public street or open space at the property line unless an exception is granted under the provisions of Section 20.108 of this Section 20.100.

20.106 *Use Restrictions*. The ground (first) floor of that portion of a building facing a public street or public park shall consist of Gross Floor Area devoted to any one or combination of the following uses: Residential (Section 4.31), Office (Section 4.34), retail business (Section 4.35), Institutional (Section 4.33) meeting the following conditions:

1. At least eighty (80) percent of the floor elevation of the ground (first) floor shall be no higher than the four (4) feet above the mean grade of the adjacent public sidewalk or public park, at the property line, except that Retail Business uses in new construction shall be located at mean grade;

2. The use shall have a depth of at least twenty (20) feet;

3. Where a lot fronts on two streets the provisions of this Section 11.106 shall apply only to the principal arterial street frontage provided the remainder of the ground floor of the building facing the public street shall be screened with a permanent wall in materials equal in quality to those of the rest of the building and having a minimum opacity of fifty (50) percent.

4. The ground (first floor use of any building, to a minimum depth of forty (40) feet from the ground floor building facade fronting the principal arterial street, shall not include areas

of parking facilities in a structure that is not underground according to the standards and definitions set forth in Section 5.25 of this Zoning Ordinance. Without limitation, in accordance with Section 5.25, this exclusion shall apply to parking spaces and vehicular access drives that are either fully enclosed within the building, or covered by a structure above while remaining open on the sides. Access drives that are open to the sky are permitted in accordance with the requirements of Section 20.105 above. North of Porter Square, one parking space for each unit in a Townhouse shall be exempt from the limitations of this Section 20.106.

20.106.1 Accessory Parking and Vehicular Access for Hotel Use. Notwithstanding the provisions of Table 4.30 and Section 6.22, for a lot located in both a Business C and a Residence C-1 zoning district, the Planning Board may grant a Special Permit to allow accessory Hotel or Motel Use parking within the Residence C-1 District, including vehicular access to the parking facility and loading facility, with the following limitations and conditions:

1. The portion of the lot in the Residence C-1 district is contiguous to the portion of the lot in the BC District.

2. The parking is located in a below-grade parking structure.

3. The at-grade portion of the lot within the Residence C-1 district is substantially dedicated to Green Area, Permeable, or Publicly Beneficial Open Space as defined in this Ordinance.

20.107 *Design Standards*.

20.107.1 Building Facades. Building facades shall be designed to enhance the visual quality of the Overlay District, create an environment pleasant and inviting for the pedestrian and compatible with the residential neighborhoods in close proximity to the district. The following standards shall apply:

1. Principal building entrances shall face Massachusetts Avenue where a lot abuts the Avenue;

2. Where office and/or retail uses are accommodated on the ground floor each separately leased space shall have an individual public entrance onto the abutting street where any portion of the space fronts towards the street;

3. Facades facing a public street, a public park, or designated city landmark building, or building in a local historic district or neighborhood conservation district, on an abutting lot, shall consist of a minimum twenty-five (25) percent clear glass in total for the facade, with clear glass increased to fifty (50) percent on the ground floor where retail and office uses are established. The maximum amount of clear glass permitted shall be seventy-five (75) percent of the facade. Reflective and opaque glass shall be prohibited.

20.108 Divergence from the standards specified in Sections 20.105 - 20.107 may be allowed by issuance of a special permit from the Planning Board. The Board shall grant such a permit

upon its determination that the development proposed will better serve the objectives of this Section 20.100 than if the standards were followed and that the criteria specified in Section 10.43 will be satisfied.

The Board shall be guided in its determination by Northern Massachusetts Avenue Urban Design Guidelines and other such guidelines as may be established for this portion of Massachusetts Avenue. This Section 20.108 is intended for variations from the standards which may be appropriate in specific locations and circumstances and where careful design detail is a controlling factor.

20.109 *Nonconforming structures*. Notwithstanding the provisions of Section 8.23, that portion of a legal, nonconforming structure lying within the Massachusetts Avenue Overlay District which is destroyed or damaged by fire, explosion, or other catastrophe may be rebuilt or restored and used again, in the same way as it had been legally used immediately before the damage, without limit as to cost of such rebuilding or restoring provided the following conditions are met:

1. Any restoration or rebuilding shall commence within twelve (12) months after the catastrophe;

2. The structure shall be restored or rebuilt to the same design, including materials and design details as existed previously; or should the restoration not be feasible necessitating that the structure be rebuilt to a different design, said design shall be at least equal to the original design of the structure in quality of materials used, the quantity and quality of design details employed, and the compatibility of the site design with abutting properties;

3. The Community Development Department shall certify to the Superintendent of Buildings that the above conditions have been met.

With respect to the comparability of newly designed buildings, the Community Development Department shall consult the Cambridge Historical Commission for structures greater than fifty (50) years old. Should the Community Development Department find that said conditions have not been met the restoring or rebuilding shall require a special permit from the Board of Zoning Appeal.

The restored or rebuilt structure shall in no aspect increase the nonconforming nature of the original structure; nothing in this Section 20.110, however, shall prohibit a rebuilding or restoring which reduces the nonconforming nature of the original structure.

20.110 *Additional Standards Applicable in the Business A-2 Districts.* Within the portions of the Overlay District having a base Business A-2 zoning district designation (the BA-2 Districts) the regulations set forth above in Subsections 20.103 to 20.109 shall apply except as modified by this Section 20.110. However, the provisions of this Section 20.110 shall not apply in the portion of the BA-2 District north of the centerline of Richard Avenue. The provisions of this Section 20.110 shall not apply in the Business A-5 district.

20.110.1 Purpose and Intent. The purpose of the Massachusetts Avenue Overlay District shall apply equally within the included BA-2 Districts. The intent of the additional standards applicable in the BA-2 Districts is to encourage the retention and expansion of pedestrian-friendly ground floor retail and other active non-residential uses on the ground floors of buildings along the Avenue. Additionally, as sites are redeveloped in the future, new buildings and streetscapes should have a scale, urban design, and mix of uses that strengthens the urban character of the Avenue as the principal commercial corridor serving the North Cambridge, Agassiz and Neighborhood Nine neighborhoods while also respecting the historic characteristics of the Avenue.

20.110.2 Use Regulations. In addition to the requirements set forth in Section 20.106, the following regulations shall apply.

20.110.21 Required Ground Floor Non-Residential Uses. The ground floor of any building that fronts directly onto Massachusetts Avenue shall consist of at least one (1) active non-residential use meeting the following requirements:

1. Range of Qualifying Uses. The required ground floor active non-residential uses shall be limited to one or a combination of the following uses, to the extent permitted in the base zoning district:
    a. Section 4.34 a (office of a physician, dentist or other medical practitioner not located in a clinic listed under subsection 4.33(d)), b (office of an accountant, attorney, or other non-medical professional person (includes properly licensed massage therapists), c (real estate, insurance or other agency office), d (general office use), e (bank, trust company or similar financial institution (retail banking only));
    b. Section 4.35 a-1 (Convenience Store), a-2 (Merchandise Store), a-3 (Grocery Store), c (Personal Services Establishment), f-1 (Restaurant), f-2 (Bar), f-3 (Craft Beverage Establishment), f-4 (Food Stand or Kiosk), f-5 (Food Hall), g (Dance Hall or Nightclub), h (Theater), i-1 (Commercial Recreation Establishment), i-2 (Fitness Center), l (Animal Services Facility), o (Fast Order or Quick-Service Food Establishment), q-1 (Art/Craft Studio), q-2 (Performing Arts Studio), r (Bakery, retail);
    c. Section 4.36 a (Open-Lot Retail Sales Establishment);
    d. Section 4.56 a(4) (religious or social recreation center), c(4) (college theater), e(4,5,6) (medical clinics), f (social service or community center), g(3) (museum), g(5) (public park, playground, or public recreation building), i(2) (museum or non commercial gallery).
2. Minimum Depth. The required ground floor uses shall have a minimum depth of forty (40) feet measured from the Massachusetts Avenue frontage of the building (or the full depth of the building if less than forty (40) feet).
3. Floor Elevation. The floor elevation of the required ground floor uses shall be at the mean grade of the adjacent public sidewalk.

4. Minimum Linear Frontage. The required ground floor non-residential use shall occupy a minimum of 75% of the linear frontage of the building facing Massachusetts Avenue.

5. Individual Store Size.

   a. In portions of the included BA-2 Districts north of Porter Square, any separately leased required ground floor non-residential use shall contain no more than 5,000 square feet of Gross Floor Area, which calculation of square footage shall include any floor area located below grade.

   b. In portions of the included BA-2 Districts south of Porter Square, any separately leased required ground floor non-residential use shall contain no more than 2,500 square feet of Gross Floor Area, which calculation of square footage shall exclude any floor area located below grade. However, the Planning Board may grant modifications to such Gross Floor Area limitation, pursuant to Section 20.110.22 below, to accommodate a pre-existing non-residential use of building or for other reasons that are in support of the non-residential use purposes of the Massachusetts Avenue Overlay District.

6. Minimum Ground Floor Height. For any ground floor portion of a building containing a required non-residential use the minimum ground floor height shall be fifteen (15) feet measured in the manner described in Paragraph 20.110.42. If the ground floor height is reduced below fifteen (15) feet by special permit or variance, there shall be a commensurate reduction in the total height of the building.

7. Maximum Bank Frontage. No bank, trust company or similar financial institution may occupy a building frontage of more than twenty-five (25) feet.

20.110.22 Modifications to Standards. As set forth below, the Planning Board may grant a special permit to waive certain requirements of Subsection 20.110.21 above. A project receiving a special permit pursuant to this Subsection 20.110.22 shall be considered to meet the requirements of Subsection 20.110.21 for the purpose of applying the other provisions of this Section 20.110.

1. Modifications to the Dimensional Provisions of Subsection 20.110.21. The Planning Board may approve modifications to the dimensional requirements set forth in Subsection 20.110.21 Paragraphs (2-7) upon making a determination that (a) the proposed modified dimensions do not substantially derogate from the intent of the requirement to provide for a reasonably continuous active ground floor frontage along the public street and (b) the overall floor area of required active non-residential ground floor uses is not substantially reduced and (c) the modifications are the minimum necessary to reasonably accommodate the new construction or use on the lot.

2. Additional Non-Residential Uses Not Otherwise Permitted in Subsection 20.110.21. The Planning Board may approve active non-residential ground floor uses not specifically listed in Subsection 20.110.21 Paragraph (1), to the extent permitted in the base zoning district, upon making a determination that an alternate ground floor use will

provide services or amenities to the general public and will promote an active, pedestrian-friendly street front consistent with the objectives of this Overlay District and the purpose of the standards applicable in the BA-2 Districts.

20.110.23 In general, it shall not be allowed to construct a new building directly fronting Massachusetts Avenue that cannot meet either the requirements of Section 20.110.21 or the standards by which modifications to that section are permitted by special permit as set forth in Section 20.110.22.

However, the Planning Board may grant a special permit to waive the requirements of Section 20.110.21 to allow the construction of a building substantially or completely devoted to residential or dormitory uses provided the Board determines that all of the following conditions and requirements are met:

(a) The existing site does not currently contain active non-residential uses as listed in Subsection 20.110.21 Paragraph (1), and has not contained such uses within the past five (5) years prior to applying for a special permit;

(b) The provision of active non-residential ground floor uses would be detrimental to abutting properties or to the neighborhood character; and

(c) Active non-residential ground floor uses would not be commercially viable at that specific location.

A project that has been exempted from the requirements of Subsection 20.110.21 by special permit as set forth in this Subsection 20.110.23 or by variance shall not be considered to meet the requirements of Subsection 20.110.21 for the purpose of applying the other provisions of this Section 20.110.

20.110.3 Dimensional Regulations. The requirements of the base zoning district, as modified by the other provisions set forth in Section 20.100, shall apply except as set forth below.

20.110.31 [Deleted]

20.110.32 [Deleted]

20.110.33 Floor Area Waiver for Enclosed Bays and Projections. The following provisions shall apply in place of the provisions set forth in Subsection 20.104.2. Notwithstanding the definition of Gross Floor Area contained in Article 2.000 - Definitions, the floor area contained within enclosed bays and other small projections from the principal wall plane of a building or portions of a building containing non-residential uses, including projections and bays carried to the ground, normally defined as Gross Floor Area, shall be exempted from the calculation of GFA and FAR on a lot, provided all of the following standards are met:

1. The exempted bays and projections must not extend more than three and a half (3.5) feet from the principal exterior wall plane of the building, and no individual bay or projection may exceed twelve (12) feet in width.

2. No more than fifty (50) percent of the area of each principal wall plane may be covered with such projections.

20.110.34 [Deleted]

20.110.35 Restrictions in Required and/or Provided Setbacks. The requirements set forth in Section 20.105 shall apply. However, where a building fronts on more than two streets, the provisions of Section 20.105 shall apply on only two streets. In any case, where a building fronts Massachusetts Avenue, the provisions of Section 20.105 shall apply to the Massachusetts Avenue frontage.

20.110.36 Required Front Yards. In the BA-2 District south of Arlington Street, notwithstanding the provisions of footnote (25) in Section 5.40 of this Zoning Ordinance, a five-foot front yard setback shall be required in all instances unless the Planning Board reduces or waives the requirement upon granting a special permit. Such special permit may be granted if the Planning Board finds, that considering the size of the sidewalk and the setbacks of the abutting buildings, a reduction or waiver of the regiment would support the purpose and objectives of the Massachusetts Avenue Overlay District.

20.110.4 Design Standards. Buildings shall conform to the requirements set forth in Section 20.107, except as modified below.

20.110.41 Building Facades. The requirements for public entrances and clear glass set forth in Subsection 20.107.1 Paragraphs 2 and 3 shall apply to any ground-floor non-residential use, including those uses required by Subsection 20.110.21. Required clear glass on the ground floor façade shall be distributed on the façade such that at least seventy-five (75) percent of the required glass is located below the midpoint between the finished floor and the underside of the joists above.

20.110.42 Measurement of Building Facades. For purposes of this Section 20.110, where reference is made to the area of the façade of any given floor, the vertical dimension of that floor shall be measured from the finished interior floor to the underside of the structural joists of the floor above. The horizontal dimension shall be measured to the centerline of the demising wall of a separately leased space, or to the exterior wall of the building, as applicable. Where reference is made to the entire façade, the vertical dimension shall be measured from the mean grade of the façade facing the street (or other feature) to the underside of the structural rafters supporting the roof.

20.110.5 Parking Exemption for Seasonal Outdoor Seating. Notwithstanding any provision of the applicable base zoning district, seasonal, temporary outdoor seating available for any length of time between April 15 and October 31 shall be exempt from the parking requirements of Section 6.36.5 (e) and (f) for any retail use listed in Section 6.36.5 (e) or (f), provided that the total number of seasonal seats does not exceed fifty (50) or fifty percent of the total number of permanent seats provided at the establishment, whichever is less.

20.110.6 Existing and Historic Structures

20.110.61 The building design standards and conditions set forth in Section 20.106 Paragraphs (1) and (2), Section 20.107, and Subsection 20.110.21 Paragraphs (2), (3) and (6) shall not apply to any building constructed before April 5, 2012. However, a building constructed

before April 5, 2012, which in whole or in part meets the requirements of this Section 20.100, shall not be altered so as to increase the degree to which it does not comply with this Section 20.100.

20.110.62 Any lot containing a historic structure as listed below, or as may be designated a Preferably Preserved Significant building by the Cambridge Historical Commission, shall be exempt from the requirements of 20.110.21. The Planning Board may grant a special permit to increase the allowed non-residential FAR in the BA-2 Districts, but not to exceed 1.75, for any combination of permitted uses upon finding that the increased FAR would (a) facilitate the preservation of the historic structure through economic reuse, (b) preserve the essential historically significant elements of the structure's architecture and setting, (c) introduce uses that are respectful of the structure's historic character, and (d) advance the stated purpose of the Massachusetts Avenue Overlay District and the purpose of the standards applicable in the BA-2 Districts.

Lots Containing Identified Historic Structures. The following street address numbers on Massachusetts Avenue shall designate lots containing historic structures for the purpose of this Subsection 20.110.62: 1675, 1676, 1679, 1684,1686, 1696, 1705, 1720,1734, 1735, 1741, 1749, 1751, 1753, 1759, 1771, 1800, 1991, 1996-2006, 2014-2018, 2020-2024, 2026-2080, 2029, 2067, 2088-2098, 2103, 2161, 2179, 2200, 2203, 2210, 2211, 2218, 2222-2224 , 2240, 2254, 2270, 2301, 2307, 2343, 2508-2596, 2535, 2557-2585; and in addition, 3 Linnaean Street.

20.110.63 Nonconforming Structures. The provisions of Section 20.109 shall not apply in the BA-2 District north of Porter Square. Except as otherwise set forth in this Section 20.110, nonconforming structures shall be governed by the regulations set forth in Article 8.000 of the Zoning Ordinance.

20.111 The Massachusetts Avenue Overlay District shall be considered an area of special planning concern and subject to the applicable requirements of Article 19.000.

(Ord. No. 2021-3, § xxvi, 6-7-2021; Ord. No. 2022-21, §§ 5, 6, 4-3-2023; Ord. No. 2025-1, 2-10-2025; Ord. No. 2025-2, 2-10-2025)

20.200 PROSPECT STREET OVERLAY DISTRICT

20.201 *Establishment and Scope*. There is hereby established the Prospect Street Overlay District which shall be governed by the regulations and procedures specified in this Section 20.200. It is the intent of this section that these regulations will apply to a single area described generally as Prospect Street and certain abutting portions of the neighborhood around it.

20.202 *Purpose*. It is the purpose of this Section 20.200 to augment base zoning regulations in the District in order to create a more harmonious and consistent image for the area along Prospect Street and adjacent areas, to encourage good building design and site development which enhances the pedestrian amenities along the street, to ensure that future development and redevelopment is compatible with the character of the abutting neighborhoods, to encourage the retention of existing buildings of historic value and of uses which serve the abutting neighborhoods.

20.203 *Applicability*. The Prospect Street Overlay District shall be an overlay district on the zoning map established by Section 3.20.

20.203.1 The buildings and land uses within said district shall be controlled by the pertinent regulations of the base zoning district, except as they may be modified by the requirements of this Section 20.200 which shall apply in addition to regulations imposed by the base zoning districts.

20.204 *Dimensional Standards in the Prospect Street Overlay District*.

20.204.1 Modifications to the Definition of Gross Floor Area. Notwithstanding the definition of Gross Floor Area contained in Article 2.000 - Definitions, the following shall not be included as part of the gross floor area of any building in the Overlay District:

1. Enclosed bays and other small projections from the principal wall plane of a building normally included as gross floor area, provided they are forty-two (42) inches or less in depth and further provided that the following conditions are met:

    a. The maximum width of the projection does not exceed six (6) feet in length;

    b. No more than fifty (50) percent of the area of each principal wall plane is covered with such projections.

2. Temporary awnings over entrances, porches, or outdoor eating areas, permanent canopies over building entrances.

20.204.2 Minimum Green Area Open Space in the Prospect Street Overlay District. If such Open Space is not required under the applicable base zoning district for some or all permitted uses, a minimum of 15% Green Area Open Space shall be required. This Green Area Open Space may serve to help meet the requirement for Open Space in any applicable base zoning district provided all dimensional standards for Open Space are met. Notwithstanding the definition of Green Area Open Space in Article 2.000, Definitions, a paved expansion of three (3) feet wide or less of the adjacent public sidewalk devoted exclusively to pedestrian use, as permitted in Section 20.204.32, may serve to help meet this Green Area Open Space requirement.

20.204.3 Yard Requirements.

20.204.31 Minimum Yard Requirements in the Prospect Street Overlay District. If no front yard is required under the applicable base zoning district, the minimum required front yard for that portion of a lot fronting Prospect Street or another street in a business district shall be three (3) feet.

20.204.32 Restrictions in Required and/or Provided Yards. The area between the principal wall plane of a building and a public street, whether required or provided, shall be devoted to any combination of the following: Green Area Open Space as defined in Article 2.000 of this

Ordinance, an expansion of the adjacent public sidewalk, or a landscaped or paved area devoted exclusively to pedestrian use and extending along the entire length of the lot facing the street.

Areas devoted to vehicular use, including canopies over fuel pumps at Automobile Service Stations, are prohibited from this area with the exception of access drives leading directly to parking facilities located elsewhere on the site. Such drives shall be limited per lot to a maximum of one two-way access drive (and associated curb cut) or two one-way access drives (and associated curb cuts) per lot shall be permitted. Any access drive shall not exceed thirty (30) feet in width in non-residential districts for a two-way drive or fifteen (15) feet in width for a one-way drive, and twenty (20) feet in width in residential districts for two-way drives and ten (10) feet in width for a one-way drive.

The required Green Area Open Space, landscaping or other paved area devoted to pedestrian uses shall be located at the mean grade of abutting public streets at the property line, unless an exception is granted under the provisions of Section 20.208 below. Nothing in this Section 20.200 shall prohibit customary landscape features, elements and grading that may vary the grade of the required setback above that of the adjacent street or park, provided the setback remains essentially at grade.

20.204.33 Notwithstanding the provisions of Sections 20.204.31 and 20.204.32 above or any provision of Article 6.000, any on grade open parking facility shall be set back from front lot line by at least seven (7) feet. Such setback shall be landscaped as required in Section 20.204.32 above.

20.205 Use Restrictions.

20.205.1 The ground (first) floor of that portion of a building facing a public street or public park shall consist of Gross Floor Area devoted to any one or combination of the following active uses: Residential (Section 4.31), Office (Section 4.34), retail business (Section 4.35), Institutional (Section 4.33), but specifically excluding as a permitted use or activity mechanical rooms, Gross Floor Area in structured parking, and canopies over fuel pumps at Automobile Service Stations. Additionally, such active uses on the ground floor shall meet the following conditions:

a. At least eighty (80) percent of the floor elevation of the ground (first) floor shall be no higher than the four (4) feet above the mean grade of the adjacent public sidewalk or public park, at the property line, except that Retail Business uses in new construction shall be located at mean grade; and

b. The use shall have a depth of at least twenty (20) feet.

20.205.2 Where service and repair of cars is permitted in the base district, repair work shall be conducted within a building and parking of vehicles awaiting repair shall be screened from the sidewalk and from neighboring residential development by a fence or vegetation.

20.206 Design Standards.

20.206.1 Building Facades. Building facades shall be designed to enhance the visual quality of the Overlay District, create an environment pleasant and inviting for the pedestrian and compatible with the residential neighborhoods in close proximity to the district. The following standards shall apply to any building constructed after December 1, 2006; a building constructed before December 1, 2006, which in whole or in part meets the requirements of this Section 20.206.1, shall not be altered so as to increase the degree of non-conformity with this Section.

a. Where office and/or retail uses are accommodated on the ground floor each separately leased space shall have an individual public entrance onto the abutting street where any portion of the space fronts towards the street; and

b. Facades facing a public right of way, a public park, or designated city landmark building, or building in a local historic district or neighborhood conservation district, on an abutting lot, shall consist of a minimum twenty-five (25) percent clear glass in total for the facade, with clear glass increased to fifty (50) percent on the ground floor where retail and office uses are established. The maximum amount of clear glass permitted shall be seventy-five (75) percent of the facade. Reflective and opaque glass shall be prohibited.

c. Where the façade of the ground floor is required to have a minimum of 50% clear glass, that glass shall be distributed on the façade such that at least seventy-five percent of the requirement is located below the midpoint between the finished floor and the underside of the joists above.

d. For the purposes of this Section 20.206.1, the area of the façade of any given floor shall be measured vertically from the finished interior floor to the underside of the structural joist of the floor above.

20.206.2 Landscape. Front yards of buildings shall be landscaped to enhance the pedestrian experience along Prospect Street. To the extent practicable, shade trees should be incorporated along the sidewalk. The following standard shall apply:

For any new development or redevelopment on a lot, an existing or new tree shall be required, on the lot within ten (10) feet of the public sidewalk or in the public sidewalk, for each twenty-five (25) feet of lot frontage along Prospect Street.

20.207 *Divergence from Standards*. Divergence from the standards specified in Sections 20.204 - 20.206 may be allowed by issuance of a special permit from the Planning Board. The Board shall grant such a permit upon its determination that the development proposed will better serve the objectives of this Section 20.200 than if the standards were followed and that the criteria specified in Section 10.43 will be satisfied.

The Board shall be guided in its determination by Prospect Street Design Guidelines and other such guidelines as may be established for the Prospect Street Overlay District. This Section 20.207 is intended for variations from the standards, which may be appropriate in specific locations and circumstances and where careful design detail is a controlling factor.

20.208 *Area of Special Planning Concern*. The Prospect Street Overlay District shall be considered an area of special planning concern and subject to the applicable requirements of Article 19.000.

For parcels that fall within both the Prospect Street Overlay District and the Central Square Overlay District, this Public Advisory Consultation shall be conducted by the Central Square Advisory Committee.

Before issuance of any special permit for development proposed within the Prospect Street Overlay District that is subject to the Public Advisory Consultation Procedure or any special permit required in this Section 20.200, and Section 19.20 - Project Review, the Planning Board shall determine that the proposal is consistent with the Prospect Street Design Guidelines.

20.209 *Prospect Street Design Guidelines*. New buildings and redevelopment of old buildings should contribute to improving the character of Prospect Street. While it is recognized that not every project will meet every guideline, it is expected that new development in the Prospect Street Overlay District should be broadly consistent with the following principles:

1. Street-level facades should include active uses such as residential units and entrances, shops, restaurant, cafes, exhibition space or display windows, or commercial lobbies and front doors.
2. Blank walls should be avoided along the street. Transparent materials and interior lighting should be used to maximize visibility of street level uses.
3. Principal building entrances should be located facing Prospect Street, where appropriate.
4. Buildings should create a consistent street edge, with setbacks used generally for stoops, porches, and front gardens in residential development or for café seating, benches, or small open spaces in commercial development.
5. Awnings and canopies are encouraged to provide shelter and to enliven the ground floor facade.
6. Where appropriate, buildings should be designed with individual units and front doors facing the street, including units on the lower levels of multi-family buildings.
7. Buildings should reflect a rhythm and variation appropriate to the urban context. Facades should be articulated as several smaller masses using different materials or colors, vertical breaks, bays, porches, stoops, and other architectural elements.
8. Variations in height and architectural elements such as parapets, cornices and other details are encouraged to create interesting and varied rooflines and to clearly express the tops of buildings.
9. Where possible, windows should be located facing the street to increase safety.
10. Loading activities should be located on side streets or service alleys, where possible.

11. Buildings should be designed to use natural resources and energy resources efficiently in construction, maintenance, and long-term operation of the building.

12. Rooftop mechanical equipment should be sited and shielded to limit visual and noise impacts.

13. Storage of trash should be sited and shielded to contain noise and visual clutter.

14. Lighting fixtures in surface parking lots should be designed to minimizing light spillover onto adjacent properties.

(Ord. No. 2025-2, 2-10-2025)

20.300 CENTRAL SQUARE OVERLAY DISTRICT

20.301 *Establishment and Scope*. There is hereby established the Central Square Overlay District which shall be governed by the regulations and procedures specified in this Section 20.300. It is the intent of this section that these regulations will apply to a single area described generally as the Central Square business district and certain abutting portions of the neighborhoods around it.

20.302 *General Purpose*. It is the purpose of this Section 20.300 to augment existing zoning regulations to respond to the unique problems and pressures for change particular to Central Square. The regulations in said section provide for more careful public scrutiny of development proposals that may alter the established urban form of the Central Square area. These regulations are intended to channel the extreme development pressures in ways which will preserve and enhance the unique functional environment and visual character of Central Square; to mitigate the functional impacts of new development on adjacent residential neighborhoods; to maintain the present diversity of development and open space patterns and building scales and ages; and to provide sufficient regulatory flexibility to advance the general purposes of this Section 11.300.

20.303 *General Provisions*.

20.303.1 The Central Square Overlay District shall be considered an area of special planning concern and shall be subject to the applicable development review procedures as set forth in Article 19.000 of this Zoning Ordinance. Development proposals listed in Subsection 19.42 and 19.43, Development Consultation Procedures, shall be subject to the Development Consultation Procedures specified in Article 19.000 except that any Public Advisory Consultation shall be conducted by the Central Square Advisory Committee using procedures as specified in Subsection 20.304.1 of this Section 20.300.

20.303.2 Criteria for Development Consultation Review and Review of Applications for Special Permits and Variances. In reviewing applications for variances, special permits or development consultation reviews the permit or special permit granting authority or the Central Square Advisory Committee shall be guided by the objectives and criteria contained in the publication "Central Square Action Plan", City of Cambridge, November 1987, and "Central Square Development Guidelines", July 1989, in addition to the requirements of Section

10.30 - Variances, 10.40 - Special Permits, and Subsection 20.305 of this Section 20.300. These guidelines are also intended to assist in shaping any contemplated physical change within the Central Square Overlay District.

20.303.3 National Register and Contributing Buildings. For the purpose of this Section 20.300 the following definitions shall apply:

1. National Register Building shall be a building individually listed or determined eligible for the National Register of Historic Places as determined by the Secretary of The Department of the Interior.

2. A contributing building shall be

   a. Identified as a contributing building in a listed or eligible National Register District as determined by the Secretary of the Department of the Interior; or

   b. A building located outside a National Register District but identified as a contributing building in the Central Square Development Guidelines.

   However, a building shall no longer be considered a contributing building as defined in this Subsection 20.303 (2) for the purpose of this Section 20.300 if, upon application for a demolition permit, the Cambridge Historical Commission shall determine the building not to be a preferably preserved significant building as defined in the City of Cambridge Demolition Ordinance #965.

20.304 *Detailed Provisions*.

20.304.1 Central Square Advisory Committee. There shall be established a Central Square Advisory Committee, with members appointed by the City Manager, which shall have the following duties, responsibilities, and membership.

1. Purpose. It is the intent of this Subsection 20.304.1 that the Committee in its official actions fulfils the following purposes.

   a. To establish a formal, ongoing body that will review all major development actions in the Central Square Overlay District.

   b. To provide a forum within which a wide range of perspectives on development actions can be heard.

   c. To establish a citizen/professional body which can advise both public agencies and private interests as to the development and urban design issues raised by a development or planning proposal and suggest avenues of research which might be pursued to resolve identified conflicts or make the project better fulfill both public and private objectives for the Central Square Overlay District.

2. Responsibilities. The Committee shall undertake all Public Advisory Consultations and shall receive all applications for variances and special permits for activities within the Central Square Overlay District for review and comment. In addition, the Committee may comment on any preliminary proposal, for which any public agency or private interest may wish to receive advice and recommendations.

3. Procedures.

   a. Within the six (6) months preceding any application for (1) a building permit for any project subject to a Public Advisory Consultation Procedure or (2) a special permit or variance for any project within the Central Square Overlay District, the graphic and other material required in Section 19.43 - Public Advisory Consultation Procedure shall be submitted to the Central Square Advisory Committee for their review and comment.

   b. Within thirty (30) days of that submittal, (or within up to sixty (60) days with the written consent of the applicant) the Committee shall prepare a written report of findings and recommendations with respect to the applicant's proposed project.

   c. The Committee's written report shall outline the urban design and development issues raised by the proposal. It shall suggest those areas within which additional exploration of alternatives might be sought or factual information gathered which might help to resolve potential conflicts between public and private objectives or which might help to shape the project to better serve these objectives.

   d. The report shall be forwarded to the applicant and shall be included in any application for a building permit, special permit or variance.

   e. It is expected that, in making decisions regarding special permits and variances within the Overlay District, the Planning Board and/or Board of Zoning Appeal will give due consideration to the report and recommendations of the advisory committee.

      Where the Committee makes recommendations with respect to the granting of special permits and/or variances, the Planning Board and/or Zoning Board of Appeal does not follow said recommendations, then the Board(s) shall make written reply to the Committee, detailing why the Board(s)' decisions were different from the Committee recommendations.

   f. The Community Development staff shall serve as staff to the Committee.

4. Membership and Terms

   a. Membership. Members in all categories shall be Cambridge residents or business persons or landowners within the Overlay District.

      (1) One member having recognized qualifications as architect or landscape architect who shall also serve as chair of the Committee.

      (2) Four (4) members representing the business community in Central Square with diverse representation from property owners, small and large scale merchants and office tenants.

      (3) Four (4) members representing residents of the four (4) abutting Cambridge neighborhoods.

b. Terms. Committee members shall be appointed for terms of three (3) years each. Initial appointments shall, however, be staggered such that three (3) members shall have terms of two (2) years, and three (3) members shall have terms of three (3) years each.

20.304.2 Building Height Limitations. The maximum height of buildings in the Central Square Overlay District shall be governed by the requirements of this Section 20.304.2; however, at locations where the base zoning district establishes a more restrictive height limitation for non-residential uses, the more restrictive shall apply, and where the base zoning district establishes a more permissive height limitation for Residences as listed in Section 4.31 a-j, the more permissive shall apply.

1. As of Right Height Limitations. The maximum height of any building shall be fifty-five (55) feet except as further modified below:

   (a) Where the lot abuts Bishop Allen Drive or Prospect Street between Bishop Allen Drive and Harvard Street, any portion of the building above forty-five (45) feet shall be set back behind a forty-five degree (45°) bulk control plane beginning at an elevation of forty-five (45) feet above the front lot lines on Bishop Allen Drive and/or Prospect Street and rising over one or more lots at a forty-five degree (45°) angle.

   (b) Where the Residence C-2A district serves as the base district, the maximum height shall be forty-five feet for non-residential uses. No additional height shall be permitted in this district notwithstanding any provision in Paragraph 2 below.

2. Responsibilities. The Committee shall undertake all Public Advisory Consultations and shall receive all applications for variances and special permits for activities within the Central Square Overlay District for review and comment. In addition, the Committee may comment on any preliminary proposal, for which any public agency or private interest may wish to receive advice and recommendations.

20.304.3 Floor Area Ratio Limitation for Non-residential Uses. The maximum Floor Area Ratio (FAR) limitations for non-residential uses established in the applicable base zoning district shall continue to apply to any lot in the Central Square Overlay District unless specifically modified by the following provisions:

1. As Of Right Limitation. The maximum as of right FAR in the Office 3 base zoning district shall be 2.0, and shall be 2.0 in the Residence C-3 and Residence C-2A base zoning districts.

2. Special Permit for additional FAR. The maximum FAR on any lot in a Residence C-3 or Residence C-2A district may be increased to 3.0 and 2.5 respectively upon issuance of a special permit from the Planning Board.

3. [Deleted]

4. [Deleted]

5. [Deleted]

6. FAR Exemption for Rooftop Spaces. In the Business B district only, notwithstanding any other provisions of this Zoning Ordinance, the Gross Floor Area of open-air spaces on the roofs of buildings, such as roof gardens, terraces, walk ways, including open or enclosed egresses, covered staircases, mechanical head-houses, or observation spaces shall be exempted from Gross Floor Area and FAR limitations upon the granting of a special permit by the Planning Board. In granting any special permit, the Planning Board must be able to find that the proposed rooftop spaces have been located and designed to minimize impacts on neighboring uses, including but not limited to light trespass, noise or other nuisance, and may place further requirements or conditions on the design or operational aspects of spaces exempted pursuant to this Paragraph, including but not limited to hours of operation, range of activities permitted, signage and lighting fixtures, visual screening devices, sound mitigation, and other measures to ensure ongoing compliance with the Board's findings.

7. FAR Exemption for Ground Floor Retail. In the Business B district only, retail spaces of 1,500 square feet or less shall be excluded from the calculation of floor area ratio.

20.304.4 Waiver of Setback and Open Space Requirements.

1. Yard Setbacks. Upon issuance of a special permit from the Planning Board the yard requirements of a base zoning district may be waived except where such yard abuts a lot, but not a public way, outside the Overlay District. However, in waiving or reducing a front yard setback, the Planning Board shall take into account the width of the adjacent public sidewalk and may limit the reduction of the setback in order to provide additional sidewalk width within the front yard setback where appropriate, taking into account applicable City standards and expected pedestrian traffic on the street.

2. Open Space. Open Space shall be provided as required in the Base Zoning District, however the Planning Board may allow, by Special Permit, the reduction of required Open Space, and permit such Open Space to be located at levels other than at grade if the applicant can demonstrate that the urban design objectives as set forth in the Central Square Overlay District can be met.

20.304.5 Use Regulations. In addition to the use regulations applicable in each base zoning district the following provisions shall apply in the Central Square Overlay District:

1. Ground Floor Restrictions. The ground (first) floor of that portion of a building facing or abutting Massachusetts Avenue and/or Main Street and which is on a lot which shares a common lot line with Massachusetts Avenue or Main Street shall consist of Gross Floor Area devoted to any one or combination of uses permitted in the applicable base zoning district [except that such gross floor area in buildings abutting Massachusetts Avenue and/or Main Street between Inman and Pleasant Streets on the west and Columbia and Sidney Streets on the east shall be devoted to one or a combination of the following uses: Residential Uses (Section 4.31); Office and Laboratory Uses

(Section 4.34 c and e); Retail or Consumer Service Establishments (Section 4.35)], but specifically excluding Gross Floor Area in structured parking counted as Gross Floor Area, and shall in addition meet the following conditions:

a. At least eighty (80) percent of the floor elevation of the ground (first) floor shall be at the mean grade of the abutting Massachusetts Avenue and/or Main Street at the property line except that residential uses may be located no higher than four (4) feet above the mean grade of the abutting street at the property line.

b. The use shall have a minimum depth of twenty (20) feet.

c. Where other than residential uses are established, the ground (first) floor facade shall consist of a minimum of fifty (50) percent clear glass.

2. Prohibited Uses. The following uses shall be prohibited in the Central Square Overlay District: (1) Outdoor Retail or Consumer Service Establishments, Sections 4.36 b, f, g, h.

3. Restricted Uses.

a. In the Central Square Overlay District, a Dance Hall or Nightclub (Section 4.35g) shall be permitted by right if the principal public entrance or entrances are directly from Massachusetts Avenue, Prospect Street between Massachusetts Avenue and Bishop Allen Drive, or Main Street, or by Special Permit from the Planning Board in the Business B (BB) district where the principal public entrance or entrances are on another side street that intersects with Massachusetts Avenue if the Board finds that such location will not adversely impact adjacent residential uses, with consideration to hours of operation, proximity to a residential neighborhood, signage, lighting, and sound mitigation.

b. Unless specifically waived upon the granting of a special permit by the Planning Board, no individual bank or financial institution (Section 4.34e) shall occupy more than twenty-five (25) feet of building frontage facing Massachusetts Avenue or Main Street, and no more than thirty percent (30%) of a lot's aggregate building frontage facing one or more public streets may be occupied by such uses.

4. Formula Business District. A Formula Business as defined in this Ordinance may be established in the Central Square Overlay District only after the issuance of a special permit from the Planning Board. In reviewing an application the Planning Board shall take the following into consideration:

a. The extent to which the design of the proposal reflects, amplifies, and strengthens the established historical character of existing buildings and store fronts in Central Square.

b. The extent to which the particulars of the building or storefront design is varied from the formula or standard design of the chain in order to reflect the unique character and conditions of Central Square generally or the specific location in particular.

c. The extent to which the standard elements of the enterprise as they define it as a Formula Business are modified to respect and provide unique expressions of Central Square history and traditions as well as innovation in physical design and marketing that will distinguish the Central Square location from other locations of the Formula Business.

5. Outdoor Retail or Consumer Service Establishment, not otherwise defined shall be a permitted use within the Central Square Overlay, subject to a special permit granted by the Planning Board. In granting the special permit the Planning Board must make the required findings in Section 10.43 and 10.43.1 of this Ordinance and may impose conditions pursuant to Section 10.44 of this Ordinance.

6. Outdoor Entertainment and Recreation Facility, 4.36 (d), shall be a permitted use within the Business B District of the Central Square Overlay.

20.304.6 Parking and Loading Requirements. The provisions set forth in Article 6.000 shall apply except as modified by the provisions set below.

1. Maximum Parking. Where any of the following listed uses are established in the Central Square Overlay District as of August 1, 2016, the accessory off-street parking for such uses shall be limited by the maximum rates set forth below. For uses not listed below, any maximum rate set forth in Article 6.000 shall apply. Exceeding the maximum allowed parking shall require a waiver of maximum parking under the general provisions of Article 6.000.

   (a) Residential Uses (6.36.1), excluding Hotel and Motel (i-2 and i-3): 0.75 space per dwelling unit.

   (b) Hotel or Motel Uses (6.36.1.1 b): 0.25 space per guest unit.

   (c) Office Uses (6.36.4), excluding Technical Office (f): 0.90 space per 1,000 square feet.

   (d) Technical Office Uses (6.36.4 f): 0.80 space per 1,000 square feet.

   (e) Retail and Consumer Service Establishments (6.36.5): 0.50 space per 1,000 square feet.

2. [Deleted]

3. Waiver of Parking and Loading Requirements. Uses in the Central Square Overlay District which meet the following requirements shall be exempt from the parking and loading requirements as specified in Section 6.36 - Schedule of Parking and Loading Requirements.

   (a) The use is contained within a structure or portion of a structure in existence on or before June 1, 1940 or if constructed later is identified as a National Register or contributing building; or

(b) The use is contained in a new structure or new addition to a structure identified in (1.) above, after the issuance of a special permit by the Planning Board provided:

(i) The total development authorized on the site is reduced to ninety (90) percent of the maximum permitted on the lot; or a cash contribution is made to the Central Square Improvement Fund to be established by the City of Cambridge in an amount equal to fifty (50) percent of the cost of construction of the parking spaces not provided, said contribution to be used by the City of Cambridge for one or more of the following improvements in the Central Square Overlay District:

(1) Provision of public parking, preferably for short term users;

(2) Programming, events, and infrastructure that contribute to the Cultural District established in Central Square;

(3) Improvements to public parks, or restoration of historic structures, monuments and other features owned by the City of Cambridge or other public agency or a nonprofit organization;

(4) Improvements to public pedestrian and bicycle facilities such as sidewalks, crosswalks, dedicated cycling paths and bicycle parking.

The Central Square Advisory Committee shall receive and make comments on any proposal for the expenditure of such cash contributions. The funds shall not be used for ordinary maintenance activities normally undertaken by the City of Cambridge. The value of the cash contribution shall be determined by the Community Development Department assuming equivalent structured parking spaces and using generally accepted cost estimation methods customarily used by architects and engineers or using actual construction costs for comparable contemporary parking construction in Cambridge.

(ii) The subject lot is sufficiently small in size as to contribute to a development pattern of diverse, small scale, new structures and the retention of existing structures (for lots exceeding 10,000 square feet a specific finding shall be made that this objective has been met).

(iii) The Planning Board shall specifically find that an exemption from parking and loading requirements will result in a building design that is more appropriate to its location and the fabric of its neighborhood and that it is in conformance with the objectives and criteria contained in Central Square Development Guidelines.

(iv) No National Register or contributing building is demolished or so altered as to terminate or preclude its designation as a National Register or contributing building; and

(v) No National Register or contributing building has been demolished or altered so as to terminate or preclude its designation within the five (5) years preceding the application.

4. Location of Parking. For any new development in the Central Square Overlay District that requires a special permit from the Planning Board, notwithstanding anything to the contrary in Article 6.000, the accessory parking may be provided on-site or within existing parking facilities elsewhere in the Central Square Overlay District, subject to Planning Board Approval. In general, new development shall use below-grade structured parking instead of existing surface parking lots; however, the Planning Board may approve the use of existing surface parking in special circumstances, such as temporary parking for a phased development or special permits for small-scale retail uses in existing buildings.

20.305 *Standards for Issuance of Special Permits*. In addition to the general standards for the issuance of a special permit found in Section 10.40 of the Zoning Ordinance, the special permit granting authority shall in addition make the following findings:

1. The proposed development is consistent with the goals and objectives of the Central Square Action Plan:
   - Encourage responsible and orderly development;
   - Strengthen the retail base to more completely serve the needs of the neighborhoods;
   - Preserve the Square's cultural diversity;
   - Create active people oriented spaces;
   - Improve the physical, and visual environment;
   - Provide retail establishments that serve people of diverse economic and social groups who live in the surrounding neighborhoods;
   - Encourage the development of new mixed income housing; and
   - Promote compatible retail adjacent to residential uses.
2. The building and site designs are consistent with "Urban Design Plan for Central Square" as outlined in the "Central Square Action Plan" and the "Central Square Development Guidelines";
3. The building and site designs adequately screen the parking provided and are sensitive to the contributing buildings in the vicinity;
4. No National Register or contributing building is demolished or so altered as to terminate or preclude its designation as a National Register or contributing building; and
5. No National Register or contributing building has been demolished or altered so as to terminate or preclude its designation within the five (5) years preceding the application.

20.306 *Signs*.

20.306.1 Signs shall be permitted as they are allowed in the base zoning districts.

20.306.2 Nonconforming Signs. Notwithstanding the provisions in Article 7.000, Section 7.15 relating to nonconforming signs, any sign nonconforming as to size and having been erected for at least ten (10) years shall be removed where the space to which the sign is accessory is vacant.

20.307 *Mass and Main Residential Mixed Income Subdistrict*.

20.307.1 Establishment and Scope. There is hereby established within the Central Square Overlay District (and including the rear portions of certain split lots that are partially located with the Central Square Overlay District), the Mass and Main Residential Mixed Income Subdistrict which shall be governed by the regulations and procedures specified in this Section 20.307. These regulations are intended to provide incentives for residential development and provide a transition between the character, uses and scale of Kendall Square, as well as the adjacent Cambridgeport Revitalization Development District, and provide a transition to the abutting residential districts behind Bishop Allen Drive. The subdistrict is within the City's Central Square (C2) Study area and adoption of this Section 20.307 follows extensive planning efforts to encourage residential and ground-floor retail uses and transit-oriented development. The Central Square Study expands on past zoning changes in industrial and commercial zones to encourage housing by offering greater density to incentivize the creation of buffer zones for existing residential neighborhoods adjacent to Central Square. The Mass and Main Residential Mixed Income Subdistrict will also enable the City to respond to the 2014 Central Square Customer Survey by supporting vibrant ground-floor retail and active retail uses at this key intersection in Central Square, adjacent to mass transit. It is the intent of this Section that these regulations will apply to a single area located at the intersection of Main Street and Massachusetts Avenue and bounded and described in Section 20.307.2 below. The Mass and Main Residential Mixed Income Subdistrict will further the objectives of the Central Square Study findings and other planning studies completed by the City for the Central Square area by encouraging housing and requiring both low- and moderate-income affordable housing in amounts above those required by the City's inclusionary housing requirements in Section 11.200.

20.307.2 Boundaries of the District. The Mass and Main Residential Mixed Income Subdistrict shall be bounded as shown on Map 20.307 and shall include two zones: the Mass Ave Residential Zone and the Bishop Allen Drive Residential Support Zone. The Mass and Main Residential Mixed Income Subdistrict includes lots located within the Business B and Business A base zoning districts, with portions of some lots located within the Residence C-1 district (and not included in the Central Square Overlay District) included in this subdistrict for purposes of clarity with respect to the treatment of these split lots.

The Mass Ave Residential Zone consists of the Mass Ave Height Area and the Columbia/ Douglass Street Height Area and affects lots or portions of lots as shown on:

<u>Mass Ave Height Area</u>

Assessors Plat #4772 and Map 91, Lot 190,

Assessors Plat #4776 and Map 91, Lot 195 (the portion of such lot containing Coolidge Place),

Assessors Plat #4759 and Map 91, Lot 111,

Assessors Plat #4752 and Map 91, Lot 102 (portion),

Assessors Plat #4777 and Map 91, Lot 199 (portion), and

Assessors Plat #4715 and Map 91, Lot 53.

Columbia/Douglass Street Height Area

Assessors Plat #4773 and Map 91, Lot 191,

Assessors Plat #4714 and Map 91, Lot 52,

Assessors Plat #4777 and Map 91, Lot 199 (portion),

Assessors Plat #4758 and Map 91, Lot 108,

Assessors Plat #4767 and Map 91, Lot 180,

Assessors Plat #4768 and Map 91, Lot 181,

Assessors Plat #4775 and Map 91, Lot 194,

Assessors Plat #4752 and Map 91, Lot 102 (portion), and

Assessors Plat #4774 and Map 91, Lot 192.

The Bishop Allen Drive Residential Support Zone affects lots or portions of lots as shown on:

Assessors Plat #4750 and Map, 91, Lot 98,

Assessors Plat #4751 and Map 91, Lot 99,

Assessors Plat #4732 and Map 91, Lot 81,

Assessors Plat #4763 and Map 91, Lot 119, and

Assessors Plat #4710 and Map 91, Lot 23.

20.307.3 Applicability. Except as otherwise noted herein, the provisions of this Section 20.307 shall apply to both zones within the subdistrict.

For developers electing to conform to the provisions of this Section 20.307, any such project shall be referred to herein as a "Residential Mixed Income Project" and, notwithstanding any other provisions of the Ordinance, the use, dimensional, open space, parking, loading and inclusionary housing requirements applicable to a Residential Mixed Income Project shall be as set forth in this Section 20.307. Divergence from the standards established in this Section may be allowed only by issuance of a Special Permit by the Planning Board as specifically allowed pursuant to applicable special permit provisions set forth elsewhere in the Ordinance, including the provisions of Section 10.40. Further, the Planning Board may

grant any applicable special permit for a Residential Mixed Income Project that would ordinarily be granted by the Board of Zoning Appeal. The Board may grant such a special permit upon its determination that the development proposed will better serve the objectives of this Section 20.307 and that the criteria specified in Section 10.43 specific and all other criteria applicable to the special permit will be satisfied. A Residential Mixed Income Project may contain more than one building constructed as part of a common scheme of development or phased development program.

20.307.4 Review Process. Projects in the Mass and Main Residential Mixed Income Subdistrict shall be subject to the development review procedures set forth in Article 19.000 and Section 20.304.1.

20.307.5 Use Regulations. Use regulations of the applicable base zoning designation shall apply to each lot within the Mass and Main Residential Mixed Income Subdistrict, except that Carsharing Spaces provided pursuant to Section 20.307.7 below shall be deemed to be a permitted use. Notwithstanding anything to the contrary contained in the Ordinance, in addition to the uses permitted in the applicable base district, lots within the Mass and Main Residential Mixed Income Subdistrict may be used as accessory parking for any other lot within the subdistrict, subject to the requirements set forth in Section 20.307.7 below.

20.307.6 Dimensional Standards.

20.307.6.1 Floor Area Ratio. The maximum floor area ratio permitted in the Mass and Main Residential Mixed Income Subdistrict shall be the same as permitted in the applicable base zoning district, except that the maximum floor area ratio applicable to Residential Mixed Income Projects within the Mass Ave Residential Zone shall be 6.5, provided that no increases in development otherwise permitted under this Zoning Ordinance shall cause the FAR on a lot to exceed 6.5, and further subject to compliance with the affordability and unit mix requirements set forth in Section 20.307.8 below. Additionally, notwithstanding anything to the contrary contained in this Zoning Ordinance, the floor area ratio applicable to residential uses shall apply to and include any retail space included within a Residential Mixed Income Project, subject to the exemption for retail spaces less than 1,500 square feet set forth in Section 20.307.9.6 below, such that the provisions of Section 5.30.12 shall not be applicable to Residential Mixed Income Projects within the Mass and Main Residential Mixed Income Subdistrict (i.e. the same floor area ratio will apply to both residential and retail space within a Residential Mixed Income Project).

20.307.6.2 Maximum Height. The maximum height permitted in the Mass and Main Residential Mixed Income Subdistrict shall be the same as permitted in the applicable base zoning district, except as follows:

a. Within the area shown as the "Mass Ave Height Area" on Map 20.307, building heights up to 195 feet shall be permitted for a Residential Mixed Income Project, provided that only one building within such zone may exceed 80 feet and provided further that buildings in a Residential Mixed Income Project will be restricted to a floor plate size of 10,000 square feet above 80 feet in height.

b. Within the area shown as the "Columbia/Douglass Street Height Area" on Map 20.307, building heights up to 70 feet shall be permitted for a Residential Mixed Income Project.

20.307.6.3 Minimum Yards. Minimum yard requirements in the Mass and Main Residential Mixed Income Subdistrict shall be the same as required in the applicable base zoning district; however, notwithstanding any other provisions in the Ordinance, including without limitation the provisions of Section 5.28.1(c) (which applies the dimensional standards of a Residence C-3 district to dwellings in a Business B district), the minimum yard requirements for non-residential uses in the Business B zoning district shall apply to all Residential Mixed Income Projects within the Business B district.

20.307.6.4 Private Open Space. Open space requirements in the Mass and Main Residential Mixed Income Subdistrict shall be the same as required in the applicable base zoning district, including without limitation the provisions of Section 5.28.1(c) (which applies the dimensional standards of a Residence C-3 district to dwellings in a Business B district), except that the applicable Private Open Space requirement under Article 5.000 may be satisfied with any combination of Private Open Space and pedestrian amenities open to the public such as a pedestrian plaza or arcade.

20.307.7 Required Parking. Required parking and loading in the Mass and Main Residential Mixed Income Subdistrict shall be as required in the applicable base zoning district, except as follows:

a. [Deleted]

b. [Deleted]

c. Accessory off-street parking facilities for a Residential Mixed Income Project may be located on the same lot as the use being served or on another lot within the Central Square Overlay District, in accordance with the following conditions:

1. said other lot is contiguous to the lot on which the use being served is located; or

2. said other lot is within four hundred (400) feet of the lot on which the use being served is located.

d. A Residential Mixed Income Project shall provide, at a minimum, one (1) parking space for every 100 residential units that shall be dedicated for use by a carsharing organization (such as ZipCar or other similar program) (each such parking space will be referred to herein as a "Carsharing Space"). Each Carsharing Space within a Residential Mixed Income Project shall allow the required number of residential parking spaces to be reduced by five (5) spaces, but in no event may there be a total reduction of more than 0.17 spaces per dwelling unit resulting from the application of this Paragraph (d).

e. Loading bays, drives, and a maneuvering space for a Residential Mixed Income Project may be located entirely on the lot or adjacent easement areas with immediate and direct ingress to the building intended to be served.

f. Any tandem parking spaces for two vehicles shall count as two parking spaces within the Mass and Main Residential Mixed Income Subdistrict if such spaces are accessory to a Residential Mixed Income Project, provided that such tandem parking spaces may not account for more than twenty-five percent (25%) of the required parking.

g. For purposes of Section 6.104.1, the applicable distance for Long-Term Bicycle Parking shall be measured from the lot line of the lot on which the Long-Term Bicycle Parking is located to the lot line of the lot on which the building or project intended to be served is located.

20.307.8 Affordable Housing and Unit Mix Requirements for Residential Mixed Income Projects

20.307.8.1 Additional Inclusionary Housing Requirements. The provisions of Section 11.200 in effect as of the date of adoption of this Section 20.307 shall apply to a Residential Mixed Income Project. However, notwithstanding anything in Section 11.200, the FAR of a Residential Mixed Income Project shall not exceed 6.5. Additionally, a Residential Mixed Income Project shall be subject to the following requirements that may exceed the requirements of Section 11.200:

a. A minimum of seventeen percent (17%) of the total number of units in a Residential Mixed Income Project shall be Affordable Units for low and moderate income households meeting the requirements of Section 11.200 for such Affordable Units.

b. A minimum of three percent (3%) of the total number of units in a Residential Mixed Income Project shall be Middle Income Units as defined in Section 20.307.8.2 below.

c. A minimum of ten percent (10%) of the total number of units in a Residential Mixed Income Project shall be 3-bedroom units.

20.307.8.2 Definitions. For purposes of this Section 20.307.8, the following definitions shall apply:

"Middle Income Unit" shall mean a unit for which the rent (including utilities) does not exceed thirty (30) percent of the income of the renting household or for which the mortgage payment (including insurance, utilities and real estate taxes) does not exceed thirty (30) percent of the income of the purchasing household or other standards as may be established pursuant to any city, state or federal housing program designed to assist middle income households, for which the applicable eligible household shall be an Eligible Middle Income Household.

"Eligible Middle Income Household" shall mean any household whose total income does not exceed one hundred twenty percent (120%) of the median income of households in the Boston Standard Metropolitan Statistical Area adjusted for family size, or such other equivalent income standard as may be determined by the Board of Trustees of the Affordable housing Trust as defined in Section 11.201.

In no event shall the combined total number of Affordable Units for low and moderate income households together with the Middle Income Units required in Section 20.307.8.1 above be fewer than twenty percent (20%) of the total number of units in a Residential Mixed Income Project.

20.307.9 Local Retail and Street Activation. In order to effectuate the goals of promoting a vibrant retail environment and street-level activation, any proposed development within the Mass Ave Residential Zone with building frontage along Massachusetts Avenue or Main Street shall include a plan (the "Retail Plan") for encouraging local, independent retail and active street-level uses meeting the requirements of this Section 20.307.9, which Retail Plan shall be submitted for review and approval by the Community Development Department prior to the issuance of a Certificate of Occupancy for a Residential Mixed Income Project. The owner shall use commercially reasonable efforts to ensure that the Retail Plan for any Residential Mixed Income Project meets the goals of this Section 20.307.9 and, taken in its entirety, is reflective of the economic and cultural diversity of the Central Square neighborhood.

20.307.9.1 No banks or financial institutions shall be permitted on the ground floor level within the Mass Ave Residential Zone.

20.307.9.2 The ground floor space in any such building frontage along Massachusetts Avenue or Main Street and extending 30 feet into such building (the "Building Frontage") shall be devoted to retail uses, except for spaces required for accessory uses and other building functions serving the other floors of such building which are typically located at the ground level, including without limitation lobby space, building security, access/egress, mailrooms, mechanical spaces and bicycle parking, which spaces shall be limited to thirty percent (30%) of the total Building Frontage.

20.307.9.3 A minimum of 25% of the retail space required pursuant to Section 20.307.9.2 above shall consist of Independent and Local Retailers. "Independent and Local Retailers" shall include any retail operator which does not own or operate more than 10 retail locations in the Commonwealth of Massachusetts with the same name and retail concept, such determination to be made as of the date of execution of a lease or commencement of ownership of or other right to occupy such retail space.

20.307.9.4 The Retail Plan shall include a proposal for a seasonal public market concept/space (the "Public Market").

20.307.9.5 Retail spaces of 1,500 square feet or less in a Residential Mixed Income Project shall be excluded from the calculation of floor area ratio.

20.307.10 Grandfathered Parking Structures Within the Bishop Allen Drive Residential Support Zone. Notwithstanding the provisions of Article 8.000, any nonconforming parking structure located in whole or in part within the Bishop Allen Drive Residential Support Zone and which existed at the time of adoption of this Section 20.307 may be continued, provided that it primarily serves a use permitted in the Mass and Main Residential Mixed Income Subdistrict.

20.307.11 Sustainable Design Requirements for Residential Mixed Income Projects. Residential Mixed Income Projects in the Mass and Main Residential Mixed Income Subdistrict shall comply with the provisions of Section 22.20 of the Ordinance, provided, however, that any new construction that is part of a Residential Mixed Income Project shall be designed to a

minimum standard of LEED Gold. In connection with the submission requirements of Section 22.24.2.a., the developer of such buildings shall submit a Statement of Energy Design Intent produced through the EnergyStar Target Finder tool, or comparable method.

20.307.12 Design Guidelines Applicable to Residential Mixed Income Projects. In reviewing any Residential Mixed Income Project subject to a Project Review Special Permit under Article 19.000, the Planning Board shall look to the Central Square Design Guidelines dated February 2013 (updated May 2013) for guidance and direction in assessing the project's conformance with the applicable project review criteria set forth in this Ordinance, provided that in the event of any conflict between such Design Guidelines and this Ordinance, the provisions of this Ordinance shall govern. For a Residential Mixed Income Project proposing a building height exceeding those contemplated in the Central Square Design Guidelines, the Planning Board shall give consideration to the following supplemental guidelines:

a. Consider the variety of vantage points from which tall buildings will be seen, especially from significant public spaces and nearby low-scale residential neighborhoods, as well as city skyline views.

b. Tall buildings should be articulated to avoid a monolithic appearance, and should emphasize slender, vertically-oriented proportions.

c. Avoid broad "slab" volumes that make the building appear bulky and visually dominant. Point towers expressing vertical volumes are preferred.

d. Locate and shape tower elements to minimize shadows on existing or proposed public open space and streets.

e. Configure towers to maximize sky views from public open space and enhance visual connections through sites.

f. Consider variation in forms that present different profiles to different vantage points.

g. If appropriate, step down tall buildings where they interface with adjoining historic buildings.

h. Minimize impacts on the environmental performance and amenity of adjoining residential buildings.

i. Consider the appearance of the building top both by day and night, while demonstrating responsible use of lighting and energy consistent with sustainability requirements.

j. Design buildings to minimize negative wind impacts on streets and public spaces.

20.307.13 Letter of Commitment. The Letter of Commitment dated May 18, 2015, signed by Stephen J. Cusma on behalf of the proponent of the "Mass and Main" Zoning Petition referred to therein as "Normandy/Twining," ("Letter)" shall be binding upon any developer and/or owner of a Residential Mixed Income Project as defined herein. The issuance of any building permit or certificate of occupancy for a Residential Mixed Income Project shall be conditioned upon certification by the Community Development Department and all other relevant

City departments to the Superintendent of Buildings evidencing that such Residential Mixed Income Project is proceeding in accordance and in compliance with all provisions of the aforementioned Letter.

(Ord. No. 2021-3, § xxvii, 6-7-2021; Ord. No. 2023-1, 5-1-2023; Ord. No. 2024-2, 6-24-2024; Ord. No. 2025-1, 2-10-2025; Ord. No. 2025-2, 2-10-2025)

20.400 PATHWAY OVERLAY DISTRICT

20.401 *Establishment and Scope*. There is hereby established the Pathway Overlay District, which shall be governed by the regulations and procedures specified in this Section 20.400. It is the intent of this section that these regulations will apply to those areas of the city now or formerly railroad rights of way and which are anticipated to be used now or in the future as bicycle and pedestrian commuting and recreational corridors.

20.401.1 The Pathway Overlay District shall be established on the Zoning Map of the City of Cambridge under the provisions of Section 3.20.

20.402 *General Purpose*. It is the purpose of this Section 20.400 to modify existing base district zoning regulations to ensure that (1) the unique opportunities presented by railroad corridors to accommodate recreational bicycle and pedestrian paths are not lost should their railroad function be abandoned, and that (2) the development potential provided by virtue of the provisions of the base zoning district regulations remains available for use beyond the limits of the Overlay District as the ownership of the rights of way may change in the future.

20.403 *General Provisions*. Any portion of a lot encompassed by the Pathway Overlay District shall consist entirely of any combination of Green Area, Permeable, or Public Open Space or any railroad use in existence within the District on or before January 1, 2005 or any other railroad use permitted by the applicable base zoning district. The use, dimensional and other provisions of the applicable base zoning district shall continue to apply, but their application to a lot or portion of a lot in the Pathway Overlay District are required to be consistent with this Section 20.403.

20.403.1 Reduction in the Required Open Space. The required area of Open Space may be reduced after the issuance of a special permit from the Planning Board to allow activities and uses, including vehicular access drives and accessory parking spaces, permitted in the base district but in no case shall the construction of a building be permitted. In granting such reduction the Planning Board shall find that the use or activity proposed will not impair the future opportunity to construct pedestrian and bicycle paths within the Pathway Overlay District nor otherwise derogate from the intent and purpose of the Overlay district.

20.403.2 Additional Permitted FAR. Where a fee or easement property interest is conveyed to the City of Cambridge (in a form acceptable to the City and recorded in the Registry of Deeds) for any portion of land within the Pathway Overlay District, for use by the City in the future to construction of a bicycle or pedestrian pathway, the applicable permitted non-residential

FAR on that portion of land conveyed shall be equal to twice the FAR otherwise permitted on the property as-of-right or by special permit in the applicable base zoning district or Overlay district.

(Ord. No. 2025-1, 2-10-2025)

20.500 LESLEY PORTER OVERLAY DISTRICT

20.501 *Establishment and Scope*. There is hereby established the Lesley Porter Overlay District which shall be governed by regulations and procedures specified in this Section. The District encompasses property constituting Lesley University's Porter Square campus and has a Business C District base zoning designation.

20.502 *Purpose*. It is the purpose of this Section to augment existing zoning regulations to respond to issues associated with institutional uses and unique planning opportunities immediately adjacent to Porter Square's MBTA station. These regulations are intended to allow for the establishment of an emerging art district associated with the University, to enhance the vitality of Massachusetts Avenue by encouraging ground floor uses that will serve the needs of abutting neighborhood residents and enhance the established streetscape, to create a more harmonious and consistent character for the development along Massachusetts Avenue and where such development faces or abuts low density residential districts, and to encourage the retention and appropriate reuse of buildings of historic value.

20.503 *Applicability*. The Lesley Porter Overlay District shall be an Overlay District on the Zoning Map of the City of Cambridge established in Section 3.20.

20.503.1 The buildings and land uses within this district shall be controlled by the pertinent regulations of the applicable base Business C zoning district and the Massachusetts Avenue Overlay District, Section 20.100, except as modified by the requirements of this Section 20.500. Where regulations differ among the several applicable zoning districts, the provisions of this Section 20.500 shall apply.

20.503.11 The following terms shall apply in the Lesley Porter Overlay District.

1. Lots located westerly of Massachusetts Avenue shall be known as the Mt Vernon Lots.
2. Lots located easterly of Massachusetts Avenue and north of Roseland Street shall be known as the University Hall Lot.
3. Lots located easterly of Massachusetts Avenue and south of Roseland Street shall be known as the Church Lot.

20.504 *Overlay District Requirements*.

20.504.1 Floor Area Ratio Limitations.

1. Institutional Uses. Not withstanding the FAR limits set forth in Article 5.000 or elsewhere in this Ordinance, the maximum FAR permitted in the Lesley Porter Overlay District shall be 2.5 for those lots located easterly of Massachusetts Avenue and 2.0 for those lots located westerly of Massachusetts Avenue for all educational institutional

uses set forth in Article 4.33.b (1) as further limited in Section 4.56 c (4) and (6), after the granting of a Special Permit from the Planning Board, subject to the following conditions and limitations:

a. Notwithstanding the definition of Lot in Article 2.000, a development project in this Lesley Porter Overlay District may consist of non-contiguous lots and lots separated by streets, which lots are held in common ownership. In calculating the gross floor area (GFA) permitted for a development consisting of educational institutional uses, the area of noncontiguous lots held in common ownership within the Overlay District may be combined. For those lots located easterly of Massachusetts Avenue, the resulting permitted Gross Floor Area may be located on the individual University Hall or Church Lots or transferred in part from the University Hall Lot to the Church Lot in an amount not to exceed 25,000 square feet. All transferred Gross Floor Area shall be located below grade.

b. Any Special Permit issued by the Planning Board in the Lesley Porter Overlay District for increased FAR as permitted in this Section 20.504.1 (1) shall result in a prohibition on dormitory uses on the Mt Vernon and University Hall Lots.

c. Where, in seeking a special permit under the provisions of this Section 20.504.1, a development project is determined to be subject to the provisions of Section 19.20 - Project Review Special Permit, that project shall be required to submit a Traffic Study as required in Section 19.24, notwithstanding any other provision of Section 19.20.

2. Retail Uses. For a building abutting Massachusetts Avenue on the University Hall Lot or the Mt. Vernon Lots that is occupied by retail uses set forth in Section 4.35 that are located on the ground (first) floor of that building, which building is otherwise at least 50% occupied by institutional uses, those retail uses shall be exempt from the requirements of FAR and shall not be counted as Gross Floor Area. In no event, however, shall this retail FAR exemption exceed 25,000 square feet of gross floor area in any single building.

   The retail enterprises receiving such FAR exemption shall be open to the general public during normal business hours and are expected to provide goods and services of interest to the general public not affiliated with any educational institutional occupant of such building. The institution shall report to Planning Board on the leasing activity in such exempt retail space in its annual "Town Gown Report" presentation to the Board for five years after initial occupancy of the last exempt Gross Floor Area.

20.504.2 Height.

1. Height shall be that permitted in the base Business C zoning district and, notwithstanding other provisions in the Zoning Ordinance, shall be measured from mean grade measured at the perimeter of the lot.

   However, the height of any historic structure (including any building determined to be a Preferably Preserved Significant Building by the Cambridge Historical Commission

under the provisions of Ordinance No. 965, designated as a landmark pursuant to Chapter 2.78 of the Cambridge Municipal Code or the subject of a Preservation Easement granted to the Cambridge Historical Commission) shall be exempted from the provisions of Sections 5.33.2 and 5.43. All other new construction within the Overlay District, however, shall be subject to these sections.

2. For the Mt Vernon Lots located westerly of Massachusetts Avenue, the maximum height for non-residential uses shall be limited to 45 for the lot located north of Mount Vernon Street and forty (40) feet for the lot located south of Mount Vernon Street and shall be measured from grade as provided for in Paragraph 1 above. The 35 foot transition height limit required in Sections 5.33.2 and 5.43 shall continue to apply.

20.504.3 Setbacks, yards.

1. Setbacks, except as otherwise provided in Section 20.504.3 (2) below, shall be the same as required in the base zoning district (Business C) for all new construction provided, however, that historic structures (as defined above) shall not be subject to the yard requirements of Sections 5.41 and 5.42, including if all or a portion of such structures is relocated on the same lot in the Overlay District.

2. Church Lot Setbacks.

   a. There shall be a required setback of twenty (20) feet from the side lot line of the Church Lot perpendicular to Roseland Street.

   b. There shall be required a 7.5 foot front yard setback along the Frost Terrace front lot line. Such setback shall not be subject to the surface parking restrictions of Section 6.44.1 or the Massachusetts Avenue Overlay District, Section 20.100.

   c. In granting a special permit for development on the Church Lot the Planning Board shall pay particular attention to the design details of the building wall facing this lot line and the landscape treatment of the yard provided, as required in Section 20.505 (9) below. In general building walls should not remain uninterrupted for more than thirty (30) feet, with changes in the plane of building wall of up to four (4) feet encouraged.

20.504.4 Parking and Loading. Parking and loading requirements for any educational institutional use contained in the Overlay District may be waived by the granting of a Special Permit from the Planning Board except that any new Gross Floor Area in a building authorized by Special Permit in the Lesley Porter Overlay District that results in the elimination of existing parking spaces on the lots located westerly of Massachusetts Avenue or in the surface parking lot along Roseland Street on the University Hall Lot shall not be permitted unless replacement parking is provided.

Above ground parking structures shall not be permitted in the Overlay District with the possible exception of the area on the University Hall Lot bordered by Roseland Street, the MBTA railroad right of way, and a line parallel to and 250 feet easterly of the easterly street line of Massachusetts Avenue, but only after a determination by the Planning Board that the

parking structure will be architecturally and visually well integrated within the overall development. In order to make such a determination the Planning Board must find the following:

1. The parking structure shall contain a principal use other than parking.

2. Portions of the structure containing parking that can be viewed from a public way shall be architecturally treated so as to not appear to be a parking facility.

3. The portion of the structure where parking is located does not have an adverse effect on the architectural character of the proposed building.

4. Portions of the parking structure are located below grade where feasible.

20.504.5 Open Space Requirements. The following Open Space requirements shall apply to those lots or portions of lots located easterly of Massachusetts Avenue. The required Open Space may be any combination of Green Area, Permeable, Public, Private or Publicly Beneficial Open Space.

1. For the Church Lot in the Business C District located south of Roseland Street there shall be a minimum ratio of Open Space to Lot Area of ten (10) percent. For purposes of calculating Open Space under this provision the following requirements shall apply:

   a. Open Space shall be located along the Massachusetts Avenue frontage and have a depth of at least twenty (20) feet and shall have a minimum area of 3,000 contiguous square feet;

   b. Area that is covered by a portion of a building but is open on three (3) sides with a height of at least twelve (12) feet may be included;

   c. Area that is ten (10) feet or more in any direction may be included.

2. For that portion of the University Hall Lot bordered by Roseland Street, the MBTA railroad right of way, and a line parallel to and 250 feet easterly of the easterly street line of Massachusetts Avenue there shall be a minimum ratio of Open Space of twenty-five (25) percent and contain a minimum of 5,000 contiguous square feet of Open Space.

20.504.51 Special Church Lot and University Hall Lot Provisions. Where a special permit is required for any development on the Church Lot under the provisions of the Lesley Porter Overlay District, the applicant shall be required to submit as part of that application a plan for providing a portion of the Open Space required in Section 20.504.5 (2) above on the University Hall Lot, particularly focused along the Roseland Street edge. The plan should also include proposed improved pedestrian connections throughout the lot.

The plan as approved by the Planning Board shall be implemented simultaneously with the construction authorized by the special permit for the development on the Church Lot.

20.505 *Special Permit Criteria*. In granting a Special Permit under this Section 20.500, in addition to the other criteria specified in Section 10.40, the Planning Board shall take into consideration the following and make appropriate findings related thereto:

1. Contribute to the vitality of Porter Square by concentrating academic activities that will provide publicly accessible uses including arts libraries, galleries and a wide range of activities and classes and that will have positive spillover effects on the retail environment of the Square.

2. Contribute to Porter Square's vitality, identity and sense of place by removing existing on-grade parking lots and constructing new structures that spatially define and enrich Massachusetts Avenue and incorporate active ground floor uses and buffering them from the activity and noise along Massachusetts Avenue.

3. Minimize adverse impacts on abutting low-density housing by appropriately designing and programming new structures' location on the lot, massing, scale, use and operations.

4. Preserve, reuse and highlight historic structures as integral, publicly accessible parts of the overlay district.

5. Provide retail activity that serves local residents' and Lesley community needs, strengthens the corridor's existing retail base and provides a more dynamic, mixed-use image.

6. Minimize vehicular traffic and demand for on street parking in the residential neighborhood by concentrating activity near the T station, maximizing a mix of uses that reinforce each other, and enhance the pedestrian environment.

7. The Open Space along the easterly side of Massachusetts Avenue south of Roseland Street, described in Section 20.504.5 (1), should be inviting and provide places for rest and gathering with an appropriate public art focus.

8. The Open Space along Roseland Street described in Section 20.504.5 (2) should reflect an "urban campus" character, which would include an entry forecourt along the axis of neighboring Frost Street. There shall also be a well-defined walkway through this area that provides pedestrian connections from Roseland Street to Massachusetts Avenue.

9. Where proposed construction abuts existing residential development, special attention should be paid to proposed setbacks, location of open space features, and building design to ensure reasonable compatibility between the scale and extent of new construction and the scale and character of the existing pattern of residential development. Use of variable height and variable setback planes, reduction in the length of continuous building walls, amount of landscaping, etc. should be employed to achieve these objectives.

10. The Board shall consider the impact of the development on residential neighbors as it may affect privacy. Location and size of windows, screening elements, decks, entries

and other aspect of the design shall be reviewed to maintain reasonable levels of privacy for abutters. The Board shall also consider the nature of the uses contained in the buildings constructed.

11. Inclusion of physical improvements to the public right of way along Massachusetts Avenue that enhance its quality as a pedestrian environment, retail shopping district and place for meeting and congregating for neighborhood residents and visitors.

12. The adequacy of the proposed construction mitigation plan, as set forth in Section 18.20 of the Zoning Ordinance.

20.506 *Consistency with Letter of Commitment*. Prior to the issuance of any building permit or Certificate of Occupancy for any construction authorized by special permit under the provisions of this Section 20.500, the Community Development Department shall certify to the Inspectional Services Department that all provisions of the Letter of Commitment dated June 22, 2009 by Lesley University are continuing to be met.

(Ord. No. 2025-1, 2-10-2025)

20.600 BASEMENT HOUSING OVERLAY DISTRICT

20.610 *Establishment and Scope*. There is hereby established the Basement Housing Overlay District which shall be governed by the Regulations and procedures specified in this Section 20.600. The purpose of this Section 20.600 is to allow for the creation of studio or one-bedroom apartment units in appropriate unused basement level space of certain existing multifamily residential buildings that have one or more existing basement level apartment units. Given the increasing expense of unsubsidized rental housing in Cambridge, the shortage of reasonably priced, affordable studio and one bedroom units, and the difficulty this poses for local workers, students and the elderly, it is in the public interest to permit the creation of additional units under circumstances which promote the maintenance and improvement of older buildings, including improved stormwater and wastewater management, and which provide additional housing without building new structures or increasing the size of existing structures. The corridor along Massachusetts Avenue between Harvard Square and Porter Square contains a significant number of buildings wholly or partially on lots with a base district among the Residence C family of use categories (Res. C, C-1, C-1A, C-2, C-2A, C-2B, C-3, C-3A, C-3B) which because of their age, location, current existence of one or more basement units, and proximity to public transit options, present an ideal set of circumstances for the City to encourage the creation of basement units and thereby explore the desirability and viability of possible expansion of similar development elsewhere in the City.

20.620 *Applicability*. The regulations of this Section 20.600 shall apply within the Basement Housing Overlay District to existing structures designed and built for residential use, which also meet all of the following standards:

a. The structure is located wholly or partially within a Residence C-1, C-1A, C-2A, C-2, C-2A, C-2B, C-3, C-3A, or C-3B base zoning district;

b. The structure is currently occupied by at least thirty (30) dwelling units;

c. The structure was built before 1930 and its footprint or foundation has not been expanded or altered after the effective date of this Section 20.600 except as may be required and approved as a condition to the grant of a special permit hereunder;

d. The structure currently contains at least one dwelling unit located entirely at the basement level.

Portions of those structures that meet the applicability requirements set forth above that are not located within a Residence C family zoning district would be treated for all dimensional and use requirements as if wholly located within a Residence C family zoning district.

20.630 *Standards*. Where it is proposed to create additional dwelling units by converting existing Gross Floor Area, which is not presently occupied by dwelling units, into dwelling units at the basement level of the existing structure, the dimensional and parking standards generally applicable in any base zoning district shall apply. However, where some or all of those requirements cannot be met, the Planning Board may waive some or all of the dimensional and parking standards generally applicable in the base district upon issuance of a special permit, subject to the following limitations:

a. Where the Floor Area Ratio of the existing structure exceeds the maximum Floor Area Ratio allowed in the base zoning district, the Gross Floor Area of the existing structure shall not be increased.

b. Where the existing structure or lot does not conform to the height, yard, or private open space requirements generally applicable in the district, the Planning Board may approve those dimensional characteristics of the existing building or lot. However, no nonconforming dimensional element or aspect of the existing structure shall be extended or increased, with the exception that the permitted lot area per dwelling unit may be decreased, and incursions into setback areas may be approved by the Planning Board only for the purpose of providing or altering window wells or egress stairs as may be deemed advisable in response to safety and flooding concerns.

c. The number of dwelling units in the existing structure shall not be increased by more than ten (10) units or fifteen percent (15%) of the number of dwelling units in the existing building, whichever is fewer.

d. Newly created dwelling units shall be restricted to studio or one-bedroom apartments only.

e. [Deleted]

f. At least one additional secure long-term bicycle storage space shall be created on the lot for each new dwelling unit created under the provisions of this Section. Such bicycle parking spaces shall conform to the design standards of Section 6.49, and the City of Cambridge Bicycle Parking Guide, published spring 2008 or later.

20.640 *Conditions for Grant of Special Permit*. Prior to granting a special permit pursuant to this Section the Planning Board shall determine that the proposed conversion of basement space to dwelling units complies with the General Special Permit Criteria set forth in Section 10.43 as well as with the following requirements:

a. Each new unit converted from existing basement space shall comply with all building, health, and accessibility codes applicable to residential dwelling units in the basement of structures. A special permit granted pursuant to this Section shall be conditioned upon full compliance with all building and sanitary code requirements applicable to basement units to be approved by the Commissioner of Inspectional Services at the time of application for a building permit. As a condition of the special permit, the Planning Board may require reasonable measures as are deemed necessary for the adequate privacy and security of the occupants.

b. Buildings must contain, or install, full separation between storm water and sanitary sewer lines from the building to the connection in the street regardless of whether the street in which the building is connected currently is separated.

c. Adequate, properly installed, backflow prevention devices that comply with all building code and other applicable requirements must be installed for all newly created units along with any additional measures determined to be advisable by the City Engineer.

d. An application for a special permit pursuant to this Section shall include a report on historical occurrences and future likelihood of basement flooding in the area of the proposed conversion, prepared by a registered professional engineer, with a functional scope determined by the City Engineer to be appropriate to the location of the project. In general, the report shall assess the likelihood of flooding in the basement units by way of sewer system backups or overland flooding and identify proposed mitigation to prevent any such flooding. The Applicant shall obtain approval of the report and proposed mitigation, if any, from the City Engineer prior to submitting a special permit application. As a condition of the special permit, the Planning Board may require preventive measures to safeguard against future flooding in the proposed basement-level units as recommended by the City Engineer.

20.650 *Affordability*. The Inclusionary Housing requirements of Section 11.200 shall apply to any new dwelling units that exceed the threshold for an Inclusionary Project as set forth in Section 11.201. Any project which receives a special permit pursuant to this Section, but does not exceed the threshold for an Inclusionary Project, shall provide no less than one Affordable Unit, as defined in section 11.201 and subject to the Standards for Construction and Occupancy of Affordable Units set forth in Section 11.204.

20.660 Notwithstanding the base district in which any part of the structure is located, the entirety of any structure that meets the applicability requirements of Section 20.620 and that is in the Basement Housing Overlay District shall be eligible for the special permit created by this Section 20.600. Where any proposed dwelling units in that structure are to be located in any portion of the structure that is in a base zone in which the use would not otherwise be allowed, or would not be allowed without separate approval under Article 8, those dwelling

units shall be eligible to be allowed pursuant to a Special Permit under this Section 20.600 and upon the grant of that Special Permit shall be allowed without need for approval under Article 8 or the grant of any variance or additional zoning approvals.

(Ord. No. 2025-1, 2-10-2025)

20.700 DELETED (SEE SECTION 11.800)

20.800 DELETED

Editor's note—Ord. No. 2025-1, adopted Feb. 10, 2025, repealed 20.800, which pertained to Cambridge Highlands Overlay District and derived from the original Zoning Ordinance.

20.1000 GRAND JUNCTION PATHWAY OVERLAY DISTRICT

20.1001 *Establishment and Scope.* There is hereby established the Grand Junction Pathway Overlay District, which is governed by the regulations and procedures specified in this Section 20.1000. It is the intent of this Section that these regulations will apply to land within the Grand Junction Pathway Overlay District, which is comprised of Grand Junction Land and Development Land, as defined below.

20.1002 *Purpose.* It is the purpose of the Grand Junction Pathway Overlay District to augment base zoning and promote the development of a public pathway along the Grand Junction railroad right-of-way in connection with high quality development consistent with development along the Binney Street corridor.

The October 2001 East Cambridge Planning Study identified the Grand Junction corridor as a means to provide a significant transportation and recreational resource and enhance non-auto mobility in the City. The October 2006 Grand Junction Rail-with-Trail Feasibility Study highlighted the public benefits of the pathway, including recreation and open space, but noted that acquiring rights in the land to develop the pathway was a key limiting issue. The August 2017 Final Report of the Kendall Square Mobility Task Force underscored the importance of enhancing non-auto mobility in the City and the Grand Junction Pathway in meeting that goal.

The Grand Junction Pathway Overlay District will facilitate the City's efforts to secure long term public access to certain land in the Grand Junction Pathway Overlay District by incenting development consistent with development along the Binney Street corridor. A project meeting the requirements of this Section will provide open space, recreational opportunities, a corridor for non-auto traffic in the City, as well as high quality development, and promote the goals of public health, safety, welfare and economic development.

20.1003 *Applicability.* Development in the Grand Junction Pathway Overlay District shall be controlled by the regulations governing the Industry A-1 District, except as modified by the requirements of this Section 20.1000, which shall apply in lieu of the regulations of the Industry A-1 District. Where the regulations applicable to the Industry A-1 District differ from

the requirements of this Section 20.1000, the provisions of this Section shall apply. The Grand Junction Pathway Overlay District shall be established on the Zoning Map of the City of Cambridge pursuant to the provisions of Section 3.20.

20.1004 *Procedure.* Construction, use and development under this Section shall be authorized by Special Permit granted by the Planning Board. In granting a Special Permit under this Section 20.1000, the Planning Board shall find that the intent of this Section has been satisfied and find that provision has been made for the conveyance to the City, or a designee thereof, by fee or easement, of interests in certain land as described herein for the development of the Grand Junction pathway between Binney Street and Cambridge Street.

20.1005 *Required Conveyance of Grand Junction Land.* In connection with a Special Permit(s) granted pursuant to Section 20.1000, conveyance to the City, or its designee, of the following land for use on the Grand Junction pathway, by fee or easement, shall be required under such Special Permit(s) or have already been made:

(a) Tax Parcel 37-88, comprising approximately 2,600 square feet, and known as 686 Cambridge Street;

(b) A fourteen (14) foot wide strip of land along the east boundary of Tax Parcel 37-126, beginning at the north boundary of Tax Parcel 33-111 and continuing approximately 480 feet, and then the land between the east boundary of Tax Parcel 37-126 and the west boundary of Tax Parcel 37-88, continuing approximately fifty (50) feet to Cambridge Street, comprising a total of approximately 7,020 square feet; and

(c) A fourteen (14) foot wide strip of land along the east boundary of Tax Parcel 33-110 bordering the Grand Junction railroad right-of-way beginning at Binney Street and continuing approximately 511 feet to the south boundary of Tax Parcel 33-111 and Tax Parcel 33-111, comprising a total of 19,916 square feet.

The land described in subparagraphs (a)-(c) is hereby defined as "Grand Junction Land."

20.1006 *Other Matters—Grand Junction Land.* The Grand Junction Land shall be conveyed to the City, or its designee, by fee or easement: (i) such that the environmental condition of the Grand Junction Land poses No Significant Risk, as defined under 310 C.M.R. 40.0006, to future users of the land given its intended use as a public pathway; (ii) subject to encumbrances which do not interfere with the use of the land for its intended purpose; and (iii) subject to a reservation of Grantor to grant subsurface utility easements. Nonconformity, including setbacks, arising directly from the conveyance of Grand Junction Land hereunder is waived.

20.1007 *Development Land.* "Development Land" within the Grand Junction Pathway Overlay District consists of Tax Parcel 31-20 [known as 303 and 345 Binney Street], comprising a total of approximately 191,506 square feet ("Development Land Lot Area").

20.1008 *Permitted Uses.* Uses permitted in the Development Land shall be governed by base zoning. After conveyance pursuant to Section 20.1011, Grand Junction Land shall be used for Public Open Space.

20.1009 *Dimensional Requirements.*

20.1009.1 *Floor Area Ratio.* The maximum Floor Area Ratio for the Development Land located in the underlying Industry A-1 District (130,671 square feet) shall be 2.5. Development Land in the underlying Residence C-1 District (60,835 square feet) may be included in the calculation of allowable Gross Floor Area on Development Land located in the Industry A-1 District (for Uses allowed therein) at the Floor Area Ratio allowed in the Industry A-1 District of 1.25, provided that: (i) future use of the Development Land in the Residence C-1 District shall be Publicly Beneficial Open Space, except that fences, berms, sound barriers, a vehicle turnaround, a loading dock enclosure and underground systems serving the Development Land may be located in the underlying Residence C-1 District; and (ii) a 25 foot wide landscaped buffer shall be created along the westerly boundary of that portion of the Development Land located in the Residence C-1 District abutting the railroad right-of-way.

20.1009.2 *Height.* As shown on the attached Figure of Height Zones for Development Land within the Grand Junction Pathway Overlay District, the Development Land is divided into three zones: the Binney Street Zone, the Transition Zone and the Base Zoning Zone. The maximum height of any building in the Binney Street Zone shall be 90 feet. The maximum height of any building in the Transition Zone shall be 60 feet. The maximum height of any building in the Base Zoning Zone shall be governed by base zoning. Notwithstanding Section 5.23 of the Cambridge Zoning Ordinance, the height of any Roof Top Mechanical Penthouse in the Binney Street Zone of the Grand Junction Pathway Overlay District shall be limited to twenty-five (25) feet and the height of any Roof Top Mechanical Penthouse in the Transition Zone of the Grand Junction Pathway Overlay District shall be limited to twenty (20) feet. "Roof Top Mechanical Penthouse" is defined as an enclosed space housing mechanical systems, air conditioning equipment, elevator bulkheads, ventilation systems or other necessary features normally built above the roof and not used for human occupancy.

20.1009.3 *Setbacks.* There shall be no minimum required front, rear or side yard setbacks, except that no above grade building shall be constructed within twenty-five (25) feet of the westerly boundary of Tax Parcel 31-20.

20.1010 *Parking—Parking Ratio.* Parking shall be at a ratio no greater than 0.8 spaces per 1,000 feet of Gross Floor Area for technical office for research development laboratory or research facility (see Section 4.34(f) of the Ordinance).

20.1011 *Timing of Grand Junction Land Conveyance.* The Grand Junction Land shall be conveyed to the City per Section 20.1005 in accordance with Section A(1) of that certain Letter of Commitment dated March 2, 2020 and referenced in Section 20.1013.

20.1012 *Project Review.* In granting approval for a building or buildings under Article 19, the Planning Board may approve buildings for which physical design information is presented in conceptual form, subject to later design review and approval by the Planning Board and a finding that final design of such building(s) is consistent with Section 19.30, as applicable.

20.1013 *Letter of Commitment.* Issuance of any base building permit or certificate of occupancy for any new building on Development Land approved pursuant to a Special Permit granted under this Section 20.1000 shall be conditioned on certification by all relevant departments of the City to the Superintendent of Buildings that the building is proceeding in accordance with that certain Letter of Commitment dated March 2, 2020.

(Ord. No. 1419, 3-2-2020)

20.1100 ALEWIFE OVERLAY DISTRICT—QUADRANGLE

20.1100.1 Establishment and Scope.

1.1. There is hereby established the Alewife Overlay District - Quadrangle ("AOD-Q") District, which shall be governed by the regulations and procedures specified in this Section 20.1100.

1.2. The AOD-Q District shall be an Overlay District established on the Zoning Map of the City of Cambridge by Section 3.20.

20.1100.2 General Provisions.

2.1 Purpose. It is the purpose of the AOD-Q District to promote a development pattern that implements the vision and goals of the Envision Alewife District Plan (2019) and the Principles of the Alewife Zoning Working Group (2023), referred to herein as the "AOD-Q Principles." In summary, this Section is intended to achieve the following objectives:

(a) Support the creation of a mixed-use environment with a balance of residential and non-residential uses.

(b) Incorporate a variety of neighborhood-supporting uses that provide retail, services, recreation, culture, and employment opportunities to residents, employees, and visitors to the area, and help to activate the ground stories of buildings.

(c) Promote the development of significant public infrastructure and open space in the District to improve physical access and connectivity, and to transform the area from an auto-oriented environment to one that prioritizes transit, biking and walking.

(d) Address area-specific environmental concerns by promoting resilience to future flooding, reducing urban heat island effects, and managing stormwater with a focus on green infrastructure and mitigating impacts on public sewage and drainage systems.

(e) Maintain and preserve a regulated transition between larger-scale development in the district and nearby smaller-scale residential neighborhoods and communities.

(f) Review and permit redevelopment through a process that encourages comprehensive, long-range planning and urban design while providing sufficient flexibility to property owners to adapt to changing conditions over time.

20.1100.3 Applicability.

3.1 General Applicability. The requirements of the base zoning district shall apply to development in the AOD-Q District except as modified by this Section 20.1100. Where this Section 20.1100 sets forth a provision that deviates from the provisions of the base zoning district, the provisions of this Section 20.1100 shall control. Specifically, the provisions of the Parkway Overlay District in Section 20.60 shall not apply to development under this Article.

3.2 Special Permits. The provisions of this Section 20.1100 shall apply as-of-right except where a special permit is indicated. In the AOD-Q District, the Planning Board shall be the special permit granting authority for any special permit required by this Section 20.1100 or by other provisions in this Zoning Ordinance. A special permit shall be granted or denied pursuant to the procedures set forth in Section 20.1100.8 below, except in the case of a PUD special permit as set forth below.

3.3 Planned Unit Development (PUD) District. The AOD-Q District shall be considered a PUD district. Where indicated, some provisions of this Section 20.1100 are applicable only to a PUD Development Proposal, which may be permitted pursuant to the requirements and procedures of Article 12.000 of this Zoning Ordinance and the additional PUD provisions set forth in this Section 20.1100. The Planning Board may grant any special permits required for a PUD Development Proposal through a single PUD approval process.

3.3.1 Required PUD Special Permit Review. If a development proposal involves the construction of 250,000 or more square feet of Gross Floor Area (GFA) of non-residential uses, then a special permit may only be granted pursuant to the PUD procedures set forth herein. The aforementioned 250,000 square-foot threshold shall apply cumulatively to all development that occurs on contiguous or non-contiguous lots within the AOD-Q District that are in common ownership or under common control at any time within five (5) years following the first date of application for any special or building permit for development on the lot or lots, beginning on the date of adoption of this Section 20.1100.

3.3.2 Elective PUD Special Permit Review. Where the PUD procedures are not required by the preceding paragraph, a developer may choose to apply for a PUD special permit if the standards for a PUD set forth in this Section 20.1100 and in Article 12.000 are met.

3.4 Transfer of Development Rights. The transfer of permitted GFA from a Donating Lot to a Receiving Lot shall be permitted by special permit within the AOD-Q District, subject to the provisions set forth in Section 21.10.

3.5 Subdivision of Lots. Where it is proposed to subdivide a lot (after approval by special permit has been granted by the Planning Board for development on that lot) in order to convey to the City of Cambridge an easement or fee interest in property for the purpose of creation of a city or private street, a pedestrian pathway, a pedestrian

bridge, bicycle path, open space or park, or other public use as identified in the special permit per the provisions set forth below in Section 20.1100.5.1.4.4, such subdivision shall be permitted, notwithstanding any definition of lot or street in this Ordinance or any limitation in applicable base or overlay districts with regard to minimum lot size, required yards or other dimensional, open space or other regulatory requirement or limitation. All dimensional requirements of the Zoning Ordinance and this Section 20.1100 shall be satisfied by the lot or development parcel as a whole as defined in the application for a special permit (the "Development Parcel") and shall be waived with regard to any subsequent subdivided lots. No development approved by special permit in this Section 20.1100 shall be subsequently rendered non-conforming with regard to the dimensional requirements applicable to it as a result of a subdivision of land to create an approved public or private street, park, or pedestrian, bicycle or other pathway, or other public use as indicated above.

20.1100.4 Use Regulations

4.1 Additional Permitted Uses. The following uses, as they are listed in Article 4.000 and otherwise defined in this Zoning Ordinance, shall be permitted as-of-right in addition to uses permitted as-of-right in the base district:

(a) Residential Uses: All uses in Section 4.31.d through 4.31.j.

(b) Education uses: All Subsections of Section 4.33.b.

(c) Civic & Institutional uses: All uses listed in Section 4.33.d through 4.33.h.

(d) Retail & Consumer Service Uses: All uses listed in Section 4.35.

(e) Outdoor Retail or Consumer Service Establishments: Open-Lot Retail Sales Establishment (Section 4.36.a), Outdoor Entertainment and Recreation Facility (4.36.d), and Temporary Outdoor Retail or Consumer Service Use (Section 4.36.j).

(f) Light Industry, Wholesale Business and Storage Uses: Manufacturing, processing, assembly and packaging uses (All subsections of 4.37.b), Bottling of beverages (4.37.c), Printing, binding, publishing and related arts and trades (4.37.f), and Food Commissary (4.37.i).

4.2 Limited Uses. A Distribution Center, Parcel Delivery Center, or Delivery Warehouse - Section 4.37 (d) shall be permitted where the base district is the Industry B-2 district only after the granting of a special permit from the Planning Board.

4.3 Uses Allowed by Special Permit.

4.3.1 Parking as a Principal Use. Where not otherwise permitted, parking as a principal use may be permitted by the Planning Board as a component of a PUD if provided in accordance with Section 20.1100.5.5.4 below.

4.3.2 Other Uses. Any other use that may be permitted as-of-right or by special permit in a Business B zoning district may be permitted by special permit from the Planning

Board upon determining that such use is consistent with the goals and objectives of the AOD-Q district and conforms to the special permit criteria set forth in Section 20.1100.8.4.3.

4.4 Neighborhood Uses.

4.4.1 Intent of Neighborhood Uses. It is the intent of this Section to promote and incentivize the inclusion of a diversity of uses in the AOD-Q District that help to reinforce the district as a self-sufficient neighborhood and complement the workspaces and living spaces that are expected to be the predominant uses. Such uses include retail and other personal or professional services, educational, cultural, and recreational amenities, and diverse employment opportunities serving residents of different backgrounds. Such uses are particularly encouraged on the Ground Stories of buildings and in locations that are planned to support and encourage an active public realm.

4.4.2 List of Neighborhood Uses. For the purposes of this Section 20.1100.4.4.2, "Neighborhood Uses" shall mean any of the following range of uses as they are listed in Article 4.000 and otherwise defined in this Zoning Ordinance:

(a) Educational Uses (Section 4.33.b).

(b) Community Center (Section 4.33.e.2).

(c) Healthcare facilities. (Section 4.33.d.1, 4.33.d.4 through Section 4.33.d.6).

(d) Professional office uses (Section 4.34.a through Section 4.34.c).

(e) Private library, museum or noncommercial gallery (Section 4.33.h.2).

(f) Local Government uses (All uses in Section 4.33.f).

(g) Retail or Consumer Service Establishments (All uses in Section 4.35).

(h) Open-Lot Retail Sales Establishment (Section 4.36.a).

(i) Outdoor Entertainment and Recreation Facility (Section 4.36.d).

(j) Temporary Outdoor or Consumer Service Use (Section 4.36.j).

(k) Food Commissary (Section 4.37.i).

4.4.3 Other Designated Uses. Upon issuing a special permit or amendment to a special permit, the Planning Board may designate a specific use, not otherwise listed above, as a Neighborhood Use in the context of a specific development that is the subject of a special permit or amendment if it is found to meet the intent of this Section. Such designation and any limitations on approval shall be set forth in the conditions of the special permit.

4.4.4 Location of Neighborhood Uses. A Neighborhood Use, where provided, shall generally be located at the Ground Story with one or more entrance(s) providing direct access from a public sidewalk or Open Space and not requiring passage through any portion of the building not occupied by that Neighborhood Use. In granting a special permit or amendment, the Planning Board may approve modifications to the standards of this Paragraph upon finding that an alternative location better serves the intent of this Section for the intended use.

4.5 Minimum Neighborhood Uses in a PUD. Where a proposal is seeking a PUD special permit, the area devoted to Neighborhood Uses (which shall include any area that is exempt from the calculation of Gross Floor Area (GFA), as set forth below) shall equal at least 3% of the total non-residential GFA in the PUD.

20.1100.5 Development Standards

5.1 GFA and FAR. A development may exceed the Gross Floor Area (GFA) and Floor Area Ratio (FAR) limitations of the base zoning district by special permit from the Planning Board as set forth below.

5.1.1 FAR Limitations. The limits on FAR subject to special permit approval are set forth in the table below.

(a) The figures in the "Non-residential FAR" row limit the non-residential component of a development proposal, which means the GFA on the lot or Development Parcel devoted to non-residential use divided by the total land area of the lot or Development Parcel.

(b) The figures in the "Total FAR" row limit the total mixed-use FAR of a development proposal, which means the GFA on the lot or Development Parcel devoted to the sum of both residential and non-residential uses divided by the total land area of the lot or Development Parcel. For a residential or mixed-use development subject to the Inclusionary Housing Requirements in Section 11.200 of this Zoning Ordinance, the GFA increase for residential uses set forth in Section 11.203.5 shall be permitted.

(c) The figures in the "Special Permit" column limit the FARs allowable by Planning Board special permit, subject to the special permit criteria applicable in the AOD-Q District, but excluding PUD special permits.

(d) The figures in the "PUD" column limit the FARs allowable by PUD special permit from the Planning Board for a Development Proposal that meets the PUD requirements applicable in the AOD-Q District.

(e) The figures in the "Infrastructure PUD" column limit the FARs allowable by PUD special permit from the Planning Board for a Development Proposal that meets the PUD requirements applicable in the AOD-Q District, including the provision of a Major Infrastructure component as set forth in Section 20.1100.7.3.

Table of FAR Limits by Use.

	Special Permit	**PUD**	**Infrastructure PUD**
Non-residential FAR	1.00	1.25	1.50
Total FAR	4.00	4.00	4.00

5.1.2 Counting of Conveyed Land. Where it is proposed to subdivide a lot or Development Parcel (after approval by special permit has been granted by the Planning Board for development on that lot) in order to convey to the City of Cambridge an easement or fee interest in property for the purpose of creation of a city or private street, a pedestrian pathway, a pedestrian bridge, bicycle path, open space or park, or other public use as identified in the special permit and per Section 4.1.5.1 of this Ordinance, then the entire area of the lot or Development Parcel, inclusive of the land to be conveyed, shall be counted when applying FAR limitations.

5.1.3 Required Residential GFA. Development seeking a special permit to increase non-residential FAR in accordance with Section 20.1100.5.1.1 above shall devote a minimum of 40% of the total GFA on the lot or Development Parcel to residential uses as listed in Sections 4.31 a. through h. of this Zoning Ordinance, exclusive of any exempt GFA granted as part of an approved Final Development Plan.

5.1.3.1 Timing of Required Residential GFA. The required residential GFA may be provided on any portion of the Development Parcel and may be provided during any phase of a multi-phase development, provided, however, that construction of the required residential GFA shall have commenced prior to or simultaneous with the issuance of a final certificate of occupancy for more than sixty percent (60%) of non-residential GFA on the lot or Development Parcel.

5.1.3.2 Housing Fund Contribution. In cases where an owner demonstrates that developing the required residential component of a special permit is infeasible, a development seeking a special permit, but not a PUD special permit, to increase non-residential FAR in accordance with Section 20.1100.5.1.1 above may make a contribution to the City's Affordable Housing Trust in place of constructing the required residential GFA. The contribution rate shall be $90 per square foot of required residential GFA that is not constructed, and shall be subject to annual escalation equal to that identified in Section 11.202.b of this Ordinance, and shall be made prior to the issuance of a building permit for the project.

5.1.4 GFA Exemptions. Upon granting a special permit, the Planning Board may exempt floor area devoted to the following uses and meeting the criteria below from the calculation of GFA on the lot or Development Parcel. Floor area exempt from GFA calculations shall not be counted for the purpose of applying any requirements set forth in this Section 20.1100 or elsewhere in the Zoning Ordinance.

5.1.4.1 Uses Eligible for Exemption.

(a) Floor area devoted to public infrastructure and facilities supportive of the intent of the AOD-Q district, including but not limited to transit stations, municipal facilities, public pedestrian/bicycle connections, and any building or structure owned, leased, or operated by the City of Cambridge for public use.

(b) Neighborhood Uses, in accordance with the provisions of Section 20.1100.4.4 above.

(c) Structured parking provided in accordance with the standards of Section 20.1100.5.5.4 below.

(d) Light Industry, Wholesale Business and Storage Uses: Manufacturing, processing, assembly and packaging uses (All subsections of 4.37.b), Bottling of beverages (Section 4.37.c), Printing, binding, publishing and related arts and trades (Section 4.37.f), and Food Commissary (Section 4.37.i).

5.1.4.2 Criteria for Exemption. In granting exemptions from GFA calculations, the Planning Board shall find that the uses to be exempted are located and designed in a way to ensure long-term adherence to the purpose of the AOD-Q District. The special permit shall include a plan clearly depicting the areas to be exempt and the conditions shall set forth the range of uses permitted to occupy such areas in the future to ensure ongoing compliance. Any deviation from the range of uses permitted to occupy such areas as set forth in the special permit conditions shall require an amendment to the special permit.

5.1.4.3 Additional GFA. Upon granting a special permit, the Planning Board may permit additional GFA on a lot or Development Parcel exceeding the FAR limitations of Section 20.1100.5.1.1 above for the reasons set forth below. Additional GFA may be devoted to non-residential or residential uses, but shall be counted as GFA for the purpose of compliance with other applicable requirements set forth in this Section 20.1100 or elsewhere in the Zoning Ordinance, including but not limited to residential GFA requirements and fund contributions.

5.1.4.4 Additional GFA for Conveyance of Land. Where land is conveyed to the City of Cambridge by fee or easement (in a form acceptable to the City) for use as public street segments, pedestrian and bicycle paths, public open space, or other public use consistent with the AOD-Q Principles or otherwise identified by the Planning Board to serve a public purpose consistent with the intent of the AOD-Q District, the permissible GFA on the lot or Development Parcel can be increased by an amount equal to 1.5 times the area of the land conveyed for such purpose.

5.1.4.5 Additional GFA Bonus for Light Industrial Uses. Where floor area is dedicated to Light Industry, Wholesale Business and Storage Uses: Manufacturing, processing, assembly and packaging uses (All subsections of 4.37.b), Bottling of beverages (Section 4.37.c), Printing, binding, publishing and related arts and trades (Section 4.37.f), and Food Commissary (Section 4.37.i), the permissible GFA on the lot or Development Parcel may be increased by an amount equal to 2.0 times the amount of floor area dedicated to such uses as a bonus. The special permit shall include a plan clearly depicting the areas of Light Industrial uses to which the bonus is attributed, and the conditions shall set forth the range of uses permitted to occupy such areas in the future to ensure ongoing compliance. Any deviation from the range of uses permitted to occupy such areas as set forth in the special permit conditions shall require an amendment to the special permit.

5.1.4.6 Additional GFA Bonus for Neighborhood Uses. Where floor area is dedicated to Neighborhood Uses (whether or not such uses are exempt from GFA calculations), the permissible GFA on the lot or Development Parcel may be increased by an equivalent amount of floor area as a bonus. The special permit shall include a plan clearly depicting the areas of Neighborhood Uses to which the bonus is attributed, and the conditions shall set forth the range of uses permitted to occupy such areas in the future to ensure ongoing compliance. Any deviation from the range of uses permitted to occupy such areas as set forth in the special permit conditions shall require an amendment to the special permit.

5.2 Building Height. The height regulations of the base zoning district, including any general height exceptions set forth in Section 5.23 of this Zoning Ordinance, shall apply. However, a building may exceed the building height limitations of the base zoning district by special permit from the Planning Board as set forth below.

5.2.1 Height Zones. The following Height Zones shall be established in the AOD-Q District as depicted on the Alewife Subdistrict Height Map and Boundary Descriptions, attached to and made a part of this Zoning Ordinance, for the purpose of regulating building heights allowable by special permit:

(a) AOD-Q North Height Zone

(b) AOD-Q South Height Zone

(c) AOD-Q West Height Zone

5.2.2 Tables of Height Limitations. The building heights allowable by special permit in each Height Zone are set forth in the tables below. Building heights shall be limited by both the number of Stories Above Grade and by the maximum height above Grade in feet, subject to the general height exceptions in Section 5.23.

(a) The figures in the "Non-residential Heights Table" table limit the height of any portion of a building containing a non-residential use.

(b) The figures in the "Residential Heights Table" table limit the height of any portion of a building containing a residential use.

(c) The figures in the "Special Permit" columns limit the building heights allowable by Planning Board special permit subject to the special permit criteria applicable in the AOD-Q District, but excluding PUD special permits.

(d) The figures in the "PUD" columns limit the building heights allowable by PUD special permit from the Planning Board for a development proposal that meets the PUD requirements applicable in the AOD-Q District.

(e) The figures in the "Infrastructure PUD" columns limit the building heights allowable by PUD special permit from the Planning Board for a development proposal that meets the PUD requirements applicable in the AOD-Q District, including the provision of a Major Infrastructure component as set forth in Section 20.1100.7.3.

(f) Notwithstanding the foregoing, structured parking above grade shall only be limited by the maximum height above Grade in feet, and not the number of Stories Above Grade.

Non-residential Heights Table

Height Subdistrict	Special Permit	PUD	Infrastructure PUD
AOD-Q North	4 stories above grade and 65 feet	5 stories above grade and 80 feet	8 stories above grade and 125 feet
AOD-Q South	4 stories above grade and 65 feet	5 stories above grade and 80 feet	6 stories above grade and 95 feet
AOD-Q West	3 stories above grade and 50 feet	3 stories above grade and 50 feet	3 stories above grade and 50 feet

Residential Heights Table

Height Subdistrict	Special Permit, PUD or Infrastructure PUD
AOD-Q North	12 stories above grade and 145 feet
AOD-Q South	12 stories above grade and 145 feet
AOD-Q West	6 stories above grade and 75 feet

5.2.3 Height Variations. The height limitations set forth in the tables above shall be modified as set forth below.

5.2.4 Neighborhood Transition. For any portion of a building within 100 feet of a residential zoning district, the maximum height shall be 35 feet. For any portion of a building more than 100 feet from a residential zoning district boundary but within 200 feet of that district boundary, the maximum height shall be 45 feet.

5.2.5 Additional Height for Large Land Conveyance. As part of a PUD special permit, the conveyance of land of at least one (1) acre in size to the City of Cambridge per the provisions of this Section shall permit the buildings or portions of buildings in the AOD-Q North or AOD-Q South height zones to exceed the allowable heights set forth in the tables above, not to exceed one additional story or 15 additional feet. The

specific building sites for which additional height is sought shall be included in the required submittal materials for a Development Proposal for a PUD Special Permit as set forth in Section 20.1100.8.5.5.3 of this Article.

5.3 Minimum Lot Area per Dwelling Unit. For a development containing residential uses seeking a Planning Board special permit under this Section 20.1100, there shall be no minimum lot area per dwelling unit requirement.

5.4 Open Space. The standards set forth below shall apply in place of the standards of the base zoning district.

5.4.1 Total Open Space. The minimum ratio of Open Space to the total area of the lot or Development Parcel shall be twenty (20) percent and shall consist of any combination of Green Area, Permeable, Public, Publicly Beneficial or Private Open Space. The Open Space shall be located at grade.

5.4.2 Public or Publicly Beneficial Open Space. Development seeking a special permit to increase FAR, GFA, or building height under this Section 20.1100 shall provide any combination of Public Open Space or Publicly Beneficial Open Space on the lot or Development Parcel as set forth below. Such required Public Open Space or Publicly Beneficial Open Space shall be generally accessible to the public for the purposes for which the space is designed and approved by the Planning Board.

(a) For development seeking a special permit, excluding PUD special permits, at least twenty-five (25) percent of the required open space provided on the lot shall be any combination of Public Open Space or Publicly Beneficial Open Space. The intent of such Open Space shall be to provide small-scale neighborhood amenities such as pocket parks, plazas, playgrounds, or similar uses subject to Planning Board approval.

(b) For development seeking a PUD Special Permit, at least 20 percent of the land area of the Development Parcel shall be any combination of Public Open Space or Publicly Beneficial Open Space. The intent of such open space shall be to serve district-wide open space needs identified in the Alewife District Plan, such as pedestrian/bicycle open space connections, community parks, and green infrastructure.

5.4.3 Permeable Area. The minimum ratio of Permeable Area to the total area of the lot or Development Parcel shall be 25 percent. For the purpose of this Section 20.1100.5.4.3, Permeable Area shall mean that at-grade surface of a lot that is fully permeable to the infiltration of water to the soil below and whose subsurface permits the percolation of such surface water to the groundwater without interruption or diversion by any building, pavement, structure, or other manmade element with the exception of incidental utilities.

5.4.4. Conveyed Land. For the purpose of applying the Open Space and Permeable Area requirements of this Section 20.1100.5.4, land that is conveyed to a public entity for use as Public Open Space per the provisions of Section 20.1100.5.1.4.4, shall be

counted as a component of the qualifying Open Space and Permeable Area, where applicable, and as a component of the total area of the lot or Development Parcel. However, land that is conveyed for another public purpose, including but not limited to public streets (including associated sidewalks and bicycle infrastructure), public transportation infrastructure, or municipal facilities, shall not be counted as Open Space or Permeable Area and shall be excluded from the total area of the lot or Development Parcel for the purpose of compliance with this Section 20.1100.5.4.

5.4.5 Combined or Pooled Open Space. Upon granting a special permit, the Planning Board may allow owners of adjacent or non-adjacent lots or Development Parcels in the AOD-Q District to collectively meet applicable requirements for Open Space or Permeable Area, provided that the lots or Development Parcels are held in common ownership or the Planning Board finds that there is a binding agreement among property owners recorded on the title of both parcels at the Registry of Deeds that the requirements for all lots or Development Parcels will be met on an ongoing basis. The Planning Board shall also find that the purpose of the AOD-Q District is advanced by providing combined or pooled Open Space or Permeable Area, and shall place conditions on special permits applicable to all component lots or Development Parcels indicating the amount of Open Space and Permeable Area required on each. Land adjacent to, but outside of, a Development Parcel may be used to satisfy Open Space and Permeable Area requirements as part of the delivery of a Major Infrastructure Component, if such land is required by the terms of the special permit to be maintained as Public Open Space by a perpetual easement or similar legal mechanism as required by the Planning Board. Any owners' failure to maintain ownership or a binding agreement relative to the combined or pooled open space shall require an amendment to the special permit and may constitute a violation of the Zoning Ordinance.

5.5 Building and Site Design Standards. The following standards shall generally apply to new buildings in the district. Pre-existing buildings that do not conform to the following standards shall follow the requirements and procedures as set forth in Section 8.10 of this Ordinance.

5.5.1 Modifications. Upon granting a special permit, the Planning Board may approve modifications to the standards set forth below that are found to serve the purpose and intent of the district in a way that better responds to site-specific conditions. Approved modifications shall be specifically enumerated in the special permit decision.

5.5.2 Street Frontage.

5.5.2.1 Front Yards. The front yard setback of the base zoning district shall generally be permitted except as set forth below.

5.5.2.2 Front Yard Setback for Parcels with Frontage on Concord Avenue. The minimum front yard setback for any development with frontage along Concord Avenue shall be twenty-five (25) feet measured from the street line. For corner lots, only the front yard oriented toward Concord Avenue shall be required to provide this setback.

5.5.2.3 Build-to Zone. In order to accomplish the goals of promoting a consistent block pattern and street wall within the AOD-Q District, for development seeking a Special Permit under this Article, the principal front façades of buildings shall be located within a "Build-to Zone" that is established as a range of distances set back from a present or future street centerline as depicted on the map attached hereto and made part of this Ordinance. The Build-to Zone shall serve as the minimum front setback in place of the front yard requirements of the base zoning district, which shall not apply. For development seeking a special permit that has frontage on a street for which a build-to zone has not been depicted, then the minimum front yard standards of the base zoning district shall apply.

5.5.2.4 Build-to Zone Defined. The Build-to Zone is defined as an area measuring five feet (5') in depth measured by a continuous line perpendicular from the street centerline toward the interior of the lot, as depicted on the Map referenced in Section 5.5.2.3 above and as set forth below:

Street(s)	Minimum Front Setback from Centerline	Maximum Front Setback from Centerline
A Streets—Primary	38.5'	43.5'
B Streets—Secondary	35.5'	40.5'
C Streets—Tertiary	28.5'	33.5'

5.5.2.5 Minimum Build-to Percentage. A minimum of 70% of the building's principal front façade, shall be located within the Build-to Zone.

5.5.2.6 Build-to Zone Modification for Flood Resilience. Where a development incorporates any elements in Section 5.24.1.h of this Ordinance in order to meet the Flood Resilience Standards in Section 22.80 of this Ordinance, the principal front façade of a building may be located outside of the required Build-to Zone to accommodate such elements without being in violation of the Build-to Zone requirements, subject to Planning Board review and approval in accordance with Section 20.1100.3 of this Ordinance.

5.5.2.7 Building Façade Length. As an exception to the Build-to Zone standards above, the principal front building façade of a single building located within the Build-to Zone shall not exceed two hundred (200) feet in length, measured parallel to the street centerline. In the case of a building with a longer frontage, massing recesses shall be provided extending back at least ten (10) feet in depth measured from and perpendicular to the minimum setback line and at least twenty (20) feet in width measured parallel to the minimum setback line so that the maximum length of any unbroken façade within the Build-to Zone does not exceed 200 feet.

5.5.2.8 Design of Front Yards. Front yards shall consist of any combination of landscaped areas and paved areas for pedestrian and bicycle use. Parking shall not be located in front yards and automobile use shall be limited to the following:

5.5.2.8.1 Areas to be devoted to public roadways and on-street parking.

5.5.2.8.2 Access drives to off-street parking and loading facilities located behind or within buildings, as limited by Article 6.000.

5.5.2.9 Elevated Front Projections. Front yards may contain elevated porches, walkways, stairs, and/or ramps projecting from the principal building façade that provide a transition from the pedestrian realm at the sidewalk Grade and portions of the Ground Story that are elevated in accordance with the Flood Resilience Standards of Section 22.80 of this Zoning Ordinance.

5.5.3 Minimum Ground Story Height. Within 50 horizontal feet of the principal front façade of a building, the Ground Story shall have a minimum height of 18 feet in order to be suitable for a range of Neighborhood Uses, whether or not Neighborhood Uses are initially proposed to occupy such spaces.

5.5.4 Limitations on Structured Parking. Portions of a building located within 20 feet of the principal front façade shall contain principal uses as permitted in the district and shall not contain structured parking except as follows:

(a) Structured parking in Stories Below Grade shall be permitted.

(b) Structured parking in Stories Above Grade shall be permitted, so long as the parking is screened from view from adjacent public streets.

(c) On buildings that front more than two streets, the limitations of this Paragraph shall only be required for two front façades.

(d) The Planning Board may grant a waiver of the requirements of this Paragraph in the case of a pooled or principal use parking facility serving the district as a whole in accordance with Section 20.1100.6.3 below.

5.5.5 Entrances. Each principal use within a building shall have one or more pedestrian access/egress point(s) located at the Ground Story of a façade with direct access to a public sidewalk or open space. Pedestrian access to a building shall not require crossing a vehicular parking or loading area. Pedestrian crossings of access drives shall conform to City standards for pedestrian crossings of vehicular ways.

5.5.6 Fences. No fence shall be permitted within twenty-five (25) feet of a required front yard that is more than four (4) feet in height from the curb level of the street or more than thirty (30) percent opaque. Chain-link and wire fences shall be prohibited.

5.5.7 Curb Cuts. Only one curb cut of a maximum of forty (40) feet shall be permitted per one hundred (100) linear feet of street frontage in the Parkway Overlay District. Wherever possible, curb cuts should be on local streets rather than arterial roadways and in no case shall a curb cut be allowed within one hundred (100) feet of an intersection unless the lot contains less than one hundred and twenty-five (125) feet of street frontage. Nothing in this provision shall apply to the creation of curb cuts in order to accommodate a new public street.

5.5.8 Street Tree Planting. New buildings shall incorporate street tree plantings at regular intervals of no more than thirty (30) feet apart along the street frontage of the lot.

Specifications of the required planting shall be subject to review and approval by the Department of Public Works prior to the issuance of a Building Permit. The required planting intervals may be modified as-of-right to the extent necessary to prevent conflicts with infrastructure, subject to a determination by the Department of Public Works.

5.5.9 Side and Rear Yards.

5.5.9.1 Side Yard Setback. There shall be no minimum side yard setback within the first sixty-five feet (65') of the front of the lot, measured from the rear edge of the build-to zone to the rear lot line. The minimum side yard setback thereafter shall be fifteen (15) feet.

5.5.9.2 Rear Yard Setback. There shall be no minimum rear yard setback in the AOD-Q district.

5.5.9.3 Waiver of Yard Requirements. Upon issuing a special permit, the Planning Board may waive any side and/or rear yard requirements, provided that the open space requirements of Section 20.1100.5.4 are met.

5.6 Other Standards

5.6.1 Environmental Performance Standards. The requirements of Article 22.000 of this Zoning Ordinance shall apply.

20.1100.6 Off-Street Parking, Bicycle Parking, and Loading. The requirements of the base zoning district as set forth in Article 6.000 of the Zoning Ordinance shall apply except as set forth below.

6.1 Minimum Parking Requirements. There shall be no minimum required accessory off-street automobile parking for permitted principal uses.

6.2 Maximum Parking Requirements. The maximum accessory off-street parking allowed for permitted principal uses shall be determined by applying the rates set forth below to each use on a lot or Development Parcel and taking the summation of the result for all uses. For any use not listed below, the maximum parking ratio set forth in Article 6.000 for the base zoning district shall apply. Exceeding the maximum allowed parking shall require a waiver of maximum parking under the general provisions of Article 6.000.

(a) Maximum of 1.5 spaces per 1,000 square feet of GFA for Retail and Consumer Service Uses as listed in Sections 6.36.5 and 6.36.6 of the Schedule of Parking and Loading Requirements.

(b) Maximum of 1.1 spaces per 1,000 square feet of GFA for Office Uses as listed in Section 6.36.4, lines a. through e. of the Schedule of Parking and Loading Requirements.

(c) Maximum of 0.8 spaces per 1,000 square feet of GFA for Technical Office for Research and Development Uses as listed in Section 6.36.4, line f. of the Schedule of Parking and Loading Requirements.

(d) Maximum of 0.5 spaces per 1,000 square feet of GFA for Industrial Uses as listed in Sections 6.36.7 and 6.36.8 of the Schedule and Parking and Loading Requirements.

(e) Maximum of 0.75 spaces per Dwelling Unit for Residential Uses as listed in Section 6.36.1, lines a. through h. of the Schedule of Parking and Loading Requirements.

6.3 Pooled or Principal Use Parking. The Planning Board may, by special permit, allow accessory parking serving one or more lots or Development Parcels to be located in whole or in part in pooled parking facilities within the AOD-Q District, notwithstanding the limitations set forth in Section 6.22.1. The Planning Board may also, by special permit, allow a principal use parking facility as a component of a mixed-use PUD development. In either case, the number of parking spaces in the facility or facilities (whether accessory or principal) shall not exceed the maximum parking requirements for all other principal uses on the lots or Development Parcels, and the Planning Board must find that the provision of parking in a pooled facility: (1) Helps to advance the objective of the Alewife District Plan; (2) Aids in implementation of effective Transportation Demand Management measures to reduce dependence on the single occupancy automobile; (3) The facility is appropriately located to serve the development it serves; and (4) The facility is well designed, does not diminish the pedestrian-friendly quality of the area around it, and is otherwise consistent with the Alewife Design Guidelines.

6.4 Off-Street Loading Requirements. Development in the AOD-Q district shall provide off-street loading as set forth in Section 6.80 of the Zoning Ordinance except that the Planning Board may, upon issuing a special permit, waive any requirements for the amount, location and design of loading facilities, and may permit loading facilities to be shared across various uses and lots within the AOD-Q District, upon finding that such waiver would reduce the negative impacts of loading activities on the public realm. The special permit may include conditions to ensure this criterion is met.

20.1100.7 Infrastructure.

7.1 Purpose. The purpose of this Section 20.1100.7 is to ensure that new commercial development contributes to the financing of major infrastructure projects that are necessary to support the sustainable growth of the AOD-Q district and provide greater connectivity to encourage walking and biking as primary modes of transportation.

7.2 Fund Contribution. A developer shall be required to make a contribution of twenty dollars ($20) per square foot of non-residential GFA developed by special permit in excess of the FAR and GFA limitations of the base zoning district to the City of Cambridge to fund public infrastructure improvements supporting the Alewife area. This contribution shall not be required for a PUD developer constructing a major public infrastructure improvement as set forth below.

7.3 Major Infrastructure. A PUD developer seeking to employ the FAR and height allowances for an "Infrastructure PUD" as set forth in section 20.1100.5.1.1 and 20.1100.5.2.2 shall include the construction of one of the following public infrastructure improvements as a component of the Development Proposal.

(a) A publicly-accessible connection across the railroad right-of-way generally between the AOD-Q District and the AOD-6 District, providing, at a minimum, pedestrian and bicycle access to the MBTA Alewife Red Line Station by way of Cambridgepark Drive.

(b) An MBTA Commuter rail station and required associated improvements (including, but not limited to, access areas, landing areas, lighting, and landscaping) serving the Alewife district.

7.3.1 Approval of Major Infrastructure. When approving a Final Development Plan for an Infrastructure PUD, the Planning Board shall find that the location and function of the infrastructure component supports the vision described in the Alewife District Plan (2019) and that it will be designed and constructed in a manner that conforms to applicable standards to support its function.

7.3.2 Timing of Major Infrastructure Completion. For an Infrastructure PUD, the Phasing Plan shall include the timeline for completion of the infrastructure component. In general, the infrastructure component shall commence construction before the issuance of a certificate of occupancy for over 50% of the non-residential GFA and must be substantially completed before the issuance of a certificate of occupancy for over 75% of the non-residential GFA of an approved Final Development Plan. The Planning Board may approve adjustments to the timing as necessary due to factors beyond the control of the developer. For the purpose of this paragraph, "substantially completed" shall mean that construction work has been finished and access has been provided to the City of Cambridge, the Massachusetts Bay Transportation Authority (MBTA), and/or any other applicable public permitting agencies to inspect and authorize the infrastructure for public use.

20.1100.8 Development Review.

8.1 Advisory Review. The AOD-Q District shall be considered an Area of Special Planning Concern. Development proposals listed in Subsection 19.42 and 19.43 - Development Consultation Procedures, shall be subject to the Development Consultation Procedure specified in Section 19.40, except as modified below.

8.2 Staff Advisory Consultation. In addition to the provisions of Section 19.42.1, the Staff Advisory Consultation procedure shall be required of any project that includes the rehabilitation of at least 2,000 square feet of GFA within an existing building to accommodate a new use.

8.3 Public Advisory Consultation. A Public Advisory Consultation shall be required for any development proposal involving the construction of a new building or new structure or an alteration of an existing building or structure that increase the gross floor area by two thousand (2,000) square feet but is not seeking a special permit.

8.3.1 The Public Advisory Consultation procedure shall be conducted by the Planning Board.

8.3.2 Before applying for a development consultation with the Planning Board, applicants for the Public Advisory Consultation Procedure shall first consult with Community Development Department staff to discuss the procedure and to receive advisory input on the proposal.

8.3.3 Notice of the development consultation with the Planning Board shall be provided to parties as set forth in Section 19.43.3 and members of the public shall have the opportunity to comment to the Planning Board in writing prior to the consultation or in real-time during the consultation.

8.3.4 The development consultation shall be held within 65 calendar days of the Community Development Department receiving a complete set of application documents. A final report shall be issued to the applicant within 30 days of the development consultation, and shall be provided to the Superintendent of Buildings prior to issuance of a building permit.

8.4 Special Permit Review.

8.4.1 Procedures. Except in the case of PUD special permits, all special permit applications for uses or development in the district shall be made to the Planning Board and shall follow the procedures set forth in Section 10.40 of the Zoning Ordinance.

8.4.2 Project Review. Where a proposal meets the thresholds for a Project Review Special Permit in Section 19.20 of this Zoning Ordinance, the requirements and procedures set forth in Section 19.20 shall apply.

8.4.3 Criteria. In addition to the criteria in Section 10.43 of the Zoning Ordinance and other criteria specific to the special permit being sought, the Planning Board shall grant a special permit only if it finds that the following general criteria are met:

(a) The proposal supports the purpose of the AOD-Q District.

(b) The proposal is generally consistent with the vision and goals of the Envision Alewife District Plan (2019) and the Principles of the Alewife Zoning Working Group (2023).

(c) Development plans are in general conformance with the Alewife Design Guidelines (2023) and the Citywide Urban Design Objectives in Section 19.30 of this Zoning Ordinance. The Planning Board may grant special permits for development that deviates from specific design guidelines if the Board finds that the proposal, on the whole, advances the intent of those guidelines.

8.5 Planned Unit Development (PUD) Review.

8.5.1 Purpose. The purpose of the PUD permitting process in the AOD-Q district is to encourage larger-scale development to take a comprehensive, long-range approach to planning and development that incorporates a balanced mix of private uses and

public amenities that support the City's planning objectives for the area. It offers a streamlined permitting process for developers with flexibility to adapt to changes over time, subject to ongoing oversight by the Planning Board.

8.5.2 Requirements for a PUD in the AOD-Q District.

8.5.3 Development Parcel.

8.5.3.1 A PUD Development Parcel may contain one or more contiguous or noncontiguous lots or portions of lots located within the AOD-Q District.

8.5.3.1 A developer may include a lot or Development Parcel that has previously received a Planning Board special permit into the Development Parcel for a new PUD Development Proposal. If a new PUD special permit is granted, then the conditions of the new PUD special permit shall supersede the conditions of previous special permits issued for that lot or Development Parcel.

8.5.3.2 The minimum size of a Development Parcel shall be the greater of (1) one acre or (2) seventy-five percent of the area of a lot or combination of lots in the AOD-Q District (a) in existence as of June 1, 2023 and (b) held in common ownership or under common control as of the aforementioned date where it is proposed to incorporate any portion of such lot or lots within the Development Parcel.

8.5.4 Development Controls. Development seeking a PUD Special Permit under this Article shall conform the General Development Controls set forth in Section 12.50 of this Zoning Ordinance and all development controls applicable to PUD Development Proposals in the AOD-Q District as set forth elsewhere in this Section 20.1100, including but not limited to requirements for Neighborhood Uses, residential uses, open space, and infrastructure contributions.

8.5.5 Procedures. Review and approval of a PUD Special Permit shall generally follow the procedures set forth in Article 12.000 of the Zoning Ordinance, except as set forth below.

8.5.5.1 Development Proposal Submission. In addition to the requirements for a Development Proposal set forth in Article 12.000, a Development Proposal shall contain a list of special permits being sought, all other forms and documentation required for the special permits being sought, and a narrative describing factual characteristics of the proposal that demonstrate how it meets the applicable special permit criteria. A Development Proposal shall also contain the following information depending on whether it takes the form of a one-phase site development proposal or a phased development plan, as set forth in more detail below.

8.5.5.2 One-phase Site Development Proposal. A Development Proposal for the development of one or more buildings on a single site within one uninterrupted

phase of construction shall include plans and information consistent with the submittal requirements for a Project Review Special Permit as set forth in Section 19.20 of this Zoning Ordinance.

8.5.5.3 Phased Development Plan. A Development Proposal for the development of multiple buildings on multiple contiguous or non-contiguous sites in distinct phases over time shall include the following materials in schematic form, but need not include detailed design drawings for each development site:

(a) Site Development Plan - describing how the Development Parcel is divided into distinct building sites, streets, and open spaces and showing the locations and conceptual designs of streets, open spaces, and other site infrastructure, including cross-sections and elements such as paving, plantings, grading, and other major site features;

(b) Development Program - summarizing the major development characteristics of the Development Proposal including proposed land uses, proposed Gross Floor Area by categories of land use, number of dwelling units, parking spaces, loading bays, long-term and short-term bicycle parking spaces, and open space, both for the Development Parcel at an aggregate level and for each component building site, presented in tabular form;

(c) Site Massing Plan - illustrating the height and massing of building volumes for each proposed building site, including the massing of mechanical equipment located above the roofs of buildings, and including studies of anticipated shadow impacts;

(d) Parking and Loading Plan - identifying the locations, sizes, and number of spaces of all vehicle parking facilities, bicycle parking facilities, and facilities for loading or other vehicular service functions, and an operations plan describing how the facilities will be assigned and managed;

(e) Connectivity Plan - illustrating all pedestrian, bicycle, and vehicular circulation routes, their connections to nearby public circulation routes and destinations outside the Development Parcel, and approximate locations of access and egress points on each building and parking facility;

(f) Open Space Plan - illustrating and quantifying the areas of all proposed open space and the ownership and designation of each area, as well as descriptions of major design elements and themes to be incorporated into each space and the types of uses and activities that could be accommodated in each space, including areas that will be designated for programmed uses;

(g) Ground Floor Tenanting and Activation Plan - illustrating the conceptual arrangement of uses at the ground story of each building site, in particular Neighborhood Uses, residential and office lobbies, utility spaces, and plans

for programming and activating those spaces including a report from a specialist describing strategies for recruiting and supporting tenants in a manner that will support the goals of the district;

(h) Neighborhood Uses and Open Space Advisory Committee Plan - For development seeking an Infrastructure PUD special permit, a plan shall be submitted for the formation of an advisory committee consisting of neighborhood residents and stakeholders to provide input and guidance in the planned programming of the required Public Open Space and Neighborhood Uses included in the PUD development. The details of the committee and how input will be solicited throughout the build-out of the PUD shall be made part of the Planning Board's approval of the Final Development Plan.

(i) Housing Plan - providing the approximate number and mix of housing unit types proposed on each residential site;

(j) Phasing Plan - describing the general sequence and timeline for the detailed design and construction of all major project elements, including buildings, landscaping, streets, and utilities, and the completion or conveyance of any public infrastructure or property interests;

(k) Sustainability Plan - describing (i) how the sustainability requirements of Section 22.20 will be met and (ii) expected greenhouse gas emissions from the development and strategies employed to improve energy efficiency and support renewable energy production through individual building design and by utilizing existing or new district-wide energy systems, with reference to the recommendations of the City's Net Zero Action Plan;

(l) Resilience Plan - describing (i) how the Flood Resilience Standards of Section 22.80 and the Green Factor Standard of Section 22.90 will be met, (ii) general conformance with the Resilience Objectives in Section 19.38 of the Zoning Ordinance, and (iii) broader strategies to promote resilience within individual building sites and within the district as a whole, including natural stormwater management systems, increased vegetation and shade, and measures to withstand and recover from extreme climatological events, with reference to the recommendations of the Resilient Cambridge plan;

(m) Transportation Plan - incorporating: (i) a Transportation Impact Study required by Section 19.20; (ii) a Shared Parking Study that identifies opportunities for reducing the total amount of parking required to serve all uses through the sharing of parking spaces by multiple uses; (iii) a study of the impacts of increased demand on public transportation services in the Alewife area; (iv) a description of the development's relationship to future regional rail, bus, pedestrian/bicycle, and other transportation system connections in the area; and (v) a Transportation Demand Management and Mitigation program describing measures to offset or mitigate the development proposal's impacts on transportation systems, including but not limited to impacts of truck traffic and loading activities;

(n) Environmental Comfort Plan - providing professional assessments of the impacts of the development on neighboring properties and the general public in terms of excessive noise, lighting, wind, and shadows, and describing measures taken to mitigate such impacts through building location and massing, arrangement of uses, screening, and other building and site improvements; and

(o) Architectural Character Plan - describing general approaches to the design of buildings, landscaped areas, streets, and pathways, identifying the type of visual character that the development will aim to achieve, with the expectation that specific designs of individual buildings and spaces will be reviewed in further detail as they are developed.

8.5.5.4 Preliminary Approval of a Development Proposal. After holding a preliminary public hearing in accordance with Section 12.35 of this Zoning Ordinance, the Planning Board shall make a Preliminary Determination to authorize the submission of a Final Development Plan if the Development Proposal is found to be in general conformance with the special permit criteria in Section 20.1100.8.4.3 above and the PUD approval criteria in Section 12.35.3 of this Zoning Ordinance, provided that the Final Development Plan is modified or improved in response to comments set forth in the Preliminary Determination.

8.5.5.5 For a Phased Development Plan, the Planning Board shall also determine whether the proposed Phasing Plan will ensure that the purpose of this Section 20.1100 will be met over the duration of the development period, and that the mix of permitted uses and public benefits will be provided in a balanced and complementary way over time. The Planning Board may request changes to the Phasing Plan as part of a Final Development Plan submission.

8.5.5.6 Final Development Plan Submission. The Final Development Plan submission shall include all materials included in the Development Proposal, revised as appropriate, plus a narrative describing how the revisions respond to the comments set forth in the Preliminary Determination.

8.5.5.7 Final Development Plan Approval. The Planning Board shall grant a PUD special permit to approve the Final Development Plan, with conditions as set forth below, upon finding that it contains the modifications or improvements requested in the Preliminary Determination, and that the resulting plan is in conformance with the special permit criteria in Section 20.1100.8.4.3 above and the PUD approval criteria in Section 12.35.3 of this Zoning Ordinance. The Planning Board may simultaneously grant any other special permits required as part of the Final Development Plan approval upon finding that the criteria specific to those special permits are met.

8.5.5.8 Conditions. The conditions of a PUD special permit shall set forth the approved program of development and uses and other requirements to ensure that the criteria for approval are met, including but not limited to: Neighborhood

Uses, housing, open space, infrastructure and transportation improvements, mitigation and monitoring of transportation and other adverse public impacts, and project timeline and phasing.

8.5.5.9 Amendments. An approved Final Development Plan, or the conditions of a PUD special permit approving that Final Development Plan, may be amended in accordance with Section 12.37 of this Zoning Ordinance. The conditions of a PUD special permit may set forth detailed provisions for the Planning Board's consideration of future proposed amendments.

(Ord. No. 2023-5, 9-11-2023; Ord. No. 2025-1, 2-10-2025; Ord. No. 2025-2, 2-10-2025)

20.1200 EAST CAMBRIDGE COMMUNITY ENHANCEMENT OVERLAY DISTRICT

20.1201 Establishment and Scope.

There is hereby established the East Cambridge Community Enhancement Overlay District ("ECCE Overlay District"), which is governed by the regulations and procedures specified in this Section 20.1200. It is the intent of this Section that these regulations will apply to land within the ECCE Overlay District.

20.1202 Purpose.

It is the purpose of the ECCE Overlay District to augment base zoning by promoting additional development that will improve the edge of the district adjacent to Ahern Field, improve the pedestrian experience within the zoning district, and provide support for community services in East Cambridge. The ECCE Overlay District will facilitate the conversion of older industrial properties into more environmentally friendly and sustainable structures consistent with current City standards while achieving the aforementioned purposes. A project meeting the requirements of this Section 20.1200 will promote high quality development and the goals of public health, safety, welfare and economic development.

20.1203 Applicability.

Development in the ECCE Overlay District shall be controlled by the regulations governing the Industry A-1 District, except as modified by the requirements of this Section 20.1200, which shall apply in lieu of the regulations of the Industry A-1 District. Where the regulations applicable to non-residential uses in the Industry A-1 District differ from the requirements of this Section 20.1200, the provisions of this Section shall apply; however, the requirements of the underlying zoning district shall apply to residential uses where they are less restrictive than the requirements of this Section. The ECCE Overlay District shall be established on the Zoning Map of the City of Cambridge pursuant to the provisions of Section 3.20. A project that is subject to an ECCE Overlay Special Permit, as defined in Section 20.1204, shall not be subject to the provisions of the Eastern Cambridge Housing Overlay District (Section 20.40) ("ECHO District").

20.1204 Procedure.

Construction, use, and development of new buildings under this Section shall be authorized by Special Permit granted by the Planning Board ("ECCE Overlay Special Permit"). In granting an ECCE Overlay Special Permit, the Planning Board shall find that the intent and purpose of this Section has been satisfied.

20.1205 Permitted Uses.

Uses permitted in the ECCE Overlay District shall be governed by the base zoning district. In addition, preschool, day care centers, and kindergarten uses shall be permitted without further zoning relief for development that obtains an ECCE Overlay Special Permit under this Section 20.1200.

20.1206 Dimensional Requirements.

20.1206.1 Permitted Floor Area Ratio

The maximum Floor Area Ratio for non-residential uses within the ECCE Overlay District shall be governed by the requirements of this Section 20.1206.1:

(1) Permitted Existing Floor Area Ratio. The maximum permitted Floor Area Ratio for each new or expanded building on a lot within this ECCE Overlay District shall not exceed the permitted Floor Area Ratio shown in the following table:

Street Address	Permitted Floor Area Ratio for Non-residential uses
320 Bent Street	1.25, subject to the provisions of the ECHO District.
301 Binney Street/157 Sixth Street	1.25, subject to the provisions of the ECHO District.
320 Charles Street	1.25, subject to the provisions of the ECHO District, but increasing to 2.8 with an ECCE Overlay Special Permit.

(2) Permitted Additional Floor Area Ratio. A project seeking an ECCE Overlay Special Permit will qualify for additional non-residential Floor Area Ratio beyond what is permitted by underlying zoning where the project will provide at least one of the following community services support alternatives: (1) enhancements to the Sixth Street corridor within the zoning district for the benefit of pedestrians and/or cyclists; (2) streetscape improvements along Charles Street to improve the pedestrian environment; or (3) improvements (or funding for the same) to the public Ahern Field facilities located on Charles Street.

20.1206.2 Building Height.

The maximum Building Heights within the ECCE Overlay District shall be governed by the requirements of underlying zoning except as otherwise provided in this Section 20.1206.2.

(1) Existing Building Height. The maximum Building Height for each new or expanded building or portion of a building occupied by non-residential uses on a lot within this ECCE Overlay District shall not exceed the permitted maximum Building Height shown in the following table:

Street Address	Maximum Building Height for Non-residential uses
320 Bent Street (tax parcel 31-15)	45 feet, subject to the provisions of the ECHO District.
301 Binney Street (tax parcel 31-13)	45 feet, subject to the provisions of the ECHO District.
320 Charles Street (tax parcel 32-53)	45 feet, subject to the provisions of the ECHO District, but, with an ECCE Overlay Special Permit, increasing to 65 feet except where the height shall be limited to a maximum of 50 feet and three stories above grade on portions of lots that are located: (a) within a distance of 60 feet from the street line of Charles Street; or (b) within a distance of 20 feet from the street line of Fulkerson Street; or (c) within a distance of 50 feet from the street line of Sixth Street.

(2) Permitted New Building Height. A project seeking an ECCE Overlay Special Permit will qualify for additional height for non-residential uses beyond what is permitted by underlying zoning where the project will provide at least one of the following community services support alternatives: (1) enhancements to the Sixth Street corridor connecting Kendall Square to the East Cambridge neighborhood for the benefit of pedestrians and/or cyclists; (2) streetscape improvements along Charles Street to improve the pedestrian environment; or (3) improvements (or funding for the same) to the public Ahern Field facilities located on Charles Street.

In granting an ECCE Overlay Special Permit, the Planning Board shall have the discretion to waive the requirements of Section 19.56(5) with respect to the portion of the façade of a proposed building that fronts only on Bent Street.

Appropriate screening for any rooftop mechanical equipment shall be provided in compliance with Section 19.58 to the fullest extent permitted by the applicable provisions of the building code. Notwithstanding Section 5.23, the height of any Roof Top Mechanical Penthouse under an ECCE Overlay Special Permit shall be limited to twenty-three (23) feet above the maximum allowable building height under this Section 20.1206.2 (as affected by the provisions of Section 5.23.2, if applicable), except that such height may be exceeded by solar energy systems, green roof area, or private open space, and the Planning Board may

approve individual pieces of equipment to exceed that height to meet applicable building codes and specifications to ensure functionality. "Roof Top Mechanical Penthouse" is defined as an enclosed space housing mechanical systems, air conditioning equipment, elevator bulkheads, ventilation systems, or other necessary features normally built above the roof and not used for human occupancy.

20.1206.3 Setbacks.

There shall be no minimum required front, rear, or side yard setbacks, except as set forth in the base zoning district and in Section 20.1206.3. With an ECCE Overlay Special Permit, the setback rules set forth in Sections 5.23.1.1, 5.34, 19.52, and 19.58(1) are not applicable and setbacks for buildings or portions of buildings occupied by non-residential uses shall be as follows:

(1) Mechanical equipment shall not be located within any required setback. Where no setback is required, all mechanical equipment carried above the roof shall not be located closer than 10 feet to any property line abutting a residential district or open space district (whether or not across the street) or it shall be entirely contained within the building. This Paragraph (1) shall not apply to electrical equipment whose location is mandated by a recognized public utility.

(2) No rear or side yard setbacks shall apply where a lot abuts streets on all sides. However, any project obtaining an ECCE Overlay Special Permit shall conform to the following setbacks and stepbacks:

Front Yard and Mechanical Penthouse Setback for Parcels with Frontage on Charles Street:

(a) The minimum front yard setback for any development with frontage along Charles Street shall be 15 feet measured from the street line.

(b) No portion of any Roof Top Mechanical Penthouse may be located within 90 feet of the Charles Street street line.

Front Yard and Mechanical Penthouse Setback for Parcels with Frontage on Fulkerson Street:

(a) The minimum front yard setback for any development with frontage along Fulkerson Street shall be 10 feet measured from the street line.

(b) No portion of any Roof Top Mechanical Penthouse may be located within 50 feet of the Fulkerson Street street line.

Front Yard and Mechanical Penthouse Setback for Parcels with Frontage on Sixth Street:

(a) The minimum front yard setback for any development with frontage along Sixth Street shall be 20 feet measured from the street line.

(b) No portion of any Roof Top Mechanical Penthouse may be located within 65 feet of the Sixth Street street line.

Additional Setbacks for Corner Lots on Charles and Sixth Streets:

(a) Within a distance of 90 feet from the street line of Charles Street, no building may be located within a distance of 40 feet from the Sixth Street street line.

(b) Within a distance of 100 feet from the street line of Sixth Street, no building may be located within a distance of 35 feet from the Charles Street street line.

Any part of the perimeter of a project subject to an ECCE Overlay Special Permit that fronts on an existing street or Public Open Space should be so designed as to complement and harmonize with adjacent land uses with respect to scale, density, setback, bulk, height, landscaping, and screening, as determined by the Planning Board.

20.1207 Open Space.

The minimum open space shall be governed by the base zoning district and as described in Section 20.1207. Open space to be constructed as part of a proposed project under an ECCE Overlay Special Permit shall include, without limitation, the following: parks; plazas; lawns; landscaped areas substantially open to the sky; playgrounds; balconies; roofs developed for private or public recreational or leisure usage; pedestrian ways such as bridges, decks, arcades, loggias, and gallerias as specified by the Planning Board; and such other areas or spaces determined, or approved, by the Planning Board to be open space.

Any project obtaining an ECCE Overlay Special Permit shall include at least 20% of the lot as open space, and, if located with a front yard on Charles Street, shall include a minimum of 14,000 square feet of open space fronting on Charles Street, subject to Planning Board approval of the final location and configuration.

20.1208 Off Street Parking, Bicycle Parking, and Loading.

There shall be no minimum required off-street parking in the ECCE Overlay District. Off-street parking shall not exceed the maximum off-street parking ratio provided by the base zoning district and shall not exceed a ratio of 0.8 spaces per 1,000 square feet of Gross Floor Area for technical office for research development laboratory or research facility use as listed in Section 4.34(f). Bicycle parking and loading requirements shall be as set forth in Article 6.000 for the base zoning district.

In granting an ECCE Overlay Special Permit, the Planning Board may waive any requirements for the amount, location, and design of loading facilities within the ECCE Overlay District and may permit loading facilities to be shared across various uses within the ECCE Overlay District.

20.1209 Other Dimensional Requirements.

Frontage, lot size, and lot width shall be governed by base zoning. Except as set forth in this Section 20.1200, there shall be no minimum building setbacks or other minimum or

maximum building dimensional requirements other than as provided by this Section 20.1200; however, all dimensional characteristics of a project built under an ECCE Overlay District Special Permit shall be subject to review and approval by the Planning Board.

20.1210 Special Permit Criteria.

The Planning Board, in granting an ECCE Overlay Special Permit under this Section 20.1200, in addition to the criteria in Section 10.40 and the criteria applicable to other special permits being requested, shall find that the proposed development:

A. Provides support for community services to East Cambridge;

B. Enhances the pedestrian and bicycle corridors serving Ahern Field by improving the streetscape with landscaping and outdoor activities;

C. Facilitates a transition between the concentration of lab buildings in Kendall Square to the low-rise character of the well-established East Cambridge neighborhood;

D. Addresses concerns for the overall design of the building and site, including screening of mechanical systems, managing light spill at night, locating loading docks away from pedestrians, cyclists, and street traffic to the extent practicable, and minimizes net new shadow cast across Ahern Field;

E. Is generally consistent with (a) the policy objectives set forth in the then current Eastern Cambridge Plan and Envision Cambridge and (b) the guidance provided in the Eastern Cambridge Design Guidelines, as affected by this terms of this Section 20.1200 (e.g., where the Eastern Cambridge Design Guidelines conflict with this Section 20.1200, the provisions of this Section 20.1200 shall govern);

F. Incorporates a façade design that avoids blank walls on Charles Street, Sixth Street, and Fulkerson Street and excessive inactive frontage along those streets, possibly by providing for active programming for the ground floor of commercial development such as a publicly-accessible community space and/or restrooms;

G. Either on site, or through enhancements to Ahern Field, provides for passive open space with seating, plantings, trash bins, and bike racks that complement use of Ahern Field; and

H. Will comply with applicable provisions of Sections 22.20, 22.30, and 22.90, to the extent required.

20.1211 Authorized Modifications.

In granting an ECCE Overlay Special Permit, the Planning Board may explicitly authorize, in writing, future modifications such as additional Retail or Consumer Service Establishment uses that are permissible in the zoning district or other specific future modifications to the approved development plan, without requiring a future amendment to the Special Permit and subject to any conditions the Planning Board deems necessary to ensure that the requirements of this Section and other applicable sections of the Zoning Ordinance are met.

20.1212 Letter of Commitment.

Issuance of any base building permit or certificate of occupancy for any new building in the ECCE Overlay District approved pursuant to a Special Permit granted under this Section 20.1200 shall be conditioned on certification by all relevant departments of the City to the Superintendent of Buildings of the City of Cambridge that the building is proceeding in accordance with that certain Letter of Commitment dated August 4, 2025.

(Ord. No. 2025-10, 8-4-2025)

ARTICLE 21.000 TRANSFER OF DEVELOPMENT RIGHTS REGULATIONS

21.10 TRANSFER OF DEVELOPMENT RIGHTS (TDR)—GENERAL PROVISIONS
21.20 EASTERN CAMBRIDGE DEVELOPMENT RIGHTS TRANSFER DISTRICT (TDD and TRD)
21.30 SPECIAL DISTRICTS 8, 8A, 9 and 10
21.40 ALEWIFE OVERLAY DISTRICTS Q, 5 AND 6

21.10 TRANSFER OF DEVELOPMENT RIGHTS (TDR)—GENERAL PROVISIONS

21.11 *Purpose*. It is the intent of this Article 21.000 to establish regulations by which Gross Floor Area (GFA) permitted on one lot or lots, as determined by the zoning district applicable to that lot [the Donating Lot(s)], may be transferred and used on another lot or lots [the Receiving Lot(s)] in the same or different zoning district in order to (i) introduce a level of flexibility into the development of designated areas in the city in ways that construction on one lot at a time cannot accomplish, (ii) allow multiple owners to coordinate development on small lots that may not be contiguous, (iii) facilitate the implementation of urban design and other planning objectives, particularly in contexts where there may be many, small lots and multiple property owners, and (iv) to allow development to respond to market forces and infrastructure patterns in ways that further public transportation and urban design objectives. The restrictions that otherwise apply in the Zoning Ordinance restricting development to a single lot in single ownership shall be modified by the regulations contained in this Article 21.000.

21.12 *Establishment and Scope*. The Transfer of Development Rights may be secured through the provisions of a (1) a Development Rights Transfer Overlay District designated from time to time on the Zoning Map or (2) through the provisions of an Overlay District, having multiple regulatory objectives or through the provisions of a Special District. The Transfer of Development Rights shall be regulated by the general provisions of this Section 21.10 and by specific provisions established for each individual district.

21.13 *Procedure*. The transfer of GFA from a Donating Lot to a Receiving Lot shall be permitted by special permit from the Planning Board and shall be subject to further provisions set forth below in Section 21.13.1. The transfer shall be permitted between contiguous and non-contiguous lots that may be held in common or separate ownership, notwithstanding any definition of lot or owner set forth in Article 2.000 of this Ordinance or elsewhere in the Ordinance.

21.13.1 Special Permit Procedures.

21.13.11 Required Information. In applying for a special permit to permit the transfer of GFA from one or more Donating Lots to one or more Receiving Lots, the following information shall be provided:

1. The location of all Donating Lots and all Receiving Lots.
2. Enumeration of the GFA to be transferred, GFA to be retained on the Donating Lot, and the total GFA to be accommodated on the Receiving Lot; the calculations by which the proposed GFA on all sites has been determined.

3. Schematic development plans showing the proposed development on both the Donating and the Receiving lots.

4. A narrative describing the plan's compliance with all requirements of this Section 21.10 and the specific Transfer of Development Rights provisions of other applicable sections of the Zoning Ordinance, consistency with any applicable design guidelines and area plan, and with the Citywide Urban Design Objectives, Section 19.30.

5. The schedule by which necessary demolition will take place and authorized construction will commence and be completed. Where it is proposed to occupy transferred GFA before a Donating Lot has been brought into compliance with the requirements of the special permit, the legal instruments proposed by which the requirements applicable to it will be met.

6. The status of leaseholds for tenants in any GFA on a Donating Lots in structures that are required to be demolished or converted to residential uses, and the mechanisms by which those leaseholds will be terminated and the site brought into compliance with the requirements of the special permit.

21.13.12 Special Permit Conditions. The Planning Board shall establish in its Decision granting a special permit under the provisions of this Section 21.10 conditions that address at a minimum, the following:

1. The sequence by which construction and demolition are to occur on both the Donating and Receiving Lots;

2. The binding commitments to be executed if occupancy of new GFA on the Receiving Lot is to occur before demolition of GFA transferred out from the Donating lot or before new on the Donating Lot.

3. The legal instruments by which a proposed park or other public amenity is to be made available to the general public, where applicable.

4. The process by which final development plans are to be approved by the Planning Board.

21.14 *Reservation of Gross Floor Area by Owners of Donating Lots*. To provide flexibility over time in the utilization of GFA available to be transferred, the Planning Board may issue a special permit to permit the reservation of GFA from a Donating Lot to be applied at a later date to a Receiving Lot through a second special permit process. The reservation may be for any length of time acceptable to the Planning Board.

The Board, in granting the special permit, shall approve the permanent development plan for the Donating Lot.

Substantial Use of such special permit, as required in Section 10.46 of the Zoning Ordinance, shall be that date at which it is filed with the Registry of Deeds for Middlesex County.

The Planning Board may establish such conditions as it deems appropriate to ensure that development on the donating lot is consistent with the conditions of the special permit until the development rights are fully utilized on a future receiving lot.

21.15 *Application for a Building Permit*. Prior to issuance of a building permit for any construction on any Donating or Receiving Lot linked through the issuance of a single special permit, the Superintendent of Buildings shall determine, based on information provided with the application (including a certification from the Community Development Department that all conditions of the special permit are met), that all Donating and Receiving Lots continue to be in conformance with the conditions of the special permit, the provisions of this Section 21.10, and the applicable base zoning districts. Among the information to be provided are the following:

1. An identification of all lots subject to the requirements of a single special permit.
2. A list of all building permits issued for those lots since the granting of the authorizing special permit.
3. The GFA existing and authorized on each lot at the time of the application.
4. An enumeration of the GFA authorized on each lot by the Special Permit.

21.16 *Dimensional Limitations*. Except as may be provided elsewhere in the Ordinance in the individual Transfer of Development Rights Districts and Provisions, all development on both Donating and Receiving Lots shall be subject to the dimensional limitations of the applicable base district with the exception of the FAR limitation. On Receiving Lots, Gross Floor Area may be increased above the FAR limit normally applicable to the extent of GFA transferred from Donating Lots by special permit.

21.20 EASTERN CAMBRIDGE DEVELOPMENT RIGHTS TRANSFER DISTRICT (TDD and TRD)

21.21 *Purpose*. It is the intent of this Section 20.30 to (1) reduce the density of development close to the existing residential neighborhoods and (2) encourage housing construction compatible with the existing residential neighborhoods through the transfer of existing or potential development to other locations. It is also intended to facilitate the construction of additional residential, office, research and development, retail, and manufacturing uses in areas of eastern Cambridge that are close to transit services, and on sites now fully developed that can more effectively serve the city's Urban Design Objectives, as set forth in Section 19.30 of the Ordinance, with additional building construction. For the purposes of this Section 20.30, residential use shall be as defined as uses set forth in Section 4.31 a—h.

21.22 *Establishment and Scope*. There is hereby established the Eastern Cambridge Development Rights Transfer Districts which shall be governed by the regulations and procedures specified in this Section 20.30. These regulations shall apply to areas described below or as they may be otherwise identified on the Zoning Map, which shall be designated as "Eastern

Cambridge Development Rights Transfer Donating District" (TDD) or "Eastern Cambridge Development Rights Transfer Receiving District" (TRD) on the Zoning Map of the City of Cambridge established in Section 3.20.

21.23 *Boundaries of the Districts*. The boundaries of the districts shall be as described below.

1. The Eastern Cambridge Development Rights Transfer Donating District shall be coterminous with the boundaries of the Eastern Cambridge Housing Overlay District (Section 20.40 below) and the portion of the PUD-4B District located north of Binney Street. The Donating District shall be that area from which Gross Floor Area (GFA) is removed for use on a lot in the Receiving District. A Donating Lot shall be a lot in the Donating District from which GFA is removed.

2. The Eastern Cambridge Development Rights Transfer Receiving District shall be (a) that area bounded by the centerlines of Binney Street to the north, First Street to the east, Main Street to the south, and on the west a line parallel to, easterly of, and one hundred and fifty feet distant from the easterly sideline of Portland Street and Cardinal Medeiros Avenue, and (b) that portion of the Industry B zone located south of Main Street and bounded by the centerlines of Albany Street; Massachusetts Avenue; Windsor Street; a line southerly of, parallel to, and one hundred and fifty feet distant from the southerly sideline of Main Street; a line easterly of, parallel to and one hundred and fifty feet distant from the southwesterly extension of the centerline of Portland Street north of Main Street; and then Main Street to the point of beginning . The Receiving District shall be that area where GFA from a Donating Lot is used for development. A Receiving Lot shall be a lot in the Receiving District to which GFA is moved.

21.24 *Procedure*. The transfer of GFA from the Donating District to the Receiving District shall be permitted by special permit from the Planning Board and shall be subject to further provisions set forth below in Section 20.36. The transfer shall be permitted between non-contiguous lots that may be held in separate ownership, notwithstanding any definition of lot set forth in Article 2.000 of this Ordinance.

21.25 *Limitations, Requirements, and Conditions Applicable to Lots in the Sending District*.

21.25.1 Non Residential Gross Floor Area Available for Transfer from a Lot in the Donating District to Any Lot in the Receiving District.

The total GFA that may be transferred from any Donating Lot to any Receiving Lot shall be the greater of the following:

(1) The total amount of non-residential GFA permitted on a lot in any non-residential zoning district in the Donating District at the time of application to permit the transfer, or

(2) The existing amount of non-residential GFA contained on a lot in any zoning district in the Donating District at the time of application to permit the transfer.

21.25.2 Residual Residential Development on a Donating Lot after the Non-residential GFA Transfer has been Authorized. The residential development on any Donating Lot shall conform to the applicable dimensional regulations of the zoning district.

21.25.3 Restrictions on the Donating Lot after Transfer is Authorized.

(1) All non-residential GFA existing or permitted under the zoning district regulations applicable on the Donating Lot, whichever is greater, must be transferred, held for future transfer, or abandoned. No non-residential development potential shall remain on the Donating Lot and no use variance may be granted to reestablish non-residential uses after the transfer of GFA has occurred. Any active non-residential use shall be discontinued.

(2) Development on the Donating Lot is limited to residential use or a public park. All existing gross floor area not redeveloped to residential use shall be demolished where housing is to be established on the site. The entire site shall be cleared if it is to be developed as a public park.

(3) No building or structure determined to be a Preferably Preserved Significant Building by the Cambridge Historical Commission, as provided in Ordinance No. 965 of the Ordinances of the City of Cambridge, may be demolished. Any such building required to remain shall be converted to a permitted residential use.

(4) Notwithstanding the provisions of Paragraphs (1) - (3) above, or other provisions of this Section 20.30, the remaining GFA on a Donating Lot may contain any office or retail use permitted in the applicable base district within the ground story or basement of a building otherwise containing permitted residential uses.

21.26 *Dimensional and Use Limitations on the Receiving Lot*. The GFA transferred from any Donating Lot to a Receiving Lot shall be subject to the following provisions:

(1) The transferred GFA shall not be subject to any FAR or GFA limitations applicable to the receiving lot, including lots which already exceed permitted FAR limits.

(2) Transferred Non-residential GFA may be used for any use permitted on the Receiving Lot. However, where any non-residential use is limited to a maximum percentage of total development on the Receiving Lot or Development Parcel, the transferred GFA shall be subject to that limitation unless the transferred GFA is in addition to, and not a substitute for, the GFA and use limitations otherwise applicable on the Receiving Lot or Development Parcel.

(3) [Deleted]

(4) All other dimensional limitations applicable to the receiving lot shall apply to the transferred GFA.

(Ord. No. 2025-1, 2-10-2025)

21.30 SPECIAL DISTRICTS 8, 8A, 9 and 10

Transfer of Development Rights shall be permitted in Special Districts 8, 8A, 9 and 10 for the purpose of creating open space facilities, pursuant to the general provisions of Section 21.10 above and the following specific requirements.

21.31 *Transfer of Development Rights and/or Additional Height to secure Publicly Accessible Open Space*. The Planning Board may permit the transfer of all of the gross floor area permitted as of right or by special permit on one or more Donating Lots located in Special District 8, Section 17.81, or Special Districts 8A, 9 and 10, Sections 17.82, 17.90 and 17.100, to one or more Receiving Lots located in Special District 8 and may permit in conjunction with that transfer an increase in the permitted height on the Receiving Lot for the purpose of creating an open space facility of approximately fifty-nine thousand (59,000) square feet and such other additions to that space or the creation of other such open space facilities as may be offered that are accessible to the general public and designed and intended to be used for active and/or passive recreation. The special permit shall be granted subject to the following requirements:

1. One open space parcel containing an area of approximately fifty-nine thousand (59,000) square feet, as shown on Lots # 48 and 57 on Assessor's Plat # 95, shall be a Donating Lot and must be secured as an open space as required in this Section 21.30 before any other lot may be considered a Donating Lot; other open space parcels within the Special District 8 or Special Districts 8A, 9 and 10 may also be Donating Lots.
2. The FAR on the Receiving Lot does not exceed 2.5 for nonresidential uses or 3.0 FAR for dormitory use.
3. The Receiving Lot for the one hundred three thousand, two hundred fifty (103,250) gross square feet or more of floor area to be transferred is located in Special District 8.
4. The maximum height of any building or portions of a building containing non-residential uses on the Receiving Lot may be increased subject to the following limitations:
    a. Sixty (60) feet in that area lying between Sidney Street and a line, which line is parallel to, southeasterly of and one hundred (100) feet distant from Sidney Street;
    b. Ninety (90) feet in that area lying between the parallel line described in Paragraph (a) above and Albany Street;
    c. One hundred (100) feet in that area lying southeasterly of Albany Street.
5. The donating site for an open space contribution of approximately fifty-nine thousand (59,000) square feet is located at 82 Pacific Street as shown on lots # 48 and 57, on Assessor's Plat # 95.
6. Open space facilities shall be under the control of, and be programmed and maintained by the City of Cambridge or its designated agent. Transfer of open space

facilities to the City shall be by fee simple conveyance, easement, lease (see Paragraph 8 below) or other legal mechanism, and shall be made as a condition precedent to the issuance of the first building permit for a project on a Receiving Lot which utilizes development rights granted by Special Permit for that project. Special Permits granted under this Section 21.30 shall run with the land.

7. The site is physically suitable for the recreational uses proposed and certified by the City to meet environmental standards such as they are applied to other such open spaces in the City at the time of transfer to the City of Cambridge.

8. If the development rights transferred by the Special Permit to a Receiving Lot are not fully utilized or applied in the construction of a project, the remaining development rights shall remain available for use or application, on a phase by phase basis, on the receiving lot. If development rights are applied by a landowner, on a phase by phase basis, the donating lot (from which the development rights derive) shall be leased, on a completely "net" basis, by the owner of the donating lot to the City of Cambridge, or its designated agent, until such time as the receiving lot has fully utilized or applied the development rights derived from the donating lot. When those development rights are fully utilized or applied, which shall be determined by the issuance of a certificate of occupancy for any building making use of such rights, fee simple title to the donating lot shall be conveyed to the City of Cambridge or its designated agent; in its decision the Planning Board shall determine if fee simple title shall be conveyed in phases as development rights are utilized or applied or when the entire amount of development rights is fully utilized. If development rights are applied or utilized on a phase by phase basis, and if, because of an amendment or other change in the Zoning Ordinance of the City of Cambridge, the owner of the receiving lot is unable to receive the full benefits of those development rights (in the same manner and to the same extent as if the Zoning Ordinance had not been amended or otherwise changed), the lease of the donating lot to the City of Cambridge shall terminate automatically upon the effective date of that amendment or other change in the Zoning Ordinance.

   Any special permit issued under the provisions of this Section 21.30 shall be in force and effect for the length of lease of property for open space purposes as required in this Section 21.30. For the purposes of Section 10.46, the use authorized by any special permit issued under this Section 21.30 shall be deemed to have commenced with the granting of the lease of land for open space purposes as defined in this Paragraph 8.

21.32 *Special Permit Conditions*. In granting a special permit under this Section 17.81.5 the Planning Board shall consider the following:

1. The proposed open space is consistent with the objectives of this Section 21.30 to create a private open space or recreational facility addressing the unmet needs of the adjacent residential neighborhood and those of the new residents of the district and, if one is adopted, is consistent with a plan for the distribution and use of open space in the District.

2. If less than one acre, the open space is clearly an element of a plan to be implemented incrementally created through the issuance of additional special permits, or is clearly acceptable as an independent facility.

    1. If it is intended to be a part of a larger facility, the open space is useable on its own, as an independent facility, if intended future special permits are not sought or granted.

(Ord. No. 2025-1, 2-10-2025)

21.40 ALEWIFE OVERLAY DISTRICTS Q, 5 AND 6

21.41 *Purpose*. It is the intent of this Section 21.40 (i) to reduce the density of development adjacent to the existing residential neighborhood of the Cambridge Highlands; (ii) to encourage greater development density closer to public transit and to facilitate infrastructure improvements that will make those transit services more widely available in the Alewife Overlay Districts; (iii) to facilitate a more orderly development pattern within the Alewife Overlay Districts, including increasing the opportunities for installation of new circulation pathways for pedestrian, bicycles and vehicles; creation of new public or private open space facilities; and development of new pedestrian connections from the Quadrangle to the Triangle; (iv) to make additional land surface available for better stormwater management and increased permeability; and (v) to encourage a more attractive pattern of new buildings consistent with the urban design objectives set forth in the Concord-Alewife Plan.

21.42 *Procedure*. The procedures set forth in Section 21.10 above shall apply to this Section 21.20.

21.43 *Limitations, Requirements, and Conditions Applicable Donating Lots*.

21.43.1 Gross Floor Area Available for Transfer from a Donating Lot to a Receiving Lot.

1. Some or all of the Gross Floor area permitted on the Donating Lot, as determined by the applicable base zoning district regulations, any additional development allowed in Section 20.90 and Section 20.1100 by special permit, and by the provisions of Section 5.28.2 as they apply to existing development on the site, may be transferred to a Receiving Lot.

2. Where any legally established Gross Floor Area existing on the lot at the time of application to permit the transfer exceeds that permitted on the lot, that Gross Floor Area shall be available in whole or in part for transfer to the Receiving Lot.

3. [Deleted]

4. Special Provisions Related to Utility and Railroad Land. As railroad and utility facilities cannot easily be reused for other purposes while the railroad or utility function is active, special limitations shall be imposed for the transfer of any development potential on those sites though the provisions of this Section 21.40. Therefore, Gross Floor Area permitted on a railroad right-of way, railroad freight terminal, railroad yard and shop (Section 4.32 (c)) or utility transformer station, substation, gas regulator station (Section 4.32 (g 2) may not be transferred to any other lot under the provisions of this

Section 21.40 unless the Planning Board finds that the donating lot, after the transfer of GFA, will be substantially improved to the benefit of the general public, consistent with the objectives of the Concord-Alewife Plan. In making that finding the Planning Board shall consider the following:

a. Significant portions of the Donating Lot are redeveloped to housing, technical office uses, or permeable open space as set forth in Section 21.43.2 (1) below.

b. Rights of way or construction of pedestrian and bicycle pathways and roadway segments, elements of the pedestrian bridge across the railroad right of way from the Quadrangle to the Triangle, and water retention/detention systems are provided, consistent with the Plan.

c. The additional GFA on the Receiving Lot can be reasonably accommodated in a positive way with regard to management of the additional traffic created and site and building design proposed in the context of the surrounding pattern of development.

d. In other demonstrable ways the objectives of the Plan are advanced to an extent commensurate with the scale of the GFA transfer being requested.

21.43.2 Restrictions on the Use of the Donating Lot after Transfer is Authorized.

1. Where it is proposed to transfer all development allowed on the Donating Lot, the lot shall be thereafter developed in one of the following ways:

   a. As a Public, Green Area, Permeable or Publicly Beneficial Open Space.

   b. For any residential use permitted in a Residence C-1 District in a building or buildings meeting all the dimensional requirements of the Residence C-1 District.

   c. Any technical office for research and development, laboratory and research facility, Section 4.34 f, in a building or buildings constructed to meet all the dimensional requirements of the Office 1 District. An FAR of 0.75 shall be authorized on the site, in addition to that authorized for transfer to the Receiving Lot. Such additional FAR, however, shall not be granted for transfers of GFA that only occur within the boundaries of a single Overlay District.

      i. Where an existing building has a Gross Floor Area at or below an FAR of 0.75 and is occupied by a Technical office for research and development use, such building and use shall be considered to meet the requirements of this Subparagraph c and the full transfer from the lot of permitted FAR shall be permitted.

2. Where it is proposed to retain some of the development potential on the Donating Lot, either in new construction or in existing buildings, the provisions of the applicable base district and Section 20.90 and Section 20.1100 shall apply to that development.

21.43.3 Dimensional and Use Limitations on the Receiving Lot. The GFA transferred to a Receiving Lot shall be subject to the following provisions:

1. The transferred GFA shall not be subject to any FAR or GFA limitations applicable to the Receiving Lot, including lots that already exceed permitted FAR limits.

2. Transferred Non-residential GFA may be used for any use permitted on the Receiving Lot

3. [Deleted]

4. All other dimensional limitations applicable to the receiving lot shall apply to the transferred GFA.

5. The total GFA transferred shall not exceed twenty (20%) percent of the GFA otherwise permitted on the Receiving Lot when the transfer occurs between two or more Overlay Districts.

21.43.4 Location of Donating and Receiving Lots.

21.43.41 Transfer of Development Rights within a Single Overlay District. Transfer of GFA shall be permitted within the boundaries of a single Overlay District from any Donating Lot to any Receiving Lot. Where a lot is divided by an Overlay District line, all transferred GFA shall be located within that portion of the lot located within the Overlay District.

21.43.42 Transfer of Development Rights Between Two or More Overlay Districts. Where it is proposed to transfer GFA out of one Overlay District into another the following rules shall apply.

1. Those portions of the AOD-Q District west of the centerline of Smith Place shall contain only Donating Lots. Gross Floor Area from these Districts may only be transferred to Overlay Districts enumerated in Paragraphs (2) and (3) below.

2. Those portions of the AOD-Q District east of the centerline of Smith Place, as well as Alewife Overlay Districts 5 and 6 shall contain only Receiving Lots and may receive transferred GFA only from the Donating Lots identified in 21.43.42.1 above.

3. The portions of the AOD-Q North Height Subdistrict shall contain only Receiving Lots and may receive transferred GFA only from the Donating Lots identified in 21.43.42.1 above. However, transferred GFA shall only be permitted if it can be demonstrated to the satisfaction of the Planning Board that there is in place a safe and functional pedestrian connection from the AOD-Q North Height Subdistrict across the railroad tracts generally in the location of Overlay District 6; or that the development authorized by a Transfer of Development Rights Special Permit will provide physical elements or property right interests that will facilitate the construction of such a pedestrian connection in the future, to include but not be limited to: fee, easement or other property interest sufficient to permit the construction of a pedestrian bridge and to permit the

general public access the facility; construction of elements of the bridge on the site or within buildings to be constructed on the site, or actual construction of the pedestrian connection.

(Ord. No. 2023-5, 9-11-2023; Ord. No. 2025-1, 2-10-2025)

ARTICLE 22.000 SUSTAINABLE DESIGN AND DEVELOPMENT

22.10 INTENT AND PURPOSE
22.20 GREEN BUILDING REQUIREMENTS
22.30 GREEN ROOFS
22.40 RESERVED
22.50 RESERVED
22.60 SOLAR ENERGY SYSTEMS
22.70 WIND TURBINE SYSTEMS
22.80 FLOOD RESILIENCE STANDARDS
22.90 GREEN FACTOR STANDARD

22.10 INTENT AND PURPOSE

It is the intent of this Article 22.000 to promote environmentally sustainable and energy-efficient design and development practices in new construction and renovation of buildings in the city. Some of the regulations in this Article include design standards that shall be applied to new construction and renovation projects of a significant size. Other regulations in this Article modify regulations found elsewhere in this Zoning Ordinance in order to encourage the incorporation of specific design features that will improve the sustainability and energy-efficiency of buildings.

22.20 GREEN BUILDING REQUIREMENTS

22.21 *Statement of Purpose*. This Section 22.20 is adopted to ensure that major new projects and substantially rehabilitated buildings in the City of Cambridge are planned, designed and constructed in a sustainable way so as to minimize adverse environmental impacts as they are initially constructed and as they are occupied and operated over the course of their useful lives. It is the purpose of this Section 22.20 to encourage the reuse of existing buildings and materials; to encourage the conservation of natural resources and reduction of toxins in new construction and substantial rehabilitation of existing buildings through selection of recycled and otherwise environmentally appropriate building materials and methods; to ensure a reduction in the use of energy in both the initial construction of the project and in its daily operation; and to encourage an arrangement of buildings and mix of uses, on individual lots and within the city as a whole, that will foster renewable energy generation and pedestrian, bicycle, and public transit use in the city. While the provisions of this section apply to projects of 25,000 square feet or larger, developments of all sizes are encouraged to incorporate sustainable design principles. Notwithstanding the provisions of this Article 22.00, the requirements of all local, state and/or federal regulations applicable to a project must be met, particularly the State Building Code, including its energy components.

22.22 The provisions of these Sections 22.20 through 22.25 shall apply to a Green Building Project as defined in Article 2.000 of this Zoning Ordinance.

22.23 *Authorized Green Building Rating Programs and Green Building Rating Systems.*

22.23.1 *Authorized Green Building Rating Programs*. Any of the following Green Building Rating Programs may be used for the application of these Sections 22.20 through 22.25:

(a) the Leadership in Energy and Environmental Design (" LEED") Green Building Rating Program developed and overseen by the United States Green Building Council;

(b) the Passive House Green Building Rating Program developed and overseen by either Passive House Institute US, Inc. or the Passive House Institute; or

(c) the Enterprise Green Communities Green Building Rating Program developed and overseen by Enterprise Community Partners, Inc.

22.23.2 *Applicability of Rating Systems.*

(a) If a Green Building Rating Program offers different Green Building Rating Systems, a Green Building Project shall use the rating system that is most directly applicable to that Green Building Project or building type, subject to the following limitations:

(1) the applicable Green Building Rating System must address design and construction of buildings rather than building operations or neighborhood development; and

(2) Green Building Rating Systems that only address interior design may be used for rehabilitation projects subject to the requirements of Sections 22.20 through 22.25 only if another rating system cannot be reasonably applied.

(b) A Green Building Project shall use the most current version of the applicable Green Building Rating System at the time an application for a special permit is filed or, if a special permit is not required, the time an application for a building permit is filed; however, within twelve (12) months after the time of adoption of a new version of a Green Building Rating System, a Green Building Project shall have the option to apply using either the most current version or the preceding version.

(c) The Green Building Rating System, including the applicable version, shall be specified at the initial stage of administrative review set forth in Section 22.25.

22.24 *Requirements*

22.24.1 *Rating*. A Green Building Project shall be designed to meet the standards of one of the authorized Green Building Rating Systems listed in Section 22.23 above. Compliance shall be demonstrated to the Community Development Department ("CDD") pursuant to the administrative review procedures in Section 22.25.

(a) If the LEED Green Building Rating Program is being used, the Green Building Project shall be designed such that it would achieve a minimum " Gold" level standard, except if the Green Building Project contains less than 50,000 square feet of GFA in which case the Green Building Project shall be designed such that it would achieve a minimum " Silver" level standard.

(b) If the Passive House Green Building Rating Program is being used, the Green Building Project shall be designed such that it would achieve the minimum criteria for certifica-

tion from the applicable Passive House Green Building Program, whether it be the Green Building Rating Program developed and overseen by either Passive House Institute US, Inc. or the Passive House Institute.

(c) If the Enterprise Green Communities Green Building Rating Program is being used, the Green Building Project shall be designed such that it would achieve the minimum criteria for certification from the Enterprise Green Communities Green Building Program.

Certification by the Green Building Rating Program shall not be required.

22.24.2 *Green Commissioning*. The Owner of property on which a Green Building Project is proposed shall engage a Green Commissioning Authority as defined in Article 2.000 of this Zoning Ordinance to verify and document that all building systems and assemblies are planned, designed, installed, tested, operated, and maintained to meet the applicable Green Building Project requirements. Compliance shall be demonstrated to CDD pursuant to the administrative review procedures in Section 22.25.

(a) The Green Commissioning Authority shall complete the following activities for mechanical, electrical, plumbing, and renewable energy systems:

(1) review contractor submittals;

(2) verify inclusion of systems manual requirements in construction documents;

(3) verify inclusion of operator and occupant training requirements in construction documents;

(4) verify systems manual updates and delivery;

(5) verify operator and occupant training delivery and effectiveness;

(6) verify seasonal testing;

(7) review building operations ten (10) months after substantial completion; and

(8) develop an ongoing commissioning plan that outlines the organization, schedule, allocation of resources, and documentation requirements of the commissioning process prior to the start of commissioning activities.

(b) The Green Commissioning Authority shall report results, findings, and recommendations directly to the Owner of the property on which the Green Building Project is located.

(c) If the Green Building Project is using a Green Building Rating System that includes an optional standard for enhanced commissioning, that standard must be met.

22.24.3 *Verification*.

(a) The Owner of the property on which the Green Building Project is located or developer of a Green Building Project shall designate a Green Building Professional to be engaged throughout the design and development of the Green Building Project to ensure and verify that the Green Building Project is designed to meet the applicable requirements. The designated Green Building Professional, in addition to meeting the

requirements set forth in the definition of Green Building Professional in Article 2.000 of this Zoning Ordinance, shall hold a credential from a Green Building Rating Program indicating advanced knowledge in the specific Green Building Rating System being applied to the Green Building Project. Examples include a LEED accredited professional or Certified Passive House Consultant. The credentials of the designated Green Building Professional shall be provided to CDD at the initial stage of administrative review pursuant to the procedures set forth in Section 22.25.

(b) An Energy Simulation Tool shall be used by the Green Building Professional to demonstrate compliance with the requirements of the applicable Green Building Rating System. The Energy Simulation Tool that is being used by the Green Building Professional shall be provided to CDD at the initial stage of administrative review pursuant to the procedures set forth in Section 22.25.

(c) Green Building Projects using the Passive House Green Building Rating Program shall employ on-site quality assurance testing performed by a Passive House rater/verifier who is trained and certified by Passive House Institute US, Inc. or the Passive House Institute to perform such testing for the type of Green Building Project being designed.

22.24.4 Reserved.

22.24.5 Flood Resilience. A Green Building Project shall meet the Flood Resilience standards set forth in Section 22.80.

22.24.6 Green Factor. A Green Building Project shall meet the Green Factor standards set forth in Section 22.90.

22.25 *Administrative Review Procedures.*

22.25.1 Before applying for any special permit from the Planning Board or any development review procedure under Article 19.000 of the Zoning Ordinance, the documentation listed below shall be submitted to CDD for review. Within thirty (30) days after receiving a complete set of documentation, CDD shall provide written notice that the documentation sufficiently demonstrates compliance with the requirements of Section 22.24, or shall provide a written explanation of deficiencies to be corrected in a revised submission.

(a) Rating System Checklist: The document that enumerates the criteria set forth in the applicable Green Building Rating System, indicates which technical and design requirements will be met in the Green Building Project design, and indicates the intended rating level of the Green Building Project.

(b) Rating System Narrative: A written description of the technical and design requirements utilized to meet each of the criteria that the Green Building Project intends to achieve under the applicable Green Building Rating System.

(c) Net Zero Narrative: A written description of how the Green Building Project is being designed in response to the City's Net Zero Action Plan, which seeks to neutralize greenhouse gas emissions resulting from buildings by reducing their energy use

intensity and promoting renewable sources of energy. This information is provided for advisory review by CDD staff, and CDD may provide a questionnaire template to the developer for completing this narrative. At a minimum, this narrative shall include the following information:

1. Anticipated building envelope performance, including roof, foundation, walls and window assemblies, and window-to-wall ratio;

2. Anticipated energy loads, baseline energy simulation tool assumptions, and proposed energy targets, expressed in terms of site energy use intensity ("EUI"), source EUI (expressed as British Thermal Unit (BTU) per square foot per year), and annual greenhouse gas emissions projected until 2050, expressed as Metric Tons of Carbon Dioxide Equivalents (MTCO2e), and calculated in accordance with the standards and requirements established in Chapter 8.67 of the Municipal Code ("Building Energy Use") and associated regulations. If anticipated tenant plug loads (EUI and emissions) are provided, they shall be separately broken out and clearly identified as such;

3. A description of ways in which building energy performance has been integrated into aspects of the Green Building Project's planning, design, and engineering, including building use(s), orientation, massing, envelope systems, building mechanical systems, on-site and off-site renewable energy systems, and district-wide energy systems;

4. A description of the technical framework by which the Green Building Project can be transitioned to net zero emissions prior to 2050 (acknowledging that such a transition might not be economically feasible at first), including future net zero emissions options for building envelope, HVAC systems, domestic hot water, interior lighting, and on- and off-site renewable energy sources;

5. A description of programs provided by local utility companies, government agencies, and other organizations that provide technical assistance, rebates, grants, and incentives that can assist in achieving higher levels of building performance, summarizing which entities have been contacted and which programs could be utilized in the Green Building Project; and

6. An assessment of the technical and financial feasibility to meet the projected HVAC and domestic hot water demands of the building (as set forth in Paragraph (2) above) using energy systems that do not consume carbon-based fuels on-site (to include solar photovoltaics and hot water, ground source, water source or air source heat pumps, district energy, geothermal systems, and/or similar systems) compared to code-compliant energy systems that consume carbon-based fuels on-site (including, where applicable, the construction or expansion of energy plants controlled by the developer that may be necessary to produce energy for that specific building), which shall include the cost of

installation, maintenance and upkeep of the energy system and its components (incorporating programs and incentives as set forth in Paragraph (5) above). This paragraph will become effective on February 23, 2021.

7. Embodied Emissions: A whole building lifecycle analysis of the estimated emissions generated by the construction of the Green Building Project. The Assistant City Manager for Community Development shall promulgate regulations for how these estimated emissions are to be reported. Such regulations shall include at minimum the required reporting of estimated lifecycle emissions generated by the use of major building materials, including but not limited to wood, concrete, steel, aluminum and glass, using embodied emissions modeling software and industry standards acceptable to CDD staff. This paragraph will become effective on the date of final promulgation of the regulations for Green Building Projects that have not yet completed the initial stage of administrative review by such date, and shall not impose a requirement on any building project that does not meet the standard threshold for project review special permit of 50,000 square feet or includes housing units.

(d) Credentials of the Green Building Project's designated Green Building Professional and affidavit signed by that professional stating that he/she has reviewed all relevant documents and that to the best of his/her knowledge, the documents provided indicate that the Green Building Project is being designed to achieve the requirements of Section 22.24.

22.25.2 Before applying for a building permit for a Green Building Project, the documentation listed in Subsection 22.25.1 above, updated from any previous version (if applicable) to reflect the current Green Building Project design, and the additional documentation listed below shall be submitted to CDD for review. Within thirty (30) days after receiving a complete set of documentation, CDD shall provide written notice to the developer of the Green Building Project that the documentation sufficiently demonstrates compliance with the requirements in Section 22.24 and that said developer may apply for a building permit from the Superintendent of Buildings, or CDD shall provide a written explanation of deficiencies to be corrected in a revised submission.

(a) Energy Simulation Tool results demonstrating compliance with the selected Green Building Rating System.

(b) For a Green Building Project using the Passive House Green Building Rating Program, the following set of documents is required:

(1) credentials of the Passive House rater/verifier who will perform testing and verification and letter of intent stating he/she has been hired to complete the on-site verification process;

(2) credentials of the Certified Passive House Consultant who has provided design, planning, or consulting services;

(3) construction drawings and specifications, including building envelope assemblies, all mechanical systems, and appliance specifications; and

(4) Energy Simulation Tool results using "WUFI Passive" software, developed by Fraunhofer IBP in partnership with Passive House Institute US, Inc. and Owens Corning, or Passive House Planning Package software developed by the Passive House Institute, or a comparable software tool that is authorized for use by the Passive House Green Building Rating Program.

(c) Credentials of the Green Building Project's designated Green Building Professional and an affidavit signed by that professional stating that he/she has reviewed all relevant documents and that to the best of his/her knowledge, the documents provided indicate that the Green Building Project is being designed to achieve the requirements of Section 22.24.

(d) Credentials of the Green Building Project's Green Commissioning Authority or a copy of an executed contract with the developer of the Green Building Project if the Green Commissioning Authority is an independent consultant or subcontractor.

22.25.3 Before applying for a certificate of occupancy for a Green Building Project, the documentation listed in Subsections 22.25.1 and 22.25.2 above, updated from any previous version to reflect the current Green Building Project design, and the additional documentation listed below shall be submitted to CDD for review. Within thirty (30) days after receiving a complete set of documentation, CDD shall provide written notice to the developer of the Green Building Project that the documentation sufficiently demonstrates compliance with the requirements in Section 22.24 and that said developer may submit an application for a certificate of occupancy from the Superintendent of Buildings, or CDD shall provide a written explanation of deficiencies to be corrected in a revised submission.

(a) For Green Building Projects using the Passive House Green Building Rating Program, the final testing and verification report completed by the Passive House rater/verifier.

(b) Credentials of the Green Building Project's accredited Green Building Professional and an affidavit signed by that professional stating that he/she has reviewed all relevant documents and that to the best of his/her knowledge, the documents provided indicate that the Green Building Project was built to achieve the requirements of Section 22.24.

(c) An affidavit in a form created and approved by CDD, signed by the Green Commissioning Authority, certifying that the pre-construction commissioning process requirements of this Section were included in the scope of work for the Green Building Project and have been met and that the post-construction commissioning process requirements of this Section were included in the scope of work and will be met, including a schedule of when each commissioning requirement was or will be met.

22.26 This Ordinance shall take effect ninety (90) days from the date of its enactment.
(Ord. No. 1412, 12-9-2019; Ord. No. 2020-10, 11-23-2020; Ord. No. 2022-9, 2-24-2023; Ord. No. 2022-20, 3-6-2023)

22.30 GREEN ROOFS

22.31 *Purpose.* The purpose of this Section is to establish standards for the development of green roof systems on new and existing buildings for the purpose of stormwater management, heat mitigation, and access and enjoyment by occupants of a building, and to require new buildings of substantial size to include vegetation and/or solar energy roofing systems on much or most of the available roof area.

22.32 *Access.* Green Roof Area as defined in Article 2.000 of this Zoning Ordinance may be accessible by means of a roof entrance either for maintenance or for recreational use by building occupants or the general public. If Green Roof Area is intended for recreational use, it shall be designed and maintained to ensure that the vegetation will endure the anticipated use throughout the Green Roof Area's lifetime.

22.33 *Types.* Green Roof Area shall be classified as one of the three following types:

(a) Non-Intensive Green Roof Area shall have a minimum 4-inch layer of growing substrate that requires minimal maintenance, using small, low-growing plant species, particularly succulents.

(b) Short Intensive Green Roof Area shall have a minimum 18-inch layer of growing substrate that supports a wider variety of plant types, such as herbaceous and woody plants that are less than two (2) feet tall at maturity.

(c) Intensive Green Roof Area shall have a minimum 24-inch layer of growing substrate that supports a wider variety of plant types, such as herbaceous and woody plants that are greater than two (2) feet tall at maturity, and requiring more structural support, irrigation, and maintenance than Short Intensive Green Roof Area.

22.34 *Operation and Maintenance Plan*. Wherever Green Roof Area is proposed, a long-term operation and maintenance plan shall be created and implemented to ensure that the Green Roof Area functions as designed. The level of detail in these plans should reflect the type of Green Roof Area being proposed, the complexity of the project, and the nature and extent of the impacts that may arise both during and after construction. The owner shall submit the operation and maintenance plan to the Department of Public Works (DPW) for approval before applying for a building permit for any building containing Green Roof Area. DPW shall certify to the Superintendent of Buildings that the operation and maintenance plan has been provided to DPW and approved prior to issuance of a building permit for any Green Roof Area. The Commissioner of Public Works shall have the authority to promulgate regulations for the implementation of this Section.

22.35 *Green Roofs Requirement.*

22.35.1 *Applicability.* This Section 22.35, *et. seq.*, shall apply to any new building or structure of twenty-five thousand (25,000) gross square feet or more, except it shall not apply to affordable housing buildings that either are developed under the Affordable Housing Overlay (AHO) as defined in Section 11.207 or have a majority of their units permanently reserved for households at or below 100% of AMI.

22.35.2 *Requirement.*

(a) At least 80% of the roof area of the building as measured in plan view, excluding those portions of the roof listed below, shall be devoted to Green Roof Area, Biosolar Green Roof Area, or Solar Energy Systems.

1. Areas having a slope greater than 3 in 12 or twenty-five percent (25%).
2. Areas designed and managed for use by building occupants or the general public.
3. Vehicular parking decks.
4. Chimneys, water towers, air conditioning equipment, elevator bulkheads, skylights, ventilators and other necessary features appurtenant to buildings which are usually carried above roofs and are not used for human occupancy, in addition to conduit, visual and acoustical screening, access routes for maintenance and service, and other areas that must be clear of obstruction to comply with applicable building and safety codes.

(b) In the case of non-residential or mixed-use buildings in which at least half of the Gross Floor Area is devoted to one or more of the non-residential uses listed below (with reference to the Table of Use Regulations, Section 4.30 of this Zoning Ordinance), excluding any municipal buildings, at least 80% of the roof area of the building as measured in plan view, excluding those portions of the roof listed above at 22.35.2(a)(1)-(4), shall be devoted to Green Roof Area or Biosolar Green Roof Area:

1. Transportation, Communication & Utility Uses (Section 4.32);
2. Educational Purposes (Section 4.33-b.);
3. Noncommercial Research Facilities (Section 4.33-c.);
4. Other Institutional Uses (Section 4.33-h.);
5. Office and Laboratory Use (Section 4.34);
6. Retail Business and Consumer Service Establishments (Section 4.35);
7. Open Air or Drive In Retail & Service (Section 4.36);
8. Light Industry, Wholesale Business and Storage (Section 4.37); or
9. Heavy Industry (Section 4.38).

22.35.3 *Exemption.* The Planning Board may grant a special permit to reduce the required Green Roof Area, Biosolar Green Roof Area, or Solar Energy System below the area required by Section 22.35.2, provided that each square foot so reduced be compensated by a unit price contribution to the Cambridge Affordable Housing Trust. This unit price shall be determined based on the average costs to design, install, and maintain green roofs and rooftop solar energy systems in Cambridge using actual cost figures to the extent possible, shall be subject to annual adjustment based on standard construction cost indices, and shall be calculated, and recalculated approximately every three years, by the Cambridge Commu-

nity Development Department. All such funds contributed to the Trust shall be dedicated to the design and incorporation of Green Roof Area, Biosolar Green Roof Area, or Solar Energy Systems into new or existing affordable housing developments.

22.35.4 *Effective Date*. The provisions of this Section 22.35, as adopted on June 1, 2021, shall not apply to structures lawfully in existence or lawfully begun before June 1, 2021, or to a building or special permit issued before June 1, 2021, and shall take effect on June 1, 2021.

(Ord. No. 2020-25, 5-3-2021; Ord. No. 2022-9, 2-24-2023)

22.40 RESERVED

Editor's note—Ord. No. 2022-9, adopted Feb. 24, 2023, repealed § 22.40, which pertained to exterior walls and insulation and derived from Ord. No. 1413, adopted Dec. 9, 2019. Provisions for exterior walls and insulation are currently found in Articles 2.000 and 5.000 of the Zoning Ordinance.

22.50 RESERVED

Editor's note—Ord. No. 2022-9, adopted Feb. 24, 2023, repealed § 22.50, which pertained to overhangs and sun-shading devices and derived from Ord. No. 1333, adopted August 2, 2010. Provisions for overhangs and sun-shading devices are currently found in Articles 2.000 and 5.000 of the Zoning Ordinance.

22.60 SOLAR ENERGY SYSTEMS

22.61 *Purpose*. The purpose of this Section is to define solar energy systems within the zoning ordinance, to provide a mechanism for publicly registering such systems so that nearby developers can be aware of their existence, and to provide limited zoning protections for such systems in some instances where developers of neighboring properties are seeking a special permit or variance.

22.62.1 Solar energy systems are viewed as potentially valuable contributors to meeting the City's objective of encouraging sustainable development and energy conservation. However, the complex nature of urban development in the city limits the extent to which the city's zoning regulations can be employed to guarantee long-term access to sunlight on a wide geographic basis. Therefore, the following provisions are intended to provide limited support for such systems and to raise awareness of their contribution to the objectives of this Article 22.000 on the part of the general public and property owners.

22.62 A Solar Energy System shall be defined as a device or combination of equipment that converts radiant energy from the sun into heat or electricity that can be used for the purpose of heating indoor spaces, producing hot water, or powering electrical devices.

22.63 A Registered Solar Energy System shall be defined as a Solar Energy System for which a building permit has been issued, provided that at least one year has passed since the issuance of such permit, and whose sun-exposed elements are at a height no lower than five (5) feet below the maximum height allowed within the base zoning district in which it is

located. Such systems shall be recorded on a public registry of Solar Energy Systems that shall be maintained by the City's Inspectional Services Department and made available to property owners by request.

22.64 *Protection of Registered Solar Energy Systems*. The impacts of a proposed development seeking a special permit or variance on a Registered Solar Energy System shall be considered by the Board of Zoning Appeal or the Planning Board, whichever is applicable, in making its determination, as described in Article 10, Subsection 10.32 and Article 19, Subsection 19.33 of this Zoning Ordinance. No protection shall be provided by this Zoning Ordinance to a Solar Energy System that does not meet the definition of a Registered Solar Energy System.

22.70 WIND TURBINE SYSTEMS

22.71 *Purpose*. It is the intent of this Section 22.70 to permit the limited use of wind turbines throughout the city (a) for the purpose of small scale generation of electricity for on-site consumption as an accessory use to other activities located on the same lot, (b) for the purpose of researching, testing, evaluating, or demonstration of the efficacy in an urban setting of such instruments as a means by which renewable sources of energy might be employed to generate electricity at a larger scale for both a domestic and commercial purposes, and (c) in appropriate locations in non residential districts for the generation of electricity for commercial sale as a principal use. These provisions are intended to ensure that such facilities are well designed, carefully sited, and operated in a manner that will not pose a nuisance or hazard to the general public or nearby neighbors.

22.72 *Wind Turbine Systems Permitted by Special Permit*. A Wind Turbine System may generally be permitted anywhere in the city after the granting of a special permit from the Planning Board, subject to the conditions and limitations described in this Subsection 22.72. In special cases, there is a limited provision for the permitting of Wind Turbine Systems as-of-right, without the granting of a special permit, as described in Subsection 22.73 below.

22.72.1 Dimensional Limitations.

1. Height. There shall be no maximum height limit for a Wind Turbine, but the permitted height of a Wind Turbine shall be specifically approved by the Planning Board.
2. Setbacks. There shall be no required minimum yard setbacks for a Wind Turbine, but the permitted placement of a Wind Turbine with respect to public street lines and adjacent lot lines shall be specifically approved by the Planning Board. All equipment and structures accessory to the Wind Turbine shall be subject to the yard requirements of the applicable zoning district unless waived by the Planning Board.

22.72.2 Application Material. At a minimum the special permit application shall contain the following material:

1. Plans of the site showing the location of the Wind Turbine System and its relationship to other uses and buildings on the site, including elevations of Wind Turbines and other features on the site; plans, descriptions, illustrations and/or photographs describing

the surrounding uses and physical context in sufficient detail to allow an assessment of the proposal on those surrounding activities; illustration of the laydown options for maintenance of the equipment; any proposed screening and landscaping.

2. A detailed description of the Wind Turbine System including number, size, materials, noise rating, operational plan, maintenance schedule.

3. A narrative discussion of the extent to which the operation of the proposed Wind Turbine System will generate continuous shadows, intermittent shadows (a.k.a. flicker), and/or noise that may be detected from adjacent properties and from the public street.

4. Photo simulations or other representations, from at least two vantage points (one of which should be from a public street), illustrating the proposal in its physical context.

5. A detailed estimate of the cost of removal of the Wind Turbine System.

22.72.3 Standards for Granting of the Special Permit. In addition to the limitations requirements described in Section 22.74 below and the criteria established in Section 10.43 of the Zoning Ordinance for the granting of a special permit, the Planning Board shall consider the following specific criteria.

1. The visual impact of the Wind Turbine System on the abutting properties and the neighborhood. In recognition of the fact that a Wind Turbine of any significant size will introduce a physical structure and form not typical of most residential and commercial neighborhoods in the city, the Planning Board shall consider the following when assessing whether a proposal has any unreasonable negative impacts on neighborhood character or adjacent uses:

   a. the size, scale and bulk of the proposed Wind Turbine System in relationship to the scale of typical buildings and other elements in the neighborhood;

   b. the visibility and impact of the proposed Wind Turbine System from important view corridors and viewsheds, with the understanding that reasonable efforts should be made to make the system visually unobtrusive, although in many cases a system may not be reasonably expected to be screened from public view;

   c. the nature of adjacent uses, including the historical and architectural quality of surrounding buildings, the consistency of that architectural character over an extended area, and the extent to which the proposed Wind Turbine System is visually integrated with that character and with the larger urban landscape; and

   d. in the case of building-mounted Wind Turbine Systems, the visual relationship between the system and the architecture of the building upon which it is installed.

2. The extent, frequency and duration of continuous and intermittent shadows and their relationship to interior spaces and places people will regularly occupy. Such impacts should be minimized and directed away from sensitive spaces in residential environments. It shall be the burden of the applicant to demonstrate that there shall be no significant adverse impact on adjacent properties.

3. The extent of detectable noise and vibration impact on neighboring uses.

4. Where a Wind Turbine System is proposed in an Open Space District or near an open space facility, particularly one with a significant natural aspect, the system's impact on any conservation, historic, or recreational value should be carefully analyzed.

5. Other factors with regard to the operational and visual impacts of the Wind Turbine System that may suggest that a time limitation should be imposed on the special permit.

22.73 *Wind Turbine Systems Permitted As-of-right*. A Wind Turbine System shall be permitted as-of-right, without the granting of a special permit, only if the conditions and limitations of this Subsection 22.73 and the requirements of Subsection 22.74 below are met. Any proposed Wind Turbine System not meeting all of the conditions and limitations of this Subsection 22.73 may be permitted only after the granting of a special permit by the Planning Board, as described in Subsection 22.72 above.

22.73.1 District Limitations. The Wind Turbine System and all associated monitoring and testing equipment must be located in a Residence C-3, C-3A, C-3B or Special District 6 zoning district.

22.73.2 Use Limitations.

1. The Wind Turbine System must be accessory to an educational use, Section 4.56 c, Paragraphs 4-6, dormitory use accessory to such educational use, Section 4.56 c, Paragraph 8, or museum use, Section 4.56 i, Paragraph 2 where such museum has as its core mission the display, exploration and dissemination of knowledge, scientific principles, and natural phenomena to the general public.

2. The Wind Turbine System shall only be installed for the purpose of advancing the educational and instructional purposes of the institution to which it is accessory and shall not be installed for the specific and principal purpose of generating electricity for sale. However, energy generated by the Wind Turbine System may be used in the operation of the physical plant of the institution to which it is accessory.

22.73.3 Dimensional Limitations.

1. The Wind Turbine must be installed on a building and may not be a freestanding structure.

2. Height: The Wind Turbine Height may not extend more than forty (40) feet above the existing height of the portion of the building upon which it is mounted. Such limitation shall apply even if the height of the building is non-conforming and already exceeds the height of structures permitted in the zoning district. The height shall be measured to the highest point of the turbine, including the height of blades when in the vertical position.

3. Setbacks. The Wind Turbine shall be subject to the following minimum setbacks, which shall apply regardless of the location of the building upon which the turbine is installed.

a. No portion of the Wind Turbine may be located nearer than two hundred (200) feet to any structure containing a residential use (exclusive of transient accommodations, Section 4.31.1) that is neither owned nor under the control of the institution erecting the turbine.

b. The minimum setback of the Wind Turbine from any public street line or from a lot line of a lot not in the ownership of the institution to which the Wind Turbine is accessory shall be a distance equal to the Wind Turbine Height. However, a Wind Turbine with a height of ten (10) feet or less shall have no required minimum setback.

22.73.4 Time Limitations. A building permit authorizing the installation of a Wind Turbine System under the provisions of this Subsection 22.73 shall limit said use to a period not to exceed two years unless, prior to expiration of said two years, a request in writing is submitted to the Inspectional Services Department for an extension of the permit for an additional two years. Such extension shall not be unreasonably withheld and may be granted if the conditions and requirements of this Subsection 22.73 and Subsection 22.74 below continue to be met by the Wind Turbine System and no nuisance or hazard has been identified during the previous two years of operation. Such building permit may be extended for additional two year intervals in the same manner.

22.74 *General Limitations and Requirements for Wind Turbine Systems*.

22.74.1 In all cases, a Wind Turbine System shall be subject to the following limitations and requirements:

1. The Wind Turbine System shall be free from any appurtenances with the exception of equipment necessary to monitor, regulate, secure, and maintain the system and the electricity it may produce. No sign may be attached to the system with the exception of unobtrusive manufacturer identification and operational guidance informational signs. No cellular or mobile phone equipment may be attached to the system.

2. The Wind Turbine System shall not be independently lighted except as may be required by any local, state or federal regulation.

3. The Wind Turbine System shall be painted in subdued tones of white, black, silver, grey, dark green, brown, blue or similarly subdued, non-reflective color unless otherwise required by local, state and/or federal regulations or allowed by the Planning Board.

4. In operation the Wind Turbine System shall meet the requirements of the Cambridge Noise Ordinance, cumulatively for all equipment installed at a single location. All equipment shall be rated for noise generation so that it can be evaluated prior to installation.

5. The site shall be capable of accommodating the laydown of the Wind Turbine without trespass onto city streets or adjacent lots held in a different ownership.

6. The Wind Turbine System shall be designed and located so as to prevent unauthorized access and otherwise be maintained in a safe operating condition.

7. Abandonment. Given the unique safety considerations associated with Wind Turbines, the owner shall be obligated to remove the Wind Turbine System if any one of the following occurs:

   a. Abandonment of the Wind Turbine System through disuse for a period of one year;

   b. Non-functioning of the Wind Turbine System for more than 100 days, where substantial steps have not been initiated to make necessary repairs; or

   c. Failure to request an extension of a building permit as required in Subsection 22.73.4 above, or a special permit authorized under Subsection 22.72 above, where that special permit may have been time-limited by the Planning Board.

   Upon failure to remove the Wind Turbine System 150 days after any one of these threshold events occurs, the City of Cambridge shall have the authority to enter the property and remove the system at the expense of the owner/operator where it finds that the equipment constitutes a hazard to the general public. At or before issuance of a building permit for the system, the Permittee shall post a bond or other surety in a form and in an amount acceptable to the City that shall cover the cost of removal of the system by the City should that be necessary, such bond amount to be consistent with estimates for removal prepared at the Permittee's expense by a qualified engineer. The surety mechanism shall account for cost of living adjustments over the expected life of the system.

8. A Wind Turbine System principally used for the express purpose of the commercial selling of the energy generated shall be permitted only in non-residential zoning districts. In residential districts, such commercial use shall not be permitted. However, it is understood that in those residential districts a portion of the energy generated by the system that is not immediately consumed on-site may at times be sold back or credited to the local-serving power utility, consistent with any applicable state or federal law or regulation. Furthermore, a cooperative system serving multiple adjacent properties shall be permitted in residential districts and may share the output of the system without being considered a commercial use.

22.74.2 *Waiver of Requirements*. When granting a special permit for a Wind Turbine System, the Planning Board may grant a waiver from the general requirement to accommodate laydown of a Wind Turbine without trespass onto city streets or adjacent lots as described in Subsection 22.74.1, Paragraph 5 above. The Planning Board may also grant a waiver of the requirement to post a bond or other surety that shall cover the cost of removal of the Wind Turbine System by the City, as described in Subsection 22.74.1, Paragraph 7 above. The Planning Board may grant such a waiver if the Board finds the requirement to be unnecessary in a given case.

22.75 *Definitions*.

22.75.1 *Wind Turbine*. A device that converts wind energy to rotational energy that then drives an electrical generator. A conventional turbine generally consists of a tower or pole, a nacelle body, and a rotor with multiple blades. Variations may include vertical axis turbines and structural elements housing and encapsulating the rotating elements of the turbine. It is anticipated that as testing and experimentation continues the physical form of turbines may become much more varied.

22.75.2 *Wind Turbine System*. A combination of equipment designed to be permanently mounted on a building or freestanding, including Wind Turbines and associated and accessory equipment and structures, necessary to convert wind energy to electricity.

22.75.3 *Wind Turbine Height*. The vertical dimension of a Wind Turbine as measured from ground level in the case of a freestanding turbine, or from the height of the portion of the building upon which it is mounted in the case of a building-mounted turbine, to the highest point of the Wind Turbine, including the height of blades when in the vertical position.

(Ord. No. 2024-2, 6-24-2024)

22.80 FLOOD RESILIENCE STANDARDS

22.81 *Statement of Purpose.* The purpose of this Section is to promote building designs that are resilient to the impacts of flood events that are likely to become more frequent and intense due to the effects of climate change. These standards are informed by future projections, based on up-to-date scientific research, rather than historical occurrences of flooding. These standards are intended to account for the differing needs of buildings and sites and provide flexibility to use different measures to promote resilience. They are also intended to work in tandem with environmental standards promulgated by the Department of Public Works (DPW).

22.82 *Applicability*. This Section shall apply to development subject to Section 22.20 Green Building Requirements, and to other development as set forth elsewhere in this Zoning Ordinance.

22.83 *Flood Elevation Standards*.

22.83.1 Promulgation.

(a) The City Engineer shall promulgate, and shall revise from time to time, the projected elevations of future flood risk due to certain types and probabilities of flood events for every lot in the City of Cambridge. The resulting projected elevations are referred to herein as Long-Term Flood Elevations ("LTFEs").

(b) LTFEs shall be determined for flood risk due to precipitation based on piped infrastructure using the City's hydraulic model, and for flood risk due to sea level rise and storm surge based on climate modeling performed by or endorsed by the Commonwealth of Massachusetts's agencies and determined by the City Engineer to represent the most reliable and up-to-date scientific analysis of future climate conditions. Whenever promulgating new LTFEs, the City Engineer shall document the source data used to determine the LTFEs and shall provide an explanation of why such data was selected.

(c) LTFEs shall be based on an approximately 50-year projection from the time of promulgation. For example, LTFEs promulgated in or around the year 2020 shall anticipate flood risks in or around the year 2070. The City Engineer shall identify the projected timeframe when promulgating LTFEs.

(d) LTFEs shall be represented in vertical feet relative to the Cambridge City Base (CCB) datum.

(e) LTFEs shall be presented in the form of data tables that provide the numerical LTFEs for each parcel identified on the Cambridge Assessing Map and may also be presented in the form of a physical or digital map (for example, the Cambridge "FloodViewer" or any successor map) illustrating the LTFEs for different probabilities of flood risk for different types of flooding (i.e., precipitation, sea level rise, and storm surge) across the City. Such a map may be presented and/or illustrated in relation to ground elevation data collected by the City of Cambridge through light detection and ranging (LIDAR) or other technology; however, if a property owner provides a property survey performed by a licensed surveyor, such survey shall be considered more accurate than ground elevation data collected by the City of Cambridge. Property surveys shall not alter the LTFEs but may affect the relative difference between the LTFE and the Grade on a given parcel.

(f) New or revised LTFEs shall be made available to the public for comment no less than 90 days prior to final promulgation.

22.83.2 Application in Zoning.

(a) For the purpose of this Section, the following LTFE standards promulgated by the City Engineer as set forth above shall be applicable to development on a lot or development parcel:

(1) The 1%-Probability Long-Term Flood Elevation standard, or "1%-LTFE standard," shall refer to the projected elevation of floodwater that has a one percent annual chance of occurrence due to either sea level rise and storm surge or due to precipitation, whichever is higher.

(2) The 10%-Probability Long-Term Flood Elevation standard, or "10%-LTFE standard," shall refer to the projected elevation of floodwater that has a ten percent annual chance of occurrence due to either sea level rise and storm surge or due to precipitation, whichever is higher.

(b) For the purpose of this Section, then current LTFE standards shall be applicable to a lot or development parcel beginning on the date of final promulgation. However, a development proposal that has already submitted a LTFE plan that has been approved in writing by DPW, in accordance with Section 22.85 below, shall not be subject to LTFE standards promulgated after the date of such written approval, provided that the proposal receives all necessary permits including but not limited to a building or special permit and proceeds thereafter continuously and expeditiously to completion.

22.84 *Development Standards*.

22.84.1 Protection. A Story Above Grade or portion thereof shall be considered protected from flooding to a specified LTFE standard if its finished floor is higher in elevation than the LTFE standard, or if its finished floor is lower than the LTFE standard, there are permanent or passively deployable barriers in place at the height of the LTFE standard adequate to fully prevent the entry of floodwater into the building's interior. A Story Below Grade or any portion thereof shall be considered a finished floor protected from flooding to a specified LTFE standard if the LTFE standard is below the Grade adjoining the building, or if the LTFE standard is above the Grade adjoining the building, there are permanent or passively deployable barriers in place at the height of the LTFE standard adequate to fully prevent the entry of floodwater into the interior of the Story Below Grade. The following standards shall apply:

(a) All occupiable spaces within the building, as defined in the State Building Code, shall be protected to the 10%-LTFE standard, except that small entryways, vestibules, or lobbies with a finished floor below the 10%-LTFE standard are allowed to not be protected if they contain stairs, ramps, or lifts that allow occupants to travel to portions of the building that are protected, and if they meet the standards for "Recovery" set forth in Section 22.84.2 below.

(b) Habitable spaces for residential use, as defined in the State Building Code, shall be protected to the 1%-LTFE standard.

(c) The following critical building equipment within the building or on the site shall be protected to the 1%-LTFE standard: mechanical heating and cooling systems including fuel storage tanks, supply meters, shut-off switches and building management system controls; electrical power supply, transformers, panels, switchgear, and safety equipment including electrical shut-off equipment, backup generators and their fuel sources; water heaters and water supply related equipment; telecommunications equipment; elevator and lift equipment.

22.84.2 Flood Recovery. A portion of a building shall be considered recoverable from the impact of flooding if floodwater is able to enter and leave the space without causing damage that cannot be readily repaired. This can be achieved through various strategies, including using permanent or contingent measures that prevent or provide resistance to flood damage, or that can be easily repaired or replaced if damaged. Portions of a building located at or below the 10%-LTFE standard that are not required to be protected in Section 22.84.1 above shall be designed to be recoverable.

22.84.3 Modifications. Upon granting a special permit, the Planning Board may approve modifications to the development standards set forth in Section 22.84.1 and 22.84.2 above after finding that a proposed development is designed to meet the intent of the standards in a manner that is more suitable to the unique conditions of the development or the site. No such modification may be approved under this section unless it has been reviewed and approved in writing by the City Engineer.

22.85 *Administrative Review Procedures*. Before applying for any special permit from the Planning Board, any development review procedure under Article 19.000 of the Zoning Ordinance, or

a Building Permit, whichever occurs sooner, the documentation listed below shall be submitted to the Department of Public Works (DPW) for review. Within forty-five (45) days after receiving a complete set of documentation, DPW shall provide written notice that the documentation sufficiently demonstrates compliance with the requirements of this Section or shall provide a written explanation of deficiencies to be corrected in a revised submission. To verify continued compliance, revised documentation incorporating any design modifications shall be reviewed and approved by DPW in accordance with the aforementioned procedures before application for any Building Permit or Certificate of Occupancy sought after the initial submission is accepted.

(a) Identification of the LTFE standards employed in the development proposal and their date of promulgation. The applicant's initial submission shall employ the LTFE standards that have been promulgated most recently prior to the applicant's submission of the required documentation. If new LTFE standards have been made available to the public for possible promulgation, such LTFE standards shall be identified in the applicant's submission and shall be applicable to the application if new LTFE standards are promulgated before DPW completes its review of the application. For a specific lot or Development Parcel for which the owner has provided a topographical survey, the City Engineer may approve LTFEs that are adjusted for the unique topography of the lot or Development Parcel.

(b) Elevations and vertical cross-sections of the building and site indicating the 1%-LTFE standard and 10%-LTFE standard, the elevation of the Grade, and the elevation of all finished floors of the building, as well as the uses of all interior sections of the building and the locations of all openings in the building envelope that are below the 1%-LTFE standard and 10%-LTFE standard including pedestrian and vehicular entrances/exits and windows. All drawings shall be drawn to scale and shall include a graphic scale symbol on each drawing sheet.

(c) A written summary of the technical approaches to meeting the "Protection" and "Recovery" development standards set forth in this Section for any portions of the building located at or below the 1%-LTFE standard or 10%-LTFE standard, including but not limited to the types of flood barriers to be employed and the types of construction materials to be used within such portions of the building.

(d) A narrative describing any proposed alternative approaches to meeting the intent of the development standards set forth in this Section, if the proposal is seeking approval of any modifications to such standards.

22.86 *Implementation*.

(a) The DPW Commissioner shall have the authority to promulgate regulations for the implementation of the provisions of this Section. There shall be a ninety (90) day review period to receive public comments on draft regulations before final promulgation.

(b) The Department of Public Works may develop standards and procedures appropriate to and consistent with the provisions of this Section.

(c) These Flood Resilience Standards shall become effective on September 1, 2023, or on the date of final promulgation of regulations promulgated by the DPW Commissioner, whichever is first.

(Ord. No. 2022-9, 2-27-2023)

22.90 GREEN FACTOR STANDARD

22.91 *Purpose and Intent.* The purpose of this Section is to promote the inclusion of features that have a demonstrable cooling effect on buildings and sites to mitigate urban heat island effect. The performance-based "Green Factor," as defined in Article 2.000, approach is intended to be flexible and provide options that can be tailored to different building and site conditions. It is also intended to work in tandem with other regulations, including existing zoning requirements for open space and permeable area, Green Building Requirements (Section 22.20 of this Zoning Ordinance), stormwater control regulations promulgated by the Department of Public Works (DPW), and other standards.

22.92 *Applicability*. This Section shall apply to development subject to Section 22.20 Green Building Requirements, and as set forth elsewhere in this Zoning Ordinance.

22.93 *Prerequisites*. The following requirements shall be met for any development that is required to achieve a minimum Cool Score, as defined in Article 2.000:

22.93.1 *High Solar Reflectance Index (SRI) Roof.* Where the development involves the construction of a new building roof or replacement of more than 50% of an existing roof, the surface of such roof shall have a minimum initial SRI of 82, with the following exceptions:

(a) Roofs with a slope of 2:12 or steeper shall not be subject to a minimum SRI requirement.

(b) Components of a Solar Energy System or Green Roof Area, as defined in this Zoning Ordinance, shall not be subject to a minimum SRI requirement.

(c) In the case of a locally-designated historic structure, the minimum SRI may be reduced or waived to the extent necessary to comply with the conditions of any Certificate of Appropriateness issued by the Cambridge Historical Commission or by a Neighborhood Conservation District Commission. In the case of a state-designated or federally-designated historic structure, the minimum SRI may be reduced or waived to the extent necessary to comply with a determination of adverse effect by the Executive Director of the Cambridge Historical Commission.

22.94 *Calculation*.

22.94.1 *Cool Target.* The Cool Target shall be determined by multiplying the total lot area of the lot or Development Parcel by the total Open Space requirement applicable in the zoning district, or by 20%, whichever is greater (see formula below). The Cool Target shall be expressed in square feet.

Total Lot Area x Open Space Requirement (min. 20%) = Cool Target

22.94.2 *Cool Area.* The Cool Area shall be determined by multiplying the building and site design features listed in the table below (as defined in Article 2.000 of this Zoning Ordinance) by the corresponding weighted values in the table. Features that are located within 20 feet of a street shall use the weighted values in the rightmost column; all other areas shall use the weighted values in the column to the left. The Cool Area for a lot or Development Parcel shall be the sum of the weighted values for all such features located on the lot or Development Parcel, expressed in square feet.

Category	**Cooling Design Feature**	**Weighted Value Not Within 20' of Street**	**Weighted Value Within 20' of Street**
Preserved Existing Trees	Understory Tree currently <10' canopy spread	0.80 x 150 square feet per tree	1.60 x 150 square feet per tree
	Canopy Tree currently <15' canopy spread	0.80 x 700 square feet per tree	1.60 x 700 square feet per tree
	Understory Tree currently >10' canopy spread	1.00 x 150 square feet per tree	2.00 x 150 square feet per tree
	Canopy Tree currently between 15' and 25' canopy spread	1.00 x 700 square feet per tree	2.00 x 700 square feet per tree
	Canopy Tree currently >25' canopy spread	1.20 x 700 square feet per tree	2.40 x 700 square feet per tree
New or Transplanted Trees	Understory Tree	0.60 x 150 square feet per tree	1.20 x 150 square feet per tree
	Canopy Tree	0.70 x 700 square feet per tree	1.40 x 700 square feet per tree
Planting Areas	Lawn Area	0.30 x area in square feet	0.60 x area in square feet
	Low Planting Area	0.40 x area in square feet	0.80 x area in square feet
	High Planting Area	0.50 x area in square feet	1.00 x area in square feet
Green Roofs & Façades	Green Façade	0.10 x area in square feet	0.20 x area in square feet
	Living Wall	0.30 x area in square feet	0.60 x area in square feet
	Non-Intensive Green Roof Area	0.30 x area in square feet	0.60 x area in square feet
	Short Intensive Green Roof Area	0.50 x area in square feet	1.00 x area in square feet
	Intensive Green Roof Area	0.60 x area in square feet	1.20 x area in square feet
Paving & Structures	Paved Area with a Minimum Solar Reflective Index (SRI) of 33	0.10 x area in square feet	Not Applicable
	Shaded Area	0.20 x area in square feet	0.40 x area in square feet

22.94.3 *Cool Score.* The Cool Score shall be the Cool Area divided by the Cool Target. It shall be expressed as a numerical value that is less than, equal to, or greater than 1.0.

(a) A Cool Score of 1.0 or greater shall be considered to meet the Green Factor standard, except as set forth elsewhere in this Zoning Ordinance.

(b) Where a development proposal involves the preservation and/or rehabilitation of a pre-existing building on the site, but does not result in an enlargement of the building footprint or expansion of the existing building on the site, then a Cool Score of less than 1.0 shall be considered to meet the Green Factor standard if it is equal to or greater than the Cool Score attributable to the existing conditions on the site.

22.95 *Modifications*. Upon granting a special permit, the Planning Board may approve modifications to the development standards set forth above after finding that a proposed development is designed to meet the intent of the standards in a manner that is more appropriate to the unique conditions of the development or the site.

22.96 *Administrative Review Procedures*. Before applying for any special permit from the Planning Board, any development review procedure under Article 19.000 of the Zoning Ordinance, or a Building Permit, whichever occurs sooner, the documentation listed below shall be submitted to the Community Development Department (CDD) for review. Within thirty (30) days after receiving a complete set of documentation, CDD shall provide written notice that the documentation sufficiently demonstrates compliance with the requirements of this Section or shall provide a written explanation of deficiencies to be corrected in a revised submission. To verify continued compliance, revised documentation incorporating any design modifications shall be submitted to CDD and reviewed in accordance with the aforementioned procedures before applying for any Building Permit or Certificate of Occupancy that is sought after the initial submission.

(a) Green Factor Score Sheet. A tabulation of the Cool Score of a lot, to be submitted on a form provided by CDD and updated by CDD from time to time.

(b) Site and Roof Plans. A set of plans that depict the location and extent of all building and site features identified as contributing to the Cool Score, and also delineate which portions of the lot are within 20 feet of a street.

22.97 *Implementation of Green Factor Standard*.

(a) The Assistant City Manager for Community Development in consultation with the City Engineer may develop standards and procedures appropriate to and consistent with the provisions of this Section.

(b) All features used in calculation of the Cool Score shall be designed, installed, and maintained in accordance with such guidelines promulgated by the City.

(c) This Green Factor Standard shall become effective ninety (90) days after the date of adoption by the City Council.

(Ord. No. 2022-9, 2-27-2023)

ARTICLE 23.000 STANDARDS FOR URBAN AGRICULTURE

23.10 INTENT
23.20 RESERVED
23.30 GENERAL STANDARDS FOR URBAN AGRICULTURE
23.40 STANDARDS FOR BEEKEEPING
23.50 STANDARDS FOR HENKEEPING

23.10 INTENT

It is the intent of this Article 23.000 to provide standards for Urban Agriculture that will improve residents' access to healthy, locally-produced food and other agricultural products, allow additional opportunities for economic development and social service, promote sustainability and ecological stewardship, advance public knowledge of agricultural practices, maintain public health and safety, and mitigate potential conflicts between agricultural and other urban land uses.

23.20 RESERVED

Editor's note—Ord. No. 2023-9, adopted Nov. 20, 2023, repealed 23.20, which pertained to urban agriculture definitions and derived from the original Zoning Ordinance.

23.30 GENERAL STANDARDS FOR URBAN AGRICULTURE

23.31 Activities controlled by this Article shall be conducted in accordance with all applicable federal, state and local laws, rules and regulations, including those related to water use and discharge.

23.32 Activities controlled by this Article shall be conducted in accordance with all City of Cambridge Ordinances, including the Noise Control Ordinance (Cambridge Municipal Ordinance 8.16.010).

23.33 Activities controlled by this Article shall be conducted in accordance with all applicable regulations of the Cambridge Public Health Department.

23.40 STANDARDS FOR BEEKEEPING

23.41 *General Standards*.

a. Beekeeping is allowed as an accessory use pursuant to Article 4.000 of this Zoning Ordinance, according to the standards herein.

b. A permit must be obtained from the Cambridge Public Health Department for all keeping of bee colonies, and permit-holders must be in compliance with all local public health regulations and state public health laws pertaining to beekeeping.

23.42 *Beehive and Apiary Size*.

a. A free-standing beehive shall be no greater than twenty (20) cubic feet in volume. A beehive that is attached to or contained within a building may be greater in volume, provided that no portion of the beehive greater than twenty (20) feet in volume may project beyond the principal wall plane of the building.

b. The maximum height of a beehive or apiary shall be six (6) feet from grade, or from an elevated surface if located atop such a surface. This height limitation shall not apply to fences or other structures intended to separate a beehive or apiary from adjacent uses, which shall remain subject to other applicable provisions of this Zoning Ordinance.

23.43 *Warning Signage*.

a. Where any beehive is located within ten (10) feet of a public street, park, school grounds, walkway, or bikeway, a sign legible from the public way indicating that a beehive is present nearby shall be maintained so that it is readable from the public way.

b. Where any beehive is located on a shared porch, balcony, or rooftop, a sign indicating that a beehive is present shall be located at the entrance to such area.

23.50 STANDARDS FOR HENKEEPING

23.51 *General Standards for Henkeeping.*

a. Henkeeping is allowed as an accessory use pursuant to Article 4.000 of this Zoning Ordinance, according to the standards herein.

b. A permit must be obtained from the Cambridge Public Health Department for all keeping of hens, and permit-holders must be in compliance with all local public health regulations and state public health laws in order to keep hens.

c. Only female chickens (i.e., hens) may be kept. No male chickens (i.e., roosters) are allowed.

d. Care and disposal of hens must be in accordance with all local public health regulations and state public health laws.

23.52 *Number of Hens.* No more than six (6) hens may be housed on a lot unless a permit issued by the Cambridge Public Health Department explicitly authorizes a greater number, but in no case shall more than twelve (12) hens be permitted.

23.53 *Enclosures.*

a. Hens must be kept within an enclosure consisting of a henhouse and a hen run.

b. All hen enclosures shall be located at least five (5) feet from a property line, or may be closer to the property line if there is a solid wall, fence, or similar opaque barrier visually screening the enclosure from an abutting property.

c. A hen enclosure shall not be located in a front yard.

d. Freestanding henhouses shall not be more than eight (8) feet in height above the mean grade of the ground adjoining the henhouse and shall cover no more than fifty (50) square feet of lot area.

e. Freestanding henhouses shall be designed, constructed, and managed in accordance with any additional design standards required by the Cambridge Public Health Department.

f. A hen enclosure shall be built in conformance with all other applicable building, health, and safety laws, rules, and regulations.

(Ord. No. 2023-9, 11-20-2023)

TABLE OF ADOPTED CHANGES
Prior to December 18, 2017

Ordinance #	Subject	Date
1	Zoning Ordinance Passed	12/27/43
23	Huron Ave	8/3/44
24	Windsor/Washington/Cherry	8/3/44
35	Concord Turnpike	1/22/45
51	Concord Turnpike	10/1/45
81	Austin St	7/29/46
101	Ht. Except, Art VI, Sec 5	1/13/47
112	Board of Appeal, Art I, Sec 4	6/2/47
128	Broadway/Moore St	7/21/47
131	Mass Ave/Lancaster	9/22/47
179	Concord Ave	7/15/48
180	Garden/Linnaean	8/3/48
200	Franklin St	12/13/48
258	Concord Ave	12/27/49
285	Mt. Auburn St	9/11/50
300	Willow St.	11/6/50
313	Concord Ave.	12/27/50
314	Garden/Chauncy St.	1/15/51
333	Boylston St	4/2/51
360	Mass Ave/Elm/Davenport	10/14/51
372	Alewife Brook/Rindge Ave	2/11/52
372	Concord Turnpike	2/11/52
394	Accessory Use, Art VI, Sec 5	4/21/52
395	Use Regulations, Bus A, Art VI	4/21/52
396	Special Permits, Art I, Sec 5	4/28/52
402	Green St	5/12/52
404	Mass Ave/Elm/Davenport	6/30/52
491	Little River	12/6/54
493	Franklin St	1/3/55
519	Rindge Ave/Alewife Brook	6/11/56
541	Walnut/Wash/Arlington St	3/4/57
579	Pemberton/Yerxa	4/21/58
619	Mass Ave/Holyoke/Dunster	9/14/59
630	Franklin St.	4/11/60
651	Pleasant St.	9/19/60
665	Zoning Ordinance Ordained	2/13/61
689	Lee/West/Inman	8/21/61
726	Boylston/South St.	1/7/63

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729	Green/Hancock	11/4/63
730	Cambridge/Spring/Second	3/9/64
746	Huron Ave	8/8/66
756	Open Space, Art XI, IV & V	4/10/67
757	Mass Ave/Chauncy St	6/26/67
758	Parking Requirements	10/16/67
759	Building Permits	10/16/67
760	Rindge Ave/Alewife	11/13/67
762	Cambridge/Second/Gore	1/22/68
764	Fitchburg RR/Normandy Ave	4/22/68
784	Hospitals	6/30/69
786	Table of Use Regulations	9/8/69
787	Cambridge/Lambert St.	12/15/69
789	Mass Ave/Bay/Green St.	12/29/69
790	Erie/Hamilton St.	12/2/69
792	Mass Ave/Ellery/Dana St.	1/12/71
793	Certificate of Occupancy	1/26/70
797	Sherman/Bolton St.	6/22/70
807	Green/Bay/Mass Ave.	6/28/71
809	Wellington/Harrington Renewal	2/14/72
811	Cambridge/Warren St.	5/8/72
814	Mt. Auburn/Gerry/Memorial Dr.	5/14/73
815	Mass Ave/Hammond/Roseland	5/14/73
816	Magazine/Memorial/Brookline St	6/25/73
817	Hampshire/Prospect/Cambridge	6/25/73
818	Blanchard/Normandy	6/25/73
819	Blanchard/Normandy	6/25/73
826	Story/Mt. Auburn St	12/26/73
827	Mt. Auburn/Hilliard/Brattle	12/13/73
828	Cambridge/Third/Gore	12/26/73
831	Aberdeen/Homer	2/11/74
840	Open Air/Drive In/Fast Food	7/24/74
841	Prospect/Cambridge/Hampshire	9/9/74
842	Garfield/Oxford/Wendell	11/18/74
843	Concord Ave/Buckingham	2/24/75
845	Mt. Auburn/Homer/Aberdeen	5/19/75
847	Concord Ave/Garden/Manassas	6/23/75
857	MidCambridge Rezoning	10/20/75
85	Office 1, 2, & 3, Art. 5.000	10/29/75
863	Mt. Auburn/Aberdeen	5/17/77
864	Transient Accommodation	6/7/76

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868	Community Residents	6/21/76
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883	Cambridgeport/Brookline St	10/24/77
884	Comprehensive Ordinance	9/26/77
886	Planned Unit Development	10/24/77
887	Mixed Use District	10/31/77
888	Neighborhood 9	3/13/78
889	Essex St.	3/13/78
893	North Cambridge Comprehensive	6/12/78
894	Winter St.	6/12/78
898	PUD-1 height limits	7/10/78
900	Rindge Ave	7/10/78
904	Fast Food Establishments	12/11/78
906	East Camb Comprehensive	12/11/78
908	Harvard Square Overlay	1/22/79
911	Bellis Circle	1/29/79
912	Commercial Recreation	2/12/79
913	Mellon St.	2/12/79
916	Fulkerson/Second St.	4/2/79
917	Townhouse/Multifamily	3/26/79
919	Ash St.	4/23/79
934	Rutland/Chauncy	6/2/80
936	Mass Avenue	6/9/80
937	Elderly Housing	6/16/80
938	Alewife	6/16/80
956	Parking Regulations	5/18/81
959	Mixed Use District	6/22/81
960	Institutional Growth	6/22/81
963	Accessory Apartments	6/29/81
967	Portland St.	6/29/81
968	Dwelling Unit	6/29/81
969	Zoning Boundaries	6/29/81
970	Special Permit	6/29/81
971	Parkway Overlay District	6/29/81
972	Development Parcel	6/29/81
973	Gross Floor Area	8/3/81
974	Cedar/Harvey St.	9/26/81
982	Flood Plain	6/21/82
983	Elderly Oriented Housing	6/21/82
985	Maple Avenue	8/2/82

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986	Brookline St.	8/2/82
988	Agassiz Neighborhood	10/18/82
989	Massage Establishments	12/13/82
996	Concord Ave.	5/23/83
999	Business B-1/B-2	6/13/83
1008	Signs	6/11/84
1011	Res A-2, Article 5.000	6/25/84
1019	Dana St.	12/10/84
1020	Concord Ave/Birch St.	4/8/85
1022	Neighborhood 4	6/10/85
1025	Neighborhood 4	9/23/85
1027	Lechmere Square	12/16/85
1031	Harvard Sq. Overlay	6/2/86
1032	Mt. Auburn/Winthrop St.	6/2/86
1035	Huron/Concord Ave.	6/23/86
1040	Sidney/Chestnut/Henry	9/29/86
1042	Mt. Vernon/Mass Ave.	10/6/86
1043	North Mass Avenue Overlay	10/6/86
1050	Res C/Affordable Housing	4/6/87
1056	Follen/Waterhouse/Garden	6/29/87
1057	Pemberton/Sherman	9/14/87
1058	Community Residence	8/3/87
1063	Cambridgeport Revitalization	1/11/88
1066	Salem/Watson/Brookline St.	4/4/88
1069	Helipad Regulation, Art. 4.000	6/6/88
1072	Inclusionary Art. 11.200	7/25/88
1074	Rufo Rd	7/25/88
1075	Hotel/Motel use regs.	9/12/88
1076	North Point Res, Office, Business	10/17/88
1080	Townhouse Ordinance	5/22/89
1082	Central Sq. Overlay 11.300	5/22/89
1083	East Harvard Sq. 20.50	6/5/89
1085	Fast Order Food Establishment	6/12/89
1087	Veterinary Establishment	6/26/89
1090	Community Residences	6/11/89
1091	Special Districts Art 17.000	9/11/89
1123	Signs and Illuminations	5/23/91
1127	Trolley Square/Herman	11/4/91
1132	South Cambridgeport	2/10/92
1136	Kirkland Place Overlay	3/26/92
1143	Fast Order Food Establ	9/14/92

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1153	MXD District	8/5/93
1160	BZA membership	12/12/94
1164	Youville Hospital	3/6/95
1170	Res B infill housing	10/19/95
1172	Massage Establishment	11/9/95
1179	Green St.	9/9/96
1181	Technical Amend	1/6/97
1186	Harvard St	6/12/97
1187	Cellular Antenna Sec 4.32	5/12/97
1189	Art 14 Cumulative GFA	9/8/97
1193	Pitkin, et al Petition	9/22/97
1194	Sec 5.22.3 Open Space Bonus deletion	11/24/97
1195	Sec 4.30 - Hotel/Motel Use	11/24/97
1197	Sec 11.200 Incentive Zoning	3/2/98
1205	Anderson, Sec. 10.45, 6.35, 5.32 & 4.32	7/27/98
1207	Special District 8 - Max FAR	7/27/98
1209	Sec 11.500 - IPOP	9/28/98
1210	Churchill Ave	10/26/98
1212	Alewife/special district 2	1/7/99
1216	River St/Putnam Ave	2/22/99
1220	IPOP/parking facility	4/5/99
1221	IPOP/simultaneous application	4/5/99
1224	Truck Traffic restrictions	6/21/99
1226	Backyard protections	7/26/99
1227	Minimum Lot Size per unit	7/26/99
1228	Columbia/Blair Place	9/13/99
1229	Inclusionary Parking	9/13/99
1230	Central Sq. Overlay 20.300	10/4/99
1231	Sumner Road	10/4/99
1233	IPOP extension to 4/3/00	11/1/99
1234	Larkin moratorium 18 months	1/24/00
1235	Linear Park/Special District 2	2/14/00
1237	IPOP extension to 10/2/00	5/15/00
1240	Housing in Industry	6/19/00
1241	Concord Turnpike Open Space	7/21/00
1242	Tennis, Concord Ave Overlay Subdistrict	7/31/00
1244	Library Use	9/5/00
1246	IPOP extension to 2/12/01	12/18/00
1247	Harvard Square Overlay District	12/18/00
1248	Citywide rezoning	2/12/01

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1253	EaCaps	10/15/01
1255	River Street	11/19/01
1257	Special District 8 & 8A	12/17/01
1258	Transition Districts	2/25/02
1259	PUD theater parking	9/9/02
1261	Truck Traffic Restrictions	1/27/03
1266	Outdoor Lighting - Sec. 19.33	6/16/03
1267	MDC Open Space	9/29/03
1269	Riverside Rezoning	11/3/03
1270	Park Open Space Rezoning	11/3/03
1271	Rooftop Mechanicals	11/3/03
1272	Open Space Definitions	11/3/03
1273	CSOD Ht Limits	2/2/04
1276	Memorial Dr Overlay District Section 20.80	6/21/04
1281	Tree Protection Section 19.20 and 10.47	11/1/04
1282	Zoning Petition Fee 1.53	12/6/04
1283	North Point Height Allocation	2/14/05
1285	6.000 - Parking requirements	6/6/05
1286	20.109 North Mass Ave Overlay Large Project Review	9/12/05
1288	4.33 - Fire and Police Use	9/12/05
1296	Memorial Drive Overlay Amendment 20.810 c.	6/26/06
1297	Concord Alewife Rezoning	6/26/06
1298	Private Open Space	8/7/06
1299	Concord/Fern St.	8/7/06
1301	Conversion 5.28 standards	10/16/06
1302	Mass Ave/Washburn St	11/20/06
1303	Smith Place	12/4/06
1304	Business A, A-1, and A-2	3/5/07
1305	Prospect St Overlay District	4/10/07
1307	Theater Use in PUD-3	6/18/07
1315	Bicycle Storage	5/12/08
1316	KayKa/Porter Square	9/8/08
1318	Memorial Drive 20.88	2/2/09
1319	Alexandria 13.40, 13.50	2/9/09
1327	Lesley Porter Overlay District	6/22/09
1330	Wind Turbine Systems	9/21/09
1332	Flood Plain Overlay District	5/24/10
1333	Green Building Zoning	8/2/10
1334	MXD Ames St District	8/2/10

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1337	PUD - 6/EF Zoning	12/13/10
1338	Special District 15	6/20/11
1340	Section 5.28.2	8/1/11
1341	Public Bicycle Sharing	9/19/11
1342	Penalty & Fine	11/21/11
1343	Bellis Circle	12/5/11
1344	Bagedonow Res C-1 setback	12/5/11
1345	Chestnut Street Realty, 20.600	12/19/11
1347	Special District 2	3/5/12
1349	School Zoning	7/30/12
1350	PUD-7 North Point	7/30/12
1351	20.100 - NMAOD subdistrict	7/30/12
1352	Central Sq Bar Entrance	12/17/12
1353	Cafeteria Zoning 13.59.33.5	1/28/13
1354	CRDD Text and Map Revisions	2/25/13
1355	PUD-5 District/MIT	4/8/13
1357	Bicycle Parking	6/3/13
1358	MXD Ames St District	12/9/13
1359	Medical Marijuana	12/16/13
1361	Cambridge Highlands Overlay	10/20/14
1362	North Point Parking, 13.73.1	11/10/14
1363	1.52 public hearing schedule	1/5/15
1365	Whitehead Institute, Sec 14.72	3/30/15
1368	Mass + Main, 20.307	5/18/15
1369	Chestnut Hill Realty	6/1/15
1371	Incentive Zoning	9/28/15
1372	Sherman/Walden, BA-4	10/19/15
1377	MXD District	12/21/15
1379	Accessory Aprt	1/11/16
1380	Car Sharing	1/11/16
1382	Medical Marijuana #3	4/25/16
1384	Richard Avenue	6/27/16
1385	North Mass Ave Overlay Subdistrict	9/12/16
1386	Med Marijuana, Harvard Sq	9/26/16
1387	Med Marijuana, City Council	2/6/17
1389	Central Sq Restoration	2/27/17
1393	8.23 Nonconformity	4/24/17
1397	Short Term Rentals	8/7/17
1398	MIT/GSA PUD 7	10/23/17
1399	Alexandria, PUD 3A and 4C	12/18/17

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1400	Beekeeping	12/18/17

As of the 2018 Publication of the Zoning Ordinance, this table will be replaced with the Table of Amendments.

TABLE OF AMENDMENTS

This table gives the chronological listing of ordinances and resolutions beginning with the Cambridge, MA Publication of the 2018 Zoning Ordinance.

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1404	12-17-2018			Art. 2.000
				4.35 s.
			Added	4.37 n.
				4.40 58.
			Added	6.36.5 s.
			Added	6.36.7 n.
				11.800
1407	4-29-2019			5.34
1408	5- 6-2019			4.22
1412	12- 9-2019			Art. 2.000
				22.21—22.24
			Added	22.25, 22.26
1413	12- 9-2019		Rpld	22.43.2
				5.24.2
1415	12-16-2019		Added	13.100
1419	3- 2-2020		Added	20.1000
1420	3- 2-2020			20.50
1421	3-16-2020			11.202(b)
2020-8	10- 5-2020			Art. 2.000
			Added	11.207
2020-10	11-23-2020			22.25.1 (c)(4), (5)
			Added	22.25.1 (c)(6)
2020-16	12-21-2020			13.200
2020-17	2- 3-2021	1		14.21.7 (6)
		2		14.32.1
		3		14.32.2
		4		14.32.2.1 8), 9)
		5		14.32.2.2
		6		14.32.5 (d)
		7		14.32.6 (2), (3)
		8	Added	14.32.6 (7), (8)
		9		14.33
		10		14.34
		11, 12		14.38, 14.39
		13, 14		14.52.2, 14.52.3
		15		14.52.6
2020-25	5- 3-2021			Art. 2.000
				22.30
2021-1	4- 5-2021		Added	8.22.2 d.
2021-3	6- 7-2021	Pt. 1A—1D		Art. 2.000

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		Pt. 2	Added	4.210
		Pt. 3A		4.35, table
		Pt. 3B		4.40 10., 12., 14., 23.—28., 29.
			Added	4.40 59.—61.
		Pt. 4		6.32.1
		Pt. 5	Added	10.43.1
		i		3.11
		ii		4.30
		iii		6.36.5, 6.36.6
		iv		6.36, notes
		v		Art. 2.000
		vi		4.21 o.
		vii		11.30
				13.12.4
		viii		13.32.4
		ix		13.42.4
		x		13.52.4, 13.52.5
		xi		13.82.5, 13.82.6
		xii		13.92.4, 13.92.5
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		xiv		14.21.3
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				15.21.5
		xvi		16.21.3
		xvii		17.12
		xviii		17.23.1
		xix		17.32.2
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		xxi		17.81.2
		xxii		17.105
		xxiii		17.202
		xxiv		19.23
		xxv		20.86.2
		xxvi		20.110.21
		xxvii		20.304.5 1.—3.
2021-4	6- 7-2021			4.21 d.
2021-8	6-28-2021			Art. 2.000
				4.32 l.
				4.37 o.
				6.36.2 l.
				6.36.7 o.
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2021-16	9-27-2021			4.21 d.
2022-1	5-23-2022		Added	20.93.5

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				2.000
				5.10
				5.22—5.25
				19.24
				19.30, 19.40
			Added	22.24.5, 22.24.6
				22.30
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				13.95.6
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2022-14	10-17-2022			11.202(b)
				2.000
2022-18	11-21-2022			11.202(d)
2022-20	3- 6-2023			22.25.1(c)
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		4		6.36, table
		5		20.104.1
		6		20.110
2022-23	2- 6-2023			10.12
2023-1	5- 1-2023			4.36, table
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2023-2	6-12-2023			2.000
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				4.40
2023-4	9-18-2023			4.32, table
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				4.37, table
				11.800
2023-5	9-11-2023		Added	20.1100
				20.90
				21.40
				20.75
2023-7	10-16-2023			2.000
				11.207
Memo. of	3-11-2024			11.202(b)
2023-9	11-20-2023			2.000
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				5.24.1
			Rpld	23.20
			Added	23.50

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		Added	4.31.1
			4.40
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			5.28.20
			5.34(f)
			6.36.1
		Added	6.36.1.1
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2024-5	12-23-2024		2.000
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			4.40
		Added	6.25
2024-9	12-16-2024		2.000
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			as	2.25.5
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